Child Care Regulation Handbook

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1000, Legal Basis, Regulated Programs, Records, and Technology

1100, HHSC Regulatory Authority

Revision 22-5; Effective Nov. 4, 2022

Certain provisions in Chapter 531 of the Texas Government Code transferred the regulatory functions of the Texas Department of Family and Protective Services (DFPS) to the Texas Health and Human Services Commission (HHSC) on September 1, 2017. Hence, by default, Chapter 42 of the Texas Human Resources Code now designates HHSC as the agency responsible for protecting the health, safety, and well-being of Texas children by regulating child-care operations that provide assessment, care, training, education, custody, treatment, or supervision:

- for a child who is not related by blood, marriage, or adoption to the owner of the operation; and
- for all or part of the 24-hour day.

The same provisions of the Texas Government Code transferred DFPS's responsibility under Chapter 43 of the Texas Human Resources Code to HHSC. Hence, HHSC is responsible for issuing licenses for child-care and child-placing-agency administrators. This chapter requires HHSC to develop and administer an examination as part of the licensing process for licensed administrators.

HHSC has designated the Child Care Regulation (CCR) Department for being responsible for carrying out the responsibilities outlined in Chapters 42 and 43 of the Texas Human Resources Code.

Texas Government Code Sections 531.02001; 531.02011; 531.02013; 531.02014; and 2401.002

Texas Human Resources Code Sections 42.001; 42.002; 42.052(c); 43.003; 43.004(2); and 43.008

1110 CCR's Regulatory Activities

February 2021

Child Care Regulation's (CCR's) regulatory activities include:

a. reviewing applications for permits;
b. determining whether a child care program is subject to regulation or is exempt;
c. issuing permits to applicants;
d. inspecting and investigating operations;
e. developing and administering licensing examinations for child care and child-placing agency administrators;
f. seeking to ensure ongoing compliance with the requirements in Texas statutes and rules;
g. providing technical assistance to operations and licensees;
h. supporting operations in their efforts to improve their programs;
i. taking administrative, corrective, or adverse action on operations and licensees, as appropriate; and
j. conducting background checks on persons who are required to have a background check.

1120 Legal Support for Policies and Procedures

September 28, 2018

This handbook is intended primarily for HHSC Child Care Licensing staff. Licensing staff must follow the handbook's policies and procedures, so that HHSC meets the requirements in the Licensing statutes and rules. State statutes and rules that support the policies and procedures are cited in the handbook.

1121 District and Regional Procedures

December 2011

District directors and managers may develop procedures for their staff provided that the procedures:

- support the provisions in this handbook;

- do not conflict with Licensing statute, rules, and the policies in this handbook; and
- have been discussed and approved by the Director of Child Day Care Licensing or the Director of Residential Child Care Licensing.

1122 Child Care Regulation Statutes

Revision 23-4; Effective Nov. 30, 2023

State statutes for Child Care Regulation (CCR) are found in the following:

Human Resources Code

Chapter 40: Although most of the statutes in this chapter relate to DFPS responsibilities, two exceptions are Human Resources Code (HRC):

- Section 40.066, which governs hearings at the State Office of Administrative Hearings (SOAH) conducted by HHSC on behalf of CCR; and
- Section 40.005, which continues to govern confidentiality provisions in 26 TAC Chapter 745, Subchapter K, Division 3.

Chapter 42: Regulation of Certain Facilities, Homes, and Agencies That Provide Child-Care Services — Establishes standards for regulating child care.

Chapter 43: Regulation of Child-Care and Child-Placing Agency Administrators — Establishes standards for regulating the child care administrators and child-placing agency administrators.

1123 Child Care Regulation Rules (Texas Administrative Code)

Revision 23-4; Effective Nov. 30, 2023

HHSC rules related to CCR are found in 26 TAC Chapter 745. The rules implement the agency's statutory responsibilities and identify and describe the rights and responsibilities of HHSC and the operations HHSC regulates. These rules can be found on the HHS website at Minimum Standards or on the Secretary of State website at Texas Administrative Code.

Before adopting new, amended or repealed rules, HHSC publishes all proposed rule changes in the Texas Register for a 30-day review and comment period.

Chapter 2001, *Government Code* (GC)

Once adopted, rules in the TAC carry the force of law.

1123.1 Chapters of Rules in the Texas Administrative Code Applicable to Child Care Regulation

Revision 23-4; Effective Nov. 30, 2023

The following chapters of rules in Title 26 of the Texas Administrative Code (TAC) apply to the rules for CCR. Once proposed, reviewed and adopted, rules become part of the Texas Administrative Code. Minimum Standards for child care are based on the corresponding chapter of 26 TAC.

Chapter of Rule in Title 26 TAC	Publication
26 TAC Chapter 742	Minimum Standards for Listed Family Homes
26 TAC Chapter 743	Minimum Standards for Shelter Care
26 TAC Chapter 744	Minimum Standards for School Age and Before or After School Programs
26 TAC Chapter 745	Licensing
26 TAC Chapter 746	Minimum Standards for Child Care Centers
26 TAC Chapter 747	Minimum Standards for Child Care Homes
26 TAC Chapter 748	Minimum Standards for General Residential Operations
26 TAC Chapter 749	Minimum Standards for Child-Placing Agencies

1130 Ethics of Regulation

September 28, 2018

All state employees are bound by the laws and rules established by the Texas Legislature in the Government Code and the Penal Code. The Texas Ethics Commission interprets these laws.

As a government regulator, Licensing is expected to use its authority in a manner that earns the respect, trust, and confidence of the public and consumers.

Even the appearance of an impropriety must be avoided.

Government Code, §§572.001 and 572.051

Penal Code, Chapter 36 (Bribery and Corrupt Influence) and Chapter 39 (Abuse of Office)

Procedure

In all facets of Licensing responsibilities and activities, staff:

a. enforce licensing regulations in a fair and equitable manner in accordance with state law and HHSC policy and procedures;
b. inform regulated entities of their rights and responsibilities throughout the regulatory process;
c. foster a mutual respect among regulated entities, consumers, and HHSC;
d. provide child care operations with information and assistance to improve their understanding of state regulations for child care and improve their ability to meet those regulations;
e. provide information to parents and consumers to assist them in making informed decisions about child care; and
f. are courteous and professional when conducting regulatory actions.

Licensing staff must:

a. avoid the appearance as well as the fact of improper, unfair, or self-serving conduct, including unwarranted discrimination or differential treatment;
b. behave in a manner that earns respect, trust, and confidence and reflects positively on their profession and HHSC;
c. promptly disclose any personal or financial interest they have or have had that might appear to influence their actions;
d. avoid the fact or appearance of using their positions to endorse a particular product, licensee, service provider, or group of licensees or providers;
e. not allow political or religious affiliations to influence decisions made while in the role of a regulator; and
f. observe the policies published in the *HHS Human Resources Manual*.

1140 Operations and Activities Regulated by Licensing

December 2019

Licensing regulates the following:

a. Child day care — Operations that provide care to children under age 14 less than 24 hours at a time
b. Residential child care — Operations that provide care to children under 18 years old 24-hours a day
c. Administrator licensing — Individuals licensed as child-care administrators, child-placing agency administrators, or both

26 TAC §§745.33, 745.35, 745.8901, and 745.8903

1141 Types of Child Day Care Operations

Revision 24-2; Effective May 22, 2024

CCR regulates the following types of child day care operations:

- listed family homes;
- registered child care homes;
- licensed child care homes;
- child care centers;
- small employer-based child care;
- shelter care;
- before or after-school programs; and
- school-age programs.

Visit 2110 Permits Required for Child Day Care and 26 TAC Section 745.37(2) for descriptions of these operations.

1142 Types of Residential Child Care

Revision 24-2; Effective May 22, 2024

CCR regulates the following types of residential child care operations:

- general residential operations (GROs); and
- child-placing agencies (CPAs).

Other types of residential child care operations include:

- foster homes verified by a CPA to provide foster care; and
- adoptive homes approved by a CPA for the purpose of adopting a child.

Visit 2120 Permits Required for Residential Child Care and 26 TAC Section 745.37(3) for descriptions of these operations.

1143 Types of Licensed Administrators

December 2019

The following table describes the types of licensed administrators that Child Care Licensing (CCL) regulates. See also 26 TAC §§745.8901, and 745.8903.

Licensed Administrators	Description
Child Care Administrator	A person who: • supervises and exercises direct control over a general residential child care operation or a residential treatment center; and • is responsible for the operation's programs and personnel, regardless of whether the person has an ownership interest in the operation or shares duties with anyone.
Child-Placing Agency Administrator	A person who: • supervises and exercises direct control over a child-placing agency, as defined in §745.37(3)(F) (relating to What specific types of operations does Licensing regulate?); and • is responsible for the child-placing agency's programs and personnel, regardless of whether the person has an ownership interest in the agency or shares duties with anyone.

See also Section 9000 Licensed Administrators.

1200, Application Security for CLASS and IMPACT

Revision 23-3; Effective Sept. 22, 2023

To preserve the integrity of confidential information within the Child Care Licensing Automation Support System (CLASS) and Information Management Protecting Adults and Children in Texas (IMPACT) system, CCR employees and certain stakeholders:

- follow HHSC and DFPS policy for application security;
- are assigned security roles in CLASS; and
- are granted access to IMPACT by DFPS as needed.

1210 Assigning Security Roles in CLASS

Revision 23-3; Effective Sept. 22, 2023

Each HHSC employee and stakeholder who has approval to use the CLASS is assigned a core security role. The role is based on the employee's job classification, title and duties.

See Appendix 1000-2: Security Roles and Functions in CLASS for:

a. a list of the core security roles;
b. the functions performed by persons in those roles; and
c. the pages in CLASS used to perform the functions associated with the roles.

Requests for roles that require additional security permissions are considered individually, based on the business need.

Examples of tasks that require additional security permissions include:

a. updating CLASS to reflect changes in the minimum standards;
b. maintaining information in the Administrators' Licensing System (ALS) in CLASS; and
c. maintaining the Technical Assistance Library in CLASS.

Additional Roles

Requests for additional security roles are considered individually, based on the business need.

Additional Role	Summary	CLASS Functions
District Director or Manager	Provides all the functionality assigned to the role of Supervisor, plus the District Director or Manager provides the functions described in the *CLASS Functions* column to the right.	• Provider Adverse Action Revocation or Denial – Access the Voluntary/Relinquish Withdrawal check box and Reason text box • Operation Main – Reopen a closed operation • Operation Main – Access the Do not display on the public/provider website check box • Application/Closure – Change the decision made on an application • User Request Reports – View an At Risk Facilities Report
State Office Staff	Provides the functionality assigned to the role of Licensing Representative, plus the functions described in the *CLASS Functions* column, to the right.	CLASS Document Library – view, upload and edit files.
Administrators' Licensing System (ALS) in CLASS	Provides all the functionality assigned to the role of Licensing Inspector, plus the functions described in the *CLASS Functions* column to the right	Add and modify information about a licensed administrator. CLASS Document Library – View all documents. Upload, edit and delete only files on ALS CLASS pages

1220 Assigning a Designee in CLASS

September 28, 2018

An employee may be assigned to perform functions for another employee in the CLASS. Employees assigned designee status are accountable for the responsibilities they are assigned while serving as designees.

If the designee performs casework for another employee, the designee is expected to produce the same quality of work that would be produced if the designee were working on his or her own caseload.

1221 Maximum Number of Designees in CLASS

September 28, 2018

Managers and Directors

Managers and directors may assign up to three designees each in CLASS.

Supervisors

Supervisors may assign up to two designees in CLASS.

Inspectors

A Child Care Licensing inspector may assign designee status to another Licensing inspector only for the purposes of:

- completing a specific task; or
- temporarily covering a caseload.

Once the specific task is completed, the designee status must be deactivated.

Examples of the tasks appropriate for assignment to a designee include:

a. conducting courtesy interviews during an investigation;
b. sharing inspection responsibilities, temporarily, for a vacant caseload; or
c. completing other specific tasks assigned by a supervisor, manager, or district director.

Designees

A Licensing staff person may be appointed as a designee for up to five people.

1222 Time Limitations for Designees in CLASS

September 28, 2018

Child Care Licensing staff may only assign a designee in the CLASS for up to 90 days.

1230 Reassigning Cases, Deactivating Accounts, and Removing Roles in CLASS and IMPACT

September 28, 2018

Directors, managers, and supervisors manage and monitor the workloads of Child Care Licensing employees.

When the employment status of a Licensing employee changes, the employee's director, manager, or supervisor submits a Move, Add, or Change form (known as an eMAC) to request a change in the employee's access to systems such as CLASS and IMPACT.

To maintain security, the eMAC form must be submitted in a timely manner.

1231 Reassigning Cases in CLASS

September 28, 2018

Before an employee's access to CLASS may be removed, all of the employee's cases must be transferred to other employees.

Procedure

When possible, an employee's cases must be reassigned in CLASS before the employee's position is vacated. This includes the reassigning of operations, agency homes, and investigations.

When cases cannot be reassigned before an employee's position is vacated, the cases must be transferred in CLASS no later than five days after the position is vacated.

1232 Removing Rights to CLASS When an Employee Transfers Within HHSC

September 28, 2018

When a Child Care Licensing employee transfers to a new position within HHSC, the employee's rights to the CLASS must be removed at the time of the transfer.

Procedure

No later than the day after a Licensing employee transfers to a new position within HHSC, the employee's supervisor submits a Move, Add, or Change form (known as an eMAC) to request that the employee's rights to CLASS be removed.

1233 Removing Rights to CLASS When an Employee Voluntarily Leaves HHSC Employment

September 28, 2018

When a Child Care Licensing employee voluntarily leaves HHSC employment, all of the employee's rights to the network, including rights to CLASS, must be removed unless the employee is transferring to DFPS and needs to maintain access to CLASS.

Procedure

No later than the day after a Licensing employee voluntarily leaves HHSC employment, the employee's supervisor submits an eMAC (Move, Add, or Change form) to request that the employee's rights to CLASS be removed.

If the employee is transferring to DFPS and needs to maintain access to CLASS as part of the employee's DFPS job duties, the employee's supervisor reviews the employee's assigned security roles and submits an eMAC to request a different security role, if needed.

1234 Removing Rights to CLASS and IMPACT When an Employee is Involuntarily Terminated

September 28, 2018

When an employee is involuntarily terminated from HHSC employment, all of the employee's rights to the network, including rights to the CLASS and IMPACT systems, must be removed immediately.

Procedure

When an employee is involuntarily terminated, the supervisor immediately takes the following actions:

- Transfers all of the open cases assigned to the former employee in CLASS to another Licensing employee
- Submits an eMAC (Move, Add, or Change form) to request that all of the former employee's rights to any HHSC and DFPS systems (including CLASS and IMPACT) be removed
- Requests the former employee's rights be removed immediately by contacting:
  - CLASS Program Support; and
  - IMPACT Application Security Administrator.

If the employee's cases cannot be transferred to another employee immediately in order to terminate the employee's rights to all systems:

- the employee's supervisor requests that the employee's access to the CLASS and IMPACT systems be suspended by contacting:
  - CLASS Program Support; and
  - IMPACT Application Security Administrator.

1300, Child Care Regulation Records

Revision 23-3; Effective Sept. 22, 2023

The purpose of retaining Child Care Regulation (CCR) records is to:

a. document that staff have followed the policies and procedures required by statute, administrative rules and the policies in this handbook;
b. maintain a chronology of an operation's regulatory history with CCR;
c. maintain a chronology of a licensed administrator's regulatory history with CCR; and
d. maintain a background check subject’s background check records submitted and processed in CLASS.

1310 Content and Organization of Child Care Regulation Records

Revision 23-4; Effective Nov. 30, 2023

A CCR record consists of:

- a hard copy record (if applicable);
- electronic records maintained in CLASS, including files uploaded to CLASS Document Library. CLASS Document Library replaced CCR Digital Storage SharePoint site and Neubus system for licensed administrators on Aug. 6, 2023; and
- digital files maintained on the CCR Digital Storage SharePoint site or in the digital Neubus system for licensed administrators (prior to Aug. 6, 2023).

26 TAC Section 745.8481

The documentation in CCR records must be legible, objective, concise and clear. After uploading a file to CLASS Document Library, CCR staff should verify the file uploaded correctly and is legible.

CCR staff establish operation and licensed administrator records according to the following table:

Program Area	Hard Copy record	CLASS Record
Day Care	If staff receive a paper copy, the document is retained in the hard copy record until added to the CLASS record.	• An operation is established in CLASS when an application or inquiry is received. • The application is uploaded to CLASS Document Library when accepted.
Residential Care	Not used. All records are maintained in the CLASS record or digital records.	An operation is established in CLASS and the application is uploaded to CLASS Document Library when an application or inquiry is received.
Unregulated Operations	Not used. All records are maintained in CLASS record or digital records.	• An inquiry or report of an alleged unregulated operation is received. • A search is conducted by staff and a possible unregulated operation is identified.
Exempt Operations	Not used. If staff receive a paper copy, the document is scanned and a CLASS record is created.	An application, inquiry or report is received.
Licensed Administrators	If staff receive a paper copy, the document is retained in paper file system.	When an application and payment of the application fee is received, the applicant information is added to Administrator Licensing System (ALS) in CLASS.

Procedure

Records are maintained according to the guidelines in Appendix 1000-1: Organizing Child Care Regulation Records.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

1311 Records for Investigations

Revision 23-3; Effective Sept. 22, 2023

For investigations:

1. records are confidential until the investigation is complete;
2. any document that must be retained as a hard copy record becomes part of the operation hard copy record, after the investigation is complete;
3. electronic records are maintained in CLASS; and
4. all external documentation, including digital photographs, videos, scanned documents, digital files and audio files are uploaded:
    - onto the CCR Digital Storage SharePoint site if the investigation was initiated prior to Aug. 6, 2023; and
    - to CLASS Document Library if the investigation was initiated on or after Aug. 6, 2023.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
6740 Maintaining an Investigation File.

1320 Custody of Child Care Regulation Records

May 2020

Each office must establish procedures to track the location of and store hard copy records. The district director must approve the tracking procedures.

1321 Assigning, Reassigning, and Transferring Records

Revision 23-3; Effective Sept. 22, 2023

Electronic records are assigned, reassigned and transferred in CLASS. See 1200 Application Security for CLASS and IMPACT.

In CLASS, the electronic record is assigned to the CCR staff who is responsible for regulating the operation, even though different CCR employees may be assigned to complete an investigation, inspection or other regulatory activities.

CCR licensed administrator staff are responsible for maintaining the electronic records in the Administrator Licensing System (ALS) in CLASS.

Access to the CCR Digital Storage SharePoint site or the digital Neubus system is granted to CCR staff and to stakeholders as needed.

The hard copy record is transferred when the electronic record is assigned or reassigned in CLASS. When a CCR employee vacates his or her CCR position, the employee's supervisor ensures continuous custody of the hard copy records until the record is reassigned to another CCR employee.

1330 Records Retention

Revision 23-4; Effective Nov. 30, 2023

Every electronic and hard copy record created in the course of business must be retained for a specific period, as listed in the HHSC Records Retention Schedule, located on the HHS Connection intranet and is approved by the Texas State Library and Archives Commission. No records or documents may be destroyed before the time designated in the retention schedule.

Procedure

CCR staff follow the following policies, available on the Records Management page of the HHS Connection intranet pages:

- retention schedule for HHSC Regulatory Services – Childcare Regulation Records Retention Schedule;
- HHS Records Management policy document (c-065); and
- policy and procedures outlined in the HHS Records Management Operating Policy.

Extending the Record Retention Period

All records and documents must be kept at least as long as the retention period stated in the HHSC Regulatory Services – Childcare Regulation Records Retention Schedule, available on the HHS Connection intranet schedule. If there is a business need to keep a record longer than the time specified in the retention schedule, CCR staff must receive approval to extend the retention period of that record from:

a. a regional director (or designee) or above; or
b. an HHSC attorney.

The extension to retain a record or document may be granted for as long as needed. After receiving approval to extend the retention schedule, CCR staff document the following in the operation's record as a Chronology in CLASS:

a. The reason for the extension.
b. The name of the approver.
c. The date of the approval.

Government Code, Chapter 441, Subchapter L

13 TAC Sections 6.7 and 6.8

26 TAC Section 745.8481(c)

1400, State-Issued Equipment, Photographs, Video, Audio and Digital Files

Revision 23-3; Effective Sept. 22, 2023

CCR staff use state-issued equipment to document the conditions that exist when conducting regulatory activities by:

- taking photographs;
- recording video and audio;
- creating digital files;
- obtaining digital files from the operation, law enforcement or another person, agency or entity; and
- converting paper documents or photos of a paper document received to an approved digital file.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool

1410 Use of State-Issued Equipment

May 2021

CCR staff are provided with state-issued equipment such as computers, tablets and mobile phones to complete regulatory activities. CCR staff must:

- ensure the security of the equipment both in the office and in the field, according to the HHS Asset Management Guide and Policy;
- use equipment in accordance with the HHS Information Security Acceptable Use Policy; and
- ensure only authorized CCR staff use the equipment.

When taking photographs, video or audio, CCR staff must use the equipment issued to them. CCR staff may not use other personal devices.

Before using the state-issued equipment for documentation, CCR staff must:

- be instructed in the equipment's use; and
- become familiar with the equipment to learn its advantages and limitations.

1420 Using Photographs and Video as a Regulatory Tool

Revision 24-1; Effective Feb. 20, 2024

CCR staff notify the operation before taking photographs or video, except when a supervisor has determined that taking photographs or video as part of surveillance is necessary.

CCR staff primarily use photographs and video to document conditions that exist when CCR regulatory activities are conducted. Photographs and video help CCR with documenting and identifying patterns in an operation's compliance history.

Procedure

Photographs may be useful in various circumstances, such as:

a. when a written description alone cannot provide a clear picture of what is observed;
b. documenting evidence of a deficiency discovered during an inspection;
c. documenting repeated deficiencies;
d. documenting evidence of care being provided at an unregulated operation;
e. supporting or refuting an allegation of a deficiency during an investigation;
f. documenting a good practice at an operation;
g. documenting evidence to support an action that will be taken against an operation;
h. supporting due process, including serving as evidence;
i. consulting with a supervisor before making a determination about a deficiency;
j. supporting an issued citation when under administrative review by Child Care Enforcement; or
k. capturing information on a paper document if a document scanner is not readily available. CCR staff use approved software to convert the photo of the paper document to a PDF file.

Video may be useful in various circumstances, such as:

- capturing a 360-degree view; or
- walking the path a child took to show hazards, such as traffic conditions.

References:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
6535 Obtaining Consent to Enter an Unregulated Operation
6540 Investigations Conducted as Desk Reviews
7442 Conducting Surveillance During Probation

1421 Using Audio as a Regulatory Tool

Revision 23-3; Effective Sept. 22, 2023

When recording during an inspection, CCR staff inform the operation of the recording at the beginning of the inspection. The recording of the inspection must be accurate, unaltered and without interruption.

Procedure

Audio recording an inspection may be useful in various circumstances, such as:

- recording interviews of individuals to determine if a violation occurred; or
- documenting to support upholding a finding.

1422 Photographs and Video of Children

December 2019

Photos and videos that include children should be taken only when there is a necessary business purpose. Photographs and videos that include children are confidential.

Instances when taking photos of children may be useful include, but are not limited to, the following:

a. Documenting the particular physical condition of the child;
b. Documenting a child's reach;
c. Documenting scale of an object or area in relation to a child;
d. Occasions when it is necessary to photograph the child to document a deficiency;
e. Occasions when moving the child or group of children to not be in the photo would disturb their activities;
f. Occasions when delaying taking the photo until a time when children are not present would delay Licensing's ability to accurately document conditions or items being photographed; and
g. Documenting an injury or the lack of injury when an injury is alleged.

Instances when taking video of children may be useful include, but are not limited to, the following:

a. Obtaining a more accurate picture of marks or bruises when a photo alone is not clear;
b. Recording when children are out of control and the caregiver's response to them; and
c. Recording children outside without supervision.

See 8210 Confidential Information Not for Release to the Public.

Procedure

When photographing a child to document an injury or the particular physical condition of the child, Licensing staff do as follows:

a. Take all photographs against a neutral, uncluttered background.
b. Attend to the lighting, focus, and the distance from the child to obtain clear photographs. A camera flash that is used too close to an injury may bleach the injury out of the photograph.
c. Start by taking an identifying photograph of the child.
d. Continue by taking photographs that identify the child and pinpoint the location of the child's injury or particular physical condition.
e. Follow with close-up shots of the particular injury.

1422.1 Taking Sensitive Photographs

December 2014

If an alleged victim's injury or alleged injury is in a private area of the body, the investigator must assess whether taking a photograph is appropriate and necessary. The investigator takes into consideration:

- the age and maturity of the child;
- any objections by the child or parent; and
- whether any other evidence exists to verify the existence or extent of the injury that might make the photograph unnecessary.

If photographs are taken, a witness must be present when clothing is removed and the investigator photographs the child.

If there is other evidence, such as medical reports or pictures taken by law enforcement or a sexual assault nurse examiner (SANE) that documents the extent of the injuries to a child's private area, then taking pictures is not necessary.

Procedure

The investigator includes the witness's name and job title in the documentation.

If evidence other than photographs is used to document the extent of a child's injury in a sensitive area, the investigator documents that the evidence was sufficient and that photographs were not necessary.

1423 Photographs of a Facility, House, Room, or Outdoor Area

March 2014

Procedure

It is impossible for one photograph to depict an entire room without distortion.

When taking a photograph of a facility, house, room, or outdoor area, Child Care Licensing staff follow these guidelines:

a. Plan the photographs carefully and take them from a good vantage point.
b. Take a series of three or four photos in a clockwise sequence, covering the entire area.
c. Take photographs from eye level to achieve the proper perspective.
d. Photograph the general area, first, to identify a particular area that must be shown in a detailed close-up.

As an alternative, Licensing staff may take video depicting a 360-degree view of the room or outdoor area.

1424 Inappropriate Use of Photographs or Video

June 2015

It is not appropriate to use photos or video to document an operation's:

a. violation of the child-caregiver ratio;
b. violation of the group size; or
c. deficiencies in record keeping.

Such violations are best documented with:

- clear, concise descriptions; and
- copies of relevant records, when appropriate.

1425 Taking Photographs That Present Better Evidence

December 2019

To be used as evidence in an administrative review or a court hearing, a photograph must satisfy the following requirements:

a. The subject of the photograph must be shown from a normal perspective. Photographs must be taken from a normal eye-level viewpoint and under the same lighting conditions that existed at the time of the incident, if possible.

Avoid the distortion caused by:

- wide-angle lenses; and
- shooting from odd vantage points.

b. The object of the photograph must be material to the case and must not incite prejudice.
c. At least one photograph taken during the inspection or investigation must contain proof of the identity of the operation in which the photograph is being taken, such as:

- a sign bearing the operation's name; or
- the presence of the director or owner in the photograph.

d. The Licensing staff person taking the photographs must attest to the accuracy of the photographs.
e. Photographs of injuries or alleged injuries must be taken in a timely fashion. Photographs must not be altered in any manner. The photograph must show a true and accurate account of the subject of the photograph. If enhancements are needed for clarity (such as enlarging, cropping, or brightening), Licensing staff must obtain photographic services outside of HHSC.
See 1440 Printing and Destroying Digital Photographs.

1426 Overcoming an Operation's Resistance to Being Photographed

December 2019

Child Care Licensing staff have the authority to:

- inspect an operation; and
- document the inspection of an operation.

Human Resources Code §42.044

Procedure

If the operation objects to having photographs taken of the operation or the children in care, Licensing staff:

a. explain that Chapter 42 of the Human Resources Code allows Licensing to inspect the operation and document the inspection;
b. explain that it can be to the operation's advantage for Licensing to take photographs that document the situation; and
c. explain, as appropriate, the purpose of the photographs, such as to:
d. document deficiencies when their validity may be questioned by a supervisor;
e. enable adequate consultation with a supervisor; or
f. document that deficiencies do not exist.

If the operation is still resistant to having photographs taken of the operation or the children in care, Licensing staff consult with the supervisor.

For policy regarding allowing review of photos or audio or video recordings, see 8210 Confidential Information Not for Release to the Public.

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool

May 2021

CCR staff notify the operation before scanning copies of operation records.

When conducting regulatory activities and making regulatory decisions, CCR staff may create digital files or use digital files provided to CCR. Examples of digital files include:

a. email communications;
b. PDF documents created with approved computer applications; and
c. digital photographs and videos provided to CCR by the operation, law enforcement or another person, agency or entity.

The primary use of scanned documents and other digital files is to document conditions that exist when CCR activities are conducted. Scanned documents and other digital files may be useful in circumstances, including:

- identifying patterns in an operation’s compliance history;
- documenting evidence of part of an inspection or investigation;
- identifying and documenting evidence associated with falsification of records; and
- documenting conditions associated with following-up on a deficiency.

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files

Revision 23-3; Effective Sept. 22, 2023

Photographs, video, audio, scanned documents and other digital files do not replace written documentation in the case record in CLASS; they supplement the narrative description.

All photographs, video, audio, written documentation, scanned documents and other digital files taken by CCR staff or received from persons outside of HHSC must be:

- documented in the CLASS system; and
- uploaded to CLASS document library.

See:

6423 Recording Interviews
Appendix 1000-1 Organizing Child Care Regulation Records

1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files

Revision 23-3; Effective Sept. 22, 2023

Procedure

Photographs, video, audio, scanned documents and other digital files created by CCR staff or received from sources outside of HHSC are documented as follows:

a. upload the file to CLASS Document Library from the appropriate CLASS page;
b. if related to an investigation, document the item in the *Contact* field of the CLASS *Investigation Conclusion* page;
c. if related to an inspection, assessment or foster home random-sampling inspection, complete the *Photos Taken by CCR During the Inspection* radio buttons, *Other Documents/Photos Obtained* radio buttons, or a combination of the two, to be included on CLASS Form 2936 (operation inspections), CLASS Form 2939 (assessments) or CLASS Form 2979 (foster home random-sampling inspections); and
d. if related to other regulatory activities, document the item in a *Chronology* in CLASS.

If the CCR inspector receives the item from another person, the inspector documents the name of the individual who took or provided the item to CCR.

1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

Revision 23-3; Effective Sept. 22, 2023

Procedure

As soon as possible, but no later than the next business day from the date that CCR staff take, obtain or create photographs, video, audio, scanned documents or other digital files, staff upload the photographs, video, audio, scanned documents or other digital files to CLASS Document Library from the appropriate CLASS page. When uploading files to CLASS Document Library, staff add a new folder from the appropriate *Document Library* page and enter a description of the contents of the folder in the *Summary of Documents* text box. The description includes:

- the name and title of the person providing the document(s), photo(s) or other file(s), if applicable;
- the date the photo(s), document(s) or other file(s) was received or taken; and
- a brief summary of the files being included in the folder.

Before saving the uploaded files, staff complete the *Document Details* fields for each file, including the *Document Type* and *Description* of the file content. For documentation regarding children, staff only include the first name and last initial of the child.

For additional details, see the CLASS: Document Library Tip Sheet located on the CCR Digital Storage SharePoint site.

See:

1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1440 Printing and Destroying Digital Photographs and Other Hardcopy Documents
4161.22 Limits to Documenting Names of Children
4161.23 Limits to Documenting Names of Persons in CLASS

1440 Printing and Destroying Digital Photographs and Other Hardcopy Documents

May 2020

1441 Printing Digital Records

Revision 23-3; Effective Sept. 22, 2023

Procedure

CCR staff print digital photographs, documents or other records:

- after obtaining permission or directive from a regional director, a manager, CCR state office staff or an HHSC attorney; or

- as convenience copies, if needed, to support the performance of their tasks.

See:

1330 Records Retention

1442 When and How to Destroy Photos and Other Hardcopy Documents

May 2020

Procedure

If the printed photographs and other hardcopy documents are not stored in the hard copy record, CCR staff must destroy them.

If there is an active litigation hold, CCR must maintain the physical copies of any document related to the hold, even if the document has been uploaded to the CCL Digital SharePoint site. Otherwise, CCR staff may destroy hardcopies of documents that have been uploaded to the CCL Digital Storage SharePoint site.

Acceptable methods of destruction include:

a. shredding;
b. tearing;
c. burning; and
d. pulping.

1500, Conducting a Search in CLASS

1510 Types of Searches in CLASS

October 1, 2013

There are four primary searches available in CLASS:

a. Operation Search
b. Background Check – Results Search
c. Controlling Person Search
d. Global Person Search

1520 When to Conduct Searches in CLASS

1521 When to Conduct an Operation Search in CLASS

October 1, 2013

Licensing staff conduct an *Operation Search*:

a. to verify whether a provider is operating with or without a permit or to determine whether the provider has a history of operating illegally;
b. to search for the operation for the purposes of linking an intake, investigation, or e-application to the operation; and
c. to review an operation's compliance history.

1522 When to Conduct a Background Check Results Search in CLASS

October 1, 2013

Licensing staff may conduct a *Background Check – Results Search* to review an individual's background check records in CLASS. A *Global Person Search* may also be conducted in this circumstance.

Residential Licensing inspectors must conduct a *Background Check – Results Search* when a child-placing agency (CPA) or general residential operation (GRO) designates a new administrator. The search is conducted so that any criminal history matches for the new administrator may be evaluated. See 10311 Determining Appropriate Actions Based on Criminal History.

1523 When to Conduct a Controlling Person Search in CLASS

October 1, 2013

A *Controlling Person Search* is conducted in CLASS when:

- an operation submits the name of a new controlling person; or
- Licensing staff need to review an individual's record as a controlling person in CLASS.

See 5430 Processing and Reviewing the Information on Controlling Persons Submitted by an Operation.

1524 When to Conduct a Global Person Search in CLASS

September 28, 2018

Licensing staff must conduct a *Global Person Search* in the CLASS under these circumstances:

a. When an application is submitted – To determine whether the applicant is eligible to receive a permit. (See 3222 How to Determine Whether the Applicant Is Eligible to Apply.
b. When an operation submits the name of a new controlling person – To determine whether the person is eligible to serve in the role of a controlling person. (See 5430 Processing and Reviewing the Information on Controlling Persons Submitted by an Operation.
c. When an operation submits the name of a new director – To determine whether the director is serving as a director at another operation.
d. When an applicant for an administrator's license submits an application – To determine whether the applicant is a sustained controlling person and to review other relevant history in CLASS.

1530 How to Conduct a Search in CLASS

October 1, 2013

To obtain the most accurate search results, it may be necessary to conduct multiple searches using a variety of approaches, including the following:

Phonetic Searches

Conduct a phonetic search when searching by an operation's name, a person's name, or an address. A phonetic search involves using exact spelling but selecting the *Phonetic* option so that the results include phonetic similarities. See 1531 Conducting a Search in CLASS That Yields Phonetic Search Results.

Narrowed Searches

To narrow the results of a search:

- Begin searching by entering fewer search criteria in the fields on the search page; and
- Narrow the results by entering additional search criteria or different combinations of search criteria.

Social Security and Driver License Searches

When searching by a Social Security number (SSN) or driver license number (DLN), conduct follow-up searches using additional criteria to find records in which the SSN or DLN are incorrect or blank.

1531 Conducting a Search in CLASS That Yields Phonetic Search Results

October 1, 2013

The phonetic search feature is the default search option in CLASS.

When conducting a CLASS search using the phonetic search feature, Licensing staff receive a broader set of results. A phonetic search captures more results by searching for words or names that sound similar to or are spelled slightly differently than the search criteria and words or names that contain typographical (data entry) errors that are common to the search criteria.

Before conducting a phonetic search, Licensing staff must ensure that the *Phonetic* check box is selected.

Before searching by *Operation Number*, Licensing staff must uncheck the *Phonetic* check box.

Procedure

With the exception of the operation number, Licensing staff can enter any search criteria when conducting a phonetic search.

Certain search criteria are treated as an exact filter (explained in more detail below). An exact filter filters out, or removes, any search result that does not exactly match the search criteria that are treated as exact filters.

Operation Search

Licensing may conduct a phonetic search on the *Operation Search* page by entering any of the search criteria, except for the operation number.

When a phonetic search is performed, the following fields are treated as exact filters:

a. County
b. Operation Type
c. Care Type

Background Check Results Search

Licensing may conduct a phonetic search on the *Background Check Results Search* page by entering any of the search criteria.

When a phonetic search is performed, the following fields are treated as exact filters:

a. Operation Number
b. Batch Number
c. Licensing Representative ID
d. Employee ID
e. Region
f. Batch Date
g. Status

Controlling Persons Search

Licensing may conduct a phonetic search on the *Controlling Persons Search* page by entering any of the search criteria.

When a phonetic search is performed, the following fields are treated as exact filters:

a. State
b. Phone Number

Global Person Search

Licensing may conduct a phonetic search on the *Global Person Search* page by entering any of the search criteria. When a phonetic search is performed, only *Date of Birth* is treated as an exact filter.

All Searches

When conducting a phonetic search, the best results are obtained by entering the operation's full name, the person's full name, or the full street name.

To search by entering partial information, see 1532 Conducting a Search in CLASS That Yields Exact Search Results.

1532 Conducting a Search in CLASS That Yields Exact Search Results

October 1, 2013

The purpose of conducting a search that yields exact results, or an exact search, is to identify a smaller set of results that exactly or partially match the search criteria that were entered.

Before conducting an exact search, Licensing staff must uncheck the *Phonetic* check box.

Procedure

Licensing staff must conduct an exact search when searching by the operation number. Licensing staff are able, but not required, to conduct an exact search on any other search criteria.

1533 Conducting a Global Person Search in CLASS to Obtain All Records on an Individual

October 1, 2013

The purpose of conducting a *Global Person Search* is to identify each record related to an individual in CLASS. See 1520 When to Conduct Searches in CLASS.

Procedure

A *Global Person Search* in CLASS, may pull up records for the following roles:

a. Background Check
b. CEO
c. Designee
d. Director
e. Second Director
f. Program Director
g. Site Director
h. Partner
i. Perpetrator (Intake or Investigation)
j. Controlling Person
k. Administrator

Handling Errors in Data

When conducting a *Global Person Search*, Licensing staff may detect errors in data entry in an individual's various records in CLASS.

When staff detect variations in an individual's records, such as inconsistent Social Security numbers, staff attempt to verify and correct the records in CLASS *only* if correcting the records is within the staff person's responsibility.

Licensing staff do not submit a formal request to correct data or ask other Licensing staff to correct data that is outside of the staff person's responsibility.

1600, Validating an Address in CLASS

1610 When and How to Validate an Address in CLASS

October 1, 2013

Licensing staff complete the address validation process in CLASS to ensure that addresses entered into CLASS conform to the standards of the United States Postal Service (USPS).

Except for addresses entered as part of an intake or investigation, Licensing staff must attempt to validate all location and mailing addresses stored in CLASS, including the addresses found on the following pages:

a. *Main page for all operations*
b. *Application page for all operations*
c. *Exemption Requests & Background Check Only Entities*
d. *Illegal Operation*
e. *Controlling Person Details*
f. *Governing Body Designation*
g. *Administrator Details*
h. *Background Check – Person Details*
i. *Agency Home*

Procedure

Licensing staff must select *Validate Location Address* or *Validate Mailing Address* each time a location address or mailing address is entered for the first time or is updated in CLASS.

After selecting the appropriate validation button, Licensing staff are given the following options:

- Accept the USPS standardized format, if one is found.
- Correct the address and re-validate.

Use the address which was originally entered and explain the reason the address is not validated in the text box *Reason Location Address Not Validated* or in the text box *Reason Mailing Address Not Validated*.

If a USPS standardized address is found, CLASS displays a *Validated* status for the address.

If a USPS standardized address is not found, CLASS displays a *Not Validated* status for the address.

1620 Addresses That Are Not Validated

October 1, 2013

In some cases, the United States Postal Service (USPS) does not return a valid address when *Validate Location Address* or *Validate Mailing Address* is selected.

The reasons that a validated address may not be returned include, but are not limited to, the following:

a. The location address is an area of new construction.
b. The location address is in a rural are
c. USPS cannot determine in which county the address is located.
d. The address that was entered is incomplete or otherwise incorrect.

1621 When a Validation Check in CLASS Does Not Return a Valid Address

October 1, 2013

Procedure

If, after entering an address in CLASS and selecting *Validate Location Address* or *Validate Mailing Address*, a validation check does not return a validated address, Licensing staff contact the applicant or operation to determine whether the address is correct.

If the address is not correct, Licensing staff:

a. obtain the correct address;
b. enter the correct address in CLASS; and
c. attempt to validate the address again.

If the address is correct, Licensing staff:

a. attempt to determine why the address may not be recognized as correct;
b. accept the address in CLASS, even though it is not validated; and
c. enter in the text box *Reason Location Address Not Validated* or the text box *Reason Mailing Address Not Validated* the reason that the address may not be recognized as correct and the date the reason was entered.

See 1630 How to Enter a Valid Address.

1622 When an Address that is Not Validated is Submitted Through the Child Care Licensing Account Website

September 28, 2018

Procedure

If a provider submits an address with a *Not Validated* status through the Child Care Licensing Account website, Licensing staff contact the applicant or operation if:

1. the reason that is entered in the text box *Reason Location Address Not Validated* or the text box *Reason Mailing Address Not Validated* is not clear; or
2. the address appears to be obviously incorrect.

If the address is not correct, Licensing staff:

a. obtain the correct address;
b. enter the correct address in CLASS; and
c. attempt to validate the address again.

If the address is correct, Licensing staff:

a. attempt to determine why the address may not be recognized as correct;
b. accept the address in CLASS, even though it is not validated; and
c. enter in the text box *Reason Location Address Not Validated* or the text box *Reason Mailing Address Not Validated* the reason that the address may not be recognized as correct and the date that the reason was entered.

See 1630 How to Enter a Valid Address.

1623 Routinely Attempting to Validate Addresses Not Validated in CLASS

October 1, 2013

Because the USPS system is routinely updated with new addresses, a Licensing inspector must attempt to validate an operation's location or mailing address at each monitoring inspection, if either address has a status of *Not Validate*. See 4171 Discussing the Results of an Inspection.

1630 How to Enter a Valid Address

October 1, 2013

Licensing staff must enter only valid addresses in the *Location Address* and *Mailing Address* fields in CLASS.

The address fields must not contain the following types of information:

a. Phone numbers
b. Directions
c. More than one address

Procedure

Licensing staff do as follows when entering an address:

a. Spell out uncommon abbreviations.

Examples of abbreviations that must be spelled out include the following:

- Any variation of County Road (such as CR, CNTY RD, VZCR, CO RD, ACR)
- State Highway (ST HWY)
- Private Road (PR)

b. Enter only street numbers, street names, and P.O. boxes on the first address line.
c. Enter only apartment, lot, suite, building, and trailer numbers on the second address line.

If an address does not validate, re-enter it as explained in this item and attempt to validate the address again.

2000, Permit Types, Operation Types, and Exemptions

2100, Types of Child Care Permits

Revision 24-2; Effective May 22, 2024

2110 Permits Required for Child Day Care

Revision 24-2; Effective May 22, 2024

The following table lists each type of CCR permit required for each child day care operation type. Reference 26 TAC Section 745.37(2).

Type of Permit	Child Day Care Operation Types
Listing	• Listed family home
Registration	• Registered child care home
License	• Licensed child care home • Child care center • Before or after-school program • School-age program
Compliance Certificate	• Small employer-based child care • Temporary shelter child care program

2110.1 Listed Family Home

Revision 24-2; Effective May 22, 2024

In a listed family home, the primary caregiver:

- is at least 18 years old; and
- provides care:
  - in the caregiver's own home;
  - for compensation per the CCRH Definitions of Terms;
  - to children whose ages may range from birth through 13 years;
  - at least four hours a day and for:
    - three or more days a week, for three or more consecutive weeks; or
    - 40 or more days in a 12-month period; and
  - to no more than three children who are unrelated to the caregiver; and
  - to no more than 12 children total, including children who are related to the caregiver.

2110.2 Registered Child Care Home

Revision 24-2; Effective May 22, 2024

In a registered child care home, the primary caregiver:

- is at least 21 years old; and
- provides care:
  - in the caregiver's own home;
  - to children whose ages may range from birth through 13 years;
  - at least four hours a day and for:
    - three or more days a week, for three or more consecutive weeks; or
    - 40 or more days in a 12-month period; and
  - to no more than six children who are unrelated to the caregiver during the school day; and
  - to no more than six additional school-age children after school hours.

The primary caregiver in a registered child care home may not care for more than 12 children at the same time, including children related to the caregiver.

2110.3 Licensed Child Care Home

Revision 24-2; Effective May 22, 2024

In a licensed child care home, the primary caregiver:

- is at least 21 years old; and
- provides care:
  - at least two hours, but less than 24 hours per day, for three or more days a week;
  - in the caregiver's own home;
  - to children whose ages may range from birth through 13 years; and

- to no more than 12 children total, including the children related to the caregiver.

2110.4 Licensed Child Care Center

Revision 24-2; Effective May 22, 2024

The operation provides care:

- for seven or more children;
- to children younger than 14;
- for fewer than 24 hours of care per day; and
- in a location other than the permit holder's home.

A licensed child care center may provide nighttime care with CCR approval. If CCR approves the nighttime care, a center may not allow a child to be in care for more than:

- 16 hours within a 24-hour period daily; or
- three consecutive 24-hour periods with a maximum of six 24-hour periods per month.

2110.5 Before or After-School Program

Revision 24-2; Effective May 22, 2024

The operation provides care:

- before, after, or before and after the customary school day and during school holidays;
- for at least two hours a day, and three days a week; and
- to children who attend pre-kindergarten through grade six.

2110.6 School-Age Program

Revision 24-2; Effective May 22, 2024

The operation provides care:

- including supervision and:
  - recreation;
  - skills instruction; or
  - skills training;
- for at least two hours a day and three days a week;
- to children who attend pre-kindergarten through grade six; and
- before or after the customary school day, including:
  - school holidays;
  - summer period; or
  - any other time when school is not in session.

A school-age program is not a licensed child care center.

2110.7 Small Employer-Based Child Care

Revision 24-2; Effective May 22, 2024

A small employer-based child care operation (SEBCC) employs fewer than 100 full-time employees and provides care:

- for up to 12 children of employees;
- to children younger than 14;
- for fewer than 24-hours of care per day; and
- in the same building where the parents work.

Note: 26 TAC Section 745.37 refers to this type of child care as Employer-Based Child Care.

Reference 26 TAC Chapter 746 Minimum Standards For Child-Care Centers.

2110.8 Temporary Shelter Child Care Program

Revision 24-2; Effective May 22, 2024

A temporary shelter child care program (TSP) provides care:

- for seven or more children who live at the shelter with a parent while the parent is away;
- to children younger than 14 ;
- for at least four hours a day and three days a week; and
- at a temporary shelter, such as a family violence or homeless shelter.

2120 Permits Required for Residential Child Care

Revision 24-2; Effective May 22, 2024

The following table lists each type of residential child care operation and the type of CCR permit required. Reference 26 TAC Section 745.37(3).

Residential Child Care Operations	Type of Permit
General residential operation	License
Child-placing agency (CPA)	License
Foster home	None CCR does not issue a permit to a foster home. A CPA issues a verification to a foster home and monitors the home.
Adoptive home	None CCR does not issue a permit to an adoptive home. A CPA may approve an adoptive home by completing a home screening and making sure the home meets other requirements, but an adoptive home does not require any type of permit. The CPA monitors an adoptive home before a district courts finalizes the adoption.

2120.1 General Residential Operation

Revision 24-2; Effective May 22, 2024

A general residential operation (GRO) provides child care for seven or more children up to 18 for all or part of the 24-hour day. The care may include treatment and other programmatic services.
Residential treatment centers (RTCs) are a type of GRO.

2120.2 Child-Placing Agency

Revision 24-2; Effective May 22, 2024

A child-placing agency (CPA) is a person other than a child's parent, an agency, or organization that places or plans for the placement of a child in a foster or adoptive home or other residential care operation.

2120.3 Foster Home

Revision 24-2; Effective May 22, 2024

A foster home is verified by a CPA to provide care for six or fewer children up to 18 years old in the primary residence of the foster parents.

A foster home verified by a CPA is part of a CPA for CCR regulatory purposes.

Reference HRC Section 42.053

2120.4 Adoptive Home

Revision 24-2; Effective May 22, 2024

A CPA approves an adoptive home for the purpose of adopting a child.

2130 State-Operated Child Care Operations

Revision 24-2; Effective May 22, 2024

CCR issues a certificate instead of a license to a state-operated child care operation and to an operation run by a state agency. State-operated child care operations are subject to regulation by CCR unless the operation meets exemption criteria in 26 TAC Chapter 745, Subchapter C.

Facilities operated by Texas cities, counties, or other municipalities are not state operated.
Examples of state-operated child care operations that CCR certifies include:

- laboratory schools in state universities; and
- child-placing agencies operated by the DFPS Child Protective Services Division.

Certified operations must comply with the statutes, administrative rules, and minimum standards that apply to licensed operations of the same type.

Certain state-operated operations are exempt from regulation by CCR.

References

Governmental Entities that are Exempt from Regulation by CCR, 2320
26 TAC Sections 745.39 and 745.115
HRC Section 42.052

Procedure

CCR staff inform people who want to apply for a certificate to operate a state-operated child care operation that an operation:

- submits documentation to substantiate it is operated by a state agency; and
- must follow the statutes, administrative rules, and minimum standards that apply to licensed operations.

CCR staff process an application for a certificate for a state-operated child care operation per 3200 Processing the Application for a License, Certificate, Compliance Certificate, Registration, or Listing Permit.

CCR staff regulate a certified state-operated child care operation the same way staff regulate a licensed operation.

Reference

Immediate Danger in a State-Operated Facility, 4521

2200, Determining CCR's Authority to Regulate a Program

Revision 24-2; Effective May 22, 2024

CCR staff determine if CCR has regulatory authority to regulate a program by:

- evaluating the program; and
- determining if the program fits the definition of:
  - subject to regulation;
  - not subject to regulation; or
  - exempt from regulation.

Subject to regulation: A program that meets the definition of a child care facility or child-placing agency per HRC Section 42.002 and requires regulation unless the program meets the criteria for an exemption.

Not subject to regulation: A program is not subject to regulation if it is not a child care facility or child-placing agency per HRC 42.002. A facility operated on a federal installation, such as a military base or Indian reservation is not subject to regulation by CCR. A state agency has no jurisdiction or authority to regulate such facilities.

Exempt from regulation: A program that does not require a permit from CCR based on exemption criteria in HRC and TAC. A program exempt from regulation by CCR may operate legally without:

- receiving a permit from CCR; or
- complying with the statutes, administrative rules, or minimum standards that govern regulated child care in Texas.

2210 When CCR May Become Aware of a Program

Revision 24-2; Effective May 22, 2024

CCR staff may become aware of a program that may be subject to regulation when:

- CCR receives a report of an alleged unregulated operation;
- the Unregulated Operations Unit (UOU) conducts a search for unregulated operations and finds an advertisement for a program possibly subject to regulation;
- a program submits an exemption request form; or
- an applicant or potential applicant asks about the regulation process and indicates they are operating or have operated a program subject to regulation in the past.

2211 Becoming Aware of a Program After Receiving a Report of a Possible Unregulated Operation

Revision 24-2; Effective May 22, 2024

When CCR receives a report of an alleged unregulated operation, CCR staff conduct the investigation per 6530 Investigations of Unregulated Operations. They decide if the operation is subject to regulation per 2220 Determining if a Program is Subject to Regulation During an Investigation of an Unregulated Operation.

2212 Becoming Aware of a Program When UOU Conducts Searches for Unregulated Operations

Revision 24-2; Effective May 22, 2024

UOU staff conduct searches for unregulated operations per Texas Government Code Section 531.0084. If the operation appears to be subject to regulation and CCR does not have information or records that show the operation is exempt, CCR staff follow procedures in:

- Entering Reports for Unregulated Operations Identified by the Unregulated Operations Unit, 6221.41;
- Investigations of Unregulated Operations, 6530; and
- Determining if a Program is Subject to Regulation During an Investigation of an Unregulated Operation, 2220.

2213 Becoming Aware of a Program After Receiving an Exemption Request Form

Revision 24-2; Effective May 22, 2024

When a program submits an exemption request form, CCR staff decide if the program would be subject to regulation by CCR without an exemption per 2200 Determining CCR's Authority to Regulate a Program. CCR staff follow the guidance in 2230 Next Steps After Evaluating an Exemption Request.

Reference Exemption Request Forms, 2422.

2214 Becoming Aware of a Program When a Program Currently Operating or has Operated in the Past Contacts CCR

Revision 24-2; Effective May 22, 2024

CCR may learn of a program that is operating or has operated in the past when it asks CCR about exemptions or the regulation process.

If the program is currently operating, does not appear to be exempt, or does not have an application for a permit submitted in CLASS, CCR staff:

- advise the person to complete and submit one of the following within five days of contact with CCR:

    - an exemption request form; or
    - an application for a permit to the local CCR office; and
- consult with the supervisor to decide if generating an intake report for an unregulated operation is necessary.

If the program has operated within the past 12 months, CCR staff:

- generate an intake report for an unregulated operation (DCCR only); or
- submit a report to Statewide Intake (SWI) (RCCR only).

References

When a Non-Exempt Program Does Not Take Steps to Become Regulated, Meet Criteria for an Exemption, or Stop Operating, 2441.1

Procedures When CCR Determines an Alleged Unregulated Operation is Subject to Regulation, 6537.2

2220 Determining if a Program is Subject to Regulation During an Investigation of an Unregulated Operation

Revision 24-2; Effective May 22, 2024

CCR staff determine if a program is subject to regulation when investigating a potential unregulated operation.

Procedure

CCR staff take the following actions during an unregulated operation investigation to help find out if the program is subject to regulation:

- get as much information as possible from the program including advertisements, admission forms, policies and procedures, enrollment forms and websites;
- conduct an inspection, if needed;
- conduct surveillance per 6450 Conducting Surveillance (Day Care Only), if needed;
- compare the program information with statutory definitions of operations that are subject to regulation by CCR; and
- evaluate the information to decide if the program is subject to regulation.

The inspector may consult with the CCR supervisor to decide if more information is needed.

2221 If CCR Determines a Program is Not Subject to Regulation During an Investigation of an Unregulated Operation

Revision 24-2; Effective May 22, 2024

Procedure

If CCR staff determine a program is not subject to regulation during an investigation, staff:

- follow the procedures in 6537.1 Procedures When CCR Determines an Alleged Unregulated Operation is Not Subject to Regulation; and
- on the *Illegal Operation* main page in CLASS:
    - enter a *Closure Date*, and
    - select *Not Subject to Licensing Regulation* from the *Closure Reason* drop-down menu.

2222 If CCR Determines a Program is Subject to Regulation During an Investigation of an Unregulated Operation

Revision 24-2; Effective May 22, 2024

Procedure

If CCR staff determine a program is subject to regulation during an investigation of an unregulated operation, staff follow the procedures in 6537.2 Procedures when CCR Determines an Alleged Unregulated Operation is Subject to Regulation.

The program may submit an application for a permit, submit an exemption request, or discontinue operating.

2230 Next Steps After Evaluating an Exemption Request

Revision 24-4; Effective Nov 13, 2024

Procedure

CCR Determines a Program is Not Subject to Regulation by CCR After Evaluating an Exemption Request

If CCR staff review an exemption request and decide a program is not subject to regulation by CCR, staff:

- notify the program that it is not subject to regulation by sending the Form 2847 Not Subject Response Letter on the CCR SharePoint site; and
- follow the procedures outlined in 2450 Documenting Exemption Requests and Decisions.

CCR Determines a Program is Subject to Regulation by CCR After Evaluating an Exemption Request

If CCR staff determine a program would be subject to regulation without an exemption, CCR staff follow 2420 Determining if a Program is Exempt from Regulation to decide if the program is eligible for the exemption the program is requesting.

2300, Exemption Categories and Types

Revision 24-2; Effective May 22, 2024

2310 Types of Exemptions

Revision 24-2; Effective May 22, 2024

Four exemption categories apply to child care programs:

- operations regulated by governmental entities;
- programs of limited duration;
- certain educational facilities and programs; and
- certain miscellaneous programs.

Reference

26 TAC Section 745.113

2320 Governmental Entities that are Exempt from Regulation by CCR

Revision 24-2; Effective May 22, 2024

The table lists certain types of programs that are exempt from regulation by CCR because they are regulated by other governmental entities.

Program Type	26 TAC Section
Certain federal programs	745.115(1)(B)
State-operated programs	745.115(2)
Certain recreation programs operated by municipalities	745.115(3)

References

Programs with Oversight by the Federal Government, 2321
Programs Under the Regulatory Authority of Other State Agencies, 2322
Municipal Recreation Programs, 2323

2321 Programs with Oversight by the Federal Government

Revision 24-2; Effective May 22, 2024

2321.1 A Program Providing Care to Persons Not Lawfully Present in the United States

Revision 24-2; Effective May 22, 2024

A program that provides 24-hour care exclusively to persons not lawfully present in the United States and are in the custody of the federal government are exempt from regulation by CCR.

Reference

26 TAC Section 745.115(1)(b)

2322 Programs Under the Regulatory Authority of Other State Agencies

Revision 24-3; Effective Aug. 15, 2024

A program licensed, operated, certified, or registered by another state agency is exempt from regulation by CCR. This includes the following programs:

- correctional facilities;
- treatment facilities;
- youth camps licensed by the Texas Department of State Health Services (DSHS); and
- youth camps exempt from DSHS licensing that meet certain criteria.

Reference

26 TAC Section 745.115(2)
HRC Section 42.041(b)(6)

2322.1 Correctional Facilities

Revision 24-2; Effective May 22, 2024

The following types of correctional facilities are exempt from regulation by CCR:

- juvenile detention facilities certified under Section 51.12 of the Texas Family Code;
- juvenile correctional facilities certified under Section 51.125 of the Family Code;
- facilities operated by the Texas Juvenile Justice Department (TJJD) or facilities that provides services solely for TJJD; and
- any other correctional facility for children operated or regulated by another state agency or by a political subdivision of the state.

References

26 TAC Section 745.115(2)(A)(B)(C)
Texas Family Code Section 261.405
HRC Section 42.041(b)(13)

2322.2 Treatment Facilities

Revision 24-2; Effective May 22, 2024

The following types of facilities are exempt from regulation by CCR:

- treatment facilities under regulatory authority of another state agency; or
- structured treatment programs that serves chemically dependent people and are licensed by the Texas Department of State Health Services.

Reference

26 TAC Section 745.115(2)(D)

2322.3 Youth Camps

Revision 24-2; Effective May 22, 2024

A youth camp is exempt from regulation by CCR if it is:

- licensed by DSHS; or
- exempt from licensure by DSHS per Section 141.0021, Health and Safety Code, because it is:

- operated by or on the campus of an institution of higher education or a private or independent institution of higher education, as those terms are defined in Education Code Section 61.003; and
- regularly inspected by at least one local governmental entity for compliance with health and safety standards.

Exception

Operations licensed by CCR that run summer camps, such as school-age programs, must continue to operate under the CCR license during summer months.

References

School-Age Program, 2110.6
26 TAC Sections 745.37(2)(H) , 745.115(2)(E) and 745.115(2)(F)

HRC Section 42.002(21) and 42.041(b)(5)

2323 Municipal Recreation Programs

Revision 24-2; Effective May 22, 2024

A recreation program is exempt from regulation by CCR if the program:

- operates for children 5 through 13 years;
- is operated by a municipality;
- provides standards of care adopted by a municipality to the parents of each program participant;
- informs the parents of each program participant that the program is not licensed by the state; and
- does not advertise itself as a child care operation.

The governing body of the municipality annually adopts standards of care by ordinance after a public hearing.

The standards of care must include:

- staffing ratios;
- staff qualifications;
- facility health and safety standards; and
- monitoring and enforcement provisions.

A program in a municipality with a population of at least 300,000 that has adopted standards by ordinance after at least two public hearings may accept public comment through its municipal website for at least 30 days instead of having a public hearing.

References

26 TAC Section 745.115(3)
HRC Section 42.041(b)(14)

2330 Programs of Limited Duration that are Exempt from Regulation by CCR

Revision 24-2; Effective May 22, 2024

Certain programs of limited duration are exempt from regulation by CCR.

Program Type	26 TAC Section
Program with parents on the premises	745.117(1)
Short-term program	745.117(2)
Religious program	745.117(3)
Foreign exchange or sponsorship program	745.117(4)

2331 Program with Parents on the Premises

Revision 24-2; Effective May 22, 2024

A program with parents on the premises is exempt from regulation by CCR if:

- The program operates in association with a shopping center, business, or other elective activity including retreats or classes for religious instruction.
- The program does not advertise as a child care operation and informs parents it is not regulated by the state.
- The parent or person responsible for the child attends or engages in the elective activity nearby.
- The program's caregivers can contact the parent or person responsible for the child at all times.
- The child is only in care for up to:
  - four and one-half hours per day and 12 hours a week; or
  - 15 hours per week if care is provided so a parent may attend an educational class provided by a nonprofit entity in a city with a population of 500,000 or more and the city is located within a county adjacent to an international border.

Part-time employees and contractors who handle the program may use the program if they meet the limits above. A program caregiver may use the program for their own child without time limits if the child remains with a caregiver.

References

26 TAC Sections 745.101(1) and 745.117(1)
HRC Section 42.041(b)(3)

2331.1 Examples of Parents on the Premises Programs that May be Exempt

Revision 24-2; Effective May 22, 2024

Examples of parents on the premises programs that may be exempt include programs that operate:

- in connection with a religious organization and offer programs for children, such as classes for religious instruction;
- so parents can attend a short-term class for up to three hours for four or fewer days or evenings a week for a few weeks, such as classes on parenting skills, or English as a second language; and
- in a gym or health club, so members can exercise.

Reference

Permits Required for Child Day Care, 2110

2332 Short-Term Program

Revision 24-2; Effective May 22, 2024

A short-term program may be exempt from regulation by CCR, if the program:

- operates for fewer than three consecutive weeks and fewer than 40 days in a 12-month period; and
- is not part of an operation subject to regulation by CCR.

References

Definitions of Terms for child care facility
Processing an Exemption Request, 2400
26 TAC Sections 745.21(7), 745.101(2) and 745.117(2)

2333 Religious Program

Revision 24-2; Effective May 22, 2024

A religious program may be exempt from regulation by CCR if the program:

- lasts for two weeks or fewer; and
- is operated during summer months.

An example of a religious program is a vacation Bible school.

References

26 TAC Section 745.117(3)
HRC Section 42.041(b)(4)

2334 Foreign Exchange or Sponsorship Program

Revision 24-2; Effective May 22, 2024

A foreign exchange or sponsorship program is exempt from regulation by CCR if:

- an unrelated child or sibling group lives in the provider's home;
- each child is in the United States on a time-limited visa; and
- each child is sponsored by an organization or by the provider with whom they are living.

References

26 TAC Section 745.117(4)
HRC Section 42.041(b)(22)

2340 Educational Programs that are Exempt from Regulation by CCR

Revision 24-2; Effective May 22, 2024

The educational programs identified in the table are exempt from regulation by CCR under 26 TAC Section 745.119.

Program Type	26 TAC Section
Accredited educational program	745.119(1) Accredited Educational Facility for Grades Pre-Kindergarten and Above
Before or after-school program operated by an educational entity	745.119(2) Before or After-School Program Operated by an Accredited Educational Facility
Before or after-school program operated by a contracted entity	745.119(3) Before or After-School Program Operated by a Contracted Entity
Educational program that is a member of an organization requiring compliance with the organization's standards	745.119(4) Educational Facility that is a Member of an Organization Requiring Compliance with Standards
Private educational program	745.119(5) Private Educational Facility, Including an Educational Facility that is Religious in Nature

Reference

HRC Sections 42.041(b)(7)(8)(9)(11)

2341 Accredited Educational Program for Grades Pre-K and Above

Revision 24-2; Effective May 22, 2024

An accredited educational program that operates for children in grades pre-k and above is exempt from regulation by CCR if the program:

- operates primarily for educational purposes;
- operates the educational program;
- serves children 3 years and older; and
- is accredited by:
  - the Texas Education Agency (TEA);
  - the Southern Association of Colleges and Schools (SACS); or
  - an accreditation body recognized by the Texas Private School Accreditation Commission (TEPSAC).

Exception

A child care program operated by a school district for its employees, including bus drivers, teachers, custodians and kitchen workers, is subject to regulation.

Educational Facilities that also Provide Residential Child Care

For an educational facility that also provides residential child care, reference Additional Exemption Criteria when an Educational Program Provides Residential Child Care, 2346.

Other Educational Programs

For information about charter schools, reference Appendix 2000-2, Determining Whether a Program or Operation is Regulated by Child Care Regulation – Questions and Answers, Item B.

For information about collaborative programs, such as an independent school district (ISD) that operates a Head Start program or a program that combines Head Start and prekindergarten, visit Appendix 2000-2, Item C.

References

26 TAC Section 745.119(1)
HRC Section 42.041(b)(7)

2342 Before or After-School Program Operated by an Educational Facility

Revision 24-2; Effective May 22, 2024

A before or after-school child care program operated by an accredited educational facility is exempt from regulation by CCR if:

- it is accredited by:
  - TEA;
  - SACS; or
  - an accreditation body recognized by TEPSAC;
- the accredited educational facility operates the child care program; and
- the program serves children 3 years and older.

References

26 TAC Section 745.119(2)
HRC Section 42.041(b)(7)

2343 Before or After-School Program Operated by a Contracted Entity

Revision 24-2; Effective May 22, 2024

A before or after-school program operated by a contracted entity is exempt from regulation by CCR if the educational facility:

- is accredited by:
  - TEA;
  - SACS; or
  - an accreditation body recognized by TEPSAC;
- contracts with an entity to operate the before or after-school child care;
- serves children 3 years and older; and
- offers a curriculum for before or after-school care approved by:
  - TEA;
  - SACS; or
  - an accreditation body recognized by TEPSAC.

Procedure

When reviewing an exemption request for a before or after-school program operating under contract with a public educational facility, CCR staff:

- ask the program to submit written documentation that demonstrates the program is using TEA- approved curriculum content for all ages the program will serve; and
- verify the curriculum content is on the current Instructional Materials Current Adoption Bulletin list on the TEA website.

To decide if a before or after-school program operated by a contracted entity is exempt, CCR staff review:

- the standard documents required in 2423 Supplemental Information CCR Reviews to Determine if a Program is Exempt;
- the curriculum provided for all ages to verify if it has been approved; and
- the contract between the program and the facility.

References

Educational Programs that are Exempt from Regulation by CCR, 2340

26 TAC Section 745.119(3)
HRC Section 42.041(b)(7)

2344 Educational Program that is a Member of an Organization Requiring Compliance with the Organization's Own Standards

Revision 24-2; Effective May 22, 2024

An educational program that is a member of an organization that requires compliance with its own standards is exempt from regulation by CCR if the program:

- serves children:
  - no younger than 3 years by Sept. 1; and
  - through at least grade two;
- provides child care for no more than one hour before and one hour after the hours that are customary for schools in that community; and
- is a member of an organization that either:
  - publishes health, safety, fire, and sanitation standards equal to those required by the state, county, or municipality; or
  - follows the state, county, or municipal health, safety, and fire codes.

The organization that requires compliance with health, safety, fire and sanitation standards sends the following to CCR:

- documentation that the organization:
  - has its own standards for health, safety, fire, and sanitation that are equal to those required for licensed operations; or
  - requires members to comply with state, county, or municipal health, safety, fire, and sanitation codes;
- a monitoring plan designed to make sure members comply with either the organization's standards for health, safety, fire, and sanitation or the health, safety, and fire codes of the state, county, or municipality; and
- a list of names and addresses of the other educational programs or operations that are members of the organization. After CCR determines the program is exempt, the program must send this list to CCR every six months.

The facility seeking exemption submits the following to CCR:

- a completed Form 2820, Educational Facility Request for Exemption from Child Care Regulation; and
- any other documentation to support that the program is exempt.

References

26 TAC Sections 745.119(4) and 745.127

HRC Section 42.041(b)(8)

2345 Private Educational Program

Revision 24-3; Effective Aug. 15, 2024

A private educational program is exempt from regulation by CCR if the program:

- serves children who are at least 3 years old;
- provides no more than a total of two hours of child day care before or after the customary school day in that community; and
- offers one or more of the following:
  - a prekindergarten class through at least grade three;
  - any elementary grades, which are kindergarten through grade five; or
  - any secondary grades, which are grades six through 12.

Reference

Definitions of Terms for customary school day

26 TAC Section 745.119(5)
HRC Section 42.041(b)(11)

2346 Additional Exemption Criteria when an Educational Program Provides Residential Child Care

Revision 24-2; Effective May 22, 2024

If an educational program provides residential child care, the program is exempt from regulation by CCR if the program meets the exemption criteria in Accredited Educational Program for Grades Pre-K and Above, 2341 and meets the following additional criteria:

- parents retain primary responsibility for their child's financial support, health problems, or serious personal problems; and
- residential child care is provided solely to facilitate the students' participation in the educational program and does not exist apart from the educational aspect of the program.

Reference

26 TAC Section 745.125

2347 When an Exempt Educational Program Must Obtain a Permit for a Portion of the Program

Revision 24-2; Effective May 22, 2024

An educational program otherwise exempt from regulation must get a permit for the portion of the program that:

- cares for children younger than the exemption allows;
- provides before or after-school care for more hours than the exemption allows; or
- provides care outside the designated school year.

The designated school year is the academic calendar approved by a school board for the local community that includes the instructional days, school holidays, and staff in-service days.

Appendix 2000-2 Determining Whether a Program or Operation is Regulated by Child Care Regulation

26 TAC Sections 745.121 and 745.123

2350 Miscellaneous Programs Exempt from Regulation by CCR

Revision 24-2; Effective May 22, 2024

The following miscellaneous programs are exempt from regulation by CCR under 26 TAC Section 745.129.

Exemption Type	TAC Rule
Neighborhood recreation program	745.129(1)
Skills program	745.129(2)
A caregiver that has a written agreement with a parent to provide residential care	745.129(3)
Emergency shelter for minors	745.129(4)
Child or sibling group placed by the Department of Family and Protective Services (DFPS)	745.129(5)
Food distribution program	745.129(6)
Emergency shelter for victims of human trafficking	745.129(7)
Respite care for a local mental health authority	745.129(8)

2351 Neighborhood Recreation Program

Revision 24-2; Effective May 22, 2024

A neighborhood recreation program is exempt from regulation by CCR if the:

- program provides activities designed for the recreation of children 5 through 13 years;
- program's governing body adopts standards for care that must include:
  - staffing ratios;
  - staff training;
  - health and safety standards;
  - mechanisms for assessing and enforcing the program's compliance with the standards for care; and
  - receiving and resolving complaints from parents of enrolled children;
- program does not:
  - collect compensation other than a nominal annual fee for membership; or
  - solicit donations as payment for services goods provided as part of the program;
- program is organized as a nonprofit organization or is located at the participant's residence;
- program informs each parent it is not regulated by CCR;

- program is not advertised or represented as a regulated child care operation that offers child care services; and
- program conducts criminal background checks on all employees and volunteers who work with the children.

References

Definitions of Terms for compensation

26 TAC Section 745.129(1)
HRC Section 42.041(b)(19)

2352 Skills Program

Revision 24-3; Effective Aug. 15, 2024

A program that teaches a single skill, talent, ability, expertise, or proficiency is exempt from regulation by CCR if the program:

- offers direct instruction for one skill, talent, ability, expertise, or proficiency;
- does not provide other services not directly related to the single skill, talent, ability, expertise, or proficiency;
- informs each parent it is not regulated by CCR;
- is not advertised or represented as a regulated operation;
- informs parents of any physical risk a child may face while participating in the program; and
- conducts background checks using information from the Department of Public Safety for all program employees and volunteers who work with children.

Reference

26 TAC Section 745.129(2)
HRC Section 42.041(b)(18)

2353 Caregiver Has Written Agreement with a Parent to Provide Residential Care

Revision 24-2; Effective May 22, 2024

An unrelated adult caregiver is exempt from regulation by CCR if the caregiver:

- is caring for only one child or sibling group:
  - knows the child or sibling group, or family of the child or sibling group, before providing care;
  - does not receive compensation or solicit donations for the care of the child or sibling group; and
  - has a written agreement with the parent to care for the child or siblings; or
- is caring for multiple children or sibling groups and:
  - is caring for six or fewer children;
  - does not receive compensation or solicit donations for the care of the child or sibling group; and
  - has a written agreement with the parent of each child or sibling group to care for the child or sibling group.

References

Definitions of Terms for compensation

26 TAC Section 745.129(3)
HRC Sections 42.041(b)(20) and (25)

2354 Emergency Shelter for Minors

Revision 24-2; Effective May 22, 2024

An emergency shelter is exempt from regulation by CCR if the shelter:

- does not otherwise operate as a child care facility that must have a license from CCR;
- provides shelter or care to the minor and the minor's child or children, if any;
- provides care for the minor or the minor's child or children only when there is an immediate danger to the physical health or safety of the minor or the minor's child or children;
- does not provide care for more than 15 days, unless:
  - the minor consents to shelter or care to be provided to the minor or minor's children; and:
    - is 16 years or older, lives separate and apart from the minor's parent, and manages the minor's own financial affairs; or
    - is unmarried and is pregnant or is the parent of a child; or

    - the minor has qualified for Temporary Assistance for Needy Families under HRC Chapter 31 and is on the waiting list for housing assistance; and
- the shelter is:
    - currently under contract with a state or federal agency for the provision of shelter or care to children; or
    - a family violence center that meets the requirements listed under HRC Section 51.005(b)(3), as determined by the Health and Human Services Commission.

References

26 TAC Section 745.129(4)
HRC Section 42.041(b)(12)

2355 Child or Sibling Group Placed by the Department of Family and Protective Services

Revision 24-2; Effective May 22, 2024

An unrelated adult caregiver is exempt from regulation by CCR if:

- the caregiver has a longstanding and significant relationship with the child or sibling group or the family of the child or sibling group;
- the Department of Family and Protective Services (DFPS) is the managing conservator of the child or sibling group; and
- DFPS placed the child or sibling group in the caregiver's home.

References

26 TAC Section 745.129(5)

Texas Family Code, Chapter 264 Relative and Other Designated Caregiver Placement Program, Subchapter I
HRC Section 42.041(b)(21)

2356 Food Distribution Program

Revision 24-2; Effective May 22, 2024

A food distribution program is exempt from regulation by CCR if the program:

- serves an evening meal to children who are 2 years or older; and
- is operated by a nonprofit food bank in a nonprofit, religious, or educational facility for not more than two hours a day on regular business days.

References

26 TAC Section 745.129(6)
HRC Section 42.041(b)(16)

2357 Emergency Shelter for Victims of Human Trafficking

Revision 24-2; Effective May 22, 2024

An emergency shelter is exempt from regulation by CCR if the shelter:

- does not otherwise operate as a child care operation required to have a permit from HHSC;
- is operated by a nonprofit organization;
- provides shelter and care for no more than 15 days to alleged victims of human trafficking per Penal Code Section 20A.02, who are 13-17 years old; and
- is in a municipality with a population of at least 600,000 in a county on an international border and:
    - is licensed by or operates under an agreement with a state or federal agency to provide shelter and care to children; or
    - is a family violence center that meets the requirements in HRC Section 51.005(b)(3), as determined by the Texas Health and Human Services Commission.

References

26 TAC Section 745.129(7)
HRC Section 42.041(b)(23)

2358 Respite Care for a Local Mental Health Authority

Revision 24-2; Effective May 22, 2024

A program that provides respite care for a local mental health authority is exempt from regulation by CCR if the program is under a contract with that authority.

References

26 TAC Section 745.129(8)
HRC Section 42.041(b)(24)

2360 Other Programs

Revision 24-2; Effective May 22, 2024

Staff also may receive an exemption request for:

- certain annual youth camps; and
- background check only entities.

2361 Certain Annual Youth Camps

Revision 24-2; Effective May 22, 2024

An annual youth camp is exempt by law from regulation by CCR if the youth camp:

- is held in a municipality with a population of more than 1.5 million;
- operates no longer than three months; and
- has been operated for at least 10 years by a nonprofit organization that provides care for the homeless.

Reference

HRC Section 42.041(b)(15)

2362 Background Check Only Entities

Revision 24-2; Effective May 22, 2024

Skills programs and substitute organizations that offer services at regulated child care operations have a CCR online account to submit and get background check results on any person in the organization who needs a background check under 26 TAC Chapter 745, Subchapter F, Background Checks, because the person will have access to children in care.

When the Centralized Background Check Unit Receives a Background Check Only Entity Request

Procedure

When the Centralized Background Check Unit (CBCU) receives a Background Check Only Entity Request from an organization, CBCU staff:

- evaluate the information received;
- verify with the program that its employees or volunteers provide their service at regulated child care programs;
- enter the request and document on the *Exemption Requests and Background Check Only Entities* page in CLASS:
  - *Background Check Only for Request Type*; and
  - Select the appropriate *Category Type*; and
- upload the request to CLASS Document Library.

If the program is operating or intends to operate a program that does not meet the criteria for a Background Check Only Entity, CBCU staff consult with the Unregulated Operations unit (UOU) to decide next steps.

References

Background Check Only Entities in CLASS, 10123.1
Appendix 1000-1 Organizing Child Care Regulation Records

26 TAC Section 745.605(a)(2)(B)

HRC Section 42.056(I)

2400, Processing an Exemption Request

Revision 24-2; Effective May 22, 2024

The table outlines which CCR program area and staff process exemption requests.

Program Area	Staff Responsible
Day care exemption requests	• Unregulated Operations Unit (UOU) staff for new exemption requests; or • DCCR staff for existing regulated operations that submit an exemption request for a program at the same location.
Residential child care exemption requests	State office program specialist
Background check only entity requests	Centralized Background Check Unit (CBCU) program specialist

2410 Overview of the Exemption Process

Revision 24-2; Effective May 22, 2024

Procedure

If a program believes it is exempt from regulation by CCR based on an exemption in 26 Texas Administrative Code Sections 745.115, 745.117, 745.119, and 745.129, the program may ask CCR to help determine if the program is exempt per 26 TAC Section 745.131.

If a program believes it is exempt from regulation by CCR and asks CCR to determine if the program is exempt, CCR staff take the following steps:

- Provide the appropriate exemption request form and ask the person in charge of the program to complete and return the form and all supporting documentation within:
  - five days of receiving the form from CCR, if the program is operating; or
  - five days, if the program is submitting the request in response to an investigation.
- Enter the exemption into CLASS on the *Exemption Requests & Background Check Only Entities* page per 2451 Entering the Exemption in CLASS.
- Evaluate the information received.
- Conduct an inspection at the operation if necessary.
- Notify the person in charge of the program of CCR's decision on the exemption request. Notification must be made within 21 days after CCR staff collect all information necessary to make the decision.
- Consult with the CCR supervisor or the designated regional subject matter expert to determine if additional information is needed to make a decision.

References

Exemption Request Forms, 2422
Appendix 1000-1 Organizing Child Care Regulation Records
Appendix 2000-1 Miscellaneous Questions and Answers

26 TAC Section 745.131 and 745.133

2420 Determining if a Program is Exempt from Regulation

Revision 24-2; Effective May 22, 2024

To make a determination about an exemption, CCR requests the program to:

- determine the type of exemption to request;
- complete all sections of the form appropriate for the type of exemption requested; and
- include any supplemental documentation that will verify the program's eligibility for the exemption request.

Procedure

CCR staff use the information the program provides to determine if it is exempt within 21 days of receiving all information necessary to make a decision based on CCR statute and administrative rules.

To verify the program is exempt, CCR staff:

- ask additional questions if necessary;
- visit the program website;
- inspect the program if staff need more information than the program provides; and
- evaluate the information.

If the program refuses to provide additional information that CCR requests, CCR staff make an exemption determination based on the information available.

Exemptions for Educational Programs

A person who believes an educational program is exempt under 26 TAC Sections 745.119(1) or (2) may contact CCR. If the person in charge of the program provides enough information during this contact for CCR to determine the program is exempt, CCR staff may inform the person the program does not need to complete an exemption request.

Reference

26 TAC Section 745.131

Exemptions for Neighborhood Recreation Program

As well as the exemption criteria stated in 2351 Neighborhood Recreation Program, a neighborhood recreation program must:

- establish a policy explaining how it informs parents that CCR does not regulate the program; and
- conduct criminal background checks on all employees and volunteers who work with the children.

When evaluating this type of exemption request, CCR staff ask for the following either in writing or verbally:

- the policy for informing parents that CCR does not regulate the program; and
- verification that the program conducts background checks on all employees and volunteers who work with children.

References

Processing an Exemption Request, 2400
Exemption Request Forms, 2422
Procedures When CCR Determines a Program is Exempt, 2430
Procedures When CCR Determines a Program is Not Exempt, 2440

26 TAC 745.115, 745.117, 745.119, 745.129, and 745.131

HRC Sections 42.002(9)(16)(17), 42.041, and 42.052(c)(d)

2421 Processing the Exemption for an Educational Program that is a Member of an Organization Requiring Compliance With its own Standards

Revision 24-2; Effective May 22, 2024

Procedure

CCR staff review the following to determine if the program meets criteria for exemption:

- documentation submitted by the organization that requires compliance with standards; and
- documentation submitted by the program requesting the exemption.

Visit Appendix 2000 Handling Inquiries About the Licensing Process and Exemption for a list of current organizations CCR recognizes to accredit other educational programs under 26 TAC Section 745.119(4).

Reference

Educational Programs that are Exempt from Regulation by CCR, 2340

2422 Exemption Request Forms

Revision 24-2; Effective May 22, 2024

The following table lists the different exemption request forms with the corresponding CCRH reference.

Form Number and Name	CCRH Reference
2837 Governmental Entity Request for Exemption from Child Care Licensing Regulation	Governmental Entities that are Exempt from Regulation by CCR, 2320
2839 Program of Limited Duration Request for Exemption from Child Care Licensing Regulation	Programs of Limited Duration that are Exempt from Regulation by CCR, 2330
2820 Educational Facility Request for Exemption from Child Care Regulation	Educational Programs that are Exempt from Regulation by CCR, 2340
2838 Miscellaneous Entities Request for Exemption from Child Care Licensing Regulation	Miscellaneous Programs Exempt from Regulation by CCR, 2350
2833 Single Skills Program During Summer Request for Exemption from Child Care Regulation	Miscellaneous Programs Exempt from Regulation by CCR, 2350
2390 Background Check Only Entity	Background Check Only Entities, 2362
2391 Request for Exemption from Residential Child Care Regulation	Processing an Exemption Request, 2400

The exemption request forms collect the following information:

- purpose of the program;
- persons or group responsible for care;
- location of the facility;
- days and months that child care is planned or provided;
- hours that child care is planned or provided;
- ages of the children in care;
- projected duration of the child care arrangement;
- child's relationship to the child care provider;
- number of children in care;
- use of space when a regulated operation operates at the same location; and
- details about the program's activities and services that may meet the criteria for exemption from regulation.

2423 Supplemental Information CCR Reviews to Determine if a Program is Exempt

Revision 24-2; Effective May 22, 2024

When determining if a program is exempt, CCR staff review supplemental information when the program submits the appropriate exemption request form.

Examples of supplemental information include:

- a copy of the license issued by another government entity;
- accreditation documents;
- information about municipal ordinances that govern such programs;
- standards of care;
- informational and advertising materials;
- floor plan;
- shopping center or mall design plan; and
- state, county, or municipal health, safety and fire codes.

Procedure

When a program provides supplemental information and the appropriate exemption request form, CCR staff:

- consider the information when making a decision on the exemption request;
- upload the supplemental documents to CLASS Document Library per Appendix 1000-1 Organizing Child Care Regulation Records; and
- document the supplemental information as a Chronology per 2452 Documenting Chronology Entries for Exemption Requests

2424 Exempt Programs that Operate in the Same Locations as Regulated Operations

Revision 24-3; Effective Aug. 15, 2024

If a governing body runs an exempt program and an operation subject to regulation by CCR at the same location, the exempt program and regulated operation must be separate from each other. If the exempt program and regulated operation cannot be kept separate, both are subject to regulation, unless the exempt program is a residential child care program providing 24-hour care to persons not lawfully present in the United States who are in the custody of the federal government.

To be considered separate, the exempt program and regulated operation must:

- be in separate buildings, operated in separate areas of the same building, or operated in the same building at different times;
- use separate caregivers, or use caregivers who provide care for only one program at a time; and
- make sure caregivers from each program supervise children when using shared spaces such as restrooms and indoor and outdoor activity areas at the same time.

Reference

26 TAC Sections 744.2909, 745.139, and 746.4215

Procedure

To make sure an exempt program and a regulated operation that operate on the same premises separately, CCR staff request both the exempt program and regulated operation to submit a written plan describing how they will comply with the requirement to keep separate.

If CCR staff cannot decide if the exempt program and regulated operation operate separately after reviewing the information, staff:

- consult with the supervisor to decide if more information is needed; and
- conduct an inspection at the location if necessary to observe if the exempt program and regulated operation are in compliance with the requirements that they are kept separate.

If CCR staff decide the exempt program and regulated operation are not separate and are subject to regulation, staff follow the steps in 2440 Procedures When CCR Determines a Program is Not Exempt.

Exception

When an organization operates both a residential child care program that provides 24-hour care exclusively to persons not lawfully present in the United States who are in the custody of the federal government and a CCR-regulated operation, the programs must always be kept separate.

If CCR staff decide the organization is not keeping the programs separate, CCR staff make sure the operation:

- takes steps to separate the exempt program and regulated operation that are at the same location;
- alter the regulated operation so the programs at the location are exempt; or
- stop caring for persons not lawfully present in the U.S. that are in the custody of the federal government at the same location as the regulated operation.

Reference

Programs with Oversight by the Federal Government, 2321
Types of Exemptions, 2310
Other Types of Inspections, 4128
Definitions of Terms for grounds

26 TAC Sections 745.115(1)(B) and 745.139(a)

2430 Procedures When CCR Determines a Program is Exempt

Revision 24-2; Effective May 22, 2024

Procedure

If CCR staff determine a program is exempt from regulation by CCR, staff:

- notify the operation using form 2807 Exempt Response Letter found on the CCR SharePoint site; and
- follow procedures in 2454 Closing an Exempt Program in CLASS.

Reference

Documenting Exemption Requests and Decisions in CLASS, 2450

2440 Procedures When CCR Determines a Program is Not Exempt

Revision 24-2; Effective May 22, 2024

2441 Non-Exempt Program is Operating

Revision 24-2; Effective May 22, 2024

If CCR staff determines a program is not exempt and is currently operating, the program must take immediate steps to:

- become regulated;
- alter the program to meet exemption criteria; or
- cease operating.

Procedure

When CCR staff determine a program is not exempt and is currently operating, staff:

- inform the operation in writing that it is not exempt using Form 2848 Not Exempt Response Letter found on the CCR SharePoint Site; and
- complete the *Exemption Requests and Background Check Only Entities* page in CLASS per 2450 Documenting Exemption Requests and Decisions in CLASS.

Reference

Documenting Chronology Entries for Exemption Requests, 2452

2441.1 When a Non-Exempt Program Does Not Take Steps to Become Regulated, Meet Criteria for an Exemption, or Stop Operating

Revision 24-2; Effective May 22, 2024

Procedure

When CCR staff notify a program that is operating that the program is not exempt from regulation by CCR, the program must meet the exemption criteria, submit an application, or cease operating. If the program does not submit an application within five days after CCR staff notify the program it is not exempt, staff decide if the program is still operating. If it is still operating without meeting the exemption criteria, CCR staff:

- inform the CCR supervisor that the program knowingly failed to meet the requirements of an exemption and engaged in activities that require a permit from CCR;
- document the information as a Chronology (type *Application*);
- enter an intake for the operation for a day care operation operating without a permit per 6230 Assessing an Intake Report and 6221.4 Entering Reports of Unregulated Operations;
- contact Statewide Intake (SWI) for a residential child care operation to enter the report; and
- leave the exemption request open in CLASS until the program:
  - meets the requirements to become regulated;
  - meets the criteria to be exempt from regulation by CCR; or
  - ceases operating.

References

Closing an Exempt Program in CLASS, 2454
When Exempt Programs No Longer Meet Exemption Criteria, 2510

HRC Section 42.075

2442 Non-Exempt Program is Not Providing Care

Revision 24-2; Effective May 22, 2024

When CCR staff determine a program is not exempt, and the program is not operating, CCR staff first discuss with the program the options to select one of the following before providing care:

- alter its services so it may meet the exemption criteria;

- submit a different type of exemption request; or
- submit an application to become a regulated operation.

If the program chooses one of the three options, CCR staff provide a time frame for the program to choose one of the options.

If the program does not choose to complete one of the three options within the given time frame, staff notify the operation in writing using Form 2848 Not Exempt Response Letter, on the CCR SharePoint site.

CCR staff include the following information in Form 2848 Not Exempt Response Letter:

- the options that CCR previously provided the program to alter the program;
- the reasons the program is not exempt; and
- that the program has the right to request an administrative review to dispute the decision.

In addition, CCR staff complete the *Exemption Requests and Background Check Only Entities* page in CLASS per 2450 Documenting Exemption Requests and Decisions in CLASS.

2443 Non-Exempt Program Disagrees that it is Not Exempt

Revision 24-2; Effective May 22, 2024

A program that disagrees with CCR's decision that it is not exempt may request an administrative review within 15 days of receiving Form 2848 Not Exempt Response Letter.

Reference

Administrative Reviews 5600

2450 Documenting Exemption Requests and Decisions in CLASS

Revision 24-2; Effective May 22, 2024

2451 Entering the Exemption Request in CLASS

Revision 24-2; Effective May 22, 2024

CCR staff document the details of the exemption request in CLASS the same day or the next day after receiving the request from the program. CCR staff upload the exemption request form and all supplemental documentation to CLASS Document Library.

Staff document the operation details on the *Exemption Requests and Background Check Only Entities* page in CLASS as outlined in the table below.

CLASS Field	What to Document
Category Type	Type of exemption the program requests.
Program Type	Day Care or Residential Care, as applicable.
Operation Information	Program name, contact person's name, and contact person's phone number.
Location Address	The address where the program takes place.
Mailing Address	The address where the program receives mail.
Facility Email	The email address where the program correspondence goes.
Exemption Request Received date	The date the exemption request was received by the program specialist or by the local CCR office
How many children are you caring for?	The number of children the program anticipates enrolling.
Ages of children served	Select the applicable checkboxes for the program.
Operating Times	The hours, days, and months of operation the program indicated on the exemption request.
DFPS regulated operations currently on location at same property	Any known operation numbers for CCR regulated operations located at the same address.

Staff document any associated unregulated and regulated operations on the *Operation History* page in CLASS as follows:

- select *+Add New*;
- search for the associated operation number; and
- select the hyperlink of the operation name.

The associated operation will display on the *Operation History List*.

2452 Documenting Chronology Entries for Exemption Requests

Revision 24-2; Effective May 22, 2024

CCR staff document chronologies in CLASS as outlined in the table below.

Scenario	Chronology Type	What to Document
CCR staff: • correspond with the program contact person; • consult with supervisor or program specialist; • provide technical assistance to the program or operation provided; and • identify concerns about the program.	*Operation General*	Concise summary of the scenario being documented.
CCR staff make a decision on the exemption request.	*Operation General*	Concise description of how the operation is either exempt or not exempt.
CCR staff conduct an inspection at the operation.	*Inspection*	Observations made during the inspection.
CCR staff: • receive supplemental documents from the program or operation; or • get supplemental documents	*External Documentation*	List of the documents received or obtained with a statement that they can be found on the CLASS Document Library.

2453 Documenting Exemption Decisions in CLASS

Revision 24-2; Effective May 22, 2024

Procedure

CCR staff take the following steps to document the exemption decision on the *Exemption Requests & Background Check Only Entities* page in CLASS:

- enter the *Action Date* as the date staff make the determination;
- select the *Action Reason* of *Exempt* or *Not Exempt*, as appropriate;
- in the *Action Reason* box, enter that more details about the decision can be found in a Chronology; and
- generate the appropriate notification letters by copying and pasting the template form information on the CCR SharePoint site into the HHSC letterhead.

2454 Closing an Exempt Program in CLASS

Revision 24-2; Effective May 22, 2024

CCR staff take the steps on the *Exemption Requests and Background Check Only Entities* page in CLASS as follows:

- enter the date the exemption is closed in the *Closure Date* field; and
- select the appropriate exemption category from the *Closure Reason* drop-down menu.

2460 When an Exempt Program Requests Regulation by CCR

Revision 24-3; Effective Aug. 15, 2024

A program exempt from regulation by CCR based on an exemption listed in HRC Section 42.041(b) may request a license only if the program needs a permit to accept federal or state funding.

A program that receives a license under HRC Section 42.041(d) must comply with all applicable provisions of the HRC, Chapter 42, administrative rules, and minimum standards.

Exceptions

An exempt program is not eligible for regulation by CCR for funding purposes unless it is exempt from regulation under HRC Section 42.041(b). Some programs not subject to regulation by CCR are listed as **exempt** for administrative purposes. Those identified in 26 TAC Section 745.115(1) are not exempt under statute:

- CCR may not regulate a facility operated on a federal installation because CCR has no regulatory authority over any program located on a federal installation.
- CCR may not regulate a program that provides 24-hour care exclusively to persons not lawfully present in the U.S. who are in the custody of the federal government, even if the program reports that it needs a permit to accept federal funding. The exemption is based on an ongoing emergency declaration by Gov. Abbott that prohibits CCR from issuing a permit to such programs.

Reference

Governmental Entities that Are Exempt from Regulation by CCR, 2320
Programs of Limited Duration that are Exempt From Regulation by CCR, 2330

26 TAC Sections 745.125, 745.141, and 745.143

2500, Handling Changes to an Exempt Program

Revision 24-2; Effective May 22, 2024

In some circumstances, an exempt program may alter its services after CCR makes an exemption determination. The following are examples of a change that an exempt program might make:

- relocating the program;
- changing the hours, months, or days of operation;
- adding or removing services or activities;
- updating fee requirements; or
- changing the ages of children the program serves.

CCR may become aware of these changes when:

- CCR receives a report about the program making a change;
- CCR receives a report that alleges the program is operating beyond the scope of the exemption;
- the Unregulated Operations unit (UOU) suspects the program may be operating beyond the scope of the exemption when searching for unregulated operations; or
- the program notifies CCR about the changes to the program.

After CCR becomes aware of changes to an exempt program, CCR staff evaluate if the changes impact the existing exemption determination.

2510 Determining if Changes to an Exempt Program Change the Program's Exemption Status

Revision 24-2; Effective May 22, 2024

Procedure

After CCR becomes aware of changes to an exempt program, CCR staff:

- find the exempt program in CLASS and review the approved exemption determination;
- compare the changes with the exemption requirements in 26 TAC Chapter 745, Subchapter C, Operations that are Exempt from Regulation; and
- determine if the changes impact the program's exemption status.

CCR Decision: No Change to Exemption Determination

If CCR staff decide the program's changes do not impact the existing exemption status, CCR staff document as a Chronology:

- an explanation of the program's change or changes;
- the CCR staff decision; and

- the rationale for the decision.

CCR Decision: Change to Exemption Determination

If CCR staff decide the program's changes impact CCR's exemption determination, including situations where the program is eligible for a different exemption, CCR staff request the program:

- submit a new exemption request that may be a better fit with the changes made within five days;
- submit an application for a permit within five days; or
- not make the changes and notify CCR in writing within five days.

References

Overview of the Exemption Process, 2410
When a Non-Exempt Program Does Not Take Steps to Become Regulated, Meet Criteria for an Exemption, or Stop Operating, 2441

2520 Enforcement Actions When an Exempt Program Knowingly Operates a Program that Requires Regulation by CCR

Revision 24-2; Effective May 22, 2024

CCR staff may begin the referral process to Child Care Enforcement (CCE) to seek injunctive action, civil penalties, or both against a person who:

- knowingly fails to meet the requirements of an exemption and engages in activities that require permit from CCR; or
- fails to inform CCR about a change in the status of a program that requires the program to be licensed or registered.

HRC Sections 42.074(a)(2) and 42.075(a)(4)

Moreover, a person may be prosecuted under Texas Human Resources Code Section 42.076 for operating a child care operation without the appropriate permit from CCR.

Reference

Handling Changes to an Exempt Program, 2500
Overview of CCR and Regulatory Enforcement Staff Responsibilities Related to Non-Voluntary Enforcement Action, 7200

HRC Sections 42.074, 42.075 and 42.076

2600, Providing Information About the Child Care Regulation Process

Revision 24-2; Effective May 22, 2024

CCR staff provide information about the regulation process and child care regulatory activities to:

- potential applicants and applicants for a child care permit;
- operations that hold child care permits; and
- community members.

Visit 1110 CCR's Regulatory Activities for a list of child care regulation activities.

Reference

HRC Section 42.047

Procedure

CCR staff provide information about the child care regulation process through:

- pre-application interviews;
- phone calls while on intake duty for DCCR staff only;
- technical assistance with operations;
- community engagement events; and
- encounters with parents or other stakeholders.

References

Orientation, Inquiry Meeting, or Pre-Application Interview, 3210
Providing Technical Assistance, 4154.1
Referring Requestors to the CCR Public Website, 8110
Providing Information About Child Care Operations, 8120

3000, Application and Issuance

3100, Regulatory Process for Operations

3110 Requirements for Assessment of Risk

April 2010

Child care regulation involves the assessment of risk to children from the beginning phases of application and issuance. Licensing staff use a screening process to help ensure that the only persons who are granted permission to operate are those who are able to meet requirements of the:

- licensing statute;
- administrative rules; and
- minimum standard rules.

3120 Documentation

Revision 23-3; Effective Sept. 22, 2023

CCR staff document all decisions and operation information related to the application and issuance process in CLASS.

CCR maintains external operation hard copy files to store external documents that are not available for viewing in CLASS (including in CLASS Document Library), or on the CCR Digital Storage SharePoint site.

See:

1310 Content and Organization of Child Care Regulation Records
Appendix 1000-1 Organizing Child Care Regulation Records

3121 Initiating an Application in CLASS

August 2021

Procedure

Within five calendar days of receiving an application, Child Care Regulation (CCR) staff initiate the application in CLASS by:

- entering the application information when a paper application is submitted; or
- searching for and adding an operation to CLASS when an e-application is submitted by an applicant seeking to operate a child care home.

Initiating an Application for an Unregulated Operation

When an unregulated operation that is the subject of a CCR investigation applies for a permit:

- staff enter the *Application Received Date* on the *Illegal Operation* main page before entering the application information when a paper application is submitted; or
- staff search for the open operation and select *Update to CLASS* when an e-application is submitted.

CCR staff ensure all information on the *Main Operation* page in CLASS is consistent with what is provided on the application including:

- Operation name, location address, public and contact email addresses, and mailing address;
- *Operating Times*;
- *Services Offered*; and
- *Temporary Location* details and *Noncontiguous Campus* details, if applicable.

3121.1 Documenting Fee Exemptions in CLASS

February 2020

An applicant is exempt from paying the application fee if the application is for:

- a state-operated operation; or
- a listed family home provider in which a relative child care provider provides care for a child in the child's own home.

26 TAC §745.503

See also 5211 Exemption From Fees.

Procedure

Upon receiving the application and determining the applicant is exempt from paying the application fee, Licensing staff must indicate the operation is exempt from paying the application fee before saving the operation's *Main* page for the first time. This will prevent CLASS from generating and sending an *Application Fee Invoice* to the applicant.

Application for a State Operated Operation

Licensing staff indicate that an operation is exempt from fees using the instructions in the table below:

For a Residential Operation	For a Day Care Operation
Select "Yes" from the *Exempt from Operations* Fee drop-down box on the operation's *Main* page in CLASS.	Select the radio button *State Operated Exempt from Fee*.

Application for a Listed Family Home Providing Care in the Child's Home

Licensing staff exempt a listed family home from paying all fees after HHSC has received a Texas Workforce Commission (TWC) *Listed Home Fee Waiver Authorization* certificate exempting the provider from paying fees. TWC is responsible for determining whether a listed family home is a relative child care provider that would be exempt from fees; if TWC has made that determination, Licensing staff do not need to take any other steps to determine whether the home is exempt from paying fees.

To indicate that a listed family home is exempt from paying fees in CLASS, Licensing staff:

1. Select *Yes* from the *Relatives Only* box on the *Registered and Listed Homes Main Operation* page.
2. Select *Yes* from the *Exempt from Operations Fee* drop-down box on the *Registered and Listed Homes Main Operation* page.
3. Complete a *Chronology* (type *Fees*), indicating receipt of the TWC approval form and that the operation is exempt from fees.

A listed family home that is a relative child care provider is not exempt from paying fees if the home provides care to a related or unrelated child in the caregiver's home.

3121.2 Capturing Applicant Information in CLASS

Revision 24-2; Effective May 22, 2024

3121.21 Documenting Applicant Information in CLASS (RCCR Only)

Revision 24-2; Effective May 22, 2024

RCCR staff enter the name of the person who submitted the application in the *Applicant Information section* on the *Residential Care Application* page in CLASS.

3121.22 Documenting Applicant History in CLASS (RCCR Only)

Revision 24-2; Effective May 22, 2024

Procedure

The RCCR application specialist enters the *Applicant History Details* on the *Applicant History* page in CLASS for a general residential operation or child-placing agency application. The application specialist uses the criteria outlined in 3323.4 Additional Requirements if the Applicant or Associated Operation Has a History of Heightened Monitoring (RCCR Only) to explain the reason for the Heightened Monitoring Evaluation.

Changes to the Applicant History Information

If there is a change to the applicant history details, the inspector may update the *Applicant History Details* on the *Applicant History* page in CLASS only until the inspector issues the permit.

3121.23 Documenting Applicant Information in CLASS (DCCR Only)

Revision 24-2; Effective May 22, 2024

Applicant Submits Paper Application

When an applicant submits a paper application, DCCR staff document the name of the person who submitted the application in the *Applicant Information* section on the *Licensed Child Care Application or Registered and Listed Homes Application* page in CLASS.

Applicant Submits eApplication

When an applicant for a listed family home, registered child care home, or licensed child care home submits an eApplication, DCCR staff review the applicant name and verify with the applicant that the *Applicant Information* on the *Application/Closure* page in CLASS is correct before accepting the application.

3130 The Application Process

September 2012

Procedure

The application process includes all of the following:

a. The pre-application interview or orientation class (not required for certificates, compliance certificates, or listings).
b. Submission of the application materials.
c. The posting of public notice and compliance with hearing requirements for residential child care operations (if applicable).
d. Review of the application for completeness.
e. Acceptance of the application as complete, or return of the application if it is incomplete.
f. A determination by CCR of the applicant's compliance with rules, including minimum standards and statutes.
g. The decision to issue or deny a permit.

26 TAC §745.211

3140 Public Notice and Hearing Requirements for General Residential Operations

July 2021

3140.1 Public Notice and Hearing Requirements for General Residential Operation Applicants

July 2021

Generally, an applicant for a permit to operate a general residential operation located in a county with a population of less than 300,000 is subject to the public notice and hearing requirements. Exceptions related to trafficking victim services:

- Any information relating to the provision of those services is confidential.
- If the applicant intends to provide treatment services to children with emotional disorders, the applicant is not required to disclose any information relating to the provision of trafficking victim services during the public hearing.
- If the applicant does not intend to provide treatment services, or to children with emotional disorders, the public hearing requirement is waived altogether if the applicant also intends to provide trafficking victim services at the operation. However, the operation will have to meet public hearing requirements if it never provides or ceases to provide trafficking victim services. In those circumstances, the inspector consults with the supervisor regarding what steps to take for the operation to comply with the public hearing requirements.

Texas Human Resources Code §§42.0461; 42.0462; 42.253

26 TAC §745.273

3140.2 Public Notice and Hearing Requirements for General Residential Operation Permit Holders

July 2021

A general residential operation located in a county with a population of less than 300,000 is subject to public notice and hearing requirements when requesting to amend its permit to:

- increase capacity; or
- begin providing treatment services to children with emotional disorders.

Exceptions related to trafficking victim services:

- Any information relating to the provision of those services is confidential.
- If the operation provides or intends to provide treatment services to children with emotional disorders, the operation is not required to disclose any information relating to the provision of trafficking victim services during the public hearing.
- If the operation does not provide, or intend to provide, services to children with emotional disorders, the public hearing is waived altogether if the operation provides trafficking victim services, or intends to provide trafficking victim services, in relation to the increase in capacity. However, the operation will have to meet public hearing requirements if it never provides, or ceases to provide, trafficking victim services. In those circumstances, the inspector consults with the supervisor regarding what steps to take for the operation to comply with the public hearing requirements.

Texas Human Resources Code Section 42.0461

26 TAC Section 745.273

3141 General Requirements for Public Hearing and Notice

July 2021

When to Publish Notice

The applicant or permit holder subject to the requirements must publish the notice for a public hearing after:

- CCR accepts an application for a permit;
- an inspector evaluates a request to amend the permit to increase capacity; or
- an inspector evaluates a request to amend the permit to offer treatment services to children with emotional disorders.

The content required in the notice must align with the requirements outlined in 26 TAC Section 745.275.

Time Frames for Holding a Public Hearing

The time frames for holding the public hearing is based on the purpose of the hearing and are outlined in the following chart:

If the purpose of the hearing is to	Then the hearing must be held
apply for a permit . . .	no later than one month after the date the application is accepted.
amend the permit to increase capacity . . .	after CCR has evaluated the request for an amendment.
amend the permit to begin providing treatment services to children with emotional needs . . .	after CCR has approved the completed GRO-Additional Operation Plan.

Scheduling and Holding the Hearing

An applicant or permit holder that is subject to public notice and hearing requirements is required to:

- hold a public hearing in a location that is easily accessible to the community where the services are or will be provided;
- schedule the hearing so that it is open it for at least four hours during the normal business day (a day on the Monday through Friday workweek) or early evening hours; and
- facilitate the public hearing.

If the applicant is a general residential operation that intends to provide treatment services to children with emotional disorders, the operation may not schedule the hearing until after the inspector approves the applicant's operational plan outlined in Form 2960, Application for a License to Operate a Residential Child Care Facility, Attachment C (see 3223.3 Additional Requirements for General Residential Operation Applications).

During an active declaration of a state of disaster, Texas Government Code §418.014, a public hearing may be held in a manner that allows remote participation.

Texas Government Code §418.014

26 TAC §745.275(b)

Providing Notification of the Hearing

At least 10 days before the date of the public hearing, the applicant publishes the notice in a newspaper of general circulation and notifies the CCR inspector of the time, date and location of the hearing.

At least 10 work days before the hearing, the applicant or permit holder provides a copy of the notice in the community where the child care services are or will be provided to the:

- school district superintendent;
- governing body of the community; and
- local law enforcement agency.

26 TAC §§745.201(2); 745.275

3142 CCR's Role During the Public Hearing

July 2021

The inspector attends the public hearing in an official capacity for the purpose of receiving public comments.

CCR attends the public hearing as an observer. The inspector may answer questions about CCR policy and procedures; otherwise, the applicant or permit holder responds to questions.

Texas Human Resources Code §42.0461

26 TAC §745.275

3143 Verbatim Record and Report of Public Comment from the Community

July 2021

Within 10 work days of the hearing, the applicant or permit holder submits to the inspector a verbatim record of the hearing and a completed comment summary report on Form 2997, Results of Public Hearing.

The CCR inspector reviews the report to ensure it includes all contents required by 26 TAC §745.275(3) before issuing or amending the permit.

If the applicant or permit holder does not submit the report within the time frame, CCR staff may deny the operation a permit, deny the request to increase capacity or deny the request to add treatment services for emotional disorders to the permit, as applicable (see 3223.3 Additional Requirements for Certain General Residential Operation Applications).

26 TAC §745.277

Texas Human Resources Code §42.0461

3150 "No Trespassing" Signs for Certain General Residential Operations

Revision 23-2; Effective June 26, 2023

A general residential operation that provides treatment services to children with emotional disorders must post "No Trespassing" signs at certain locations on or near the grounds of the operation, including parallel to and along the exterior boundaries, any roadway or other way to access the grounds, at least every 500 feet along the exterior boundaries of unfenced grounds, each entrance to the grounds, and conspicuous places likely to be viewed by intruders.

See Definitions of Terms for residential treatment center

26 TAC Section 748.3319

Texas Human Resources Code Section 42.068

Procedure

Collecting Sign Information

If the applicant or permit holder requests that CCR provide the "No Trespassing" signs, CCR staff provide the operation a link to an online survey that collects the information about the operation and the number of signs needed. CCR staff provide the link to the survey and document in CLASS as follows:

When CCR Staff Provide the Survey Link	How to Document in CLASS
During an inspection, including during the application inspection.	As Technical Assistance according to 4154.2 Documenting Technical Assistance.
When the operation requests a replacement sign.	As a chronology entry, if the operation needs to request the signs outside of an inspection.
If the operation needs additional signs because it increased capacity or changed location.	As a chronology entry if the operation needs to request the signs outside of an inspection.

The survey collects the following information:

- how many signs the operation will need;
- the name the operation will display on the signs; and
- the address the operation will display on the signs.

If the operation provides or intends to provide human trafficking services, the operation is not required to list the name and address of the operation on the signs.
A Residential Child Care Regulation program specialist receives the survey results and requests the order from the print shop. The print shop then mails the required signs to the operation.

See 3324 Providing the Survey Link for "No Trespassing" Signs Information

3200, Processing the Application for a License, Certificate, Compliance Certificate, Registration, or Listing Permit

3210 Orientation, Inquiry Meeting, or Pre-Application Interview

September 2015

The pre-application interview (also known as orientation or an inquiry meeting) teaches a potential applicant or governing body designee about the application process, CCR requirements, and administrative procedures.

26 TAC §745.213

3211 When a Pre-Application Interview is Required

August 2020

A pre-application interview is required for an applicant or applicant's governing body designee seeking a license, certificate, or registration. For a registration, a pre-application interview must have been completed within one year before the application date.

An applicant for a listing may attend a pre-application interview for registered and licensed child care homes, but is not required to do so.

The pre-application interview is not available to applicants for a compliance certificate to operate a small employer-based child care facility or a shelter care facility.

26 TAC §§745.211, 745.243

Procedure

If a potential applicant has not attended a pre-application interview, CCR staff may schedule one for the potential applicant who inquires.

CRR staff should encourage the potential applicant to attend a class to take advantage of the class's benefits. However, if a hardship situation prevents the potential applicant from attending, and there are sufficient resources, CCR staff gives the potential applicant the option of meeting this requirement at a one-on-one meeting with an inspector.

3212 Approved Locations for a Pre-Application Interview

September 28, 2018

The inspector may hold the pre-application interview for a child care permit:

- at an HHSC office;
- at the applicant's or potential applicant's office;
- at the potential site for the operation;
- as a group meeting, with other CCR staff or HHSC representatives, at any of the locations identified above; or
- as a telephone interview, if meeting in person is not possible.

26 TAC §745.215

3213 Topics Covered and Forms Provided During the Pre-Application Interview

Revision 24-2; Effective May 22, 2024

During a pre-application interview with a person interested in running a child care operation, the inspector explains the following information:

- If an application is returned three times within one year because it is incomplete, the applicant must wait one year before submitting another application.
- The inspector has 21 days to review each submission for completeness.
- After an application is accepted, the inspector has two months to decide to issue or deny a permit.
- An initial license may be issued so the operation can be evaluated before it receives a full license.
- The inspector explains the administrative procedures to follow and requirements to meet under the permit, including:
  - governing body responsibilities;
  - controlling person requirements and responsibilities;
  - liability insurance requirements; and
  - background check responsibilities.

The inspector also discusses the criteria an operation would have to meet to be exempt from CCR regulation.

References

Types of Child Care Permits, 2100
Determining CCR's Authority to Regulate a Program, 2200
26 TAC Sections 745.37; 745.113; 745.213

3213.1 Governing Body and Licensing Responsibilities

March 2017

Procedure

At the pre-application interview, the inspector explains to the applicant or the applicant's governing body designee that the governing body:

- is responsible for maintaining compliance with statutes, administrative rules, and minimum standards; and
- must complete and submit a separate application for each operation subject to regulation that it plans to operate.

Licensing informs the governing body of any enforcement action that may be taken against the operation if it fails to maintain compliance with statutes, administrative rules, and minimum standards.

3213.11 Additional Information for Child Day Care Governing Body Responsibilities

September 28, 2018

Procedure

At the pre-application interview for a child day care operation, the inspector explains all of the following.

The applicant or the applicant's governing body designee must submit Form 2911 Child Care Licensing Governing Body/Director Designation with the application.

The applicant or applicant's governing body designee, the permit holder, or the governing body designee must:

- submit a personal history statement each time a new director is named;
- notify CCR no later than five days after a change is made regarding a director;
- submit Form 2911 or designate a new director through the provider's online Child Care Licensing Account within 10 days of designating the director;
- submit changes in the governing body or the director designation on Form 2760 Controlling Person - Child Care Regulation or through the provider's online Child Care Licensing Account within two days in accordance with controlling person requirements (see 3213.2 Controlling Person Responsibilities); and
- indicate on Form 2911 or through the provider's online Child Care Licensing Account whether all routine correspondence should be sent to the head of the governing body (see Appendix 3000-1: Notifying the Operation, for others who must receive routine correspondence).

26 TAC §§744.303; 744.1037; 745.903; 746.303; 746.1039

3213.12 Additional Information for Residential Child Care Governing Body Responsibilities

September 28, 2018

Procedure

At the pre-application interview for a residential operation, the inspector explains all of the following to the applicant or the applicant's governing body designee.

Reporting a Change of Administrator

A general residential operation or child-placing agency must have a full-time licensed administrator.

The applicant or applicant's governing body designee, the permit holder, or the governing body designee must report any change of administrator within seven days after the change. This must be done in writing using Form 2819 Residential Child Care Licensing Governing Body/Administrator or Executive Director Designation, or through the provider's online Child Care Licensing Account.

26 TAC §§748.103; 748.307(3); 749.103; 749.507(3); 749.633

Reporting a Change of Governing Body or Administrator

The applicant or applicant's governing body designee, the permit holder, or the governing body designee must inform Licensing if the governing body or the administrator changes. This must be done within two days of the change, in accordance with requirements for controlling persons.

Licensing may be notified by using Form 2760 Controlling Person - Child Care Regulation or through the provider's online Child Care Licensing Account.

See 3213.2 Controlling Person Responsibilities.

40 TAC §745.903

Reporting Policy Changes

The applicant or applicant's governing body designee or the permit holder must report any significant change in the policies to Licensing at least seven days before implementing the change. See 4700 Reviewing Operation Policies.

If the change requires amending the permit, the amendment must be approved by Licensing before the change is implemented.

26 TAC §§748.63; 748.1203; 749.63; 750.61; 750.151(f)

Staffing Plan

The applicant or applicant's governing body designee or the permit holder must have a written professional staffing plan and must hire qualified staff to meet minimum standards.

26 TAC §§748.501; 749.601

3213.2 Controlling Person Responsibilities

September 28, 2018

Procedure

At the pre-application interview, the inspector explains the following to the applicant or applicant's governing body designee:

- who qualifies as a controlling person; and
- what his or her roles and responsibilities are with an operation.

The inspector also informs the applicant that controlling person information must be submitted:

- online through the provider's online Child Care Licensing Account or by using Form 2760 Controlling Person - Child Care Regulation, with the application; and
- within two days each time a person becomes, or ceases to be, a controlling person at the operation thereafter.

26 TAC §§744.305(a)(6); 746.305(a)(6); 747.303(a)(6); 748.103(a)(13); 749.103(18); 750.103(11)

40 TAC §§745.901; 745.903; 745.907

See 5400 Controlling Person.

3213.3 Background Check Responsibilities

September 2015

Procedure

At the pre-application interview, the inspector informs the applicant or applicant's governing body designee that a background check, including a criminal history check, is conducted on applicants and household members.

The inspector explains which individuals living or working in an operation require an FBI fingerprint check, and that certain criminal convictions and Central Registry findings preclude applicants from getting a permit.

Texas Family Code §264.8521

Human Resources Code §42.056

26 TAC §§745.605; 745.609

3213.4 Payment of Fees

February 2020

During the pre-application interview, the inspector:

a. explains the requirements for paying fees during the application period; and
b. instructs the applicant that upon receipt of the *Application Fee Invoice* to pay the fee either:
    1. online through the provider's Child Care Licensing account; or
    2. by mail with a cashier's check, corporate check, money order or certified check, with the bottom portion of the invoice, to HHSC Accounts Receivable.

See also 5211 Exemptions From Fees

Texas Human Resources Code §42.054

26 TAC §745.517

3213.5 Liability Insurance

July 2021

During the pre-application interview for a prospective licensed, registered or listed operation, the inspector informs the applicant or the applicant's governing body designee of the following requirements related to liability insurance:

- the coverage required and exceptions for not having liability insurance;
- if the operation does not have or stops carrying liability insurance:
  - how and when the operation must notify parents; and
  - failure to provide this notification will result in an administrative penalty;
- the operation must verify liability insurance coverage with CCR annually by the anniversary date of the initial license (licensed operations) or full permit (registered or listed operations);
- how the annual verification of liability insurance may be completed; and
- the operation must provide documentation of liability insurance coverage from the insurance company:
  - with the application; and
  - annually by the anniversary date of the initial license (licensed operations) or full permit (registered and listed operations).

See also 4600 Evaluating Compliance with Liability Insurance Requirements

Texas Human Resources Code §§42.049; 42.0495

26 TAC §§745.249; 745.251; 745.253

3214 Handling Original Certificates of Completion

August 2020

Procedure

After completion of the pre-application interview, the inspector provides the applicant with a certificate of completion.

3220 Reviewing and Accepting the Application for a Permit

Revision 23-3; Effective Sept. 22, 2023

CCR staff:

- determine whether the applicant is eligible to apply;
- review and process the application in a timely manner;
- notify the applicant in writing of acceptance of the application and, if necessary, the reason for any delays; and
- upload application files for the operation in CLASS Document Library when:
  - staff receive an application for an RC operation; or
  - staff accept an application for a DC operation.

If CCR staff receive a paper application, CCR staff convert the paper application to a PDF file and upload the application to CLASS Document Library according to 1310 Content and Organization of Child Care Regulation Records.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

3221 Time Frame for Reviewing and Making a Decision on the Application

April 2022

Procedure

Within 21 days of receiving the application for a license, certificate, registration, or listing, and within 10 days of receiving the application for a compliance certificate, the CCR staff notifies the applicant in writing that:

- the application is complete and accepted by mailing CLASS Letter 2875 App Received and Accepted;
- the application is incomplete;
- the applicant is ineligible to apply for a permit;
- there is good cause to delay the time frame for making a determination on the application; or
- CCR recommends withdrawal of the application.

Texas Human Resources Code Section 42.046

26 TAC Section 745.301

Military Member, Military Spouse or Military Veteran

CCR staff processes an application for a military member, military spouse or military veteran as soon as possible within the required time frame. To determine whether an applicant qualifies under one of these categories, follow the requirements related to administrator licensing in 9310 Additional Required Documentation if the Applicant is a Military Member, Military Spouse or Military Veteran Requesting Expedited Licensure or Special Considerations.

See also:

3221.1 Good Cause to Exceed the Time Frame for Processing an Application
3222 How to Determine Whether the Applicant Is Eligible to Apply
3223 Evaluating an Application for Completeness
3225 Returning an Application
3226 When to Delay a Decision on an Application
3230 Withdrawal of an Application for a Permit

3221.1 Good Cause to Exceed the Time Frame for Processing an Application

Revision 22-4; Effective Sept. 20, 2022

CCR may have good cause to exceed its time frame for processing an application if:

- there are at least 15% more applications being processed than in the same quarter of the previous year;
- the delay is caused by another public or private entity that must be relied on to process all or part of the applications received;
- the operation is the subject of a pending investigation; or
- other conditions exist that give good cause for exceeding the time frames.

See 3226 When to Delay a Decision on an Application.

26 TAC Section 745.327

3222 How to Determine Whether the Applicant Is Eligible to Apply

Revision 23-4; Effective Nov. 30, 2023

To determine whether an applicant is eligible to apply for a license, certificate, registration or listing permit, see the circumstances and actions described in the following table:

If …	Then …
CCR revoked, denied or refused to renew a permit for a substantive reason…	the applicant is not eligible to reapply for five years from the date the revocation, denial or refusal to renew the permit became final.
CCR returned an application for the third time as incomplete within the past year…	the applicant may not reapply for one year from the date the third application was returned as incomplete.
CCR sustained the applicant as a controlling person within the previous five years…	the person is ineligible to apply for a permit because of an adverse action that was sustained during the previous five years.
the applicant was a permit holder or controlling person who had a permit denied, revoked, suspended or terminated by a state health and human services agency in the last 10 years…	depending on the circumstances that led to the previous denial, suspension, revocation or termination, the applicant may not be eligible to apply. **Note**: CCR staff consult with a supervisor to determine the applicant's eligibility to apply in this scenario.
the applicant seeking a permit for a day care home: • is younger than 18 years old (if a listing permit); or • is younger than 21 years old (if a registration or license); and • will not meet the age requirement within the time frame noted in 3221 Time Frame for Reviewing and Making a Decision on the Application…	the applicant is ineligible to apply.

26 TAC Sections 745.303, 745.403, 745.911

Texas Human Resources Code Section 42.072

Texas Government Code, Chapter 531, Subchapter W

Procedure

Global Person Search and Review of Other Electronic and Hard Copy Records

CCR staff conduct a *Global Person Search* in CLASS to verify information submitted in the application packet. Staff also review electronic records maintained on the CCR Digital Storage SharePoint site, in CLASS Document Library and, if available, hard copy records maintained in CCR offices.

CCR staff review five years of information from the date the application was received. Staff use available information, such as a Certificate of Formation and other documentation, to cross-check the names of the entity given on the application.

If the applicant is eligible to receive a permit, CCR staff document:
- that the applicant is eligible to apply;
- a summary of the review of records; and
- any consultations as a Chronology in CLASS (type *Application*).

If the applicant is not eligible to apply for a permit, staff do not accept the application. Staff inform the applicant in writing of their ineligibility by generating a letter in CLASS using the HHSC letterhead.

If CCR staff detect any discrepancies between information entered on the application and supporting forms, CCR staff follow procedures in 3223.1 If the Application is Incomplete or Contains Errors.

Additional Global Person Searches for Applicants for a Residential Child Care Operation Who Intend to Care for Children in the Conservatorship of DFPS

In addition to the applicant, CCR staff conduct a *Global Person Search* in CLASS for each:

- owner, including a sole proprietor or each partner in a partnership;
- governing body member, as identified on Form 2819 Residential Child Care Regulation Governing Body/Administrator or submitted through the provider's online Child Care Regulation Account; and
- controlling person, as identified on Form 2760 Controlling Person – Child Care Regulation or submitted through the provider's online Child Care Regulation Account.

Adverse Action Record Sharing (AARS) Search

During the application process, staff conduct a search of the AARS system to determine if any controlling person associated with the application had a permit denied, revoked, suspended, refused to renew or terminated by a state health and human services agency in the last 10 years.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
1500 Conducting a Search in CLASS
5431 Processing Information on a Controlling Person During the Application Process
5441 Searching for a Controlling Person in the AARS System and Documenting the Results

3223 Evaluating an Application for Completeness

Revision 23-2; Effective June 26, 2023

Procedure

CCR staff review the information supplied on the applicable application form and attachments for completeness:

- Form 2841 Small Employer-Based Child Care or Temporary Shelter Child Care Facility Application
- Form 2910 Application for a License or Certification to Operate a Child Day Care Facility
- Form 2919 Request for a Registration Permit
- Form 2960 Application for a License to Operate a Residential Child Care Facility including, as appropriate:
  - Form 2960 Attachment A, General Residential Operations Documentation Required at Application
  - Form 2960 Attachment B, Child-Placing Agency Documentation Required at Application

    - Form 2960 Attachment C, General Residential Operations – Additional Operation Plan
- Form 2986 Listing Permit Request

For information about what a complete application consists of, see Required Application Materials on the CCR SharePoint site.

See also:

3140 Public Notice and Hearing Requirements for General Residential Operations
3223.1 If the Application is Incomplete or Contains Errors
3230 Withdrawal of an Application for a Permit
3321 Denial of a Permit or Amendment for Failure to Comply with Public Notice and Hearing Rules
3225 Returning an Application
Instructions for Completing Form 2960 Attachment C

3223.1 If the Application is Incomplete or Contains Errors

Revision 23-3; Effective Sept. 22, 2023

CCR staff review and determine if the application is complete or contains errors. Staff do not accept an application that is incomplete or contains errors. Staff attempt to contact the applicant to resolve minor errors or omissions.

Procedure

Applications for a Day Care Operation:

CCR staff and the applicant for a day care operation communicate about an incomplete application through face-to-face meetings, phone calls, emails, text messages, or a combination of these methods. Staff document the communications in a Chronology in CLASS (type: *Application*) and upload any email or electronic information to the CLASS Document Library.
Depending on the extent of the errors or missing information, staff either:

- make the necessary changes after speaking to the applicant; or
- return the application and request that the applicant make the changes and resubmit the application.

If the applicant authorizes staff to make a minor change or addition to an incomplete application, staff date and initial any changes made.

Applications for a Residential Child Care Operation:

Staff and the applicant for a residential operation communicate about an incomplete application through face-to-face meetings, phone calls, emails or a combination of these methods.

If the applicant communicates with staff via a text message, residential CCR staff:

- respond to the applicant through face-to-face meeting, phone call or email;
- document the communication in a Chronology in CLASS (type *Application*); and
- upload any email or electronic information to CLASS Document Library.

Depending on the extent of the errors or missing information, staff either:

- make the necessary changes after speaking to the applicant; or
- return the application and request that the applicant make the changes and resubmit the application.

If the applicant authorizes staff to make a minor change or addition to an incomplete application, staff date and initial any changes made.

See:

1310 Content and Organization of Child Care Regulation Records
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
Appendix 1000-1 Organizing Child Care Regulation Records

26 TAC Section 745.301

Texas Human Resources Code Section 42.047

3223.11 Providing Technical Assistance When an Application is Incomplete or Contains Errors

May 2021

The inspector provides technical assistance to the applicant each time the application is returned. Technical assistance includes setting a time limit for when the application must be resubmitted.

3223.2 Determining if the Governing Body on the Application is Accurate

May 2020

If the inspector suspects the applicant made an error in noting the type of governing body for the operation, then the inspector consults with his or her supervisor. The inspector and supervisor consult with Legal, if needed. If staff determine that the applicant made an error in choosing the type of governing body, the inspector follows 3223.1, If the Application is Incomplete or Contains Errors. Once the inspector determines the correct governing body type, the inspector enters the *Type of Governing Body on the Governing Body Designation* page in CLASS.

If an operation's governing body may have changed to another type of entity, the inspector consults with his or her supervisor and, if needed, Legal, to determine if a change in ownership occurred (see 3833 Change of Ownership).

3223.3 Additional Requirements for Certain General Residential Operation Applications

July 2021

When CCR receives an application for a permit to operate a general residential operation that intends to provide treatment to children with emotional disorders, the inspector reviews the application materials as soon as possible. If Form 2960, Application for a License to Operate a Residential Child Care Facility, Attachment C, General Residential Operations - Additional Operational Plan, was not submitted with the application, the inspector:

- calls the applicant;
- provides the applicant a copy of Form 2960, Attachment C; and
- requests the applicant submit a completed Form 2960, Attachment C, within five days.

An application for a general residential operation that intends to provide treatment services to children with emotional disorders is considered complete after the inspector has:

- reviewed all application materials for completeness;
- ensured that policies required to be submitted with the application comply with minimum standards; and
- documented the approval of the operational plan submitted on Form 2960, Attachment C, General Residential Operations – Additional Operational Plan.

3223.31 Reviewing the GRO Operational Plan

July 2021

The inspector reviews Form 2960, Application for a License to Operate a Residential Child Care Facility, Attachment C, to determine if the operational plan is adequate or whether to recommend changes to the plan that may improve the operation's relationship with the community where the GRO will be located.

The inspector discusses concerns with the applicant, returns the application and requests changes be made if the inspector:

- has concerns with the applicant's operational plan;
- has recommended changes to the operational plan that could improve the operation's relationship with the community where the operation will be located; or
- the policies submitted with the application do not comply with minimum standards.

The inspector's discussion with the applicant includes:

- the nature of the changes needed;
- a date by which the applicant must resubmit the application materials;
- informing the applicant that CCR must approve the operational plan before approving the application and before the operation can schedule the public hearing; and

- a description of any other application materials that the applicant must resubmit.

If the applicant is unable or unwilling to provide an acceptable operational plan, the inspector:

- staffs the issue with the supervisor at least five days before the date the inspector must return the application; and
- documents the staffing in a CLASS chronology entry (type *Application*).

3223.32 Documenting the Approved GRO Operational Plan for Applicants

Revision 23-3; Effective Sept. 22, 2023

After determining that the operational plan documented on Form 2960, Application for a License to Operate a Residential Child Care Facility, Attachment C, General Residential Operations – Additional Operational Plan, is adequate and before accepting the application, the inspector:

- documents approval of the operational plan in CLASS in a chronology entry (type *Application*); and
- uploads Form 2960, Attachment C to the CLASS Document Library site as outlined in 1310 Content and Organization of Child Care Regulation Records.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

3224 Accepting the Application

Revision 23-3; Effective Sept. 22, 2023

CCR staff accept the application when:

- the application is determined to be complete (see the Required Application Materials document on the CCR SharePoint site); and
- the materials submitted show compliance with relevant statutes, rules and minimum standards.

Procedure

CCR staff:

- accept the application in CLASS on the *Application/Issuance* page; and
- send CLASS Letter 2875 App Received and Accepted to the applicant stating that the application is complete and accepted.

Day care CCR staff create a file for the operation on the CLASS Document Library after accepting the application.

See:

1310 Content and Organization of Child Care Regulation Records
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
Appendix 1000-1 Organizing Child Care Regulation Records

26 TAC Section 745.243

3225 Returning an Application

February 2020

The inspector returns an application if:

- some of the required materials have not been submitted;
- some of the materials are not filled out completely; or
- the inspector cannot verify that the operation has paid the application fee.

See 5240 Verification of Fee Payments.

3225.1 Returning an Application for the First or Second Time

August 2020

If the application is incomplete, staff notifies the applicant by mailing CLASS letter 2870 App Return (First or Second). The notification letter must explain what information is needed to complete it and a time frame by which to resubmit the corrected application materials.

Once a subsequent application is received, staff has 21 days from the second receipt date of an application for a license, certificate, registration, or listing and 10 days from the second receipt date of an application for a compliance certificate to:

- review the revised application materials;
- send written notice acknowledging the application is complete and accepted or that the application is incomplete with an explanation of what information is needed and a time frame to complete it; and
- verify that the operation has paid the application fee if verification was not done previously.

For an operating applicant, staff follows up to ensure that:

- the application is resubmitted; or
- care for children is discontinued.

See Job Aid, How to Return an Application, on the CCR SharePoint site, especially for information concerning e-applications or when an applicant has not been responsive to CRR's attempts to contact the applicant.

See also:

3223.1 If the Application is Incomplete or Contains Errors
CLASS Online Help: Record an Application Decision

3225.2 Handling Applications Returned for the Third Time in a Year

Revision 22-4; Effective Sept. 20, 2022

If three applications are returned within a period of one year because they are incomplete or contain errors, an applicant may not reapply until one year from the date the last application was returned as incomplete. This applies to applications for a license, certificate, registration, and listing permits.

26 TAC Section 745.303

Procedure

When an application is returned for the third time as incomplete, CCR staff:

- sends CLASS Letter 2887 App Return (Final) to the applicant stating that HHSC rules prohibit applying for a license, certificate, registration, or listing permit for one year from the date a third application was returned as incomplete;
- includes in the notification the earliest date on which the individual may reapply for a license, certificate, registration, or listing permit; and
- conducts a follow-up inspection within 15 days of returning the application to verify the operation is closed.

See also:

3230 Withdrawal of an Application for a Permit
4320 Following Up with an Inspection
CLASS Online Help: Recording an Application Decision

3226 When to Delay a Decision on an Application

September 2015

Procedure

The inspector delays a decision on an application in the following situations:

- The operation is being investigated because of a report alleging violations of statutes, administrative rules, minimum standards, or abuse or neglect. The inspector must not accept the application until the investigation is complete.

26 TAC §745.327

- A background check match has been received, and the match is still being investigated for an applicant or non-client household member.
- The applicant is seeking a permit for a day care home and is younger than 18 years of age (if a listing permit) or 21 years of age (if a registration or license), but will meet the age requirement within the time frame noted in 3221 Time Frame for Reviewing and Making a Decision on the Application.

When there is a delay in making a decision on an application, the inspector notifies the applicant via phone, email, or regular mail and documents the correspondence in CLASS chronology.

3226.1 Reasons to Delay a Decision Specific to Residential Child Care Applications

September 2015

The inspector determines whether the applicant:

- has had a residential child care operation permit revoked in another state; or
- is barred from operating a residential child care operation in another state.

This is accomplished by reviewing:

- Form 2960 Application for a License to Operate a Residential Child Care Facility; or
- Form 2982 Personal History Statement.
- If the inspector's review of the information from the other state is not complete, the inspector delays a decision on an application.

If the information provided by the applicant shows that the revocation or bar from operating in another state may have taken place for reasons similar to those for which CCR would take adverse action, the inspector researches the out-of-state history.

The inspector documents the review in CLASS by selecting the checkbox for the *Out-of-State RC Revocation or Bar* indicator on the *Application/Closure* page in CLASS, and enters additional information in the CLASS chronology.

The inspector or supervisor takes one or more of the following actions:

- If more information is needed, the inspector discusses the reasons for the action with the applicant.
- The inspector contacts the authority in the state where the action took place to obtain additional information.
- If adverse action is recommended, the inspector consults with the supervisor, and the supervisor consults with a CCR attorney. The CCR attorney may need to review the appropriate state's regulatory structure to validate a negative compliance history.
- If denial of the residential license is recommended, the inspector denies the person a permit according to procedures in 7600 Adverse Actions. The inspector documents the reason for denial in the *Corrective and Adverse Action History* page in CLASS as a *Denial Due to Out-of-State History*.
- If the review of the out-of-state history exceeds the time frame required under 3220 Reviewing and Accepting the Application for a Permit, the inspector obtains approval from the supervisor and documents it in the CLASS chronology.

Texas Human Resources Code §42.046(e)

26 TAC §745.8605

When there is a delay in making a decision on an application, the inspector notifies the applicant via phone, email, or regular mail and documents the correspondence in CLASS chronology.

3230 Withdrawal of an Application for a Permit

3231 When an Applicant Withdraws an Application

Revision 23-4; Effective Nov. 30, 2023

An applicant may withdraw his or her application before CCR issues or denies the permit if the operation:

- is not operating and has no plans to open;
- has decided to apply for a different type of permit;
- needs additional time to comply with statutes, administrative rules, or minimum standards (the applicant may reapply when ready to proceed); or

- submitted a background check for a person who has an unsustained Central Registry finding that would be eligible for a risk evaluation if sustained, and the CBCU indicates that a risk evaluation would likely not be approved. See 3312 Conducting Background Checks.

26 TAC Sections 745.5001(b)(1); 745.5051(1)

Procedure

When a request to withdraw an application is received from an applicant, CCR staff confirm the request in writing on CLASS Form 2802 Application Withdrawal Letter.

If the applicant was providing care, the inspector conducts a follow-up inspection within 15 days of the date of withdrawal to verify that the operation has closed.

Refunding Fees

The application fee cannot be refunded, but the initial license fee is refunded if already paid. If the applicant reapplies within 30 days for the same type of operation, a new application fee is not necessary.

26 TAC Sections 745.401 and 745.519(2)

See:

4320 Following Up with an Inspection
5270 Fee Refund Guidelines
7600 Adverse Actions

3231.1 Basis to Deny a Permit for an Unsustained Central Registry Finding

Revision 22-4; Effective Sept. 20, 2022

Unless the applicant withdraws the application, the CCR staff must deny the applicant a permit if:

- a Central Registry search returns an unsustained finding that would be eligible for a risk evaluation if sustained; and
- the CBCU indicates that a risk evaluation would likely not be approved.

See 10451.1 When Monitoring Staff May Request a Risk Evaluation Prediction

3232 When CCR Recommends Withdrawal of an Application

Revision 22-4; Effective Sept. 20, 2022

CCR staff may recommend an applicant withdraw the application when:

- CCR cannot meet the time frame for accepting an application or issuing the permit because the applicant does not meet the requirements for acceptance or issuance; and
- there is not good cause to exceed the time frame.

Procedure

If the applicant agrees to withdraw the application, CCR staff confirms the withdrawal request in writing on CLASS Letter 2802 Appl Withdrawn Letter.

If the operation is currently providing care, the inspector conducts a follow up inspection within 15 days of the date of withdrawal to verify that the operation has closed.

See:

3221.1 Good Cause to Exceed the Time Frame for Processing an Application
3411 Good Cause to Exceed the Time Frame for Issuing a Permit
4123 Follow-Up Inspections

3232.1 Basis to Deny a Permit

Revision 24-2; Effective May 22, 2024

If the applicant does not withdraw the application and does not stop operating, the inspector must deny the applicant a permit based on the applicant's failure to comply with minimum standards, administrative rules, or the licensing statute.

Procedure

If the inspector denies the applicant a permit, the inspector notifies the applicant that the applicant must stop operating and may appeal the decision. The inspector conducts a follow-up inspection to make sure the operation is no longer providing care.

References

Follow-Up Inspections, 4123
Adverse Actions, 7600
Due Process Hearings, 5700

CLASS Online Help: Record an Application Decision and Close an Operation

26 TAC Sections 745.8605 and 745.8650

3300, Process for Determining Whether to Issue or Deny a Permit

3310 Evaluating Before Issuing a Permit

September 2015

After accepting an application, the inspector determines:

- compliance with the statutes, administrative rules, and minimum standards applicable to issuance; and
- the risk to children.

Texas Human Resources Code Sections 42.048; 42.072; 42.153; 42.203

Procedure

Before determining whether to issue or deny the permit, the inspector completes the activities in the items listed below for all operation types.

See:

2270 Residential Child Care Operations that Also Provide Child Day Care
3311 Checking the Sex Offender Registry
3312 Evaluating Background Checks
3313 Inspecting the Operation (Except Listed Homes)

3310.1 Following Up on Out-of-State Compliance History Before Issuing a License, Registration or Listing

August 2020

Before issuing a license, registration or listing to an applicant, CCR staff follows up on out-of-state compliance history if the application indicates that:

- another state revoked a permit to operate a residential child care operation held by the applicant; or
- the applicant is barred from operating a residential child care operation in another state.

Texas Human Resources Code §42.046(e)

Procedure

The inspector follows up on out-of-state compliance history by:

- requesting the applicant provide CCR with the other state's records relating to the revocation or bar; and
- consulting with Legal to determine whether the revocation or bar is an adequate ground to deny the applicant a permit in Texas.

3311 Checking the Sex Offender Registry

September 2015

Procedure

The inspector checks the sex offender registry on the Department of Public Safety website that lists the addresses of sex offenders, compares it with the address of the operation, and then documents the findings in CLASS chronology.

See 6520, Investigations of Matches to the Database of Sex Offenders, for procedures on processing a match. The inspector denies the application if a match requires it.

See also 7600 Adverse Actions.

3312 Evaluating Background Checks

Revision 22-6; Effective Dec. 19, 2022

Procedure

Before issuing a permit, the inspector reviews the *Eligibility* column on the *Background Check Results* page and then evaluates background check results for the persons identified in this chart:

Operation Type	Person	Eligibility required before issuing
Licensed child care home		
Registered child care home	All owners and Non-client household members	*Eligible* or *Conditional*
Listed family home		
Any other operation type	All owners	*Eligible* or *Conditional*

CCR may issue a permit without waiting for background results for other persons or roles at the operation if all other criteria for issuance are met.

26 TAC Sections 745.605, 745.631, 745.647

See:

3413 Criteria for Issuing a Compliance Certificate, Registration, or Listing
10112 Types of Background Checks
10121 Persons for Whom Operations Must Submit Requests for Background Checks
10130.3 Overriding Eligibility Determinations of Provisional for Certain Roles
10510 Types of Eligibility Determinations
10711 Determining Whether the Operation Submitted All Required Checks

3312.1 Unsustained Central Registry Findings

September 2015

The inspector may request that the Centralized Background Check Unit conduct a risk evaluation prediction if:

- an applicant or another individual has an unsustained Central Registry finding;
- a *Reason to Believe* finding against that person would result in adverse action being taken against the operation; and
- the finding:
  - is pending a due process hearing;
  - has not been released through an emergency release; and
  - would be eligible for a risk evaluation if sustained.

See 10470 Obtaining a Risk Evaluation Prediction for Applicants for a Permit

When to Deny

The inspector may deny a permit when there is an unsustained Central Registry finding on an applicant or another individual for whom a *Reason to Believe* finding would result in adverse action being taken against the operation.

The permit is denied if:

- the Legal division has approved the denial of the permit; and
- one of the following applies:
  - there is an emergency release of that finding;
  - the finding would bar the person if it were later sustained (see 10260 Handling Sustained Central Registry Findings); or
  - children are in care and the person has requested a due process hearing and the CBCU determines that a risk evaluation would not likely be approved if the finding were later sustained (see 10470 Obtaining a Risk Evaluation Prediction for Applicants for a Permit).

When to Issue

If the CBCU indicates that a risk evaluation would likely be approved, and if all other criteria for issuance are met, the inspector may issue the permit with conditions.

When to Delay the Decision

Licensing has good cause to exceed the time period for issuing a permit if the results of the background check indicate there is an active investigation for an applicant or another individual and a *Reason to Believe* finding might result in adverse action being taken against the operation.

See 3226 When to Delay a Decision on an Application.

If information about the Central Registry finding cannot be released to the applicant because the perpetrator is someone other than the applicant, the inspector can, without releasing any identifying information about the match, explain to the applicant that there is a problem with a background check and a permit cannot be issued until the background check is cleared.

3313 Inspecting the Operation (Except Listed Homes)

December 2015

After accepting the application for a license, certificate, compliance certificate, or registration, the inspector must conduct an inspection to determine whether the operation is in compliance with all applicable rules and minimum standards.

Procedure

The inspector:

- cites any statutes, administrative rules, and minimum standards the operation has not complied with and establishes dates by which the operation must be in compliance;
- follows up by inspection, mail, fax, or email to ensure that corrections of deficiencies have been made; and
- ensures any investigation alleging violations of statutes, administrative rules, or minimum standards is complete.

If the operation is providing care without a permit at the time of the inspection, the inspector cites a violation of the law. The inspector completes the procedures in 4159 Handling Resistance or Refusal to Allow Inspection, if the caregiver refuses to:

- admit staff or attempts to delay or obstruct inspection of the operation during hours that care is provided; or
- allow inspection of an area of the operation that affects or could affect the children's health, safety, or well-being.

Texas Human Resources Code §42.044

40 TAC §745.321

3313.1 Time Frames

September 2015

The inspection must occur within:

- 21 days of accepting the application for a license, certificate, or registration; and
- 10 days of accepting the application for a compliance certificate.

Supervisory approval is required to exceed these time frames. The inspector documents supervisory approval in a CLASS chronology.

40 TAC §745.321

3313.2 When to Announce an Application Inspection

September 2015

If the operation is not providing care, the inspection must be announced.

If the operation is providing care, the inspection may be announced or unannounced. The inspector may arrange an announced inspection when it is necessary for the applicant or caregiver to make alternate plans for the children during the evaluation.

3313.3 Abbreviated Inspection

September 2015

An abbreviated inspection may be conducted before issuance if the operation:

- is changing ownership with no change in policy or procedures or in the operation's staff who have contact with children; and
- is not on corrective or adverse action.

See 3313.4 Evaluating Compliance.

Texas Human Resources Code §§42.044; 42.153; 42.203

40 TAC §745.321

3313.4 Evaluating Compliance

Revision 22-6; Effective Dec. 19, 2022

Procedure

While processing an application for a permit, the inspector develops a plan to evaluate an operation's compliance with statutes, administrative rules, and minimum standards.

The following chart provides guidelines to develop the plan. More than one guideline may apply.

Situation	Plan for Evaluating Compliance
Operation is not providing care.	Include all applicable statutes, administrative rules and minimum standards not requiring the presence of children.
Operation is providing care.	Include all applicable statutes, administrative rules, and minimum standards.
Operation changes type of operation or adds a different type of operation.	Include all applicable statutes, administrative rules, and minimum standards related to the new operation type.
Licensed operation changes ownership (See 3833 Change of Ownership) and: • policies and procedures; or • staff who have direct contact with children (initial license required).	Include all applicable statutes, administrative rules, and minimum standards (including any rules or standards that have grandfather clauses).
Licensed operation changes ownership (see 3833 Change of Ownership), but: • does not change policies or procedures; • does not change staff who have direct contact with children; and • is not on corrective or adverse action.	Evaluate the minimum standards that confirm there is no change in policy or procedures or in staff who have direct contact with children. Also evaluate compliance with any statutes, administrative rules, or minimum standards that have grandfather clauses.
New owner applies after the operation has received notice of revocation.	Include all applicable statutes, administrative rules, and minimum standards.
Renewal of the initial license is required, as noted in 3520 Renewing an Initial License.	Evaluate compliance with all applicable statutes, administrative rules, and minimum standards, if the initial license was renewed because of a pattern of deficiency. Evaluate compliance with limited standards, if the initial license was renewed because the

Situation	Plan for Evaluating Compliance
	operation was not operating. Assess the risk to children to determine whether an inspection is needed before issuance.

Day care staff may use the Form 2936TSP Temporary Shelter Program, available on the CCR SharePoint site, when evaluating compliance during an application inspection for a Temporary Shelter Program.

Residential care staff may use the following forms when evaluating compliance during an application inspection:

- Form 2960 Attachment A General Residential Operations Documentation Required at Application
- Form 2960 Attachment B Child-Placing Agency Documentation Required at Application

3313.5 Processing Controlling Person Submissions

Revision 23-4; Effective Nov. 30, 2023

Procedure

The inspector ensures that all controlling person information that the operation submits is processed according to policies and procedures in 5400 Controlling Persons. An applicant for a compliance certificate does not need to submit controlling person information.

When a Permit Is Denied

The inspector denies a permit if a controlling person match requires it.

See:

5452 Eligibility to Receive a Permit After Finding a Match for an Applicant
5453 Eligibility to Serve As a Controlling Person After Finding a Match

3313.6 Confirming Fire, Sanitation and Gas Inspections (Except for Listed Homes and Child-Placing Agencies)

August 2019

Procedure

The inspector ensures that child care centers, school-age programs, before- and after-school programs, general residential operations, and independent foster homes have approved fire, sanitation and gas inspections, if the operation uses natural or liquid propane (LP) gas, except these inspections are not necessary if:

- the operation is located in a public school building that is maintained by an independent school district; or
- a sanitation inspection is not available from the local sanitation official (in which case, the inspector reviews documentation obtained by the operation from a county judge that explains why a sanitation inspection is not available).

If a temporary shelter child care facility, small employer-based child care facility, registered child care home, or licensed child care home receives a fire or sanitation inspection in the political subdivision where the operation is located and the applicant makes the report available to Licensing staff, Licensing staff:

- reviews the documentation for any restrictions noted by the political subdivision; and
- adds a condition to the permit to encompass any restrictions noted by the political subdivision.

Texas Human Resources Code §§42.0443; 42.153; 42.203

26 TAC
Sections 744.2501; 744.3501; 744.3651; 746.3401; 746.5101; 746.5401; 747.3201; 747.4901; 748.3001; 748.3061; 748.3101; 750.1101

3320 Additional Activities to Complete for Applicants for a Licensed Residential Child Care Operation

3321 Denial of a Permit or Amendment for Failure to Comply with Public Notice and Hearing Rules

July 2021

CCR may deny a permit, an amendment to the permit to increase capacity, or an amendment to the permit to add treatment services for children with emotional disorders for failure to comply with the public notice and hearings rules in 26 TAC §§745.273 and 745.275.

CCR determines that:

- the community has insufficient resources to support the number of children proposed to be served;
- issuance of the license or amendment of the permit would significantly increase the ratio in the local school district of students enrolled in a special education program to students enrolled in a regular education program and the increase would adversely affect the children proposed to be served; or
- issuance of the license or amendment of the permit to increase the capacity would have a significant adverse impact on the community and would limit opportunities for social interaction for the children proposed to be served.

Texas Human Resources Code §42.0461

40 TAC §§745.273; 745.275; 745.8651

3322 Fee Exemptions for Certain Residential Operations

July 2021

A nonprofit residential operation is exempt from paying fees if the operation:

- does not charge for the care that the operation provides; or
- provides residential care for children in the conservatorship of DFPS.

26 TAC §745.503

Procedure

To indicate that a residential operation is exempt from paying fees, the inspector selects "Yes" from the *Exempt from Operations Fee* drop-down box on the operation's *Main* page in CLASS after the application has been accepted.

For an operation planning to provide care to children in the managing conservatorship of DFPS, staff refer to 5211.1 Residential Child Care Operations that Provide Care to Children in the Managing Conservatorship of DFPS prior to issuing the operation's full permit.

See 5211 Exemption from Fees

3323 Identifying, Associating, and Documenting Information from an Associated Operation (RCCR Only)

Revision 24-2; Effective May 22, 2024

Procedure

Identifying the Applicant

RCCR staff assess if the applicant is associated with an existing or closed residential child care operation when reviewing an application for a general residential operation (GRO) or child-placing agency (CPA) license. They do this by determining if the applicant:

- is applying for an additional license to operate a residential child care operation in a different location;
- is reapplying for a new license after voluntarily closing a residential child care operation; or
- had a change in ownership and the new owner is associated with an existing or closed operation as outlined in 3323.1 When to Associate Ownership (RCCR Only).

3323.1 When to Associate Ownership (RCCR Only)

Revision 24-2; Effective May 22, 2024

RCCR staff associate a new owner with an existing or closed operation if staff find:

- any controlling person from the existing or closed operation serves or intends to serve as a controlling person in the new operation; or
- the new owner is related by a third degree of connection or second degree of marriage per 26 TAC Section 745.21 to a controlling person of the existing or closed operation and includes:
  - a sole proprietor;
  - any partner of a partnership; or
  - any member of the governing body of a corporation.

If the applicant is associated with an existing or closed operation as described in 3323 Identifying, Associating, and Documenting Information from an Associated Operation (RCCR Only), RCCR staff assess the previous five-year compliance history for each associated operation to decide whether to:

- issue a license;
- issue a full license instead of an initial license; and
- add any conditions to the license.

Applicant Intends to Contract with DFPS or Single Source Continuum Contractor

If the applicant demonstrates an intent to contract with DFPS or a Single Source Continuum Contractor (SSCC), RCCR staff determine if:

- the associated operation has a history of heightened monitoring within the previous five years; and
- the applicant operation should be placed on heightened monitoring.

References

Assessing the Five-Year Compliance History of the Applicant and Associated Operation (RCCR Only), 3323.3
Additional Requirements if the Applicant or an Associated Operation Has a History of Heightened Monitoring (RCCR Only), 3323.4
Applying Additional Types of Conditions or Restrictions, 3424
Full License for an Operation that Changes Ownership, 3532

3323.2 Documenting Associated Operation History in CLASS (RCCR Only)

Revision 24-2; Effective May 22, 2024

Procedure

If the applicant meets the criteria in 3323 Identifying, Associating, and Documenting Information from an Associated Operation (RCCR Only), RCCR staff document the operation history on the *Operation History* page in CLASS, except when the associated operation:

- applied for a license but withdrew the application before CCR issued an initial license; or
- had a license for a different operation type, such as an applicant applying for a GRO license and the prior operation was a CPA.

If the applicant is associated with an open operation through a shared governing body or controlling person, RCCR staff document the associated open operation numbers on the *Operation History* page in CLASS.

Operation History Page in CLASS

RCCR staff document all associated operation numbers on the *Operation History Page* in CLASS by:

- selecting *+Add New*;
- searching for the associated operation number; and
- selecting the hyperlink for the operation name.

The associated operation will display on the *Operation History* List.

3323.3 Assessing the Five-Year Compliance History of the Applicant and Associated Operation (RCCR Only)

Revision 24-3; Effective Aug. 15, 2024

Procedure

Before conducting the application inspection for an applicant that meets the criteria in 3323 Identifying, Associating, and Documenting Information from an Associated Operation (RCCR Only), the inspector takes the following steps to assess the compliance history of the applicant and each associated operation documented on the *Operation History* section in CLASS:

1. Evaluate the five-year compliance history, including:
    - the number of abuse or neglect intakes;
    - confirmed abuse or neglect findings;
    - citations for corporal punishment;
    - any other trends and patterns in deficiencies; and
    - any other trends and patterns in enforcement actions that HHSC recommended or imposed on the operation.
2. Assess how the five-year compliance history may impact the applicant's ability to operate a residential child care operation and the risk in CCR issuing a license to the applicant.
3. Document as a CLASS Chronology:
    - the five-year compliance history of each operation reviewed; and
    - how the inspector considered the information.
4. If the risk identified in the five-year compliance history is high, consult with regional management and decide to issue or deny the license.

During the application inspection, the inspector discusses with the applicant:

- any risks identified because of the five-year compliance history review; and
- steps the permit holder can take to mitigate risk to children.

The inspector documents this discussion as a CLASS Chronology.

3323.4 Additional Requirements if the Applicant or an Associated Operation Has a History of Heightened Monitoring (RCCR Only)

Revision 24-2; Effective May 22, 2024

If the applicant or an associated operation has a history of heightened monitoring, RCCR staff consult with the CCR director of heightened monitoring to discuss adding a condition to the initial license that the new operation will be placed on heightened monitoring.

If the applicant or an associated operation has a history of heightened monitoring and has hired or intends to hire a substantial number of employees from a previous operation, RCCR staff and the RCCR director of regional Operations discuss adding conditions related to requirements for employee screening, employee training, or both to the initial license.

Procedure

If the applicant meets the criteria in 3323 Identifying, Documenting and Assessing Information from an Associated Operation (RCCR Only), RCCR staff determine if the applicant or any of the associated operations documented on the *Operation History* page in CLASS:

- is currently on heightened monitoring;
- met the criteria for heightened monitoring and did not successfully complete heightened monitoring; or
- met the criteria for heightened monitoring again after successfully completing it in the preceding five years.

When the Applicant or Associated Operation Meets the Criteria Above

If CCR decides to issue an initial license, RCCR staff:

- meet with the CCR director of heightened monitoring to confirm the new operation meets the criteria for heightened monitoring;
- add a condition to the initial license that the new operation will be placed on heightened monitoring; and
- notify the CCR director of heightened monitoring that RCCR issued the initial license.

If the applicant has employed or intends to employ a substantial number of employees from the previous operation, RCCR staff and the RCCR director of regional operations meet to discuss adding the following conditions to the initial license. The operation must meet these conditions before the employees have contact with children :

- employee screening requirements;
- employee training requirements; or
- both.

RCCR staff document the decision as a CLASS Chronology.

When assessing if the operation has employed or intends to employ a substantial number of employees from the previous operation, RCCR staff review the overall number and the roles of the employees from the previous operation and at the applicant operation. Staff consider if:

- the applicant operation has employed or intends to employ at least 50% of the people it employed at the previous operation, which would be a substantial number regardless of the employees' roles.
- the applicant intends to hire at least 50% of the caregivers and supervisors that were employed at the previous operation, which would be a substantial number of employees even if the applicant does not hire or intend to hire 50% of the overall people it employed at the previous operation.
- at least 50% of the employees at the applicant operation are or will be from the previous operation, which would be a substantial number regardless of the employee's roles or if the applicant operation has employed or intends to employ at least 50% of the people it employed at the previous operation.
- at least 50% of the caregivers and supervisors at the applicant operation are or will be from the previous operation, which will be a substantial number regardless of if the applicant operation has employed or intends to employ at least 50% of the people it employed at the previous operation.

If the number of staff from the previous operation do not meet the percentage thresholds described in the preceding bullets, staff may meet with the RCCR director of regional operations to consider adding a condition requiring additional screening or training because of identifiable issues.

If the decision is to add a condition about employee screening, training requirements, or both to the initial license, RCCR staff add the condition before issuing the permit.

Reference

Conditions for Applicants with a History of Heightened Monitoring (RCCR Only), 3424.5

3324 Providing the Survey Link for "No Trespassing" Signs Information During Application Inspection

Revision 23-2; Effective June 26, 2023

During the application inspection at an operation that has applied for a GRO permit offering residential treatment services, CCR staff provide the applicant the link to the survey to request "No Trespassing" signs. For a description of what the survey captures, see 3150 "No Trespassing" Signs for Certain General Residential Operations.

If the applicant will be licensed to provide human trafficking services, the applicant is not required to list the name and address of the operation on the signs.

Staff document sending the survey link to the operation as technical assistance.

See:

4154.2 Documenting Technical Assistance
26 TAC Section 748.3319
Texas Human Resources Code Section 42.068

3330 Director and Primary Caregiver Qualifications for Licensed Child Day Care Operations

Revision 25-1; Effective Feb. 7, 2025

An operation must designate a person to serve as a director or primary caregiver. A person designated as a director or primary caregiver may not serve in a similar role at another operation.

CCR uses the applicable minimum standards to evaluate the qualifications of the designated director or primary caregiver as part of the application process or when an operation notifies CCR of a change in director.

If CCR determines the designated director meets all qualifications CCR will issue a director's certificate.

Reference

26 TAC Sections 744.1001, 746.1001, 747.1101, 746.1015, 746.1017, 744.1015, 744.1017 and 747.1107

3331 Designated Director Does Not Meet Qualifications

Revision 25-1; Effective Feb. 7, 2025

A person who does not meet the applicable director qualifications may serve as director if the operation and person qualify for a waiver or an interim director certificate.

An applicant or designee of the operation may request a waiver for the director through the operation's CCR online provider account or by submitting Form 2937 Child Care Regulation Waiver/Variance Request to CCR.

A licensed child-care center with an initial permit may designate as interim director a person who meets less than half of the educational requirements as long as the person meets the additional requirements to serve as director. If CCR determines the person qualifies to serve as interim director, CCR will issue the center a certificate to allow the person to serve as the center's interim director. The interim director certificate will be valid for a maximum of 12 months.

Reference

HRC 42.04201

26 TAC Sections 746.1067, 746.1069,746.1017 and 746.1015

Waivers and Variances, 5100

3332 Identifying, Associating, and Documenting Information from an Associated Operation (DCCR Only)

Revision 24-2; Effective May 22, 2024

Identifying the Applicant

When reviewing an application, DCCR staff assess if the applicant has a current or previous permit by deciding if the applicant:

- is applying for an additional or different type of permit in a different location;
- is reapplying for a new permit after voluntarily closing; or
- had a change in ownership and is associated with a closed or existing operation as outlined in 3332.1 When to Associate Operations (DCCR Only).

Assessing the Associated Operation History

If the applicant is associated with an existing or closed operation as described above, DCCR staff assess the previous five-year compliance history to decide:

- to issue a permit; and
- if any conditions need to be added to the permit.

3332.1 When to Associate Operations (DCCR Only)

Revision 24-3; Effective Aug. 15, 2024

Procedure

DCCR staff associate a new application with an existing or closed child day care operation if:

- the operations have the same governing body;
- the operations have controlling persons in common in the following roles:
  - governing body;
  - director if also the owner;
  - chief executive officer;
  - owner;
  - primary caregiver in child care home;
  - adult living in child care home if the person was designated as a controlling person in the previous operation and CCR took adverse action against the previous operation; or
  - spouse; or

- the new owner is related by a third degree of connection or second degree of marriage per 26 TAC Section 745.21to a controlling person of the existing or closed operation, as noted on Form 2760 Controlling Person - Child Care Regulation. The new owner includes:
  - a sole proprietor;
  - any partner of a partnership; or
  - any member of the governing body of a corporation.

When Not to Associate Operations

DCCR staff do not associate a new application with an existing or closed operation if the applicant:

- previously applied for a permit but withdrew the application and does not have a history of operating without a permit; or
- is associated with an operation that closed 10 years or longer from the date the operation submitted the new application.

3332.2 Documenting Associated Operation History in CLASS (DCCR Only)

Revision 24-3; Effective Aug. 15, 2024

Procedure

If the applicant meets the criteria in section 3332.1 When to Associate Operations (DCCR Only), DCCR staff document the operation history on the *Operation History* page in CLASS for the applicant operation and the open operation as described below.

Operation History Page in CLASS

DCCR staff document all associated operation numbers on the *Operation History* page in CLASS by:

- selecting *+Add New*;
- searching for the associated operation number; and
- Selecting the hyperlink for the operation name.

The associated operation will display on the *Operation History List*.

3332.3 Associating Chain Operations (DCCR Only)

Revision 24-3; Effective Aug. 15, 2024

Procedure

DCCR staff associate operations that meet the criteria in section 3332.1 When to Associate Operations (DCCR Only), including operations that belong to a *Main Chain* in CLASS. CLASS may indicate some chain operations by a second set of operation numbers if a *Main Chain* exists. DCCR staff may need to contact the governing body of each operation to confirm the operations are associated.

DCCR staff do not create *Main Chain* operations in CLASS. Instead, DCCR staff associate the chain operations on the *Operation History* page in CLASS per section 3332.2 Documenting Associated Operation History in CLASS (DCCR Only).

3340 Operations that are Not Contiguous

Revision 24-2; Effective May 22, 2024

CCR may issue a single permit to the governing body of a licensed day care center, before or after-school program, school-age program, or general residential operation with multiple buildings that are not contiguous if:

- the buildings are near each other and demonstrate a single operation;
- the permit lists the names and addresses of the appropriate operations; and
- they each operate the same type of program regardless of when a license was issued.

3341 Child Day Care Operations that are Not Contiguous

Revision 24-2; Effective May 22, 2024

CCR may issue a single permit to a child care center, before or after-school program, or school-age program with buildings that are not contiguous if:

- the buildings are located:
  - next to each other, on the same property;
  - across the street from each other; or
  - on the same city block; and
- the operation demonstrates it operates as a single operation as evidenced by:
  - patterns of staffing;
  - finance; and
  - administrative supervision.

Reference

26 TAC Section 745.201 and 745.385

3342 Residential Care Operations that are Not Contiguous

Revision 24-2; Effective May 22, 2024

CCR may issue a single permit to a general residential operation with buildings that are not contiguous if:

- the buildings are located:
  - next to each other;
  - across the street from each other; or
  - on the same city block; and
- the operation must demonstrate the program provided in the noncontiguous building operates under the same:
  - staffing, including hiring practices;
  - financial systems; and
  - administrative supervision, including policies and procedures.

The operation can continue to operate in noncontiguous buildings that were approved before Sept.1, 2005, if the license is still valid and the actual physical distance between the buildings makes it possible to provide appropriate management and supervision at each building.

3350 Residential Child Care Operations that Also Provide Child Day Care

Revision 24-2; Effective May 22, 2024

3351 Foster Homes that Also Provide Child Day Care

Revision 24-2; Effective May 22, 2024

Foster homes that provide child day care must be verified by a child-placing agency (CPA) and have a child day care permit from CCR.

DCCR staff regulate foster homes that provide child day care in the same way staff regulate other child day care operations.

Approval to Provide Both Foster Care and Day Care

The foster home must meet the following conditions before the home may provide both foster care and day care:

1. The director of field for residential child care and the director of field for day care approve the home to provide both foster care and day care.
2. The home cares for no more than six children, including:
   - any biological and adopted children of the caregiver's who live in the foster home;
   - any children or adults receiving foster or respite child care; and
   - children for whom the family provides child day care.
3. The home meets the requirements for a child day care permit, including payment of all fees.
4. The home meets the requirements in 26 TAC Section 749.2493 and 26 TAC Section 745.375.

Reference

26 TAC Section 749.2551

3352 General Residential Operations that Also Provide Child Day Care

Revision 24-2; Effective May 22, 2024

All general residential operations (GROs) that provide child day care must have a child day care permit.

DCCR staff regulate child day care programs at GROs in the same way staff regulate other child day care operations.

A GRO must meet the following conditions before providing both residential child care and child day care:

a. The plan to provide day care is approved by the director of field for Residential Child Care and the director of field for Day Care.
b. Is not licensed to provide treatment services for emotional disorders.
c. Provides day care services separately from residential child care services.
d. Hires separate employees except for janitorial and food services staff for each program.
e. Meets the requirements for a child day care permit.
f. Meets the requirements for a GRO.

References

Definitions of Terms for general residential operation

26 TAC Sections 745.33 and 745.37(3)

3400, Issuance of a Permit

3410 When to Issue a Permit

October 2019

The inspector must determine whether to issue a permit within:

- 30 days after accepting an application for a compliance certificate; or
- two months (see the definition of *date-to-date* in Definitions of Terms) after accepting an application for a license, certificate, registration, or listing.

The inspector either:

- mails the license, certificate, compliance certificate, registration, or listing permit; or
- mails a letter notifying the applicant of the intent to deny the permit.

See:

3310 Evaluating Before Issuing a Permit
Texas Human Resources Code Section 42.046; 42.153; 42.203
26 TAC Section 745.321

3411 Good Cause to Exceed the Time Frame for Issuing a Permit

Revision 22-4; Effective Sept. 20, 2022

CCR may have good cause to exceed its time frame for issuing a permit when:

- there are at least 15% more applications being processed than in the same quarter of the previous year;
- the delay is caused by another public or private entity that must be relied on to process all or part of the applications received;
- the operation is the subject of a pending investigation; or
- other conditions exist that give good cause for exceeding the time frames.

26 TAC Section 745.327

3412 Criteria for Issuing an Initial License

Revision 23-2; Effective June 26, 2023

Procedure

The inspector issues an initial license to an applicant when:

- the operation is in compliance with applicable statutes, administrative rules and minimum standards;
- the operation has paid the fee for the initial license, unless the operation is exempt from paying permit fees (see 5211 Exemptions from Fees); and
- one of the following situations exists:
  - The operation is not currently providing care but meets the appropriate minimum standards except those with which compliance cannot be determined in the absence of children.
  - The operation has changed ownership, which has resulted in changes to policy and procedure or direct care staff (see 3833 Change of Ownership).
  - The operation is providing care and is not currently licensed.
  - The operation has a license and applies for an additional permit to offer a new type of child care.

See:

5240 Verification of Fee Payments

26 TAC Section 745.345; 745.503

Texas Human Resources Code Section 42.051

3413 Criteria for Issuing a Compliance Certificate, Registration, or Listing

October 2019

Procedure

The inspector issues a compliance certificate, registration, or listing when the operation has met statutes, administrative rules and all appropriate minimum standards, as applicable.

3420 How to Prepare the Permit

3421 How to Prepare an Initial License

August 2021

The inspector updates the *Operating Status* on the *Main Operation* page in CLASS by selecting *Yes* and updating the *Effective Date*.

The inspector issues the initial license with restrictions.

The effective date of the initial license is the date the inspector sends or gives the license to the license holder. The initial license is valid for six months.

Texas Human Resources Code Section 42.048(b)

3421.1 Child Day Care

October 2019

Procedure

Form 2830, Child Day Care License

The inspector prepares CLASS Form 2830 Child Day Care License, and issues the initial license with the following information documented:

- capacity:
  - for licensed child care centers, the capacity for infants through age 17 months and capacity for children age 18 months and older;
  - for licensed child care homes, the total capacity;
- exact hours, days and months of operation;
- children's ages; and
- any conditions.

Statute provides for the issuance of a license to care for children under age 14. If an operation also provides care for children ages 14 through 17, the inspector records this information in CLASS.

Form 2803, Child Care Issuance Letter

The inspector prepares CLASS Form 2803 Child Care Issuance Letter and mails it with the license to the permit holder.

Texas Human Resources Code Section 42.048(b)

26 TAC Section 745.345

3421.2 Residential Child Care

September 2015

Procedure

Form 2907, Residential Child Care Permit

The inspector prepares the permit using CLASS Form 2907 Residential Child Care Permit, and issues the permit with the following restrictions:

- capacity (except for a CPA);
- gender and ages of children; and
- types of services offered by the operation, as shown in 3421.21 Types of Services Included as Restrictions.

The child-placing agency's license must include a statement on the first page of the license that indicates the number of branch offices. The name and address of each branch office is noted on page two of the permit.

Texas Human Resources Code §42.048

26 TAC Section 748.63, 749.63; 749.303; 749.1101; 750.61

Form 2803 Child Care Issuance Letter

The inspector mails the permit to the permit holder with CLASS Form 2803 Child Care Issuance Letter, showing the specific conditions noted on Form 2960 Application for a License to Operate a Residential Child Care Facility, then records applicable information in CLASS.

3421.21 Types of Services Included as Restrictions

September 2015

Procedure

The inspector may document on the license that the operation may care for children up to 18 years of age.

26 TAC Section 748.1931; 749.1103; 749.1105; 749.2651; 750.501

The inspector must select the applicable care type and services from the following sections on the *Residential Care Main Operation* page in CLASS:

- *Care Type*
- *Child Care Services Provided (not optional)*
- *Programmatic Services Provided*
- *Treatment Services Provided*
- *Child Placing Services (CPA only)*

Only general residential operations (GROs) that offer emergency care services may provide respite child care services.

26 TAC Section 748.75; 748.4261(b)

3422 How to Prepare a Compliance Certificate

August 2021

The inspector updates the *Operating Status* on the *Main Operation* page in CLASS by selecting *Yes* and updating the *Effective Date*.

The inspector issues the compliance certificate with restrictions. The effective date of the permit is the date the inspector sends or gives it to the permit holder.

Texas Human Resources Code §§42.153, 42.203

26 TAC §745.321

Procedure

Form 2845 SEBCC or Form 2846 TSP Certificate

The inspector prepares the compliance certificate using CLASS Form 2845 SEBCC Certificate or CLASS Form 2846 TSP Certificate, and issues the compliance certificate with the following information documented:

- the total capacity (no more than 12 for small-employer based operations and at least 7 for temporary shelter child care operations);
- all age categories of children (infants, toddlers, pre-kindergarten, and school age); and
- any conditions.

Form 2843, SEBCC Issuance Letter, or Form 2843a, TSP Issuance Letter

The inspector prepares Form 2843 SEBCC Issuance or Form 2843a TSP Issuance Letter, located on the CCR SharePoint site, and mails with the compliance certificate to the permit holder.

Texas Human Resources Code §§42.151; 42.201

3423 How to Prepare a Registration and Listing

August 2021

CCR staff update the *Operating Status* on the *Main Operation* page in CLASS by selecting *Yes* and updating the *Effective Date*.

The effective date of the registration or listing permit is the date the CCR staff send or give the permit to the permit holder.

CCR staff issue a registration or listing in both English and Spanish if the most recent federal census shows that more than one-half of the population is of Hispanic origin or Spanish-speaking in:

- a municipality; or
- a commissioner's precinct in a county.

See the U.S. Census website for more information.

Texas Human Resources Code §42.052

Procedure

CCR staff take the following steps based on the type of operation:

Registered Home	Listed Home Caring for Unrelated Children	Listed Home Caring for Related Children Only
prepares the registration permit using CLASS Form 2834 *Registered Child-Care Home Permit*.	prepares CLASS Form 2871 *LH Issuance Letter*.	opens CLASS form *HHSC Letterhead 2834b* on the *Issuance* page, copies content from Form 2876 *Notification of LFH Relative Care Issuance* found on the CCR SharePoint site, and pastes content into CLASS form *HHSC Letterhead 2834b*.
mails the registration permit with CLASS Form 2834a *Child Care Home Issuance Letter*.	mails the issuance letter to the listed family home with the following documents from the *TA Library*: 1. Checking the Sex Offender Registry; and	mails the issuance letter to the listed family home with the following documents from the *TA Library*: 1. Checking the Sex Offender Registry; and 2. Child Safety Guide.

Registered Home	Listed Home Caring for Unrelated Children	Listed Home Caring for Related Children Only
	2. Child Safety Guide.	

If the listed family home will care for related children only, CCR staff:

- enter "0" in the *Total Licensed Capacity* field in the *Restrictions* section on the *Issuance* page in CLASS; and
- document the following statement in the *Comments* text box on the *Issuance* page: "Listed to care for ONLY related children. Reference Human Resources Code 42.002(16), "Children who are related to the caretaker."

26 TAC §745.341

3424 Applying Additional Types of Conditions or Restrictions

Revision 24-2; Effective May 22, 2024

After getting supervisory approval, the inspector may set more conditions or restrictions if circumstances warrant based on:

- risk to children, including an unsustained Central Registry finding;
- failure to comply with minimum standards; and
- for residential child care operations, the assessment of the prior permits per 3323 Identifying, Associating, and Documenting Information from an Associated Operation (RCCR Only).

The permit may be denied or revoked if conditions or restrictions are not met.

3424.1 Results of Background Checks

Revision 24-1; Effective Feb. 20, 2024

Procedure

The inspector may impose conditions because of information obtained through a Central Registry or criminal history check. However, conditions are not acceptable measures to limit the presence of a person who lives in an operation if he or she is:

- a permit holder; or
- a person who must not be present in an operation while children are in care.

References:

10241 Notifying the Designated Perpetrator of the Central Registry Background Results and Offering Due Process
10310 Acting on the Results of a Criminal History Check

3424.2 Deficiencies that Require Limits on Certain Activities

September 2015

Procedure

The inspector may impose conditions to limit certain activities such as providing infant care or providing transportation because of previous deficiency with applicable minimum standards.

Examples of Special Conditions

Condition: Children under six years old are restricted to the first floor.

Condition: The permit holder's spouse must not transport children in care.

The inspector adds a more complete explanation to the issuance letter if needed.

3424.3 Fire and Sanitation Reports and Other Local Ordinances

September 2015

Procedure

The inspector is not responsible for enforcing local rules and ordinances unless those rules or ordinances relate to:

- the operation receiving approved fire and health inspections; or
- other requirements in the minimum standards relating to health and safety.

The inspector takes into consideration the following when setting the capacity on a permit:

- an inspection report (fire or sanitation) prohibits the use of certain levels of the operation for all or for certain age groups or prohibits the use of certain space; or
- a Certificate of Occupancy related to a fire, health, or building restriction sets a capacity lower than licensing standards would normally allow.

See 3313.6 Confirming Fire and Health Inspections (Except for Listed Homes)

3424.4 Special Services for Residential Operations

September 28, 2018

Procedure

If a type of service offered by an operation is not listed as a restriction on the permit and is a service included in the applicable minimum standards, the inspector adds it as a condition to the permit.

Special services include:

- *(*Interstate Compact on the Placement of Children (ICPC)
- *Young Adult Care*
- *International Adoptions*
- *Physically Challenged*
- *Human Trafficking*
- *Office of Refugee Resettlement*

If more than one type of programmatic service is offered in addition to therapeutic camp services at a general residential operation (GRO), add it as a condition to the permit to reflect the appropriate age range for that program.

A child-placing agency or independent foster home that requests to provide emergency services must have that service included as a condition on the permit.

40 TAC §745.4201

26 TAC §748.4403

3424.41 Emergency Services for Child-Placing Agencies and Independent Homes

September 2015

Procedure

A child-placing agency or independent foster home that requests to provide emergency services must have that service included as a condition on the permit.

The inspector also follows these procedures for a child-placing agency (CPA) or independent foster home that wants to accept a child for placement from law enforcement:

- Before accepting a child from a law enforcement officer, the operation must ask the inspector for authorization by submitting Form 2961 Request to Accept Children from Law Enforcement.
- After receiving the request, the inspector must:
  - review the operation's compliance history to ensure the operation is not on corrective action or under any adverse action;
  - review the operation's emergency admissions policy to determine if it is equipped to accept this type of emergency admission; and
  - add that condition to the permit if the inspector determines that the operation should be authorized to accept this type of emergency admission.

40 TAC §§745.4201-745.4205

26 TAC §§749.1181-749.1189; 750.501(3)

3424.5 Conditions for Applicants with a History of Heightened Monitoring (RCCR Only)

Revision 24-2; Effective May 22, 2024

Procedure

If the applicant or an associated prior operation number has a history of heightened monitoring, CCR staff follow the procedures in 3323.4 Additional Requirements if the Applicant or an Associated Operation Has a History of Heightened Monitoring (RCCR Only) to determine which condition(s) must be added to the initial license. CCR staff add any required condition(s) to the initial license before issuance.

3424.6 Temporary Conditions

May 2021

A temporary condition may be set for deficiencies with minimum standard rules that do not pose a risk to children if compliance will be achieved within three months.

3425 Amend the Permit When Necessary

September 2015

Procedure

Adding conditions may require amending a current permit. See 3810 Circumstances That May Require Amending the Permit.

3430 Recommending Denial of a Permit

September 2015

Procedure

The inspector does not issue a permit if the operation:

- does not comply with administrative rules, minimum standards, or the law; or
- the applicant knowingly and willfully provides false information during the application process.

Texas Human Resources Code §§42.052; 42.072; 42.163; 42.210

40 TAC §745.8605(1)

If recommending denial, the inspector submits the documentation to the supervisor.

If the supervisor and district director or manager concurs with the recommendation, the inspector consults with a Licensing attorney before denying the permit.

See 7600 Adverse Actions.

3500, Steps to Take After Issuing the Initial License

3510 Evaluating During the Initial License Period

July 2018

The initial license period allows an operation to demonstrate understanding of minimum standards and ensure a safe environment for children with minimal monitoring by Licensing.

The inspector provides technical assistance during this time to help the provider develop the knowledge needed to maintain compliance.

If an operation's deficiencies result in the inspector making a determination that the operation poses a risk to the health and safety of children, Licensing denies the full license.

Texas Human Resources Code §§42.047; 42.048; 42.072

TAC §§745.343; 745.347; 745.8605; 745.8607

See also:

3511 Conducting Inspections During the Initial License Period
3520 Renewing an Initial License
3531 Time Frame for Issuing a Full License
4154 Technical Assistance
7600 Adverse Actions

3511 Conducting Inspections During the Initial License Period

October 2019

In order to determine whether an operation demonstrates the ability to comply with law, administrative rules, and minimum standards on a continuing basis during the initial license period, the inspector must inspect the operation while children are in care.

3511.1 Frequency of Inspections

October 2019

Within six months of issuing the initial license, the inspector conducts at least three unannounced initial inspections while unrelated children are in care to determine whether the applicant operation is meeting applicable law, administrative rules, and minimum standards on a continuing basis. If there are no unrelated children in care, the inspector may announce the inspections.

If the initial license is renewed for another six months, the inspector conducts at least three more initial inspections as described above.

The inspector obtains supervisory approval before conducting fewer than three inspections in each six-month period.

26 TAC §745.351

Procedure

The inspector inspects the operation:

- within two months after issuance of the initial license;
- at reasonable intervals between the inspections; and
- at least 30 days before expiration of the license.

The inspector evaluates compliance with all applicable law, administrative rules, and minimum standards during the initial period, and does the following:

- plans and conducts the inspections according to the information in 4140 Preparing for Inspections and 4150 Conducting Inspections;
- discusses the results of the inspection at the conclusion of each inspection as required by 4170 Conducting the Exit Conference; and
- sends a copy of the CLASS Form 2936 Child Care Facility Inspection to the permit holder and those as required by Appendix 3000-2: Notifying the Operation.

If the inspector obtains supervisory approval to conduct fewer than three inspections in each six-month period, the inspector documents supervisory approval in CLASS *Chronology*.

Inspecting Child-Placing Agency (CPA) Branch Offices During the Initial License Period

Procedure

If a CPA opens a branch office during the initial license period, the inspector conducts a monitoring inspection at the branch office and evaluates all minimum standards within two months after the branch office opens.

Additional monitoring inspections are conducted at the same interval as those conducted for the CPA's main office.

3520 Renewing an Initial License

Revision 24-1; Effective Feb. 20, 2024

An initial license is valid for six months from the date it is issued and may be renewed for one additional six-month period with supervisory approval. An operation may only be in initial license status for a maximum of one year.

Procedure

The inspector renews the first initial license when an operation:

- does not provide care for unrelated children during the initial period;
- begins operating so late in this period that CCR cannot determine if the operation can ensure continued compliance; or
- has not established continued compliance with minimum standards and needs more time to establish a pattern of compliance.

References

3521 Consultation Before Renewing an Initial License

26 TAC Sections 745.347; 745.349; 745.351

Texas Human Resources Code Section 42.051(b)

3521 Consultation Before Renewing an Initial License

Revision 24-1; Effective Feb. 20, 2024

Procedure

The inspector consults with the supervisor and program administrator about the inspector's recommendation to renew the initial license within the following time frames:

- after conducting the final inspection during the first initial license period; and
- at least 25 days before the initial permit expires.

Consultation About Pending Items Before Issuance

During the consultation, the inspector, supervisor, and program administrator discuss whether:

- the operation has pending investigations;
- the operation has unresolved deficiencies; or
- a person at the operation has pending criminal charges.

The inspector documents the:

- date of the consultation;
- decision made; and
- reasons for the decision as a CLASS Chronology.

Program Administrator Recommends Denial

If the program administrator recommends denial of the full license at this time, the program administrator begins the Child Care Enforcement (CCE) referral process for the denial.

3522 How to Renew an Initial License

October 2019

Procedure

The inspector discusses the recommended decision to renew the initial license with the permit holder. The inspector informs the operation that a new application must be submitted and a fee for the renewed initial license must be paid, unless the operation is state operated.

The governing body may submit a new application or may re-sign and re-date the original. If the permit holder agrees, the inspector proceeds with acceptance of the new application and renewal of the initial license.

The renewed (second) initial license may be entered into the CLASS any time up to the first day after the first initial license expires. For example, if the initial license expires August 31, the renewed initial license must be entered in CLASS no later than September 1.

The inspector works with the operation to identify ways to achieve compliance during the renewed initial period, as appropriate. If the permit holder does not work with the inspector to achieve compliance, the inspector informs the permit holder that a denial of the full license will result and the operation must close.

26 TAC §§745.347; 745.349; 745.353

See 5211 Exemptions From Fees

3530 Full License

3531 Time Frame for Issuing a Full License

Revision 24-1; Effective Feb. 20, 2024

The inspector signs and mails the full license and issuance letter within six months after the date the initial license is issued or renewed.

The full license must be issued by the first day after the initial license or renewed initial license expires. For example, if the initial license expires Aug. 31, the full license must be entered in CLASS by Sept. 1.

The effective or issuance date of the license is the date that the inspector sends or gives the license to the operation. The full license supersedes the initial license.

Exceptions for Residential Child Care Operations

The time frame for issuing a full license to general residential operations and child-placing agencies may be exceeded if the initial license contains a condition described in 3424.5 Conditions for Applicants with a History of Heightened Monitoring (RCCR Only).

26 TAC Sections 745.351 and 745.497

3531.1 Criteria for Issuing a Full License When an Operation Has an Initial License

Revision 24-1; Effective Feb. 20, 2024

The inspector issues the full license for an operation with an initial license when:

- the initial license has been in effect for at least three months;
- the operation has satisfied initial licensing requirements by maintaining compliance on a continuing basis;
- three inspections have been conducted while children are in care, unless the supervisor approved making fewer inspections;
- a supervisor has:
  - reviewed the operation's compliance history in CLASS; and
  - approved the issuance of the full license; and
- the inspector has verified the operation paid the full license fee unless the operation is exempt from paying the fee.

The operation must pay for the full license before the current initial license expires.

Procedure

The inspector requests supervisory approval in CLASS by checking the *Request Approval* checkbox in the *Initial Period Results* section or the *Renewed Initial Permit Results* section, whichever is applicable, on the *Issuance* page after verifying that:

- the initial license has been in effect for three months;
- the operation has maintained compliance on a continuing basis; and
- CCR has conducted three inspections while children were in care unless the supervisor approved making fewer inspections.

If the Supervisor Approves the Full Issuance

If the supervisor approves full issuance in CLASS, the inspector generates and sends the *Full Permit Fee* Invoice to the operation as described in 5234 Full Permit Fee Invoice for a Licensed Operation.

After verifying that the operation paid the full permit fee before the initial license expiration date, the inspector:

a. completes the following fields in the *Initial Period Results* section or the *Renewed Initial Permit Results* section:
    1. selects *Issue-Full* in the *Decision* drop-down box;
    2. enters the date the full license is being issued in the *Decision Date* field; and
    3. documents the reason for full issuance in the *Reason* narrative box; and
b. completes the following fields in the *Full Issuance* section:
    1. selects *Full Permit* or *Certified* if state-operated from the *Type of Issuance* field; and
    2. enters the date the full license is issued in the *Date of Issuance* field; and
c. mails or delivers a copy of the permit to the operation.

Reference Job Aid – *Approving a Full License* on the CCR SharePoint site for more details on approving issuance of a full license in CLASS.

If the Supervisor Does Not Approve Full Issuance

If the supervisor does not approve full issuance in CLASS, the inspector and supervisor discuss the next steps.

26 TAC Section 745.351

References:

3531.2 Required Approvals Before Issuing a Full License When an Operation Has an Initial License
3540 Decision Not to Recommend Issuance
3550 Denying a Full License
5234 Full Permit Fee Invoice for a Licensed Operation

3531.2 Required Approvals Before Issuing a Full License When an Operation has a Renewed Initial License

Revision 24-1; Effective Feb. 20, 2024

Procedure

Before issuing a full permit to an operation that has renewed initial license, the inspector consults with the supervisor, program administrator and regional director about the recommendation to issue the full license within the following time frames:

- after conducting the third initial inspection; and
- at least 25 days before the renewed initial permit expires.

The inspector documents the consultation as a CLASS Chronology and includes the:

- date of the consultations;
- decision made; and
- reasons for the decision.

Consultation About Pending Items Before Issuance

During the consultation, the inspector, supervisor, program administrator, and regional director discuss whether:

- the operation has pending investigations;
- the operation has unresolved deficiencies; or
- a person at the operation has pending criminal charges.

If the operation receives a new investigation, has an unresolved deficiency, or pending criminal charge after the consultation takes place, but before the full license is issued, the inspector discusses the situation with those who participated in the consultation as soon as possible. The inspector documents in the next consultation as a CLASS Chronology and includes:

- the date of the consultations;
- the decision made; and
- the reasons for the decision.

Regional Director Recommends Denial of the Full License

If the regional director recommends denial of the full license, the regional director begins the CCE referral process for the denial.

3532 Full License for an Operation that Changes Ownership

Revision 23-2; Effective June 26, 2023

Procedure

The inspector may issue a full license instead of an initial license to a licensed or certified operation that changes ownership if the operation does not change:

- policy and procedure, including the type of child care services offered; and
- the staff who have direct contact with the children.

Exception for an Operation Not in Compliance

The inspector may issue an initial license instead of a full license to a previously licensed operation that:

- changed ownership; and
- has not demonstrated compliance with applicable statutes, administrative rules and minimum standards.

See:

3313.4 Evaluating Compliance

3833 Change of Ownership

26 TAC Sections 745.321; 745.345

Texas Human Resources Code Sections 42.048; 42.051

3540 Decision Not to Recommend Issuance

July 2018

The inspector obtains supervisory approval if recommending that the initial license be allowed to expire without issuing a full license. See 3230 Withdrawal of an Application for a Permit.

Texas Human Resources Code §42.051(b)

40 TAC §745.347

3550 Denying a Full License

October 2019

Procedure

Documentation regarding the decision to deny must be documented and approved by Legal before the expiration of the initial (or renewed initial) license.

If Legal approves the denial, the inspector follows procedures outlined in 7630 Taking Adverse Action and 7633.3 Updating the Operation's Status in CLASS.

See also 7620 Criteria for Taking Adverse Action

3600, Reserved for Future Use

3700, Denial of an Application for a Permit and Reapplying After Denial or Revocation

3710 Denial Because of Failure to Comply With Minimum Standard Rules, Administrative Rules, or Law

April 2010

An application for a permit may be denied because the operation has failed to comply with minimum standard rules, administrative rules, or the law.

Procedure

The inspector denies the application according to procedure in 7600 Adverse Actions.

Texas Human Resources Code §42.072

3711 Denial Because of Background Information

September 2015

Central Registry, criminal history, or sustained controlling person background check results that involve an applicant, controlling person, or a non-client residing at the operation may require staff to deny a permit.

See:

3231.1 Basis to Deny a Permit for an Unsustained Central Registry Finding
3312 Evaluating Background Checks
10230 Acting on a Central Registry Background Check Match
10260 Handling Sustained Central Registry Findings
10750 When to Deny or Revoke a Permit Based on Criminal History or Child Abuse or Neglect History

3712 Deficiency for Which Correction Will Exceed Application Time Frame

April 2010

Deficiency may be found during the on-site inspection that cannot be corrected during the application time period. This is not applicable to listed home permits.

3713 Compliance History Indicates Inability to Meet Minimum Standard Rules

April 2010

The applicant may have a history of deficiencies under previous permits that result in a determination that the applicant will not be able to provide care for children that complies with minimum standard rules.

3714 Failure to Meet the Requirements of Public Notice or Hearing Laws

April 2010

For residential licensing, the failure occurs when an applicant does not meet the requirements of public notice or hearing laws, including submitting the results of the public hearing.

Texas Human Resources Code §§42.072; 42.0461

3720 Application for a License, Certificate, Registration, or Listing is Received and a Past Denial or Revocation Exists

September 28, 2018

A person whose license, certificate, registration, or listing is denied or revoked is not eligible to apply for one of those permits before the fifth anniversary of the date on which the denial or revocation by HHSC or court order took effect, whichever is later.

Texas Human Resources Code §42.072

3721 Criteria for Acceptance of an Application

June 2016

Procedure

The inspector accepts a complete application from an operation that is not providing care if:

- at least five years have passed since a previous denial or revocation took effect; and
- the applicant is qualified to apply. See 3223 Evaluating an Application for Completeness.

3722 Requirement That the Operation Be Closed Pending Issuance

April 2010

Procedure

The inspector does not:

- accept an application from an operation that is providing care; and
- issue the permit if the operation begins providing care before issuance.

3723 Reimbursement for Publishing the Notice of Revocation

September 28, 2018

Procedure

If an application is submitted more than five years after the revocation of a permit, the applicant must submit verification that the cost of reimbursing HHSC for publishing the notice of revocation has been paid. See 7633 Notice of Decision to Deny, Revoke, or Suspend an Application or Permit.

40 TAC §745.407

3724 Compliance History Indicates Inability to Meet Minimum Standard Rules

June 2016

Procedure

The applicant may have a history of deficiencies under previous permits that results in a determination that the applicant will not be able to provide care for children that complies with minimum standard rules.

3800, Handling Changes in an Operation, Type of Permit, Location, and Ownership

3810 Circumstances That May Require Amending the Permit

Revision 23-2; Effective June 26, 2023

Changes Affecting Restrictions or Conditions

The permit may need to be amended because of changes requested by the operation that affect restrictions or conditions on the permit, including:

- an increase or decrease to the operation's infant capacity, if the operation is a licensed child care center;
- an increase or decrease to the operation's total capacity;
- an increase or decrease in outdoor or indoor space to accommodate children;
- a change in the age range of children in care;
- a reduction in the number of toilets or sinks;
- a change in the type of service, for residential operations;
- the opening or closing of a branch office for child-placing agencies;
- a change from a before or after-school program to a school-age program (or the reverse); or

- a change of location.

26 TAC Sections 744.301; 746.301; 747.301; 748.153; 749.153

Texas Human Resources Code Section 42.048

Changes Required to Be Reported to CCR

Administrative rules and minimum standards for all types of operations (except listed homes and operations that have compliance certificates) require an operation's governing body to notify CCR before making any change that would violate the restrictions or conditions on the permit.

26 TAC Sections 744.301; 746.301; 747.301; 748.153; 749.153

Changes that are Not Reported

The permit may need to be amended because of changes made by the permit holder that are not reported and that affect either the restrictions or conditions on the permit, or both.

The inspector must address the change as soon as he or she learns of it and determine if the failure to report the change was a violation of minimum standards.

Changes Recommended or Imposed by CCR

CCR may recommend that CCR amend the permit because of the operation's failure to comply with the applicable statutes, administrative rules or minimum standards.

If the permit holder does not agree to request the amendment to the permit that the CCR staff recommend as a remedy, CCR staff consult with the supervisor and Regional Director to determine if a referral to Child Care Enforcement (CCE) is warranted to request an adverse amendment to the permit.

See:

7600 Adverse Actions

Changes Imposed by Other Governmental Entities

If CCR learns of local ordinances or regulations that would affect the restrictions or conditions on the permit, CCR staff amend the permit to comply with those ordinances or regulations.

See 3823 Amending the Permit in CLASS

3811 When and How to Evaluate a Change in an Operation

Revision 23-3; Effective Sept. 22, 2023

The inspector evaluates the change and determines if it would pose a risk to children. The operation waits until the changes are approved by CCR before making the change in the operation. The inspector evaluates the following changes before approving them:

- an increase or decrease to the operation's infant capacity, if the operation is a licensed child care center;
- an increase or decrease to the operation's total capacity;
- an increase or decrease in outdoor or indoor space to accommodate children;
- a change in the age range of children in care;
- a reduction in the number of toilets or sinks; and
- if a residential child care operation makes a change in the:
  - gender of children in care; or
  - the type of service.

The CCR inspector consults with the supervisor and regional director if:

- the operation:
  - is on probation;
  - has been notified of the intent to impose adverse action by HHSC; or
  - is on heightened monitoring; or
- the change poses significant risk to children.

Procedure

Evaluating Physical Changes to the Operation

A physical change includes:

- additions or reductions to indoor space to be used by children in care;
- the addition of a swimming pool or other permanent body of water on the premises; or
- the increase or decrease in outdoor space (except for Child-Placing Agencies).

Inspecting the Operation to Evaluate a Change Request

The CCR inspector inspects the operation if the operation requested to make a physical change. Except for a change in location, the inspector inspects the operation within 30 days after receiving the information from the operation.

Obtaining Fire and Health Inspections

The inspector verifies that a licensed operation (other than a licensed child care home or CPA) obtains approved fire and health inspections as required when:

- adding space to increase capacity; or
- changing location.

Evaluating a Request to Increase Capacity

If the operation has requested an increase in capacity, the inspector evaluates the request by reviewing floor plans and photographs submitted by the operation, if any, or conducting an inspection to verify that the operation has adequate space, toilets and sinks to accommodate the increase (see 3823.2 Changing the Operation's Capacity in CLASS).

For residential child care operations that are subject to public notice and hearing requirements, the inspector follows policies and procedures in 3140 Public Notice and Hearing Requirements for General Residential Operations (including its sub-items) before amending the permit.

Evaluating a Request to Add Treatment Services for Children with Emotional Disorders (GROs Only)

For a GRO that requests to add treatment services for children with emotional disorders to the permit, the CCR inspector:

- reviews and approves the plan detailed in Form 2960, Application for a License to Operate a Residential Child Care Facility, Attachment C, General Residential Operations – Additional Operational Plan, General Residential Operations – Additional Operational Plan;
- determines if the plan detailed in Form 2960, Attachment C is complete and contains clear responses;
- reviews the operational policies before the operation may schedule a public hearing; and
- conducts an inspection if the operation made physical changes to the site to determine if the requested changes are appropriate.

Concerns with the Operational Plan

If the inspector has concerns with the plan detailed on Form 2960, Attachment C, or the updated operational policies, the inspector discusses those concerns with his or her supervisor and with the permit holder. If CCR cannot approve the operational plan, the inspector denies the operation's request to amend the permit.

Approving the Operational Plan

If the inspector determines that the operational plan documented on Form 2960, Attachment C, is complete and contains clear responses, the inspector:

- documents approval of the operational plan in CLASS in a Chronology (type *Application*) in CLASS;
- uploads Form 2960, Attachment C to CLASS Document Library as outlined in 1310 Content and Organization of Child Care Regulation Records Content and Organization of Child Care Regulation Records;
- informs the operation that it may schedule a public hearing;
- follows policies and procedures in 3140 Public Notice and Hearing Requirements for General Residential Operations Public Notice and Hearing Requirements for General Residential Operations (including its sub-items); and
- amends the permit after the hearing.

Evaluating Other Requests

For all other requests, the inspector:

- reviews the operation's compliance history;
- reviews the operation's policies; and
- may conduct an inspection to determine if the requested changes are appropriate.

If CCR staff approve changes to the permit, the inspector makes those changes according to 3823 Amending the Permit in CLASS.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

3812 When an Operation Changes Location

Revision 23-2; Effective June 26, 2023

When an operation changes location and notifies CCR of the change of location within the timeframes outlined in administrative rule and the table below, CCR staff:

- provide the operation with the applicable change of address request form;
- conduct an inspection for all operations except listed family homes after receiving the change of address request form; and
- amend the permit to reflect the new address but do not change the issuance date if the operation is in compliance with applicable statutes, administrative rules and minimum standards.

CCR staff do not generate a new fee invoice when an operation changes location.

Operation Type	Operation Notifies CCR No Later Than	CCR Sends This Form	CCR Conducts an Inspection Within
Listed Family Home	15 days after relocating	CLASS Form 2811 Change of Address Request	N/A
Registered Child Care Home	15 days after relocating	CLASS Form 2811 Change of Address Request	15 days of receiving the completed form
Licensed Child Care Home	15 days before relocating	SharePoint Form 2002 Licensed or Certified Child Care Operation Change of Address Request	15 days of receiving the completed form
• School-Age Program; • Before or After-School Program; • Child -Care Center; • General Residential Operation; • Child-Placing Agency	30 days before relocating	SharePoint Form 2002 Licensed or Certified Child Care Operation Change of Address Request	21 days of receiving the completed form

If the operation moves without giving CCR timely notice, CCR staff cite a deficiency for the operation failing to notify CCR of the move according to the timeframes in administrative rules and minimum standards. In addition, the inspector discusses with the supervisor whether CCR will:

- amend the permit to reflect the new address; or
- consult with the regional director to determine whether to submit a referral to Child Care Enforcement (CCE) to recommend that HHSC revoke the permit.

See:

3823 Amending the Permit in CLASS
7110 Circumstances That May Call for Enforcement Action
26 TAC Sections 744.301; 745.435(b); 746.301; 747.301; 748.153; 749.153
Texas Human Resources Code Section 42.048

3820 How to Evaluate and Process Amendments to a Permit

3821 How to Address Plans for Change

July 2018

Procedure

Determine whether the change will necessitate amending the permit. When information about a plan for changing the operation is received, the inspector completes the following tasks:

a. Determine whether the changes could violate statute, administrative rules, or minimum standards.
b. Discuss the change with the permit holder or designee to ensure agreement with the changes to the permit.
c. If compliance is established, document the changes in CLASS, which may include processing the amendment by preparing a new permit.

3822 Documenting Changes for Child Day Care Operations When Amending the Permit is Not Required

July 2018

Procedure

Licensed or Certified Child Day Care Operations

If amending the permit is not required but the restrictions recorded on Form 2910 Application for a License or Certification to Operate a Child Day Care Facility have changed, the inspector documents the changes in the operation's record in CLASS and notes the changes made in CLASS Chronology.

Registered Child Care Homes

If amending the permit is not required, but the restrictions recorded in CLASS have changed, the inspector documents the changes in the operation's record in CLASS.

Restrictions that do not require an amendment of the permit include changes to the operation's capacity, the ages of the children, and the hours, days, and months of operation.

Licensing staff document any conditions or restrictions that need to be noted on the permit in the *Description* box of the *Conditions for Permit, Registration or Certification* section of the operation's *Issuance* page in CLASS.

3823 Amending the Permit in CLASS

Revision 23-2; Effective June 26, 2023

CCR staff amend an operation's permit by updating the *Issuance* and *Operation Main* pages in CLASS when CCR:

- Approves an operation making changes to the permit including:
  - capacity;
  - age range of children served;
  - gender (RCCR only);
  - services the operation offers;
  - location;
  - name of the operation; or
- Adds conditions to the permit.

After amending information that displays on an operation's permit, CCR staff take the steps outlined in 3824 Issuing the Amended Permit.

Adverse Amendments

CCR handles an adverse amendment the same as an adverse action. CCR staff send a recommendation to CCE for an adverse amendment.

See 7600 Adverse Actions.

3823.1 Changing the Operation's Restrictions and Conditions in CLASS

Revision 23-2; Effective June 26, 2023

Procedure

Restrictions

CCR staff document changes to the permit restrictions under the *Restrictions* box on the *Issuance* page by:

- selecting or de-selecting the age options;
- selecting or de-selecting the gender options (RCCR only);
- entering the total infant capacity, if applicable; or
- changing the total licensed capacity.

Conditions

CCR staff enter a description for conditions to be listed on the permit in the *Description* box under the *Conditions for Permit, Registration or Certification* section on the *Issuance* page.

See 3424 Applying Additional Types of Conditions or Restrictions and its sub-items for examples of conditions.

Amendments to Restrictions or Conditions

CCR staff document a summary of the amendments to restrictions or conditions to the permit under the *Full Issuance Amendments* section of the *Issuance* page and selects which type of amendment applies.

3823.2 Changing the Operation's Capacity in CLASS

Revision 23-2; Effective June 26, 2023

CCR staff take steps to change an operation's capacity in CLASS when:

- the operation requests a change in capacity;
- CCE changes the operation's capacity as an adverse amendment; or
- another governmental entity changes the operation's capacity.

See 3424.3 Fire and Sanitation Reports and Other Local Ordinances

Procedure

Operation Requests to Decrease Capacity

If the operation requests to decrease capacity, CCR staff may complete the following on the *Issuance* page in CLASS:

- select *Change Capacity* in the *Restrictions* section;
- enter the operation's requested capacity and save at the bottom of the page; and
- generate an amended permit to reflect the updated capacity.

Operation Requests to Increase Capacity

If the operation requests to increase capacity, CCR staff evaluate whether the operation can meet standards relevant to the amendment as outlined in 3811 When and How to Evaluate a Change in an Operation.

CCR staff then complete the following on the *Issuance* page in CLASS:

1. select *Change Capacity* under the *Restrictions* section;
2. enter the requested capacity and save at the bottom of the page;
3. document whether:
    - CCR approved the operation's request to increase capacity;
    - CCR approved the operation's request to increase capacity by a lower amount than requested by the operation;
    - CCR rejected the request to increase capacity; or
    - the operation withdrew the request to increase capacity.

CLASS automatically generates the Capacity Fee Invoice when staff approve the operation's request to increase capacity in CLASS.

CCR staff then generate and issue an amended permit to reflect the updated capacity if:

- CCR staff approved the request; and
- the operation paid the change in capacity fee when the request is to increase capacity and the operation is not exempt from paying permit fees.

If the operation is exempt from paying permit fees, the inspector documents the fee exemption according to 3121.1 Documenting Fee Exemptions in CLASS before approving the capacity increase.

If CCR staff approve the request to increase capacity in CLASS, but circumstances change requiring the operation to withdraw the request or submit a new request, the inspector follows 3823.1 Changing the Operation's Restrictions and Conditions in CLASS.

5236 Capacity Increase Fee Invoice (Also Known as Amendment Fee)

5240 Verification of Fee Payments

3823.3 Changing the Operation's Permit in CLASS for the Gender or Ages Served

Revision 23-2; Effective June 26, 2023

If the operation made changes to the ages of children served, and CCR approves this change, the inspector documents the change in the *Restrictions* section on the *Issuance* page. CCR staff generate and send a new permit to the operation for the following operation types:

- licensed child care home;
- school-age program;
- before or after-school program;
- licensed child-care center;
- general residential operation; or
- child-placing agency.

For an RCCR operation that makes a change to the permit for the gender of children served and CCR approves this change, the inspector:

- documents the change in the *Restrictions* section on the *Issuance* page; and
- generates and issues an amended permit to the operation.

3823.4 Changing a Residential Child Care Operation's Services Offered in CLASS

Revision 23-2; Effective June 26, 2023

If the operation is a GRO or CPA and the operation made changes to the services the operation provides and CCR approves this change, the inspector:

- documents the changes in services on the *Operation Main* page in CLASS; and
- generates and issues an amended permit to the operation.

3823.5 Changing the Operation's Address in CLASS

Revision 23-2; Effective June 26, 2023

When an operation changes location and CCR approves the change, CCR staff update the *Operation Main* page in CLASS to reflect the new address.

LFH, RCCH, or CPA Branch Changes Location

If a listed family home, registered child care home, or child-placing agency branch changes location, CCR staff take the following steps on the *Operation Main* page in CLASS:

- enter the new location address;
- validate the new address; and
- save the change at the bottom of the page.

LCCH, LCCC, BAP, SAP, CPA Main, or GRO Changes Location

If a licensed child care home, a licensed child-care center, before or after-school program, school-age program, child-placing agency main office, or general residential operation changes location, the inspector informs the supervisor, after which the supervisor:

- selects *Address Correction* button on the bottom of the *Operation Main* page;
- enters the new location address;
- validates the address; and
- saves the page.

3823.51 Which CCR Staff Can Change an Operation's Address in CLASS

Revision 23-2; Effective June 26, 2023

The table below lists the minimum CLASS role that may change an operation's address in CLASS:

Operation Type	Minimum CLASS Role That Can Change the Operation's Address
Listed Family Home	Admin Technician
Registered Child Care Home	Licensing Representative (Inspector)
Licensed Child Care Home	Supervisor
Licensed Child-Care Center	Supervisor
Before or After-School Program	Supervisor
School-Age Program	Supervisor
Child-Placing Agency Main	Supervisor
Child-Placing Agency Branch	Licensing Representative (Inspector)
General Residential Operation	Supervisor

See:

Appendix 1000-2 Security Roles and Functions in CLASS

3824 Issuing the Amended Permit

Revision 23-2; Effective June 26, 2023

Procedure

If an inspector places any condition on the permit, the inspector documents the changes and the effective date in the *Conditions for Permit, Registration, or Certification* section on the *Issuance* page.

For all changes that display on the operation's permit, the inspector documents an effective date and a summary of the reason for the amended permit in the *Full Issuance Amendments* section on the *Issuance* page.

The inspector creates and prints a copy of the amended permit and applicable issuance letter and mails or delivers the copy to the operation.

See 3823 Amending the Permit in CLASS

3830 Changes that Require an Application for a New Permit

Revision 23-2; Effective June 26, 2023

The governing body or owner of an operation must apply for a new permit and submit the appropriate fees for a change in:

- permit type; or
- ownership.

See:

3833 Change of Ownership
26 TAC Sections 745.429; 745.435; 745.437; 744.301; 746.301; 747.301; 748.153; 749.153

3831 Change to Type of Permit

July 2018

A governing body's request to change permit type may include:

a. a licensed operation becoming a registered or listed operation or an operation with a compliance certificate;
b. an independent foster home becoming a general residential operation;
c. a registered operation home becoming a licensed or listed operation;
d. a listed operation becoming a registered or licensed operation;
e. an operation with a compliance certificate becoming a licensed operation; or
f. a licensed operation transitioning into another licensed type of operation that is governed under a different chapter of minimum standards.

3831.1 Establishing Compliance with Minimum Standards

July 2018

The operation must establish compliance with the minimum standards applicable to the new type before a new permit is issued.

See 3310 Evaluating Before Issuing a Permit, to determine whether to issue an initial or full permit to a licensed operation.

See 3313 Inspecting the Operation (Except Listed Homes), to determine which administrative rules or minimum standards must be evaluated for compliance before issuance.

3832 Reserved for Future Use

Revision 23-2; Effective June 26, 2023

3833 Change of Ownership

July 2018

If a change in ownership occurs in an operation, the permit is revoked.

A change in ownership includes any of the following:

a. The owner stated on the permit no longer owns the operation.
b. The governing body stated on the permit no longer has the ultimate authority and responsibility for the operation.
c. There is a change in the legal organizational structure of the operation.
d. If the permit holder is a type of business entity, and that business entity is sold.

Exception

If the permit holder is a type of business entity, and that business entity is sold, a change in ownership of an operation does not include the acquisition of a corporate permit holder's publicly traded stock if all of the following conditions exist:

a. The corporate permit holder listed on the application and on the permit will continue to exist as the same corporate entity and to own and operate the operation.
b. There will be no change in the operation's policy or procedure because of the transaction.
c. There will be no change in the staff who have contact with children in care because of the transaction.
d. Any change in the day-to-day operations that might occur after the sale is in the ordinary course of business and not as a result of the stock transaction.

Texas Human Resources Code §42.048

40 TAC §745.437

Procedure

The permit holder must notify Licensing as early as possible before the change in ownership, and the new owner must apply for a new permit. If the permit holder did not notify Licensing of the change in ownership, but Licensing staff learn that an operation has changed or will change ownership, the inspector sends CLASS Form *Vol Suspension/Relocation/Clsr Letter 2865e, 2825*, to the permit holder or the new owner, as appropriate, confirming the change. The inspector also provides application materials to the new owner or instructions on where to find a copy of the application materials online.

Operations must pay new application and license fees, as applicable.

40 TAC §745.439

26 TAC §§744.303; 746.303; 748.153; 749.153; 750.123(1)

3834 Steps to Process an Application for an Existing Operation

Revision 24-2; Effective May 22, 2024

Procedure

When an operation submits an application for a new permit for a reason listed in 3830 Changes that Require an Application for a New Permit, CCR staff process the application per:

- 3200 Processing the Application for a License, Certificate, Compliance Certificate, Registration, or Listing Permit; and
- 3313.4 Evaluating Compliance to decide to issue an initial or full license.

3834.1 When a Permit is Added or Replaced

Revision 24-2; Effective May 22, 2024

Policy

A new permit replaces the old unless the operation is adding an additional permit.

3834.2 Public Notice and Hearing Requirements

Revision 24-2; Effective May 22, 2024

For residential child care, applicants may be subject to public notice and hearing requirements.

References

General Requirements for Public Hearing and Notices, 3141

HRC Section 42.0461

3834.3 Documenting the New Application in CLASS

Revision 24-3; Effective Aug. 15, 2024

Procedure

Staff enter the application details in CLASS per 3121 Initiating an Application in CLASS. CLASS generates a new operation number for the new application.

CCR staff document the associated operation numbers in the *Operation History List* on the *Operation History* page in CLASS if the applicant has an association with an existing or closed operation.

Reference

Types of Child Care Permits, 2100
When to Associate Operations (RCCR Only), 3323.1
When to Associate Operations (DCCR Only), 3332.1

3840 When Operations are Ineligible for Grandfather Provisions if Location or Ownership Changes

3841 Child Day Care

July 2018

If a child day care operation that was issued a permit before September 1, 2003, changes location or ownership, the operation can no longer operate under any of the grandfather provisions in Texas Administrative Code (TAC) Chapters 746 and 747,unless the inspector and inspector's supervisor has determined that a change in ownership has not nullified the grandfather provisions.

Texas Human Resources Code §42.048(e)

3842 Residential Child Care

July 2018

If a residential child care operation that was issued a permit before January 1, 2007, changes location or ownership, the operation can no longer operate under any of the grandfather provisions in Texas Administrative Code (TAC) Chapters 748, 749, and 750, unless the inspector and inspector's supervisor have determined that a change in ownership has not nullified the grandfather provisions.

Texas Human Resources Code §42.048(e)

3900, Permit Renewal

3910 Overview of Permit Renewals

3911 Operations Subject to Permit Renewal

July 2018

A full license, certificate, and registration will expire if it is not renewed.

Permit renewal requirements do not apply to listed family homes, temporary shelter programs, and small employer-based child care operations.

26 TAC Section 745.471

Texas Human Resources Code Sections 42.048, 42.050, 42.052

3912 When an Operation's Permit Renewal is Due

Revision 22-4; Effective Sept. 20, 2022

An operation that is subject to permit renewal must renew its permit on the second anniversary of the issuance of the full permit and every two years thereafter.

26 TAC Section 745.473

3913 Definitions of Renewal Period and Late Renewal Period

Revision 22-4; Effective Sept. 20, 2022

The "renewal period" is the period beginning 60 days before the full permit's anniversary date and ending on the anniversary date, which occurs in the year the operation renews its permit. An operation may not submit a renewal application before the renewal period begins.

The "late renewal period" is the 30-day period after the renewal period ends. A renewal application submitted during the late renewal period is considered a late renewal application. An operation submits a renewal application by the end of the late renewal period to avoid expiration of its permit.

26 TAC Section 745.473

3920 Permit Renewal Application Process

3921 Notifying the Operation and Sending the Permit Renewal Application

July 2018

At the beginning of an operation's renewal period, CCR notifies the operation that the operation's permit renewal is coming due.

Procedure

Operation Has Contact Email Address

If the operation's contact email address is listed in CLASS, CLASS sends a system-generated email to the operation that includes the notification and instructions for submitting a renewal application online. CLASS sends a copy of this notice to the inspector.

Operation Does Not Have Contact Email Address

For operations that do not have a contact email address listed in CLASS, CCR staff generate a copy of the notification letter and pre-populated renewal application on the *Permit Renewal* page in CLASS and mail to the operation by the beginning of the operation's renewal period.

3922 How an Operation Submits a Permit Renewal Application

Revision 22-4; Effective Sept. 20, 2022

Procedure

An operation may submit a permit renewal application online through the provider's Child Care Regulation Account or mail a paper renewal application.

Operation Requests a Paper Application

If an operation received a system-generated email with instructions for completing the permit renewal application online, but prefers to submit a paper application, the CCR inspector:

- selects the *Provider Requests Paper* check box on the *Permit Renewal* page in CLASS;
- generates the Permit Renewal Application Due Notification and pre-populated renewal application on the *Permit Renewal* page; and
- prints and mails the notification and renewal application to the operation.

3922.1 Definition of a Complete Permit Renewal Application

Revision 23-1; Effective April 21, 2023

A complete permit renewal application includes the operation submitting all of the following:

1. verification that the following about the operation is current and accurate:
    - basic information on the Search Texas Child Care website;
    - list of controlling persons in the provider's online account; and
    - list of governing body members in the provider's online account;
2. indication if the operation continues to need any existing waivers or variances;
3. verification that the operation has validated the list of persons who require a background check as required by 26 TAC Section 745.651(2); and
4. if the operation is a general residential operation that provides treatment services for children with emotional disorders and a public hearing is required by 26 TAC Section 745.487, a written response that addresses any public comments made during the public hearing.

26 TAC Section 745.475

3923 Time Frames for Processing a Permit Renewal Application

Revision 22-4; Effective Sept. 20, 2022

The CCR inspector has 30 days from the date CCR receives the renewal application to renew the operation's permit, reject, or refuse to renew the permit.

26 TAC Sections 745.475, 745.477

3924 Processing the Permit Renewal Application

Revision 24-1; Effective Feb. 20, 2024

The inspector completes all the following tasks in the chart below to determine whether to:

- accept the renewal application;
- reject the renewal application; or

- refuse to renew the permit.

Task	CCRH Reference
Determine if the renewal application is complete.	3922.1 Definition of a Complete Renewal Application
Enter the renewal application into CLASS, if the operation submitted a paper application.	3924.1 Entering a Paper Application into CLASS
Review the operation's fee payment history. Determine if the operation has paid all fees or administrative penalties that are not pending due process.	3924.2 Verifying Fee and Administrative Penalty Payments
Review the previous five-year compliance history. Determine if there are repeated, re-cited, or pattern of deficiencies. If so, decide whether to recommend adding conditions to the permit.	3924.3 Reviewing the Five-Year Summary of Deficiencies Details
Determine if the operation has corrected each deficiency with an expired compliance date that is not pending due process. Determine what steps to take if the operation has not corrected each deficiency. If an inspection is required to verify the operation's compliance with a standard, conduct the inspection before accepting or rejecting the application.	3924.4 Reviewing Deficiencies Not Corrected Details
Review the information that the operation provided regarding any waivers or variances and determine which steps to take.	5140 Time Frames for Processing a Waiver or Variance Request 5170 Renewing a Waiver or Variance 5190 Documenting Outcomes for Waiver or Variance
If the operation is a general residential operation providing treatment services for children with emotional disorders, determine if the commissioner's court of the county where the operation is located has requested that CCR hold a public hearing.	3924.5 Public Hearings for Permit Renewals of Certain General Residential Operations

Before rejecting a renewal application or refusing to renew a permit, the CCR inspector helps the operation complete the renewal application if:

a. the inspector has any questions about the operation's responses on the renewal application;
b. the provider has not fully completed the paper renewal application;
c. the inspector needs to verify fee payments;
d. the operation's people list needs to be validated; or
e. there are deficiencies that the inspector needs to follow up on.

26 TAC Sections 745.475, 745.477, 745.651

3924.1 Entering a Paper Permit Renewal Application into CLASS

Revision 23-3; Effective Sept. 22, 2023

Procedure

When an operation submits a paper renewal application, the CCR inspector completes the following tasks to enter the application in CLASS:

- creates a new permit renewal submission by selecting *Add Submission* on the *Permit Renewal* page; and
- on the *Permit renewal Application Details* page:
  a. enters the date the application was received;
  b. selects or enters the applicable answer for each section of the application based upon information the operation submitted to CCR and the inspector's evaluation of the information as outlined in the sections below;
  c. saves the page;
- stores the paper application according to Appendix 1000-1, Organizing Child Care Regulation Records; and
- uploads the application and supporting documents to CLASS Document Library from the applicable CLASS page as outlined in 1310 Content and Organization of Child Care Regulation Records.

Operation Details

The inspector indicates whether the operation made any updates to the operation's information. If the operation made any updates to the operation details, the inspector also updates the operation's information in the applicable page in CLASS.

Controlling Person Details

The inspector indicates whether the operation requested to:

- add any controlling persons; and
- remove any controlling person.

If the operation requested to add a controlling person, the inspector indicates whether the operation submitted the request as required (i.e., either using Form 2760, Controlling Person – Child Care Regulation, or through the provider's online account).

CCR staff follows the policies in 5400 Controlling Person to end-date or add a controlling person to CLASS.

Governing Body Details (Not Applicable to Registered Child Care Homes)

The inspector indicates whether the operation has any vacant positions in the governing body or has made any changes to the governing body. If the operation made changes to the governing body, the inspector indicates whether the operation submitted the changes as required, either using:

- Form 2911, Child Care Licensing Governing Body/Director Designation;
- Form 2819, Residential Child Care Licensing Governing Body/Administrator or Executive Director Designation; or
- through the operation's online account.

The inspector follows the policies in 3213.1 Governing Body and Licensing Responsibilities and makes the appropriate updates in CLASS.

Waiver/Variance Details

The inspector indicates whether the operation no longer needs a waiver or variance or needs to submit a new request for an expired waiver or variance.

If the operation needs to submit a new request for an expired waiver or variance, the inspector:

- indicates whether the operation submitted the request as required (i.e., using Form 2937, Child Care Regulation Waiver/Variance Request, or through the operation's online account);
- Updates the *Waiver/Variance Details* page in CLASS according to 5100 Waivers and Variances; and
- Verifies the operation acted on each expired waiver or variance request.

If the operation no longer needs the waiver or variance, the inspector:

- indicates the waiver or variance is no longer needed; and
- updates the Waiver/Variance page in CLASS according to 5100 Waivers and Variances.

Background Check Details

The inspector indicates whether the operation certified that the operation has:

- submitted background checks on all persons as required by 26 TAC Chapter 745, Subchapter F; and
- validated the Employee List in accordance with 26 TAC Section 745.651(2).

Fees Details

The inspector indicates whether all fees and administrative penalties for the past two years are paid. The inspector follows the policy in 3924.2 Verifying Fee and Administrative Penalty Payments.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

3924.2 Verifying Fee and Administrative Penalty Payments

Revision 22-4; Effective Sept. 20, 2022

Procedure

The CCR inspector reviews the operation's *Invoice and Payment Summary* page in CLASS and verifies that the operation does not have any overdue fees or administrative penalty payments. The inspector may need to contact the operation to verify fee payments or search for unlinked payments on the *Verify Payments* page in CLASS.

The inspector then indicates if any fees or administrative penalties are overdue on the *Permit Renewal Application Details* page in CLASS. An administrative penalty is not overdue until 30 days past:

- the date the order was sent; or
- the date the court upheld the penalty.

If one or more fees or administrative penalties are overdue, the inspector adds each fee or penalty separately. For each fee or penalty that is overdue, the inspector documents:

a. the type of fee or penalty that is overdue (annual, background check or administrative penalty);
b. the amount that is overdue;
c. the year the fee was due for annual fees; and
d. the invoice number for the penalty.

If the inspector is able to verify a payment after adding the fee or penalty to the *Permit Renewal Application Details* page, the inspector may delete the row.

See 5240 Verification of Fee Payments

3924.3 Reviewing the Five-Year Summary of Deficiencies Details

Revision 23-1; Effective April 21, 2023

CCR staff review the operation's five-year compliance history to determine if the operation has repeated deficiencies or a pattern of deficiencies. The evaluation of the five-year compliance history determines whether CCR:

- renews the permit without adding conditions or restrictions;
- adds conditions or restrictions to the permit to address the repeated deficiencies or pattern of deficiencies when renewing the permit; or
- takes the adverse action Refuse to Renew.

If CCR decides to renew the permit, the CCR inspector ensures the operation meets all other requirements for permit renewal before renewing the permit.

Texas Human Resources Code Sections 42.050(c), 42.072

26 TAC Section 745.8655

Procedure

To determine if the operation has repeated deficiencies or a pattern of deficiencies, the inspector selects *Proceed to Review Deficiencies* on the *Permit Renewal Application Details* Page to navigate to the *Five-Year Summary of Deficiencies* page. The *Five-Year Summary of Deficiencies* page in CLASS shows:

a. the following information regarding deficiencies from the five-year period:
    - a total count of all deficiencies;
    - detail of repeated and re-cited deficiencies;
    - number of all deficiencies by subchapter; and
    - number of all deficiencies by weight;
b. the inspector's assessment of the re-cited and repeated deficiencies;
c. the inspector's assessment of whether the operation had a pattern of deficiencies;
d. whether the inspector recommended adding conditions or restrictions to the permit; and
e. the supervisor decision, if the inspector recommended adding conditions or restrictions to the permit.

If the Operation Has No Repeated or Re-cited Deficiencies

If there are no repeated deficiencies or re-cited deficiencies:

- the questions in the *Assessment of Deficiencies* section automatically prefill with *No*, and the *Comment* text box associated with each question prefill with a message stating that there were no repeated or patterns of deficiencies found and no additional conditions or restrictions on the permit are recommended;

- the inspector saves the page; and
- the inspector continues processing the renewal application.

If the Operation Has Repeated Deficiencies, Re-cited Deficiencies, or a Pattern of Deficiencies

If there are repeated, re-cited, or a pattern of deficiencies, the inspector evaluates the deficiency information on the *Five-Year Summary of Deficiencies* page.

If the inspector recommends imposing an adverse action based on the operation's compliance history, CCR staff follow procedures in 7630 Taking Adverse Action.

If the inspector does not recommend an adverse action, the inspector completes the *Assessment of Deficiencies* section on the *Five-Year Summary of Deficiencies* page, which includes an assessment of whether the inspector recommends that CCR adds conditions or restrictions to the operation's permit.

- If the inspector does not recommend adding conditions or restrictions to the permit, the inspector continues processing the renewal application.
- If the inspector recommends adding conditions or restrictions to the operation's permit to address repeated, re-cited, or patterns of deficiencies, the inspector enters in the *Comments on Permit Conditions* text box:
  - the reasons why the conditions or restrictions are recommended; and
  - what conditions or restrictions the inspector recommends be added.

Additional Steps when an Inspector Recommends Adding Conditions or Restrictions to the Permit

If the inspector recommends adding conditions or restrictions to the permit, the supervisor reviews and approves or rejects the recommendation in CLASS within three days.

If the supervisor does not approve the inspector's recommendation, the supervisor adds comments explaining the inspector's next steps. The next steps may include actions such as:

- renewing the permit without adding conditions or restrictions;
- refusing to renew the permit; or
- recommending or imposing other enforcement actions.

If the supervisor approves the inspector's recommendation:

- the inspector adds the conditions or restrictions according to 3823 Amending the Permit in CLASS; and
- CCR staff follow procedures in 7622 Criteria for Imposing an Adverse Amendment.

3924.4 Reviewing Deficiencies Not Corrected Details

Revision 24-3; Effective Aug. 15, 2024

CCR may not renew an operation's permit if the operation has not corrected any deficiency with an expired compliance date unless the deficiency is:

- pending an administrative review; or
- the basis for a probation or adverse action that is pending an administrative review or due process hearing.

If an operation has not corrected any deficiency that does not meet the exception criteria above, CCR staff consult with the supervisor on the next steps. These may include:

- following up with the operation;
- rejecting the renewal application;
- expiring the permit; or
- consulting with the regional director to begin the referral process to CCE to refuse to renew the permit.

Reference

26 TAC Section 745.477

Texas Human Resources Code Section 42.050(c-1)

Procedure

CLASS lists any deficiency with an expired compliance date that requires CCR action under the *Deficiencies Not Corrected Details* section on the *Permit Renewal Application Details* page. The CCR inspector reviews the list of deficiencies under the *Deficiencies Not*

Corrected Details section to determine if they should process the renewal application or take further action.

No Deficiencies Listed

If this page does not list any deficiencies in the *Deficiencies Not Corrected* section, the CCR inspector processes the renewal application.

Deficiencies Listed

If the page lists deficiencies in the *Deficiencies Not Corrected* section, the CCR inspector reviews the *Action Needed* column for each deficiency and takes the applicable steps outlined in the table below.

Action Needed	Inspector Next Steps
Update Admin Review Status	• Select the hyperlink under the *Standard/Rule/Law* column to navigate to the corresponding *Standard Details* page. • Verify with the operation if it requested an administrative review for the deficient standard. Select *Waived* under the *Due Process* section as applicable. • If staff update the administrative review status to *Waived*, the deficiency may remain on the list if it is still pending follow-up action.
Follow-Up Needed	• Select the hyperlink under the *Standard/Rule/Law* column to navigate to the corresponding *Standard Details* page. • Determine if: ◦ the operation has corrected the deficiency, or ◦ CCR staff need to conduct a follow-up with the operation to verify it has corrected the deficiency. Document the follow-up results per section 4300 Conducting a Follow-Up with an Operation and CLASS will remove the deficiency from the list.

If no deficiencies remain on the list after the CCR inspector addresses the *Current Deficiencies Not Corrected*, the inspector processes the renewal application.

If one or more deficiencies remain on the list after the CCR inspector addresses the *Current Deficiencies Not Corrected*, the inspector consults with the supervisor on the next steps, which may include:

- following-up with the operation again;
- rejecting the renewal application;
- expiring the permit; or
- consulting with the regional director to begin the referral process to CCE to refuse to renew the permit.

Reference

Processing the Permit Renewal Application, 3924
Rejecting a Renewal Application, 3926
Refusal to Renew a Permit, 3927
Expiration of a Permit, 3930
Conducting a Follow-Up with an Operation, 4300

26 TAC Section 745.477(a)

3924.5 Public Hearings for Permit Renewals of Certain General Residential Operations

July 2021

The commissioner's court of a county where a general residential operation providing treatment services for children with emotional disorders is located may request that CCR hold a hearing before renewing the operation's permit. The purpose of the hearing is to provide the public with a reasonable opportunity to speak on any issue related to renewal of the GRO's permit.

Procedure

When the commissioner's court requests a hearing related to the renewal of a permit for a GRO providing treatment services to children with emotional disorders, CCR staff are responsible for scheduling, providing notice of and facilitating the hearing. The GRO that submitted the renewal application is required to attend the hearing.

Hearing Notice

CCR staff create a hearing notice that includes the following information:

a. The name, address and phone number of the CCR representative who will facilitate the hearing;
b. The name and address of the GRO that submitted the renewal application;
c. The date, time and location of the hearing;
d. A description of the population that the GRO currently serves, the services provided (except for the provision of trafficking victim services), the number of children that the operation is currently licensed to serve, and the number of children the operation is currently serving; and
e. A statement that the public hearing is for CCR to receive public comments regarding the renewal of the GRO's license.

Ten days prior to the scheduled hearing, the inspector:

- sends the notice to the commissioner's court;
- sends the notice to the GRO that submitted the renewal application; and
- posts a notice of the hearing on the CCR public website.

Conducting the Hearing

CCR provides the written hearing procedures to the public with a reasonable opportunity to offer public comments on any issues related to the renewal of the GRO's license, including how the hearing will be conducted, order of witnesses and the conduct of participants at the hearing.

26 TAC §§745.475; 745.477; 745.487; 745.489

3925 Accepting a Renewal Application

Revision 22-4; Effective Sept. 20, 2022

Procedure

The CCR inspector accepts the renewal application and renews the permit when the renewal application and all tasks associated with processing the renewal application are complete.

The inspector renews the operation's permit by sending the operation CLASS Form Permit Renewal Issuance Notification, which the operation then posts next to its permit.

See also:

3922.1 Definition of a Complete Permit Renewal Application
3924 Processing the Permit Renewal Application
26 TAC Section 745.479

3926 Rejecting a Renewal Application

Revision 22-4; Effective Sept. 20, 2022

CCR rejects the renewal application when:

- the permit renewal application is incomplete, and the provider does not respond to phone calls or emails about the renewal application; or
- there are deficiencies that the operation has not corrected and CCR has followed-up on the deficiencies as outlined in 3924.4 Reviewing Deficiencies Not Corrected Details.

Procedure

When the CCR inspector determines that a permit renewal application should be rejected, the inspector:

- obtains approval to reject the application from the supervisor or program administrator;
- documents the rejection in CLASS; and
- sends the operation CLASS form Permit Renewal Application Rejection Notification.

3926.1 Documenting the Permit Renewal Rejection in CLASS

Revision 22-5; Effective Nov. 4, 2022

The *Permit Renewal Application Details* page displays system-generated reasons for rejecting the renewal application. The CCR inspector may also document rejection reasons or provide further explanation in the *Rejection Reasons* narrative box on the *Permit Renewal Application Details* page.

If the application is being rejected because the operation has not corrected deficiencies, the *Rejection Letter Details* section lists the deficiencies that are listed in CLASS form Permit Renewal Application Rejection Notification.

After the inspector sends CLASS form *Permit Renewal Application Rejection Notification*, the *Rejection Letter Details* section will not update when deficiencies in the *Deficiencies Not Corrected Details* section update.

3926.2 Notifying the Operation of Rejecting the Permit Renewal Application During the Renewal Period

Revision 22-4; Effective Sept. 20, 2022

Procedure

If the operation submitted the renewal application during the renewal period, the CCR inspector sends the CLASS form Permit Renewal Application Rejection Notification to the operation. The notification includes a list of reasons why the permit renewal application was rejected and contains instructions and deadlines for resubmitting the permit renewal application. If the inspector is rejecting the application because the operation has not corrected deficiencies, the rejection letter will list these deficiencies.

Operation Has Contact Email Address

CLASS will automatically generate and send the notification to the operation if:

- the operation has a contact email address in CLASS; and
- has not indicated a preference for a paper renewal application.

Operation Does Not Have Contact Email Address

The inspector prints and mails the rejection letter, which includes a new renewal application, to the operation if:

- the operation does not have a contact email address in CLASS; or
- has indicated a preference for a paper renewal application. e inspector prints and mails the rejection letter (which includes a new renewal application) to the operation.

3926.3 Notifying the Operation of Rejecting the Permit Renewal Application During the Late Renewal Period

July 2018

Procedure

If the operation submitted the renewal application during the late renewal period, the CCR inspector sends the CLASS Form Final Permit Renewal Application Rejection Notification, which includes a new renewal application, to the operation. The notification includes a list of reasons why CCR rejected the permit renewal application, and:

- instructions and deadlines for resubmitting the permit renewal application, if the operation is eligible to submit another renewal application; or
- a statement that the operation is not eligible to submit another renewal application.

Operation Has Contact Email Address

If the operation has a contact email address in CLASS and has not indicated a preference for a paper renewal application, CLASS will automatically generate and send the notification to the operation.

Operation Does Not Have Contact Email Address

If the operation does not have a contact email address in CLASS or has indicated a preference for a paper renewal application, the inspector prints and mails the rejection letter to the operation.

3927 Refusal to Renew a Permit

Revision 22-4; Effective Sept. 20, 2022

CCR may refuse to renew the permit of an operation that is subject to the permit renewal requirements. A refusal to renew is a type of adverse action that may occur before or after the renewal period expires.

Procedure

When refusing to renew a permit, CCR staff:

- leave the renewal application pending;
- do not send CLASS Form Final Permit Renewal Application Rejection Notification to the operation; and
- follow procedures in 7630 Taking Adverse Action.

26 TAC Section 745.8655

3930 Expiration of a Permit

July 2018

There are three ways a permit can expire:

1. The operation does not submit a permit renewal application by the end of the late renewal period.
2. CCR rejects a permit renewal application that the operation submitted during the renewal period, and the operation does not submit another renewal application by the end of the late renewal period.
3. CCR rejects a permit renewal application that the operation submitted during the late renewal period, and the operation does not submit a complete renewal application within 15 days after the date of rejection.

26 TAC Section 745.481

Procedure

CLASS will identify any operation that meets one of the conditions for expiration of the permit.

Within five days of receiving the *To-Do* notification that an operation meets the conditions for expiration, the inspector must either work with the operation to accept the renewal application or expire the permit.

To expire the permit of an operation that meets one of the conditions for expiration, the CCR inspector:

a. obtains supervisory approval to expire the permit;
b. documents the reason for the expiration, the name of the supervisor who approved the expiration, and the date of the approval in the *Comments* narrative box in the *Expire Permit* section on the *Permit Renewal* page;
c. selects *Proceed to Expire Permit*;
d. prints and sends the CLASS Form Permit Expiration Notification to the operation via certified mail; and
e. sets the *Operating Status* to *No* on the operation's main page in CLASS and enters the date the permit was expired as the *Effective Date*.

A supervisor may provide approval for the inspector to exceed the five-day time frame. Natural disasters or other issues beyond the operation's control that may have interrupted mail services or otherwise prevented the operation's ability to meet the deadline should be considered before expiring the operation's permit.

The inspector documents the supervisor's approval to exceed the five-day time frame in a *Chronology* (type *Renewal*). Documentation includes the supervisor's full name and date of approval.

3931 Closing the Operation Due to Expiration of the Permit

Revision 22-4; Effective Sept. 20, 2022

Procedure

Within 15 days of expiring the permit and sending the CLASS form Permit Expiration Notification, the CCR inspector conducts an inspection to verify the operation is no longer caring for children.

After the inspection:

- the inspector generates a new unregulated operation investigation if the operation is caring for children; and
- the CCR staff assigned to the operation takes the following actions on the *Application/Closure* page in CLASS:
  - generates the CLASS Form 2865e, 2825 Vol Suspension/Relocation/Clsr Letter, selects the appropriate statement about expiration of a permit, and mails notification to the operation;
  - enters the current date in the *Closure Date* field; and
  - selects *Permit Expired* as the reason for the closure.

See 6530 Investigations of Unregulated Operations

3932 When Operations are Ineligible for Grandfather Provisions if Ownership Changes

3932.1 Child Day Care

April 2010

If a child day care operation that was issued a permit before September 1, 2003, changes ownership, the operation must comply with all current minimum standard rules and can no longer operate under any of the grandfather provisions in Texas Administrative Code (TAC) Chapters 746 and 747.

Texas Human Resources Code §42.048(e)

3932.2 Residential Child Care

April 2010

If a residential child care operation that was issued a permit before January 1, 2007, changes ownership, the operation must comply with all current minimum standard rules and can no longer operate under any of the grandfather provisions in Chapters 748, 749, and 750 of the Texas Administrative Code.

Texas Human Resources Code §42.048(e)

3933 Steps to Process an Application

September 2012

Procedure

For licensed operations, see 3313.4 Evaluating Compliance to determine whether an initial or non-expiring license permit is needed.

The application is processed according to the procedures in 3200 Processing the Application for a License, Certificate, Compliance Certificate, Registration, or Listing.

As with any new application, a new operation number will be issued.

See also:

6200 Assessing and Processing Intake Reports

CLASS Online Help:

Close an Operation

Receive a Day Care License Application

4000, Inspections

4100, Inspecting Child-Care Operations

Revision 23-4; Effective Nov. 30, 2023

CCR staff inspect child care operations to assess the risk to children in those operations, in accordance with statutes, administrative rules, and minimum standards.

To determine an operation's compliance, CCR staff:

a. observe the operation's performance;
b. review the records and files maintained by the operation;
c. cite the operation's deficiencies, based on statutes, administrative rules and minimum standards;
d. document observations to capture scope and severity;
e. consider the risks posed by violations of statutes, administrative rules and minimum standards;
f. use critical thinking to assess the operation's overall compliance history;
g. help the permit holder identify problems that contribute to deficiencies and provide technical assistance to help the permit holder understand how to comply with statutes, administrative rules and minimum standards; and
h. consider all the relevant information together for a broad perspective.

The operation is responsible for developing and implementing plans to correct problems and prevent risk to children.

CCR staff are not responsible for managing the operation.

26 TAC Sections 745.8401; 745.8403

Procedure

CCR staff evaluate the risk associated with deficiencies and help the permit holder understand that he or she must comply with statute, administrative rules and minimum standards.

Documenting Findings

Once compliance is determined, CCR staff document the results of:

- their observations, to capture the scope and severity of issues that potentially pose a risk to children in care; and
- their inspections, within the specified time frame.

All monitoring activities, including results of inspections and technical assistance provided, must be documented in CLASS. Form 2936 Child-Care Facility Inspection is generated from CLASSMate.

See 4160 Documenting the Results of an Inspection.

4110 The Authority to Monitor Child Care in Texas

Revision 23-4; Effective Nov. 30, 2023

CCR staff may visit an operation during its operating hours to investigate, inspect and evaluate.

Human Resources Code Section 42.044(a)

26 TAC Sections 745.8401; 745.8403; 745.8405; 745.8407

CCR staff have the authority to:

a. determine whether an operation is subject to regulation;
b. conduct a walkthrough of the operation;
c. verify the operation's compliance with statutes, administrative rules and minimum standards;
d. assess the risk to children in the operation;
e. assist the operation with identifying problems contributing to deficiencies in statutes, administrative rules and minimum standards;
f. offer technical assistance;
g. gather information;
h. make a fair, accurate and impartial decision regarding the operation's compliance with statutes, administrative rules and minimum standards; and
i. investigate reports related to all operations.

4120 Types of Inspections

December 2015

Licensing staff select the most appropriate inspection type to record an inspection in CLASS. Except for inspections of child-placing agencies, all inspections at all operations must include a walk-through for obvious minimum standard deficiencies (deficiencies that are in plain view).

See:

4121 Application Inspections
4122 Attempted Inspections
4123 Follow-Up Inspections
4124 Initial Inspections
4125 Investigation Inspections
4126 Monitoring Inspections
4127 Monitoring and Investigation Inspections
4128 Other Types of Inspections
4150 Conducting Inspections

4121 Application Inspections

December 2011

Procedure

Application inspections are conducted during the application phase and generally include an evaluation of all applicable subchapters. See 3313 Inspecting the Operation (Except Listed Homes).

4122 Attempted Inspections

August 2012

Procedure

Attempted inspections include inspections conducted without making contact with the operation. See 4156 When an Inspection Is Attempted.

4123 Follow-Up Inspections

Revision 24-2; Effective May 22, 2024

Procedure

Follow-up inspections include evaluating individual minimum standards, conditions, or restrictions, instead of evaluating an entire subchapter of minimum standards or all conditions or restrictions on the operation's permit.

Examples of reasons for follow-up inspections include:

a. Making sure the operation addressed recent deficiencies or a pattern of repeated deficiencies that may be followed up on without an inspection. Reference 4300 Conducting a Follow-Up with an Operation.
b. Meeting with the designated director at a licensed day care center. Reference 4131.3 Child Day Care Annual Meeting with the Designated Director at a Licensed Child Care Center.
c. Amending a permit or certificate. Reference 3810 Circumstances That May Require Amending the Permit.
d. Evaluating an operation's compliance with the conditions established to address the issues identified during a risk evaluation. Reference 4152 Reviewing Restrictions, Conditions, Waivers, and Variances, and 10000 Background Checks.
e. Following up on suspension, revocation, or denial. References 7631.5 Follow-Up After Delivery of Notice of Intent to Take Adverse Action When Operation Required to Close Immediately and 7636 Follow-Up to Final Notice of Suspension, Revocation, or Denial.
f. Monitoring during the appeal process. Reference 5720 Regulating Pending the Due Process Hearing for Denial, Refusal to Renew, Revocation, or Suspension.
g. Following up on a waiver-variance condition. References 4152 Reviewing Restrictions, Conditions, Waivers, and Variances and 5120 Decision Guidelines for Recommending to Grant or Deny a Waiver or Variance.
h. Monitoring the temporary relocation of an operation. Reference 5520 Temporary Relocation.

Reference

Conducting a Follow-Up With an Operation, 4300

4124 Initial Inspections

December 2015

Procedure

Initial inspections are inspections that are conducted during the initial period for a licensing permit.

See 3511 Conducting Inspections During the Initial License Period.

4125 Investigation Inspections

September 28, 2018

Procedure

Investigation inspections include the investigation of reports alleging:

- violations of Licensing statutes;
- violations of administrative rules;
- violations of minimum standards; or
- a combination of these.

If an investigation interview is conducted at an operation other than the one named in the report, the inspection is classified as *Other* in CLASS. See 6000 Investigations.

4126 Monitoring Inspections

December 2015

Procedure

Monitoring inspections must include evaluation of at least one entire subchapter of the applicable minimum standards and may include evaluation of additional individual laws, administrative rules, or minimum standards, or any conditions or restrictions. See 4140 Preparing for Inspections.

4127 Monitoring and Investigation Inspections

December 2015

Monitoring and investigation inspections include the investigation of a report during a monitoring inspection.

See 4125 Investigation Inspections and 4126 Monitoring Inspections.

4128 Other Types of Inspections

Revision 24-2; Effective May 22, 2024

Other types of inspections are conducted for such purposes as:

a. consulting with an operation's administrator or director;
b. hand-delivering a corrective or adverse action notice;
c. conducting an investigation interview; or
d. conducting a heightened monitoring (HM) inspection, including an HM follow-up inspection.

4130 Minimum Requirements for Monitoring Inspections

Revision 24-1; Effective Feb. 20, 2024

The operation's permit type determines:

- the minimum frequency that monitoring inspections are conducted; and
- the time frame by which compliance with all minimum standards must be evaluated.

An operation's deficiencies and the associated weight of the deficiencies may indicate a need for more frequent inspections. Find the recommended monitoring frequency on the *Enforcement Recommendations* page in CLASS.

References:

4131 Minimum Requirements for Licensed Operations
4132 Minimum Inspection Requirements for Registered Child Care Homes
4133 Operations That Are Not Regularly Inspected
4150 Conducting Inspections
4500 Evaluating Risk to Children and Handling Immediate Danger
7441 Inspecting an Operation During Probation

4131 Minimum Requirements for Licensed Operations

August 2020

First 12 Months After Issuance of a Full License

During the first 12 months following the issuance of a full license, the inspector:

- conducts at least one unannounced monitoring inspection every six months; and
- evaluates for compliance with all minimum standards within 12 months.

The inspector has until the last day of the last month during each six-month period to complete the inspection that is due during the relevant six-month period. For example, a full license is issued in January 2019, so:

- the first six-month inspection is due by June 30, 2019;
- the second six-month inspection is due by January 31, 2020; and
- the inspector would cumulatively have to evaluate the operation for compliance with all minimum standards during the entire 12-month period.

Subsequent Years After Issuance of a Full License

After the first 12 months following the issuance of a full license, the inspector:

- conducts an unannounced monitoring inspection at least annually (not more than 366 days), based upon an assessment of risk to children; and
- evaluates for compliance with the following minimum standards, depending on the operation type:

Type of Operation	What Standards and in What Time Frame
Licensed Child Care Centers, School-Age Programs, Before- or After-School Programs, and Licensed Child Care Homes	• All minimum standards every two years. • Core health and safety minimum standards annually. See 4131.4 Collection of Ratio Data for Licensed Child Care Centers
Licensed residential operations	All minimum standards every two years.

Texas Human Resources Code Section 42.044(b)

45 Code of Federal Regulations §98.41

Required Inspections During Night or Weekend Hours for Residential Operations (Other Than a Child-Placing Agency)

At least once every two years, CCR staff must inspect a residential operation (other than a child-placing agency) after 7 p.m. on a weekday or anytime on the weekend. Staff are not required to read records when conducting an inspection at a residential operation during night hours.

Required Inspections for Day Care Operations When Nighttime Care is Provided

At least once every two years, staff must inspect a day care operation that provides nighttime care during the hours that the operation provides nighttime care. Staff must conduct at least some portion of the inspection between 9 p.m. and 6 a.m. during hours of operation.

Procedure

If an inspection cannot be made during night or weekend care, staff:

a. obtain supervisory approval to conduct the inspection during regular visiting hours;
b. document the justification for conducting the inspection during regular visiting hours in CLASS as a *Chronology* with a category of *Monitoring*; and
c. document a plan for how nighttime and weekend care will be evaluated for compliance with minimum standards.

Two-Year Period Measurement

Procedure

The inspector measures a two-year period by beginning with the first day of the month in which CCR issued the full license and counting in two-year increments. For example, if the license was issued on September 10, the two-year period would begin on September 1 and end on August 31 two years later.

Selecting Subchapters on CLASS Form 2936 Child-Care Facility Inspection

Procedure

Within the first 12 months of issuance and within each subsequent two-year period, the inspector selects all checkboxes that are available for selection in CLASS that pertain to minimum standard subchapters. If the inspector cannot complete an evaluation of the operation's compliance with all subchapters during the final inspection of the period, the inspector documents in the *Narrative* box of CLASS Form 2936 any specific subchapter that the inspector did not evaluate compliance with and explains why the evaluation of the operation's compliance with that subchapter was not necessary or possible during the inspection.

Example: When the Evaluation of an Operation's Compliance is Not Necessary

A school-age program does not transport children, but the checkbox for Subchapter Q (Transportation) is available for selection on CLASS Form 2936. The final monitoring inspection of the current two-year period is being conducted and the inspector selects all remaining subchapters (including Subchapter Q) that had not previously been selected in the two-year period. Because Subchapter Q does not apply to the operation, the inspector also documents the following in the *Narrative* box: "Although Subchapter Q was selected for this inspection, the operation does not provide transportation services; therefore, compliance could not be evaluated with that subchapter."

Example: When the Evaluation of an Operation's Compliance is Not Possible

A child-placing agency is licensed to provide foster care and adoptive services; however, no adoptive placements occurred in the current two-year period. The final monitoring inspection of the current two-year period is being conducted and the inspector selects Subchapters Q (Adoptive Services: Children), R (Adoptive Services: Birth Parents), and S (Adoption Services: Adoptive Parents) on CLASS Form 2936, but also documents the following in the *Narrative* box: "Although Subchapters Q, R, and S were selected for this inspection, the operation has not provided any adoption services during this two-year period; therefore, compliance could not be evaluated with those subchapters."

4131.1 Residential Child Care Monitoring Inspections for CPA Branch Offices

September 28, 2018

When a child-placing agency (CPA) with a full license opens a branch office, the inspector conducts a monitoring inspection at the branch office.

Branch Office Opens During the First 12 Months After the CPA is Issued a Full License

Procedure

When a CPA opens a branch office during the first 12 months following the issuance of the CPA's full license, the inspector:

- conducts a monitoring inspection at the branch office evaluating compliance with all minimum standards within six months after the branch office opens; and
- schedules and conducts additional inspections at the branch office according to the monitoring frequency of the CPA's main office, until the CPA has had a full license for one year.

After the CPA has had a full license for more than 12 months, the inspector:

- conducts additional monitoring inspections at the branch office at least annually, based upon an assessment of the risk to children (see 4130 Minimum Requirements for Monitoring Inspections); and

- evaluates each CPA branch office for compliance with all minimum standards during each two-year period.

Branch Office Opens More than 12 Months After the CPA is Issued a Full License

Procedure

When a CPA opens a branch office after the first 12 months following the issuance of the CPA's full license, the inspector conducts a monitoring inspection at the branch office and evaluates for compliance with all minimum standards within six months after the branch office opens.

Thereafter, the inspector:

- schedules inspections in CLASS.
- conducts additional monitoring inspections at least annually, based upon an assessment of the risk to children (see 4130 Minimum Requirements for Monitoring Inspections); and
- evaluates each CPA branch office for compliance with all minimum standards during each two year period.

4131.2 Residential Child Care Team Inspections

December 2011

Licensing staff conduct an unannounced team inspection at each residential child care facility, including each child-placing agency (CPA) branch office, at least once annually. A team inspection is an inspection that is conducted by at least two residential child care inspectors.

Texas Human Resources Code §42.044(b-1)

Procedure

Licensing staff conduct team inspections at each residential child care facility, including CPA branch offices, at least once per year. Each team inspection must:

- be unannounced; and
- be conducted by at least two residential child care inspectors who work at different residential child care inspection units.

If the inspectors do not work at different inspection units, Licensing staff:

- document the reason in the CLASS *Chronology / Monitoring Category*; and
- obtain approval from a Licensing supervisor before conducting the team inspection.

4131.3 Child Day Care Annual Meeting with the Designated Director at a Licensed Child Care Center

August 2021

The inspector meets with the designated director at least once annually during an unannounced inspection at a licensed child care center, to determine whether the designated director:

- complies with 26 TAC Section 746.1001 and Section 746.1003; and
- meets minimum standard qualifications in 26 TAC Section 746.1015 and Section 746.1017.

If the inspector is unable to evaluate director qualifications because the director is not present during at least one of the unannounced inspections within a 12-month period, the inspector conducts a follow-up inspection. If the director is not present during the follow-up inspection, the inspector schedules a follow-up meeting at the operation to meet with the director to review the director's qualifications.

If the director is not present during at least one of the unannounced inspections within a 12-month period, the inspector schedules a meeting with the director to review the director's qualifications. This meeting must be held at the operation.

Texas Human Resources Code Section 42.044(b-2)

Procedure

Annual Review of the Designated Director's Qualifications

The inspector meets with the designated director of a licensed child care center during at least one monitoring inspection within each 12-month period. During this meeting, the inspector evaluates the director's qualifications by reviewing:

a. The original *Child Care Center Director's Certificate* or approved waiver or variance for director qualifications*;* and
b. Most recent background check to ensure it is current.

The inspector documents the review of the director's qualifications by selecting the *Dir Qual Eval* box on the *Inspection Detail* page in CLASS.

The inspector cites the appropriate minimum standard and unchecks the *Valid Director Certificate* checkbox on the *Governing Body Designation* page in CLASS, if:

- the director does not meet the qualifications or have a current waiver or variance for director qualifications; or
- the director's certificate has expired.

If the designated director has an approved waiver or variance for director qualifications, the inspector documents whether the director has made progress toward compliance in the *Narrative* text box on the *Inspection Detail* page in CLASS. The inspector also evaluates whether the director qualifies for a non-expiring director's certificate if the director has an expiring one.

If there are any changes in how the director qualifies since the last inspection, the inspector documents how the director meets the qualifications by selecting the appropriate option in the *How DC Director Qualified* field on the *Governing Body Designation* page in CLASS and issues a new director certificate that indicates how the director now meets the qualifications.

When the Director is Not Present for an Annual Review of Qualifications

If the designated director is not present during an unannounced monitoring inspection that requires the inspector to complete the annual review of the director's qualifications, the inspector meets with the director during a follow-up inspection at the operation as follows:

Deficiency Cited at the Last Monitoring Inspection?	Complete the Annual Review of Director Qualifications During…
High-weighted only,	an unannounced follow-up inspection conducted no later than 15 days after the latest compliance date of the deficiencies.
Non-high-weighted only (that is, medium-high, medium, medium-low and low),	an unannounced follow-up inspection conducted no later than 30 days after the latest compliance date of the deficiencies.
High- and non-high-weighted,	an unannounced follow-up inspection within 15 days of the latest compliance date of the high-weighted deficiencies.
No,	an announced or unannounced follow-up inspection conducted no later than 30 days after the last monitoring inspection.

If the director is not present during an unannounced follow-up inspection, the inspector schedules a meeting with the director at the operation.

If the director does not respond to a request to meet, the inspector cites the operation for a violation of minimum standard, 26 TAC Section 746.1011, and follows up as appropriate.

When the Annual Review of Qualifications is Late

If the director's qualifications cannot be reviewed within the required 12-month period, the inspector:

- obtains the supervisor's approval to conduct the inspection at a later date; and
- documents the supervisor's approval in CLASS, in the *Chronology/Monitoring Category*.

Tracking How Frequently a Director is Present During Inspections

The inspector evaluates how frequently or infrequently the director is not present by reviewing how often the *Director Present* check box in CLASS has been checked in the past year. If the director is frequently not present, the inspector determines a plan of action, which may include contacting the permit holder to acquire the director's work schedule.

4131.4 Collection of Ratio Data for Licensed Child Care Centers

April 2021

Child Care Regulation (CCR) staff will gather certain ratio data for each classroom during a monitoring or monitoring/investigation inspection at a licensed child care center when there are children four years of age or younger present during the inspection.

Texas Human Resource Code Section 42.0412(c)

Procedure

During the walk-through of a monitoring or monitoring/investigation inspection of a licensed child care center, CCR staff will document the following in the *Classroom Information* section on the *Inspection Details* page of CLASS Form 2936 for each classroom with children four years of age and younger present:

- the total number of children;
- the specified age of children in each group;
- the number of caregivers supervising the group of children;
- classroom type;
- a name exclusive to each classroom;
- activities observed in the classroom during the inspection; and
- if child/caregiver ratio is not met (this information does not replace a citation for ratio).

Staff selects the *Add Classroom* button to add classroom details in the *Classroom Information* section for each classroom that has children age four years old or younger present during the inspection.

If no children age four years old or younger are present at the operation during the inspection, staff will select *The operation has zero classrooms where children age four years old or younger are present* check box.

This information can be modified in CLASS until the inspection is frozen.

See 4161.2 Documenting Inspection Results on CLASS Form 2936

4131.5 Health and Safety Audits for Licensed Child Day Care Operations

April 2021

Child Care Regulation (CCR) must annually conduct at least one health and safety audit during an unannounced monitoring inspection for licensed child care centers, before- or after-school programs, school-age programs, and licensed child care homes.

45 Code of Federal Regulations Section 98.42

Procedure

A health and safety audit is a review of core measures related to health and safety, conducted during a monitoring inspection. The inspector completes a health and safety audit by completing the appropriate *Health and Safety Audit Checklist* or conducting a *standard-by-standard* monitoring inspection.

Selecting Subchapters on the Inspection Form

The CCR inspector selects a minimum standard subchapter on CLASS Form 2936 Child-Care Facility Inspection when:

- the inspector plans to evaluate the entire subchapter, not just a core measure within the subchapter; or
- the operation is deficient with two or more core measures within a content area that requires a review of an entire subchapter.

See:

4161.1 Creating a Draft CLASS Form 2936

4132 Minimum Inspection Requirements for Registered Child Care Homes

Revision 23-4; Effective Nov. 30, 2023

First 12 Months After Issuance of a Registration

During the first 12 months following the issuance of the registration, the inspector conducts an unannounced monitoring inspection to evaluate compliance with all minimum standards.

Additional monitoring inspections are based on an assessment of risk to children.

45 Code of Federal Regulations Section 98.42

Subsequent Years After Issuance of a Registration

The inspector conducts unannounced inspections for compliance with all minimum standards at least every two years, unless the home has an agreement to receive a subsidy from the Texas Workforce Commission (TWC).

The inspector measures a two-year period by beginning with the first day of the month in which CCR issued the registration and counting in two-year increments. For example, if a registration was issued on Sept. 10, the two-year period would begin on Sept. 1 and end on Aug. 31 two years later.

26 TAC Section 745.8405(a)(3)

Selecting Subchapters on CLASS Form 2936 Child-Care Facility Inspection

Procedure

Within the first 12 months of issuance and within each subsequent two-year period, the inspector selects either:

- the *Standard x Standard Inspection* checkbox if only one monitoring inspection is planned; or
- all checkboxes available for selection in CLASS that pertain to minimum standard subchapters.

If the inspector cannot complete an evaluation of the operation's compliance with all subchapters during the final inspection of the period, the inspector documents in the *Narrative* box of CLASS Form 2936 any specific subchapter that the inspector did not evaluate compliance with and explains why the evaluation of the operation's compliance with that subchapter was not possible or necessary during the inspection.

Example: When the Evaluation of an Operation's Compliance is Not Necessary

A home does not transport children, but the checkbox for Subchapter X (Transportation) is available for selection on CLASS Form 2936. The final monitoring inspection of the current two-year period is being conducted and the inspector selects all remaining subchapters (including Subchapter X) that had not previously been selected in the two-year period. Because Subchapter X does not apply to the operation, the inspector also documents the following in the *Narrative* box: "Although Subchapter X was selected for this inspection, the operation does not provide transportation services; therefore, compliance could not be evaluated with that subchapter."

Example: When the Evaluation of an Operation's Compliance is Not Possible

A home is approved to provide field trips as one of its services; however, the primary caregiver has indicated no field trips have occurred in the current two-year period. The final monitoring inspection of the current two-year period is being conducted and the inspector selects Subchapter N (Field Trips) on CLASS Form 2936, but also documents the following in the *Narrative* box: "Although Subchapter N was selected for this inspection, the operation has not had any field trips during this two-year period; therefore, compliance could not be evaluated with that subchapter."

Registered Child Care Homes with a TWC Subsidy Agreement

For a registered child care home that has entered into a subsidy agreement with TWC, the inspector conducts an unannounced *Standard x Standard* monitoring inspection annually.

The inspector conducts the inspection within 12 months from the date the operation's subsidy status changed in CLASS, or two years from the date of the last monitoring inspection, whichever comes sooner.

Additional Requirements for All Inspections on Registered Child Care Homes

Procedure

If CCR staff find any of the following conditions when inspecting a registered child care home that participates in the Child and Adult Care Food Program (CACFP) of the Texas Department of Agriculture, staff send a letter to the contract manager for the CACFP, using Form 2874 Report of Provider Contact available on the CCR SharePoint site:

1. The operator is not caring for children.
2. No children are in care when meals are served.
3. The operator has a full-time job outside of the home.
4. Meals are served, but child care is not provided.
5. Only the operator's own children are in care.
6. The home has exceeded its capacity (serves more children than it is approved to serve).
7. The children in care are older or younger than the home is approved to serve.

4133 Operations that are Not Regularly Inspected

Revision 23-4; Effective Nov. 30, 2023

Listed Family Homes

CCR staff inspect listed family homes only as part of an investigation.

See:

6231.1 Intake Reports to Be Investigated by CCR
6231.11 Reports Received for Listed Family Homes Caring for Related Children Only

Human Resources Code Section 42.044(b)

26 TAC Sections 745.8405(a)(1) and (2)

Small Employer-Based Child Care and Temporary Shelter Programs

CCR staff do not conduct regular monitoring inspections on small employer-based child care or temporary shelter programs. However, CCR staff may need to conduct any of the other types of inspections listed below:

a. Application Inspections
b. Follow-up Inspections
c. Investigation Inspections
d. Other

See:

4121 Application Inspections
4123 Follow-Up Inspections
4125 Investigation Inspections
4128 Other Types of Inspections

Human Resources Code Sections 42.153, 42.162, 42.203, 42.209

26 TAC Sections 745.8405(a)(7) and (8)

4140 Preparing for Inspections

4141 Preparing for Application, Initial, and Monitoring Inspections

Revision 24-2; Effective May 22, 2024

CCR staff prepare for each application, initial, or monitoring inspection by reviewing the:

- operation's record;
- last enforcement action recommended for the operation;
- frequency of inspections of the operation;
- operation's compliance history documented in CLASS;
- operation's fee payment history;
- operation's background check records documented in CLASS;
- operation's controlling person list documented in CLASS;
- recommendations from enforcement team conferences for residential operations inspections; and
- results of random-sampling inspections of CPAs if preparing to inspect a CPA.

CCR staff also complete an extended compliance history review for residential child care operation inspections per 4143 Conducting an Extended Compliance History Review (RCCR Only).

CCR staff use information obtained during the review to decide which minimum standards to evaluate during the planned inspection.

If deficiencies with standards that pose a risk to the health and safety of children were cited during a previous inspection or investigation, CCR staff must reevaluate the same and related standards at the inspection.

Procedure

Reviewing Background Materials

To prepare for an inspection, CCR staff review the following:

a. the most recent information in CLASS on enforcement recommendations for the operation, including:
    - the recommendation;
    - any other enforcement actions taken in the past year by other HHSC staff; and
    - the operation's recommended monitoring frequency;
b. the capacity of the operation, the ages of the children served, the days, months, and hours of operation, and the services provided;
c. the operation's address, including the *Location Address Validation Status* and *Mailing Address Validation Status*, to determine if either status is set to *Not Validated;*
d. the directions to the operation;
e. the name of the designated director, operator, or licensed administrator;
f. the qualifications of the designated director or operator;
g. the last renewal date of the license of a designated director or licensed administrator, if applicable;
h. a history of the operation, including:
    - prior investigations, including investigation and inspection findings and technical assistance provided;
    - prior inspections, including findings and technical assistance provided;
    - minimum standard rules that may need to be reevaluated for compliance;
    - conditions and expiration dates of any waivers, variances, and risk evaluations;
    - results of random-sampling inspections of CPA foster homes for inspections of child-placing agencies only as outlined in 4431 Using Random-Sampling Inspections to Regulate a Child-Placing Agency; and
    - prior extended compliance history reviews for residential operations;
i. the operation's fee payment history to determine if the operation is current on all applicable fees unless the operation is exempt from paying all fees per 5240 Verification of Fee Payments;
j. the operation's background check records in CLASS to verify the operation has complied with all background check requirements as outlined in 10000 Background Checks;
k. the operation's controlling person list in CLASS to determine if any person on the list has a status of *Review* per 5430 Processing and Reviewing the Information on Controlling Persons Submitted by an Operation and the relevant subsections;
l. recommendations from enforcement team conferences for inspections of CPAs and GROs as outlined in 4441 Enforcement Team Conferences for Child-Placing Agencies and General Residential Operations;
m. optional checklists, forms, reading guides, and applicable technical assistance materials.

Draft Form 2936 Child-Care Facility Inspection

After reviewing the background materials related to an operation but before conducting the inspection, CCR staff:

- complete a draft inspection Form 2936 Child-Care Facility Inspection, located in CLASS; and
- upload the draft Form 2936 to CLASSMate.

Staff refer to 4142 Preparing for Investigation Inspections for information on preparing for investigation inspections.

Reference

Completing CLASS Form 2936 Child-Care Facility Inspection, 4161

4141.1 Monitoring Inspections During an Investigation

May 2020

If an operation is under investigation, inspectors consult with the CCR supervisor while preparing for the inspection to determine whether an inspection will interfere with the investigation. CCR staff do not conduct an inspection if it would interfere with an ongoing investigation.

4142 Preparing for Investigation Inspections

May 2020

Child Care Regulation (CCR) staff prepare for an investigation inspection by reviewing:

a. intake report;
b. operation's record;
c. last enforcement action recommended for the operation;
d. frequency of inspections made of the operation;
e. operation's compliance history, as documented in CLASS; and
f. operation's background check records, as documented in CLASS.

CCR staff also complete an extended compliance history review for residential child care operations. See 4143 Conducting an Extended Compliance History Review (RCCR Only).

Draft Form 2936 Child-Care Facility Inspection

After reviewing the information listed above, but before conducting the inspection, CCR staff create and save the initial draft of Form 2936 Child-Care Facility Inspection in CLASS. See 4161 Completing CLASS Form 2936 Child-Care Facility Inspection.

For information on preparing for other types of inspections, see 4141 Preparing for Application, Initial, and Monitoring Inspections.

Procedure

Reviewing Background Materials

To prepare for an inspection, CCR staff review all of the following:

a. the most recent information in CLASS on enforcement recommendations for the operation, including the recommendation, and the enforcement actions taken by other CCR staff;
b. the capacity of the operation, the ages of the children served, the hours of operation (including days and months), and the services provided;
c. the operation's address and the directions to the operation;
d. the name of the designated director, operator, or the name of the licensed administrator;
e. a history of the operation, including all of the following:
    - prior investigations;
    - previous deficiencies;
    - conditions and expiration dates of any waivers or variances and risk evaluations, if included as part of the allegations; and
    - prior extended compliance history reviews (for residential operations);
f. the operation's background check records in CLASS to verify that the operation has complied with all background check requirements (see 6470 Reviewing Background Check Records During Investigations and 10700 Monitoring Operations for Compliance with Background Check Requirements); and
g. optional checklists, forms, reading guides, and applicable technical assistance materials.

Create a Draft Inspection Form in CLASS

After reviewing the background materials related to an operation but before conducting the inspection, CCR staff:

- complete a draft inspection Form 2936 Child-Care Facility Inspection, in CLASS; and
- download the draft Form 2936 to CLASSMate.

See 4161 Completing CLASS Form 2936 Child-Care Facility Inspection.

4143 Conducting an Extended Compliance History Review (RCCR Only)

Revision 24-1; Effective Feb. 20, 2024

An inspector conducts an extended compliance history review (ECHR) as part of inspecting a residential child care operation. This requirement applies to the following types of inspections: monitoring, investigation, and monitoring and investigation.

The inspector completes a review and assessment of certain high-risk areas that occurred in the past five years while preparing for the inspection. These include:

a. the number of abuse, neglect or exploitation intakes;
b. the number of confirmed abuse, neglect or exploitation findings; and
c. the number of citations issued for corporal punishment.

When conducting this review and assessment, the inspector reviews data for the current operation and all prior operation numbers listed under the *Issuance History* section on the *Operation Main* page in CLASS.

After reviewing all the information gathered and before conducting the inspection, the inspector completes and documents a written narrative analysis that describes their evaluation of the operation's compliance history, and any risks identified.

Before finalizing the inspection, the inspector also documents the steps the inspector took during the inspection to mitigate any risk identified during the assessment, inspection, or both.

Procedure

To complete the review and assessment of certain high-risk areas noted above, the inspector does the following:

Type of Information to be Reviewed	CLASS Page on Which this Information is Listed	How CLASS Page is Accessed
Number of abuse, neglect, or exploitation intakes at the operation and all prior operation numbers listed under the *Issuance History* section on the *Operation Main* page in CLASS.	*ANE Intake and Finding Details*	By clicking the *View Compliance History* button in the *Extended Compliance History Review* section on the *Inspection Details* page.
Number of confirmed abuse, neglect, or exploitation findings at the operation and all prior operation numbers listed under the *Issuance History* section on the *Operation Main* page in CLASS.	*ANE Intake and Finding Details*	By clicking the *View Compliance History* button in the *Extended Compliance History* Review section on the *Inspection Details* page.
Number of citations issued for corporal punishment at the operation and all prior operation numbers listed under the *Issuance History* section on the *Operation Main* page in CLASS.	*Corporal Punishment Citation Details*	By clicking the *View Compliance History* button in the *Extended Compliance History Review* section on the *Inspection Details* page.

The inspector must review the investigation or inspection with the finding(s) if their review of this history shows findings of abuse, neglect or exploitation, or a violation of a minimum standard related to corporal punishment, and consider:

1. the *Explanation of the Disposition Based on Preponderance* narrative box located on the *Investigation Conclusion* page, if applicable;
2. the allegation narrative for the citation if applicable;
3. whether the allegations involved a child under 6 years;
4. any follow-up activity that was completed; and
5. any patterns of:
    - investigations; or
    - the agency homes involved in the investigations.

During the inspection, the inspector addresses with the person in charge any risks identified during:

- the inspector's review of the *ANE Intake and Finding Details* and *Corporal Punishment Citation Details* pages in CLASS;
- the inspection; or
- both.

4143.1 Assessing the Extended Compliance History

August 2020

Procedure

The inspector conducts an overall assessment of the information to determine if any of the following actions are necessary:

a. a discussion with the operation regarding patterns or trends;
b. a review of additional training records or serious incident reports;
c. a review of additional agency home history; or
d. recommend enforcement action.

4143.2 Documenting an Extended Compliance History Review

Revision 24-1; Effective Feb. 20, 2024

Procedure

The inspector does the following for each inspection requiring an ECHR:

Action	When Action is Completed
1. Documents the following information in the *Extended Compliance History Review* section on the *Inspection Details* page in CLASS: 1. the date the inspector reviewed the ECHR; 2. the total number of the following for the current operation and all prior operation numbers identified on the *Operation Main* page under the *Issuance History* section: 1. abuse, neglect, or exploitation intakes received;	No earlier than five days before the inspection.

Action	When Action is Completed
2. the number of confirmed findings of abuse, neglect, or exploitation; 3. the number of citations issued for corporal punishment; and 3. the inspector's assessment of the information reviewed, including risks identified, by completing each applicable field on the *Extended Compliance History Assessment* page, accessed by clicking the *Complete/View Assessment* button in the *Extended Compliance History Review* section on the *Inspection Details* page.	
2. Notifies the appropriate supervisor by email that the *Extended Compliance History Review* section has been completed if the ECHR is for an inspection at a foster home.	• P1 and P2 investigations when CCR **is** required to initiate by conducting an inspection: As early as possible before the inspection. • P1 and P2 investigations when CCR **is not** required to initiate by conducting an inspection: At least two days before the inspection. • P3 investigations: At least two days before the inspection. • P4 Investigations: At least two days before the inspection.
3. Creates a draft of CLASS Form 2936 Child Care Facility Inspection and downloads the saved draft to CLASSMate.	If the ECHR is for a foster home, after the supervisor replies to the inspector by email that the ECHR has been approved. If the ECHR is not for a foster home, after the inspector completes the *Extended Compliance History Review* section.
4. Documents a summary of the steps taken to mitigate risk at the operation in the *Steps Taken to Mitigate Risk* field on the *Inspection Details* page in CLASSMate.	During the inspection and before signing and finalizing CLASS Form 2936.

References:

Completing CLASS Form 2936 Child-Care Facility Inspection, 4161

Extended Compliance History Review Guide on the CCR SharePoint site.

4143.21 Supervisor Oversight of Extended Compliance History Review Documentation

Revision 24-1; Effective Feb. 20, 2024

Procedure

A supervisor ensures compliance with the ECHR documentation requirements outlined in 4143.2 Documenting an Extended Compliance History Review by:

- verifying the inspector is completing an ECHR in the required time frame, for each inspection that requires an ECHR;
- reviewing, providing feedback, and approving the completed ECHR in CLASS for all inspections of foster homes before the inspector conducts the inspection; and
- if case reading errors are identified on any ECHR, meeting with the inspector within five days of receiving the case reading results to review:
  - the results of the case reading; and
  - applicable policy and procedures.

4143.22 Documenting Supervisory Approval of an Extended Compliance History Review for an Inspection of a Foster Home

Revision 24-1; Effective Feb. 20, 2024

A supervisor documents approval of an ECHR for an inspection of a foster home within one day of approving the ECHR.

Procedure

To document approval of an ECHR for an inspection of a foster home, the supervisor enters the following information as a Chronology in CLASS using the *Investigation* category type:

- *Inspection Id* for the associated inspection, listed on the *Inspection Details* page;
- date listed in the *Inspection Start Date* field on the *Inspection Details* page;
- name of the inspector completing the inspection; and
- date the supervisor approved the ECHR.

4150 Conducting Inspections

Revision 23-4; Effective Nov. 30, 2023

When conducting any type of inspection, CCR staff must:

a. identify themselves as HHSC CCR staff and state the specific purpose of the inspection upon arrival at the site;
b. assess the risk to children;
c. terminate the inspection if the safety of CCR staff is threatened;
d. document the inspection results in CLASS (see 4160 Documenting the Results of an Inspection);
e. conduct an exit interview at the end of the inspection; and
f. offer technical assistance to help the permit holder identify problems that contribute to deficiencies with the statutes, administrative rules and minimum standards and understand how to comply with the requirements.

26 TAC Section 745.8401; 745.8403

Procedure

CCR staff must observe the following requirements when conducting any type of inspection on an operation:

a. Carry a valid HHSC identification card and present it to the person in charge.
b. Explain to the person in charge, upon arrival:
    1. the purpose of the inspection;
    2. the relevant statutes, administrative rules and minimum standards by which compliance will be evaluated;
    3. that compliance with additional statutes, administrative rules and minimum standards may be evaluated as the situation demands;
    4. that photographs and video may be taken by CCR during the inspection; and
    5. the operation may not record or listen to any CCR interview with staff, caregivers, or children or internal discussion between CCR staff, but an individual may record their own interview.
c. Obtain written consent before interviewing owner's biological or adopted children, even when the owner's or operator's children are in care at the operation. Other children in care may be interviewed, provided the child's parent has not previously refused to allow CCR staff to interview his or her children. See 6000 Investigations.
d. Terminate the inspection at any time when CCR staff feel unsafe. Staff must not be placed at risk. Report termination of an inspection to the supervisor. If the danger arises from the caregiver's resistance to the inspection, follow the procedures in 4159 Handling Resistance or Refusal to Allow Inspection.
e. Follow the procedures in 4520 Handling Immediate Danger to Children, if children are at risk.
f. Follow the procedures in 4156, When an Inspection is Attempted, if there is no one at the operation or no children are in care.
g. Follow the procedures in 6231.21 Upgrading an Intake Report to an Abuse, Neglect, or Exploitation Intake Report, if abuse or neglect is reported or is observed during the inspection.

4150.1 Additional Requirements for Investigation Inspections

Revision 23-4; Effective Nov. 30, 2023

The investigator conducts an unannounced investigation inspection at an operation that is the subject of the investigation according to the time frames in 6431 Requirements for Conducting Unannounced Inspections.

The first investigation inspection to the operation may be announced if the investigator has:

a. attempted one or more unannounced inspections;
b. obtained supervisory approval to conduct an announced inspection; and

c. documented the following in the *Observations Made During Inspection* narrative box on the *Investigation Conclusion* page in CLASS:
   - The reason for an unannounced inspection could not be conducted; and
   - The dates supervisory approval was requested and obtained.

Subsequent investigation inspections may be announced or unannounced.

Inspection Not Required

An investigation inspection is not required when the investigation was assigned a priority of 5 (P5).

See 6241 Classifying the Priority of the Intake Report.

26 TAC Section 745.8405

4150.2 Additional Requirements for Initial and Monitoring Inspections

April 2021

The inspector evaluates the operation's compliance in validating its Employee List at every initial and monitoring inspection.

See 10730 Validating the Employee List for an Operation

4151 Operation Walk-Throughs

June 2015

Any time Licensing staff visit an operation other than a child placing agency, staff perform an operation walk-through and cite any deficiencies observed during the walk-through.

Licensing staff walk through all of the following areas in the operation:

a. Indoor and outdoor activity areas;
b. Areas where meals are prepared and served;
c. Restrooms accessible to children; and
d. Sleeping areas.

Procedure

During all inspections, Licensing staff walk through the operation and assesses the risk to children related to obvious violations of the Licensing statutes, administrative rules, or minimum standards related to:

a. supervision of children;
b. child/caregiver ratio;
c. swimming pools and transportation safety, if applicable;
d. fire, safety, and sanitation requirements; and
e. responsibilities of the director, administrator, staff, or caregivers.

4151.1 Exceptions for an Investigation Inspection

June 2015

If Licensing staff has conducted previous investigations at the operation and a supervisor determines that Licensing staff is sufficiently familiar with the operation's compliance and investigation history, the supervisor may grant an exception that allows Licensing staff to conduct a condensed operation walk-through.

However, at minimum, Licensing staff must walk through:

a. the sleeping area of the alleged victim, if applicable;
b. the restrooms accessible to the alleged victim, if applicable; and
c. the specific area where the incident being investigated is alleged to have occurred.

When granting approval, the supervisor explains to Licensing staff which areas of the operation that Licensing staff is required to conduct a walk-through.

Licensing staff documents the exception approved by the supervisor in CLASS.

Procedure

For investigation inspections, Licensing staff is responsible for:

a. obtaining approval from the supervisor before conducting a condensed operation walk-through;
b. checking for and citing any obvious plain-view violations observed during the operation walk-through; and
c. inspecting the specific area where the incident being investigated is alleged to have occurred and citing any necessary deficiencies.

For an investigation inspection, Licensing staff documents the exception to conducting a full walk-through in the *Observations Made During the Inspection* section of the *Investigation Conclusion* page in CLASS. Documentation must include:

- the areas included in the walk-through; and
- the date the supervisor approved the exception.

4151.2 Exceptions for a Follow-Up Inspection

June 2015

If a follow-up inspection is conducted within the time frame referenced in 4320 Following Up With an Inspection, CCR staff may conduct a condensed walk-through limited to the area of the operation relevant to the follow-up inspection.

If a follow-up inspection is not conducted within the time frames referenced in 4310 Time Frames for Conducting Follow-Up. CCR staff must conduct a full walk-through.

4152 Reviewing Restrictions, Conditions, Waivers, and Variances

June 2016

At each initial or monitoring inspection, Licensing staff review any:

- restrictions on a permit;
- conditions on a permit;
- conditions related to a waiver or variance still in effect;
- conditions related to a risk evaluation still in effect;
- conditions related to a corrective action still in effect; and
- waivers or variances that have expired since the last monitoring inspection.

During an investigation or follow-up inspection, Licensing staff review and evaluate the operation's compliance with any restrictions or conditions if they are relevant to the investigation or follow-up being conducted.

4152.1 Documenting Deficiencies Related to Restrictions and Conditions

Revision 24-1; Effective Feb. 20, 2024

CCR staff document an operation's deficiencies in CLASS after reviewing the restrictions and conditions.

Procedure

CCR staff document any violations of restrictions or conditions on CLASS Form 2936 Child Care Facility Inspection for each inspection where restrictions or conditions are reviewed, by:

- citing the CCR statute, administrative rule, or minimum standard that was violated;
- describing the restriction or condition that was violated.
- using numbers or letters to reference each restriction or condition when it is being evaluated, if multiple restrictions or conditions were originally referenced using numbers or letters;
- describing the deficiency observed;
- describing how the deficiency was identified, such as if staff reviewed paperwork, interviewed the operation's staff or the children, or took photographs; and
- documenting the following, if the deficiency was corrected during the inspection:
    - If the deficiency was corrected during the inspection, CCR staff explain how it was corrected.
    - If the deficiency was not corrected during the inspection, CCR staff:
        - explain what correction is needed to either meet the conditions or to comply with the CCR statute, rule or minimum standard; and
        - provide a correction deadline date.

References:

Completing CLASS Form 2936 Child Care Facility Inspection, 4161
Inspecting an Operation During Probation, 7441

4152.2 When an Operation Repeatedly Fails to Meet Restrictions or Conditions

Revision 24-1; Effective Feb. 20, 2024

CCR staff consult with the supervisor on what action to take if the operation repeatedly fails to meet the restrictions or conditions.

References:

Handling Changes in an Operation, Type of Permit, Location, and Ownership, 3800
Revoking a Waiver or Variance, 5180
Amending Conditions of a Waiver or Variance, 5181
Voluntary Actions and Enforcement Actions, 7000
Background Checks, 10000

4152.3 Discussing Waivers and Variances

Revision 24-1; Effective Feb. 20, 2024

CCR staff discuss with the operation any waivers or variances that have expired since the last monitoring inspection. This is to assess the outcome of the waiver or variance and document the outcome in CLASS. Staff also discuss any waivers or variances that are still in effect to determine if any are no longer needed.

Reference: 5190 Documenting Outcomes for Waiver and Variance.

4153 Reviewing Records at an Operation or a Central Administrative Location

Revision 23-4; Effective Nov. 30, 2023

CCR staff review the records of licensed, registered and certified operations to evaluate compliance with relevant CCR statutes, administrative rules and minimum standards.

CCR staff must review a minimum number of records based on the operation's type and its capacity unless the inspection is being conducted during night hours at a residential operation.

The records are reviewed at the operation or at a central administrative location. If a Child-Placing Agency (CPA) operates at a main office or branch office that is not open between 8:00 a.m. and 5:00 p.m. Monday through Friday, the CPA must ensure that the office and employees are available upon CCR's request for the purpose of inspecting or investigating the CPA. CCR staff may make copies of documents, as needed, but they do not remove original records from the operation.

26 TAC Section 745.8405(c); 745.8413(c)

After evaluating records as part of an inspection, CCR staff document the type and number of records evaluated on CLASS Form 2936 Child-Care Facility Inspection.

See:

4161 Completing CLASS Form 2936 Child-Care Facility Inspection.
4153.4 Reviewing Records at a Central Administrative Location.

4153.1 Selecting a Sample of Records During Each Two-Year Period

Revision 23-2; Effective June 26, 2023

Procedure

CCR staff must read records that relate to:

a. children enrolled in or admitted to the operation;
b. personnel; and

c. serious incident reports (for residential operations).

CCR staff do not sample background check records. For policies on reviewing background check records, see 4153.2 Reviewing Background Check Records During Inspections.

When selecting records to read, CCR staff must not select records of children who are no longer enrolled in the operation or staff who are no longer employed by the operation, unless CCR is evaluating standards related to discharge requirements or the availability of records.

Additional Requirements for Child-Placing Agencies

In addition to the types of records listed above, staff read CPA records that relate to:

- verified foster homes;
- approved adoptive homes; and
- birth parents who have applied for services (for CPAs that do private adoptions).

When evaluating for standards related to transfers and agency home closure requirements, including agency home closure recommendations, staff select a sample of homes that within the past two years:

- transferred to another CPA;
- transferred to the CPA from another CPA; and
- closed.

Exception for personnel records at a CPA: If a CPA maintains personnel records only at the main office and the records are not available electronically at the branch office(s), the CCR staff assigned to the main office is responsible for selecting and reading personnel records for both the main office and all branch offices.

4153.11 Determining the Number of Records to Read at a Monitoring Inspection (All Record Types except Serious Injury Reports)

October 2020

Procedure

During at least one monitoring inspection during the operation's two-year compliance period, CCR staff read records associated with the subchapter(s) being evaluated during the inspection (as indicated on the *Inspections Details* page in CLASS). The minimum number of each type of record that staff must evaluate is based on:

- the operation's capacity, if the operation is not a child-placing agency; or
- the total number of verified foster homes and/or approved adoptive homes, if the operation is a child-placing agency. If reading personnel records for the main office and all branch offices, staff must base the number of personnel records on the total number of homes for all CPA office locations.

Capacity or Number of Homes	Minimum Number of Each Type of Record to Review During the Two-Year Compliance Period (Except Serious Injury Reports)
44 or less	4
45-74	6
75-94	8
95 or more	10

CCR staff may read more than the minimum number of records, if necessary, based on the risk identified at the operation or patterns of deficiencies observed.

If a CPA maintains personnel records only at the main office, and the records are not available electronically at the branch office(s), CCR staff must review personnel records from each branch during the two-year compliance period. To help ensure that all records are reviewed, CCR staff document in a *Chronology* the number of records reviewed from each branch office.

4153.12 Determining the Number of Serious Incident Reports to Read at a Monitoring Inspection (Residential Child Care Only)

October 2021

During each monitoring inspection of a general residential operation or child-placing agency, CCR staff read the minimum number of serious incident reports according to the operation's capacity or number of homes indicated in the following chart:

Capacity or Number of Homes	Minimum Number of Serious Injury Reports to Review During Each Inspection
44 or less	4
45-74	6
75-94	8
95 or more	10

When conducting a Heightened Monitoring (HM) inspection, the HM inspector follows the procedures outlined in 11454 Determining the Type and Number of Records to Review at a Heightened Monitoring Inspection of a GRO or CPA Office.

4153.13 Sampling Additional Records During a Follow-Up Inspection

October 2020

During a follow-up inspection conducted to confirm that the operation is now in compliance, CCR staff may sample additional records to ensure compliance. See 4300 Conducting a Follow-Up with an Operation.

4153.2 Reviewing Background Check Records During Inspections

June 2015

During each application, initial, and monitoring inspection, Licensing staff review background check records on all persons required to have a background check to determine whether the operation is in compliance with all background check requirements.

During each investigation inspection, Licensing staff ensures the operation has complied with background check requirements concerning the persons involved in the investigations, including principals and any collaterals interviewed. For follow-up inspections, Licensing staff review any background check records relevant to the follow-up being conducted.

See 4140 Preparing for Inspections, and 10700 Determining Compliance with Background Check Requirements.

4153.3 Reviewing Information on Controlling Persons

June 2015

Procedure

During inspections with a category of *Application*, *Initial*, or *Monitoring*, the inspector reviews the list of controlling persons with the person in charge to determine if:

a. the list accurately reflects the status of all controlling persons for the operation;
b. the information entered on each controlling person on the *Controlling Person Detail* page in CLASS is accurate; and
c. the operation has complied with all requirements on controlling person in statute, administrative rules, and minimum standards.

Controlling Person with a Status of Review

If any controlling person on the list has a status of *Review*, the inspector follows the procedures in 7773.4 Reviewing the Status of a Sustained Controlling Person in CLASS.

List of Controlling Persons in CLASS is Inaccurate

If the list of controlling persons in CLASS is inaccurate, the inspector:

a. documents the changes in a *Chronology* (category, *Controlling Persons*);
b. directs the operation to submit updated information according to the procedures in 5420 When and How Applicants and Operations Submit Information on Controlling Persons; and
c. cites a deficiency of the appropriate minimum standard, if the operation did not notify Licensing within two days of when a person became or ceased to be a controlling person.

4153.4 Reviewing Records at a Central Administrative Location

December 2019

If an operation, other than a child-placing agency, maintains records at a central administrative location, the inspector must visit the central location to review records within seven days before or after conducting an *Initial* or *Monitoring* inspection.

Reviewing records at a central administrative location is not documented as an inspection in CLASS.

Licensing staff documents the review of records in the following manner:

a. documents the visit to the central administrative location in CLASS Chronology;
b. selects subchapter(s) applicable to the review of records on CLASS Form 2936 Child Care Facility Inspection for the inspection that precedes or follows the review of records;
c. cites deficiencies:
    1. as an assessment in CLASS; or
    2. on CLASS Form 2936 associated with the inspection, if reviewing records before conducting the inspection at the operation and deficiencies do not present high risk to children in care.

Licensing staff follows up on deficiencies with the operation that were cited or with the person who maintains records at the central administrative location.

4154 Technical Assistance

4154.1 Providing Technical Assistance

Revision 23-4; Effective Nov. 30, 2023

CCR staff provide technical assistance as needed to help applicants, permit holders and operation employees understand and comply with statutes, administrative rules and minimum standards.

CCR staff provide technical assistance for each high-weighted violation.

Technical assistance supplements CCR's regulatory requirements by providing additional information or clarification. Technical assistance does not repeat the language as written in statutes, administrative rules or minimum standards.

All technical assistance provided by CCR staff must be documented in CLASS (4154.2 Documenting Technical Assistance).

Procedure

CCR staff provide technical assistance by giving applicants, permit holders and operation employees additional guidance and information to help them understand and comply with requirements in a specific statute, administrative rule or minimum standard.

Technical assistance may be provided orally or in writing:

- at any time during or at the conclusion of an inspection or investigation, including on the inspection form or investigation letter, regardless of whether the operation is deficient or in compliance with a particular statute, administrative rule or minimum standard;
- as part of an ongoing regulatory process; or
- at the operation’s request.

26 TAC Sections 745.8581 and 745.8583

Distributing Documents as Part of Providing Technical Assistance

Any documents CCR staff distribute as part of providing technical assistance must:

- come from the Technical Assistance Library (TA Library); or
- be an approved HHSC form.

CCR staff may print or email documents from the TA Library to applicants, permit holders or operation employees.

4154.2 Documenting Technical Assistance

May 2020

Child Care Regulation (CCR) staff document all technical assistance provided to an applicant, permit holder, or operation employee in CLASS, including the:

- name of any technical assistance resource or document given; and

- details of discussions regarding how to achieve or maintain compliance.

Documenting Technical Assistance Provided During an Inspection

Procedure

To document technical assistance provided during the course of an inspection, CCR staff enter the following information on the *Standards Detail* page of the inspection in CLASSMate or CLASS:

a. Select an individual CCR statute, administrative rule, or minimum standard and choose the appropriate finding.
b. Mark the *Technical Assistance* check box.
c. Document in the CLASS or CLASSMate *Technical Assistance Documentation* narrative box:
    - a summary of the information provided to the operation, and
    - the documents that were shared with the operation. See 4154.1 Providing Technical Assistance.

Documenting Technical Assistance Provided Outside of an Inspection

Procedure

If CCR staff provide technical assistance (TA) outside the course of an inspection, staff document the TA in the operation's record in CLASS as follows:

a. Create a new chronology, selecting *Operation General* for the type of chronology.
b. List which minimum standard, administrative rule, or statute the assistance was related to.
c. Summarize the information provided.
d. List which documents were shared with the operation. See 4154.1 Providing Technical Assistance.

4155 Determining When a Deficiency Can Be Corrected at Inspection

March 2019

CCR staff evaluate certain criteria to determine whether a deficiency may be corrected at inspection or whether CCR staff must follow up on a deficiency with or without an inspection. CCR staff consider the following criteria:

- risk to children;
- scope and severity of the deficiency;
- time and expense needed to correct the deficiency;
- provider's previous compliance history, including previous enforcement actions;
- provider's willingness and ability to comply; and
- action taken by the operation to comply.

See 4310 Time Frames for Conducting a Follow-Up

Procedure

CCR staff may indicate that the operation corrected the deficiency at the inspection if CCR staff determine that:

- the operation has the ability to correct the deficiency at the time of the inspection; and
- no follow-up action is needed to further evaluate compliance with the minimum standard.

Before concluding the inspection, CCR staff document that the operation corrected the deficiency at inspection. On the CLASS Form 2936 Child-Care Facility Inspection, CCR staff:

- select the *Corrected at Inspection* check box associated with the deficiency that was corrected; and
- document how the operation corrected the deficiency at inspection in the *Narrative* section associated with the deficiency.

4156 When an Inspection is Attempted

Revision 23-2; Effective June 26, 2023

For all inspections, except follow-up inspections on operations with a suspended, revoked, or denied permit, when there is no contact person at the operation when CCR staff arrives to conduct the inspection, CCR staff:

- document in CLASSMate and in CLASS that the inspection was not carried out for lack of a contact at the operation; and

- establish contact with the operation to determine whether the operation is providing child care services, unless contacting the operation would impede an ongoing investigation. CCR staff document all contacts or attempted contacts in CLASS as a *Chronology* with a category of *Monitoring* or *Investigation*, as appropriate.

For instructions on attempted inspections related to a follow-up inspection on an operation with a suspended, revoked, or denied permit, see 7636 Follow-Up to Final Notice of Suspension, Revocation, or Denial.

Procedure

Licensed, Certified, Registered, or Listed Operations

CCR staff document an attempt to inspect a licensed, certified, registered, or listed operation as follows:

a. Complete CLASS Form 2936 Child-Care Facility Inspection, documenting the attempted inspection and cite any observed deficiencies of CCR statutes, administrative rules, or minimum standards, if appropriate.
b. If mailing the form would not impede an ongoing investigation, CCR staff include in the form:
    - a request that the operation contact CCR staff within 10 days of receiving the form or letter, and
    - a warning that failure to respond may be interpreted by CCR as an indication that the operation has voluntarily closed.
c. Mail a copy of the form to the operator, applicant, or designee by regular mail.
d. If mailing the form would impede an ongoing investigation, CCR staff consult with the supervisor on when to mail the form to the operator, applicant, or designee.

If CCR staff mail CLASS Form 2936 after the attempted inspection, CCR staff follow the procedures in the chart below, based upon the operation's response to receiving CLASS Form 2936:

If …	then …
the operation does not respond on or before the first workday after 13 calendar days from the date CLASS Form 2936 was mailed (10 days after the date that the operation is presumed to receive the notification by regular mail) …	re-inspect to ensure the operation has closed. If there is no staff at the operation during the second attempt to inspect: • enter the inspection in CLASS as *Attempted* (see 5540 Voluntary Closure); and • close the operation in CLASS.
the operation notifies CCR that it is still in business but has no children in care …	notify the operation that it must be open to inspection and maintain compliance with CCR statute, administrative rules, or minimum standards, unless the person in charge chooses to close temporarily. See 5530 Voluntary Suspension.
the operation responds and notifies CCR that it is still in business and children are in care …	conduct an inspection, and continue to conduct inspections, thereafter, as appropriate. See 4140 Preparing for Inspections.

CPA Foster Homes – Attempted Investigation Inspections

To document an attempt to conduct an investigation inspection of a foster home verified by a child-placing agency (CPA), CCR staff do as follows:

a. Complete CLASS Form 2936 Child-Care Facility Inspection, documenting the attempted inspection and cite any observed deficiencies of CCR statutes, administrative rules, or minimum standards, if appropriate.
b. If mailing the form would not impede an ongoing investigation, CCR staff include in the form:
    - a request that the CPA contact CCR staff within 10 days of receiving the form or letter, and
    - a warning that failure to respond may be interpreted by CCR as an indication that the foster home is no longer verified by the CPA.
c. Mail a copy of the form to the CPA by regular mail.
d. If mailing the form would impede an ongoing investigation, CCR staff consult with the supervisor on when to mail the form to the CPA.

After completing CLASS Form 2936, CCR staff:

- consult with the supervisor on how to proceed with the investigation; and
- document the supervisor's guidance in CLASS as a *Chronology* with the type of *Investigation*.

CPA Foster Homes – Attempted Random-Sampling Inspections

If the inspector attempts a random-sampling inspection of a foster home that is verified by a child-placing agency (CPA), the inspector follows procedures in 4435.3 Attempted Random-Sampling Inspections.

4157 Visiting an Operation to Conduct an Investigation Interview When the Operation is Not the Subject of the Investigation

August 2012

When Licensing staff visit an operation as part of an investigation to interview a child or a person of interest and the operation is not involved in the allegations, Licensing staff:

a. Document the inspection on Form 2936 Child-Care Facility Inspection as *Other*. See 4161 Completing Form 2936 Child-Care Facility Inspection.
b. Do not conduct a walk-through inspection, but do cite any obvious, plain-view deficiency seen or heard.
c. Do not evaluate background check requirements.
d. Do not evaluate the operation's compliance with minimum standards.

4158 Avoiding Duplication of Child Day Care Inspections

July 2019

Child Care Regulation (CCR) staff do not monitor a licensed child care center, school-age program, before or after-school program, licensed child care home, or registered child care home for compliance with minimum standards when another state agency or political subdivision has inspected it for compliance with equivalent standards. See Texas Human Resources Code §§42.0442; 42.0443.

4158.1 Avoiding Duplication of Child Day Care Inspections by State Agencies and Political Subdivisions

May 2021

To eliminate redundancy, CCR reviews documentation from other state agencies and political subdivisions that inspect the same operations as CCR. CCR staff do not inspect an operation for compliance with a minimum standard if another agency or political subdivision:

- inspected the operation for compliance with an equivalent requirement within the last 12 months before the CCR inspection; and
- found the operation to be in compliance, or the operation provides documentation showing that it has:
  - corrected deficiencies to the satisfaction of the other agency or political subdivision; and
  - complied with all restrictions or conditions placed by the other agency or political subdivision.

CCR staff always investigate reports of alleged violations of minimum standards, regardless of whether another state agency or political subdivision has inspected the operation.

Procedure

The entities that inspect child day care operations for compliance with standards that are equivalent to CCR's minimum standards are:

- Immunization Branch of the Texas Department of State Health Services (DSHS);
- State Fire Marshal's Office (SFMO);
- Child and Adult Care Food Program (CACFP) of the Texas Department of Agriculture; and
- Some political subdivisions (cities, counties, junior college districts or public health districts), depending on what inspection requirements exist in those areas.

Actions Required by CCR

If a state agency or political subdivision finds that an operation is not in compliance with a requirement that is equivalent to a CCR law, administrative rules, or minimum standards and the operation does not correct the deficiency, CCR staff:

- evaluate the operation's compliance with applicable minimum standards to ensure protection of the children; and
- document any compliance or correction issues.

In All Cases

In all cases, during each inspection of an operation, CCR staff:

- evaluate the operation for obvious fire, sanitation, and safety hazards; and

- cite the deficiencies observed.

If deficiencies related to fire safety or sanitation are cited at a licensed child care center, school-age program, or before or after-school program, report those deficiencies to the appropriate state agency or political subdivision, if applicable.

Texas Human Resources Code §42.0442; §42.0443

Civil Practices and Remedies Code §101.001(3)(B)

Fire, Immunization, Nutrition and Sanitation Standards for Child Day Care Facilities

CCR staff do not evaluate for compliance with any part of the following minimum standards if the operation has documentation showing that another state agency or political subdivision evaluated equivalent requirements within the past year and there are no outstanding deficiencies:

Inspection Type	Minimum Standard Rules
Fire	§§744.3561; 744.3563; 744.3565; 744.3603-3619 §§746.5207; 746.5209; 746.5211; 746.5303-5319 §§747.5007; 747.5011-5015; 747.5105-5117
Immunization	§§744.613-623 §§746.613-625
Nutrition	§§744.2401-2407; 744.2411-2421 §§746.3301-3303; 746.3319 §§747.3101-2103; 747.3119
Sanitation	§§744.2419; 744.2507; 744.2513; 744.2525-2531; 744.2701-2703; 744.3001-3011 §§746.3317; 746.3407; 746.3427; 746.3429; 746.3431; 746.3433; 746.3901; 746.3903; 746.4419; 746.4403; 746.4405; 746.4407; 746.4409; 746.4411; 746.4417 §§747.3117; 747.3203-3209; 747.3223-3229; 747.3701-3703; 747.4201-4207

4158.2 Child Day Care Operations Located at Public School Facilities

July 2019

CCR does not evaluate for compliance with the following minimum standards if the operation is in a public school facility operated by the local independent school district.

Topic	Minimum Standard Rules
Sanitation Inspection	§744.2501 §746.3401(a)
Fence	§744.2953 §746.4305(1)

Topic	Minimum Standard Rules
Active Play Equipment	§744.3101 §746.4601(11)
Fire Inspection	§744.3501 §746.5101(a)
Fire–Extinguishing System	§744.3601 §746.5301
Smoke Detectors	§744.3611 §746.5311(b)
Gas	§744.3651 §746.5401

4159 Handling Resistance or Refusal to Allow Inspection

Revision 23-4; Effective Nov. 30, 2023

An operation's employees must admit CCR staff and not delay or interfere with CCR staff from making inspections during its hours of operation.

Human Resources Code Sections 42.044(a) and 42.04412

26 TAC Sections 745.8411; 745.8413

Procedure

If the employees of an operation refuse to allow, delay or interfere with an inspection during the operation's business hours, CCR staff follow the procedures outlined below.

If …	then …
the operation's employees: • refuse to admit CCR staff to the operation; • attempt to delay or interfere with CCR staff from inspecting the operation during its business hours; • refuse to allow CCR staff to inspect an area of the operation that affects or could affect the children's health, safety or well-being; or • delay or interfere with an attempt to inspect or investigate, so that CCR staff cannot carry out their responsibilities…	CCR staff: a. advise the person in charge of the operation that the inspection or investigation is authorized by Human Resources Code Sections 42.044(a) and 42.04412 and HHSC may take any or all of the following actions if the resistance continues: ◦ issue the operation a deficiency; ◦ take an enforcement action against the operation; or ◦ seek a court order granting access to the operation and records. b. obtain the name of the person in charge at the operation, if possible; c. cite interference of the inspection or investigation and violation of rules using CLASS Form 2936 Child-Care Facility Inspection. Include documentation on the form that, if CCR inspections are further denied, interfered or delayed, CCE may take enforcement action against the operation's permit under Human Resources Code Sections 42.071 and 42.072; d. consult with the CCR supervisor about the necessary follow-up actions; e. see 4520 Handling Immediate Danger to Children, if children are in immediate danger; f. take one or more of the following actions, depending on the circumstances: • schedule an appointment with the permit holder or applicant. • make an unannounced inspection of the operation.

See 7600 Adverse Actions.

4159.1 Attempted Interference by a Licensed Administrator or Applicant for an Administrator's License

Revision 23-4; Effective Nov. 30, 2023

A licensed administrator or applicant for an administrator's license may not attempt to interfere with HHSC's ability to conduct agency business.

Conduct that constitutes an attempt to interfere with HHSC ability to conduct agency business includes:

- interfering with, coercing, threatening, intimidating, retaliating against or harassing an HHSC staff member in connection with the person's exercise of HHSC regulatory duties; or
- engaging in conduct or directing language at HHSC staff that a reasonable person would find to be harassing, intimidating or threatening to HHSC staff.

26 TAC Sections 745.8411, 745.8929 and 745.8930

Procedure

If the Attempted Interference Occurs During Routine Monitoring

During an inspection, investigation or while evaluating an operation, if CCR staff encounter an attempt by a licensed administrator or applicant for an administrator's license to interfere with staff's ability to monitor the operation, CCR staff:

1. consult with the supervisor to determine whether the underlying action or behavior supports a citation for either 26 TAC Section 745.8411 or 745.8929. When determining whether a citation is warranted, staff consider:
    a. the action or behavior observed such as unauthorized recording outside of normal operation surveillance or not allowing CCR staff to interview operation staff or children as part of an investigation;
    b. the impact the action or behavior had on staff's ability to complete regulatory activities; and
    c. whether there is evidence available to support a citation for attempted interference;
2. if the supervisor approves, cite either 26 TAC Section 745.8411 or 745.8929, whichever is most appropriate;
3. document details of the incident including specifics on how the incident impacted the staff's ability to conduct regulatory activities in a Chronology in CLASS; and
4. upload any evidence to support the incident of attempted interference in the CLASS Document Library.

The supervisor notifies the Licensed Administrator Program Specialist of the incident for review and possible referral to Child Care Enforcement.

See 9710 Handling Attempts to Interfere or Interference by a Licensed Administrator

Job Aid "Addressing Attempted Interference by a Licensed Administrator or Applicant for an Administrator's License (RCCR Only)," available on CCR SharePoint site.

If the Attempted Interference Occurs Outside of Routine Monitoring

If CCR staff become aware of an action or behavior by a licensed administrator or applicant for an administrator's license that occurs outside of routine monitoring, CCR staff:

1. consult with a supervisor to determine if a referral to CCE is appropriate. When determining whether a referral to CCE is appropriate, the supervisor considers:
    1. the action or behavior observed such as making online threats against CCR staff or coercing CCR staff to release confidential information;
    2. the impact the action or behavior had on staff's ability to carry out regulatory activities, including attending meetings; and
    3. whether there is evidence available to support the interference or attempted interference;
2. document details of the incident in an email; and
3. email any evidence to support the incident to the Licensed Administrator Program Specialist. See 9710 Handling Attempts to Interfere by a Licensed Administrator.

4160 Documenting the Results of an Inspection

Revision 23-4; Effective Nov. 30, 2023

When documenting the results of an inspection, CCR staff:

a. document deficiencies clearly and concisely;
b. cite the specific CCR statutes, administrative rules or minimum standards for which compliance was evaluated and describe the deficiencies observed;
c. document any technical assistance given for each CCR statute, administrative rule or minimum standard;
d. state the date for compliance. Compliance dates must be reasonable and based on the risk to children. See 4500 Evaluating Risk to Children and Handling Immediate Danger;
e. complete the *Photo Taken at Inspection* radio button as applicable; and
f. complete the *Supporting Documents/Photos Obtained* radio button on each *Standard Details* page in CLASS for each standard marked as:
    - deficiency;
    - compliance;
    - sampling concern; or
    - not a sampling concern; and
g. provide the inspection results at the conclusion of the inspection, on CLASS Form 2936 Child-Care Facility Inspection.

CCR staff create a supplemental CLASS Form 2936 to finalize inspection results left pending or to make corrections.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
4161 Completing CLASS Form 2936 Child-Care Facility Inspection
4162 Finalizing Form 2936 and Synchronizing CLASSMate with CLASS
4163 Final Determination of Findings Left Pending During an Inspection
4165 Completing a Supplemental Inspection Form
4200 Assessments

4161 Completing CLASS Form 2936 Child-Care Facility Inspection

Revision 23-4; Effective Nov. 30, 2023

After reviewing the background materials related to the operation (see 4140 Preparing for Inspections), CCR staff create a draft of CLASS Form 2936 Child-Care Facility Inspection.

On the same day as the inspection, after the inspection is completed, CCR staff complete CLASS Form 2936 to document inspection results.

Documenting a Possible Deficiency as Pending on Form 2936

If CCR staff need to conduct further investigation or consult with the supervisor before determining compliance with a specific CCR statute, administrative rule or minimum standard, each item requiring further action is documented as *Pending* on CLASS Form 2936. CCR staff use the *Pending* status only if staff cannot determine an operation's compliance with a statute, administrative rule or minimum standard before leaving the operation.

CCR staff must determine whether issues related to an inspection that were documented as pending are deficient or compliant within 10 days after an inspection is completed. (4163 Final Determination of Findings Left Pending During an Inspection).

Signing and Providing a Copy of Form 2936

After conducting the exit conference, CCR staff provide a copy of Form 2936 to the:

- designee, director, administrator or primary caregiver; and
- person in charge, if the designee, director, administrator or primary caregiver is not available during the exit interview.

See 4172 Signing and Providing a Copy of Form 2936 Child-Care Facility Inspection

26 TAC Section 745.8443(a)

4161.1 Creating a Draft CLASS Form 2936

April 2021

CCR staff follow the procedures below to create a draft version of CLASS Form 2936 Child-Care Facility Inspection.

Enter the Details

To enter the inspection details in CLASS, on Form 2936 Child-Care Facility Inspection, CCR staff take the following steps:

1. On the *Operation* main page, select the *Monitoring* tab.
2. On the *Inspection/Assessment List* page, select *Add New Inspection*.
3. On the *Inspection Details* page in the *General* section, select the appropriate *Inspection Type* (see 4120 Types of Inspections).
4. Choose the investigation numbers if the inspection type is *Investigation* or *Monitoring and Investigation*.
5. Choose the appropriate *Follow Up to Inspections IDs* (select up to three IDs) if the inspection type is *Follow Up*.
6. Enter the *Inspection Start Date* (The inspection start date may be updated after the inspection, if necessary).
7. Select the check box(es) corresponding to the subchapter(s) if evaluating compliance of all rules in the subchapter(s) as part of a *Monitoring* or *Monitoring/Investigation* inspection.
8. Select the *HASA* check box if a health and safety audit or *standard-by-standard* evaluation is being conducted as part of an unannounced *Monitoring* or unannounced *Monitoring/Investigation* inspection of a licensed child care center, school-age program, before- or after-school program, licensed child care home or registered child care home.
9. Complete other applicable fields and select *Save*.

Save and Download

1. Save the draft form.
2. Download the saved draft to CLASSMate before conducting the inspection.

See also 4321 Documenting Follow-Ups Completed During an Inspection Unrelated to Heightened Monitoring Activities

4161.2 Documenting Inspection Results on CLASS Form 2936

Revision 24-1; Effective Feb. 20, 2024

Procedure

The inspector uses CLASS Form 2936 to document the inspection. The inspector documents the results of an inspection per the table below.

Operation Type	Inspection Type	What to Document	How to Document in CLASS
All Day Care and Residential Care Operations	All Inspections	The finding (Deficiency, Compliance or Pending) for each CCR statute, administrative rule or minimum standard that was evaluated during the inspection.	Complete the *Standard Details* page. References: 4161.21 Documentation of the Findings Evaluated from the Inspection 4300 Conducting a Follow-Up with an Operation 4323 Documenting Follow-up Results on CLASS Form 2936
All Day Care and Residential Care Operations	All Inspections	The technical assistance provided.	Complete the *Standard Details* page. Reference 4154.2 Documenting Technical Assistance
All Day Care and Residential Care Operations	All Inspections	A list of any hazards that the operation must correct immediately.	Complete the *Narrative* text box on the *Inspection Details* page.
All Day Care and Residential Care Operations	All Inspections	If the inspector obtained any documents or photos to support a regulatory decision.	Select the appropriate *Supporting Documents and/or Photos Obtained* radio button on the *Standard Details* page.
All Day Care and Residential Care Operations	All Inspections	If the inspector took any photos during the inspection.	Select the appropriate *Photos Taken During Inspection* radio button on the *Inspection Details* page.
All Day Care and Residential Care Operations	• Monitoring • Monitoring and Investigation	The inspector's evaluation of all corrective action conditions.	Select the *Probation conditions were evaluated* checkbox in the *Other Items Evaluated* section on the *Inspection Details* page. References: 7315 Inspecting an Operation During a Plan of Action

Operation Type	Inspection Type	What to Document	How to Document in CLASS
All Day Care and Residential Care Operations	• Monitoring • Monitoring and Investigation	The inspector's evaluation of all action items for a plan of action.	7441 Inspecting an Operation During a Probation Select the *Plan of Action action items were evaluated* checkbox in the Other Items Evaluated section on the *Inspection Details* page. References: 7315 Inspecting an Operation During a Plan of Action 7441 Inspecting an Operation During a Probation
All Day Care and Residential Care Operations	• Monitoring • Monitoring and Investigation	The number of each record type reviewed during the inspection, based on the operation type and capacity.	In the *Records Evaluated* section on the *Inspection Details* page, enter the number of records evaluated in the field which corresponds to the record type. Reference 4153 Reviewing Records at an Operation or a Central Administrative Location
All Day Care and Residential Care Operations	• Initial • Monitoring • Monitoring and Investigation	The inspector's review of permit restrictions and permit conditions.	Select the *…items regarding risk to children…* check box on the *Inspection Details* page. Reference 4152 Reviewing Restrictions, Conditions, Waivers, and Variances
All Day Care and Residential Care Operations	• Application • Initial • Monitoring • Monitoring and Investigation	The inspector's assessment of risk to children during the operation walk-through.	Select the *…items regarding risk to children…* check box on the *Inspection Details* page. References: 4151 Operation Walk-Throughs 4157 Visiting an Operation to Conduct an Investigation Interview When the Operation is Not the Subject of the Investigation
All Day Care and Residential Care Operations	• Application • Initial • Monitoring • Monitoring and Investigation	The inspector's evaluation of the operation's compliance with background check requirements.	Select the *Background Checks have been Verified/Evaluated* check box on the *Inspection Details* page. Reference 10700 Monitoring Operations for Compliance with Background Check Requirements
All Day Care and Residential Care Operations	• Application • Initial • Monitoring • Monitoring and Investigation	The inspector's review of the operation's *Controlling Persons List* in CLASS with the person in charge. This is to determines if the list is correct and in compliance with CCR statutes, administrative rules and minimum standards.	Select the *Controlling Persons Have Been Verified* check box on the *Inspection Details* Page. References: 4153.3 Reviewing Information on Controlling Persons 4164 Procedures When the Operation's List of Controlling Persons Cannot Be Verified During the Inspection 4171 Discussing the Results of an Inspection 5400 Controlling Person
All Day Care and Residential Care Operations	Investigation	The inspector's evaluation of the operation's compliance with background check requirements for principals and collaterals known at time of the investigation inspection.	Select the *Background Checks have been Verified/Evaluated* check box on the *Inspection Details* page. Reference 10700 Monitoring

Operation Type	Inspection Type	What to Document	How to Document in CLASS
			Operations for Compliance with Background Check Requirements
All Residential Care Operations	• Monitoring • Investigation • Monitoring and Investigation	A summary of the steps the inspector took to mitigate risk during the inspection. This is part of the Extended Compliance History Review. Reference: *Extended Compliance History Review Guide* and Extended Compliance History Review Documentation Template Form 7292 on the CCR SharePoint site.	In the *Steps Taken to Mitigate Risk* field on the *Inspection Details* page.
• Licensed Child Care Centers • Before- or After-School Programs • School-Age Programs	All Inspections	If the designated director is present during the inspection.	If the director is present, select the *Director Present* check box on the *Inspection Details* page. Reference 4131.3 Child Day Care Annual Meeting with the Designated Director at a Licensed Child Care Center
• Licensed Child Care Centers • School-Age Programs • Before- or After-School Programs • Licensed Child Care Homes	• Monitoring • Monitoring and Investigation	The inspector conducted a health and safety audit (HASA) using the Health and Safety Audit Checklist or a standard-by-standard evaluation during an unannounced annual inspection.	Select the *Health and Safety Audit conducted* checkbox on the *Inspection Details* page. Reference 4131.5 Health and Safety Audits for Licensed Child Day Care Operations
Registered Child Care Homes (with a TWC Subsidy Agreement)	• Monitoring • Monitoring and Investigation	The inspector conducted an unannounced annual inspection: • using the Health and Safety Audit Checklist; or • by conducting a standard-by-standard evaluation.	Select the *Health and Safety Audit conducted* checkbox on the *Inspection Details* page. Reference 4132 Minimum Inspection Requirements for Registered Child Care Homes
Licensed Child Care Centers Only	• Monitoring • Monitoring and Investigation	Ratio data for each classroom that is caring for children 0-4 years old during the inspection.	Complete the *Classroom Information* section on the *Inspection Details* page. The finalized CLASS Form 2936 does not display the ratio data, but the ratio data will display in CLASS. Reference 4131.4 Collection of Ratio Data for Licensed Child Care Centers
Licensed Child Care Centers Only	Annual Inspection (once every 12 months)	The inspector's evaluation of the director's qualifications during the inspection.	If the inspector evaluated the director's qualifications during the inspection, select the *Dir Qual Eval* check box on the *Inspection Details* page. References: 3331 Evaluating Director and Primary Caregiver Qualifications for Licensed Child Day Care Operations 4131.3 Child Day Care Annual Meeting with the Designated Director at a Licensed Child Care Center

Operation Type	Inspection Type	What to Document	How to Document in CLASS
All Day Care and Residential Care Operations	• Follow Up • Other	The reason for the inspection if the reason **does not** fall into any of the situations listed above.	In the *Narrative* text box on the *Inspection Details* page, document a summary of the reason for the inspection. References: 4123 Follow-Up Inspections 4128 Other Types of Inspections

4161.21 Documentation of the Findings Evaluated from the Inspection

Revision 23-3; Effective Sept. 22, 2023

If documenting a deficiency, the inspector documents the following in the *Narrative* text box on the *Standard Details* page in CLASS or CLASSMate:

- Explains how the operation is deficient. (Describe observations in detail. Do not merely repeat the requirement in the CCR statute, administrative rule, or minimum standard.)
- Describes how the deficiency was corrected during the inspection, if applicable.

If further investigation or consultation with the supervisor is needed before determining whether the operation is in compliance with a CCR statute, administrative rule or minimum standard, the inspector documents the finding as *Pending*.

Staff complete the *Photo Taken During the Inspection* radio button as appropriate on the *Inspections Details* page in CLASS prior to saving the applicable final form to indicate whether a photo was, or was not, taken by the inspector during the investigation.

If documenting an inspection being conducted as part of an investigation, investigators also:

- code any citations for plain-view violations observed during the walk-through as *Monitoring (MN)*; and
- add appropriate minimum standards with a code of Investigation (IV), if the investigator obtains information regarding a violation related to the allegation being investigated that was not previously identified.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
4160 Documenting the Results of an Inspection

4161.22 Limits to Documenting Names of Children

Revision 23-4; Effective Nov. 30, 2023

When documenting inspection results, the inspector does not include the names of children when entering information that could be published on the public website. For example, deficiency narratives, follow-up documentation or information in the Narrative text box on the Inspection Details page may not include the name of any child.

CCR staff use only a child's first name and last initial on hard copy forms (such as inspection guides) and in sections of CLASS that are not published on the public website, such as the Chronology and *Investigation Conclusion* pages.

See 8210 Confidential Information Not for Release to the Public.

4161.23 Limits to Documenting Names of Persons in CLASS

Revision 23-3; Effective Sept. 22, 2023

When documenting inspection results, the inspector does not include the name of any person in documentation that will be published on the public website or that the operation must post. For example, deficiency narratives, follow-up documentation or information in the *Narrative* text box on the *Inspection Details* page may not include the name of any person.

CCR staff may include names on paper copies of forms, such as inspection guides, and in CLASS fields that are not published on the public website, such as fields on the *Chronology* and *Investigation Conclusion* pages.

Exception for Listed Family Homes or Registered Child Care Homes: A person's name may be automatically included on certain public forms if the person's name is the same as the name of the operation.

See 8210 Confidential Information Not for Release to the Public.

4161.24 Technical Assistance for Violations Recommended for an Administrative Penalty

Revision 24-4; Effective Nov. 13, 2024

When citing a deficiency for a CCR statute, administrative rule or minimum standard that requires the immediate assessment of an administrative penalty, the inspector provides and documents technical assistance in CLASS per the Protocol for Administrative Penalties for Single High-Risk Deficiencies (Immediate Enforcement) job aid on the CCR SharePoint site.

4161.3 Leaving an Operation Temporarily to Document Inspection Results

August 2012

Procedure

If Licensing staff leave the operation to record the results of the inspection on Form 2936 Child-Care Facility Inspection in CLASSMate, staff document in the *Narrative* field:

- the time leaving the operation; and
- the time returning to the operation to conduct the exit conference.

For example:

Left operation at (insert time) and returned at (insert time).

CLASSMate captures the time the inspection ended when Licensing staff click the *Lock* button on the form.

4161.4 Documenting an Inspection Continued on the Following Day

August 2012

Procedure

If an inspection must be continued on the following day, staff complete a new CLASS Form 2936 Child-Care Facility Inspection.

4162 Finalizing Form 2936 and Synchronizing CLASSMate with CLASS

August 2012

Finalizing Form 2936

Procedure

Before finalizing the form, Licensing staff:

a. conduct the exit interview to discuss the results of the inspection with the person in charge at the operation;
b. sign Form 2936;
c. have the person in charge at the operation sign Form 2936.

See:

4170 Conducting the Exit Conference
4171 Discussing the Results of the Inspection
4172 Signing and Providing a Copy of Form 2936 Child Care Facility Inspection

After conducting the exit interview and signing the form, Licensing staff finalize Form 2936 Child-Care Facility Inspection in CLASSMate by clicking:

- *Save Final*; and
- *Lock*.

After finalizing the form, Licensing staff provide a copy of Form 2936 to the person in charge. See 4172.

Synchronizing CLASSMate with CLASS

On the same day Form 2936 is completed, when possible, Licensing staff synchronize with CLASS in order to upload the inspection into CLASS.

4163 Final Determination of Findings Left Pending During an Inspection

Revision 23-4; Effective Nov. 30, 2023

Within 10 days after completing an inspection, CCR staff:

- determine whether the operation is deficient or compliant regarding any pending inspection findings coded as *Monitoring*; and
- document the final determinations on a supplemental Form 2936 Child-Care Facility Inspection and mail or email it to the operation. See 4165 Creating a Supplemental Inspection Form.

4164 Procedures When the Operation's List of Controlling Persons Cannot Be Verified During the Inspection

March 2013

Procedure

If during an Initial or Monitoring inspection the inspector cannot verify whether the operation's list of controlling persons in CLASS is accurate, the inspector does all of the following within 10 days of the inspection:

a. Contacts the operation's governing body to verify whether an operation's list of controlling persons list in CLASS is accurate.
b. Follows the procedures in 7773.4 Reviewing the Status of a Sustained Controlling Person in CLASS, if any controlling person on the list has a status of *Review*.
c. Documents the contact with and information obtained from the governing body as a *Chronology* (category, *Controlling Persons)*.
d. Does as follows, if the controlling persons has changed:
    i. Documents the changes in a *Chronology (*category, *Controlling Persons)*;
    ii. Directs the operation to submit updated information according to the procedures in 5420 When and How Applicants and Operations Submit Information on Controlling Persons; and
    iii. Cites a deficiency of the appropriate minimum standard by completing a supplemental CLASS Form 2936 Child Care Facility Inspection, if the operation did not notify Licensing within two days of when a person became or ceased to be a controlling person. See 4165 Completing a Supplemental Inspection Form.

4165 Completing a Supplemental Inspection Form

Revision 23-3; Effective Sept. 22, 2023

The CCR inspector creates a supplemental CLASS Form 2936 Child-Care Facility Inspection only to:

- document the final determination about an operation's compliance with statutes, administrative rules or minimum standards that were left pending during an inspection; or
- correct errors in spelling, grammar or content on the original CLASS Form 2936 Child-Care Facility Inspection.

If deficiencies unrelated to an inspection must be cited, the CCR inspector uses CLASS Form 2939 Child-Care Facility Assessment.

See:

4200 Assessments.

Procedure

To complete a supplemental CLASS Form 2936 Child-Care Facility Inspection, the CCR inspector follows these steps:

1. Selects the appropriate inspection in CLASS.
2. Updates pending findings to *NC* (noncompliant) or *CO* (compliant).
3. Enters the following information in the *Narrative* field on the supplemental CLASS Form 2936:
    a. A description of the change that is being made.

b. A statement that the supplemental CLASS Form 2936 replaces the original CLASS Form 2936 that was left at the operation on the date of the inspection.
c. The date of the previous inspection.

4. Changes the date of notification in CLASS to the date the supplemental CLASS Form 2936 is created.
5. Saves and finalizes the second version of CLASS Form 2936 by selecting *Save Final* and *Lock*.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
4160 Documenting the Results of an Inspection

4165.1 Contacting the Permit Holder

Revision 23-3; Effective Sept. 22, 2023

Before mailing the supplemental CLASS Form 2936, CCR staff contact the permit holder to:

a. discuss the determination made on findings left pending during the inspection, if any;
b. discuss other changes to the inspection findings, if any; and
c. inform the permit holder of his or her right to an administrative review. See 5600 Administrative Reviews.

4170 Conducting the Exit Conference

Revision 24-1; Effective Feb. 20, 2024

After completing an inspection, CCR staff conduct an exit conference with the person in charge at the operation. During the conference, staff:

- discuss the results of the inspection, including the reason for any deficiency issued;
- review, but do not provide copies of, all photographs that were taken during the inspection that relate to deficiencies;
- provide any technical assistance that may help the operation to address issues that have been identified and documented;
- review the requirements and time frames to request an administrative review, if any deficiencies were issued; and
- provide a copy of CLASS Form 2936 Child-Care Facility Inspection to the designee, director, administrator or primary caregiver, and the person in charge if none of these persons were available during the exit interview.

References:

5611 Explaining the Right to an Administrative Review
8230 Confidential Information Not for Release to the Public

26 TAC Sections 745.8443(a), 745.8483(8), 745.8491 and 745.8801–8811

Human Resources Code Section 42.0441

When conducting the exit conference for an initial or monitoring inspection, CCR staff also:

- verify the operation's contact information; and
- review the operation's compliance history, including concerns or patterns, with the person in charge.

References:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
4160 Documenting the Results of an Inspection

4171 Discussing the Results of an Inspection

Revision 24-2; Effective May 22, 2024

Procedure

During each exit conference, CCR staff:

- Allow the person in charge an opportunity to discuss the findings.
- Provide the person in charge with the following, if applicable:
  a. Any technical assistance needed to address issues identified and documented during the inspection. Reference 4154 Technical Assistance.
  b. Information about how high-risk deficiencies or a pattern of deficiencies may affect the frequency of inspections.
  c. Information about how failure to comply within specified deadlines or repeated deficiencies may result in enforcement action without further opportunity to correct the deficiencies.
  d. Information about how to comment on the inspection by completing the CCR Inspection Feedback Survey. The Web address for the survey is printed on CLASS Form 2936 Child-Care Inspection Form, which CCR staff provide before leaving the operation.
  e. Information about how the operation may request an administrative review in writing within 15 days of receiving the results of the inspection and information on what the request must include to be considered complete. Reference 5614 Receiving a Request for an Administrative Review.

Additional Requirements for Initial and Monitoring Inspections

During each exit conference for an inspection with a category of *Initial, Monitoring, or Monitoring and Investigation* CCR staff also:

- review with the person in charge the operation's compliance history since the previous monitoring inspection, including any concerns or patterns of deficiencies; and
- verify the accuracy of the information entered on the *Operation Main* page in CLASS.

If either the *Location Address Validation Status* or *Mailing Address Validation Status* is set to *Not Validated*, CCR staff must review the address with the person in charge. If the person in charge indicates either the location or mailing address in CLASS is inaccurate, the inspector:

- documents the correct information in a Chronology, under category *Operation General*; and
- enters the corrected address in CLASS and attempts to validate the address per the procedures in 1600 Validating an Address in CLASS following the inspection.

4171.1 Discussing Pending Results

September 2012

Except for inspection findings coded as *Investigation*, if a determination cannot be made on any aspect of an inspection, Licensing staff explain to the person in charge that Licensing:

- will mail a final determination, in the form of a supplemental inspection form, within 10 days; and
- may include additional information on the supplemental inspection form that was not included on the original CLASS Form 2936 Child Care Facility Inspection.

See:

4161 Completing CLASS Form 2936 Child Care Facility Inspection
4165 Completing a Supplemental Inspection Form

4171.2 Addressing an Operation's Concerns About Inspection Findings

September 2012

Licensing staff work with the person in charge to address any concerns relating to:

- minor changes to a deficiency narrative, if the change does not impact the meaning of the citation and does not minimize the scope or severity of the violation; and
- compliance dates, if the person in charge has a valid reason for not being able to come into compliance sooner than the proposed date, as long as the change does not compromise the health or safety of children in care.

Immediately after changing any documentation on CLASS Form 2936 Child Care Facility Inspection as a result of feedback from the person in charge, Licensing staff enter a *Chronology* in CLASS that includes:

a. the CLASS inspection number;
b. a description of the changes requested by the person in charge; and
c. a description of what changes were made.

4172 Signing and Providing a Copy of Form 2936 Child Care Facility Inspection

December 2015

Procedure

At the end of the exit conference, Licensing staff ask the person in charge to sign CLASS Form 2936 Child Care Facility Inspection, even if the findings are left pending. Licensing staff explain that signing Form 2936 does not indicate that the person signing agrees with the inspection results. It is only an acknowledgment that Licensing conducted an inspection at the operation and does not waive the operation's right to an administrative review.

Both the Licensing staff and the person in charge at the operation sign Form 2936. If the person in charge refuses to sign Form 2936, Licensing staff note on the inspection form the person's name and his or her decision not to sign.

After Form 2936 is signed by Licensing staff and the person in charge, Licensing staff provide the person in charge with a printed or emailed copy of the completed form before leaving the operation.

If the operation is required to post Form 2936 in a prominent place where it may be viewed by staff, parents, and others, Licensing staff must explain this to the person in charge before leaving the operation.

See:

4160 Documenting the Results of an Inspection
4161 Completing CLASS Form 2936 Child Care Facility Inspection
4173 Posting the Day Care Inspection Form or Assessment Form

4173 Posting the Day Care Inspection Form or Assessment Form

Revision 24-1; Effective Feb. 20, 2024

The following must display the most recent CLASS Form 2936 Child-Care Facility Inspection or CLASS Form 2939 Child-Care Facility Assessment:

- Licensed child care center
- School-age program
- Before or after-school program
- Licensed child care home
- Registered child care home

The most recent CLASS Form 2936 or CLASS Form 2939 must be displayed in a prominent place for viewing by staff, parents, and others.

Confidential information must not be posted.

26 TAC Sections 744.403, 746.403, 745.8801 and 747.401

If the operation disagrees with a CCR decision or action and requests an administrative review, the operation may delay posting Form CLASS 2936 or CLASS Form 2939 until the administrative review is complete.

References:

Assessments, 4200
Administrative Reviews, 5600

Procedure

CCR staff explain to the person in charge of the operation that CLASS Form 2936 Child-Care Facility Inspection or CLASS Form 2939 Child-Care Facility Assessment, and any supplemental inspection forms, must be posted in a prominent place to be viewed by staff, parents and other people.

If CCR staff document part of the inspection on CLASS Form 2936 and document the rest of the inspection on a supplemental inspection form, CCR staff attach the original CLASS Form 2936 to the supplemental form so that both will be posted.

The person in charge of the operation may note the date a correction was made on the posted form.

The operation is not required to publicly post findings of abuse or neglect.

The names of children and staff:

- must not appear on any forms or letters that require posting in a prominent place for viewing by staff, parents and others. References: 8210 Confidential Information Not for Release to the Public and 4160 Documenting the Results of an Inspection; and
- must not be documented in the areas of CLASS that appear on the public website.

Children and staff names may be documented in the hard copy record or in the areas of CLASS that are not published on the public website.

Reference: 6630 Notifying the Operation of the Results of an Investigation.

4200, Assessments

Revision 23-3, Effective Sept. 22, 2023

CCR uses an assessment as a regulatory tool to do the following when CCR is not required to conduct an inspection or investigation:

- cite and notify an operation of a deficiency when an inspector learns about a violation unrelated to an inspection or investigation; or
- document findings from a follow-up without an inspection when the operation is being re-cited (see 4330 Following Up Without an Inspection).

Citing a deficiency without an inspection does not replace a required inspection.

CCR staff follow up on deficiencies cited by assessment according to 4220 Documenting an Assessment and Notifying the Operation, or 4300 Conducting a Follow-up with an Operation.

Procedure

When an inspector determines a monitoring assessment is needed to cite a deficiency, the inspector has 10 days from the date CCR learned about the violation to complete all the following tasks:

a. consult with a supervisor, program administrator or regional director to discuss the inspector's recommendation to cite a deficiency by assessment;
b. document the decision in a Chronology in CLASS; and
c. if the supervisor, program administrator or regional director approves citing the deficiency, complete the procedures in 4220 Documenting an Assessment and Notifying the Operation.

The inspector documents photos or other records received in support of the assessment according to 1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files and the associated subsections.

4210 Assessment Types

Revision 23-1, Effective April 21, 2023

When citing by assessment, inspectors choose from two types of assessments. Inspectors refer to the following table when deciding which assessment type to use:

Assessment Type	Use to Cite a Deficiency when:	See CCRH Section(s):
Monitoring Assessment	a. DFPS reported a monitoring violation related to: ◦ a DFPS investigation (see 6940 Citing Deficiencies for a DFPS Investigation), or ◦ Heightened Monitoring visit; b. CCR identified a violation during CCR activities other than an inspection or investigation. Examples: ◦ enforcement team conference (see 4441 Enforcement Team Conferences for Child-Placing Agencies and General Residential Operations); ◦ random-sampling inspection of a CPA's foster homes (see 4431 Using Random-Sampling Inspections to Regulate a Child-Placing Agency); ◦ background check(s) not submitted as required (see 10110 Overview of Background Checks and 10120 Background Check Requests); or	4211 Citing a Deficiency with a Monitoring Assessment

Assessment Type	Use to Cite a Deficiency when:	See CCRH Section(s):
	◦ an inspection or investigation that reveals a deficiency at a different operation (for example: during an interview); c. Another agency (other than DFPS) or a political subdivision reported a violation; or d. The operation self-reports a violation (see 6275 Incidents Reported by an Operation (Self-Reports).	
Follow-up Assessment	Following up on deficiencies from a previous inspection, assessment or investigation without conducting an inspection to re-cite the operation for one or more deficiencies that were not corrected as required.	4212 Follow-Up Assessments, 4300 Conducting a Follow-Up with an Operation, and 4330 Following Up Without an Inspection

4211 Citing a Deficiency with a Monitoring Assessment

Revision 23-1, Effective April 21, 2023

Procedure

When an inspector determines a monitoring assessment is needed to cite a deficiency, the inspector has 10 days from the date CCR learned about the violation to complete all the following tasks:

a. consult with a supervisor, program administrator or regional director to discuss the inspector's recommendation to cite a deficiency by assessment;
b. document the decision in a Chronology in CLASS; and
c. if the supervisor, program administrator or regional director approves citing the deficiency, complete the procedures in 4220 Documenting an Assessment and Notifying the Operation.

4212 Follow-Up Assessments

Revision 23-1, Effective April 21, 2023

Procedure

When an inspector re-cites a deficiency during a follow-up without an inspection, the inspector documents the outcome of the follow-up using an assessment (type *Follow-up*) in CLASS.

See also:

4220 Documenting an Assessment and Notifying the Operation
4310 Time Frames for Conducting a Follow-Up
4330 Following Up Without an Inspection

4220 Documenting an Assessment and Notifying the Operation

Revision 23-1, Effective April 21, 2023

Procedure

The inspector:

- documents assessment results on CLASS Form 2939 Child-Care Facility Assessment;
- notifies the operation; and
- sends a copy of CLASS Form 2939 to the operation.

Corrections

If the inspector needs to correct the original CLASS Form 2939, the inspector creates a supplemental CLASS Form 2939 according to 4223 Completing a Supplemental Assessment Form.

See also:

4210 Assessment Types
4211 Citing a Deficiency with a Monitoring Assessment
4212 Follow-Up Assessments

4221 Documenting an Assessment Using CLASS Form 2939 Child-Care Facility Assessment

Revision 23-4, Effective Nov. 30, 2023

Procedure

When creating a monitoring assessment or follow-up assessment, the inspector chooses the assessment type from the *Assessment Type* field in the *General* section of the *Assessment Details* page (see 4210 Assessment Types).

For both types of assessments, on CLASS Form 2939 Child-Care Facility Assessment, the inspector:

a. documents compliance with the evaluated CCR statutes, administrative rules and minimum standards;
b. documents any technical assistance given; and
c. for each deficiency cited, documents:
    - the deficiency clearly and concisely; and
    - the compliance date.

The inspector ensures compliance dates are reasonable and based on the risk to children (see 4500 Evaluating Risk to Children and Handling Immediate Danger).

The inspector documents photographs and other records related to the deficiency according to 1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files.

4221.1 Additional Requirements for Documenting Follow-Up Assessments

Revision 23-1, Effective April 21, 2023

Procedure

When creating a follow-up assessment, the inspector completes the following additional steps:

- if the purpose of the follow-up assessment is for a Heightened Monitoring (HM) inspector to document a follow-up on a HM-related deficiency, the HM inspector completes the *Heightened Monitoring* section;
- links the follow-up assessment to the appropriate previous inspection(s), investigation(s) without an inspection, assessment(s) or a combination of these activities;
- deletes any linked deficiencies that automatically prefill on the *Inspection Summary* page if:
    - the deficiency is not evaluated during the current follow-up assessment; or
    - the operation requested an extension during the current follow-up assessment, **and** CCR granted an extension (**Note**: the inspector documents the extension in the original inspection or assessment in CLASS. See 4350 Granting an Operation Additional Time to Comply with a Requirement Cited as a Deficiency); and
- consults the table below for remaining linked deficiencies:

If...	Then...
the operation is in compliance…	the inspector: • selects *Compliance* in the *Finding* field; • deletes the date in the *Compliance Date* field; and • deletes the text in the *Narrative* text box and replaces it with a statement outlining how the operation corrected the deficiency.
the operation is still deficient…	the inspector: • selects *Deficiency* in the *Finding* field; • enters the new compliance date in the *Compliance Date* field; and • deletes the text in the *Narrative* text box and replaces it with information about how the operation continues to be deficient.

CLASS Updates the *Follow Up Information* section for the Original Deficiency

For each deficiency linked to the follow-up assessment and documented as *Compliance* or *Deficiency*, CLASS automatically updates the *Follow Up Information* section on the *Standard Details* page for the original inspection, investigation or assessment. Therefore, the inspector does not take any further steps to update the *Follow Up Information* section for the linked deficiency.

4222 Notifying the Permit Holder or Designee

Revision 23-3, Effective Sept. 22, 2023

Procedure

Before mailing CLASS Form 2939 Child-Care Facility Assessment, the inspector contacts the permit holder or designee to:

- discuss the assessment findings; and
- inform the permit holder or designee of the right to request an administrative review within 15 days from the date of receiving CLASS Form 2939 (see 4170 Conducting the Exit Conference and 5600 Administrative Reviews).

4223 Completing a Supplemental Assessment Form

Revision 23-1, Effective April 21, 2023

The CCR inspector creates a supplemental assessment form to correct errors in spelling, grammar or content on the original CLASS Form 2939 Child-Care Facility Assessment.

Procedure

To complete a supplemental CLASS Form 2939, the inspector:

1. selects the appropriate assessment in CLASS.
2. makes the corrections.
3. enters all the following information in the *Narrative* field on the supplemental CLASS Form 2939:
    1. description of the change that the inspector is making.
    2. statement that the supplemental CLASS Form 2939 replaces the original CLASS Form 2939.
    3. the date the previous CLASS Form 2939 was sent to the operation.
4. changes the date in the *Date Notification Sent* field to the date the supplemental CLASS Form 2939 is created.
5. saves and finalizes the supplemental CLASS Form 2939.

4300, Conducting a Follow-Up with an Operation

Revision 24-2; Effective May 22, 2024

An inspector conducts a follow-up with an operation to:

a. make sure that the operation is in compliance with any statutes, administrative rules and minimum standards that were cited during an inspection, investigation or assessment;
b. determine if operation is complying with the conditions of a waiver or variance;
c. determine if the operation is complying with the conditions of a risk evaluation;
d. conduct the annual review of director qualifications at a licensed child care center;
e. make sure the operation is in compliance after a probation ended;
f. make sure the operation is no longer operating because denial of a permit, suspension or revocation;
g. make sure the operation is no longer operating after an auto revocation;
h. monitor the operation during the appeal process;
i. monitor the operation during a temporary relocation;
j. evaluate a foster home's record and have a discussion with the administrator or person in charge after sending notification to the CPA of an approved agency home closure recommendation; or
k. discuss the warning letter with the director, administrator, or person in charge of the operation after sending the letter.

When following up with an operation about a deficiency the operation did not correct at inspection the inspector verifies the operation corrected the deficiency. This may include:

a. reviewing records about the deficiency;
b. inspecting areas of the physical plant about the deficiency; and
c. observing activities about health and safety.

Reference

Determining When a Deficiency Can Be Corrected at Inspection, 4155

Procedure

For each deficiency, the inspector decides to follow up on the deficiency with or without an inspection based on:

a. the risk to children;
b. the scope and severity of the deficiency;
c. the time and expense needed to correct the deficiency;
d. the provider's previous compliance history; and
e. if an inspection is required to determine if the provider corrected the deficiency.

When following up on more than one deficiency, the inspector does not re-cite a deficiency if the compliance date for the deficiency is in the future. When documenting follow-up, the inspector follows procedures in 4221.1 Additional Requirements for Documenting Follow-Up Assessments and 4323 Documenting Follow-Up Results on CLASS Form 2936.

If the inspector determines an operation is not in compliance with a previously cited deficiency during the follow-up, the inspector follows the procedures in 4340 When an Operation Continues to Be Deficient.

References

Child Day Care Annual Meeting with the Designated Director at a Licensed Child Care Center, 4131.3
Reviewing Restrictions, Conditions, Waivers, and Variances, 4152
Time Frames for Conducting a Follow-up, 4310
Following Up with an Inspection, 4320
Following Up Without an Inspection, 4330
Inspecting a CPA after Sending Notification of an Approved Closure Recommendation, 4454
Evaluating the Conditions of a Waiver or Variance, 5160
Following-Up to a Warning Letter, 5313
Temporary Relocation, 5520
Regulating Pending the Due Process Hearing for Denial, Refusal to Renew, Revocation or Suspension, 5720
Follow-Up to Final Notice of Suspension, Revocation, or Denial, 7636
When a Risk Evaluation is Required, 10410
Types of Eligibility Determinations, 10510

26 TAC Section 745.8447

4310 Time Frames for Conducting a Follow-Up

Revision 23-1, Effective April 21, 2023

The inspector verifies and documents corrections of deficiencies within the time frames outlined in the following chart for deficiencies cited in the same inspection, investigation or assessment.

Weights of Standards Cited in a Single Inspection, Investigation or Assessment	Time Frame for Completing Follow Up
High-weighted only	Within 15 days of the latest compliance date
Non-high-weighted only (that is, medium-high, medium, medium-low and low)	Within 30 days of the latest compliance date
High- and non-high-weighted	Within 15 days of the latest compliance date for the high-weighted standards. **Exception**: If the compliance date for a non-high-weighted deficiency is a future date and the operation has not yet corrected the deficiency, the inspector: • does not re-cite the deficiency; and • follows up on the deficiency no later than 30 days after the latest compliance date of all non-high-weighted deficiencies.

4311 Granting Staff Additional Time to Complete a Follow-Up with an Operation

Revision 23-1, Effective April 21, 2023

CCR staff may extend the established time frame for completing a follow-up with an operation if:

- the operation unexpectedly closes; or
- a condition exists that is beyond CCR's control (examples include weather-related office closures or natural disasters).

The inspector obtains approval from a supervisor, program administrator or regional director to extend the follow-up time frame.

Procedure

If the inspector determines that an extension of the time frame for completing a follow-up is needed, the inspector consults with the supervisor, program administrator, or regional director to request approval.

If the request to extend the time frame is approved, the inspector documents the following in the *Additional Documentation* field on the *Standard Details* page in CLASS:

- the extension date;
- the date the supervisor, program administrator or regional director approved the extension;
- the name and title of the person who approved the extension; and
- the reason for the extension.

4320 Following Up with an Inspection

Revision 24-1, Effective Feb. 20, 2024

Procedure

If the inspector determines following up on a deficiency requires a follow-up inspection, the inspector conducts the inspection as soon as possible, but no later than the time frames outlined in 4310 Time Frames for Conducting a Follow-Up.

If the inspection is a Heightened Monitoring (HM) inspection, the HM inspector also follows procedures in 4322 How Heightened Monitoring Staff Completed and Document Follow-Ups Completed with an Inspection.

References:

4120 Types of Inspections
4152 Reviewing Restrictions, Conditions, Waivers, and Variances
4311 Granting Staff Additional Time to Complete a Follow-Up with an Operation
4350 Granting an Operation Additional Time to Comply with a Requirement Cited as a Deficiency
4510 CLASS Enforcement Recommendations
5160 Evaluating the Conditions of a Waiver or Variance
10400 Risk Evaluation

4321 Documenting a Follow-Up Completed During an Inspection Unrelated to Heightened Monitoring Activities

Revision 23-4, Effective Nov. 30, 2023

Procedure

When an inspector conducts an inspection to follow up on a deficiency cited during a previous inspection, investigation or assessment, and the inspection and deficiencies are unrelated to Heightened Monitoring (HM) activities, the inspector:

- creates a new CLASS Form 2936 Child-Care Facility Inspection;
- selects the appropriate inspection type:
  - *Follow-up*;
  - *Monitoring*;
  - *Investigation*;
  - *Monitoring and Investigation*; or
  - *Initial*;
- documents the follow-up for each deficiency according to procedures in 4323 Documenting Follow-Up Results on CLASS Form 2936; and
- documents findings unrelated to the follow-up according to procedures in 4100 Inspecting Child Care Operations.

4322 How Heightened Monitoring Staff Complete and Document Follow-Up Completed with an Inspection

Revision 23-1, Effective April 21, 2023

Heightened Monitoring (HM) staff follow up on HM deficiencies and non-HM deficiencies by conducting inspections (type *Follow-up* or *Other*), assessments (type *Follow-up*), or a combination of the two. How HM staff document these follow-ups depends on:

- the type of deficiency staff is evaluating during the follow-up; and
- whether staff are completing the follow-up during an HM inspection.

When completing a follow-up by an assessment, HM staff follow the procedures in 4212 Follow-Up Assessments and 4220 Documenting an Assessment and Notifying the Operation.

Procedure

When conducting a follow-up to evaluate deficiencies, the HM inspector may do any a combination of the following activities:

- evaluate HM-related deficiencies;
- evaluate non-HM-related deficiencies;
- conduct an HM inspection to evaluate the HM plan tasks; or
- conduct a non-HM inspection to evaluate CCR statutes, administrative rules and minimum standards not included in the HM plan tasks.

When conducting a combination of follow-ups or inspections at the same time, staff must complete the appropriate CLASS forms 2936 Child-Care Facility Inspection and 2939 Child-Care Facility Assessment indicated in the sections below.

The HM inspector also refers to the *Heightened Monitoring CLASS Release 3 HM Inspections* Job Aid and the *Heightened Monitoring CLASS Release 4 HM Assessments* Job Aid, located on the Heightened Monitoring SharePoint site.

4322.1 Conducting Follow-Up While Completing a Weekly HM Inspection

Revision 23-1, Effective April 21, 2023

Procedure

When conducting a follow-up to evaluate deficiencies **while** conducting a weekly HM inspection, the HM inspector follows the procedures in the table below:

Type(s) of Deficiencies Being Evaluated in the Follow-Up	Procedures
Only HM-related deficiencies	1. In CLASS, create an inspection (type *Follow-up*) and complete the *Heightened Monitoring* section. 2. Conduct and document results of the weekly HM inspection according to existing policies and procedures. 3. Follow up on deficiencies being evaluated. 4. Document the follow-up on the HM-related deficiencies being followed up on in CLASS as outlined in 4323 Documenting Follow-Up Results on CLASS Form 2936.
Only non-HM-related deficiencies	1. In CLASS, create an inspection (type *Other*) and complete the *Heightened Monitoring* section. 2. Conduct and document results of the weekly HM inspection according to existing policies and procedures. 3. Follow up on the non-HM-related deficiencies being evaluated. ◦ Document the follow-up on the HM-related deficiencies in CLASS as outlined in 4323 Documenting Follow-Up Results on CLASS Form 2936. ◦ Document the follow-up on non-HM deficiencies in a separate follow-up assessment as outlined in 4212 Follow-Up Assessments. 4. When conducting the exit interview, explain to the person in charge: a. the results of the weekly HM inspection; b. the results of the follow-up on the non-HM-related deficiencies evaluated; and c. that the follow-up results will be sent on an assessment form (CLASS Form 2939 Child-Care Facility Assessment).

Type(s) of Deficiencies Being Evaluated in the Follow-Up	Procedures
	5. No later than the next day, document the follow-up on the non-HM related deficiencies in an assessment (type *Follow-up*) as outlined in: a. 4221 Documenting an Assessment Using CLASS Form 2939 Child-Care Facility Assessment; and b. 4221.1 Additional Requirements for Documenting Follow-Up Assessments.
Both HM-related and non-HM-related deficiencies	1. In CLASS, create an inspection (type *Follow-up*) and complete the *Heightened Monitoring* section. 2. Conduct and document results of the weekly HM inspection according to existing policies and procedures. 3. Follow up on HM-related and non-HM-related deficiencies being evaluated. ◦ Document the follow-up on the HM-related deficiencies in CLASS as outlined in 4323 Documenting Follow-Up Results on CLASS Form 2936. ◦ Document the follow-up on non-HM deficiencies in a separate follow-up assessment as outlined in 4212 Follow-Up Assessments. 4. When conducting the exit interview, explain to the person in charge: a. the results of the weekly HM inspection; b. the results of all follow-ups on deficiencies evaluated; c. that the follow-up results for the HM-related deficiencies are documented on CLASS Form 2936; and d. that the follow-up results for the non-HM-related deficiencies will be sent on an assessment form (CLASS Form 2939 Child-Care Facility Assessment). 5. No later than the next day, document the follow-up for the non-HM related deficiencies in an assessment (type *Follow-up*) as outlined in: a. 4221 Documenting an Assessment Using CLASS Form 2939 Child-Care Facility Assessment; and b. 4221.1 Additional Requirements for Documenting Follow-Up Assessments.

4322.2 Conducting Follow-Up Without Completing a Weekly HM Inspection

Revision 23-1, Effective April 21, 2023

Procedure

When conducting follow-up to evaluate deficiencies **without** a weekly HM inspection to evaluate HM plan tasks, the HM inspector follows the procedures in the table below:

Type(s) of Deficiencies Being Evaluated in the Follow-Up	Procedures
Only HM-related deficiencies	1. In CLASS, create an inspection (type: *Follow-up*) and complete the *Heightened Monitoring* section. 2. Conduct the inspection without evaluating HM plan tasks. 3. Follow up on the HM-related deficiencies being evaluated. 4. Document the follow-up to the HM-related deficiencies in CLASS as outlined in 4323 Documenting Follow-Up Results on CLASS Form 2936.
Only non-HM-related deficiencies	1. In CLASS, create an inspection (type: *Follow-up*). 2. Conduct the inspection without evaluating HM plan tasks. 3. Follow up on the non-HM-related deficiencies being evaluated. 4. Document the follow-up for the non-HM deficiencies as outlined in 4321 Documenting Follow-Ups Completed During an Inspection Unrelated to Heightened Monitoring Activities.
Both HM-related and non-HM-related deficiencies	1. In CLASS, create an inspection (type *Follow-up*) and complete the *Heightened Monitoring* section. 2. Conduct and document the inspection without evaluating HM plan tasks. 3. Follow up on HM-related and non-HM-related deficiencies being evaluated. ◦ Document the follow-up to the HM-related deficiencies in CLASS as outlined in 4323 Documenting Follow-Up Results on CLASS Form 2936.

Type(s) of Deficiencies Being Evaluated in the Follow-Up	Procedures
	○ Document the follow-up on non-HM deficiencies in a separate follow-up assessment as outlined in 4212 Follow-Up Assessments. 4. When conducting the exit interview, explain to the person in charge: a. the results of the inspection; b. the results of all follow-ups being evaluated; c. that the follow-up results for the HM-related deficiencies are documented on CLASS Form 2936 Child-Care Facility Inspection; and d. that the follow-up results for the non-HM-related deficiencies will be sent on an assessment form (CLASS Form 2939 Child-Care Facility Assessment). 5. No later than the next day, document the follow-up for the non-HM-related deficiencies in an assessment (type *Follow-up*) as outlined in: a. 4221 Documenting an Assessment Using CLASS Form 2939 Child-Care Facility Assessment; and b. 4221.1 Additional Requirements for Documenting Follow-Up Assessments.

4323 Documenting Follow-Up Results on CLASS Form 2936

Revision 23-1, Effective April 21, 2023

Procedure

The inspector follows the steps below when documenting the results of a follow-up completed during an inspection on CLASS Form 2936 Child-Care Facility Inspection:

- selects the appropriate inspection type;
- links the inspection to the appropriate previous inspection(s), investigation(s) without inspection(s), assessment(s) or a combination of these activities (see 4321 Documenting Follow-Ups Completed During an Inspection Unrelated to Heightened Monitoring Activities and 4322 How Heightened Monitoring Staff Document Follow-Ups Completed with an Inspection);
- deletes any linked deficiencies that automatically prefill on the *Inspection Summary* page if:
  - the deficiency is not evaluated during the current follow-up inspection; or
  - the operation requested an extension during the current follow-up inspection **and** the extension was granted (the inspector documents the extension in the original inspection in CLASS; see 4350 Granting an Operation Additional Time to Comply With a Requirement Cited as a Deficiency);
- consults the table below for the remaining linked deficiencies:

If...	Then...
	The inspector:
the operation is in compliance…	• enters *Compliance* in the *Finding* field; • deletes the date in the *Compliance Date* field; and • deletes the text in the *Narrative* text box and replaces it with a statement outlining how the deficiency was corrected.
	the inspector:
the operation is still deficient…	• enters *Deficiency* in the *Finding* field; • enters the new compliance date in the *Compliance Date* field; and • deletes the text in the *Narrative* text box and replace it with information about how the operation continues to be deficient.

CLASS Updates the *Follow Up Information* section for the Original Deficiency

For each deficiency that was linked to the inspection and documented as *Compliance* or *Deficiency*, CLASS automatically updates the *Follow Up Information* section on the *Standards Details* page for the original inspection, investigation or assessment. Therefore, the inspector does not take any further steps to update the *Follow Up Information* section for the linked deficiency.

4330 Following Up Without an Inspection

Revision 24-4, Effective Feb. 20, 2024

Procedure

The inspector may follow up without an inspection when the they can assess compliance by:

- reviewing documents, photographs or videos the operation submits; or
- participating in video calls with the permit holder, designee, director or administrator.

If the inspector determines the operation has corrected **all** deficiencies evaluated during the follow-up, the inspector follows the procedures explained in 4331.1 Documenting a Follow-Up Without an Inspection When the Operation Corrected All Deficiencies.

If the inspector determines the operation has **not** corrected all deficiencies evaluated during the follow-up, the inspector follows the procedures explained in 4331.2 Documenting a Follow-Up Without an Inspection When CCR Re-cites One or More Deficiencies and 4340 When an Operation Continues to be Deficient.

References:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
4120 Types of Inspections
4152 Reviewing Restrictions, Conditions, Waivers, and Variances
4310 Time Frames for Conducting a Follow-Up
4311 Granting Staff Additional Time to Complete a Follow-Up with an Operation
4350 Granting an Operation Additional Time to Comply with a Requirement Cited as a Deficiency
4510 CLASS Enforcement Recommendations
5160 Evaluating the Conditions of a Waiver or Variance
10400 Risk Evaluation

4331 Documenting Follow-Ups Completed Without an Inspection

Revision 23-1, Effective April 21, 2023

Procedure

When following up without conducting an inspection, the inspector refers to the table below to determine how to document the follow-up:

Deficiencies Being Evaluated	Follow Procedures in
Operation corrected all deficiencies	4331.1 Documenting a Follow-Up Without an Inspection When the Operation Corrected All Deficiencies
Inspector will re-cite one or more deficiencies	4331.2 Documenting a Follow-Up Without an Inspection When CCR Re-cites One or More Deficiencies

4331.1 Documenting a Follow-Up Without an Inspection When the Operation Corrected All Deficiencies

Revision 23-1, Effective April 21, 2023

Procedure

If the operation has corrected all deficiencies being evaluated during the follow-up without an inspection, the inspector updates the *Follow Up Information* section of the *Standard Details* page in CLASS for each deficiency the inspector is evaluating as follows:

Field	What to Document
Follow Up Date	The date the information was received from the operation.
Follow Up Method	The method the inspector used to complete the follow-up.
Results	Select *Compliance Met*.
Additional Documentation	• a description of how the operation corrected the deficiency; • a description of the evidence the inspector used to determine how the operation corrected the deficiency (for example, the operation submitted a copy of the fire inspection or the inspector viewed the repair to the wall on a video call); and • the position or title of the person submitting the information.

Field	What to Document
	If the compliance date had been extended, the documentation is added above the extension documentation.

4331.2 Documenting a Follow-Up Without an Inspection When CCR Re-cites One or More Deficiencies

Revision 23-1, Effective April 21, 2023

Procedure

When the result of the follow-up without inspection is that the inspector will re-cite one or more deficiencies, the inspector:

- documents the results of all follow-ups (both deficiencies re-cited and deficiencies found in compliance) using an assessment (type *Follow-up*); and
- follows the procedures in:
  - 4221 Documenting an Assessment Using CLASS From 2939 Child-Care Facility Assessment ; and
  - 4221.1 Additional Requirements for Documenting Follow-Up Assessments.

See also:

4212 Follow-Up Assessments
4220 Documenting an Assessment and Notifying the Operation
4221 Documenting an Assessment Using CLASS Form 2939 Child-Care Facility Assessment
4221.1 Additional Requirements for Documenting Follow-Up Assessments

4340 When an Operation Continues to be Deficient

Revision 23-1, Effective April 21, 2023

Procedure

When the inspector conducts a follow-up and determines the operation continues to be deficient according to 4310 Time Frames for Conducting a Follow-Up, the inspector re-cites the deficiency.

In addition to re-citing the deficiency, the inspector may:

a. issue a warning letter and conduct a follow-up with an inspection;
b. expedite the next monitoring inspection;
c. recommend the operation go on a plan of action; or
d. recommend making a referral to HHSC Regulatory Enforcement for an enforcement action.

See also:

4320 Following Up with an Inspection
4330 Following Up Without an Inspection
4510 CLASS Enforcement Recommendations
5310 When to Issue a Warning Letter
7000 Voluntary Actions and Enforcement Actions
Appendix 7000-1: Factors to Consider for Enforcement Actions

4350 Granting an Operation Additional Time to Comply with a Requirement Cited as a Deficiency

Revision 23-4, Effective Nov. 30, 2023

The inspector may extend the time an operation has to comply with a cited deficiency if:

- the operation provides the reasons that an extension is being requested and CCR staff determine that:
  - there is cause for the extension; and
  - extending the time frame would not pose an immediate danger to children in care; or
- the operation has requested an administrative review of the deficiency, and the deficiency does not pose an immediate danger to children in care (see definition of *immediate danger* in Definitions of Terms).

26 TAC Section 745.8447

Procedure

If an Extension is Approved

If an extension is approved, the inspector:

- notifies the operation about the approval and the new compliance date;
- manually creates a *To-Do* in CLASS to notify the inspector to follow up by the compliance date; and
- documents the extension on the *Standards Details* page for the applicable deficiency in CLASS according to the following table:

Field	What to Document
Compliance Date	Change the date to the new compliance date.
Follow Up Method	Select the method inspector used to complete the follow-up.
Follow Up Date	Enter the date of the extension approval.
Results	Select *Extension Granted*.
Additional Documentation	Document the following in the text box: • the date of the follow-up; • the follow-up method; • a statement that the extension was approved; • the date that CCR staff approved the extension; • the original compliance date; and • the new compliance date.

If an Extension is Denied

If an extension is denied, the inspector:

- notifies the operation about the decision; and
- enters the date CCR denied the extension in the *Additional Documentation* box on the *Standard Details* page.

If the compliance date has passed and the inspector determines that the operation is still not in compliance, the inspector follows the procedures explained in 4340 When an Operation Continues to be Deficient.

4400, Additional Regulatory Activities for Certain Types of Operations

4410 Monitoring Certified (State-Operated) Child Care Operations

September 28, 2018

A certified child care operation must comply with all law, administrative rules, and minimum standard rules applicable to its facility type and the services it provides.

Situations that place children at risk must be immediately communicated to a Licensing supervisor, who ensures that the appropriate CCL director is informed about the situation and about any Licensing action taken.

Texas Human Resources Code §42.052(a) and (b)

Procedure

Licensing staff notify a Licensing supervisor about:

- any resistance to regulation; and
- any inspection or investigation of reports in which deficiencies involving the children's health or safety are cited.

The supervisor informs the appropriate CCL director about the concerns, who in turn notifies the assistant commissioner of Licensing.

If a state-operated facility violates the law, administrative rules, or minimum standard rules and the violation threatens serious harm to the children in care, the associate commissioner of Licensing notifies the executive commissioner.

At the commissioner's direction, the associate commissioner of Licensing notifies the governor, if the situation presents immediate danger to the children's health or safety.

Licensing staff send the associate commissioner of Licensing copies of:

- any inspection or investigation reports that cite deficiencies involving the health or safety of children; and
- all correspondence regarding corrective or adverse action.

4420 Monitoring Residential Child Care Operations

4421 Monitoring Child-Placing Agencies

Revision 23-4; Effective Nov. 30, 2023

A child-placing agency (CPA) verifies, approves and monitors its foster and adoptive homes.

For the purposes of CCR, branch offices, foster homes and adoptive homes are considered part of the CPA. If the CPA, any branch office of the CPA, or any of the CPA's foster homes or adoptive homes fail to comply with relevant statutes, administrative rules or minimum standards, CCR may do one or both of the following:

- Cite the CPA (including a branch office) for deficiencies.
- Submit a Referral for Enforcement Action to Child Care Enforcement.

If a CPA operates at a main office or branch office that is not open between 8:00 a.m. and 5:00 p.m. Monday through Friday, the CPA must ensure that the office and employees are available upon CCR's request for the purpose of inspecting or investigating the CPA.

Human Resources Code Section 42.053

26 TAC Sections 745.8405(c); 749.301

Procedure

Inspectors:

- monitor the CPA by conducting interviews and reviewing the CPA's records and the information gathered from random sampling of the CPA's foster homes; and
- use the information to determine whether the CPA:
  - is complying with statutes, administrative rules and minimum standards; and
  - is following the policies it submitted to CCR.

Human Resources Code Section 42.044

See 4100 Inspecting Child Care Homes and Operations.

Branch Offices

Branch offices must comply with all relevant statutes, administrative rules and minimum standards related to CPAs.

Inspectors maintain separate compliance information for each branch office, but notify the CPA permit holder about all deficiencies cited at the branch offices.

For purposes of data collection, CLASS assigns a branch number to each branch office and creates a separate file in CLASS for each branch office.

4422 Monitoring CPAs That Conduct International Adoptions

October 2020

A child-placing agency (CPA) that conducts international adoptions must comply with all law, administrative rules, or minimum standard rules that apply to the type of permit the CPA holds and the services it provides.

Texas Human Resources Code §§42.002(12); 42.072; 42.044(e)(4)

Procedure

Child Care Regulation (CCR) staff monitor CPAs that provide international adoption services. A CPA's adoption activities that occur in Texas are evaluated for compliance with all applicable minimum standard rules.

CCR staff do not evaluate child-placing activities that occur in other countries.

CPAs in Texas that handle international adoptions must comply with the U.S. Department of State's requirements for international adoptions. The requirements are based on The Hague Convention on Protection of Children and Co-operation in Respect of Intercountry Adoption (Hague Adoption Convention). CCR staff do not enforce the requirements in the Hague Adoption Convention, but may provide technical assistance to help CPAs obtain information from the U.S. Department of State.

4423 Certifying the Licensing Status of a Child-Placing Agency for International Adoptions

October 2020

A child-placing agency (CPA) licensed in Texas may request that HHSC certify, in writing, the status of its license.

Inspectors only process certification requests from child-placing agencies (CPAs) licensed in Texas.

Before preparing a response letter to the CPA, inspectors review the CPA's Child Care Regulation (CCR) record to confirm that the CPA is in good standing.

Procedure

When CCR receives a request to certify the status of a CPA's license, the inspector responsible for the CPA responds to the request.

The inspector provides certification status only:

- to CPAs that are licensed in Texas; and
- upon the CPA's request.

Upon receiving a request to certify the status of a CPA's license, the inspector takes the following actions:

a. Review the CCR record to ensure that the CPA is in good standing.
    - An operation with a valid permit is considered in good standing with CCR, if no corrective or adverse action is pending against the operation.
    - If a CPA is on corrective or adverse action, or such action is pending, consult with the supervisor before replying to the request.
b. Complete a reply letter (Form 2983 Certification of a CPA License Status Letter). The letter requires:
    - supervisor approval; and
    - a notarized signature.
c. Send the letter to the CPA.
   Before responding to a CPA that is **not** in good standing (that is on corrective or adverse action, or that has such action pending), the inspector obtains approval from the director of residential CCR or a CCR attorney.
d. Document the request in CLASS, in the *Chronology* field, and note the date the reply letter (Form 2983) is sent.
e. File a copy of the reply letter in the CPA's hard copy record.

Other requests are handled as follows:

- Requests from other entities, such as the U.S. Department of State, are handled as open records requests. See 8000 Responding to Requests for Child Care Regulation Information.
- Requests for information not addressed in Form 2983 Certification of a CPA License Status Letter, require approval from the director of residential CCR or a CCR attorney.

4430 Random-Sample Monitoring of CPA Foster Homes

Revision 23-4; Effective Nov. 30, 2023

The purpose of a random-sampling inspection is to ensure that a CPA:

a. is complying with applicable statutes, administrative rules and minimum standards;
b. has correctly determined that a foster home meets the requirements for verification; and
c. has made appropriate decisions regarding:
    - the foster home's ability to work with children of a certain age or gender;
    - foster home's ability to care for children who have special needs or supervision requirements;
    - services the foster home is providing; and

- foster home's capacity.

Human Resources Code Section 42.044(e)

26 TAC Sections 745.8405(a)(5) and 749.2470

Inspectors do not conduct a sampling inspection if the inspection would interfere with an ongoing investigation.

An investigation of a home does not replace a sampling inspection. A sampling inspection of a foster home does not replace a required monitoring inspection of the CPA that regulates the home.

4431 Using Random-Sampling Inspections to Regulate a Child-Placing Agency

Revision 23-4; Effective Nov. 30, 2023

Inspectors must evaluate a child-placing agency's (CPA's) compliance history and sampling information on an ongoing basis to determine the CPA's compliance with statutes, administrative rules and minimum standards.

Inspectors assigned to the CPA cite the CPA for a deficiency if the CPA fails to maintain substantial compliance with statutes, administrative rules and minimum standards or if the random-sampling inspections show a pattern of non-compliances within the CPA.

Procedure

The inspector assigned to the CPA must evaluate the CPA's compliance with statue, administrative rules and minimum standards. This information is used to prepare for the CPA monitoring inspection, continuing appraisal of the CPA, and the CPA's annual enforcement team conference. To evaluate the CPA, the inspector reviews the following information:

a. the sampling results received from the CCR staff who conduct the random-sampling inspections of foster homes verified by the CPA;
b. any investigation results;
c. compliance history report for random-sampling in CLASS; and
d. other compliance information.

Inspectors must be alert to indicators such as:

a. patterns or repetition found in the concerns noted during sampling inspections;
b. falsification of CPA records;
c. non-compliance with background check rules;
d. immediate hazards observed during an inspection;
e. conflict-of-care issues (disagreements between the family and the CPA about the method or quality of care expected); and
f. the CPA's failure to correct concerns found during a random-sampling inspection.

See:

4140 Preparing for Inspections
4500 Evaluating Risk to Children and Handling Immediate Danger

4431.1 Citing Deficiencies Based on Random-Sampling Inspection Results

Revision 23-3; Effective Sept. 22, 2023

Procedure

The inspector assigned to the child-placing agency (CPA) cites a deficiency if their evaluation of the CPA's compliance history and sampling information do not reflect substantial compliance with law, administrative rules, and minimum standard rules.

When citing deficiencies that are the result of a random-sampling inspection, the inspector must check the indicator box in CLASS.

If a deficiency is cited without a monitoring inspection of the CPA, the inspector:

- uses the CLASS *Assessment* function to notify the CPA; and
- informs CPA staff about their right to an administrative review of the deficiency.

See:

4200 Assessments
5600 Administrative Reviews

4432 Selecting CPA Foster Homes for Random-Sampling Inspections

April 2022

Each year, CCR inspects one-third of all foster homes. These foster homes are selected through a random-sampling process. In addition, CCR also conducts sampling inspections each year for all active foster homes verified to serve children with primary medical needs.

Texas Human Resources Code §42.044(e)

40 TAC §745.8407(4)

Procedure

Each September, CCR staff from state office provide each regional director in the residential care program with the annual random-sampling goals for the fiscal year. The regional directors or their designees assign inspections in a way that ensures the region's annual goals are met and the workload is distributed over the fiscal year.

To meet the annual goals, CCR staff select foster homes that have been randomly selected for an inspection from the *Agency Home Sampling Report List* on the AH (Agency Home) *Reports* tab in CLASS. This list is generated on the last day of each month and contains a sufficient number of homes for primary and back-up lists.

Homes remain on the list and are available for sampling activities for 60 days, after which they drop off the list and any assigned worker's workload and return to the sampling pool.

If additional homes are needed to meet the assigned number of home inspections for the period, the supervisor or regional director contacts:

- the director of Residential Care Operations; or
- the director's designee.

4432.1 Pre-Screening CPA Foster Homes Selected for Random-Sampling Inspections

May 2022

Before scheduling a random-sampling inspection of a foster home, the inspector pre-screens the home to ensure that it meets the following criteria:

- An active foster home actively caring for children (including homes verified for respite care only); or
- An active foster home that is empty, but ready to accept placement.

Foster homes with children placed in the home are priority for random-sampling selections.

A random-sampling inspection is **not** conducted on a home if one or more of the following is true:

- A foster home is closed or inactive (not currently accepting children for care).
- A random-sampling inspection was conducted on the foster home within two years before the sample is drawn, unless:
  - the home serves children with primary medical needs;
  - the home has transferred to a different child-placing agency (CPA); or
  - all of the CPA's foster homes have been sampled at least once before the end of the two-year period.
- A CCR supervisor determines that conducting a random-sampling inspection on the foster home would interfere with an ongoing investigation.
- CCR staff determine the home is an adoption-only home (random-sampling inspections are not conducted on adoption-only homes).

Procedure

Before preparing for or conducting a random-sampling inspection of a foster home, the inspector ensures that the home is eligible for a random-sampling inspection by pre-screening the home by reviewing information in CLASS, in IMPACT or from the CPA.

If DFPS or CCR has an open investigation on a foster home on the *Agency Home Sampling Report List* in CLASS, CCR staff consult with the supervisor to determine if conducting a random sampling inspection would interfere with the ongoing investigation. If a

random-sampling inspection would interfere with the ongoing investigation, CCR staff select another foster home. See 6510 Investigations Involving Homes Regulated by a Child-Placing Agency (CPA) for special considerations when conducting investigations at agency foster homes.

4432.2 When a Foster Home is Screened Out

August 2012

If the home is not inspected because it has been determined it is ineligible, the inspector:

- records the reason for not inspecting the home on the *AH* (Agency Home) *Sampling Report* page in CLASS; and
- reassigns the home to the appropriate staff person.

If needed, the inspector asks for a different home from the random-sampling list in CLASS to be assigned for inspection.

4433 Preparing for a Random-Sampling Inspection

June 2016

Before conducting a random-sampling inspection at an agency foster home, the inspector:

- requests records about the foster home from the child placing agency (CPA);
- reviews the records to gain insight into the foster home;
- completes the Foster Home Screening Review Guide (Form 7291); and
- contacts the foster home to schedule an inspection, if the inspection is going to be announced.

See:

4433.1 Requesting CPA Foster Home Records in Preparation for a Random-Sampling Inspection
4433.2 Reviewing a CPA's Record on a Foster Home in Preparation for a Random-Sampling Inspection
4434 Scheduling Random-Sampling Inspections

4433.1 Requesting CPA Foster Home Records in Preparation for a Random-Sampling Inspection

Revision 23-3; Effective Sept. 22, 2023

Procedure

The inspector contacts the child-placing agency (CPA) to request photocopies or electronic files from the CPA foster home's record. For homes verified by Child Protective Services (CPS), foster home records are available electronically and must be reviewed in the IMPACT system instead of requesting them from the CPS foster or adoptive home development worker. The inspector converts any paper copies of records received to PDF files and uploads them to CLASS Document Library when conducting the sampling inspection of the home.

Inspectors do not keep the records for homes that they do not inspect. See 4437 Retaining Records of Random-Sampling Inspections.

If a monitoring inspection is planned at the CPA before the random-sampling inspection of the CPA's foster home, the inspector:

- obtains copies during the monitoring inspection; or
- reviews the foster home's record as part of the monitoring inspection.

See:

1330 Records Retention
1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

4433.11 If Requested Records are Not Received Within Five Days

August 2012

Procedure

If Licensing does not receive the child-placing agency's (CPA's) records within five days of requesting the records, the inspector:

- conducts an unannounced inspection of the CPA; and
- cites the CPA for not providing the foster home records that were requested.

4433.2 Reviewing a CPA's Record on a Foster Home in Preparation for a Random-Sampling Inspection

June 2016

Procedure

Inspectors prepare for the random-sampling inspection of an agency foster home by reviewing the following information:

- The CPA's foster home screening
- Background check records in CLASS for the foster home
- Developmental or corrective action plans in place for the foster home
- Investigation history for the last 12 months, or since the last enforcement team conference, whichever is more recent
- Inspection reports, the foster home's floor plan, serious incident reports, and other documentation in the CPA's foster home record, if:
  - questions or issues are identified as a result of reviewing the home screening; or
  - the records are being reviewed as a part of a monitoring inspection at the CPA; and
- The children's records in the IMPACT system if CPS foster children are placed in the home.

After reviewing all of the information, the inspector takes note of any questions or issues that may need to be addressed with:

- the foster parent during the sampling inspection; or
- the CPA's staff before the sampling inspection.

If it is determined that information documented in the CLASS system regarding the agency foster home is outdated or incorrect, the inspector conducting the random-sampling inspection:

- instructs the CPA to update the foster home's information; and
- notifies the inspector assigned to the CPA.

The inspector assigned to the CPA then considers citing a deficiency, using an assessment, if outdated or incorrect information is a pattern for the CPA. See 4431.1 Citing Deficiencies Based on Random-Sampling Inspection Results.

4433.3 Completing the Foster Home Screening Review Guide

June 2016

Procedure

After reviewing the CPA's foster home screening, the inspector completes the Foster Home Screening Review Guide (Form 7291).

4434 Scheduling Random-Sampling Inspections

April 2022

A random-sampling inspection may be:

- announced (CCR staff contact the foster home before inspecting the home); or
- unannounced (CCR staff do not contact the foster home before inspecting the home). A minimum of 25 percent of the random-sampling inspections CCR conducts over the annual period must be unannounced.

4434.1 Scheduling Announced Inspections

August 2012

Procedure

When scheduling an announced random-sampling inspection, the inspector works with the agency foster home to ensure that the visit causes as little disruption to the family routine as possible.

If the foster home does not respond to voice messages left by the inspector, the inspector notifies the child-placing agency (CPA) using Form 2990 Agency Foster Home No Contact Letter.

4434.2 Scheduling Unannounced Inspections

April 2022

Procedure

When scheduling an unannounced inspection, the inspector chooses a time that:

- is likely to cause as little disruption to the family routine as possible; and
- is a time when the children in care will likely be at the home during the inspection.

If the inspector makes an unannounced random-sampling inspection and no contact is made, the inspector follows procedures in 4435.3 Attempted Random-Sampling Inspections.

4435 Conducting Random-Sampling Inspections at CPA Foster Homes

December 2019

a. Inspect the home using Form 2978 Foster Home Random-Sampling Guide located on the CCL SharePoint site.
b. Interview at least one foster parent.
c. Interview all foster children who are present during the inspection who are able and willing to talk.
d. Observe all non-verbal foster children who are present during the inspection.
e. Point out immediate safety and health hazards to the foster parent or adult who is in charge during the inspection.

See 4435.1 Immediate Hazards.

An adult other than the foster parent may be the primary contact person present during the random-sampling inspection; however, at least one foster parent must be present at some time during the inspection in order to be interviewed.

Procedure

To conduct a random-sampling inspection, inspectors take the following actions:

a. Present, on arrival, a valid HHSC identification card to the person in charge and explain the purpose of the visit.
b. Use Form 2978 Foster Home Random-Sampling Guide to conduct the random-sampling inspection.
The sample interview questions on Form 2978 are suggestions only. They are designed to help the inspector gather information. The inspector reviews the interview questions and tailors them to the circumstances of the inspection in order to ensure that they are appropriate for the child's age, developmental level, and situation.
c. Determine whether background checks have been completed on all persons at the foster home who are required to have background checks completed. The background checks may be conducted in CLASSMate during the inspection.
See 10000 Background Checks.
d. Interview at least one foster parent in person during the inspection. If another foster parent cannot be present during the inspection and an interview is necessary, the inspector interviews that foster parent by phone.
e. Interview all foster children who are present during the inspection and are able and willing to talk. Observe all non-verbal foster children who are present during the inspection. When a foster child has not been interviewed, the inspector notes the reason on Form 2978 Foster Home Random-Sampling Guide.
f. Interview other household members or the staff of the child-placing agency (CPA), as needed, to determine how well the CPA is regulating its foster homes. Obtain written consent before interviewing the foster parent's biological or adopted children.
See 6421.2 Observing and Interviewing a Child Related to a Child Care Provider.

If there are any meaningful discrepancies between the results of the home screening and observations made at the foster home during the random-sampling inspection, the inspector notes them on Form 2978 Foster Home Random-Sampling Guide.

If photographs are taken during the inspection, see 1400 State-Issued Equipment, Photographs, Video, Audio and Digital Files.

The sampling inspection is considered complete when both of the following have been addressed through observations and interviews:

- All of the questions or issues noted during the review of the foster home's record.
- All topics on CLASS Form 2978 Foster Home Random-Sampling Guide.

4435.1 Immediate Hazards

January 2013

Immediate hazards include, but are not limited to:

a. unsupervised access to bodies of water, firearms, or medication;
b. no water or electricity;
c. structural damage to the home that makes the home uninhabitable;
d. unsafe equipment; and
e. construction hazards.

Procedure

When an immediate hazard is observed, the inspector conducting the random-sampling inspection must:

a. point out immediate safety and health hazards to the foster parent or adult who is in charge during the inspection;
b. notify the CPA within 24 hours of the inspection about immediate hazards found in the foster home; and
c. notify the inspector assigned to the CPA within 24 hours of the inspection about immediate hazards found in the foster home.

The CPA must follow up to ensure that:

- a plan exists for the home to come into compliance; and
- the home follows the plan for the protection of the children.

The inspector assigned to the CPA follows up with the CPA, as appropriate, to ensure that the CPA has taken the appropriate actions regarding immediate hazards identified during the random-sampling inspection.

4435.2 When Abuse or Neglect is Reported or Observed

August 2012

See 6200 Assessing and Processing Intake Reports, if abuse or neglect is reported or observed during the inspection.

4435.3 Attempted Random-Sampling Inspections

August 2012

If a random-sampling inspection of a foster home is attempted but no contact is made, the inspector:

- documents the attempted random-sampling inspections in CLASS; and
- conducts another random-sampling inspection.

See:

4435.31 Attempted Announced Inspections
4435.32 Attempted Unannounced Inspections

4435.31 Attempted Announced Inspections

August 2012

If the family is not home when the inspector makes an announced random-sampling inspection, the inspector:

- documents the attempted inspection as a *Chronology* in the foster home's record in CLASS;
- contacts the family to reschedule the announced inspection; and
- creates and sends Form 2990 Agency Foster Home No Contact Letter to the child-placing agency and foster home.

See 4434 Scheduling Random-Sampling Inspections.

4435.32 Attempted Unannounced Inspections

August 2012

First Attempted Unannounced Inspection

If the inspector makes an unannounced random-sampling inspection and no contact is made, the inspector:

- documents the attempted inspection as a *Chronology* in the foster home's record in CLASS; and
- conducts another unannounced inspection within 10 days.

Second Attempted Unannounced Inspection

If the family is not home at the time of the second unannounced random-sampling inspection, the inspector:

a. documents the attempted inspection as a *Chronology* in the foster home's record in CLASS;
b. contacts the family to schedule and complete an announced inspection; and
c. creates and sends Form 2990 Agency Foster Home No Contact Letter to the child-placing agency and foster home.

See 4434 Scheduling Random-Sampling Inspections.

4436 Documenting and Sharing the Results of Random-Sampling Inspections

Revision 23-3; Effective Sept. 22, 2023

Before leaving the foster home, the inspector:

- completes CLASS Form 2979 Agency Home Inspection to document any concerns identified and any technical assistance provided during the random-sampling inspection; and
- conducts an exit interview with the foster parent or person in charge to:
  - inform the person about any findings identified as sampling concerns;
  - inform the person of any photographs taken during the inspection and completes the *Photo Taken by CCR During the Inspection* radio button as appropriate;
  - complete the Supporting Documents/Photos Obtained indicator as appropriate; and
  - provide the person with a copy of the completed Form 2979.

Within 10 days of each inspection or attempted inspection, the inspector who conducted the random-sampling inspection:

a. resolves any pending sampling concerns and documents the outcomes for any pending sampling concerns in CLASS;
b. completes the Sampling Letter in CLASS; and
c. provides a copy of the Sampling Letter to the child-placing agency (CPA) and the CCR inspector assigned to the CPA to inform them of the inspection results.

Texas Human Resources Code Sections 42.044; 42.04411

Procedure

Before Leaving the Foster Home

Before leaving the foster home, the inspector completes CLASS Form 2979 to document:

a. any concerns identified while reviewing the CPA's record on the foster home;
b. any questions or issues identified while reviewing the foster home's agency home record in CLASS, including records related to compliance with background check requirements;
c. any findings identified as sampling concerns due to conducting the random-sampling inspection;
d. any technical assistance provided to the foster home (see 4154 Technical Assistance); and
e. any photographs taken by CCR during the inspection.

After documenting the inspection results on CLASS Form 2979, and before leaving the home, the inspector conducts an exit interview with the foster parent or other adult who is in charge, during which the inspector:

- informs the person about any findings identified as sampling concerns;
- reviews, but does not provide copies of, any photographs taken during the inspection; and
- provides a copy of the completed Form 2979.

Within 24 Hours After Completing a Random-Sampling Inspection

Within 24 hours after completing the random-sampling inspection, the inspector who conducted the random-sampling inspection notifies the CPA and the CCR inspector assigned to the CPA about any immediate hazards observed in the foster home. Notification may be made by phone, email or fax.

See:

4435.1 Immediate Hazards.

Within 10 Days After the Random-Sampling Inspection

Within 10 days after the inspection, the inspector that conducted the random-sampling inspection:

a. resolves any pending sampling concerns and documents the results in CLASS;
b. completes the CLASS Sampling Letter; and
c. sends the Sampling Letter to:
    - the CPA; and
    - the inspector assigned to the CPA.

Documenting an Attempted Random-Sampling Inspection

For information on documenting an attempted random-sampling inspection of a CPA foster home, see 4435.3 Attempted Random-Sampling Inspections.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
4160 Documenting the Results of an Inspection

4437 Retaining Records of Random-Sampling Inspections

June 2016

Procedure

Documentation collected as part of a random-sampling inspection is retained or destroyed according to the following schedule:

- The sampling guide, Foster Home Screening Review Guide, and any home records obtained from the child placing agency (CPA) are retained in the case file for one year, or until the enforcement team conference for the CPA has been completed for the year; and
- The sampling guide, Foster Home Screening Review Guide, and home study record are destroyed after one year, or after the conference has been completed for the year.

Confidential material must be destroyed as outlined in 1330 Records Retention.

4440 Enforcement Team Conferences

September 2017

4441 Enforcement Team Conferences for Child-Placing Agencies and General Residential Operations

September 2017

Licensing staff conduct at least one annual enforcement team conference for each child-placing agency (CPA) main and branch office and general residential operation (GRO), even if the CPA or GRO is on voluntary suspension. These conferences are a part of Licensing's effort to monitor and enforce operations' compliance with law, administrative rules, and minimum standards.

During an enforcement team conference, Licensing staff conduct a comprehensive assessment of the operation by thoroughly reviewing information about the operation in CLASS, including from inspections and investigations that were conducted either by Licensing or DFPS.

The conference may be conducted by phone as a conference call or as a face-to-face meeting.

Texas Human Resources Code (HRC) §42.044(e)(4)

4441.1 Completing the Enforcement Team Pre-Conference Synopsis for a CPA or GRO

September 2017

Procedure

The assigned inspector completes the *Pre-Conference Synopsis Details* page in CLASS before conducting the enforcement team conference. If a CPA has a main office and one or more branch offices, a synopsis is completed for each office. The assigned inspector completes a synopsis.

The inspector completes the synopsis by the fifth day of the month in which Licensing issued the full permit. For example, if the operation received its full permit in January, the synopsis is due each year on January 5.

The inspector reviews the following information about the operation in CLASS to complete the synopsis:

- Compliance/Sampling Report Detail (located under *CLASS Tools*)
- Emergency Behavior Intervention Report (located under *CLASS Tools*)
- Waiver/Variance List
- People List
- Inspection/Assessment List
- Operation Investigation List
- Corrective and Adverse Action History

The inspector analyzes the data on these pages and reports to determine if any trends or patterns exist. Once the inspector completes the synopsis, he or she submits it for supervisory approval by selecting the *Ready for Supervisor Approval* checkbox and saving the *Pre-Conference Synopsis Details* page in CLASS.

Supervisor Responsibilities

The Licensing supervisor must approve the synopsis by the seventh day of the anniversary month in which Licensing issued the full permit. For example, if the operation received its full permit in January, the synopsis approval is due each year on January 7. After approving the synopsis, the Licensing supervisor schedules the enforcement team conference with the assigned inspector.

4441.2 Conducting the Enforcement Team Conference for a CPA or GRO

September 2017

The Licensing supervisor is responsible for ensuring that the enforcement team conference is conducted for a CPA's main office or a GRO.

Special Considerations for a CPA's Branch Office

The Licensing supervisor is responsible for ensuring that an enforcement team conference is conducted for a CPA's branch office.

If a CPA's branch office closed since the last conference, Licensing staff review the following information related to the closure of the branch office as part of the conference for the CPA's main office:

a. Any significant compliance history associated with the branch office.
b. Reasons for the closure of the branch office.
c. Significant outcomes of the closure of the branch office.

4441.3 Activities After Conducting the Enforcement Team Conference for a CPA or GRO

September 2017

Procedure

The inspector documents any identified concerns, follow-up plans, and recommendations in CLASS on the *Enforcement Team Conference Details* page. The inspector completes this documentation:

- before the end of the anniversary month of full issuance, for a CPA's main office or a GRO; or

- before the end of the 15th day of the anniversary month of full issuance, for a CPA's branch office.

Within 15 days of conducting the enforcement team conference, the inspector discusses the previous year's compliance history with the operation's licensed administrator, if appropriate, and documents the discussion or lack thereof in the *Review with Administrator* section of the *Enforcement Team Conference Details* page in CLASS. If a discussion did not take place, the inspector documents the reason the discussion did not occur.

Within three days of documenting the discussion with the administrator or lack thereof, the inspector finalizes the conference on the *Enforcement Team Conference Details* page in CLASS by:

- selecting *Completed* as the *Final Action*;
- documenting the date the *Final Action* was entered; and
- entering any comments if necessary.

4450 Foster Family Home Closure Recommendations

Revision 24-1; Effective Feb. 20, 2024

CCR staff recommends the closure of a foster family home when:

- there is a high degree of risk to children; and
- the risk cannot be mitigated.

The associate commissioner of CCR has final approval authority for foster family home closure recommendations.

4451 Assessing a Foster Family Home for Closure

Revision 24-1; Effective Feb. 20, 2024

When CCR staff identifies risk at a foster family home they use one or more of the following criteria to assess the home for closure:

- patterns of violations of high risk deficiencies;
- repeat violations of high risk deficiencies;
- number and patterns of allegations;
- if the home was previously closed for deficiencies by another CPA; and
- if CCR approved a closure recommendation for the home while the home was verified by another CPA.

4451.1 Foster Family Home Compliance History Considerations

Revision 24-1; Effective Feb. 20, 2024

When evaluating the compliance history of the foster family home, CCR staff considers if there is a pattern or repeat violations of high-risk deficiencies, or pattern of allegations, related to:

a. inappropriate discipline;
b. inadequate supervision;
c. unsafe living conditions;
d. safe sleep violations;
e. children's rights;
f. interference with an investigation; or
g. failure to report any of the following persons to the CPA for a background check:
    - a household member; or
    - frequent visitor to the home.

Additional resources for evaluating the compliance history are on the CCR SharePoint site.

4452 Recommending a Foster Family Home for Closure and Documenting the Closure Recommendation in CLASS

Revision 24-1; Effective Feb. 20, 2024

When CCR staff determine that a foster family home presents a high degree of risk to children that cannot be mitigated, CCR staff recommend closure of the home within 24 hours of identifying the risk.

Procedure

CCR staff complete the actions outlined in the table below to recommend a foster family home for closure, and document the closure recommendation in CLASS.

Staff Responsible	Action	When Action is Due
Regional CCR Staff	• complete Form 2980a, available on the CCR SharePoint site; • gather supporting documentation such as photographs, or external documentation gathered for an investigation; • email Form 2980a and supporting documentation to RCCRFCL@hhs.texas.gov, or indicate if supporting documentation was uploaded to the CLASS Document Library or CCR SharePoint site; and • ensure the inspector, supervisor, program administrator, regional director, and state office director are included on the email.	As soon as possible but no later than 24 hours after identifying risk in an agency home.
FCL Project Manager or Designee	Adds the closure recommendation to the *Agency Home Closure Recommendation* page in CLASS.	Three business days after Form 2980a is received in the RCCRFCL@hhs.texas.gov mailbox.
FCL Project Manager or Designee	Schedules an internal meeting to discuss the recommendation with the agency home review team, which includes: • associate commissioner of CCR; • deputy associate commissioner of quality and compliance; • director of FCL quality and compliance; • FCL project manager; • HHSC legal; and • as necessary: ◦ deputy associate commissioner of regional operations; ◦ director of residential care operations; and ◦ director of heightened monitoring	After Form 2980a is received in the RCCRFCL@hhs.texas.gov mailbox.
Associate Commissioner of CCR	Meet with the agency home review team to: • discuss the details of the closure recommendation; • decide whether to approve, deny, or withdraw the recommendation; and • decide which director will be responsible for notifying the CPA of the decision.	Within 14 days from the date entered in the *Received Date* field on the *Agency Home Closure Recommendation* page.
FCL Project Manager or Designee	If the recommendation for closure is approved by the associate commissioner of CCR: • updates the *Decision Status* dropdown on the *Agency Home Closure Recommendation Details* page; and • enters the name of the director responsible for notifying the CPA of the decision in the *Notification Assigned To* field.	Within 14 days from the date entered in the *Received Date* field on the *Agency Home Closure Recommendation* page.

Find more resources for completing Form 2980a on the CCR SharePoint site.

Reference the *Agency Home Closure Recommendation Job Aid* on the CCR SharePoint site for more details on documenting the closure recommendation in CLASS.

4453 Notifying a CPA of an Approved Closure Recommendation and Documenting the CPA's Response in CLASS

Revision 24-3; Effective Aug. 15, 2024

If the associate commissioner of CCR approves the closure recommendation, the director responsible for notifying the CPA of the decision sends the CPA notification.

Procedure

The director responsible for notification.

Action	Due Date
• generates and sends the Agency Home Closure Recommendation Approved – AC1 letter to the CPA by email, with the inspector and supervisor copied on the email; • enters the date the Agency Home Closure Recommendation Approved – AC1 letter was sent to the CPA in the *Notification Date* field on the *Agency Home Closure Recommendation Details* page; and • notifies the DFPS CPS director for placement services to assess for disallowance of placement.	The same date the decision was entered in the *Decision Date* field on the *Agency Home Closure Recommendation* page.
updates the *CPA Response* dropdown on the *Agency Home Closure Recommendation Details* page to show that the CPA relinquished the home.	Within seven days from the date entered in the *Notification Date* field on the *Agency Home Closure Recommendation* page.

4453.1 Documenting the Relinquishment Reason in CLASS

Revision 24-1; Effective Feb. 20, 2024

Procedure

The inspector may document *CCR Recommended Closure* in the *Reason for Relinquishment* field in the *Operation Services* section of the *Agency Home* page in CLASS if:

- a foster family home has an approved closure recommendation documented in CLASS; and
- the CPA decides to close the home with the *CCR Recommended Closure* relinquishment reason but is unable to enter the reason due to technical difficulties.

Reference the *Agency Home Closure Recommendation Job Aid* on the CCR SharePoint site for more details on how to generate and document the notification in CLASS.

4454 Inspecting a CPA after Sending Notification of an Approved Closure Recommendation

Revision 24-1; Effective Feb. 20, 2024

The inspector conducts a follow up inspection at the CPA between 30 and 45 days after the date the CPA was notified of the approved closure recommendation. This inspection is to review the foster home record and evaluate:

- the verification status of the foster family home and the status of any placements in the home;
- if the Agency Home Closure Recommendation Approved – AC1 letter has been filed in the home's record per 749.535;
- if the foster family home transferred to another CPA or was closed, the home's transfer or closing summary for compliance with 749.2497; and
- If the CPA did not close the home, the inspector discusses with the administrator or person in charge:
  - the steps the operation has taken to address CCR's concerns about the foster family home since receiving the Agency Home Closure Recommendation Approved – AC1 letter; and
  - the steps the operation will take or continue to take in the future to address CCR's concerns about the foster family home.

In the *Narrative* text box on the *Inspection Details* page, the inspector summarizes the reason for the inspection. For example, "Inspector [insert inspector name] conducted an inspection at [insert CPA name] to follow up on the operation being sent an Agency Home Closure Recommendation Approved letter on [insert date letter sent].

4500, Evaluating Risk to Children and Handling Immediate Danger

Revision 23-3; Effective Sept. 22, 2023

CCR staff continuously evaluate each operation's performance in terms of risk to children to determine appropriate enforcement actions to reduce such risk throughout the duration of an operation's permit. See Appendix 7000-1 Factors to Consider for Enforcement Actions.

Human Resources Code Section 42.044

4510 CLASS Enforcement Recommendations

May 2020

CLASS *Enforcement Recommendations* help supplement the professional assessments of CCR staff. CLASS produces *Enforcement Recommendations* based upon the type, number, weight, and repetition of violations over the course of an operation's two-year compliance history.

Inspectors continue to independently evaluate risk to children in addition to reviewing CLASS *Enforcement Recommendations*.

An inspector's decision to select or reject recommended actions on the *Enforcement Recommendation Detail* page in CLASS is based on the overall risk to children exhibited by the operation.

4511 Options on the Enforcement Recommendation Page in CLASS

Revision 24-2; Effective May 22, 2024

Procedure

Each option on the *Enforcement Recommendation Detail* page in CLASS represents an action CCR may take on an operation based on the risk presented to children in care. Depending upon the situation, enforcement recommendations may be selected individually or in combination with other enforcement recommendations.

The page layout varies depending upon the operation's current risk as determined by the CLASS *Enforcement Recommendations*.

No deficiencies cited. Follow monitoring frequency

This means no action is currently being taken. Staff do not select this recommended action if any other enforcement recommendations are selected, even if no deficiencies were cited at the current inspection.

Follow-up without inspection

Reference 4330 Following Up Without an Inspection. Select this recommendation when deficiencies cited do not warrant a physical follow-up.

When this option is selected, CLASS *Follow-Up* and *Chronology* entries must clearly document how the inspector determined compliance. The decision to follow up with or without an inspection should be based upon the nature of the deficiencies cited at the most recent inspection(s).

Follow-up with inspection

Reference 4320 Following Up with an Inspection. This action indicates the inspector will conduct a follow-up inspection to determine compliance on specific deficiencies. Staff select this action any time deficiencies necessitate a physical follow-up, even if this action is not included in the *Recommended Actions Based on Risk*. A *Scheduled Date* is required when this option is chosen. This date should be the date the follow-up inspection is planned.

Plan of Action

Reference 7300 Plan of Action. A plan of action is a voluntary enforcement action that is a collaborative effort between CCR and an operation. The goal is to work with the operation to develop a plan to reduce risk and help improve the operation’s compliance with CCR statutes, administrative rules and minimum standards. CCR inspects an operation more frequently during a plan of action to evaluate the operation’s compliance with minimum standards.

Warning letter and follow-up with inspection

Reference 5310 When to Issue a Warning Letter.

CLASS Form 2999 Warning Letter is issued to notify the governing body of a child care operation that CCR has identified risks and may recommend enforcement action if the operation’s compliance history does not improve. The warning letter prompts the operation to resolve patterns of deficiencies in a timely manner and to maintain compliance on an ongoing basis.

The inspector conducts a follow-up inspection within 60 days of sending a warning letter, and the date of the follow-up inspection is entered in the *Follow Up Date* field on the *Warning Letter Detail* page.

Expedite monitoring inspection

Staff select this action when risk at the operation warrants conducting a monitoring inspection before the *Next Inspection Due Date* from the *Enforcement Recommendation*.

- The expedited monitoring inspection is an interim inspection. If the operation does not demonstrate improved compliance at the expedited inspection, staff consider additional action.
- A *Scheduled Date* is required when this action is chosen. In many cases, if risk warrants an expedited inspection, the date of the expedited inspection should be no more than a few months after the inspection that prompted the action to reduce risk.

Probation

Probation is a type of corrective action where CCR imposes conditions beyond the requirements of the minimum standards and the basic permit to improve an operation's compliance with minimum standards and reduce risk at the operation. The probation is 12 months and CCR conducts inspections at least monthly to evaluate compliance with minimum standards and the conditions imposed as part of the corrective action plan. CCR may recommend imposing probation if circumstances described in 7110 Circumstances That May Call for Enforcement Action exist and CCR determines the operation meets criteria outlined in 7410 Criteria for Imposing Probation.

Adverse Amendment

Adverse amendment is a type of adverse action where an existing permit is voided, and the permit is then reissued with new or additional restrictions or conditions. Reference 7622 Criteria for Imposing an Adverse Amendment.

Involuntary Suspension

In an involuntary suspension, CCR takes away the permit holder's authority to operate for a specific period so deficiencies may be corrected. The operation must close during a suspension. Suspension may be imposed if circumstances described in 7110 Circumstances That May Call for Enforcement Action exist and CCR determines the operation meets criteria outlined in 7623 Criteria for Imposing an Involuntary Suspension.

Injunction

If CCR determines circumstances at the operation are extreme enough to warrant immediate intervention, such as when risk of immediate harm to the health and safety of children in care is substantial, the CCR inspector may make a referral for legal action simultaneously with the mailing of the notice of an intent to deny, revoke or suspend. Reference 7710 Injunction, Including Temporary Injunction and 7631.1 When Immediate Intervention Is Warranted at an Operation.

Denial

Denial is the refusal to grant a permit or an amendment to a permit. The inspector only selects denial as an *Enforcement Recommendation* if intending to deny a permit amendment, as *Enforcement Recommendations* are not generated for operations that do not have a full permit. Reference 7621 Criteria for Imposing a Denial and 7630 Taking Adverse Action..

Revocation

Revocation is the cancellation of a permit, which requires the operation to close. Revocation may be imposed if circumstances described in 7110 Circumstances That May Call for Enforcement Action exist and CCR determines the operation meets criteria outlined in 7624 Criteria for Imposing a Revocation.

4512 Acting on Enforcement Recommendations

Revision 23-3; Effective Sept. 22, 2023

The inspector has five days from the date CLASS generated the *Enforcement Recommendation* to select one or more recommended actions from the *Enforcement Recommendation Detail* page in CLASS. When acting upon an *Enforcement Recommendation*, the inspector must:

- review the action that triggered the recommendation;
- consider all relevant compliance history for the operation;

- consult with his or her supervisor if necessary; and
- select one or more recommended actions based on risk.

See 4500 Evaluating Risk to Children and Handling Immediate Danger

4512.1 Documenting Enforcement Recommendations

May 2020

Any combination of actions can be selected from the three categories on the *Enforcement Recommendation Details* page. The three categories are:

a. *Recommended Actions Based on* Risk;
b. *Actions Not Requiring Supervisory Review*; and
c. *Actions Requiring Supervisory Review*.

Actions in the *Recommended Actions Based on Risk* section correspond with the risk level of the *Recommended Monitoring Frequency*.

Actions in the *Actions Not Requiring Supervisory Review* or *Actions Requiring Supervisory Review* sections correspond with either a higher or lower risk level than is associated with the *Recommended Monitoring Frequency*. Choosing an action in one of these sections will change the *Recommended Monitoring Frequency* and the due date of the associated inspection To-Do.

If the inspector selects an alternative action (those listed in the *Actions Not Requiring Supervisory Review* and *Actions Requiring Supervisory Review* categories), the inspector must also:

a. choose the most appropriate reason from the *Reason for Alternative Recommendation* drop-down menu; and
b. document the reasons to support the enforcement action decision in the *Licensing Specialist Comments* field.

Also see the *CLASS Enforcement Recommendations* Tip Sheet on the CCR SharePoint site for additional information.

4512.11 When to Allow CLASS to System Close the Recommendation

May 2020

If the inspector agrees with the recommended monitoring frequency on the *Enforcement Recommendation Detail* page in CLASS but does not find it appropriate to select an enforcement action in the *Recommended Actions Based on Risk* section, then the inspector should take no action and allow the enforcement action recommendation to "system close."

Within five days of receiving the recommended action, the inspector documents in a CLASS Chronology (type Recommendation) why the inspector did not take the recommended enforcement action. The documentation includes:

- why the inspector agrees with the recommended monitoring frequency; and
- what action(s) will be taken even though they were not noted on the *Enforcement Recommendation Detail* page.

Also see the *CLASS Enforcement Recommendations* Tip Sheet located on the CCR SharePoint site for additional information.

4512.2 Actions Requiring Supervisory Approval

May 2020

If the inspector selects any recommended action from the *Actions Requiring Supervisory Review* section of the *Enforcement Recommendation Detail* page in CLASS, the following actions are taken within five days of the selection:

- the inspector staffs the inspector's assessment of risk and the selected recommendations with the supervisor; and
- the supervisor reviews the *Enforcement Recommendation Details* page to:
    - ensure that the selections made on the *Enforcement Recommendation Details* page accurately reflect the decisions made during the consultation;
    - remove or add check box selections (or both), if necessary, to only include recommended actions that will be implemented; and
    - describe what actions the inspector originally selected, what (if any) changes were made to recommendations selected, and why in the *Supervisor Comments* field.

After the supervisor enters the decision in CLASS, the inspector has an additional five days to review the *Enforcement Recommendation Details* page and initiate the approved actions.

4520 Handling Immediate Danger to Children

Revision 23-4; Effective Nov. 30, 2023

Procedure

During an inspection or investigation, staff may discover conditions in a regulated or unregulated operation that pose a threat of immediate danger to children because of violations of the minimum standards, administrative rules or statutes.

If this occurs, the inspector or investigator consults with the supervisor, program administrator and regional director to determine whether it is necessary to take one or more of the following actions:

a. Request assistance from the Department of Family and Protective Services.
b. Request assistance from fire, health or law enforcement officials.
c. Remain at the operation until parents or managing conservators arrive or the dangerous situation is corrected.
d. Request that the permit holder or person in charge notify parents or managing conservators of the situation. If that person fails to do so, notify the parents or managing conservators.
e. Submit a referral to Child Care Enforcement.
f. Remove the child or children from a residential operation if there is a substantial risk of harm and if the removal is approved by a CCR director.

See:

Appendix 7000-1: Factors to Consider for Enforcement Actions
7637 Emergency Suspension and Closure
7740 Injunctive Relief

4521 Immediate Danger in a State-Operated Facility

Revision 23-3; Effective Sept. 22, 2023

If conditions are found that pose an immediate threat or danger to children in care in a state-operated operation because of violations of minimum standards, administrative rules or statutes, the appropriate CCR director notifies the associate commissioner of CCR, who then notifies the commissioner.

The commissioner may notify the governor at his or her discretion.

4600, Evaluating Compliance with Liability Insurance Requirements

July 2021

Licensed, registered and listed operations are required to maintain liability insurance as specified in minimum standards and Texas Administrative Code Chapter 745. Annually, these operations must verify their liability insurance by the following time frames:

- Licensed operations: by the anniversary date of the initial license; and
- Registered and listed operations: by the anniversary date of the full permit.

Certified (state-operated) operations, small employer-based child care programs, shelter care programs and relative-only listed family homes are not required to maintain liability insurance.

Texas Human Resources Code Sections 42.049; 42.0495

26 TAC Sections 745.249; 745.251; 745.253

4610 When to Evaluate for Compliance with Liability Insurance Requirements

July 2021

CCR staff annually evaluate compliance with liability insurance requirements for each licensed, registered or listed operation. The method and timing of the evaluation is determined by the operation type.

4611 When to Evaluate Liability Insurance Requirements for Licensed Operations

July 2021

Procedure

The CCR inspector evaluates whether a licensed operation is in compliance with the liability insurance requirements during the first routine monitoring inspection that is conducted after the anniversary date of the operation's initial license.

See 4620 How to Evaluate for Compliance with Annual Verification of Liability Insurance Requirements

26 TAC Sections 744.203; 744.205; 744.207; 746.203; 746.205; 746.207; 748.158; 748.159; 748.160; 749.155; 749.157; and 749.159

4612 When to Evaluate Liability Insurance Requirements for Registered Child Care Homes

July 2021

Procedure

The CCR inspector evaluates whether a registered child care home is in compliance with the liability insurance requirements on an annual basis. The method and timing depend on whether a routine monitoring inspection will occur before the next anniversary date of the home's permit. When a routine monitoring inspection will occur before the next anniversary date of the home's permit, the CCR inspector evaluates the operation for compliance during the routine monitoring inspection.

When a routine monitoring inspection will not occur before the next anniversary date of the home's permit, the CCR inspector completes the evaluation no later than 30 days after the verification of liability insurance was due. The CCR inspector may create in CLASS a manual To-Do reminder for completing this evaluation.

See 4620 How to Evaluate for Compliance with Annual Verification of Liability Insurance Requirements

26 TAC Sections 747.209; 747.211; 747.213

4613 When to Evaluate Liability Insurance Requirements for Listed Family Homes

July 2021

Procedure

Within 30 days after the anniversary date of the permit for the listed family home, CCR staff determine whether the home is in compliance with the liability insurance requirements.

Listed family homes that care for related children only are not required to maintain liability insurance.

See: 4620 How to Evaluate for Compliance with Annual Verification of Liability Insurance Requirements

26 TAC Sections 742.403; 742.405; 742.407

4620 How to Evaluate for Compliance with Liability Insurance Requirements

Revision 23-3; Effective Sept. 22, 2023

CCR staff review CLASS, digital records on the CCR Digital Storage SharePoint site, CLASS Document Library, and the operation's hard copy record to evaluate whether the operation is in compliance. If the operation is not in compliance, CCR staff take steps to ensure the operation comes into compliance.

Procedure

CCR staff determine if the operation did one of the following by the anniversary date of the operation's initial permit (licensed operations) or full permit (registered, certified or listed operations):

- updated liability insurance information through the operation's online provider account (this submission will update the *Liability Insurance History* page in CLASS for the operation);
- submitted the information on a completed Form 2962, Verification of Liability Insurance; or
- submitted the information required by Form 2962 in a manner other than completing Form 2962.

If a provider submits Form 2962 or submits the information required by Form 2962 in another manner, staff document the information submitted on the *Liability Insurance History* page in CLASS.

If the Operation Has Liability Insurance

If the operation has liability insurance, CCR staff verify that the operation provided written proof of insurance coverage from the insurance company. CCR staff upload the proof of insurance to CLASS Document Library, according to 1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files.

If an Operation Does Not Have Liability Insurance

If staff are evaluating liability insurance requirements during an inspection or investigation and the operation does not have liability insurance, CCR staff evaluate whether the operation notified parents as required. If the operation is not in compliance, CCR staff take steps to ensure the operation comes into compliance.

4700, Reviewing Operation Policies

November 2009

Licensing reviews certain policies of regulated operations to determine the operation's compliance with law, administrative rules, and minimum standard rules.

Licensing determines whether policies comply with minimum standard rules, but Licensing does not approve policies.

40 TAC §745.243

Procedure

When reviewing an operation's policies, Licensing staff take the following steps:

- Determine whether the policy is required by, or directly relates to, compliance with law, administrative rules, and minimum standard rules.
- Decline any request to review a policy that is outside of Licensing's jurisdiction.
- For example:
  - Licensing staff may not endorse an operation's personnel policy on sexual harassment; and
  - Licensing staff do not review CPS policies related to family based services.
- Communicate clearly to the operation that Licensing cannot endorse therapeutic techniques or programming. Licensing assesses therapeutic techniques or programming only to the extent that they directly relate to compliance with minimum standard rules.

When an Operation Requests Licensing to Review Its Policy

If an operation requests a policy review, Licensing staff use the following language to inform the operation in writing about whether its policy violates law or minimum standard rules:

Licensing received a request to review your operation's policy or policies on (insert date). Licensing reviewed the policy/policies for compliance with law and minimum standard rules. Licensing cannot otherwise review a policy or assess a clinical or therapeutic technique used by your operation. If Licensing determines that an operation's policies comply with minimum standard rules, this does not imply endorsement of any clinical or therapeutic technique noted within the policies.

The policy or policies you submitted (do or do not) comply with Licensing rules and law.

If the policy or policies do not comply with Licensing rules, Licensing staff include the rationale. For example:

The discipline policy you submitted includes use of corporal punishment. Corporal punishment is prohibited by 26 Texas Administrative Code §748.2303.

4800, Risk Analysis

Revision 23-2; Effective June 26, 2023

A risk analysis is an objective report written by the Performance Management Unit (PMU) that contains:

a. an analysis of an operation's compliance with CCR statutes, administrative rules and minimum standards;
b. an identification of indicators associated with the potential of a higher risk of harm to the children in care at an operation; and
c. recommendations regarding monitoring or enforcement actions with the operation, based on the risk identified.

Human Resources Code (HRC) Section 42.0211

A risk analysis supplements the assessment of risk at an operation, but it does not replace CCR's responsibility to assess risk before and after each inspection, investigation, assessment or significant change that occurs at an operation.

Additional information on the Risk Analysis process can be found on the CCR PMU SharePoint site.

4810 Risk Analysis Review Period

Revision 23-2; Effective June 26, 2023

Procedure

PMU identifies an operation for a risk analysis based on the operation's two-year compliance history; however, the assigned PMU risk analyst completes the risk analysis by assessing the operation's compliance history over the last five years. The five-year time frame is determined as follows:

If …	then …
the operation has had a permit for five or more years when the PMU initiates the risk analysis, and the PMU has not previously completed a risk analysis on the operation …	the review period begins five years prior to the date when the PMU initiates the risk analysis.
the operation has had a permit for less than five years when the PMU initiates the risk analysis …	the review period begins on the date when CCR issued the initial permit.
the PMU previously completed a risk analysis on the operation within the last five years, and PMU is no longer tracking the operation through the risk review process …	the PMU completes a new risk analysis by analyzing only the operation's compliance history since the most recent risk analysis was completed.

4811 Identifying an Operation for a Risk Analysis

Revision 23-2; Effective June 26, 2023

PMU identifies operations for a risk analysis monthly, based on rates of non-compliance in high-risk areas over the preceding two years as compared to other operations:

- of similar type and size;
- located in the same region; and
- which have been in operation for a similar length of time.

High-risk areas include:

- deficiencies by weight of the standard;
- reason to believe (RTB) findings;
- RTB findings resulting from a child fatality;
- enforcement actions previously imposed;
- serious injuries; and
- day care director or residential care licensed administrator vacancies reported.

Operations not operating, currently on probation, placed on heightened monitoring, or pending adverse action are exempt from being the subject of a risk analysis.

Procedure

PMU assigns the risk analysis by the 15th day of the month that an operation is identified for a risk analysis. The risk analysis is completed by the 15th day of the following month. For example, a risk analysis assigned between Jan. 1-15 is due to be completed by Feb. 15.

When an operation is identified for a risk analysis, PMU sends an email notification to the administrative assistant (if the operation is a listed family home), inspector, supervisor, program administrator and regional director assigned to the operation. This notification contains:

- information about the operation; and
- the assigned PMU risk analyst.

If regional CCR staff receive a risk analysis notification for an operation that is actively being considered for probation or adverse action, then regional CCR staff notify the assigned risk analyst via email within two days of being notified of the risk analysis assignment.

4812 CCR Staff Responsibilities after an Operation is Identified for a Risk Analysis

Revision 23-2; Effective June 26, 2023

Procedure

CCR staff complete the following tasks after the PMU identifies an operation for a risk analysis:

Task	Who is Responsible	When Task is Completed
Review the operation's compliance history and all documentation in the operation's CLASS record within the designated review period (includes reviewing abuse and neglect investigations completed by DFPS). See: 4811 Risk Analysis Review Period	PMU Risk Analyst	Upon being assigned a risk analysis to complete.
Review any enforcement actions imposed on the operation within the designated review period. See: 4811 Risk Analysis Review Period	PMU Risk Analyst	Upon being assigned a risk analysis to complete.
Analyze the information reviewed and recommend a monitoring or enforcement action in accordance with relevant administrative rules and CCR policy.	PMU Risk Analyst	After conducting a review of the operation's history and record.
Draft a written report which summarizes the information reviewed and analyzed.	PMU Risk Analyst	By the 15th day of the following month.
Document a summary of the risk analysis on the operation's CLASS Chronology page.	PMU Risk Analyst	By the 15th day of the following month.
Upload a copy of the written report to the operation's record in CLASS.	PMU Risk Analyst	By the 15th day of the following month.
Send the completed written report to the following regional CCR staff assigned to the operation, via email: • administrative assistant (listed family homes only) • inspector • supervisor • program administrator • regional director • director of regional operations • deputy associate commissioner for regional operations • deputy associate commissioner for quality and compliance	PMU Risk Analyst	By the 15th day of the following month.
Review the written report.	Regional CCR staff	Upon receiving the written report.
Determine whether to implement all, some or none of the recommendations.	Regional CCR staff	Upon receiving the written report.

4820 Risk Review Overview

Revision 23-2; Effective June 26, 2023

A risk review is an objective report written by the PMU that contains:

- a high-level overview of:
  - the most recent risk analysis completed on the operation; or
  - the most recent probation imposed on the operation;
- a summary of the operation's compliance history; and
- an assessment of this information to evaluate the impact of an action taken against an operation.

A PMU risk analyst completes a risk review for an open operation:

- with a completed risk analysis on file;
- that is placed on probation; or
- that the director of PMU determines requires a review.

Procedure

A risk analyst completes a risk review every six months after the completion date of the risk analysis, the probation actual begin date, or the date determined by the director of PMU. A risk review is completed every six months until:

- three risk reviews have been completed (even if a probation period has ended); or
- the operation is closed in CLASS.

After each risk review is complete, the risk analyst sends a written copy of the results to the following regional CCR staff assigned to the operation, via email:

- administrative assistant (listed family homes only);
- inspector;
- supervisor;
- program administrator;
- regional director;
- director of regional operations;
- deputy associate commissioner for regional operations; and
- deputy associate commissioner for quality and compliance.

The PMU risk analyst also uploads a copy of the risk review to the operation's record in CLASS.

5000, Administrative Actions

5100, Waivers and Variances

Revision 24-1; Effective Feb. 20, 2024

Waivers and variances are tools to help child care operations comply with minimum standards within a specified period, without compromising the safety of children served by the operation.

Human Resources Code Sections 42.042(e-5), 42.042(j) and 42.048(c)

Evaluating Risk

A waiver or variance is not an entitlement. CCR evaluates the risk to children before granting a waiver or variance. CCR may not grant a waiver or variance if child safety would be negatively impacted. When granting a waiver or variance, staff place conditions on the waiver or variance to ensure that children are not at risk.

Determining the Appropriate Action

A **waiver** may be appropriate if the economic impact of compliance is great enough to make compliance impractical.

A **variance** may be appropriate if there is good and just cause for the operation to meet the purpose of the standard in a different way.

CCR may only grant a waiver or variance for a specified period. A waiver or variance expires on the date specified by the supervisor, which the supervisor lists in CLASS.

26 TAC Sections 745.8301, 745.8311 and 745.8313

5110 Receiving a Waiver or Variance Request

Revision 24-1; Effective Feb. 20, 2024

CCR staff may receive a waiver or variance request from the operation in CLASS, by mail or email.

Waiver or Variance Request Received in CLASS

The inspector assigned to the operation will receive a CLASS To-Do to process the waiver or variance request if the operation submits the request through the operation's CCR Online Account.

Waiver or Variance Request Received by Mail or Email

The inspector may receive either Form 2937 Child Care Regulation Waiver/Variance Request, or a letter with all the same information from the operation by mail or email. The inspector uploads the request to CLASS Document Library and enters the request in CLASS within one day after receiving the request.

For All Waiver or Variance Requests

The inspector:

- uploads all documentation to CLASS Document Library; and
- verifies the waiver or variance request is only for:
  - one operation;
  - one minimum standard number or subsection; and
  - one foster home, if a child-placing agency is requesting a waiver or variance for a minimum standard relating to foster care.

If the request is for more than one operation, one minimum standard or subsection, or one foster home, the inspector contacts the operation to discuss if the operation should submit a separate waiver or variance request.

References:

5141.1 Entering the Request in CLASS

26 TAC Section 745.8305

5120 Decision Guidelines for Recommending to Grant or Deny a Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

CCR staff determine if the requested waiver or variance is appropriate and consider its potential impact on child safety. The CCR inspector recommends denying a waiver or variance that could negatively impact the safety of the children in the care of the operation.

CCR presumes that a waiver or variance would negatively impact child safety and would not be appropriate if:

- the operation requesting the waiver or variance is currently on an enforcement action or heightened monitoring; and
- the operation is requesting to waive or vary a minimum standard that is a basis for the enforcement action or heightened monitoring.

Procedure

When deciding to recommend granting or denying a request, the inspector considers if:

- The operation has demonstrated the ability to maintain compliance with minimum standards, administrative rules, and statutes for the past five years.
- The operation has any current or past enforcement actions.
- The operation is on heightened monitoring (RCCR only).
- Any economic factors or other constraints affect the operation's ability to comply.
- The operation can comply with the minimum standards without a waiver or variance.
- There are risk variables at the operation, such as the operation experiencing a staff shortage or location of the operation.
- The operation has other waivers or variances in effect.
- The operation's permit status has any relevance.
- The operation was previously granted a waiver or variance and if the operation complied with the conditions.
- To conduct an inspection before making the decision.
- Granting this request will negatively impact child safety.
- The length of time requested for the waiver or variance is reasonable or a shorter time is more appropriate.

Additional Considerations for Foster Homes

When determining whether to recommend granting a waiver or variance request for a foster home, the inspector considers the following factors:

- the compliance history of the foster home;
- whether the foster home may use the exception criteria in 26 TAC Section 749.2551(b), if the request is to increase the maximum number of foster children a foster home may care for ;
- any limitations in state or federal law, including that CCR:
  - may only issue a waiver if the home is a kinship foster home;
  - may not grant a request that would result in a foster home's total capacity exceeding eight foster children; and
  - may not grant a request that would result in a foster home's foster care capacity exceeding six foster children unless the operation:
    - is requesting a variance for 26 TAC Section 749.2551(b)(1); and
    - is not able to use the exception criteria in 26 TAC Section 749.2551(b)(1) to increase the foster home's foster care capacity.

References:

26 TAC Sections 745.8313 and 745.8315

Human Resources Code Section 42.0463(a)(2)

42 United States Code Section 672(c)(1)(B)

5121 Waiver or Variance Request for a Minimum Standard with Requirements in Federal or State Law

Revision 24-1; Effective Feb. 20, 2024

CCR cannot waive or vary a requirement in minimum standards that is in Chapter 42, Human Resources Code, or any other Texas statute or federal law.

Exception: Texas Human Resources Code Section 42.042(e-5) allows for a licensed child care center or a registered child care home to request a waiver on a standard relating to nutrition, physical activity or screen time if the economic impact of compliance is great enough to make compliance impractical.

References:

26 TAC Section 745.8307

Human Resources Code Sections 42.042(e-3) and 42.042(e-5)

5130 Conditions and Time Frames for the Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

The CCR inspector establishes conditions and time frames for all granted waivers and variances. The conditions include what CCR determines is necessary to protect the health and safety of children in care.

Each condition must be observable and measurable by CCR staff and the operation. CCR staff:

- do not re-state the minimum standards in the conditions, but describe specific circumstances that the operation must address; and
- evaluate the operation's compliance with the conditions during certain types of inspections at the operation.

When deciding on conditions for the waiver or variance, the inspector considers the same factors as outlined in 5120 Decision Guidelines for Recommending to Grant or Deny a Waiver or Variance.

References:

Evaluating the Conditions of a Waiver or Variance, 5160

26 TAC Sections 745.8311 and 745.8317

5131 Establishing Conditions for a Granted Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

Procedure

When establishing conditions, the inspector ensures that the conditions include details about:

- the specific person the request applies to;
- the name of the foster home if the request is for a foster home;
- the measures the operation must take to reduce risk and protect the children;
- steps the operation must take toward meeting the standard;
- any dates when CCR requires supporting documentation from the operation;
- documentation or other observable items that must be available at the operation; and
- other restrictions or requirements placed on the operation.

References:

5150 When an Operation Disagrees with Conditions or Expiration Date on the Waiver or Variance

26 TAC Section 745.8311

5132 Waiver and Variance Expiration Time Frame

Revision 24-1; Effective Feb. 20, 2024

When setting time frames for the waiver or variance, the inspector ensures:

- the dates are reasonable based on risk to children; and
- the expiration date is three years or less from the date the request is granted.

26 TAC Section 745.8317

5140 Time Frames for Processing a Waiver or Variance Request

Revision 24-1; Effective Feb. 20, 2024

Procedure

CCR staff take the actions per the time frames outlined in the table below:

Staff Person Responsible	Action(s)	Timeframe
CCR Inspector	• enters the waiver or variance request in CLASS under the *Waiver Variance* tab of the operation if the operation submitted Form 2937, Child Care Regulation Waiver/Variance Request; • uploads the request and supporting documentation to CLASS Document Library; • evaluates the request, including supporting documentation; • develops conditions and an expiration date for a waiver or variance if the inspector will recommend granting; and • makes a recommendation to the supervisor whether to grant or deny the request.	Within 15 days of receiving the request from the operation.
CCR Supervisor	Makes the final decision whether to grant or deny the waiver or variance	Within 15 days of receiving the recommendation from the CCR inspector.
CCR Staff	Notify the operation of the final decision	Within five days of the supervisor making the final decision.

References:

5141.4 Supervisor's Review of the Waiver or Variance Request

5142 Notifying the Operation of Waiver or Variance Decision

26 TAC Section 745.8307

5141 Documenting the Waiver or Variance Decision in CLASS

Revision 24-1; Effective Feb. 20, 2024

5141.1 Entering the Request in CLASS

Revision 24-1; Effective Feb. 20, 2024

Procedure

If the operation submits Form 2937, Child Care Regulation Waiver/Variance Request, or a request with the same information as collected on form 2937, the inspector enters the following information on the *Waiver Variance Detail* page in CLASS:

- if the request is a waiver or a variance;
- for CPS contractors only, the relationship of the children, if the request is for a foster home;
- the *Original Receive Date* as the date CCR received the request;
- comments in the *Licensing Representative Comments* box:
    - the comments should include the reason for the request and relevant specific details, such as the names and ages of children, the name of the person the request pertains to, if applicable, and the justification for the request;
- the applicable minimum standard number; and
- the date the request was completed.

The inspector uploads the paper request and supporting documentation to CLASS Document Library per 1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library.

5141.2 Recommending, Documenting, and Granting a Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

Procedure

To recommend that CCR grant a waiver or variance request on the *Waiver/Variance Detail* page in CLASS, the inspector:

- selects *Grant* from the *Recommendation* drop-down menu;
- enters the *Recommendation Date*;
- documents the rationale for granting the request in the *Documentation* narrative field in the *Licensing Representative Recommendation* section; and
- enters the *Effective Date, Expiration Date* and conditions in the *Waiver/Variance Specifics* section.

When entering conditions in CLASS, the inspector follows 5131 Establishing Conditions for a Granted Waiver or Variance.

5141.3 Recommending and Documenting Denial of a Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

Procedure

To recommend the denial of a waiver or variance request, the inspector takes the following actions in the *Licensing Representative Recommendation* section of the *Waiver/Variance Detail* page in CLASS:

1. selects *Denied* from the *Recommendation* drop-down menu;
2. enters the date of the decision in the *Recommendation Date* field; and
3. documents the rationale in the *Documentation* narrative field.

5141.4 Supervisor's Review of the Waiver or Variance Request

Revision 24-1; Effective Feb. 20, 2024

Procedure

The supervisor considers the same factors as the inspector when recommending granting the request outlined in 5120 Decision Guidelines for Recommending to Grant or Deny a Waiver or Variance.

The supervisor grants or denies the waiver or variance request within 15 days of receiving notice of the inspector’s recommendation.

The supervisor takes the following actions in the *Supervisor Decision* section of the *Waiver/Variance Details* page in CLASS:

a. enters the *Decision Date*;
b. documents the rationale for granting or denying the request in the *Documentation* narrative field;
c. selects *Granted* or *Denied* from the *Waiver/Variance* Status drop-down menu; and
d. selects a *Reason* only if denying the waiver or variance request.

5141.5 Denying a Duplicate Waiver or Variance Request

Revision 24-1; Effective Feb. 20, 2024

Procedure

If CCR determines that an operation submitted a duplicate of an existing waiver or variance, the inspector recommends denying the request and follows the policy and procedure in 5141.3 Recommending and Documenting Denial of a Waiver or Variance. The supervisor then selects "*Duplicate Request*" from the *Reason* drop-down menu in the *Supervisor Decision* section.

5142 Notifying the Operation of Waiver or Variance Decision

Revision 24-2; Effective May 22, 2024

Procedure

The inspector sends the operation notice of the decision within five days of the supervisor's decision.

CCR Grants the Waiver or Variance Request

If CCR grants the waiver or variance request, the inspector pastes the information from the CCR SharePoint Form 2937 Decision on the Waiver/Variance Granted Only to the HHSC letterhead within the *Waiver/Variance Detail* page in CLASS.

CCR Denies the Waiver or Variance Request

If CCR denies the waiver or variance request, the inspector generates CLASS Form 2937 Decision on Waiver/Variance Letter (page 2) from the *Waiver/Variance Detail* page in CLASS. Then the inspector enters the reason for the denial on the CLASS Form 2937 Decision on Waiver/Variance Letter and sends the letter to the operation.

In Both Cases

If the operation indicated on Form 2937, Child Care Regulation Waiver/Variance Request, to be notified by email, the inspector sends the appropriate notification to the operation's contact email address in CLASS.

If the operation indicated on Form 2937, Child Care Regulation Waiver/Variance Request, to be notified by certified mail, the inspector includes a certified mail number in the letter and mails the letter to the operation.

5143 Updating Administrative Review

Revision 24-1; Effective Feb. 12, 2024

Procedure

After finalizing and sending the decision letter, the inspector completes both fields of the *Notifications and Administrative Review* section by following the policy and procedures in 5600 Administrative Reviews.

Reference: 5150 When an Operation Disagrees with Conditions or the Expiration Date on the Waiver or Variance

5150 When an Operation Disagrees with Conditions or the Expiration Date on the Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

If the operation disagrees with the conditions or expiration date that CCR sets on the waiver or variance, the operation may:

- contact the CCR supervisor to discuss concerns; or
- request an administrative review of the decision.

The operation may request an administrative review without first contacting the supervisor. If the operation contacts the supervisor first, but a mutual agreement cannot be made, the operation may request an administrative review.

Reference: 26 TAC Section 745.8321

5151 Operation Contacts the Supervisor to Address Concerns with Conditions or Expiration Date on the Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

Procedure

An operation that wants to amend conditions or the expiration date of a granted waiver or variance may contact the supervisor by calling, emailing, or mailing a letter to request a meeting to discuss items of concern.

If the operation contacts the CCR supervisor to address concerns with the conditions or expiration date on the waiver or variance, the supervisor takes the following steps in CLASS:

- documents the discussion as a Chronology (type, *Waiver/Variance*); and
  - makes the changes on the *Waiver/Variance Detail* page if the supervisor approves the changes; or
  - leaves the conditions or expiration date as originally documented if the supervisor does not approve the changes.

The supervisor advises the operation of the right to request an administrative review if the operation continues to disagree with the supervisor's decision about the original conditions or expiration date on the granted waiver or variance.

Reference: 26 TAC Section 745.8321

5160 Evaluating the Conditions of a Waiver or Variance

Revision 24-1; Effective Feb. 20 2024

Evaluating Conditions of a Waiver or Variance During an Inspection

The inspector evaluates the operation's compliance with the conditions on the waiver or variance during the following types of inspections:

- initial;
- monitoring;
- follow-up, if the inspection is relevant to the waiver or variance; and
- investigation, if the investigation is relevant to the waiver or variance.

For operations on heightened monitoring (RCCR only), the heightened monitoring inspector evaluates the operation's compliance with the conditions on the waiver or variance during at least one inspection per month.

When evaluating conditions during an inspection, the inspector selects the check box titled *The following items regarding risk were evaluated* on the *Inspection Details* page in CLASS or CLASSMate. While at the operation, the inspector evaluates:

1. the conditions of the waiver or variance;
2. if conditions were met;
3. if circumstances at the operation have changed that may affect the status of the waiver or variance; and
4. if unintended risk to children is observed because of the waiver or variance.

If the operation is not meeting a condition, the inspector cites 26 TAC Section 745.8311(b) as deficient for the operation not meeting the condition.

Reference: 4152 Reviewing Restrictions, Conditions, Waivers, and Variances

Evaluating Conditions Outside of an Inspection

When evaluating conditions outside of an inspection, the inspector:

- documents the evaluation as a CLASS Chronology (type, *Waiver/Variance*); and
- includes a description of documentation that the operation submitted to CCR and if the operation has met the conditions.

Examples of when CCR may evaluate conditions outside of an inspection:

- Reviewing documentation that the operation submitted to CCR, including:
  - proof of enrollment in courses;
  - transcripts;
  - training certificates or logs;
  - proof of GED completion; and
  - medical visit documentation; and
- Evaluating conditions of a waiver or variance for a listed family home.

If the operation is not meeting a condition, staff cite 26 TAC Section 745.8311(b) by assessment for not meeting the condition.

Reference: 5180 Revoking a Waiver or Variance

5170 Renewing a Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

If the operation cannot come into compliance with the minimum standard by the expiration date, the operation may request to renew the waiver or variance. The operation submits a new waiver or variance request to CCR at least 35 days before the expiration date of the current waiver or variance.

If the operation does not request a new waiver or variance, the operation must comply with the minimum standard, even if a new request related to the standard is pending review by CCR.

Procedure

When deciding to recommend granting or denying a request to renew a waiver or variance, the inspector considers the following:

1. The operation's compliance with the conditions of the original waiver or variance.
2. The operation's overall compliance history since CCR granted the original waiver or variance request.
3. If there have been any changes to the operation since CCR granted the original waiver or variance request. If so, if the changes may affect child safety.

References:

5120 Decision Guidelines for Recommending to Grant or Deny a Waiver or Variance
5130 Conditions and Time Frames for the Waiver or Variance
5140 Time Frames for Processing a Waiver or Variance Request

26 TAC Section 745.8309

5180 Revoking a Waiver or Variance

Revision 24-1; Effective Feb. 202, 2024

The CCR supervisor may revoke a waiver or variance that CCR previously granted, based upon:

- the waiver or variance not addressing a risk to children that currently exists;
- circumstances at the operation supporting the decision to grant the waiver or variance changed;
- the operation not meeting conditions;
- the waiver or variance requiring an additional or alternative condition; or
- a combination of any of the criteria above.

Procedure

Protocol to Recommend Revoking a Waiver or Variance

The CCR inspector who determines that a waiver or variance should be revoked consults with the supervisor about a recommended course of action. The inspector documents the consultation as a CLASS Chronology using type, *Waiver/Variance*. **Note**: CLASS uses the term "rescind" instead of "revoke".

Notifying the Operation of the Revocation of the Waiver or Variance

If the supervisor agrees with the inspector's recommendation to revoke the waiver or variance, the supervisor:

- generates a letter on CLASS HHSC letterhead to explain CCR's revocation of the waiver or variance;
- includes in the letter the operation's right to request an administrative review within 15 days of receiving the letter;

- sends the letter by certified mail; and
- notifies the program administrator about the revocation of the waiver or variance.

References:

5150 When an Operation Disagrees with Conditions or Expiration Date on the Waiver or Variance
5190 Documenting Outcomes for Waiver or Variance

26 TAC Sections 745.8319 and 745.8321

5181 Amending Conditions of a Waiver or Variance

Revision 24-2; Effective May 22, 2024

The CCR supervisor may amend the conditions of a waiver or variance that CCR previously granted, based upon:

- the waiver or variance not addressing a risk to children that currently exists;
- circumstances at the operation that supported the decision to grant the waiver or variance changing;
- the operation not meeting conditions;
- the waiver or variance requiring an additional or alternative condition; or
- a combination of any of the criteria above.

Procedure

Protocol to Recommend Amending Conditions of a Waiver or Variance

The CCR inspector who decides the conditions for a waiver or variance should be amended consults with the supervisor about a recommended course of action. The inspector documents the consultation as a CLASS Chronology (type, *Waiver/Variance*).

Notifying the Operation of the Amendments to a Waiver or Variance

If the supervisor agrees with the inspector's recommendation to amend the waiver or variance, the supervisor:

- updates the conditions in CLASS; and
- generates and sends the updated letter by updating the conditions and pasting the information from the CCR SharePoint Form 2937 Decision on Waiver/Variance Granted Only on the HHSC letterhead in the *Waiver or Variance Detail* page in CLASS.

References:

When an Operation Disagrees with Conditions or Expiration Date on the Waiver or Variance, 5150
Documenting Outcomes for Waiver or Variance, 5190

26 TAC Sections 745.8319 and 745.8321

5190 Documenting Outcomes for Waiver or Variance

Revision 24-1; Effective Feb. 20, 2024

Procedure

The inspector verifies the status of any expiring waiver or variance. The inspector completes the *Result* and *Outcome Date* fields in the *Outcome* section on the *Waiver/Variance Detail* page in CLASS.

The inspector does not select an outcome when a waiver (W) or variance (V) is denied.

If	Then, select one of the following *Results*:
The current waiver or variance is no longer needed	• Met standard before expiration • No longer needed
The operation requests to renew the waiver or variance	New W/V request
CCR revokes the waiver or variance	Rescinded

If	Then, select one of the following *Results*:
The waiver or variance has expired	• W/V expired - standard met • W/V expired - standard not met
The operation closes	Operation closed

5200, Fees

February 2020

CCL must charge fees for permits and for conducting background checks unless an operation is exempt from such fees. All revenue collected from fees with the exception of the $1 per background check fee is deposited in the state's general revenue fund.

Human Resources Code §42.0521; 42.054; 42.056

5210 Types and Amounts of Fees

February 2020

Fees may be charged as follows:

a. Application fee
b. Initial license fee
c. Initial license renewal fee
d. Full license fee
e. Annual fee
f. Amendment fee (for an increase in capacity)
g. Background check fee

Human Resources Code §§42.054; 42.056(c); 42.153(c); 42.159(e); 42.203(c); 42.206(e)

26 TAC §745.501

Fee Amounts

The chart below lists the fees required for child care operations to obtain or maintain a permit, although some operations may be exempt from certain fees. See 5211 Exemption from Fees.

Type of Fee	Licensed Child Care Operations (except CPAs)	Child-Placing Agencies	Registered Child Care Homes	Listed Family Homes	Temporary Shelter/Small Employer Based
Application	$35	$35	$35	$20	$35
Initial License	$35	$50	N/A	N/A	N/A
Initial License Renewal	$35	$50	N/A	N/A	N/A
Full License	$35 + $1* capacity	$100	N/A	N/A	N/A
Annual	$35 + $1* capacity	$100	$35	$20	N/A
Background Check	$2/background check	$2/background check	$2/background check	$2/background check	$2/background check
Amendment (Capacity Increase)	$1* capacity increase	N/A	N/A	N/A	N/A

Also see 5212 Fees for Multiple Licenses.

Human Resources Code §§42.153(c); 42.159(e); 42.203(c); 42.206(e)

26 TAC §§745.505; 745.507; 745.509; 745.521

5211 Exemptions from Fees

July 2021

Certified Operations

Certified or state-run operations are exempt from all fees.

Certain Nonprofit Operations

A nonprofit residential child care operation regulated under Chapter 42 of the Human Resources Code must pay the application fees but is exempt from paying permit and background check fees if the operation:

- does not charge for the care that the operation provides; or
- provides residential care for children in the managing conservatorship of DFPS.

Also see 3322 Fee Exemptions for Certain Residential Operations

5211.1 Residential Child Care Operations that Provide Care to Children in the Managing Conservatorship of DFPS

Listed Family Homes that Provide Care to Related Children

A listed family home is exempt from all fees if all of the following conditions are met:

a. The caregiver provides care to children related to them.
b. The care is provided in the child's home.
c. HHSC has received a Texas Workforce Commission *Listed Home Fee Waiver Authorization* certificate exempting the provider from paying fees.
d. Care is not provided to related or unrelated children in the caregiver's home.

If the status of the listed home changes and is no longer exempt from paying fees, then the listed home's next annual fee is not due until the anniversary of the issuance date the following year.

See 3121.1 Documenting Fee Exemptions in CLASS

Texas Human Resources Code §42.054(g)

26 TAC §745.503

5211.1 Residential Child Care Operations that Provide Care to Children in the Managing Conservatorship of DFPS

October 2020

Procedure

CCR staff select "Yes" from the *Exempt from Operation Fees* drop-down box after the application is accepted for an operation planning to contract with DFPS to provide care for children in the managing conservatorship of DFPS.

If the operation has not obtained a contract with DFPS at the time of full permit issuance, the inspector changes the selection to "No" from the *Exempt from Operations Fee* drop-down box. The inspector generates the *Initial Fee Invoice and Full Permit Fee Invoice* to be paid by the operation prior to issuing the full permit.

An operation with a DFPS contract at the time of full permit issuance remains exempt from future fees as long as the operation maintains the contract. However, if the operation does not maintain its contract, the operation may be exempt from paying an annual fee if the operation provided care to children in DFPS conservatorship at any time during the 12-month period immediately preceding the anniversary date of the operation's license.

See 3322 Fee Exemptions for Certain Residential Operations

5212 Fees for Multiple Licenses

Revision 24-2; Effective May 22, 2024

The applicant or permit holder must pay a fee for each license if they want separate licenses for different types of operations at the same location.

References

Types of Child Care Permits, 2100

26 TAC Sections 745.511 and 745.513

5220 Sending Fee Invoices and Receiving Payments

February 2020

Licensing sends an invoice to an applicant or operation for each fee the applicant or operation must pay. Licensing staff ensures the invoice is sent to the applicant or operation and resends the invoice to the operation, if necessary.

See 5230 Fee Invoices.

5221 Emailing or Mailing Invoices to the Applicant or Operation

February 2020

Procedure

Operation or Applicant Has Contact Email Address

If the applicant or operation has a contact email address in CLASS, CLASS sends a system-generated email to the applicant or operation that includes the invoice.

Operation or Applicant Does Not Have Contact Email Address

If the applicant or operation does not have a contact email address in CLASS, Licensing staff must print a copy of the invoice on the *Invoice and Payment Summary* page in CLASS and mail it to the applicant or operation. Licensing staff includes a return envelope addressed to:

HHSC Accounts Receivable
P.O. Box 149055
Austin, TX 78714-9055

26 TAC §745.515

5221.1 Resending a Fee Invoice

February 2020

If an invoice is returned via email as undeliverable or the applicant or operation does not receive the invoice, Licensing staff resends the invoice to the corrected or new email or mailing address.

Procedure

Licensing staff first verifies that the invoice was sent to the email or mailing address that is listed in CLASS. If staff concludes that the address is no longer valid, staff contacts the applicant or operation to obtain the correct email address or mailing address and updates the information on the operation's *Main* page in CLASS. Staff then resends the invoice via email if the operation or applicant has a contact email address. Otherwise, staff resends the invoice via mail.

5222 How an Operation Submits Payment

February 2020

Licensing does not collect fee payments directly.

Procedure

An applicant or operation may submit a payment by:

- Submitting the payment through the operation's online Child Care Licensing Account; or
- Mailing the payment, along with the invoice, to HHSC Accounts Receivable.

The invoice sent to the applicant or operation includes the:

a. invoice number;
b. type of fee due;
c. fee amount;
d. instructions for submitting payments; and
e. consequences for not paying the fee.

See 5220 Sending Fee Invoices and Receiving Payments

5222.1 Receiving a Payment at a Licensing Office

February 2020

Procedure

If an applicant or operation submits a mailed payment directly to a Licensing office, Licensing staff who received the payment takes the following steps:

- Enters all payment details on the *Payments Sent to ARTS* tracking log located on the CCL SharePoint site; and
- Sends the payment and related invoice to HHSC Accounts Receivable.

If no invoice was included with the payment, staff prints the invoice from the operation's *Invoice & Payment Summary* page in CLASS and sends the payment and invoice to HHSC Accounts Receivable. If Licensing staff is unable to locate the invoice on the operation's *Invoice & Payment Summary* page, staff sends the payment to HHSC Accounts Receivable with the operation name, operation number, and as much other identifying information as possible.

Licensing staff informs the applicant or operation how to submit future payments.

5222.11 Reconciling a Payment Received by a Licensing Office

February 2020

Procedure

By the fifth day of each month, a designated Licensing staff in each district must reconcile the payments entered on the *Payments Sent to ARTS* tracking log by completing a CLASS review and updating the log.

5230 Fee Invoices

February 2020

A unique invoice number is assigned to each fee the operation must pay. The invoice and all payment events related to the invoice are displayed on the *Invoice & Payment Summary* page in CLASS. Depending on the fee type, an invoice may be automatically generated by CLASS or generated by Licensing staff as further described in this section.

5231 Application Fee Invoice

February 2020

The applicant must pay an application fee before Licensing staff can accept an application for a permit, unless the applicant is exempt from paying the application fee.

If the application is withdrawn or the permit is not issued, the application fee is not refunded. If the applicant reapplies within 30 days after withdrawing the applicant's original application, the applicant does not have to pay a new application fee.

Procedure

CLASS automatically generates an *Application Fee* Invoice when:

- An applicant submits an e-Application; or
- Licensing enters the application in CLASS and saves the operation's *Main* page for the first time.

Texas Human Resources Code §§42.054; 42.153(c); 42.159(e)

26 TAC §§745.401; 745.503; 745.505; 745.507; 745.509; 745.519; 745.521

See:

3220 Reviewing and Accepting the Application for a Permit
5210 Types and Amounts of Fees
5211 Exemption from Fees
5221 Emailing or Mailing Invoices to the Applicant or Operation
5270 Fee Refund Guidelines
Appendix 5000-2 Licensing Fees

5232 Initial Permit Fee Invoice

February 2020

Before Licensing issues an initial license to an applicant for a license, the applicant must pay the initial license fee, unless the applicant is exempt from paying permit fees.

If the operation withdraws the application after paying the initial license fee and an initial license is not issued, the initial license fee may be refunded.

Procedure

Licensing staff creates and sends the *Initial Permit Fee* Invoice to the applicant after:

- notifying the applicant of the results of the application inspection via CLASS Form 2936; and
- determining the applicant has met the criteria to receive an initial license.

Licensing staff create and send the *Initial Permit Fee* Invoice by taking the following steps on the *Invoice & Payment Summary* page in CLASS:

a. select *Add Fee* Invoice button;
b. select *Initial Permit Fee* Invoice from the *Add Fee Invoice* drop-down menu;
c. select *Yes* to confirm the action; and
d. send the invoice to the applicant.

Texas Human Resources Code §42.054

26 TAC §§745.503; 745.509; 745.519

See:

3412 Criteria for Issuing an Initial License
5210 Types and Amounts of Fees
5211 Exemption from Fees
5221 Emailing or Mailing Invoices to the Applicant or Operation
5270 Fee Refund Guidelines
Appendix 5000-2 Licensing Fees

5233 Initial Permit Renewal Fee Invoice

February 2020

The operation must pay an initial license renewal fee if Licensing staff determine that the initial license must be renewed, unless the operation is exempt from paying permit fees.

Procedure

Licensing staff create and send the *Initial Permit Renewal Fee Invoice* upon determining that the initial license must be renewed.

Licensing staff create and send the *Initial Permit Renewal Fee Invoice* by taking the following steps on the Invoice & Payment Summary page in CLASS:

a. select *Add Fee* Invoice button;
b. select *Initial Permit Fee* Invoice from the *Add Fee Invoice* drop-down menu;
c. select *Yes* to confirm the action; and
d. send the invoice to the operation.

26 TAC §§745.503; 745.509

See:

3520 Renewing an Initial License
5210 Types and Amounts of Fees
5211 Exemption from Fees
5221 Emailing or Mailing Invoices to the Applicant or Operation
5270 Fee Refund Guidelines
Appendix 5000-2 Licensing Fees

5234 Full Permit Fee Invoice for a Licensed Operation

Revision 22-5; Effective Nov. 4, 2022

Before CCR issues a full license, the inspector confirms whether the operation paid the fee for the full license, unless the operation is exempt from paying permit fees.

If the operation failed to pay the fee before the initial or renewed initial license expiration date, CCR staff denies issuance of the full license.

Texas Human Resources Code Section 42.054

26 TAC Sections 745.503, 745.509

Procedure

CCR staff create and send the Full Permit Fee Invoice after the supervisor has approved issuing the full license, as outlined in 3531.1 Criteria for Issuing A Full License when an Operation Has an Initial License.

To create and send the Full Permit Fee Invoice, CCR staff take the following steps on the *Invoice & Payment Summary* page in CLASS:

a. select *Add Fee Invoice* button;
b. select *Full Permit Fee Invoice* from the *Add Fee Invoice* drop-down menu;
c. select *Yes* to confirm the action; and
d. send the invoice to the operation.

See:

3322 Fee Exemptions for Certain Residential Operations
3531.1 Criteria for Issuing a Full License When an Operation Has an Initial License
5210 Types and Amounts of Fees
5211 Exemption from Fees
5221 Emailing or Mailing Invoices to the Applicant or Operation
5270 Fee Refund Guidelines
7600 Adverse Actions
Appendix 5000-2 Licensing Fees

5235 Annual Permit Fee Invoice

February 2020

An operation must pay an annual fee by the anniversary date of the full permit issuance, unless the operation is exempt from paying the annual fee.

Procedure

CLASS automatically generates the *Annual Permit Fee Invoice* 35 days prior to the anniversary of the issuance of the operation's full permit.

If CLASS generates the *Annual Permit Fee Invoice* for an operation that is exempt from paying the annual fee, Licensing staff:

a. indicate on the operation's *Main* page in CLASS that the operation is exempt from fees; and
b. cancel the *Annual Permit Fee Invoice* with the reason *Operation is Exempt* on the operation's *Invoice and Payment Summary* page in CLASS.

Texas Human Resources Code §42.054

26 TAC §§745.503; 745.505; 745.507; 745.509; 745.515

See:

5210 Types and Amounts of Fees
5211 Exemption from Fees
5220 Sending Fee Invoices and Receiving Payments
5270 Fee Refund Guidelines
Appendix 5000-2 Licensing Fees
Appendix 5000-3 Invoice Cancellation Reasons

5236 Capacity Increase Fee Invoice (Also Known as Amendment Fee)

Revision 23-2; Effective June 26, 2023

If a licensed operation with a full permit submits a request to increase the operation's capacity, the inspector follows the policies in 3811 When and How to Evaluate a Change in an Operation before approving or rejecting the request.

If the permit holder pays for the capacity increase but CCR does not approve the capacity increase, CCR refunds the payment.

Procedure

CLASS automatically generates the Capacity Fee Invoice when CCR staff approve the operation's request to increase capacity in CLASS.

If an operation changes or withdraws its request to increase capacity, CCR staff do not cancel the Capacity Fee Invoice. CCR staff follow 3823.2 Changing the Operation's Capacity in CLASS. CLASS automatically cancels the Capacity Fee Invoice.

The fee is **not** prorated. If a license is amended to reduce capacity, the permit holder does not receive a refund for the permit holder's last annual fee payment. The reduction is reflected in the next annual fee payment.

26 TAC Sections 745.509(10); 745.519

Also see:

3820 How to Evaluate and Process Amendments to a Permit
5210 Types and Amounts of Fees
5211 Exemption from Fees
5220 Sending Fee Invoices and Receiving Payments
5270 Fee Refund Guidelines
Appendix 5000-2 Licensing Fees

5237 Background Check Fee Invoice

February 2020

An applicant or permit holder incurs a background check fee every time a background check is submitted for an individual, unless the operation is exempt from paying background check fees.

Procedure

CLASS automatically generates the *Background Check Fee Invoice* on a quarterly basis.

26 TAC §§745.503; 745.505; 745.507; 745.509; 745.521

See:

5210 Types and Amounts of Fees
5211 Exemption from Fees
5220 Sending Fee Invoices and Receiving Payments
5270 Fee Refund Guidelines
Appendix 5000-2 Licensing Fees

5240 Verification of Fee Payments

February 2020

Licensing staff must verify that an operation has fully paid all required fee invoices throughout the application, monitoring and permit renewal processes.

26 TAC §§745.477; 745.505; 745.507; 745.509; 745.521

5241 Invoice Status and Actions Taken

February 2020

Procedure

Each invoice has an *Invoice Status*, which changes when additional invoice events occur.

The chart below lists each possible *Invoice Status* that could be displayed on the *Invoice & Payment Summary* page in CLASS and any subsequent action that occurs.

Invoice Status	Description	Action
Not Paid	The status when an invoice is first created. Displays until a payment is made or the invoice is canceled.	• Licensing may not accept an application, issue or amend a permit, or renew a permit, as applicable; or • Licensing staff takes further actions to verify whether the payment was made. as outlined in 5243 Additional Steps to Verify Fee Payments.
Paid in Full	The status when the operation submits a payment for the full amount of the invoice.	No further action.
Partially Paid	The status when an operation submits a payment that is less than the full amount of the invoice.	If the operation has a contact email address, CLASS generates and sends an invoice with an updated balance. If the operation does not have a contact email address, Licensing staff prints the updated invoice and mails it to the operation.
Overpaid	The status when an operation submits a payment that is greater than the full amount of the invoice.	Licensing staff initiate a refund, as outlined in 5270 Fee Refund Guidelines.
Cancelled	The status when Licensing staff cancels an invoice.	No further action.

See:

5243 Additional Steps to Verify Fee Payments
5260 Cancelling Invoices

5242 How to Verify the Fee Invoice Status

February 2020

Procedure

Licensing staff determines the status of an invoice by locating the particular invoice on the *Invoice & Payment Summary* page in CLASS. Staff then identifies whether the invoice has been paid by assessing the information in the *Invoice Status* column.

See:

5241 Invoice Status and Actions Taken

5243 Additional Steps to Verify Fee Payments

February 2020

Procedure

Licensing staff takes additional steps to verify a payment when:

1. the *Invoice Status* is *Not Paid* or *Partially Paid*; and

2. the applicant or operation presents evidence, including the date and amount of the payment, that the operation submitted a payment.

5243.1 Linking an Unlinked Payment to an Invoice

October 2020

The first step CCR staff takes to verify a payment is to review the *Unlinked Payments* section on the operation's *Invoice & Payment Summary* page in CLASS. Payments listed in the *Unlinked Payments* section have been linked to the operation, but are not associated with an invoice.

Procedure

CCR staff may contact the operation to verify which invoice the unlinked payment should be applied to. CCR staff links the payment to the invoice by taking the following actions in the *Unlinked Payments* section on the operation's *Invoice & Payment Summary* page in CLASS:

1. finds the row with the *Payment Received* event for the payment to be linked;
2. selects the 'link' icon in the *Action* column;
3. selects one or more invoices to apply the payment; and
4. enters the amount to be applied to each invoice (the total amount applied must equal the payment amount).

5243.2 Linking a Payment to Multiple Invoices

October 2020

CCR staff may link a payment in the *Unlinked Payments* section in CLASS to multiple invoices. CCR staff follow the process detailed in 5243.1 Linking an Unlinked Payment to an Invoice. The total amount applied between the invoices must equal the total amount of the payment.

5243.3 Linking a Payment to an Operation

October 2020

If the operation does not have any unlinked payments on the operation's *Invoice & Payment Summary* page in CLASS that match the date and amount of the operation's payment, CCR staff conducts a search for the payment through the *Payment Verification* page in CLASS (located in *CLASS Tools*). Payments on the *Payment Verification* page in CLASS have not been associated with an operation or an invoice.

Procedure

CCR staff accesses the *Payment Verification* page in CLASS and conducts a search for the payment. If CCR staff identifies the payment through the search, staff:

a. searches for the operation;
b. attaches the payment to the operation by selecting the check box next to the payment and saving the page;
c. confirms that the payment has been moved to the *Unlinked Payments* section of the selected operation by using the *Invoice & Payment Summary* link at the top of the page; and
d. links the payment to the correct invoice by following the procedures outlined in 5243.1 Linking an Unlinked Payment to an Invoice.

5243.4 Linking a Payment to a Different Invoice

October 2020

The *Update/Query Payments* page in CLASS allows staff to take actions on payments that have already been linked to an operation or an invoice. CCR may unlink a payment from an invoice by linking it to a new operation or by linking it to the same operation. Either option results in the payment being displayed in the *Unlinked Payments* table of the selected operation.

Procedure

If CCR staff determines that the operation's payment was linked to the incorrect operation or an incorrect invoice, staff takes the following steps on the *Update/Query Payment* page (located under *CLASS Tools*) in CLASS:

a. searches for the payment in CLASS;
b. searches for the operation;
c. selects the check box next to the payment and saves the page;
d. confirms that the payment has been moved to the *Unlinked Payments* section of the selected operation by using the *Invoice & Payment Summary* link at the top of the page; and
e. links the payment to the correct invoice by following the procedures outlined in 5243.1 Linking an Unlinked Payment to an Invoice.

5250 Handling Changes to Payments

October 2020

A correction to a payment occurs when the Accounts Receivable Tracking System (ARTS) makes a change to how ARTS originally processed a manual payment. A correction can occur for the following reasons:

a. payment returned as non-sufficient funds (NSF);
b. the whole or a portion of the payment is refunded; or
c. other errors in the original data entry.

5251 Payment Returned as Non-Sufficient Funds (NSF)

Revision 22-4; Effective Sept. 15, 2022

Procedure

A *Non-Sufficient Funds* (NSF) event occurs when a fee payment is declined due to the account not having enough funds to cover the payment. When an NSF event occurs, CLASS updates the *Invoice Status* and adds a *Non-Sufficient Funds* event for the applicable invoice. Licensing staff follow up with the operation when staff:

a. receives notice that an NSF for an annual fee payment has posted in CLASS; or
b. observes during an initial or monitoring inspection or while reviewing the operation's permit renewal application that an NSF for any other fee payment has posted in CLASS.

If the operation has a contact email address in CLASS, CLASS automatically resends the invoice with the updated balance after an NSF is posted in CLASS. Licensing staff follow up with the operation by phone, email, or inspection to ensure payment and take any required action.

Unlinked Non-Sufficient Funds

If Licensing staff observe a payment with an associated NSF payment event in the *Unlinked Payments* section of the *Invoice and Payment Summary* page or on the *Payment Verification* page in CLASS, staff refer to the *Linking Payment Changes to an Invoice* document located on the CCL SharePoint site for instructions on linking payments and NSF events to an invoice.

Also see:

3924.2 Verifying Fee and Administrative Penalty Payments
4141 Preparing for Application, Initial, and Monitoring Inspections
4300 Conducting a Follow-Up with an Operation
Appendix 5000-2 Licensing Fees

5252 Payment Refunded

February 2020

Licensing staff initiate a refund when:

- an applicant or operation overpays a fee invoice (*Invoice Status* is *Overpaid*); or
- when the operation requests a refund and Licensing staff determine the operation is eligible for a refund.

26 TAC §745.519

Procedure

If the correct invoice number is submitted with the refund request, CLASS adds a *Refund Issued* event for the applicable invoice on the *Invoice and Payment Summary* page after ARTS processes the refund.

Unlinked Refunds

If Licensing staff observe a payment with an associated refunded payment event in the *Unlinked Payments* section of the *Invoice and Payment Summary* page or on the *Payment Verification* page in CLASS, staff refer to the *Linking NSFs, Refunds, and Payment Reversals/Corrections to an Invoice* document located on the CCL SharePoint site for instructions on linking payments and refunds to an invoice.

See:

5270 Fee Refund Guidelines

5253 Payment Corrected

February 2020

Procedure

When the Accounts Receivable Tracking System (ARTS) processes a reversal and correction for a fee payment previously posted in CLASS, CLASS updates the *Invoice Status* and adds a *Reversal and Correction* event for the applicable invoice. A *Reversal and Correction* may occur when ARTS:

a. Moves a payment to a different invoice or operation;
b. Splits a payment originally linked to one invoice to multiple invoices; or
c. Makes corrections to other details associated with the payment.

Unlinked Reversals and Corrections

If Licensing staff observe a payment with an associated *Reversal or Correction* event in the *Unlinked Payments* section of the *Invoice and Payment Summary* page in CLASS, staff refer to the *Linking NSFs, Refunds, and Payment Reversals/Corrections to an Invoice* document located on the CCL SharePoint site for instructions on linking payments and associated reversals and corrections to an invoice.

5260 Cancelling Invoices

February 2020

Licensing staff may cancel certain fee invoices if the invoice was created in error, including when an invoice is created for a fee that the operation is exempt from paying.

Texas Human Resources Code §42.054(g)

26 TAC §745.503

See 5211 Exemptions from Fees

Procedure

Licensing staff locates the invoice to be cancelled on the Operation's *Invoice & Payment Summary* page in CLASS. Licensing staff then:

a. selects the *Cancel* icon in the *Action* column;
b. selects the reason for the cancellation; and
c. selects *Yes* to confirm the cancellation.

See Appendix 5000-3 Invoice Cancellation Reasons

5270 Fee Refund Guidelines

February 2020

No refund is made if a permit is revoked or relinquished.

Fees that have been paid may be refunded only under certain conditions. Those conditions are outlined in the following refund chart:

Refund Chart

Type of Fee	Conditions for Refund
Application fee when issuance was late	Fee is refunded after appeal
Application fee	Nonrefundable fee
Initial license fee	Refunded if the application is withdrawn or the initial license is not issued
Full license fee	Refunded if the initial license expires with no full license being issued
Background check fee	Nonrefundable
Amendment to license fee	Refunded if the amendment is not issued
All annual fees	Nonrefundable
All fees	Refunded if the fee is overpaid

Texas Human Resources Code §42.054

26 TAC §745.519

Procedure

Within 30 calendar days of determining the refund is due, Licensing staff completes the HHSC Refund Request Form to process a refund, as outlined in the *CCL Job Aid: How to Complete the ARTS Refund Request* document located on the CCL SharePoint site.

5300, Warning Letters

5310 When to Issue a Warning Letter

Revision 22-4; Effective Sept. 20, 2022

CCR staff send CLASS Form 2999 Warning Letter to notify the governing body of a child care operation that CCR has identified risks and may recommend or impose an enforcement action if the operation's compliance history does not improve.

The basis of the warning letter may be any of the following:

- a single inspection, assessment or investigation;
- an enforcement team conference (RC only); or
- the operation's overall compliance history.

The warning letter prompts the operation to:

- resolve patterns of deficiencies in a timely manner; and
- maintain compliance with the law, administrative rules, and minimum standard rules on an ongoing basis.

Two Warning Letters within 24 Months

If CCR staff issues two warning letters within 24 months, the CCR inspector consults with the CCR supervisor to determine whether to recommend an enforcement action or consider taking other actions if the operation's compliance history does not improve.

5311 Creating the Warning Letter

Revision 22-4; Effective Sept. 20, 2022

Procedure

The CCR inspector creates a new warning letter from the *Warning Letter List* page in CLASS.

Next, on the *Warning Letter Detail* page, the inspector selects the appropriate option from the *Reasons* dropdown in the *Warning Letter Details* section.

- If the reason is a single inspection, investigation, assessment, or enforcement team conference (ETC), the inspector selects the associated ID or number in the applicable field.
- If the reason is *Recent or Overall Compliance History*, the inspector documents the reason for sending the warning letter in the *Reason Explanation* field.

Once the final version of CLASS Form 2999 Warning Letter is saved the CCR inspector:

- sends the letter and copy of the CLASS report *Compliance/Sampling Report Detail* to the operation; and

- enters the planned date of the follow-up inspection in the *Follow Up Date* field on the *Warning Letter Detail* page.

If the CCR inspector needs to make a change to the *Follow Up Date* field after the *Warning Letter Detail* page has been saved the inspector consults with the supervisor.

See 5313 Following-Up to a Warning Letter

5312 Stopping a Warning Letter

Revision 22-4; Effective Sept. 20, 2022

Before the final version of CLASS Form 2999 Warning Letter is saved, the CCR inspector may stop the warning letter to make changes on the *Warning Letter Detail* page.

Procedure

To stop CLASS Form 2999 Warning Letter, the CCR inspector:

- selects the *Stop Warning Letter* checkbox; and
- enters the reason for stopping the warning letter in the *Reason* field.

After the warning letter is stopped, the *Warning Letter Detail* page becomes view only and changes cannot be made to the page.

5313 Following-Up to a Warning Letter

Revision 22-4; Effective Sept. 20, 2022

Within 60 days of the date CCR staff save the final version CLASS Form 2999 Warning Letter, the CCR inspector conducts a follow-up inspection to discuss with the director or administrator or person in charge:

- the reason CCR sent the warning letter;
- the operation's compliance history report;
- the steps the operation has taken to address CCR's concerns about the operation's compliance history since receiving the warning letter; and
- the steps the operation will take or continue to take in the future to address CCR's concerns about the operation's compliance history.

During the inspection, the CCR inspector informs the operation that CCR may recommend or impose an enforcement action if the operation's compliance history does not improve.

If needed, the CCR inspector also follows-up on deficiencies not yet corrected and for which the compliance date has passed.

See 4300 Conducting a Follow-Up with an Operation

5400, Controlling Person

Revision 23-3; Effective Sept. 22, 2023

CCR staff conduct all of the following activities related to controlling persons for operations other than temporary shelter child care operations and small employer-based child care operations:

a. Obtain information on all controlling persons from applicants.
b. Ensure that CCR has the most current information on all controlling persons for operations with permits.
c. Conduct searches in the CLASS and Adverse Action Record-Sharing (AARS) systems to search for controlling persons at operations that are applying for a permit.
d. Conduct searches in the CLASS system for controlling persons at operations that have a permit.
e. Enter information on controlling persons into the CLASS system.
f. Determine eligibility for persons in the role of a controlling person.
g. Notify the controlling person, applicant, or operation about the controlling person's eligibility for the role of controlling person.
h. Monitor operations for compliance with statutes, administrative rules, and minimum standards related to controlling person.
i. Work with Child Care Enforcement on due process activities associated with controlling persons who are designated because an operation that the person was a controlling person for had a permit revoked.

5410 Definitions of Terms Related to Controlling Persons

5411 Definition of Controlling Person

Revision 23-3; Effective Sept. 22, 2023

A controlling person is a person who, either alone or in connection with others, has the ability to directly or indirectly influence or direct the management, expenditures or policies of an operation.

Human Resources Code Section 42.002(18)

Certified (state-operated), licensed, listed and registered applicants and operations must identify persons serving in the role of a controlling person at the operation.

A controlling person of a child care operation includes any of the following:

a. An owner of the operation.
b. A member of the governing body of the operation, including, as applicable, an executive, an officer, a board member and a partner.
c. A sole proprietor.
d. The sole proprietor's spouse.
e. The primary caregiver at a child care home.
f. The spouse of the primary caregiver at a child care home.
g. A person who manages, administrates or directs the operation or its governing body, including but not limited to:
    - a child care center, program, operation or site director; or
    - a licensed administrator.
h. A person who, either alone or in connection with others, has the ability to influence or direct the management, expenditures or policies of the operation. For example, a person may have influence over the operation because of a personal, familial or other relationship with the governing body, manager or other controlling person of the operation.

26 TAC Section 745.901(a)

A person does not have to be present at the operation or hold an official title at the operation or governing body to be a controlling person.

26 TAC Section 745.901(b)

An employee, lender, secured creditor or landlord of the operation is not a controlling person, unless the person meets the requirements listed above.

26 TAC Section 745.901(c)

5411.1 Persons Who are Ineligible to be a Controlling Person

March 2013

A person may not serve as a controlling person at an operation regulated by Licensing if the person:

a. is ineligible to receive a permit (see 3222 How to Determine Whether the Applicant Is Eligible to Apply);
b. has been denied a permit for a substantive reason;
c. has had a permit revoked;
d. voluntarily closed an operation or relinquished a permit after Licensing notified the operation of the intent to revoke a permit;
e. voluntarily closed an operation or relinquished a permit after Licensing notified the operation of a decision to revoke a permit;
f. was a controlling person for an operation at the time the conduct occurred that resulted in the permit being revoked;
g. was a controlling person for an operation that closed or relinquished a permit after Licensing notified the operation of the intent to revoke a permit; and
h. who was a controlling person for an operation that closed or relinquished a permit after Licensing notified the operation of a decision to revoke a permit.

Human Resources Code §§42.062, 42.072(c-1), (g)

40 TAC §745.911

5412 Definition of a Match for Controlling Persons

September 2012

In regard to controlling persons, a match exists when a search in the CLASS or HHSC Adverse Action Record-Sharing (AARS) systems reveals that a person is:

a. a designated controlling person;
b. a sustained controlling person;
c. ineligible to receive a permit (see 3222 How to Determine Whether the Applicant is Eligible to Apply); or
d. listed in the AARS system.

5420 When and How Applicants and Operations Submit Information on Controlling Persons

5421 When Applicants and Operations Submit Information on Controlling Persons

March 2013

Licensed Operations and Registered Family Homes

The applicant, permit holder, or head of the governing body of a licensed operation or registered family home submits information on controlling persons:

a. when submitting an application;
b. within two days after a person becomes a controlling person at the operation; or
c. within two days after a person ceases to be a controlling person at the operation.

26 TAC §§744.305(a)(6), 746.305(a)(6), 747.303(a)(6), 748.103(13); 749.103(18), 750.103(11)

40 TAC §745.903

Listed Family Homes

The applicant or permit holder of a listed family home submits information on controlling persons:

- when submitting an application; or
- within two days after a person becomes a controlling person at the operation.

40 TAC §745.903

5422 How Applicants and Operations Submit Controlling Person Information

September 28, 2018

Applicants for a License

An applicant for a license completes Form 2760 Controlling Person-Child Care Regulation, to submit controlling person information to Licensing. Before submitting Form 2760, the applicant, designee, or head of the governing body signs the form to indicate that the information submitted is correct.

40 TAC §745.903

See:

3223 Evaluating an Application for Completeness

5433 Reviewing Form 2760 Controlling Person-Child Care Regulation, for Completeness

Applicants for a Registration or Listing

An applicant for a registration or listing submits controlling person information by:

- completing Form 2760 Controlling Person-Child Care Regulation, if a paper application is being submitted; or
- entering information for all controlling persons online through the applicant's online Child Care Licensing Account, if an e-application is being submitted.

If an applicant is submitting Form 2760, the applicant, designee, or head of the governing body must sign the form to indicate that the information submitted is correct.

40 TAC §745.903

See:

3223 Evaluating an Application for Completeness
3610 Listing Application
5433 Reviewing Form 2760 Controlling Person-Child Care Regulation for Completeness

Operations with a Permit – Submit New Controlling Person

An operation with a permit submits information on a new controlling person by:

- entering information for the new controlling person online through the operation's online Child Care Licensing Account, if the operation has an online account; or
- completing a new Form 2760 Controlling Person-Child Care Regulation, if the operation does not have an online account.

If the operation is submitting Form 2760, the permit holder, designee, or head of the governing body must sign the form to indicate that the information submitted is correct.

See 5433 Reviewing Form 2760 Controlling Person-Child Care Regulation for Completeness.

Exception: Temporary shelter child care operations and small employer-based child care operations are not required to submit controlling person information.

Operations with a Permit – Submit Updates on Current Controlling Persons

If a person ceases to be a controlling person at an operation or if the controlling person's contact information has changed, an operation submits this information by:

- entering the information online through the operation's online Child Care Licensing Account; or
- contacts the inspector to provide the updated information, if the operation does not have an online account.

Exception: Temporary shelter child care operations and small employer-based child care operations are not required to submit controlling person information.

5422.1 Controlling Persons at a Child-Placing Agency (CPA)

December 2012

A person may serve as a controlling person for:

- the CPA's main office;
- one or more of the CPA's branch offices; or
- any combination of the above.

The chart below outlines which CPA office can submit controlling person information, based upon which office the person serves as a controlling person:

If a Person Serves as a Controlling Person for a …	The Office that Can Submit Controlling Person Information is …
CPA main office	Main office only
CPA branch office	Branch office where the person serves as a controlling person OR Main office

5430 Processing and Reviewing the Information on Controlling Persons Submitted by an Operation

5431 Processing Information on a Controlling Person During the Application Process

August 2020

After accepting an application but before issuing a permit to an applicant, CCR staff determine whether each person whose name was submitted by the applicant is eligible to be a controlling person. CCR staff processes and document the decision, as follows:

a. Reviews the controlling person information that the applicant submitted (see 5433 Reviewing Form 2760 Controlling Person-Child Care Regulation for Completeness and 5434 Reviewing Controlling Person Information Submitted Online).
b. Conducts a *Controlling Person Search* and a *Global Person Search* in the CLASS system and searches the HHSC Adverse Action Record Sharing (AARS) system for records on the person.
c. Associates (links) a controlling person's existing record with the applicant's record in CLASS or adds a new record for the controlling person, under the applicant's record in CLASS (see 5442 Searching for and Adding a Controlling Person Record in CLASS).
d. Determines the person's eligibility to be a controlling person by resolving any matches found as a result of searches conducted in the CLASS or AARS system.
e. Documents the person's eligibility in CLASS.
f. Notifies the controlling person or applicant about the person's eligibility.

Exception: An applicant applying for a permit to operate a shelter child care operation or small employer-based child care operation is not required to submit information on controlling persons.

See:

1500 Conducting a Search in CLASS
5420 When and How Applicants and Operations Submit Information on Controlling Persons
5433 Reviewing Form 2760 Controlling Person-Child Care Regulation for Completeness
5434 Reviewing Controlling Person Information Submitted Online
5440 Conducting Searches for Controlling Persons in the CLASS and AARS Systems and Adding Controlling Persons to CLASS
5442 Searching for and Adding a Controlling Person Record in CLASS
5450 Determining and Documenting the Eligibility of a Controlling Person
5460 Notifying an Applicant, Permit Holder, or Controlling Person About a Person's Eligibility to Serve as a Controlling Person

26 TAC§745.913

5432 Processing Information on New Controlling Persons When Submitted by an Operation that Has a Permit

October 2013

Within 10 days after an operation with a permit (other than a temporary shelter child care operation or small employer-based child care operation) submits information on a new controlling person for the operation (see 5421 When Applicants and Operations Submit Information on Controlling Persons and 5422 How Applicants and Operations Submit Controlling Person Information), the inspector determines whether each person is eligible to be a controlling person and documents the decision, as follows:

a. Reviews the information that the operation submitted (see 5433 Reviewing Form 2760 Controlling Person-Child Care Regulation for Completeness and 5434 Reviewing Controlling Person Information Submitted Online).
b. Conducts a *Controlling Person Search* and a *Global Person Search* in the CLASS system for a record on the person.
c. Associates (links) the controlling person's existing record with the record for an operation in CLASS or adds a new record for the controlling person under the record for the operation's record in CLASS (5442 Searching for and Adding a Controlling Person Record in CLASS).
d. Determines the person's eligibility to be a controlling person by resolving any matches found as a result of the search in CLASS.
e. Documents the person's eligibility in CLASS.
f. Notifies the controlling person or operation about the person's eligibility.

See:

1500 Conducting a Search in CLASS
5420 When and How Applicants and Operations Submit Information on Controlling Persons
5440 Conducting Searches for Controlling Persons in the CLASS and AARS Systems and Adding Controlling Persons to CLASS
5450 Determining and Documenting the Eligibility of a Controlling Person
5460 Notifying an Applicant, Permit Holder, or Controlling Person About a Person's Eligibility to Serve as a Controlling Person

40 TAC§745.913

5432.1 Processing Updates to Controlling Person Information When an Operation Has a Permit

September 28, 2018

If an operation notifies Licensing staff of updates to information about a current controlling person for the operation (for example, updating a controlling person's mailing address), Licensing staff enter the updated information in CLASS within 15 days from when

the operation notified staff of the change.

If an operation submits updates to information about a current controlling person online through the operation's online Child Care Licensing Account, the information in CLASS is automatically updated by the system unless CLASS determines that there is a conflict or error with the data entered. If CLASS determines there is a conflict or error, Licensing staff process the update submitted online within 15 days of the day staff received the notice that the update has a conflict or error.

5432.11 Controlling Person Online Updates – Conflict Errors Automatically Entered by CLASS

September 28, 2018

When an operation or applicant submits updates to controlling person information online in the operation or applicant's online Child Care Licensing Account, CLASS determines whether there is a conflict error with the data submitted. CLASS automatically determines and selects the conflict error on the *Controlling Person – Update submitted by Operation – CONFLICT* page. The inspector must review the information on the page and select the *Invalidate Submission* button to clear the inspector's *To Do* and notify the operation of the error.

Below is a chart that explains the different conflict errors.

Conflict Error	Is automatically selected by CLASS when …
Controlling person not active	The operation is attempting to update a controlling person record that the inspector has already end dated in CLASS (that is, the controlling person's status in CLASS is *Withdrawn*, *Rejected,* or *Inactive*).
Duplicate SSN	The operation is attempting to update a controlling person record with an SSN that is already associated with a different CP record (that is, a different person) in CLASS.
SSN entered does not match the SSN in CLASS	The operation is attempting to update a controlling person record by entering a SSN for the person, but the inspector has already entered a SSN for the same controlling person record in CLASS and the SSNs do not match.
Last active CP cannot be end-dated	The operation is attempting to enter an end date for the only active controlling person in CLASS (that is, there are no other controlling persons in *Pending*, *Identified*, or Review status).

5433 Reviewing Form 2760 Controlling Person Child Care Regulation for Completeness

December 2012

When an applicant or operation submits Form 2760 Controlling Person-Child Care Regulation, the inspector reviews the form to ensure that it is complete and signed by the applicant, permit holder, designee, or head of the governing body.

If the inspector receives Form 2760 as part of an application, the inspector cannot accept the application if Form 2760 is not complete and signed by the applicant, designee, or head of the governing body. See 3223.1 If the Application is Incomplete or Contains Errors.

Procedure

The inspector reviews Form 2760 to ensure that the following identifying information is provided for each controlling person listed.

a. Name (first, middle, last), including any maiden names, married names, or aliases
b. Date of birth
c. Current address and phone number
d. Title, position, or relationship
e. Main office or branch office number, for persons associated with a child placing agency
f. Effective date as a controlling person
g. Driver license number or state-issued identification card number *(Optional)*
h. Social Security number (*Optional)*

If Form 2760 is Not Complete or Signed

Licensing staff contact the operation or the controlling person to obtain the information, if all required fields are not completed and Form 2760 is not signed.

See 3223.1 If the Application is Incomplete or Contains Errors.

If a Person's Social Security Number is Not Listed

If a controlling person's Social Security number is not listed, Licensing staff follow procedures in 5435 If the Controlling Person Submission Did Not Include a Social Security Number.

After Determining Form 2760 Is Complete

After determining that Form 2760 is complete, Licensing staff use the identifying information to search for each controlling person in the CLASS. If the form was submitted as part of an application, Licensing staff also conduct a search of the HHSC Adverse Action Record Sharing (AARS) system.

See:

5441 Searching for a Controlling Person in the AARS System and Documenting the Results
5442 Searching for and Adding a Controlling Person Record in CLASS

5434 Reviewing Controlling Person Information Submitted Online

September 28, 2018

Within three days of when an applicant or operation submits controlling person information online through the applicant or operation's online Child Care Licensing Account, the inspector:

a. reviews and invalidates the submission before conducting a search, if necessary (see 5434.1 Invalidating an Online Controlling Person Submission Before Conducting a Search of the CLASS);
b. reviews the submission for a Social Security number (see 5434.2 Reviewing the Submission for a Social Security Number);
c. conducts searches for an existing controlling person record in the CLASS (see 5434.3 Conducting Searches in CLASS for an Existing Controlling Person Record); and
d. after conducting the search, either:
    - associates an existing controlling person record or adds a new controlling person record (see 5434.3 Conducting Searches in CLASS for an Existing Controlling Person Record); or
    - invalidates the submission, if necessary (see 5434.4 Invalidation Reasons That Require a Search of the CLASS Before the Submission Can Be Invalidated).

After associating or adding a controlling person record, the inspector:

- determines whether the person is eligible to serve as a controlling person; and
- sends the appropriate notification.

See:

5440 Conducting Searches for Controlling Persons in the CLASS and AARS Systems and Adding Controlling Persons to CLASS
5450 Determining and Documenting the Eligibility of a Controlling Person

5434.1 Invalidating an Online Controlling Person Submission Before Conducting a Search of the CLASS

December 2012

Procedure

If the online controlling submission meets any of the criteria listed in the chart below, the inspector may invalidate the submission before conducting a search of the Child Care Licensing Automation Support System (CLASS). To invalidate the submission, the inspector selects the appropriate *Invalidate* reason on the CLASS *Controlling Person – New Submission by Operation* page.

Invalidate Reason	Is selected by the inspector when …
Invalid SSN	The SSN provided is obviously incorrect (for example, 111-11-1111).
Invalid Driver's License	The driver license number provided is obviously incorrect (for example, 00000).
Not a Valid Controlling Person	An operation is attempting to add a new controlling person who does not meet the definition of a controlling person as defined in 745.901 (for example, the person entered is a child).
Invalid Mailing Address	An operation submits an address for a controlling person that matches the address of the operation (this is not applicable to licensed, registered, or listed homes).
Entered in Error	An operation entered information for a controlling person in error and requests to withdraw the submission.
Facility Closed	This is reserved for state office use only.

5434.2 Reviewing the Submission for a Social Security Number

December 2012

Procedure

The inspector reviews the submission to determine whether the controlling person's Social Security number was submitted.

If the person's Social Security number was provided, Licensing staff conduct searches for an existing controlling person record as outlined below.

If the person's Social Security number was not provided, Licensing staff follow procedures in 5435 If the Controlling Person Submission Did Not Include a Social Security Number before conducting the searches outlined below.

5434.3 Conducting Searches in CLASS for an Existing Controlling Person Record

December 2012

Licensing staff use the identifying information to search for each controlling person to determine whether there is an existing controlling person record in the CLASS.

See 5442 Searching and Adding a Controlling Person Record in CLASS.

5434.4 Invalidation Reasons that Require a Search of the CLASS Before the Submission Can Be Invalidated

December 2012

Procedure

If the online controlling submission meets any of the criteria listed in the chart below, the inspector must conduct a search of the CLASS before selecting the appropriate *Invalidate* reason on the CLASS *Controlling Person – New Submission by Operation* page.

Invalidate Reason	Is selected by the inspector when …
Duplicate Controlling Person at this facility	An operation is attempting to add a new controlling person, but the person is already an active controlling person at the operation (that is, the person is already in *Pending*, *Identified*, or *Review* status).
Invalid SSN	An operation is attempting to add a new controlling person, and: a. The SSN that the provider submitted already exists for a different controlling person in CLASS; b. The controlling person information that the provider submitted matches a controlling person record in CLASS (that is, it is the same person), but the SSNs do not match ; or c. The SSN provided is obviously incorrect (for example, 111-11-1111).
Invalid Driver's License	a. An operation is attempting to add a new controlling person, and the driver license number that the provider submitted already exists for a different controlling person in CLASS; or b. The driver license number provided is obviously incorrect (for example, 00000).
Effective start date overlaps with earlier end date for Controlling Person	An operation is attempting to add a new controlling person who has previously been associated with the operation. The *Start Date* entered for the new association is earlier than the *End Date* for the previous association.
Not a valid Controlling Person	An operation is attempting to add a new controlling person who does not meet the definition of a controlling person as defined in 745.901 (for example, the person entered is a child).
Invalid Mailing Address	An operation submits an address for a controlling person that matches the address of the operation (this is not applicable to licensed, registered, or listed homes).
Entered in Error	An operation entered information for a controlling person in error and requests to withdraw the submission.
Facility Closed	This is reserved for state office use only.

5435 If the Controlling Person Submission Did Not Include a Social Security Number

December 2012

Procedure

If a controlling person's Social Security number was not included with the controlling person information submitted by the applicant or operation, Licensing staff:

- contact the applicant, operation, or controlling person to ask for the person's Social Security number; or
- obtain the person's Social Security number by reviewing Licensing records to determine if the operation has submitted a request for a background check on the person.

If the applicant, operation, or controlling person provides the Social Security number, Licensing staff enter the information in the CLASS.

If Licensing staff obtain the person's Social Security number by reviewing Licensing background check records, Licensing staff must be certain that the background check record where the Social Security number is listed is for the same person in the controlling person submission before adding the Social Security number to the controlling person record in CLASS.

If the controlling person refuses to provide his or her Social Security number, Licensing staff:

- select the *Refused to Disclose SSN* indicator in CLASS; and
- use other identifying information to conduct the search.

5440 Conducting Searches for Controlling Persons in the CLASS and AARS System and Adding Controlling Persons to CLASS

December 2012

Licensing staff search the HHSC Adverse Action Record Sharing (AARS) system only when controlling person information is submitted before a permit is issued. See 5441 Searching for a Controlling Person in the AARS System and Documenting the Results.

Licensing staff search the Child Care Licensing Automation Support System (CLASS) when controlling person information is submitted:

- before a permit is issued; and
- when the operation has a permit.

See 5442 Searching for and Adding a Controlling Person Record in CLASS.

Exception: Searches are not completed for temporary shelter child care operations or small employer-based child care operations.

After conducting the appropriate searches, Licensing staff resolve any matches and determine a controlling person's eligibility to serve as a controlling person. See 5450 Determining and Documenting the Eligibility of a Controlling Person.

5441 Searching for a Controlling Person in the AARS System and Documenting the Results

September 28, 2018

Licensing staff search the HHSC Adverse Action Record Sharing (AARS) system only when controlling person information is submitted before a permit is issued for an operation other than a temporary shelter child care operation or small employer-based child care operation.

A designated Licensing employee that has access to the AARS system conducts the search to determine whether an applicant or each of the persons submitted by the applicant is eligible to be a controlling person. The designated employee documents the results of the search in the CLASS. The AARS search is completed in addition to the search conducted to determine whether an applicant is qualified to apply for a permit (see 3222 How to Determine Whether the Applicant is Eligible to Apply).

Exception: An AARS search is not conducted if staff determine that a person does not meet the definition of a controlling person. See 5411 Definition of a Controlling Person.

Procedure

After an applicant submits controlling person information, the inspector assigned to process the application coordinates with a designated user of the AARS system to conduct a search in the AARS system for the controlling person.

If a paper application is submitted, the designated user of the AARS system uses the information on the application and on Form 2760, Controlling Person – Child Care Regulation, to conduct the search.

If a registered family home or a listed family home submits an e-application, the designated user of the AARS system conducts the AARS search by using the controlling person information:

- entered on the e-application; and
- submitted online through the applicant's online Child Care Licensing Account.

Documenting AARS Search Results

After conducting the AARS search, the designated user of the AARS system creates a *Chronology* in CLASS, with a chronology type of *Application*, to:

- document that a search of the AARS system was conducted for each controlling person; and
- document the results of the search for each controlling person.

5441.1 If a Controlling Person is Listed in the AARS System

December 2012

If the controlling person is found in the HHSC Adverse Action Record-Sharing (AARS) system:

- the designated user of the AARS system follows procedures in 5441 to document the results of the AARS search in the CLASS; and
- the inspector follows the procedures in 5450 Determining and Documenting the Eligibility of a Controlling Person to resolve the match.

5442 Searching for and Adding a Controlling Person Record in CLASS

September 28, 2018

Procedure

For applicants and operations with a permit, the inspector conducts a search for the controlling person in the CLASS, under the CLASS record for the applicant or operation that submitted the controlling person information.

After conducting the search, the inspector:

a. associates (links) a controlling person's existing record with the applicant's or operation's record in CLASS (see 5442.1 Associating a Controlling Person with an Existing Record in CLASS);
b. adds a new record for the controlling person under the applicant's or operation's record in CLASS, if an existing record is not found after staff manually enter the controlling person information obtained from Form 2760, Controlling Person – Child Care Regulation, to conduct the search in the CLASS (see 5442.2 Manually Adding a New Record for a Controlling Person in CLASS);
c. accepts the submission to add a new record for the controlling person under the applicant's or operation's record in CLASS, if the search was completed using the controlling person information the applicant or operation submitted online through the Child Care Licensing Account (see 5442.3 Accepting an Online Submission of a New Controlling Person Record in CLASS).

After each search, the inspector associates the record, adds a new record, or accepts the submission of a new record even if the person is found to be ineligible to be a controlling person, unless the submission is invalidated (see 5434.1 Invalidating an Online Controlling Person Submission Before Conducting a Search of the CLASS and 5434.4 Invalidation Reasons that Require a Search of the CLASS Before the Submission Can Be Invalidated).

The inspector leaves the *Status* field on the *Controlling Person Details* page as *Pending* until:

a. the search for the controlling person in the CLASS is complete;
b. the search for the controlling person in the HHSC Adverse Action Record Sharing (AARS) system is complete (see 5441 Searching for a Controlling Person in the AARS System and Documenting the Results), if the operation is applying for a permit; and

c. matches for the controlling person, when found as a result of the searches, are resolved (see 5450 Determining and Documenting the Eligibility of a Controlling Person).

Additional Steps for a CPA Controlling Person Record

Child-placing agency (CPA) controlling person records are entered under the CLASS record for each office (main office or branch office) that the person serves as a controlling person for.

The CPA designates which office the person serves as a controlling person when submitting Form 2760 Controlling Person-Child Care Regulation or submitting the information online through the CPA's online Child Care Licensing Account (See 5422.1 Controlling Persons at a Child-Placing Agency (CPA)).

If Form 2760 was submitted to the inspector for the CPA's main office, the inspector:

- enters the record under the CPA's main office; and
- indicates which office(s) the person serves as a controlling person for by selecting the following from the *Main/Branch* drop-down box in the *Selected Association* section of the *Controlling Persons Detail* page:
  - *M*, if the person serves as a controlling person for the CPA's main office; and
  - the applicable branch number(s), if the person serves as a controlling person for a branch office of the CPA.

An inspector for a branch office can only enter controlling persons for the office to which they are assigned.

5442.1 Associating a Controlling Person with an Existing Record in CLASS

December 2012

Procedure

If a controlling person has an existing record in CLASS, the inspector associates (links) the person's record to the operation's record in CLASS by:

- selecting the controlling person's record found through the search; and
- selecting *Associate*.

If the inspector associated the controlling person record as a result of an operation submitting Form 2760, Controlling Person – Child Care Regulation, the inspector also updates the information entered in the *Person Details, Alternate Names*, and *Selected Association* sections of the *Controlling Person Details* page, as needed.

If the inspector associated the controlling person record as a result of an online submission, the inspector also updates the information entered in the *Person Details* section of the *Controlling Person Details* page, as needed.

5442.2 Manually Adding a New Record for a Controlling Person in CLASS

December 2012

Procedure

If an existing record for a controlling person is not found after staff manually enter the information obtained from Form 2760, Controlling Person – Child Care Regulation, to conduct the search in the CLASS, the inspector adds a new record for the controlling person to the applicant's or operation's record in CLASS by:

- selecting *Add New* on the *Controlling Person Search* page; and
- completing the *Person Details, Alternate Names*, and *Selected Association* sections of the *Controlling Person Details* page.

5442.3 Accepting an Online Submission of a New Controlling Person Record in CLASS

Revision 23-1, Effective April 21, 2023

Procedure

If an existing record for a controlling person is not found after staff complete a search of the CLASS using the controlling person information the applicant or operation submitted online through the applicant's or operation's online Child Care Licensing Account,

the inspector adds a new record for the controlling person to the *Controlling Person – New Submission by Operation* page in the applicant's or operation's record in CLASS by:

- updating the *Person Details*, if necessary; and
- selecting *Accept Submission*.

5450 Determining and Documenting the Eligibility of a Controlling Person

December 2012

After searching the CLASS and HHSC Adverse Action Record Sharing (AARS) system, as appropriate, for a record on a controlling person and adding or associating a record for the controlling person in CLASS, the inspector:

a. determines whether a match exists;
b. resolves any matches found in the CLASS or AARS system; and
c. updates the status of the controlling person in CLASS.

See:

5412 Definition of a Match for Controlling Persons
5451 Resolving Matches Found in the AARS System
5452 Eligibility to Receive a Permit After Finding a Match for an Applicant
5453 Eligibility to Serve As a Controlling Person After Finding a Match
5454 Documenting the Eligibility of a Controlling Person by Updating the Status in CLASS

5451 Resolving Matches Found in the AARS System

December 2012

If a search of the HHSC Adverse Action Record Sharing (AARS) system results in a match, Licensing staff resolve the match by:

- determining the reason for the match; and
- consulting with the Licensing attorney to determine whether the match makes the person ineligible to be a controlling person.

Procedure

After determining that a person has a match in the AARS system, the inspector determines whether the person has had a permit denied, revoked, or suspended by another HHSC agency because the applicant or person:

a. committed an act or omission that resulted in physical or mental harm to an individual;
b. is a threat to the health, safety, or well-being of an individual;
c. engaged in the physical, mental, or financial exploitation of an individual; or
d. committed an act or omission that renders the person unqualified or unfit to fulfill the obligations of the license.

The inspector and supervisor then consult with a Licensing attorney to determine whether the person's listing in the AARS qualifies as a substantive reason to either deny the application or request that the operation remove the person from the role of controlling person.

See:

5452 Eligibility to Receive a Permit After Finding a Match For an Applicant
5453 Eligibility to Serve As a Controlling Person After Finding a Match

5452 Eligibility to Receive a Permit After Finding a Match for an Applicant

December 2012

The chart below outlines whether a person is eligible to receive a permit, based on the results found after finding a match found on a controlling person who is also the applicant during a search of the CLASS or HHSC Adverse Action Record Sharing (AARS) system.

If the controlling person with a match is not the applicant, see 5453 Eligibility to Serve as a Controlling Person After Finding a Match.

If the applicant is …	Does Licensing Issue a Permit?
a designated controlling person …	No. Licensing will not issue a permit until due process is final. Licensing may deny a permit, if the person applies before due process is final.

If the applicant is …	Does Licensing Issue a Permit?
a sustained controlling person …	No. Licensing denies the person a permit, if the application is received within five years after the designation is sustained.
ineligible to apply for a permit because of adverse action …	No.
listed in the HHSC AARS system …	Maybe. Licensing may issue a permit only if a Licensing attorney determines that the reason the person is listed in the AARS system does not constitute a substantive reason to deny the person a permit.

40 TAC §§745.907, 745.8605(15)

5453 Eligibility to Serve As a Controlling Person After Finding a Match

September 28, 2018

The chart below outlines whether a person (who is not the applicant) is eligible to serve as a controlling person at an operation, based on the type of match found on the controlling person during a search of the CLASS or HHSC Adverse Action Record Sharing (AARS) system.

If the controlling person with a match is the applicant, see 5452 Eligibility to Receive a Permit After Finding a Match For an Applicant.

If the person submitted by the operation is …	Is the person eligible to serve as a controlling person?
a designated controlling person …	Yes.
	No. This person may not serve as a controlling person at an operation for five years after the designation is sustained.
a sustained controlling person …	If the operation has a permit, the permit holder must remove the person who is ineligible to serve as a controlling person from the role of controlling person. If the permit holder refuses or is unable to remove the person from the role of controlling person, Licensing must revoke the permit. If the operation is applying for a permit, the applicant must remove the person who is ineligible to serve as a controlling person from the role of controlling person before Licensing can issue a permit. If the applicant refuses or is unable to remove the person from the role of controlling person, Licensing cannot issue the permit.
ineligible to apply for a permit because of adverse action …	Maybe. If the operation has a permit and if a Licensing attorney determines that the reason the person is ineligible to serve as a controlling person constitutes a substantive reason to prohibit the person from being a controlling person in an HHSC-regulated operation, then the permit holder must remove the person who is ineligible to serve as a controlling person from the role of controlling person. If the permit holder refuses or is unable to remove the person from the role of controlling person, Licensing must revoke the permit. If the operation is applying for a permit and a Licensing attorney determines that the reason the person is ineligible to serve as a controlling person constitutes a substantive reason to prohibit the person from being a controlling person in an HHSC-regulated child care operation, then the applicant must remove the person who is ineligible to serve as a controlling person from the role of controlling person before Licensing can issue a permit. If the applicant refuses or is unable to remove the person from the role of controlling person, Licensing cannot issue the permit.
listed in the HHSC AARS system …	Maybe. If the operation has a permit and if a Licensing attorney determines that the reason the person is listed in the AARS system constitutes a substantive reason to prohibit the person from being a controlling person in an HHSC-regulated child care operation, then the permit holder must remove the person who is ineligible to serve as a controlling person from the role of controlling person. If the permit holder refuses or is unable to remove the person from the role of controlling person, Licensing must revoke the permit. If the operation is applying for a permit and if a Licensing attorney determines that the reason the person is listed in the AARS system constitutes a substantive reason to prohibit the person from being a controlling person in an HHSC-regulated operation, then the applicant must remove the person who is ineligible to serve as a controlling

If the person submitted by the operation is …	Is the person eligible to serve as a controlling person?
	person from the role of controlling person before Licensing can issue a permit. If the applicant refuses or is unable to remove the person from the role of a controlling person, Licensing cannot issue the permit.

40 TAC §§745.403; 745.907; 745.911, 745.8605(15)

Human Resources Code §42.072(c-1)

5454 Documenting the Eligibility of a Controlling Person by Updating the Status in CLASS

March 2017

The inspector updates the status of a controlling person in the *Status* field of the *Controlling Person Details* page in CLASS after determining that the person:

a. is eligible to serve as a controlling person;
b. is ineligible to serve as a controlling person;
c. has ceased to serve as a controlling person at an operation; or
d. was entered in error.

Procedure

The following chart explains the meaning of each option in the *Status* field.

The *Status* selected is …	when …
Pending …	a new record on a controlling person is entered for the operation. *Pending* is the default value when adding or associating a controlling person record.
Identified …	a controlling person has no history that prohibits the person from being a controlling person (that is, the person is eligible to be a controlling person). *Identified* is the status for each person who is: 1. currently serving as a controlling person for the operation; and 2. is eligible to serve as controlling person.
Rejected …	an operation submits the name of a controlling person for consideration, but the person has a history that prohibits the person from being a controlling person (that is, the person is ineligible to be a controlling person). See 5454.1 Entering the Reason for Rejecting a Controlling Person.
Review …	a controlling person is sustained because the person's record is associated with an operation that had its permit revoked. CLASS automatically updates the status to *Review* when this occurs. See 7000 Voluntary Actions and Enforcement Actions
Inactive …	a controlling person ceases to be a controlling person at an operation. A status is changed to *Inactive* only when an end date is entered.
Withdrawn …	a person is entered into CLASS in error (for example, entered under the wrong operation), or the operation withdraws the person from consideration. See 5454.1 Entering the Reason for Withdrawing a Controlling Person. This does not include when an operation removes a person from a controlling person role after being notified by Licensing that the person is ineligible to be a controlling person.

5454.1 Entering the Reason for Rejecting a Controlling Person

December 2012

Procedure

If the *Status* selected in the CLASS for a controlling person is *Rejected,* the inspector selects a reason for the rejection from the *Rejection or Withdrawal Reason* drop-down box.

The following chart explains the meaning of each *Rejection* reason.

The option selected under ***Rejection Reason*** **is or has a (an) …**	**and when the person is rejected from being a controlling person because …**
Sustained Controlling Person	the person is listed as a sustained controlling person in CLASS.
AARS History	• the person is listed in the HHSC Adverse Action Record Sharing (AARS) system; and • a licensing attorney has determined that the person is ineligible to be a controlling person.
Previous Application Denied	the person is ineligible to receive a permit.

5454.2 Entering the Reason for Withdrawing a Controlling Person

December 2012

Procedure

If the *Status* selected in the CLASS for a controlling person is *Withdrawn,* the inspector selects a reason for the withdrawal from the *Rejection or Withdrawal Reason* drop-down box.

The following chart explains the meaning of the each *Withdrawal* reason.

The option selected under ***Withdrawal Reason*** **selected is …**	**when …**
Operation Request	the operation withdrew the person's name from consideration as a controlling person.
Entered in Error	the person was entered in error; for example, a person was entered for the wrong operation. Do NOT chose this option if Licensing staff made a data entry error. In these instances, staff must request that the CLASS IT team complete a data fix. Examples of data entry errors include: • Licensing staff created a controlling person record when a record for the person already existed. • Licensing staff made an error when entering a Social Security number.

5460 Notifying an Applicant, Permit Holder, or Controlling Person About a Person's Eligibility to Serve as a Controlling Person

December 2012

If the person submitted for consideration as a controlling person by an applicant or operation is determined to be eligible to be a controlling person, the inspector notifies the *controlling person* about the determination. See 5461 Notifying a Controlling Person About Eligibility.

If the person submitted by an applicant or operation is determined to be ineligible to serve as a controlling person, the inspector notifies the *applicant* or *permit holder* about the determination. See 5462 Notifying an Operation About an Ineligible Controlling Person.

40 TAC §§745.907; 745.911; 745.915

5461 Notifying a Controlling Person About Eligibility

December 2012

Procedure

If a person submitted as a controlling person by an operation is eligible to be a controlling person, the inspector notifies the person of their eligibility by creating and sending CLASS Form 2761 Identifying a Controlling Person to the controlling person.

Additional Requirement for Child-Placing Agencies

If the inspector assigned to a CPA's main office creates Form 2761 regarding a controlling person at a branch office for the CPA, the inspector for the main office sends a copy of the completed Form 2761 to the inspector for the branch office.

5462 Notifying an Applicant or Permit Holder About an Ineligible Controlling Person

December 2012

Procedure

If an inspector determines that a person submitted as a controlling person by an operation is ineligible to be a controlling person, the inspector does as follows:

- Notifies the applicant or permit holder about the person's ineligibility to be a controlling person by creating and sending CLASS Form 2765 Match of an Ineligible Controlling Person to the applicant or operation. The form includes a compliance date and directs the operation to complete and return the Operation Action Form (located on the last page of CLASS Form 2765) to Licensing by the compliance date.
- Discusses with the applicant or permit holder the accuracy of the details on the person's ineligibility, if the person who is ineligible to be a controlling person contacts the local Licensing office that sent the notice to say that he or she believes that the details are inaccurate.

Unless Licensing determines that the details on the person's ineligibility are inaccurate, the permit holder must remove the person from the operation.

Additional Requirement for Child-Placing Agencies

If the inspector assigned to a CPA's main office creates Form 2765 regarding a controlling person at a branch office for the CPA, the inspector for the main office sends a copy of the completed Form 2765 to the inspector for the branch office.

5462.1 Following Up with an Applicant or Permit Holder Who Does Not Return the Operation Action Form

March 2013

If an applicant or permit holder fails to return the Operation Action Form to Licensing by the compliance date specified on the form, the inspector contacts the applicant or permit holder to ensure that the ineligible person has been removed from the role of controlling person. (The Operation Action Form is located on the last page of CLASS Form 2765 Match of an Ineligible Controlling Person.)

If appropriate, the inspector takes one or more of the following actions:

a. Cites an operation with a permit for a violation of TAC §§745.911(1), 748.103(12), 749.103(16), or 750.103(10), as applicable, when the violation is for a sustained controlling person.
b. Cites an operation with a permit for a violation of TAC §745.911(2) when the violation is because an adverse action sustained within the previous five years makes the person ineligible to apply for a permit.
c. Cites an operation with a permit for a violation of TAC §745.911(3) when the violation is because the person is associated with an operation that had its permit denied, revoked, suspended, or terminated by another state health and human services agency within the last 10 years.
d. Revokes the permit.
e. Denies the permit.

40 TAC §§745.907; 745.911; 745.915

Texas Government Code §531.953

5470 Additional Duties of Inspectors in Relation to Controlling Persons

March 2017

In addition to the duties explained in 5400 Controlling Person, inspectors also are responsible for the following:

a. Monitoring operations for compliance with the requirements related to an operation's controlling persons in statute, administrative rules, and minimum standards (see 4000 Inspections).
b. Ensuring that a person who is ineligible to be a controlling person at an operation that is regulated by Licensing does not serve in the role of a controlling person (see 7773.4 Reviewing the Status of a Sustained Controlling Person in CLASS).
c. Notifying controlling persons about corrective or adverse action taken against an operation (see 7110 Notifying an Operation When Licensing Takes Enforcement Action).
d. Designating a controlling person (see 7771 Choosing the Persons to Designate as Controlling).
e. Sustaining a designated controlling person (see 7770 Administrative Review and Due Process Hearing for a Designated Controlling Person).

5500, Voluntary Actions of the Operation

Revision 23-2; Effective June 26, 2023

5510 Withdrawal of an Application

Revision 23-2; Effective June 26, 2023

An operation may voluntarily withdraw an application for a permit.

See 3230 Withdrawal of an Application for a Permit.

5520 Temporary Relocation

Revision 23-2; Effective June 26, 2023

5520.1 Relocation Due to Damage or Renovation

Revision 23-4; Effective Nov. 30, 2023

An operation may relocate temporarily for a period of up to 90 days due to damage or renovation to the building, which makes it temporarily unsuitable for child care.

The operation must:

- Notify CCR in writing as soon as possible, but no later than 24 hours after the operation moves to a new location or begins providing care at any location not noted on the operation's permit. For a residential child care operation, the operation may provide notice through a report to the Statewide Intake Division (SWI).
- Before a planned temporary relocation:
  - obtain any inspections at the temporary relocation that are identified in the applicable minimum standards, which may include fire, sanitation and gas leak inspections;
  - ensure the temporary relocation complies with applicable statutes, administrative rules and minimum standards;
  - obtain CCR's approval of the temporary location, including for any aspect that does not comply with applicable statutes, administrative rules and minimum standards; and
  - request that CCR amend the permit with a new address if the relocation lasts longer than 90 days.
- For an emergency relocation:
  - complete the notice requirement as noted above;
  - complete the additional steps noted above as soon as possible after the relocation; and
  - for a residential child care operation, meet any additional reporting and documentation requirements.

Procedure

The inspector inspects the new location before or as soon as possible after the operation relocates to determine whether the temporary location complies with the applicable statues, administrative rules and minimum standards.

The inspector may use discretion in approving arrangements that do not comply with applicable statutes, administrative rules and minimum standards. Factors to consider when deciding whether to approve include:

- the anticipated length of stay at the temporary location;
- the degree of deviation from minimum standards; and
- the risk to children considering the activities and services the operation offers.

See:

3823 Amending the Permit in CLASS
5521 Documenting the Temporary Relocation in CLASS

26 TAC Sections 745.5001(b)(2); 745.5051(2); 745.5101; 745.5103

5520.2 Relocation Due to Declared Disaster (RCCR Only)

Revision 23-2; Effective June 26, 2023

A GRO or CPA may relocate temporarily to comply with a declared state of disaster under Chapter 418 of Government Code.

A GRO may also provide care to any child at a temporary location that is different from the location on the permit. For example, a child needs to be quarantined at a different location from other children. The operation must notify CCR as soon as possible after temporarily relocating due to a declared disaster.

In addition to moving its operation to a new location not noted on its permit, a CPA, including a branch office, may do the following to comply with a declared state of disaster:

- move a foster home to a new location that is not noted on the verification; or
- allow a foster home to provide care to any child at a location not noted on the verification.

Procedure

The inspector takes the following steps when a GRO or CPA notifies CCR of the temporary relocation of the operation due to a declared disaster:

- documents the relocation according to 5521 Documenting the Temporary Relocation in CLASS;
- inspects the new location as soon as possible after the operation relocates to ensure that there is no risk to children;
- notes any aspect that does not comply with applicable statutes, administrative rules and minimum standards; and
- notifies the operation of the approval of the temporary location.

26 TAC Sections 745.435(e); 748.303(e); 749.503(e)

5521 Documenting the Temporary Relocation in CLASS

Revision 23-3; Effective Sept. 22, 2023

The inspector documents the temporary relocation of the operation in CLASS as soon as possible after receiving the relocation information from the operation as follows:

a. enters a Chronology in CLASS documenting the:
    - temporary new address;
    - relocation start date;
    - estimated end date; and
    - details about the disaster, if an RCCR operation is relocating due to a declared disaster;
b. on the *Main* page, completes the *Temporary Location* section; and
c. uploads supporting documentation related to the temporary relocation and inspection to CLASS Document Library from the applicable CLASS page.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

5522 Ending the Temporary Relocation in CLASS

Revision 23-4; Effective Nov. 30, 2023

Operation Returns to the Address Listed on the Permit

When the operation returns to the address listed on the permit, CCR staff document the end of the temporary relocation in CLASS as follows:

- enter a chronology documenting the actual end date of the relocation; and
- on the *Main* page under the *Temporary Relocation* section, enter the last day the operation used the location as the *Actual End Date*.

Operation Does Not Return to Address Listed on the Permit

If the operation does not return to the address listed on the permit within 90 days, the operation must request that CCR amend the permit with the new address. Staff follow the procedures in 3823.5 Changing the Operation's Address in CLASS to amend the permit.

26 TAC Section 745.5001(b)

5530 Voluntary Suspension

Revision 23-4; Effective Nov. 30, 2023

An operation may request a voluntary suspension of its permit for a specific period up to a maximum of two years when:

a. changes or repairs are being made to the operation;
b. enrollment is too low to operate, or no children are in care; or
c. the owner is unable to operate due to:
    - illness;
    - an extended absence;
    - a staffing shortage;
    - personal reasons; or
    - a declared disaster.

During the voluntary suspension period, an operation must:

- as soon as possible, but no later than 24 hours after notification of approval of the voluntary suspension, notify the parents of any children attending or enrolled in the operation of the voluntary suspension, including the dates of the voluntary suspension period;
- not have children in care;
- notify CCR at least 15 days before resuming operation;
- return the permit to CCR during the suspension period;
- continue to pay all fees; and
- apply to renew the permit if the permit is due for renewal during the voluntary suspension period.

See 3912 When an Operation's Permit Renewal is Due

Human Resources Code Section 42.071

26 TAC Sections 745.5001(b)(3); 745.5151; 745.5157

5531 Assessing and Granting a Request for Voluntary Suspension

Revision 23-4; Effective Nov. 30, 2023

To assess a request for a voluntary suspension, CCR staff must receive a written request from the operation that includes the following information:

a. the proposed dates that the suspension will begin and end;
b. the reason for the request under 26 TAC Section 745.5151;
c. plans for resuming operation; and
d. a statement about how the permit holder will meet the applicable statutes, administrative rules or minimum standards at the end of the suspension period.

An operation may request to have a full permit suspended for a maximum of two years.

26 TAC Sections 745.5001(b)(3); 745.5153; 745.5155

Procedure

The inspector uploads supporting documentation related to the request to the CLASS Document Library.

When an operation submits a request for voluntary suspension, the inspector consults with the supervisor to determine whether to grant it as requested, grant with conditions or deny the request.

The inspector and supervisor consider the following factors:

1. whether an enforcement action is pending against the operation;
2. whether CCR is considering submitting a Referral for Enforcement Action to Child Care Enforcement (CCE);
3. whether CCE is considering imposing an enforcement action against the operation;
4. whether CCR can confirm that the operation plans to care for children during the voluntary suspension period;
5. the length of time that the operation plans to suspend its permit; and
6. whether the operation's request to voluntarily suspend its permit meets one of the acceptable reasons.

If an enforcement action is pending against the operation or if HHSC is considering imposing an enforcement action against the operation, the inspector and supervisor will consult with the program administrator and regional director to evaluate whether approving the voluntary suspension would be disruptive of the pending or ongoing enforcement action. The regional director consults with the appropriate director of field operations, HHSC legal, and CCE before making a decision on the voluntary suspension request.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

26 TAC Sections 745.5003 and 745.5155

5532 Documenting the Voluntary Suspension

Revision 23-4; Effective Nov. 30, 2023

Procedure

If the decision is to grant the voluntary suspension with or without conditions, the inspector:

a. changes the *Operating Status* on the *Operation Main* page in CLASS to *No* and updates the *Effective Date*
b. notifies the program administrator or designee to check the *Do Not Display On Public Website* box on the *Operation* main page;
c. completes the *Provider Voluntary Suspension Plan* page in CLASS as follows:
    - fills out the date the voluntary suspension begins;
    - selects the appropriate reason from the *Reason* drop-down menu; and
    - fills out the *Disaster Name* field, if applicable; and
d. sends CLASS Form 2865 Voluntary Suspension Approval Letter, located on the *Provider Voluntary Suspension Plan* page in CLASS to the operation, notifying the operation of the decision to grant the suspension and the expectation that the permit holder returns the permit to the inspector.

If conditions are added to the voluntary suspension request, the inspector sends notice of the conditions as an enclosure with the Voluntary Suspension Approval Letter, Form 2865. The inspector documents the conditions in the *Correction Plan* section of the *Provider Voluntary Suspension Plan* page in CLASS.

5533 Denying the Voluntary Suspension

Revision 23-4; Effective Nov. 30, 2023

If CCR denies the request for a voluntary suspension, the operation may request an administrative review of the action.

26 TAC Section 745.8803(a)(1)(C)

Procedure

If the decision is to deny the voluntary suspension, the inspector notifies the owner of the operation by drafting notice of the denial on HHSC letterhead on the *Corrective/Adverse* action page in CLASS. The letter must include the reason for the denial and information about the permit holder's right to an administrative review.

The inspector documents the denial in a Chronology for the operation in CLASS.

5534 Ending the Voluntary Suspension

Revision 24-2; Effective May 22, 2024

At the end of the voluntary suspension period, the operation may request an extension, if needed and if the voluntary suspension was for less than two years.

An operation must have CCR's permission to reopen after a voluntary suspension. To request permission to reopen, the operation must notify CCR at least 15 days before the operation plans to resume operating. A CCR inspector will conduct an inspection within 15 days of notification to determine if the operation meets all applicable statutes, administrative rules, and minimum standards.

The operation may reopen only if the inspector gives the operation permission to operate. The inspector may approve the operation's request to reopen after determining the operation demonstrates compliance with applicable statutes, administrative rules, and minimum standards.

If the inspector determines the operation poses a risk to children in care, HHSC may recommend a voluntary plan of action or take an enforcement action to address the concerns.

If the operation does not reopen, request an extension, or voluntarily close by the end of the voluntary suspension period, HHSC may take an enforcement action, including revoking the operation's permit. The operation has the right to request available due process related to any enforcement action.

26 TAC Sections 745.5159 and 745.5161

Procedure

If the inspector does not hear from the operation at least 15 days before the end of the suspension period, the inspector:

1. contacts the permit holder to notify them the voluntary suspension period is ending;
2. informs the permit holder that CCR must receive written notification of and approve the request to resume operation;
3. informs the permit holder that they may voluntarily close or request an extension of the voluntary suspension if the voluntary suspension was for less than two years; and
4. informs the permit holder that if CCR is not notified in writing of the plans to reopen, voluntarily close, or extend the voluntary suspension, HHSC may take an enforcement action, including revoking the permit.

Reopening the Operation

If the operation's permit holder notifies CCR in writing of plans to resume operating, the inspector conducts an inspection before reopening the operation.

For the operation to reopen, the inspector must:

a. address any concerns with applicable statutes, administrative rules and minimum standard violations observed during the inspection;
b. change the *Operating Status* to *Yes* on the *Operation* main page in CLASS and update the *Effective Date*;
c. notify the program administrator or designee to uncheck the *Do Not Display on Public Website* box in CLASS;
d. enter a chronology of any discussion with the permit holder to verify compliance with statutes, administrative rules and minimum standards;
e. enter the results of the voluntary action plan on the *Voluntary Suspension* page in CLASS; and
f. return the permit to the operation.

If the inspector decides the operation poses a risk to children at the end of the voluntary suspension period, the inspector consults with the supervisor and takes the appropriate action depending on risk to children.

If the Operation Requests to Extend the Voluntary Suspension

If the operation requests an extension of the voluntary suspension, the inspector consults with a supervisor to decide if CCR will grant the request without conditions, grant it with conditions, or deny it.

When evaluating the request, the inspector and supervisor consider:

a. if an enforcement action is pending against the operation;
b. if CCR is considering submitting a Referral for Enforcement Action to Child Care Enforcement (CCE);
c. if CCE is considering imposing an enforcement action against the operation;
d. if CCR can confirm the operation does not plan to care for children during the voluntary suspension period;
e. the length of time the operation plans to suspend its permit; and
f. if the operation's request to voluntarily suspend its permit meets one of the acceptable reasons.

If an enforcement action is pending against the operation, or if HHSC is considering imposing an enforcement action against the operation, the inspector and supervisor consult with the program administrator and regional director to evaluate if approving the

voluntary suspension would be disruptive to the pending or ongoing enforcement action. The regional director consults with the appropriate director of field operations, HHSC legal, and CCE before making a decision on the voluntary suspension request.

If the Operation Requests to Voluntarily Close Before the Voluntary Suspension Period Ends

If the operation notifies CCR of plans to voluntarily close the operation, the inspector follows up to close the operation.

Reference

Voluntary Closure, 5540

If the Operation Fails to Reopen or Respond by the End of the Suspension Period

If the operation does not reopen, voluntarily close or request an extension of the voluntary suspension by the end of the suspension period, the inspector and supervisor consult with the program administrator and the regional director to determine if a Referral for Enforcement Action to CCE is appropriate.

If CCE decides to revoke the permit, CCR staff:

a. update the *Provider Voluntary Suspension Plan* page in CLASS to:
   - select the option *Closed* in the *Result of Suspension* field;
   - enter the date of the decision to close the operation in the *End Date* field; and
   - enter the reason for closure in the *Correction Plan* field;
b. conduct an inspection to verify the operation is not caring for children. If the operation is caring for children, CCR staff follow procedures in 6530 Investigations of Unregulated Operations; and
c. document the operation's closure in CLASS.

References

Administrative Reviews, 5600
Due Process Hearings, 5700

26 TAC Sections 745.8803(a)(1)(D) and 745.8835(a)(1)(A)

5540 Voluntary Closure

Revision 23-4; Effective Nov. 30, 2023

An operation notifies the inspector before, if possible, or within 10 days after going out of business or closing. Fees are not refundable when an operation closes.

If an operation is closing for a period of time but plans to reopen, see 5530 Voluntary Suspension.

26 TAC Section 745.5001(b)(4); 745.5201

Procedure

If the inspector learns that an operation will stop operating or has stopped operating and has no plans to reopen, he or she sends CLASS Form 2825 Voluntary Suspension/Relocation/Closure Letter to the operation to confirm that it is closing or has closed.

5541 Documentation of an Operation That Has Closed

Revision 23-4; Effective Nov. 30, 2023

Procedure

When CCR is notified that an operation is going to voluntarily close, the inspector takes the following steps:

1. changes the operating status to No and updates the *Effective Date* to reflect the *Begin Date* of the voluntary closure on the *Operation Main* page in CLASS;
2. enters the closure date in the *Application/Closure* page in CLASS; and
3. enters the reason for closure in the *Application/Closure* page in CLASS.

If unable to determine the actual date the operation closed, the inspector uses the date he or she learned of the closing.

5542 Voluntary Closure During an Investigation

Revision 23-4; Effective Nov. 30, 2023

An operation may close voluntarily:

- during an investigation; or
- while failing to maintain compliance with minimum standards.

The voluntary closure of an operation does not prevent Child Care Enforcement (CCE) from imposing an enforcement action. Once an operation receives a CLASS Form 2880 Intent to Impose Adverse Action, CCE may follow through with the adverse action, regardless of whether the operation has closed.

26 TAC Section 745.5003; 745.5201

5543 Notification of Investigation Findings When an Operation Closes Voluntarily

Revision 23-2; Effective June 26, 2023

Procedure

As soon as the investigation is complete, or as soon as the operation closes, the inspector sends a letter to the permit holder stating the investigation findings and the circumstances leading to the closing.

Exception: If the inspector has already sent a CLASS Form 2880 Intent to Impose Adverse Action to an operation, an additional findings letter is not necessary.

5544 CCR Response if the Operation Did Not Close

Revision 23-2; Effective June 26, 2023

Procedure

If the permit holder later tells the inspector that the operation did not close as planned, depending on the seriousness of the situation, the inspector may:

- state that the circumstances will affect whether a permit will be issued in the future (see 3700 Denial of an Application for a Permit and Reapplying After Denial or Revocation); or
- follow through with the adverse action process in spite of the closing (see 7630 Taking Adverse Action).

5600, Administrative Reviews

Revision 24-1; Effective Feb. 20, 2024

A person or operation may request an administrative review for a decision or action if either disagree with certain decisions or actions taken by CCR, Child Care Enforcement (CCE), or Credentialing and Registry Enforcement (CARE).

CCE is a unit within the Regulatory Enforcement (RE) department of the Regulatory Services Division (RSD). CCE is responsible for planning and conducting administrative reviews for all CCR, CCE, and CARE decisions and actions that qualify for an administrative review. CARE is a unit within the RE department responsible for making decisions about remedial actions taken against the holder of, or applicant for, an administrator's license.

Human Resources Code Section 42.072(e)

5610 When an Individual or Operation May Request an Administrative Review

Revision 24-1; Effective Feb. 20, 2024

The following table outlines the CCR, Child Care Enforcement (CCE), and Credentialing and Registry Enforcement (CARE) decisions or actions that a person or operation is entitled to an administrative review for, and who can request to dispute the decision or action:

Decision or Action to Dispute	Who Can Request a Review of the Decision or Action
Any of the following about a waiver or variance: • CCR denies, revokes, or amends a waiver or variance. • The operation disagrees with the original expiration date or original conditions associated with a waiver or variance that CCR granted.	The applicant, or an owner, partner, governing body, director, licensed administrator, or designee of the operation.
CCR cites an operation for a deficiency.	The applicant, or an owner, partner, governing body, director, licensed administrator, or designee of the operation.
CCR denies a voluntary suspension request.	The applicant, or an owner, partner, governing body, director, licensed administrator, or designee of the operation.
CCE imposes probation or an adverse action against an operation, subject to the limitations outlined in 26 TAC Section 745.8803(b).	The applicant, or an owner, partner, governing body, director, licensed administrator, or designee of the operation.
CCE adds a probation condition to a corrective action plan.	The applicant, or an owner, partner, governing body, director, licensed administrator, or designee of the operation.
CCR does not agree that an operation is exempt from HHSC regulation.	The person or entity that requested the exemption.
CARE imposes a remedial action listed in 26 TAC Section 745.9031 against an: • administrator's license; or • application for an administrator's license.	The applicant for an administrator's license or the licensed administrator.
CCE intends to designate a person as a controlling person.	The person CCE intends to designate as a controlling person.
CCR determines that a person poses an immediate threat or danger to the health or safety of children.	The person whom CCR determined poses an immediate threat or danger to the health or safety of children.

26 TAC Section 745.8803

5611 Explaining the Right to an Administrative Review

Revision 24-4; Effective Nov 13, 2024

Notification of the right to administrative review is provided per the following table.

If	Then
the decision or action is a CCR decision or action	CCR staff inform the subject of the decision or action that the subject: • has a right to request an administrative review; and • may waive the subject's right to an administrative review by submitting a written statement to CCR per 5612 Waiving the Right to an Administrative Review.
The decision or action is a CCE or CARE decision or action	CCE or CARE staff informs the subject of the decision or action about the subject's right to an administrative review.

5612 Waiving the Right to an Administrative Review

Revision 24-1; Effective Feb. 20, 2024

A person or operation waives the right to an administrative review by:

- not disputing the CCR, CCE, or Credentialing and Registry Enforcement (CARE) decision or action in the required time frame; or
- by submitting a written statement to CCR, CCE, or CARE, as appropriate, stating the person or operation waives the right to an administrative review.

26 TAC Section 745.8805 and 745.8807

Procedure

To expedite a decision or action, the person or designee of the operation may submit a written statement to CCR, CCE, or CARE by 15 days after the person or operation received notice of the decision or action.

The person or designee may submit the written statement waiving the right to the administrative review to CCR, CCE, or CARE as follows:

If	The Person or Designee
• the decision or action is a CCR decision or action; and • an administrative review **has not** been requested for the decision or action	submits the written statement to CCR staff. After receiving the written statement, CCR staff: a. upload a copy of the statement to the CLASS Document Library (go to 1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library); b. document a summary of the statement as a Chronology in CLASS; and c. update the administrative review status in CLASS as outlined in 5613 Updating the Administrative Review Status of a CCR Decision or Action in CLASS.
• the decision or action is a CCR or CCE decision or action; and • an administrative review **has** been requested for the decision or action	emails the written statement to one of the following, depending on the operation type: • For day care operations, CCFEnforcement.Daycare@hhs.texas.gov. • For residential care operations, CCFEnforcement.Residential@hhs.texas.gov.
• the decision or action is a CCE decision or action; and • an administrative review **has not** been requested for the decision or action	emails the written statement to one of the following email addresses, depending on the operation type: • For daycare operations, CCFEnforcement.Daycare@hhs.texas.gov. • For residential care operations, CCFEnforcement.Residential@hhs.texas.gov.
the decision or action is a CARE decision or action	submits the written statement to the CARE point of contact noted on the relevant remedial action letter.

If the person or designee verbally notifies CCR staff that the person or designee wants to waive the right to an administrative review, CCR staff informs the person or designee that the waiver must be submitted in writing as indicated in the table above.

5613 Updating the Administrative Review Status of a CCR Decision or Action in CLASS

Revision 24-1; Effective Feb. 20, 2024

Procedure

CCR staff update the status of an administrative review in CLASS as indicated in the table below.

Situation	Who Updates the Administrative Review Status	How to Update the Status
The decision or action subject to an administrative review is a CCR decision or action, and the right to an administrative review is waived because the person or operation did not dispute the decision or action.	CCR	Update the *Administrative Review* dropdown in the *Due Process* section on the *Standard Details* page from *Pending* to *Waived*.
The decision or action subject to an administrative review is a CCR decision or action, and an administrative review **was** requested for the decision or action.	CCE	N/A
The decision or action subject to an administrative review is a CCE or Credentialing and Registry Enforcement (CARE) decision or action.	CCE or CARE as appropriate	N/A

5614 Receiving a Request for an Administrative Review

Revision 24-1; Effective Feb. 20, 2024

Procedure

If CCR staff receive a request for an administrative review, CCR staff notify CCE or CARE of the request as indicated in the table below.

If	Then
the administrative review request is for a CCR or CCE decision or action	CCR staff forward the request to the following email addresses, depending on the operation type: • For day care operations, CCFEnforcement.Daycare@hhs.texas.gov. • For residential care operations, CCFEnforcement.Residential@hhs.texas.gov.
the administrative review request is for a CARE decision or action	CCR staff forward the request to CCRA.Enforcement@hhs.texas.gov.

26 TAC Section 745.8805

5615 When a CCR, CCE, or CARE Decision or Action Takes Effect

Revision 24-1; Effective Feb. 20, 2024

Unless the person or operation has the right to request a due process hearing to challenge the decision or action, a CCR, CCE, or Credentialing and Registry Enforcement (CARE) decision or action takes effect:

- on the date the right to an administrative review was automatically waived;
- on the date CCR, CCE, or CARE receives the person or designee's written statement waiving the right to an administrative review; or
- when CCE or CARE upholds, amends, or overturns the decision or action.

26 TAC Sections 745.8813 and 745.8815

5700, Due Process Hearings

Revision 24-2; Effective May 22, 2024

Child Care Enforcement (CCE) is a unit within the Regulatory Enforcement (RE) Department of the Regulatory Services Division (RSD) responsible for making decisions about enforcement actions and due process. CCE decisions are based on information CCR staff gather for all regulated providers and unregulated operations subject to regulation.

Credentialing and Registry Enforcement (CARE) is a unit within the RE department of RSD. The CARE unit is responsible for making decisions about remedial actions taken against the holder of, or applicant for, an administrator's license issued by CCR.

A due process hearing is a hearing held by the State Office of Administrative Hearings (SOAH) to determine if an HHSC decision or action was appropriate under applicable statute or rule.

Procedure

The following table outlines the action for which a person is entitled to a due process hearing and who can request the hearing:

Decision or Action in Dispute:	Person Who Can Request a Due Process Hearing:
The imposition of either of the following against an operation: • an adverse action subject to the limitations in 26 TAC Section 745.8835(b); or • an administrative penalty.	The applicant or an owner, partner, governing body, director, licensed administrator, or designee of the operation.

Decision or Action in Dispute:	Person Who Can Request a Due Process Hearing:
A denial, refusal to renew, suspension, or revocation of an administrator's license. The designation of the person as a controlling person. **Note:** A designated controlling person becomes sustained if the associated revocation is upheld and: • the designation is upheld at SOAH and all subsequent appeals, if any; or • the person does not make a timely request for a due process hearing to challenge the designation. CCE processes sustained controlling persons per relevant procedures.	The applicant for an administrator's license or the licensed administrator. The person designated as a controlling person.
The imposition of an administrative penalty against a controlling person. **Note:** An administrative penalty against a controlling person is upheld if: • the decision is upheld at SOAH and all subsequent appeals, if any; or • the person does not make a timely request for a due process hearing to challenge the penalty.	Controlling person against whom an administrative penalty has been assessed.
A Central Registry finding of child abuse, neglect, or exploitation that: • is the result of a background check conducted under 26 TAC Chapter 745, Subchapter F; and • has not been sustained. The finding may be the result of: • a DFPS investigation; or • an HHSC Provider Investigation. **Note:** If the background check subject is a minor, the subject's parent or guardian is notified of the right to request a due process hearing and may request the hearing.	The subject of the background check.
A determination that the person poses an immediate threat or danger to the health or safety of children because of: • a juvenile adjudication; or • another issue not related to criminal history or a Texas Department of Family and Protective Services (DFPS) child abuse, neglect, or exploitation investigation. **Note:** If the person is a minor, the subject's parent or guardian is notified of the right to due process and may request the hearing.	The person determined to pose the immediate threat or danger.

26 TAC Sections 745.8831, 745.8835, 745.8837, 745.8681, and 745.8877

HRC Section 42.078

Government Code Chapter 2001

Combination Hearing

A due process hearing may address a combination of actions and decisions that are related to each other in a combination hearing.

Examples of combination hearings include:

1. a DFPS Child Protective Investigations (CPI) finding of abuse, neglect, or exploitation and CCE's decision to revoke an operation's permit based on the DFPS finding.
2. CCE's decision to designate a controlling person and CCE's decision to revoke an operation's permit.

26 TAC Section 745.8849

5710 Due Process Hearing Procedure

Revision 24-2; Effective May 22, 2024

Procedure

A person may request a due process hearing in writing by certified or regular mail or fax. A background check subject may request a due process hearing in writing by certified or regular mail, fax, or email. CCR staff refer to the following table to determine how to handle questions and requests or waivers for due process hearings:

Person Who Can Request Hearing	Reason for Requesting Hearing	For Any Questions or Written Correspondence, Refer the Requestor to:	HHSC Department or Division Processing the Hearing Offer
Applicant, owner, partner, member of the governing body, director, licensed administrator, or the designee of an operation	• denial, revocation, refusal to renew, or suspension of a permit; • imposition of an administrative penalty against the operation; or • placement of a new or additional restriction or condition on the permit after initial issuance.	Child Care Enforcement (CCE)	CCE
Controlling person or designated controlling person	• the designation as a controlling person; or • the administrative penalty.	CCE	CCE
Licensed administrator or applicant for an administrator's license	Denial, revocation, refusal to renew, or suspension of the license.	Credentialing and Registry Enforcement (CARE)	CARE
Background check subject	Central Registry finding of child abuse, neglect or exploitation that has not been sustained when the subject receives a notification from the Centralized Background Check Unit (CBCU) of the finding.	CBCU or Child Care Licensing Legal Enforcement Department	CBCU
Background check subject	A determination by CBCU staff that the person's presence presents an immediate threat to the health or safety of children for a reason that is not related to criminal history or a DFPS finding of child abuse, neglect or exploitation.	CCE	CCE

CCE and CARE staff process and document due process hearing requests. CCR staff refer to the table in 7200 Overview of CCR and Regulatory Enforcement Staff Responsibilities Related to Non-voluntary Enforcement Actions for more information.

Reference

Actions Taken When a Due Process Hearing is Requested, 10253

26 TAC Sections 745.909, 745.8837, 745.8839, 745.8841, and 745.8613

5711 Waiving a Due Process Hearing and Expediting the HHSC Decision or Action

Revision 24-2; Effective May 22, 2024

The notification sent to a person advising of the right to request a due process hearing also provides the deadline to request the hearing. The right to a due process hearing is waived if:

- the person does not request the hearing per 26 TAC Section 745.8837; or
- the person submits a written statement to the Child Care Licensing Legal Enforcement Department or Child Care Enforcement (CCE) per the notification, waiving the right to the due process hearing.

Procedure

If the person waives the right to a due process hearing, the HHSC decision or action is expedited and is effective on the date HHSC receives the written waiver.

26 TAC Section 745.8855

5712 Procedure for Requested Due Process Hearings

Revision 24-2; Effective May 22, 2024

Procedure

When a person requests a due process hearing, Child Care Licensing Legal Enforcement Department staff determine if the request is timely. If the request is timely, the Child Care Licensing Legal Enforcement Department staff refer the case to State Office of Administrative Hearings (SOAH). SOAH assigns a docket number and an administrative law judge to handle the case.

Once the hearing has been docketed, Child Care Licensing Legal Enforcement Department staff proceed, and otherwise manage the case per the relevant procedural rules.

The Child Care Licensing Legal Enforcement attorney may ask HHSC staff to help by presenting testimony, providing background information, or gathering evidence for the hearing.

26 TAC Section 745.8839 and 745.8845

5713 When an HHSC Decision or Action is Effective Following a Due Process Hearing Decision

Revision 24-2; Effective May 22, 2024

A due process hearing is considered complete, and the relevant decision(s) or action(s) are effective per the following table:

Due Process Hearing Offer Was For	Due Process Hearing Was	Decision or Action is Effective
an HHSC decision or action, other than designating a controlling person.	not requested per 26 TAC Section 745.8837(a) and (b).	the day after the expiration of the required time frame to request a due process hearing.
an HHSC decision or action other than designating a controlling person.	waived in writing.	the date HHSC receives the written request.
an HHSC decision or action other than designating a controlling person.	requested and SOAH upheld the action or decision.	following the expiration of time to file a motion for rehearing and any appeals of the SOAH decision.
designation of Controlling Person.	• not requested per 26 TAC Section 745.8839; or • waived in writing.	determined per 26 TAC 745.907(b).
designation of Controlling Person.	requested and SOAH upheld the designation.	determined per 26 TAC 745.907(b).

If the administrative action is upheld after completing administrative reviews, due process hearings, and any further appeals, CCE changes a designated controlling person to a sustained controlling person.

CCR staff receive the Review and Update Controlling Person Association Status for Sustained Controlling Person [NAME] To-Do and refer to 5453 Eligibility to Serve As a Controlling Person After Finding a Match.

5720 Regulating Pending the Due Process Hearing for Denial, Refusal to Renew, Revocation, or Suspension

Revision 24-2; Effective May 22, 2024

Procedure

CCE staff decide when an operation may continue providing care pending the due process hearing. When an operation continues to care for children, CCR staff continue to monitor the operation.

The following table summarizes CCE's decision about when an operation may continue to provide care to children pending the due process hearing decision.

CCE Action Related to the Due Process Hearing	Continue to Provide Care
Denial or Suspension	No
Refusal to renew or revocation and CCE **has not** determined the operation poses an immediate risk to the health or safety of children	Yes
Refusal to renew or revocation and CCE **has** determined the operation poses an immediate risk to the health or safety of children	No

After CCE notifies the operation of the intent to take adverse action of revocation or refusal to renew, CCR follows up with inspection activities to ensure:

- the health and safety of children if CCE determines the operation may continue providing care; or
- the operation has ceased providing care pending the appeal process.

If CCE staff decide an operation cannot continue providing care pending the due process hearing, the operation may seek judicial relief in a district court.

References

Conducting Inspections When CCE Determines the Operation Can Continue Providing Care Pending the Due Process Hearing, 5721
Conducting Inspections When CCE Determines the Operation Cannot Continue Providing Care Pending the Due Process Hearing, 5722
Judicial Actions, 7700

26 TAC Sections 745.8835, 745.8873, 745.8875, and 745.8879

HRC Sections 42.072(d-1) and (e)

5721 Conducting Inspections When CCE Determines the Operation Can Continue Providing Care Pending the Due Process Hearing

Revision 24-2; Effective May 22, 2024

Procedure

If CCE staff decide the operation can continue providing care while the operation challenges the adverse action, CCR staff monitor the operation to ensure the health and safety of children. The CCR inspector:

- consults with the inspector's supervisor, program administrator, and regional director to develop a plan to monitor the operation;
- establishes a schedule so inspections continue; and
- conducts inspections and assessments, provides results, and follows up per the relevant sections in 4000 Inspections.

If appropriate, the inspector discusses with the permit holder the possibility of additional actions, including an injunction.

5722 Conducting Inspections When CCE Determines the Operation Cannot Continue Providing Care Pending the Due Process Hearing

Revision 24-2; Effective May 22, 2024

Procedure

If CCE determines the operation cannot provide care during the due process hearing and the operation does not get judicial relief overriding CCE's determination, CCR staff conduct inspections per the following table:

Status of Verification	Conduct Inspection to Verify the Operation is Not Providing Care
CCR has previously verified the operation has stopped proving care	No

Status of Verification	Conduct Inspection to Verify the Operation is Not Providing Care
CCR has not previously verified the operation has stopped providing care	Yes

After CCE notifies the operation and CCR of the decision, CCR leadership consult with CCR staff to decide the appropriate timing to inspect the operation to verify it has stopped providing care.

5723 Submitting a Subsequent Referral for Enforcement Action to CCE

Revision 24-2; Effective May 22, 2024

Procedure

CCR considers making a subsequent referral to CCE to update the adverse action or take additional action if the inspector decides:

- the health and safety of children is at risk; or
- the operation continues to provide care after CCE decided continuing care was not approved.

The inspector and supervisor consult with the program administrator and regional director to discuss the inspection activities and decide if the regional director will submit a subsequent Referral for Enforcement Action to CCE.

Based on this discussion and the situation, CCR staff take the following actions:

If	Then
the regional director agrees with submitting the Referral for Enforcement Action to CCE	• the regional director begins the CCE referral process; and • the inspector documents a summary of the discussion and CCR's decision as a Chronology in CLASS.
the regional director does not agree with submitting the Referral for Enforcement Action to CCE	• CCR staff decide if less serious measures need to be taken to reduce risk at the operation; and • the inspector documents a summary of the discussion and CCR's decision as a Chronology in CLASS.

The inspector:

- continues to inspect the operation if the operation continues to provide care;
- verifies the operation is no longer providing care; and
- follows any other directive provided by CCE.

5730 Due Process Hearing Upholds an Adverse Action

Revision 24-2; Effective May 22, 2024

Procedure

When the final decision in a due process hearing upholds the adverse action, CCE provides the notification to the operation. CCR staff conduct follow up per 7636 Follow-Up to Final Notice of Suspension, Revocation, or Denial.

5800, Automatic Actions

Revision 24-2; Effective May 22, 2024

An automatic action occurs when an operation does not:

- pay an annual permit fee; or
- submit a renewal background check in the required time frame.

Automatic actions are not adverse actions. They are also not subject to an administrative review or due process hearing.

If an operation's permit has been automatically revoked, the permit holder may reapply at any time. Automatic actions occur in the following situations.

Type of Automatic Action	Automatic Action Occurs When	Reference
Automatic Suspension	1. The operation does not pay the annual permit fee by the due date. 2. A listed family home does not provide the information required for a background check renewal to CCR by the due date.	5810 Automatic Suspensions HRC Sections 42.052(j)-(j-1) and 42.054
Automatic Revocation	1. The operation does not pay the annual permit fee within six months of the permit being automatically suspended. 2. A listed family home does not provide the information required for a background check renewal to CCR within six months after the listing has been automatically suspended.	5820 Automatic Revocations HRC Sections 42.052(j)-(j-1) and 42.054

5810 Automatic Suspensions

Revision 24-2; Effective May 22, 2024

An automatic suspension occurs in the following situations.

Applicable Operation Type	Automatic Suspension Occurs When
Licensed Operation Listed Family Home Registered Child Care Home	The operation fails to pay the annual permit fee by the due date.
Listed Family Home	The listed family home fails to submit the information required for a background check renewal by the due date.

Operations Exempt from Paying Annual Permit Fees

An operation exempt from paying the annual fee is not subject to an automatic suspension for failure to pay the fee.

References

Exemptions from Fees, 5211

26 TAC Sections 745.503 and 745.505(a)

Additional Information for Renewal Background Checks

The due date for a renewal background check is:

- based on the type of background check a person is required to have; and
- measured from the date the operation submitted the last background check per the chart below.

If the person is required to have a	Then a renewal background check is due
Name-based Texas Criminal History Check	Two years from the date the last check was submitted to CBCU.
Fingerprint-based Criminal History Check	Five years from the date the last check was submitted to CBCU.

Reference 26 TAC Section 745.621.

5811 When to Process an Automatic Suspension

Revision 24-2; Effective May 22, 2024

Procedure

Between the first and 10th day of the month, CCR staff enter an automatic suspension in CLASS per 5812 How to Process an Automatic Suspension when a permit has been automatically suspended because:

- the operation did not pay the annual permit fee by the last day of the previous month; or
- the listed family home did not submit the information required for a background check renewal by the due date noted on Form 2740 LH BGC Reminder Letter.

The date entered in the *Begin Date* field on the *Provider Voluntary Suspension Plan* page in CLASS cannot be a date in the past.

5812 How to Process an Automatic Suspension

Revision 24-2; Effective May 22, 2024

Procedure

To document the automatic suspension in CLASS, CCR staff:

a. update the *Operation Main* page by:
   I. changing the *Operating Status* to *No*;
   II. changing the *Effective Date* of the permit to reflect the date of the automatic suspension; and
   III. notifying the program administrator or designee to check the *Do not display on the public/provider website* check box;
b. complete the *Provider Voluntary Suspension Plan* page available from the *Corrective and Adverse Action History* page by:
   I. selecting *Add Voluntary* in the *Suspension* section;
   II. entering the date the automatic suspension began;
   III. selecting the reason for the automatic suspension; and
   IV. describing the plan for the operation to come into compliance, including the date the automatic revocation is effective if the correction plan is not met;
c. draft and save the auto-suspension notification to the provider using one of the following forms on the *Provider Voluntary Suspension Plan* page:
   I. CLASS Form 2813 Suspension Fee Letter if the automatic suspension is because of failure to pay the annual permit fee;
   II. CLASS Form 2742 Auto-Suspension Letter-BGC (LH Only) if the automatic suspension is because of a listed family home's failure to submit information required for subsequent background checks; or
   III. CLASS Form 2743 Auto-Suspension Letter-BGC/Fees (LH Only) if the automatic suspension is because of a listed family home's failure to submit information required for subsequent background checks and failure to pay the annual listing fee*;* and
d. mail the letter and any required enclosures to the operation.

5813 Conducting Follow Up to Automatic Suspension

Revision 24-2; Effective May 22, 2024

If a licensed or registered operation's permit is automatically suspended, the inspector conducts a follow-up inspection within 15 days of sending notification to the operation that the permit has been automatically suspended. The purpose of the inspection is to verify if the operation has stopped providing care to children.

5813.1 If the Operation is Caring for Children After an Automatic Suspension

Revision 24-2; Effective May 22, 2024

Procedure

If the operation is caring for children after the permit has been automatically suspended, the inspector:

- informs the provider that the permit was automatically suspended for:
  - nonpayment of the annual permit fee;
  - failure to submit the information required for a background check by the due date; or
  - both nonpayment of the annual permit fee and failure to submit information required for a background check by the due date;
- explains to the provider that the operation is operating without a valid permit and provides technical assistance for submitting the fee payment or background check information as applicable;
- explains any child care subsidy program funding was stopped because of the automatic suspension if applicable; and
- cites the operation for providing unregulated child care.

5813.2 If the Operation Stopped Providing Care or is No Longer Operating After an Automatic Suspension

Revision 24-2; Effective May 22, 2024

If the operation is no longer caring for children in compliance with the automatic suspension letter, the inspector verifies payment of the annual permit fee or submission of required background check information before reinstating the permit.

If the provider informs the inspector the operation has closed, the inspector follows procedure in 5540 Voluntary Closure to close the operation.

5814 Ending an Automatic Suspension

Revision 24-2; Effective May 22, 2024

A permit that has been automatically suspended is reinstated before the end of the suspension period once the permit holder has:

- paid the annual fee;
- submitted the required background check information; or
- both paid the annual fee and submitted the required background check information.

Procedure

To reinstate a permit, CCR staff:

a. update the Operation main page in CLASS by:
   I. changing the *Operating Status* to *Yes;*
   II. updating the *Effective Date* to reflect the date the automatic suspension ended; and
   III. notifying the program administrator or designee to uncheck the *Do not display on public/provider website* box;
b. update the *Provider Voluntary Suspension Plan* page available from the *Corrective and Adverse Action History* page in CLASS by:
   I. documenting how the operation came into compliance in the *Correction Plan* field;
   II. entering *Auto-Suspension, Compliance Met* in the *Result of Suspension* field;
   III. entering the date the automatic suspension ended in the *End Date* field; and
   IV. complete and save CLASS Form 2744 Auto-Suspension End on the *Provider Voluntary Suspension Plan* page; and
c. mail the letter and any required enclosures to the operation.

5820 Automatic Revocations

Revision 24-2; Effective May 22, 2024

An automatic revocation occurs in the following situations.

Applicable Operation Type	Automatic Revocation Occurs When
Licensed Operation Listed Family Home Registered Child Care Home	The operation fails to pay the annual permit fee within six months of the permit being automatically suspended.
Listed Family Home	The listed family home fails to submit the information required for a renewal background check within six months after the listing has been automatically suspended.

Procedure

To document the automatic revocation of a permit in CLASS, CCR staff:

a. enter the date the automatic suspension ended in the *End Date* field;
b. enter *Auto-Revocation* in the *Result of Suspension* field;
c. draft the notification using CLASS Form 2865e, 2825 Vol Suspension/Relocation/Clsr Letter on the operation's *Application/Closure* page;
d. selects the appropriate statement about automatic revocation on CLASS Form 2865e, 2825 Vol Suspension/Relocation/Clsr Letter; and
e. mails the letter to the operation.

If the operation is a listed family home, the CCR staff assigned to the operation notifies the appropriate inspector that:

- the permit has been automatically revoked; and
- a follow-up inspection is needed per 5821 Conducting Follow-Up to an Automatic Revocation.

5821 Conducting Follow-Up to an Automatic Revocation

Revision 24-2; Effective May 22, 2024

Within 15 days of sending notification that the permit has been automatically revoked, the inspector conducts a follow-up inspection to verify the operation no longer cares for children.

For listed family homes, the operation is assigned from the administrative technician's workload in CLASS to the workload of an inspector to conduct a follow-up inspection.

A permit holder may not pay the overdue annual fee or submit overdue background check information at the time of the follow-up inspection. The permit holder must reapply for a permit.

5821.1 Operation is Caring for Children After an Automatic Revocation

Revision 24-2; Effective May 22, 2024

Procedure

If the operation is caring for children after the permit has been automatically revoked, the inspector:

a. informs the provider the permit was automatically revoked and the reasons why;
b. explains that there are no due process rights related to automatic revocation and that the permit holder may reapply for a new permit at any time;
c. provides an application for a permit; and
d. cites the operation for providing unregulated child care.

If the permit holder does not submit a new application at the time of the follow-up inspection, the inspector completes the relevant action in the chart below to make sure the operation closes or becomes permitted.

If the operation is a	Then the inspector
child day care operation	enters a new unregulated operation investigation by selecting *Illegal Operations* in the *Allegation Type* section on the *Intake Report* page in addition to completing all other required fields.
residential child care operation	contacts Statewide Intake to report the operation is operating without a valid permit.

The CCR staff assigned to the operation then closes the operation in CLASS.

If the operation submits an application at the time of an inspection, the inspector closes the operation that had the permit automatically revoked and creates a new operation in CLASS.

5822 Closing an Operation After an Automatic Revocation

Revision 24-2; Effective May 22, 2024

Procedure

If the permit has been automatically revoked, CCR staff follow the procedures below to close the operation.

1. An inspector conducts a follow up inspection at the operation per 5821 Conducting Follow-Up to an Automatic Revocation to verify that the operation is not caring for children. If the operation is caring for children, CCR staff follow procedures in 6530 Investigations of Unregulated Operations.
2. CCR staff close the operation in CLASS by entering the current date into the *Closure Date* field and using the appropriate closure reason per the procedures below.

Closure Reasons for Automatic Revocations

CCR staff select one of the following reasons on the *Application/Closure* page in CLASS to close an operation if the permit is automatically revoked:

1. *Auto-Revocation, Fees* if the automatic revocation is because of the operation's failure to pay the annual fee;

2. *Auto-Revocation, Background Checks – LH* if the automatic revocation is because of a listed family home's failure to submit the information required for a subsequent background check; or
3. *Auto-Revocation, BGCs/Fees – LH* if the automatic revocation is because of a listed family home's failure to:
    - submit information required for subsequent background checks; and
    - pay the annual listing fee.

6000, Investigations

6100, Overview of Investigations

Revision 23-4; Effective Nov. 30, 2023

All reports that allege failure to comply with statutes, administrative rules or minimum standards require some degree of investigation, except when specific conditions exist as noted within policy.

The investigator must complete an investigation of a report alleging possible risk to children promptly and thoroughly to ensure that children who are or will be in care at the operation are protected. This applies to child care operations that HHSC regulates or is responsible for regulating under Chapter 42, Human Resources Code.

Human Resources Code Section 42.044(c)

26 TAC Section 745.8405

6110 Types of Investigations

Revision 24-4; Effective Nov. 13, 2024

There are three types of intake reports:

Reports of Abuse, Neglect or Exploitation of a Child: The Department of Family and Protective Services (DFPS) investigates reports of abuse, neglect or exploitation that allege a child in care of an operation was or may be harmed because of an act or omission by a person working under the supervision of a child care operation. Such harm must meet the definitions of abuse, neglect or exploitation described in the Family Code and Texas Administrative Code. DFPS also investigates reports of exploitation that allege a person working under the auspices of an operation engaged in illegal or improper use of a child or used a child's resources for monetary or personal benefit, profit or gain. The operation where the alleged abuse, neglect or exploitation occurred may also be violating statutes, administrative rules or minimum standards.

Within this policy, any investigation that includes an allegation of abuse, neglect or exploitation of a child is a DFPS investigation.

Reports of Abuse, Neglect or Exploitation of an Adult: The Health and Human Services Long-Term Care Regulation's Provider Investigation (PI) department investigates allegations of abuse, neglect or exploitation of an elderly adult or an adult with a disability who resides in or is in the care of a residential child-care operation. The abuse, neglect or exploitation must meet the relevant definitions described in Chapter 48 of the Human Resources Code and any rules that further define the statutory definitions.

Within this policy, any investigation that includes an allegation of abuse, neglect or exploitation of an elderly adult or an adult with a disability is a PI investigation.

Reports of Non-Abuse, Neglect or Exploitation: CCR investigates reports that allege statute, administrative rules or minimum standards have been or are in violation. No allegation of abuse, neglect or exploitation is involved.

Within this policy, an investigation that only includes an allegation of statute, administrative rules or minimum standards, with no allegation of abuse, neglect or exploitation is an investigation.

Reference

Human Resources Code Sections 42.044(c); 48.252(b) and (c)

Family Code Section 261.001

26 TAC Sections 745.8401; 745.8403; 745.8405; 745.8407

26 TAC Chapter 711, Subchapter A

6120 Principals and Collaterals

Revision 22-5; Effective Nov. 4, 2022

Principals and Alleged Victims

A principal is any adult or child directly involved in an incident that CCR is investigating.

A principal child is also known as "an alleged victim". Not all non-abuse and neglect investigations involve alleged victims.

Examples of non-abuse and neglect investigations with alleged victims:

1. a child injured while in care;
2. an allegation that a caregiver's actions placed a specific child at risk, such as leaving a child unsupervised in a classroom;
3. an allegation that an operation did not give a child medication as prescribed; and
4. an unregulated operation investigation with an allegation that a specific child was physically disciplined.

Examples of non-abuse and neglect investigations without alleged victims:

1. an investigation of an unregulated operation and the only allegation is that the operation is operating without a permit;
2. an allegation of a physical site violation that did not cause harm or injury to specific children; and
3. failure to obtain a fire inspection within the required time frame.

Collaterals

A collateral includes any adult or child who is not directly involved in the incident but may be able to provide information regarding:

1. the incident under investigation;
2. a child or adult who was directly involved in the incident; or
3. type of care and supervision provided at the operation.

6130 Role of the Inspector

Revision 22-4; Effective Sept. 20, 2022

A CCR inspector who conducts an investigation becomes an investigator for purposes of CCR policies and procedures and:

1. responds to reports of possible violations of statute, administrative rules, or minimum standards that do not allege abuse, neglect, or exploitation (an investigation);
2. receives information about possible deficiencies a DFPS investigator noted during a DFPS investigation and cites deficiencies when warranted; and
3. follow ups on deficiencies cited during investigations and DFPS investigations and completes entries related to the follow-up in CLASS.

6140 Role of the Supervisor and the Supervisor's Designee

Revision 22-4; Effective Sept. 20, 2022

Other staff involved in an investigation may include the CCR supervisor and the supervisor's designees.

CCR Supervisor

The supervisor is responsible for all of the following:

1. coordinating the assignment of intakes to investigative staff;
2. approving the administrative closure of intake reports;
3. approving a change in priority for an investigation;
4. approving intensified monitoring or surveillance;
5. approving a recommended plan of action;
6. approving requests for assistance from other HHSC divisions or government agencies when the expertise of CCR staff is requested, such as providing guidance regarding when an unregulated entity may be subject to regulation;
7. ensuring that a safety plan is implemented, when the circumstances call for taking immediate safety measures;
8. ensuring that investigators conduct and document investigations according to policies and procedures;
9. ensuring that the inspector and supervisor follow procedures for recommending corrective action, adverse action, and judicial action;
10. arranging for other HHSC divisions or government agencies to review an investigation, as necessary;
11. approving extensions of time to complete an investigation, in accordance with policies and procedures; and
12. evaluating the need to upgrade an investigation to a DFPS investigation.

Supervisor's Designee

A supervisor may assign another supervisor or tenured inspector as a designee for the purposes of acting as a supervisor, including providing required supervisory approvals in the supervisor's absence.

A supervisor may assign a router or inspector as a designee for the purposes of routing and processing intakes under the supervisor's guidance.

See:

1220 Assigning a Designee in CLASS
1221 Maximum Number of Designees in CLASS

6200, Receiving, Assessing and Processing Intake Reports

6210 Reports Received from the Department of Family and Protective Services (DFPS)

December 2020

The Statewide Intake (SWI) division of the Department of Family and Protective Services (DFPS) receives and routes the following types of allegations regarding operations that are subject to regulation by Child Care Regulation (CCR):

- All reports that allege abuse, neglect or exploitation of children in care to the Child Care Investigations (CCI) division of DFPS;
- Some, but not all, reports that allege violations of CCR statute, administrative rules or minimum standards at child day care operations to CCR; and
- All reports that allege violations of CCR statute, administrative rules or minimum standards at residential child care operations to CCR.

When CCI receives from SWI a report of abuse, neglect or exploitation that CCI staff determine does not rise to the level of abuse, neglect or exploitation, CCI staff downgrade the intake and route it to CCR.

Texas Human Resources Code §42.042(c)
26 TAC §745.8407

Procedure

When SWI receives a report that does not involve an allegation of abuse, neglect or exploitation, but does involve an allegation of a violation of CCR statute, administrative rules or minimum standards at a child care operation, SWI staff:

- process the report as an Information and Referral (I&R) for an alleged violation of statute, administrative rules or minimum standards in the IMPACT case management system; and
- route the report to the appropriate HHSC router.

When CCI receives from SWI a report classified as abuse, neglect or exploitation that involves children or staff at a child care operation, but CCI determines the report does not involve an allegation of abuse, neglect or exploitation, CCI staff:

- downgrade the intake report to a Priority None (PN) in the IMPACT case management system and close the intake in IMPACT; and
- route the report to the appropriate HHSC router.

When routing intakes to CCR, both SWI and CCI staff do not assess whether the information violates CCR statute, administrative rules, or minimum standards or prioritize the report.

After the I&R or downgraded intake report is routed to the CCR office, the report becomes an intake report for CCR.

6211 Transferring I&R Information from IMPACT to CLASS

April 2021

Procedure

When an Information and Referral (I&R) is transferred from Statewide Intake (SWI), CCR staff routing the intake ensures that the following information is documented in CLASS from the I&R in IMPACT (if available):

1. Reporter's name, address and phone number;
2. Address of the operation that is the subject of the report or if the address is unknown, directions to the operation;

3. Phone number for the operation;
4. Allegations or a description of the concerns being reported; and
5. The following information about each child involved in the report:
    a. Child's name and date of birth or approximate age;
    b. Parent's or guardian's information, including phone numbers and address; and
    c. Names and numbers of collateral sources.

The CCR staff routing the intake assesses if the reporter should receive the results of the investigation. If the reporter meets any of the exceptions in 6640 Notifying the Reporter of the Results of the Investigation, CCR staff ensure that the *Reporter Results* box on the *Intake Persons* page in CLASS is not checked.

6212 Closing the Report in IMPACT

December 2020

Procedure

When an I&R is received, the supervisor or a designee verifies that the intake report associated with the I&R transferred is to CLASS.

Next, the supervisor, designee, or router closes the I&R in IMPACT, selecting *Closed and Reclassified* as the Reason Closed.

6220 Reports Received by CCR Offices

December 2020

CCR staff may take an intake report that involves a child day care operation, if the report does not involve abuse, neglect or exploitation or the death of a child.

CCR staff refer the following types of reports to Statewide Intake:

- all reports related to a residential child care operation;
- reports that include allegations of child abuse, neglect or exploitation for any operation type; and
- reports involving a child death for any operation type.

6221 Entering an Intake Report in CLASS

December 2020

Procedure

When CCR staff receives a report that a child day care operation has violated the minimum standards, the staff records the information in CLASS by completing all required fields in the *Intake Report* located under the *New Intake* tab.

6221.1 Information to Obtain When CCR Staff Receive a Report at a Local Office

April 2021

Procedure

Staff at the local CCR office must obtain as much information as possible, including, but not limited to:

1. the reporter's name, address, and phone number;
2. the address of the operation that is the subject of the report, or, if the address is unknown, directions to the operation;
3. the phone number for the operation, if known to the reporter;
4. the allegations or a description of the concern being reported;
5. information regarding how the reporter has obtained knowledge of the allegations;
6. the following information about each child involved in the report:
    a. whether the child's parent or guardian has concerns, if known to the reporter;
    b. the child's name and date of birth or approximate age, if known by the reporter; and
    c. the parent's or guardian's information; including phone numbers and address, if known by the reporter;
7. the caregiver's information, including name, address, phone number, and age, if known by the reporter;
8. the names and numbers of collateral sources, if known by the reporter; and
9. any other information relevant to the allegations that the intake worker considers important.

For information regarding how to document anonymous reports, self-reports, or reports that require special handing, see also: 6270 Special Types of Intake Reports.

6221.2 Reports Received by a Licensing Office that Do Not Meet Criteria for Investigation

September 28, 2018

Procedure

When a local office receives a report directly from the operation and the information obtained clearly does not meet the criteria for an investigation, staff document the following in CLASS as a monitoring *Chronology*:

- the name and work-related title of the person making the report; and
- the information received in the report.

If the staff taking the report is unsure whether the information obtained meets the criteria for an investigation, the staff consults with a supervisor to determine whether an intake report is needed.

Staff document a report received from a source other than the operation as an intake report regardless if it meets criteria for investigation. Staff follow policy and procedures in 6231.3 Intake Reports to Be Closed Without an Investigation (Administrative Closure) for reports that meet the criteria for closure.

6221.3 Encouraging a Reporter to Disclose His or Her Identity

April 2021

Procedure

When receiving a report in a CCR office, staff encourage the reporter to disclose his or her identity. Staff reassure the reporter his/her identity remains confidential. If the reporter chooses to remain anonymous, staff must inform the reporter that:

1. it may be more difficult to investigate the allegations without knowing the reporter's identity, because the investigator must be able to determine whether the allegations have a factual basis;
2. the investigator will not be able to contact the reporter if the investigator needs critical information that only the reporter can provide; and
3. CCR will not be able to provide the reporter with the results of the investigation.

6221.4 Entering Reports of Unregulated Operations

February 2020

Procedure

When entering a report of a possible unregulated operation, Licensing staff must search to determine whether the operation already exists in CLASS by using the *Operation Search* (located on the *Intake Report* page) to search for open and closed operations. If staff finds that the operation is listed, registered, or licensed, and there are no concerns of violations of minimum standards, staff closes the intake report administratively. If staff cannot find an existing operation, staff selects *New Operation* from the *Operation Search* page and enters all available information.

Entering an Intake Report for an Operation with a History of Operating Without a Permit

If the operation has a history of operating without a permit, Licensing staff re-opens the former operation and enters the investigation under the previous operation number. If more than one prior operation exists, Licensing staff re-opens the most recent operation.

6221.41 Entering Reports for Unregulated Operations Identified by the Unregulated Operations Unit

February 2020

The Unregulated Operations Unit is responsible for identifying operations that are subject to regulation and operating without a permit. The unit identifies these operations by:

- conducting searches to identify potential unregulated child care operations; and
- gathering all available identifying information to enter a new intake report.

Government Code §531.0084

Procedure

Entering Reporter Information for Unregulated Operations Identified by Licensing Staff

Upon identifying an unregulated operation through a search, Licensing staff selects the *CCL Search* check box on the *Reporter Information* page to search for his or her name.

Documenting the Allegation Narrative for Unregulated Operations Identified by Licensing Staff

In addition to documenting the information outlined in 6222.1 Information to Obtain When Receiving a Report at a Local Licensing Office, Licensing staff entering an intake report for an illegal operation identified by Licensing staff must document the following in the *Allegation Narrative the Intake Report* in CLASS:

1. how Licensing staff identified the unregulated operation;
2. a summary of the information obtained through the search, including any identifying information;
3. which searches in 6531 Conducting Due Diligence Searches, the Licensing staff conducted and the outcome of those searches; and
4. whether any information found through the search indicates an elevated risk to children.

See also:

6531 Conducting Due Diligence Searches

6221.5 Searching and Linking Victim Information (Residential Child Care Only)

Revision 23-4; Effective Nov. 30, 2023

CCR staff complete an IMPACT person search in CLASS for every identified victim before the intake progresses to the investigation stage or is closed.

Procedure

When entering victim information on the *Intake Victim and Parent Details* page in CLASS, CCR staff complete an IMPACT person search in CLASS by:

1. entering all required information about each child involved in the report on the *Intake Victim and Parent Details* page as outlined in 6211 Transferring I&R from IMPACT to CLASS;
2. clicking the *Save and Search* button;
3. reviewing person information displayed in the *Search Criteria* section on the *IMPACT Victim Search* page and entering additional search criteria, if known;
4. clicking the applicable checkbox(es) to select the criteria to search;
5. clicking the *Search* button to initiate the search;
6. if an appropriate match is found, selecting the radio button next to the matching person and click the *Save & Link* button; and
7. if an appropriate match is not found, selecting the *No Match Found* button.

When conducting victim searches, CCR staff use the victim's name, date of birth, and Person ID (PID) (if known) for determining if a PID is a match to the CLASS person record. If the search returns results, CCR staff determine whether the person listed in the search result is the same person by comparing the information in each search result to the victim's information, including:

1. name;
2. IMPACT PID, if known;
3. date of birth (DOB); and
4. other identifiers or personal information, if needed.

CCR staff may use other identifiers or person information displayed in the search results on the IMPACT Victim Search page as secondary criteria for confirming a match; however, CCR staff should not rely on that information to be accurate or current.

When a match is found, CCR staff link the person record to the victim. If there are no possible matches or none of the search results match the victim's information, CCR staff select "No Match Found". If CCR staff are unsure if a person record is a match, consult with a supervisor.

6222 Referring Reports Received in Licensing Offices to Statewide Intake

September 28, 2018

The Licensing office must forward the report to Statewide Intake (SWI) for entry in the IMPACT system if the report involves:

- an allegation of abuse, neglect, or exploitation; or
- a residential child care operation, except if the report is created to handle a match on the sex offender report.

Procedure

If the local Licensing office receives a report regarding an allegation of abuse, neglect, or exploitation or a residential operation, staff must encourage reporters to report to Statewide Intake by:

- calling DFPS SWI at 1-800-252-5400; or
- reporting online, either by using SWI's secure website Texas Abuse, Neglect, and Exploitation Reporting System or using the DFPS E-reporting system, if the reporter is a child care provider.

6230 Assessing an Intake Report

September 28, 2018

All intake reports require an evaluation to determine:

1. whether the information involves allegations of abuse, neglect, or exploitation;
2. whether the information involves possible violations of the statute, administrative rules, or minimum standards;
3. the immediate safety of children;
4. the degree of risk to children;
5. whether the operation is subject to a Licensing investigation; and
6. the appropriate priority.

6231 Assessing an Intake Report for Type of Investigation

September 28, 2018

Each intake report must be assessed to determine whether the report should be:

1. assigned a priority and progressed to an investigation;
2. referred to DFPS for an abuse, neglect, or exploitation investigation; or
3. closed without conducting an investigation.

6231.1 Intake Reports to Be Investigated by CCR

February 2020

CCR investigates the report if the report does not contain an allegation of abuse, neglect, or exploitation or the death of a child, but does contain an allegation involving:

1. a violation of statute, administrative rules, or minimum standards;
2. a person or operation that is subject to regulation providing care to children without the proper permit, unless the location of the operation is unknown;
3. an operation with a permit is providing care to more children than authorized by the permit; or
4. an immediate risk of danger to the health or safety of children.

See also:

6240 Assessing an Intake Report for Priority
6250 Assessing an Intake Report for Allegation Types in CLASS
6276 Reports Requiring Special Handling

6231.11 Reports Received for Listed Family Homes Caring for Related Children Only

May 2021

CCR investigates a report about a relative-only listed family home if the allegation involves:

1. the caregiver administering medication in violation of Texas Human Resources Code §42.065;
2. the caregiver providing care for unrelated children; or
3. an immediate risk of danger to the health or safety of a child being cared for in the home.

Human Resources Code §42.065

6231.12 Reports Investigated by a Child-Placing Agency

September 28, 2018

At CCR's request, the child-placing agency (CPA) investigates reports of violations of minimum standards in the CPA's homes.

See 6510 Investigations Involving Homes Regulated by a Child-Placing Agency (CPA).

6231.2 Intake Reports to Be Investigated by DFPS as Abuse, Neglect or Exploitation

May 2021

CCR does not investigate reports that include allegations of abuse, neglect or exploitation or incidents involving a child fatality. The CCR supervisor or designee refers a report to DFPS if CCR receives an intake report that contains the following:

1. an allegation of abuse, neglect or exploitation;
2. an allegation that a caregiver is sleeping when the caregiver is required to be awake to provide 24-hour awake-night supervision at a residential child care operation that serves children in DFPS conservatorship and that cares for seven or more children; or
3. a child fatality.

Texas Family Code §261.001

6231.21 Upgrading an Intake Report to an Abuse, Neglect, or Exploitation Intake Report

September 28, 2018

A report may need to be referred to DFPS for investigation if:

- the supervisor determines that the information in the intake report constitutes an allegation of abuse, neglect, or exploitation; or
- after initiating the investigation, the investigator assigned to investigate the report learns additional information about the incident that constitutes an allegation of abuse, neglect, or exploitation.

Procedure

If a supervisor decides that the information in the report or the information gathered during an investigation constitutes an allegation of abuse, neglect, or exploitation, the investigator, supervisor, or designee must:

- notify the appropriate DFPS supervisor that the investigation is being referred to DFPS for investigation;
- call the worker line for SWI support staff and provide any new information that was obtained during the investigation; and
- request that SWI enter the information in the IMPACT case management system as an intake report for abuse, neglect, or exploitation.

If the DFPS supervisor disagrees that the intake report should be upgraded to an abuse, neglect, or exploitation report, the Licensing supervisor or designee consults the DFPS Program Administrator or designee for a final decision.

Investigation Has Not Been Initiated

If the investigator has not yet initiated an investigation, the investigator follows the procedures in 6231.42 Administratively Closing an Intake Report in CLASS.

Investigation Has Been Initiated

If the investigator has initiated an investigation before determining that the investigation needs to be referred to DFPS, the investigator:

1. documents all contacts and marks each minimum standard that the investigator chose to evaluate as *Compliant on the Standards Details* page in CLASS if an inspection has already been conducted;
2. deletes the minimum standards if an inspection has not been conducted;
3. sends the Investigation Letter (Form 2896) to the operation and informs the operation that the investigation is being referred to DFPS for an investigation of abuse, neglect, or exploitation;
4. documents the investigation number of the abuse, neglect, or exploitation investigation and the reason for closure in the *Explanation of the Disposition* box on the *Investigation Conclusion* page in CLASS;
5. closes the investigation in CLASS after ensuring that the intake report for abuse, neglect, or exploitation has been entered in IMPACT; and
6. notifies the DFPS investigator of the abuse, neglect, or exploitation investigation of any contacts made as part of the original investigation.

6231.3 Intake Reports Identified by the Unregulated Operations Unit

May 2021

Procedure

CCR may investigate or administratively close an intake report regarding an unregulated operation identified by the Unregulated Operations Unit depending on the amount of information CCR staff finds about the operation.

CCR staff only investigates reports of unregulated operations with a known physical location or if there is information that is sufficient to identify the location.

CCR staff administratively closes reports of potential unregulated operation if a physical location cannot be identified after following the procedures detailed in one of the following documents located on the CCR SharePoint page:

- *Unregulated Operation Search Process with Email ONLY*; or
- *Unregulated Operation Search Process with Telephone ONLY*.

See also:

6221.4 Entering reports of Unregulated Operations
6231.42 Administratively Closing an Intake Report in CLASS

6231.4 Intake Reports to Be Closed Without an Investigation (Administrative Closure)

February 2020

Licensing administratively closes an investigation when the supervisor or designee determines the information in the report:

1. clearly reflects that there is no violation of law or minimum standards to investigate, including:
    - some types of incidents that operations are required to self-report; and
    - anonymous reports determined not to have any factual basis;
2. clearly reflects that another HHSC division, another state agency, or law enforcement has investigative jurisdiction;
3. has already been investigated in a closed investigation (see 6273 Repeated Reports with No New Allegations); or
4. contains information about an incident that occurred in the past (see 6274 Reports of Incidents that Occurred in the Past); or
5. does not identify or provide information that is sufficient for Licensing to identify a location for an alleged unregulated operation (see 6231.3 Intake Reports Identified by the Unregulated Operations Unit).

6231.41 Incidents Self-Reported by Operations that May Not Require an Investigation

February 2020

Minimum standards require operations to report certain incidents, even though an investigation may not be required under certain circumstances.

Incidents that must be self-reported, but may not require investigation include:

1. an employee or child at an operation contracts a communicable disease;
2. a disaster or emergency causes an operation to close or renders part of the operation unsafe or unsanitary;
3. a child in care of a residential operation is arrested or indicted for a crime;
4. a child is absent from a residential operation; and

5. a child in care is involved in a minor accident.

Texas Human Resources Code §42.063

26 TAC §743.201; 744.305; 746.305; 747.303; 748.303; 749.503

6231.42 Administratively Closing an Intake Report in CLASS

February 2020

Procedure

The investigator, supervisor, or designee closes the report in CLASS by entering the following information under the *Intake Status* section on the *Intake Report* page:

a. the date of the administrative closure;
b. the reason for closure; and
c. the full name of the supervisor who approved the closure.

6231.43 CLASS Options for Closing an Intake Report

February 2020

An intake report may be administratively closed without choosing a priority. The chart below outlines the appropriate CLASS options used to close an intake report.

Reasons for Closing an Intake Report in CLASS

Reason Closed:	Explanation
Not subject to investigation	The intake report is closed because the information in the intake report: • does not constitute a possible violation of minimum standards; or • is regarding an unregulated operation with insufficient information to identify a physical location.
Not subject to regulation	The intake report is closed because it and the investigation are outside the jurisdiction of Licensing and must be handled either by another authorized entity, such as law enforcement; another state agency or department such as the Department of State Health Services (DSHS) or Long-Term Care Regulatory, or by another state.
Re-entered as A/N	The intake report is closed because the information was reentered as an intake report for an investigation of abuse, neglect, or exploitation, and the intake report is not able to be linked to the abuse, neglect, or exploitation investigation.
Repeated reports	The intake report is closed because there is an existing investigation in CLASS with the same allegations that has already been investigated and closed.

See also:

6230 Assessing an Intake Report
6231 Assessing an Intake Report for Type of Investigation
6271.1 Evaluating the Factual Basis of an Anonymous Intake Report
6273 Repeated Reports with No New Allegations

6240 Intake Prioritization

Revision 25-1; Effective Feb. 7, 2025

Day Care Regulation

For each intake report that warrants an investigation, the investigator must assess the report to determine the correct priority. This assessment must be completed quickly enough to meet requirements for time frames for initiating investigations.

All intake reports are assigned priorities based on:

1. information available at the time of intake;
2. the presence of current threats to the child's immediate safety;

3. degree of harm the child has sustained or may sustain in the next 12 months; and
4. the allegation that presents the greatest risk to the child if multiple allegations are reported.

Prioritizing an Intake Report That Involves an Unregulated Operation

An intake report that involves an operation operating without a permit is prioritized according to the same policies as an intake report that involves a regulated operation if there are allegations that children are at risk.

Residential Child Care Regulation

All intakes must be assigned a priority based only on:

1. intake details; and
2. the allegation detail that meets the definition of the highest priority level if there are multiple allegations within the intake.

6241 Classifying the Priority of the Intake Report

August 2020

The investigator, supervisor, or designee must select the correct CLASS priority from the dropdown list under the *Priority* section in the *Intake Report*.

The chart below outlines the appropriate CLASS options to prioritize intake reports. See the Definitions of Terms for the definitions of the following, which are used in the chart below:

- Serious injury
- Substantial harm

Intake Priority CLASS Options	Explanation
Priority 1: Violation of the law or minimum standards that pose an immediate risk to children	A report of a violation of a law or minimum standard places children in care at immediate risk of serious of substantial harm.
Priority 2: Injury or serious mistreatment of a child	A report that a child in care is disciplined, punished, or physically restrained in a manner that is prohibited by minimum standards, including a report that a child in care sustained a serious injury as a result of discipline, punishment, physical restraint, or other type of mistreatment prohibited by minimum standards.
Priority 2: Serious Accidental Injury	A report that a child suffered a serious accidental injury (i.e., a serious injury that is the result of an accident) and the injury may be a result of a violation of minimum standards.
Priority 2: Serious safety or health hazards	A report of a violation of the minimum standards related to safety or health that may pose a risk of substantial harm to children in care. OR A report that a person who is present at the operation has criminal or Central Registry history that may expose children in care to risk of harm. This includes: • a person who has recent arrest history that poses a risk of harm to children and whose arrest has not gone through the justice system; • a person who has recent Central Registry history and the person has not gone through due process; and • a person on the sexual offender registry whose address is an exact match to the operation's address. OR A report that an alleged unregulated operation: • meets any of the criteria above; • has a history of being investigated for operating without a permit; • was previously listed, licensed, or registered and closed voluntarily or by adverse action; or • is caring for more than 12 unrelated and related children.
Priority 2: Serious supervision problems	A report of a violation of the minimum standards related to supervision that may pose a risk of substantial harm to children in care.

Intake Priority CLASS Options	Explanation
Priority 3: Illegal operations with no other allegations (RC only)	A report that care is being provided to children by a residential care operation that does not have a permit, may be subject to regulation, and there are no other allegations.
Priority 3: Minor violation of the law or minimum standards that involve low risk to children	A report of a violation of a law or minimum standard that poses low risk of harm to the health or safety of children in care. OR Risk factors exist that indicate children may be at risk of harm. Risk factors include, but are not limited to: • minor injuries that are accidental in nature and may indicate supervision problems; and • a pattern of incidents that normally do not require an investigation (such as repeated runaways). OR A report of a serious injury or medical incident that: • contains information in the intake report that the parent or guardian has concerns regarding supervision or safety; and • is not a self-report; and • does not indicate the serious injury or medical incident is the result of a minimum standards violation.
Priority 5: CPA internal investigation	A report that is assigned to the child placing agency as an internal investigation.
Priority 5: Illegal operations with no other allegations (DC only)	A report that care is being provided to children by a day care operation that does not have a permit but may be subject to regulation, and there are no other allegations.
Priority 5: Desk review	A self-report of a minor violation of minimum standards that: • does not contain information in the intake report that the parent or guardian has concerns regarding supervision or safety; and • may be investigated without an inspection. OR A self-report of a serious injury that: • does not contain information in the intake report that the parent or guardian has concerns regarding supervision or safety; • does not indicate that the serious injury is the result of a minimum standards violation; and • may be investigated without an inspection.

6242 Changing the Priority of an Investigation in CLASS

September 28, 2018

If necessary, the CLASS priority can be changed once the report has been progressed to an investigation in CLASS. The supervisor or designee changes the priority by making the following changes in the *Priority Change* section on the *Investigation Main* page in CLASS:

a. entering the date the priority is changed in the *Priority Date Change* field;
b. selecting the new priority from the *Priority* drop-down list; and
c. documenting the reason for the priority change and the full name of the supervisor who approved the change in the *Reason* narrative box.

For changing the priority of an investigation assigned a Priority 5, see 6243 Re-Classifying a Priority 5 Investigation, below.

6243 Re-Classifying a Priority 5 Investigation

February 2020

A Priority 5 investigation is re-classified as a Priority 4 investigation in CLASS when one of the following types of investigations requires an inspection:

a. an unregulated operation with no other allegations (DC only);
b. a CPA internal investigation; or
c. a desk review.

6250 Assessing an Intake Report for Allegation Types in CLASS

May 2020

The investigator, supervisor, or designee must review each report and select the appropriate allegation types on the *Intake Report or Investigation Main* page in CLASS, depending on when staff becomes aware of the allegation.

Procedure

Regardless of the priority or whether an intake report is assigned for investigation, the *Allegation Type* check boxes must accurately reflect the allegations contained in the intake report. If additional allegations arise during the investigation, CCR staff check any additional boxes related to those allegations on the *Investigation Main* page. The chart below outlines the allegations of violations of minimum standards in CLASS:

Allegation Types in CLASS	Explanation
Standard/Law Violation	Allegation of a violation of a law, administrative rule, or minimum standard.
Illegal Operation	Allegation that care is being provided to children by an operation that does not have a permit and the operation may be subject to regulation.
Suicide Attempt (RC only)	Allegation that a child attempted suicide while in care at a residential operation.
Child Death (DFPS only)	A child dies while in the care of an operation or an operation that is subject to regulation.
Serious Harm/Injury	Any physical injury to a child that requires medical treatment and resulted or may result in impairment to the child's overall health or well-being.
Near Fatal injury	Near fatal injuries (previously known as critical injuries) are a subset of serious injuries in which the child would likely have died as a result of the injury or medical condition if the child did not get medical attention. In most circumstances, medical intervention includes admittance to an intensive care unit.
Child Arrest (RC only)	A child in care of a residential operation is arrested.
Illness Requiring Hospitalization	A child in care of an operation has an illness requiring hospitalization.
Child Run Away (RC only)	A child in care of a residential operation runs away from the residential operation.
Caregiver Drug Abuse (RC only)	Allegation that a caregiver in a residential operation is using drugs.
Domestic Violence (RC only)	Report from law enforcement that law enforcement responded to a domestic violence call at a foster home.
Endangering Person	Allegation that a sex offender's address listed in the sex offender database matches a child care operation.
Child Sexual Aggression (DFPS only)	Allegation of sexual behavior in which a child takes advantage of a younger or less powerful child through seduction, coercion, or force. Must document the number of children involved.
Child on Child Physical Abuse (DFPS only)	Allegation of a child-to-child behavior that results in a child sustaining observable substantial harm requiring medical treatment. Must document the number of children involved.

6251 Allegation Involving a Child Younger Than 6 (Child-Placing Agency Only)

Revision 24-3; Effective Aug. 15, 2024

For an investigation of a verified foster home or approved adoptive home, CCR staff must indicate if the report involves a child younger than 6 at the time of the incident by selecting the appropriate radio button on the Intake Report or Investigation Main page in CLASS.

Procedure

Staff select Yes if a child is:

1. in care of the child-placing agency, excluding a biological child;
2. directly involved in the incident or allegation being investigated; and

3. younger than age 6 at the time of the incident regardless of when the incident was reported.

Staff select No in all other instances.

Reference

Human Resources Code Section 42.044

6260 Identifying New Reporters During an Investigation

December 2020

During an investigation, a person is identified as a new reporter if the person provides the investigator with information regarding new allegations that are not being investigated in the current investigation. These new allegations may involve:

1. abuse or neglect; or
2. a minimum standard violation unrelated to the allegations currently being investigated.

Procedure

The chart below details what CCR staff do when learning of a new allegation during in investigation.

If the new allegation is related to…	Then the investigator…
abuse or neglect,	contacts SWI to enter;
a minimum standards violation at a child day care operation,	enters the information and a new *Intake Report* in CLASS;
a minimum standards violation at a residential child care operation,	contacts SWI to enter the information as in I&R.

Linking the New Allegations to an Existing Investigation

After the new allegations are entered into a new intake and routed to CCR staff, CCR staff follow guidance in 6272 Multiple Intake Reports Received for the Same Operation when determining if the new intake should be linked to the existing investigation.

6261 Confidentiality of the Reporter's Identity

Revision 23-4; Effective Nov. 30, 2023

The name of the person who made the report and any information that identifies the reporter is confidential and may not be revealed. If multiple reporters report the same or similar information, each reporter has the right to confidentiality.

A person who supplies new allegations during an investigation is also a reporter who has the right to confidentiality.

Human Resource Code Section 40.005

Government Code, Title 5, Ch. 552, Texas Public Information Act

26 TAC Section 745.8483(2)

6262 Responding to Requests for the Reporter's Identity

September 28, 2018

Procedure

If an operation's director, administrator, or staff members know or suspect a reporter's identity, the investigator does not confirm or deny the identity of the reporter. Under law, the reporter's name and any identifying information about the reporter are protected.

If any employee of an operation requests the identity of the reporter, the investigator refers the employee to the Attorney General's Opinion, Open Records Decision No. 176 PDF Document.

6263 Protecting a Reporter's Confidentiality During an Investigation

September 28, 2018

Procedure

While visiting an operation, an investigator must ensure that individuals who are not employed by HHSC do not have access to any confidential information that is contained on a state-issued cell phone, tablet PC, in the intake report, or in handwritten notes.

External documentation that identifies a person as a reporter, such as an intake report, may not be taken to the operation.

6270 Special Types of Intake Reports

September 28, 2018

6271 Anonymous Intake Reports

September 28, 2018

An intake report is "anonymous" if the reporter does not provide a name or contact information.

6271.1 Evaluating the Factual Basis of an Anonymous Intake Report

Revision 23-4; Effective Nov. 30, 2023

If a reporter of an intake report decides to remain anonymous and the intake report does not contain allegations that the health or safety of children is at risk, the investigator evaluates if there is any factual basis to the intake report by:

- evaluating the operation's compliance history for similar allegations and deficiencies; and
- contacting the operation and collateral sources.

Human Resources Code Section 42.042(c)

26 TAC Sections 745.8415; 745.8417

Procedure

If the investigator is able to determine that there is no factual basis for the allegations in the intake report, the investigator consults with the supervisor to determine the appropriateness of administratively closing the intake report.

See 6231.4 Intake Reports to Be Closed Without an Investigation (Administrative Closure).

6271.2 Processing an Anonymous Intake Report in CLASS

Revision 23-4; Effective Nov. 30, 2023

An anonymous intake report may not be published on the CCR website if there are no findings of violations (deficiencies).

Human Resources Code Section 42.042(c)

26 TAC Section 745.8417

Procedure

CCR investigators must investigate an anonymous intake report separately from intake reports where a reporter's identity is known and confidential. Moreover, CCR staff must not link the anonymous report in CLASS to an intake report in which the reporter's identity is known and confidential.

To prevent publication online, CCR staff must check the *Anonymous* checkbox on both the *Intake Persons* page in the Intake Report and the *Investigation Persons* page within the investigation in CLASS.

6272 Multiple Intake Reports Received for the Same Operation

September 28, 2018

Licensing investigators may investigate multiple intake reports received for the same operation as one investigation by linking the investigations when:

1. two or more intake reports are about the same incident, unless the second intake report also contains new allegations that cannot be adequately investigated within the required time frames of the first intake report;
   Example 1: Both the operation and the parent report that a child broke his arm, and the reports are received within a day of each other. The two reports must be investigated as one investigation.
   Example 2: The operation reports that a child broke his arm. Twenty days later, the parent reports that the child broke his arm and the playscape he was playing on is in disrepair. The two reports may be investigated as separate investigations if the investigator does not have enough time to adequately address the allegations of broken equipment within the remaining time of the investigation.
2. two or more intake reports are received before Licensing conducts an inspection on the first intake report and the allegations are related to the same standards, same group of children, or same staff member;
   Example 1: Two incidents happen on separate days but both involve injuries to children, so the same standards are evaluated.
   Example 2: One report states that the preschool room has too many children and the second states the preschool room is dirty.
   Example 3: One report states that the staff person in the infant room does not change diapers when needed, and the second report states that the same staff person in the infant room leaves the infants in the cribs all day.

Licensing must base the initiation date and other required time frames for the investigation on the intake report with the earliest intake date and time.

Exception

Licensing investigators must always investigate an intake report in which the reporter chooses to remain anonymous separately from an intake report that is received with the reporter known and confidential.

See 6271.2 Processing an Anonymous Intake Report in CLASS.

Texas Human Resources Code §42.042(c)

6272.1 Linking Investigations in CLASS

September 28, 2018

Prior to linking two or more intake reports in CLASS, Licensing staff must ensure that:

1. the intake report with the earliest date and time has been progressed to an investigation in CLASS (considered to be the active investigation); and
2. all subsequent intake reports involved in the linking must be completed according to policy and remain as an intake report in CLASS.

Procedure

Once these steps have been conducted, Licensing staff links the subsequent intake reports to the active investigation by:

1. selecting the check box by *Intake Complete* on the *Intake Report*;
2. selecting the check box by *Link to Active Investigation* on the *Intake Report* and clicking Save; and
3. click on the *Date Received* for the active investigation.

The priority of the active investigation should reflect the greatest risk in each of the linked intake reports.

6273 Repeated Reports with No New Allegations

September 28, 2018

Licensing does not investigate repeated reports. A repeated report is an intake report that:

- contains allegations that have previously been investigated; and
- does not contain new allegations that have not previously been reported or investigated.

Procedure

If Licensing receives a repeated report, the investigator consults with the supervisor to determine whether to take one of the following actions:

- If the reporter is the same as the original reporter, the investigator contacts the reporter to obtain information regarding his or her previous report and explores the reporter's reason for calling again.
- If the reporter did not previously report the allegation, the investigator contacts the reporter and explains that the allegation has previously been reported and investigated.

If the investigator determines that there is no basis for an investigation, the investigator:

- consults with the supervisor to obtain approval to administratively close the intake report with no investigation; and
- documents the supervisory approval and reason for closure in the CLASS system according to the policies and procedures in 6231.42 Administratively Closing an Intake Report in CLASS.

Notifying the Reporter of the Results

If the investigator obtains supervisory approval to close the intake report without investigation and the reporter has requested to be notified about the outcome of the report, the investigator:

- notifies the reporter that because the allegations have already been investigated, another investigation will not be conducted; and
- refers the reporter to the previous investigation on the CCL website.

6274 Report of Incidents that Occurred in the Past

September 28, 2018

If an investigator receives information about an incident that happened in the past, the investigator gathers as much information as possible to assess the need for investigation.

Procedure

In deciding whether to investigate, the investigator considers the following questions:

1. How long ago did the incident occur?
2. What motivated the reporter to report now?
3. Are current staff at the operation the same staff who were present at the time of the incident?
4. Is the child who was involved in the incident still being cared for at the operation?
5. Did other persons witness the incident?
6. Is other information or evidence (such as photographs) available to help determine whether the violation occurred?
7. Is there a current risk to other children in care?
8. Were there any subsequent problems?

The investigator must consult with a supervisor to determine whether an investigation is required. All consultation with the supervisor must be documented in CLASS.

If it is determined that an investigation is not required, the intake report is closed without an investigation.

See also: 6231.3 Intake Reports to Be Closed Without an Investigation (Administrative Closure

6275 Incidents Reported by an Operation (Self-Reports)

April 2021

An intake report is identified as a *Self Report* if the director, administrator, or other representative of the operation reports an incident that occurred at the operation.

The CCR staff who processes the intake report must identify the report as a *Self Report* in CLASS to ensure that the intake report is identified as a *Self Report* on the CCR website.

Procedure

In CLASS, the staff identifies an intake report as a self-report by checking the Self Report check box on:

- the *Intake Report* page; and
- the *Investigation Main* page.

6276 Reports Requiring Special Handling

September 28, 2018

The following check boxes must be selected either in the intake report or in the investigation in CLASS, as appropriate:

1. *Sensitive*
2. *Media Attention*
3. *Disaster Relief*
4. *H1N1*

6276.1 Processing Sensitive Intake Reports

September 28, 2018

An intake report or investigation is considered sensitive when:

1. The situation involves a high profile individual such as a judge, legislator, or district attorney;
2. The situation has significant media interest or coverage; or
3. A DFPS or HHSC employee is a principal in the situation.

Processing Sensitive Intake Reports in IMPACT

Procedure

SWI staff is responsible for identifying a report (an I&R) in IMPACT as containing sensitive information by selecting the *Sensitive Case* check box in the I&R.

Processing Sensitive Intake Reports in CLASS

Procedure

A report of violations of statute, administrative rules, or minimum standards may be identified as containing sensitive allegations in CLASS.

If the SWI staff selects the *Sensitive Case* check box in the intake report or I&R in IMPACT, the *Sensitive* check box is automatically checked in the *Intake Report* in CLASS.

If the SWI staff did not select the *Sensitive Case* check box in IMPACT, the investigator may identify the report in CLASS as sensitive by selecting the Sensitive check box in the Intake Report or on the *Investigation Main* page in CLASS, depending on when the investigator becomes aware of the sensitive information.

6276.2 Processing Intake Reports Receiving Media Attention

September 28, 2018

The *Media Attention* check box is used to indicate when an investigation has received or may receive attention from the media.

Processing Intake Reports Receiving Media Attention in IMPACT

Procedure

SWI staff is responsible for identifying a report (an I&R) in IMPACT as receiving media attention by selecting the Sensitive Case check box in the I&R.

Processing Intake Reports Receiving Media Attention in CLASS

Procedure

A report of may be identified as containing allegations receiving media attention in CLASS by selecting the *Media Attention* check box on the Intake Report or on the *Investigation Main* page in CLASS, depending on when the investigator becomes aware of the media attention.

6276.3 Processing Intake Reports Involving Disaster Relief

September 28, 2018

The *Disaster Relief* indicators are used to identify intake reports or investigations involving a disaster, such as a hurricane or other natural disaster.

Processing Intake Reports Involving Disaster Relief in IMPACT

Procedure

SWI staff is responsible for identifying a report (an I&R) in IMPACT as involving a disaster by selecting the appropriate *Disaster Relief* option in the I&R.

Processing Intake Reports Involving Disaster Relief in CLASS

Procedure

A report may be identified as involving a disaster in CLASS by completing the following fields on either the Intake Report page or the Investigation Main page in CLASS depending on when the investigator becomes aware that the report involves a disaster:

1. *Disaster Relief* check box
2. *Disaster Type* drop-down box
3. *Disaster Name* field

6276.4 Processing Intake Reports Involving H1N1

September 28, 2018

The *H1N1* check box is used to indicate when an intake report contains information that either an employee of, or a child in care of, a child care operation has contracted the H1N1 virus.

Procedure

The Licensing staff may identify that the intake report involves the H1N1 virus by selecting the *H1N1* check box on the *Intake Report* page or on the *Investigation Main* page in CLASS, depending on when the investigator becomes aware that the report involves the H1N1 virus.

Texas Human Resources Code §42.063

6280 Referring a Report of Abuse, Neglect, or Exploitation for Investigation When New Allegations are Received During an Investigation

September 28, 2018

A Licensing investigator must immediately refer allegations of abuse, neglect, exploitation or death of a child to the DFPS Statewide Intake (SWI) division or to another responsible agency when the investigator becomes aware of the allegations, and determines that the allegations have not previously been reported.

The allegations must be reported regardless of if the child is in care of a regulated operation and if the alleged perpetrator is under the auspices of an operation.

Texas Family Code §261.001

15 TAC §351.503(g)

40 TAC §700.479

Procedure

A Licensing investigator may become aware of new allegations of abuse or neglect of a child through:

1. an inspection of the operation;
2. an investigation of a violation of minimum standards;
3. a media outlet; or
4. a call to the Licensing office.

The following chart shows which investigating agency to refer a report of abuse or neglect of a child, depending on the relationship of the alleged perpetrator to the child.

If the person alleged to have abused or neglected the child is:	Refer to:
A person working under the auspices of an operation, including a foster parent who is providing care to a related child in care; A person who does not have a familial relationship, but lives in the same household as the child; A caregiver related to the child through either a biological or adoptive relationship, according to HRC 42.002(16); or A person employed by a school, including a school located on the same campus as a regulated operation.	SWI (DFPS)
A person who does not work under the auspices of an operation, does not live in the same household as the child, does not have a familial relationship with the child, and is not an employee of a school.	Law enforcement
A person employed by a hospital or nursing home, including an acute unit located on the same campus as a regulated operation.	HHSC Long-Term Care
A person employed at a home or operation regulated by another state agency.	The state agency which regulates the operation

Texas Human Resources Code §42.002(16)

6300, Preparing for the Investigation

6310 Preparing the Investigation in CLASS

September 28, 2018

Investigators must complete certain tasks in CLASS in preparation of initiating the investigation.

6311 Progressing an Intake Report to an Investigation in CLASS

September 28, 2018

Procedure

The investigator progresses an intake report to an investigation in CLASS once the investigator or supervisor determines that the information in the intake report is subject to investigation.

6312 Conducting the Initial Investigation Staffing, Residential Child Care Only

Revision 24-4; Effective Nov. 13, 2024

For each P1 and P2 investigation, the supervisor and investigator complete an Initial Investigation Staffing, which occurs:

- before the investigator initiates the investigation; or
- no later than five days after the date the intake was received if the staffing cannot occur before the initiation.

The supervisor and investigator document the staffing with the Investigation Staffing Template on the CCR SharePoint site.

6312.1 Creating the Manual To-Do for the 20-Day Investigation Conclusion Staffing (Residential Child Care Only)

Revision 23-3; Effective Sept. 22, 2023

Procedure

Within one day of the Initial Investigation Staffing, the investigator and supervisor create a manual To-Do in CLASS to set a reminder of the date of the 20-Day Investigation Conclusion Staffing. The investigator and supervisor enter the scheduled date of the 20-Day Investigation Conclusion staffing as the due date for the To-Do. If the 20th day lands on a weekend or holiday, the investigator and supervisor enter the due date for the last work day prior to the 20th day.

The investigator and supervisor use this language for the To-Do description: “20-Day Investigation Conclusion Staffing due by [ENTER DUE DATE].”

6313 Reviewing the Intake Report Narrative and Determining the Allegations

Revision 23-3; Effective Sept. 22, 2023

After being assigned an investigation, the investigator reviews the *Allegation Narrative* in the *Intake Report* in CLASS. The investigator reviews the narrative to identify each allegation of a violation of statute, administrative rule, or minimum standard.

Following the review of the *Allegation Narrative*, the investigator enters the following information in CLASS:

- a summary of each allegation; and
- the specific statutes, administrative rules or minimum standards to evaluate during the investigation.

Procedure

The investigator reviews the *Allegation Narrative* before initiating the investigation and completes the CLASS entries before linking the investigation to an inspection form in CLASS. The summary of each allegation and the statutes, administrative rules, or minimum standards being evaluated is automatically entered on CLASS Form 2936 Child-Care Facility Inspection once the investigator links the investigation to an inspection.

6313.1 Writing the Allegation

Revision 23-3; Effective Sept. 22, 2023

The investigator documents a concise summary describing each allegation that the investigator must investigate under the *Allegations* section on the *Investigation Main* page in CLASS.

Procedure

When writing an allegation, the investigator avoids:

a. including first and last names of children or adults;
b. including other identifying information of children, such as specific age or gender;
c. using abbreviations of words or phrases;
d. using internal jargon, such as “victim”; and
e. using inflammatory or prejudicial words or phrases.

When writing an allegation, the investigator:

- uses good grammar and proper spelling; and
- is concise, yet descriptive.

Examples:

Incorrect: It is alleged that a child was left alone by his caregiver and was crying and afraid.

Incorrect: It is alleged that a 2-year-old male was abandoned and terrified in his classroom by an inattentive teacher.

Acceptable: It is alleged that a caregiver left a young child unattended in a classroom.

6314 Determining Which Statutes, Administrative Rules and Minimum Standards to Evaluate

Revision 24-4; Effective Nov. 13, 2024

The investigator evaluates an operation’s compliance with:

- the alleged violations in the narrative of the intake report;
- other statutes, rules or minimum standards related to the allegations; and
- other possible violations identified during the course of the investigation.

6320 Contacting the Reporter

September 28, 2018

If necessary, the investigator contacts the reporter before the initiation of the investigation to:

1. clarify the details of the intake report;
2. obtain additional information that the reporter may have; and
3. determine the location of the children involved in the report, if the intake report does not contain this information.

Procedure

It may not be necessary to contact the reporter if the reporter:

1. is an employee of the operation;
2. has no direct knowledge of the incident being reported; and
3. is reporting the incident to fulfill professional reporting obligations.

Contact with the reporter may not be considered to be the initiation of an investigation unless:

- the investigation is prioritized as a P5: Desk Review and the reporter (i.e. operation) provides new information;
- the reporter is a representative of a child-placing agency and the investigation is prioritized as a P5: Internal Investigation; or
- the district director or program administrator gives approval.

See 6413.1 Initiating an Investigation Assigned a Priority 1, 2, or 3, 6413.2 Initiating an Investigation Assigned a Priority 1 or 2 Involving an Allegation of a Child with a Serious Injury, and 6413.3 Initiating an Investigation Assigned a Priority 5.

6330 Assessing the Immediate Safety of Children

September 28, 2018

The investigator must assess both:

- the immediate safety of children involved in the investigation; and
- the safety of other children being cared for by the operation.

If the investigator identifies a threat to the safety of any child in care, the investigator must take steps to ensure the child's safety by requesting the operation implement a safety plan.

The investigator continues to evaluate the safety of children in care throughout the investigation. The investigator takes steps to ensure children's safety if the investigator determines a child is not safe at any point during the investigation.

6331 Evaluating the Need for a Safety Plan

September 28, 2018

The investigator identifies possible threats to children's safety by:

1. reviewing the information in the intake report;
2. considering any additional information gathered before the initiation; and
3. considering additional information gathered during the course of the investigation.

If, at any point during the investigation, the investigator determines that a child in care of the operation is not safe, the investigator may determine that:

- a safety plan is necessary; or
- an existing safety plan must be amended.

6331.1 Defining Child Safety

September 28, 2018

Safety refers to the threat of harm presented to a child at the current time.

A child is considered safe when:

- there is no immediate threat of harm to the child; or
- there was immediate threat of harm to the child, but the operation or caregiver has demonstrated sufficient protective capacity to keep the child from being harmed.

A child is considered unsafe when:

- there is an immediate threat of harm to the child; and
- the caregiver or operation does not demonstrate sufficient protective capacities to keep the child from being harmed.

6331.2 Determining Safety

September 28, 2018

To determine whether a child is safe or unsafe, the investigator must evaluate:

1. the immediacy and severity of the threat;
2. the child's vulnerability; and
3. the caregiver or operation's capacity to protect the child.

Procedure

Before the initiation and throughout the investigation, the investigator considers the following questions:

Immediate Safety Threat

- Does the information in the intake report indicate that a safety threat poses an immediate threat of harm to a child without intervention?
- Does the caregiver involved in the allegation have unsupervised access to children? Does the caregiver's access to children pose a safety threat?

Protective Capacities

- Has the caregiver or operation failed to protect the child since the alleged incident occurred?

Child Vulnerability

- Do the allegations involve children under the age of 6?
- Are there multiple children involved in the allegation?
- Do the allegations involve children with special needs or who are otherwise vulnerable?

If the investigator answers yes to any of the questions, a safety plan is likely warranted.

6332 Requesting a Safety Plan

September 28, 2018

Upon identifying a child is unsafe, the investigator must:

- immediately notify the operation about the nature of the threat to child safety; and
- request that the operation implement a safety plan to minimize the threat to child safety.

6332.1 Requesting a Safety Plan Outside of an Inspection

September 28, 2018

Procedure

If an investigator identifies a child is unsafe before initiation or at some other point outside of an inspection, the investigator must:

1. contact the operation immediately;
2. explain to the operation the nature of the safety threat; and
3. request that the operation develops and implements a safety plan to minimize the threat to the child or children in care.

The investigator requests that the operation submit a written safety plan (an electronic copy is sufficient). A copy of the signed safety plan must be filed in the operation's file.

If the investigator's first contact with the operation is to request a safety plan, the investigator must also follow the procedures outlined in 6340 Notifying the Operation of an Investigation.

6332.2 Requesting a Safety Plan During an Inspection

September 28, 2018

Procedure

When an investigator identifies a child is unsafe during an inspection, the investigator must address the threat with the person in charge at the time of the inspection.

If the person in charge, or their designee, states the safety plan to the investigator during the inspection, the investigator requests the operation submit a written summary outlining the plan that both parties agreed to during the inspection.

6332.3 Operation Requests Assistance with Developing Safety Plan

September 28, 2018

Procedure

If the operation requests assistance with developing a safety plan, the investigator:

1. consults with the supervisor, as necessary, and the operation to develop a safety plan;
2. ensures that the operation understands the conditions of the safety plan; and
3. provides a copy of the safety plan to the operation.

6332.4 Requesting that an Operation Cease Operating (Day Care Homes Only)

February 2020

An investigator or supervisor may request that a child day care home (either a permitted home or an unregulated operation) cease operating if the investigator or supervisor have concerns about children's safety, including when the permit holder or primary caregiver of an unregulated operation refuses or is unable to remove a person whose background check resulted in a match that prohibits the person from being present while children are in care.

Procedure

If the investigator determines a child day care home should cease operating, the investigator must:

1. Receive supervisory approval before notifying the provider; and
2. Notify the provider as soon as possible during the investigation, either outside of or during an inspection.

An agreement from the child day care home provider to cease operating is considered a safety plan.

6332.5 Operation Refuses to Develop a Safety Plan

Revision 23-3; Effective Sept. 22, 2023

If the operation refuses to develop a safety plan, the investigator must notify his or her supervisor. This includes situations in which:

- an operation continues to allow a person to have contact with children when CCR has made the determination that the person's continued contact with children poses a safety threat; or
- a child day care home provider refuses to cease operating despite CCR's determination that the provider's continued operation poses a safety threat to children.

Procedure

If the operation or provider refuses to develop a safety plan, the supervisor:

1. considers citing relevant deficiencies and recommending enforcement action;
2. notifies the regional director or program administrator; and
3. works with Child Care Enforcement to consider immediate legal action, including an emergency suspension and closure as described in Human Resources Code Section 42.073 or any other appropriate action.

See 4520 Handling Immediate Danger to Children.

6333 Approving the Safety Plan

September 28, 2018

The investigator must evaluate the safety plan to ensure the plan includes all of the following:

1. The actions the operation has agreed to take to ensure the safety of children;
2. The date the safety plan is to be implemented; and
3. The person at the operation responsible for implementing the safety plan.

Procedure

The investigator approves the safety plan when the operation:

1. has agreed to implement measures to ensure the safety to children;
2. specifies a date the operation must implement the plan; and
3. specifies a person responsible for implementing the safety plan.

All tasks in the plan must relate directly to the children's immediate safety and must not contradict existing court orders.

6333.1 Plan Does Not Minimize Safety Threat

September 28, 2018

Procedure

If at any point during the investigation the plan that the operation submits does not adequately minimize the threat, the investigator informs the operation and:

- requests that the operation develop additional safety measures to minimize the threat; or
- makes additional recommendations to ensure that the safety plan minimizes the threat.

If the investigator is unable to approve the safety plan and the operation is not responsive to the investigator's request to enhance the plan, the investigator follows the steps in 6332.5 Operation Refuses to Develop a Safety Plan.

6334 Documenting the Safety Plan in CLASS

September 28, 2018

If the operation implements a safety plan, a summary of the safety plan must be documented in the CLASS investigation.

Procedure

The investigator documents that a safety plan is in effect on the *Risk Factors* page or as a contact on the *Investigation Conclusion* page in the CLASS investigation. The investigator documents a summary of the safety plan, including:

1. the actions the operation has agreed to take, including any additional safety measures if added to the plan during the course of the investigation;
2. the dates the plan is in effect; and
3. the person responsible for ensuring the operation implements the plan.

A copy of the safety plan is filed in the operation's file.

6335 Ongoing Evaluation of the Safety Plan

September 28, 2018

The investigator must evaluate the implementation and effectiveness of the safety plan throughout the course of the investigation to ensure the plan is effectively minimizing the threat to children in care.

Procedure

If the plan does not adequately minimize the immediate safety threat, the investigator must follow the steps in 6333.1 Plan Does Not Minimize Threat.

If the operation does not comply with the safety plan, the investigator must follow the steps in 6332.5 Operation Refuses to Develop a Safety Plan.

6336 Ending the Safety Plan

September 28, 2018

A safety plan ends when:

1. the investigator determines that the safety threat has been sufficiently minimized;
2. another safety plan is implemented that overrides the existing safety plan;
3. legal action such as emergency suspension or closure has taken place; or
4. the investigation is completed.

Procedure

When a safety plan ends before the completion of the investigation, the investigator:

- notifies the operation that the plan is no longer needed; and
- documents the reason the plan is no longer needed.

6340 Notifying the Operation of an Investigation

Revision 23-4; Effective Nov. 30, 2023

The investigator must notify the person in charge of the operation when an investigation is being conducted.

26 TAC Section 745.8441

Procedure

During the first contact the investigator has with the operation, the investigator must inform the person in charge of the operation:

1. about the purpose of the investigation and nature of the allegations;
2. whether a safety plan is needed; and
3. that the operation must not conduct any interview about the alleged incident with staff, children or witnesses at the operation who may have knowledge of the incident.

6340.1 Methods of Notifying the Operation

Revision 23-4; Effective Nov. 30, 2023

The investigator may notify the operation of the investigation via phone, email, inspection or inspection form depending on the circumstances when first contacting the operation unless an exception applies.

Procedure

Notifying the Operation During an Inspection or Using an Inspection Form

The investigator notifies the person in charge of the operation of the nature of the investigation in person if the person in charge is present at the time of the inspection.

If the person in charge is not present at the time of the inspection, the investigator leaves a copy of CLASS Form 2936 Child-Care Facility Inspection at the operation. See 6312 Reviewing the Intake Report Narrative and Determining the Allegations.

The investigator follows up with the person in charge if the investigator determines that the operation should develop a safety plan.

Notifying the Operation Outside of an Inspection

The investigator may notify the person in charge of the operation of the investigation outside of an inspection if the investigator needs to contact the operation to request additional information or request a safety plan before conducting an inspection.

26 TAC Section 745.8441

6340.2 Exceptions to Notifying the Operation

Revision 23-4; Effective Nov. 30, 2023

The investigator may delay notifying the person in charge of the operation about the nature of the investigation if:

- the allegations are against the person in charge, designee, administrator, director or primary caregiver; or
- the investigator has reason to believe that disclosing the nature of the allegations may compromise the investigation.

26 TAC Section 745.8441

Procedure

If the investigator determines that the notification to the operation should be delayed, the investigator must:

1. obtain supervisory approval;
2. document the decision and the supervisory approval as a contact in CLASS; and
3. notify the person in charge, designee, primary caregiver, director or administrator of the operation as soon as the investigator determines the investigation will no longer be compromised.

6400, Conducting the Investigation

6410 Initiating the Investigation

September 28, 2018

The purpose of initiation is to gather new and pertinent information regarding the allegations described in the intake report to:

- collect additional information regarding the child's safety; and
- guide the next steps of the investigation.

The investigator determines the most appropriate method of initiation based on:

1. the immediacy of the risk;
2. severity of the possible harm to the child; and
3. extent to which the method protects the integrity of the investigation.

6411 Defining What Constitutes an Initiation

September 28, 2018

"Initiation" is the first contact the investigator makes that yields new and pertinent information related to the allegations described in the intake report.

Initiation is not necessarily the first contact the investigator makes. To qualify as the initiation of the investigation, the contact must result in the investigator obtaining new or pertinent information.

6412 Time Frames for Initiation

April 2021

The time frame for initiating an investigation varies, depending on the priority of the investigation and the type of operation.

See Appendix 6000-1 Time Frames for Investigations.

6412.1 Time Frame for Initiating a Priority 1 (P1) Investigation

April 2021

The investigator must initiate a Priority 1 investigation as soon as possible, but no later than 24 hours after the time that SWI or the CCR office received the intake report.

6412.2 Time Frame for Initiating a Priority 2 (P2) Investigation for Residential Child Care Operations

April 2021

The investigator must initiate a Priority 2 investigation of a residential child care operation as soon as possible, but no later than 72 hours after SWI received the intake report.

6412.3 Time Frame for Initiating a Priority 2 (P2) Investigation for Child Day Care Operations

April 2021

The investigator must initiate a Priority 2 investigation of a child day care operation as soon as possible, but no later than five days after the day that SWI or the CCR office received the intake report.

6412.4 Time Frame for Initiating a Priority 3 (P3) Investigation

April 2021

An investigator must initiate a Priority 3 investigation as soon as possible, but no later than 15 days after the day that SWI or the CCR office received the intake report.

6412.5 Time Frame for Initiating a Priority 5 Investigation

April 2021

An investigator must initiate a Priority 5 investigation as soon as possible, but no later than five days after the day that SWI or the CCR office received the intake report.

6413 Methods of Initiation

September 28, 2018

6413.1 Initiating an Investigation Assigned a Priority 1, 2, or 3

September 28, 2018

For a Priority 1, 2, or 3 investigation, the investigator may initiate the investigation by making:

1. face-to-face contact with a child involved in the allegation (required for P1 and P2 investigations if the child is alleged to have a serious injury);
2. face-to-face contact with an adult involved in the allegation;
3. face-to-face contact with a significant collateral source; or
4. an unannounced inspection.

The investigator must receive supervisory approval to initiate the investigation by any other manner. The approved method of initiation must be documented in the investigation.

See 6414 Documenting the Initiation

6413.2 Initiating an Investigation Assigned a Priority 1 or 2 Involving an Allegation of a Child with a Serious Injury

September 28, 2018

If a Priority 1 or Priority 2 intake report alleges that a child involved in the allegation has a serious injury, the investigator initiates the investigation by making a face-to-face contact with the child, adhering to the appropriate initiation time frame so that the child's injuries (or lack of injuries) can be photographed in a timely fashion.

If the investigator is unable to photograph the injuries in a timely manner, the investigator:

1. notifies the supervisor; and
2. documents the reason the injuries could not be photographed in a timely fashion as a contact on the *Investigation Conclusion* page in CLASS.

6413.3 Initiating an Investigation Assigned a Priority 5

February 2020

For investigations assigned a *Priority 5: Desk Review*, the investigator may initiate the investigation with a phone call or email to the operation.

For investigations assigned a *Priority 5: CPA Internal Investigation*, the investigator initiates the investigation according to the procedures in 6511.1 Receiving and Assigning the Report.

For investigations assigned a *Priority 5: Illegal Operations* with no other allegations (day care only), the investigator initiates the investigation according to the procedures in 6533 Initiating the Investigation of an Unregulated Operation.

6414 Documenting the Initiation

Revision 23-3; Effective Sept. 22, 2023

The investigator documents the initiation under the *Initiation of Investigation* section on the *Investigation Conclusion* page in the CLASS investigation. The investigator must document the initiation by the following calendar day.

Procedure

The investigator enters the following information in the *Initiation of Investigation* section on the *Investigation Conclusion* page in CLASS:

1. the date of the initiation in the *Date Initiated* field;
2. the method of initiation in the *Initiation Type* field; and
3. the time of the initiation in the *Initiation Time* field for:
    - Priority 1 Investigations; and
    - Priority 2 Investigations of residential child care operations; and
4. the role of the person with whom the initiation contact was made in the *To/With* field.

The investigator documents the following in the *Narrative Summary of Information Obtained* field:

- the name of the person, operation or entity with whom the initiation contact was made; and
- a summary of the information relevant to the investigation that was obtained during the initiation, including the new and pertinent information that was learned.

If the investigator initiated the investigation using a method that requires consultation and approval from a supervisor, regional director or program administrator, the investigator also documents in the *Initiation of the Investigation* section:

1. the reason why the method of initiation was used;
2. name of the approver; and
3. date the approval was obtained.

See:

1311 Records for Investigations
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
6413.1 Initiating an Investigation Assigned a Priority 1, 2, or 3

6420 Conducting Interviews

Revision 22-5; Effective Nov. 4, 2022

During the investigation, the investigator must attempt to locate and interview:

- all people identified as a principal in the intake report and during the investigation;
- all people identified as a collateral in the intake report; and

- as many other collaterals identified during the investigation as necessary, depending on the nature and complexity of the investigation.

Procedure

The investigator documents a summary of each interview or attempted interview as a contact on the Investigation Conclusion page in CLASS. If the investigator cannot locate a principal or collateral, the investigator documents all attempts to locate the person.

The investigator documents the contact as soon as possible, but no later than the day following the date of the interview or attempted contact.

6421 Observing and Interviewing Children

Revision 22-4; Effective Sept. 20, 2022

Whenever possible, the investigator must make face-to-face contact (observation or interview) with all alleged victims (principal children).

The investigator interviews as many other children (collaterals) as necessary depending on the nature and complexity of the investigation. If the investigation is at a foster home, the investigator attempts to observe or interview all children who reside in the household.

See: 6120 Principals and Collaterals

6421.1 Time Frames for Face-to-Face Contacts with Victims During Priority 1 and Priority 2 Investigations of Residential Child Care Operations

April 2021

Policy

The investigator makes face-to-face contact (observation or interview) with each alleged victim identified in the intake report within the following time frames:

- P1: within 24 hours of SWI's receipt of the intake report; or
- P2: within 72 hours of SWI's receipt of the intake report.

See: 6421.11 Exceptions to Meeting the Time Frame for Face-to-Face Contacts with Victims During Priority 1 and Priority 2 Investigations of Residential Child Care Operations

6421.11 Exceptions to Meeting the Time Frame for Face-to-Face Contacts with Victims During Priority 1 and Priority 2 Investigations of Residential Child Care Operations

Revision 24-3; Effective Aug. 15, 2024

The investigator may exceed the time frame for face-to-face contacts with an alleged victim during a P1 or P2 investigation if one of the exceptions in section 6421.12 Exceptions to Completing Face-to-Face Contacts with Victims During Priority 1 and Priority 2 Investigations of Residential Child Care Operations applies. Otherwise, the investigator may exceed the time frame only in the following situations:

- the alleged victim's whereabouts are unknown during the 24-hour (P1) or 72-hour (P2) initiation time frame;
- the identity of the previously unknown alleged victim was determined after the required time frame to conduct face-to-face contact; or
- the alleged victim was identified and added to the investigation after the required time frame to conduct face-to-face contact.

If one of these exceptions applies, the investigator must make face-to-face contact with the alleged victim within 24 hours (P1) or 72 hours (P2) after the alleged victim's whereabouts become known or the alleged victim is identified.

Reference

Contact Types, 6723.1

6421.12 Exceptions to Completing Face-to-Face Contacts with Victims During Priority 1 and Priority 2 Investigations of Residential Child Care Operations

May 2021

The investigator may complete a P1 or P2 investigation without making a face-to-face contact only in the following situations:

- The alleged victim's whereabouts were unknown during the entire course of the investigation;
- The alleged victim is deceased; or
- The alleged victim no longer lives in Texas.

See:

6723.1 Contact Types

6421.2 Observing and Interviewing a Child Related to a Child Care Provider

September 28, 2018

Biological and adopted children include any children for whom providers may hold legal guardianship, temporary managing conservatorship, or permanent managing conservatorship at the time of the investigation.

The investigator may need to obtain written consent before interviewing the biological or adopted children of a provider.

6421.21 Obtaining a Child Care Provider's Consent Before Interviewing a Child

April 2021

Procedure

If the child care provider is present during an inspection or investigation, the investigator must obtain written consent to interview any biological or adopted children of the provider who are in care at the operation. The investigator:

1. obtains consent using Form 2898 Consent to Interview Children of Providers; and
2. files the completed Form 2898 Consent to Interview Children of Providers in the operation's file.

The investigator may interview the children of a provider in a school, neutral location, or a child care setting other than where the provider works without obtaining consent, unless the provider has previously refused to allow CCR staff to interview the provider's children.

Following the interview, the investigator must notify the parent that the investigator interviewed the child.

If a provider instructs the investigator to stop interviewing the provider's child, the investigator must comply.

The provider may withdraw consent for interviews of the provider's biological or adopted children at any time, and the investigator must comply with any withdrawn consent.

The investigator documents whether consent was granted, refused, or withdrawn as a contact in CLASS.

6421.22 Determining Whether to Seek a Court Order to Interview a Child of a Child Care Provider

April 2021

Procedure

The investigator must determine whether to seek a court order to conduct an interview, if:

- a provider refuses to allow his or her biological or adopted child to be interviewed; and
- the child's information could be necessary to determine the outcome of an investigation.

The supervisor includes staff from the Child Care Regulation Legal Division in the decision-making process when determining whether to obtain a court order to interview a child.

6421.23 Obtaining Separate Consent When Conducting Investigations with Other Entities

April 2021

Procedure

When conducting an investigation with another entity, such as law enforcement or DFPS, CCR must obtain consent separate from DFPS or law enforcement to gain entry to interview a child.

The investigator identifies himself or herself separately by:

- presenting an HHSC-issued ID badge; and
- stating his or her specific role in the investigation.

If the parent or provider grants consent to DFPS or law enforcement, but does not grant consent to CCR, the investigator must not interview the child and continue conducting other investigation activities.

6421.3 Notifying a Parent of a Child Interviewed During an Investigation (Day Care Only)

April 2021

Procedure

An investigator must notify a child's parent, guardian, or managing conservator that the investigator interviewed the child during an investigation at a child day care operation. The investigator notifies the parent by:

1. mailing a notification letter (Form 2866) to the parent's residential address;
2. leaving a notification letter (Form 2866) for the parent at the operation;
3. providing verbal notification to the parent via phone call, face-to-face contact, or by leaving a message on a voice mail service; or
4. providing notification via email to the child's CPS conservatorship (CVS) caseworker, if the child is in DFPS substitute care.

An investigator is not required to notify the parents of a child interviewed during an investigation at a residential child care operation.

6421.4 Age and Ability Requirements for Observing and Interviewing Children

April 2021

Observing Children with No Verbal Ability

Investigators must observe alleged victims who have no verbal ability as a result of the child's:

- chronological age; or
- developmental level.

The investigator should observe children who are collateral contacts and who have no verbal ability as necessary to assess the care that the operation is providing to other children in care of the operation.

Procedure

The investigator must document observations of each child as a contact on the *Investigation Conclusion* page in CLASS. The contact must include a brief statement describing the investigator's observation of the child.

Interviewing Children with Limited Verbal Ability

Investigators must attempt to interview each identified alleged victim and collateral contact if the child:

- is at least 3 years of age; and
- has some verbal ability.

If a child is younger than 3 years of age and the investigator receives information that the child has some ability to communicate meaningful information, the investigator should attempt to interview the child and gather as much information as possible.

Procedure

The investigator adjusts the interview techniques as needed based on the age and ability of the child being interviewed.

If a child demonstrates that he or she is unable to communicate meaningful information to the investigator after the investigator attempts to build rapport with the child, the investigator may discontinue the interview. The investigator must document the attempted interview as a contact on the *Investigation Conclusion* page in CLASS.

If the investigator is unable to communicate with any child because of language barriers, the investigator follows the procedures in 6425 Interviewing Persons with Limited English Proficiency.

6422 Interviewing Adults

September 28, 2018

During an investigation, the investigator must interview, whenever possible:

1. all adults directly involved in the incident;
2. other adults who may have witnessed the incident;
3. other adults who may have knowledge of the incident;
4. other adults who may be able to provide information regarding the type of care and supervision provided at the operation; and
5. other adults who may be able to provide information regarding the behaviors, level of functioning, and emotional state of any children involved in the investigation.

6422.1 Interviewing Adults Who are Principal and Collateral Sources

September 28, 2018

The investigator must interview all adults who were directly involved in the incident being investigated as well as other adults (collateral sources) who may have knowledge of the incident or of the children involved.

Principal and collateral sources include, but are not limited to:

1. employees of the operation;
2. household members;
3. director, administrator, case manager, or other representative of the operation;
4. neighbors;
5. school personnel, medical personnel, law enforcement, first responders, therapists, or other professionals; and
6. parents, guardians, or managing conservators of the victims or the children interviewed.

The investigator interviews as many collateral sources as is necessary depending on the nature and complexity of the investigation.

6423 Recording Interviews

Revision 23-3; Effective Sept. 22, 2023

Recording interviews during an investigation is not required, however, if the investigator chooses to record a face-to-face interview, the investigator informs the person of the recording at the beginning of the interview.

The recording of the interview must be accurate, unaltered and without interruption.

The investigator documents that the interview was recorded and a summary of the interview as a contact in the investigation. The investigator uploads the audio file to CLASS Document Library from the applicable CLASS page.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

6423.1 Testing the Recording Equipment

September 28, 2018

Procedure

Before beginning the official interview, the investigator must test the audio recording device and software to ensure that the equipment is working and that all parties can be clearly heard on the recording.

6423.2 Authenticating the Recording

September 28, 2018

Procedure

The investigator must authenticate the recording before beginning the structured interview. To authenticate the recording, the investigator must make the following statements at the beginning of each recorded interview:

1. investigator's first name, last name, and job title;
2. month, day, year, and time of the interview;
3. CLASS investigation number;
4. location of the interview;
5. first and last name and the role of any other person present during the interview; and
6. a statement that the interview is being recorded.

The investigator asks the person being interviewed to state his or her:

- first and last name;
- identifying information, such as age or date of birth, depending on the age and ability of the person being interviewed.

At the conclusion of the interview, the investigator states the time that the interview ended.

6424 Requesting a Courtesy Interview

September 28, 2018

If any principal or collateral is located in a region other than where the investigator is located, the investigator makes a request through his or her supervisor for a Licensing investigator in the region where the person is located to conduct the interview. The investigator conducting the interview is a secondary investigator, and the interview is considered to be a courtesy interview.

Procedure

If a secondary investigator conducts a courtesy interview, the investigator:

1. advises the secondary investigator of what information and questions to address in the courtesy interview;
2. requests detailed information about the interview, including any recordings or interview notes after the courtesy interview has taken place;
3. maintains contact with the secondary investigator until all information regarding the courtesy interview is received; and
4. documents the interview as a contact in CLASS, including a statement of who conducted the interview.

The secondary investigator:

- documents the interview in an email to the primary investigator who made the request; and
- adheres to all required time frames for conducting the interview.

6425 Interviewing Persons with Limited English Proficiency

September 28, 2018

A person is identified as having limited English proficiency (LEP) if the person cannot read, write, speak, or understand English without assistive language services because the person:

- does not speak English as their primary language; or
- has a speech or hearing impairment.

During an investigation, the investigator must accommodate any person with LEP by making reasonable efforts to provide information and services in a language or medium that the person can understand through the use of interpreters, translators, readers, or other

methods.

Civil Rights Act of 1964, Title VI

Procedure

In order to ensure that a person with LEP is able to communicate with the investigator in his or her primary language or medium, district management must develop procedures for identifying the primary language needs within the district and for providing readily available access to interpreter services. The procedures must ensure that a person with LEP:

- is able to communicate his or her knowledge of or role in the incident being investigated;
- has the information necessary for the person to be able to understand the investigation process, the outcome, and due process rights, if applicable.

6425.1 Using an Interpreter to Conduct an Interview

September 28, 2018

Procedure

An investigator who is unable to communicate with a person with LEP must:

- make arrangements for an interpreter to be present during the scheduled interview; or
- contact an approved interpreter service available through HHSC Communication Services.

If the investigator arranges for an interpreter to be present during the interview, the investigator must choose an interpreter who does not have a conflict of interest with the investigation and who is:

- professionally trained as an interpreter; or
- an HHSC staff person who is fluent in the person's primary language.

The investigator must explain to the interpreter that the investigation information must be kept confidential.

6425.2 Documenting the Use of Interpretation Services

September 28, 2018

Procedure

If an interview was conducted with a person with LEP, the investigator must document any interpreter services that the investigator used. The contact must include:

1. any offer the investigator made to provide an interpreter;
2. acceptance or refusal of interpreter services by person with LEP;
3. use of an interpreter;
4. interpreter's name;
5. interpreter's relationship (if any) to the person;
6. interpreter's professional affiliation;
7. use of communication aids (such as a communication board and pictures); and
8. investigator's ability to communicate in the person's primary language.

If an interpreter was not used, the reason must be documented.

6430 Conducting Inspections

Revision 23-4; Effective Nov. 30, 2023

The investigator must conduct an unannounced inspection for all investigations assigned a Priority 1, 2, 3, or 4.

When conducting an inspection, the investigator must always assess the safety of children and evaluate statutes, administrative rules and minimum standards described in 4140 Preparing for Inspections.

26 TAC Sections 745.8401; 745.8403; 745.8405

6431 Requirements for Conducting Unannounced Inspections

September 28, 2018

6431.1 Inspection Time Frame Priority 1 or Priority 2 Investigations

September 28, 2018

For all investigations assigned a Priority 1 or Priority 2, the investigator must conduct an unannounced inspection at the operation that is the subject of the investigation as soon as possible and no later than 15 days following the date that SWI or the Licensing office received the intake report. Shorter time frames may be necessary to assess risk.

If subsequent inspections are necessary, the inspections may be announced or unannounced, as appropriate.

6431.2 Inspection Time Frame for Priority 3 Investigations

September 28, 2018

For investigations assigned a Priority 3, the investigator must conduct an unannounced inspection at the operation that is the subject of the investigation as soon as possible and no later than 30 days following the date that SWI or the Licensing office received the intake report.

If subsequent inspections are necessary, the inspections may be announced or unannounced, as appropriate.

6431.3 Inspection Time Frame for Priority 4 Investigations

February 2020

CPA Internal Investigations Reassigned to a Priority 4

For all investigations involving an agency home that are re-assigned to a Priority 4, the investigator must conduct an unannounced inspection at the operation that is the subject of the investigation as soon as possible and no later than 45 days following the date that SWI or the Licensing office received the initial intake report.

Unregulated Operations and Desk Review Investigations Reassigned to a Priority 4

For all other investigations that are re-assigned to a Priority 4, the investigator must conduct an unannounced inspection as soon as possible and no later than 30 days following the date that SWI or the Licensing office received the initial intake report.

If subsequent inspections are necessary, the inspections may be announced or unannounced, as appropriate.

6431.4 Inspection Not Required for Priority 5 Investigations

Revision 23-1, Effective April 21, 2023

For all investigations assigned a Priority 5, the investigator does not conduct an inspection at the operation that is the subject of the investigation.

If the investigator determines that an inspection is necessary, the investigator changes the priority to a Priority 4 as soon as possible during the investigation.

See:

4210 Assessment Types
4211 Citing a Deficiency with a Monitoring Assessment
6511.4 Reclassifying an Investigation of an Agency Home as Priority 4
6534.2 Conducting an Investigation of an Alleged Unregulated Operation Assigned a Priority 5 (DC Only)
6540.2 Reclassifying a Desk Review Investigation as a Priority 4

6432 Documenting the Observations Made During the Inspection

September 28, 2018

Procedure

In addition to documenting the results of the inspection in the CLASS Child Care Facility Inspection Form 2936, the investigator must document the observations made during the unannounced inspection in the narrative box *Observations Made During Inspection* on the *Investigation Conclusio*n page in CLASS.

For every inspection conducted during the investigation, the documentation in the narrative box must include:

1. the date the inspection was conducted;
2. whether the inspection was announced or unannounced; and
3. specific observations of the operation and specific area in which the incident being investigated occurred;

6440 Collecting Evidence

Revision 23-3; Effective Sept. 22, 2023

During the investigation, the investigator must collect evidence to support or refute the allegations of minimum standard violations.

The collection of evidence may include, but is not limited to:

1. interviews with principal and collateral sources;
2. digital audio or video recordings of interviews;
3. written statements;
4. original and computer generated notes;
5. photographs;
6. medical records;
7. law enforcement records;
8. operation records; and
9. any other physical evidence or document relevant to the allegation.

Procedure

The investigator conducts interviews, reviews all necessary records and documentation, and obtains copies of all documentation that is relevant to refuting or supporting the allegations. Documentation obtained is summarized in a contact narrative on the *Investigation Conclusion* page. The investigator uploads digital records supporting CCR activities to CLASS Document Library from the applicable CLASS page.

See:

1311 Records for Investigations
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

6441 Collecting Evidence Related to Interviews

September 28, 2018

6441.1 Obtaining Written Statements

Revision 23-3; Effective Sept. 22, 2023

The investigator or supervisor may request a written statement in conjunction with an interview of any principal or collateral source.

Procedure

The investigator uses Form 7275 Child Care Facility Investigations Statement available on the CCR SharePoint site to obtain a written statement. If a person with knowledge of the incident has already prepared a written statement, the investigator may accept that statement in the form in which it was written. The investigator then:

- compares the written statement to the information provided during the interview for consistency; and
- asks additional questions or conducts a follow-up interview to address any inconsistencies that the investigator has found.

The investigator files the written statement in the operation's record and:

- documents that a written statement was obtained as a contact in the investigation; and
- includes a summary of the written statement in the narrative.

The investigator converts the written document to a PDF file and uploads it to CLASS Document Library according to 1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital files.

See:

1311 Records for Investigations

6441.2 Maintaining Investigation Notes

September 28, 2018

Investigation notes, whether handwritten notes that the investigator originally recorded on paper or on a computer or state issued iPhone, include:

1. interview notes;
2. drawings, diagrams, or timelines;
3. notes written on any document related to the investigation, such as a staffing form or intake report.

Notes for an investigation may be destroyed, except when a subpoena or any other legal directive requiring the retention of the notes is received before the notes are destroyed.

Procedure

An investigator may make diagrams, drawings, and timelines to aid in determining the finding. A diagram, either hand-drawn or generated on a computer, is a drawing that shows arrangement and relation. For example, the drawing may be of the area where the incident occurred with placement of furnishings, equipment, children, and staff. Drawings may also show the location of a bruise or other injury on a child's body. Timelines may show who the child was with during the time when the incident or injury occurred.

6442 Taking Photographs as Evidence

Revision 23-3; Effective Sept. 22, 2023

The investigator must always carry a state issued iPhone to all inspections and interviews. Investigators must take, document and store photographs of a child's injury, the incident scene and any other photographs of the operation according to the policies and procedures outlined in 1400 State-Issued Equipment, Photographs, Video, Audio and Digital Files. Photographs uploaded to CLASS Document Library are documented according to 1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files.

6443 Obtaining Written Documents as Evidence

September 28, 2018

The investigator reviews or obtains written documentation if this information is necessary to make a decision regarding the outcome of the investigation, including, but not limited to:

1. Medical records
2. Law enforcement reports
3. DFPS records
4. Records from the operation
5. Correspondence

6443.1 Obtaining Medical Records

September 28, 2018

Procedure

Depending on the allegations that are the subject of the investigation, the investigator may request a parent or managing conservator release the following types of medical records if they are necessary for the investigator to make a decision regarding the outcome of the investigation:

1. Records from emergency medical services (EMS)

2. Emergency room and other hospital records
3. Records from the child's primary care physician
4. Records from a specialist who provides care or treatment to a child
5. Star Health records

6443.2 Obtaining Reports From Law Enforcement as Evidence

September 28, 2018

The investigator may request documentation from law enforcement during any investigation in which law enforcement is conducting a criminal investigation of the allegations.

Procedure

Depending on the allegations being investigated, the investigator may need to request copies of the following types of law enforcement records:

1. Police report
2. Photographs taken by law enforcement
3. Recording or transcript of interview
4. 911 call
5. Any other document related to a criminal investigation

If law enforcement is unable to release copies of documents pertaining to the criminal investigation, the investigator requests an opportunity to review the documents. After reviewing the records, the investigator documents a summary of the records in the investigation contacts.

6443.3 Reviewing Documents From DFPS

Revision 23-3; Effective Sept. 22, 2023

Procedure

The investigator may need to review documentation located in IMPACT if:

- the investigation involves a child in conservatorship of CPS; or
- the investigator is conducting a joint or concurrent investigation with DFPS.

The investigator may need to review the following types of CPS documentation located in IMPACT related to the investigation (INV), substitute care (SUB), or adoption (ADO) stages of service:

1. *Person Detail* information
2. Contact narratives
3. *Legal Actions*
4. *Child's Service Plan*
5. Placement information
6. *Common Application*
7. *Family Tree*

If a CPS case is marked Sensitive, the investigator requests assistance from the assigned CPS caseworker to obtain access to the information.

The investigator does not upload documents reviewed in IMPACT to CLASS Document Library.

6443.4 Obtaining Documents From the Operation

Revision 23-4; Effective Nov. 30, 2023

Procedure

CCR has the authority to review and obtain copies of any documentation found at the operation. This documentation includes, but is not limited to:

1. a child's record, including the service plan;
2. an employee's record;

3. a foster home's record, including the home screening and Form 2954 Child Care Licensing Family Violence Calls Disclosure;
4. training curriculum;
5. operational policy;
6. incident reports; and
7. audio or video recordings, including video surveillance.

The investigator reviews all necessary records and documentation and obtains copies of all documentation that is relevant to refuting or supporting the allegations. The investigator summarizes the documentation in a contact narrative on the *Investigation Conclusion* page and files the documentation in the external investigation file.

26 TAC Section 745.8413

6443.5 Maintaining Records of Correspondence

September 28, 2018

In the process of conducting an investigation, the investigator may receive or create correspondence through email, written correspondence, or the telephone.

6443.51 Documenting and Maintaining Email Correspondence

Revision 23-3; Effective Sept. 22, 2023

Procedure

The investigator summarizes the contents of the email in a contact narrative on the *Investigation Conclusion* page in CLASS, using professional and objective language.

If the email exchange is between the investigator and an external resource, the investigator prints a copy and files the copy in the operation's file or uploads the email(s) to the CLASS Document Library from the applicable CLASS page. Emails related to an investigation of a residential child care operation must be uploaded to the CLASS Document Library from the applicable CLASS page.

The investigator follows any legal directive requiring that emails be retained (and not deleted), according to 1330 Records Retention. If there is no relevant directive, the investigator deletes the email exchange after documenting a summary in the investigation and uploading the email to CLASS Document Library from the applicable CLASS page.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

6443.52 Documenting and Maintaining Written Correspondence

Revision 23-3; Effective Sept. 22, 2023

Procedure

The investigator may generate written correspondence in CLASS or outside of CLASS. The investigator may also receive written correspondence during an investigation.

The investigator handles written correspondence in the following manner:

- The investigator does not print any written correspondence that is generated or stored in CLASS and does not file the correspondence in the hard copy record or upload the correspondence to CLASS Document Library.
- For all written correspondence located outside of CLASS, the investigator documents a summary of the correspondence in a contact narrative on the *Investigation Conclusion* page in CLASS and uploads the correspondence to CLASS Document Library from the applicable CLASS page.

6443.53 Documenting and Maintaining Voicemails and Texts

Revision 23-3; Effective Sept. 22, 2023

Procedure

The investigator may receive voicemails and texts during an investigation. When a voicemail or text message is received, the investigator converts the voicemail or text message to a digital file and uploads it to CLASS Document Library from the applicable CLASS page. When uploading files to CLASS Document Library the investigator includes the following information in the *Description* field of the *Document Details*:

1. the name and title of the person providing the voicemail or text message;
2. the date voicemail or text message was received; and
3. a brief summary of voicemail or text message.

See:

1400 State-Issued Equipment, Photographs, and Video, Audio and Digital Files
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

6450 Conducting Surveillance (Day Care Only)

Revision 23-3; Effective Sept. 22, 2023

An investigator or supervisor may determine that surveillance is necessary to determine whether:

1. a program or caregiver is subject to regulation;
2. an operation is complying with a safety plan that requires the operation to cease operating;
3. an operation is providing care to more children than the permit allows; or
4. allegations of violations of minimum standards have a factual basis.

Procedure

An investigator receives supervisory approval to conduct surveillance. The investigator documents all decisions regarding conducting surveillance as a contact on the *Investigation Conclusion* page in CLASS.

Upon receiving the necessary approval, the investigator may conduct surveillance at the location of the operation or at other locations where children in care are transported by the operation. The investigator should take photographs or video recordings as necessary during the surveillance to support violations or a lack of violations. The investigator uploads all photographs, video, or other documentation to CLASS Document Library from the applicable CLASS page.

See:

1400 State-Issued Equipment, Photographs, and Video, Audio and Digital Files
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

6460 Handling Obstruction of an Investigation

September 28, 2018

6461 Interference by the Operation

Revision 23-4; Effective Nov. 30, 2023

Procedure

If operation staff refuse, delay or interfere with investigation attempts after being told the purpose of the investigation, the investigator informs the person in charge that the investigator has authority to investigate under applicable laws.

The operation must allow the investigator access to all children in care, staff, any other person at the operation, any records, the physical plant, any other areas of the building, home, or grounds of the operation, and any other information needed to conduct the investigation.

26 TAC Sections 745.8401; 745.8411; 745.8413

Human Resources Code Section 42.04412

If anyone at the operation refuses, prevents or delays the inspection or investigation, CCR may:

- issue a deficiency;
- seek to impose an enforcement action against the operation; or
- seek a court order granting CCR access to the operation and records.

See:
7000 Voluntary Actions and Enforcement Actions
26 TAC Section 745.8411(c)

6462 Obstruction by Regulated Operations

August 2018

Procedure

If a regulated operation obstructs the investigation, the investigator leaves an Inspection Form (Form 2936) citing HRC Section 42.04412(a) for obstruction of an investigation and violation of Licensing rules allowing inspection and explains the possible consequences of the violation.

6463 Obstruction by Unregulated Operations

February 2020

The investigator notifies the person in charge of the unregulated operation of Licensing's authority to investigate under the law. If the person remains uncooperative, the investigator leaves the operation. If known, the investigator documents:

1. any evidence of violation of the Human Resources Code or Texas Administrative Code;
2. any observed hazards to children or situations that would be a violation of standards if the operations were registered or licensed; and
3. any child care practice that puts children at risk.

See:

6535.1 Obtaining Court Order to Gain Access

6470 Reviewing Background Check Records During Investigations

Revision 22-4; Effective Sept. 20, 2022

Procedure

During each investigation, CCR staff evaluate if the operation has complied with background check requirements for principals and collaterals involved in the investigation by verifying their names with information in the operation's *People List* in CLASS.

When evaluating compliance, the investigator considers whether the operation:

a. failed to submit any names of principals or collaterals timely (including renewal checks);
b. is allowing a principal or collateral with a Pending employment status to be present at the operation, unless the subject is present for the sole purpose of attending orientation or preservice training and does not have contact with children in care;
c. is complying with conditions placed on a principal's or collateral's presence; and
d. has allowed any principal or collateral with an eligibility determination of ineligible to be present at the operation.

See:

10120 Background Check Requests
10121 Persons for Whom Operations Must Submit Requests for Background Checks
10700 Determining Compliance with Background Check Requirements

6480 Conducting the Investigation Conclusion Staffing, Residential Child Care Only

Revision 24-4; Effective Nov. 13, 2024

The supervisor and investigator complete an Investigation Conclusion Staffing for all residential child care investigations. Before the staffing, the investigator makes sure:

- all investigation documentation is up to date in CLASS; and
- evidence is uploaded to the CLASS Document Library.

Supervisors and investigators follow the time frames below to conduct the investigation conclusion staffing.

Investigation Priority	Investigation Conclusion Staffing Timeframe
Priority 1 or Priority 2	By the 20th day from intake
Priority 3, Priority 4 or Priority 5	By the 45th day from intake

6500, Special Considerations for Certain Types of Reports

6510 Investigations Involving Homes Regulated by a Child-Placing Agency (CPA)

September 28, 2018

Licensing investigates certain allegations of minimum standards violations in agency homes verified or approved by child-placing agencies (CPAs), which includes homes regulated by private CPAs and the Department of Family and Protective Services' Child Protective Services (CPS) division.

6510.1 Allegations and Incidents that CCR Must Investigate

Revision 24-3; Effective Aug. 15, 2024

Procedure

CCR staff must investigate the following in CPA offices, verified foster homes, and approved adoptive homes:

1. A verified foster home with a known history of response by law enforcement to a family violence call at the home;
2. Allegations involving the CPA staff; and
3. Any reportable serious incident or any reported violation of a minimum standard involving a child younger than 6 at the time of the incident regardless of when the incident was reported, including:
    - a minimum standard that is weighted as high, or that presents a high degree of risk; and
    - any minimum standard regarding discipline, restraints, children's rights, or supervision, or any combination of these deficiencies.

Reference

Texas Human Resources Code Section 42.044(e)(2), (3)

6510.2 Allegations and Incidents that Licensing May Investigate

September 28, 2018

Procedure

Licensing staff may investigate the following in verified foster homes and approved adoptive homes:

a. Incidents of restraint in which a child receives a serious injury;
b. A pattern of repeated deficiencies in a home or number of homes that the CPA has not been able to correct;
c. Discipline that may be considered cruel, harsh, or unusual, if it does not meet the statutory definition of "abuse" or "neglect"; and
d. Child-to-child behavior that does not meet the statutory definition for abuse or neglect, but resulted or may have resulted in harm to a child.

6511 Investigations of Minimum Standards Violations Conducted by CPAs

September 28, 2018

At Licensing's request, the child-placing agency (CPA) investigates reports of violations of minimum standards in the CPA's verified foster homes or approved adoptive homes.

While the allegations of the report reflect possible violations of minimum standards by the home, the report also reflects possible violations of minimum standards by the CPA; therefore, the CPA investigates the allegations concerning the home, and Licensing investigators conduct the investigation regarding allegations involving the CPA. See 6241 Classifying the Priority of the Intake Report.

Any false information concerning the investigation may be reason for imposing corrective or adverse action on the CPA.

See: 7110 Circumstances That May Call for Enforcement Action

6511.1 Receiving and Assigning the Report

September 28, 2018

Procedure

Within five days of receiving an intake report that is to be assigned to a CPA for an internal investigation, the Licensing investigator initiates the investigation by contacting the CPA to notify the CPA of the assignment. The investigator may suggest the CPA use Form 2906 Child Placing Agency Internal Investigation Report.

6511.2 CPA Responsibilities

September 28, 2018

Procedure

The investigation is the responsibility of the child-placing agency.

The CPA's child placement management staff (CPMS) must:

- conduct or review and sign-off on investigations completed by the CPA; and
- submit an investigation report to the inspector within 30 days of being notified of the investigation.

When an investigation is conducted by CPS, CPS documents the report in the IMPACT system and places an approval task in the To-Do list in the Licensing investigator's workload. The Licensing investigator reviews and approves the report in IMPACT and enters the information into CLASS.

TAC 26 §749.101

6511.3 Licensing Responsibilities

September 28, 2018

Procedure

The investigator reviews the report for compliance with minimum standards and makes one of the following decisions:

1. Accepts the report as complete;
2. Returns the investigation to the CPA if the inspector determines that the investigation is not thorough and includes specific instructions and timelines for the CPA to complete the documentation and return the report; or
3. Seeks supervisory approval to reclassify the investigation as a Priority 4 (see 6511.4 Reclassifying an Investigation of an Agency Home as a Priority 4).

If the report is accepted, the investigator also:

1. cites the CPA if the CPA overlooked a deficiency, failed to address a complaint in the investigation, or identifies patterns of violations in the home;
2. documents the investigation in CLASS according to the policies outlined in 6511.5 Documentation of Investigations by Child-Placing Agencies;
3. notifies the CPA about the results of the investigation using the CLASS Investigation Letter (see 6700 Documenting the Investigation); and
4. recommends to his or her supervisor if an enforcement action should be taken against the CPA.

6511.4 Reclassifying an Investigation of an Agency Home as a Priority 4

September 28, 2018

The investigator may seek supervisory approval to reject the CPA's report and change a *Priority 5: CPA Internal Investigation* to a *Priority 4: CPA Internal Investigation* to complete the investigation and conduct an inspection under the following circumstances:

1. The investigator determines that the report received is incomplete or unsatisfactory;
2. The information in the report indicates there is elevated risk; or
3. CPA fails to provide the report within 30 days of being notified of the investigation.

Before changing the priority from a Priority 5 to a Priority 4, the investigator must complete the fields in the *Report/Response Action* section on the *Investigation Conclusion* page as described in 6511.5 Documentation of Investigations Conducted by Child-Placing Agencies.

The investigator then completes an investigation assigned a Priority 4 according to the policy and procedures outlined elsewhere in policy.

See:

6242 Changing the Priority of an Investigation in CLASS
6431.3 Inspection Time Frame for Priority 4 Investigations

6511.5 Documentation of Investigations by Child-Placing Agencies

September 28, 2018

The investigator documents the following information in CLASS for an investigation assigned to a child-placing agency (CPA) to complete, whether the investigation is completed by the CPA or is completed by the Licensing investigator as a Priority 4 investigation:

1. Initiation information is documented in the *Initiation of Investigation* section on the *Investigation Conclusion* page as follows:
   - The date the CPA was notified of the investigation is documented in the *Date Initiated* field.
   - The 30-day due date the CPA has to send the completed investigation report is documented in the narrative box.
2. All communication with the CPA or other persons involved in the investigation are documented on the *Contact List*.
3. After receiving the CPA's report, the investigator documents a summary of the CPA's investigation, including any deficiencies the CPA cited on the home, as a contact on the *Contact List*.
4. The investigator documents information about the CPA's report in the *Report/Response* Action section on the *Investigation Conclusion* page as follows:
   - The investigator documents date the report the investigator received the report in the *Report/Response* Received field.
   - The investigator selects *Accepted or Rejected* from the *Final Action* dropdown menu.
   - The investigator documents the date of the action in the *Action Date* field.
5. The investigator documents information about the conclusion of the investigation, including the following information, in the *Investigation Findings* section:
   - *Explanation of the Disposition Based on Preponderance*
   - *Recommended Action*
   - Notifications dates
   - Completion and closure dates

The investigator documents the following in the *Explanation of the Disposition Based* on *Preponderance* statement:

1. timeliness of the investigation conducted by the CPA;
2. thoroughness of the investigation conducted by the CPA;
3. the risk to children found as a result of the CPA's investigation; and
4. any citations issued as a result of the investigation.

For investigation procedures, see 6510 Investigations Involving Homes Regulated by a Child-Placing Agency (CPA).

6520 Investigations of Matches to the Database of Sex Offenders

September 28, 2018

Each district director develops a plan to ensure that staff check the sex offender batch report (located under the *CLASS Tools* tab) that runs every Tuesday and Thursday at least weekly to determine if there are sex offenders identified as a Match Level 1 in his or her district.

A Match Level 1 is considered an exact match; that is, the sex offender's address matches the address of a regulated operation.

The exception to these procedures is when a child in care is a registered sex offender. Licensing does not conduct an investigation under these circumstances.

6521 Investigating the Match When the Sex Offender's Offense is Against a Child

September 28, 2018

When the batch report review reveals that a person on the report has an address that matches the address of an operation or home and the victim was a child, Licensing staff refer the incident to Statewide Intake (SWI) for investigation by DFPS as Priority 2 (P2) abuse or neglect.

Procedure

Licensing staff must:

1. call the worker line for SWI support staff;
2. request that SWI enter the information in the IMPACT case management system as an intake report for abuse or neglect; and
3. request that SWI enter the report as neglectful supervision by the caregiver (alleged perpetrator).

6522 Investigating the Match When the Sex Offender's Offense is Against an Adult

September 28, 2018

Procedure

When the batch report review reveals that a person on the report has an address that matches the address of an operation or home and their victim was an adult, Licensing staff must enter an intake report and investigate the information as a Priority 2 (P2) investigation as follows:

1. create an intake report in CLASS;
2. select the *Reporter Anonymous* checkbox on the *Reporter Information* page (no other reporter information may be entered for reports based on the sex offender batch report);
3. prioritize the intake report as a *Priority 2 – Serious safety or health hazard*;
4. select the *Endangering Person* allegation type; and
5. follow procedures for a Priority 2 investigation.

If the investigator confirms that a listed sex offender resides in the operation, has a relationship with the provider, or otherwise may have contact with children in care, then the permit holder must:

- have the sex offender relocate to a new address; and
- ensure the sex offender has no contact with the operation while children are in care.

If the permit holder is unable or unwilling to remove the sex offender from the operation, Licensing must revoke or deny the operation's permit.

See 7600 Adverse Actions.

See also:

6241 Classifying the Priority of an Intake Report
6400 Conducting the Investigation

6530 Investigations of Unregulated Operations

February 2020

6531 Conducting Due Diligence Searches

February 2020

Procedure

Upon receiving information of a possible unregulated operation, and before assigning a priority (including a report received through SWI regarding an alleged unregulated operation), the investigator searches the following databases in the order listed and by using a variety of parameters, including name, address, and telephone number:

1. CLASS, to determine whether the operation has a permit or has previously been reported to be operating without a permit, or if anyone associated with the operation has a background check.
2. IMPACT, to determine whether any person associated with the operation is a designated or sustained perpetrator.
3. The DPS sex offender registry, to determine whether the operation's address is an exact match to an address listed on the registry or whether any person associated with the operation is listed in the registry.

Staff are not required to complete all searches before assigning a priority if it would interfere with initiation time frame requirements.

See 6221.4 Entering Reports of Unregulated Operations.

6532 Prioritizing Investigations of Alleged Unregulated Operations

Revision 22-4; Effective Sept. 20, 2022

CCR staff must classify reports (including self-reports) of unregulated operations using the most appropriate priority description outlined in 6241 Classifying the Priority of the Intake Report.

6533 Initiating the Investigation of an Alleged Unregulated Operation

Revision 23-1; Effective April 21, 2023

Initiating an Investigation of an Alleged Unregulated Operation Assigned a Priority 1, 2 or 3

For all investigations of alleged unregulated operations assigned a Priority 1, 2, or 3, the investigator must initiate the investigation according to the policies outlined in 6410 Initiating the Investigation.

Initiating an Investigation of an Alleged Unregulated Operation Assigned a Priority 5

For all investigations assigned a *Priority 5: Illegal Operation with No Other Allegations (DC only)*, the investigator initiates an investigation within five days of the receipt of the intake report by:

1. contacting the alleged operation by phone, if the investigator has the operation's phone number; or
2. mailing or emailing CLASS Form 2826 Illegal Operations Letter to the operation, if the investigator only has the operation's physical or email address.

If the investigator has both the operation's phone number and address or email address, the investigator contacts the operation by phone first. If phone contact is not successful, the investigator emails or mails CLASS Form 2826 Illegal Operations Letter to the operation.

If Unregulated Operations Unit (UOU) staff initiate the investigation by sending CLASS Form 2826 Illegal Operations Letter, UOU staff update the name and phone number of the contact person in the letter from the UOU inspector to the monitoring inspector that will be assigned the case.

Within one day of the date UOU or monitoring staff send the letter to the operation, the monitoring inspector creates a manual To-Do in CLASS to set a reminder of the date the operation must contact CCR. The inspector enters the date specified in the letter as the due date for the To-Do.

Staff may use this suggested language for the To-Do description: "Provider contact due by [ENTER DUE DATE], upgrade to P4 if no response by this date."

CCR staff uses the date they contacted the operation as the date of the initiation, even if this date is before the date the investigation is opened in CLASS.

6534 Conducting the Investigation of an Alleged Unregulated Operation

Revision 22-4; Effective Sept. 20, 2022

The purpose of the investigation is to determine if the operation is subject to regulation and whether any obvious hazards are present.

6534.1 Conducting an Investigation of an Alleged Unregulated Operation Assigned a Priority 1, 2 or 3

Revision 22-4; Effective Sept. 20, 2022

Procedure

For all investigations of alleged unregulated operations assigned a Priority 1, 2 or 3, the investigator conducts the investigation per the policies outlined in 6400 Conducting the Investigation, including conducting an inspection according to the time frames in 6430 Conducting the Inspection.

If the investigator determines that the operation is not subject to regulation, the investigator follows procedures in 6537.1 Procedures When an Alleged Unregulated Operation Is Determined to Be Not Subject to Regulation.

If the investigator determines that the operation is subject to regulation, the investigator follows procedures in 6537.2 Procedures When CCR Determines an Alleged Unregulated Operation is Subject to Regulation.

6534.2 Conducting an Investigation of an Alleged Unregulated Operation Assigned a Priority 5 (DC Only)

Revision 22-4; Effective Sept. 20, 2022

For all investigations of alleged unregulated operations assigned a Priority 5, the investigator attempts to gain sufficient information to determine if the provider is subject to regulation without conducting an inspection.

6534.21 Operation Fails to Contact Investigator Within the Required Time Frame (Priority 5 Investigations)

Revision 22-4; Effective Sept. 20, 2022

Procedure

When the investigator initiates the investigation by mailing or emailing CLASS Form 2826 Illegal Operations Letter to the alleged unregulated operation, and the operation fails to contact the investigator by the date listed on the letter:

1. the investigator completes the fields in the *Report/Response Action* section on the *Investigation Conclusion* page and notifies the supervisor the same day to upgrade the investigation to a Priority 4 by the next business day;
2. the supervisor upgrades the investigation to a Priority 4 by the next business day after the investigator completes the *Report/Response Action* section on the *Investigation Conclusion* page;
3. the investigator conducts an inspection of the operation as soon as possible but no later than 30 days after receipt of intake; and
4. the investigator advises the operation of the legal requirements for when the person or entity must have a permit and determines whether the operation is subject to regulation.

If the investigator determines that the operation is not subject to regulation, the investigator follows procedures in 6537.1 Procedures When CCR Determines an Alleged Unregulated Operation is Not Subject to Regulation.

If the investigator determines that the operation is subject to regulation, the investigator follows procedures in 6537.2 Procedures When CCR Determines an Alleged Unregulated Operation is Subject to Regulation.

6534.22 Operation Contacts the Investigator Within the Required Time Frame (Priority 5 Investigations)

Revision 22-4; Effective Sept. 20, 2022

Procedure

If the operation contacts the investigator within the time frame listed on the notification letter, the investigator advises the operation of the legal requirements for having a permit to provide regulated child care and determines if the operation is subject to regulation.

If the investigator determines that the operation is not subject to regulation, the investigator follows procedures in 6537.1 Procedures When CCR Determines an Alleged Unregulated Operation is Not Subject to Regulation.

If the investigator determines that the operation is subject to regulation, the investigator follows procedures in 6537.2 Procedures When CCR Determines an Alleged Unregulated Operation is Subject to Regulation.

6534.3 Referring Investigations to the Unregulated Operations Unit

February 2020

Elevating Investigations to the Unregulated Operations Unit

After progressing an intake report to investigation, Licensing staff elevate the following investigations to the Unregulated Operations Unit:

1. Investigations assigned a Priority 1;
2. Investigations of operations that have been investigated for operating without a permit on three or more occasions (including the current investigation); and
3. When a court order is necessary to gain physical access to the operation.

See:
6535.1 Obtaining a Court Order to Gain Access

Procedure

If Licensing staff determine the information in an intake report or the information gathered during an investigation meets criteria to be elevated to the Unregulated Operations Unit, the following actions are taken:

- Licensing staff notifies the supervisor; and
- The supervisor contacts the supervisor of the Unregulated Operations Unit assigned to the region to determine whether to transfer the investigation.

If the information obtained indicates allegations of abuse or neglect, Licensing staff refer the information to DFPS, as outlined in 6231.21 Upgrading an Intake Report to an Abuse, Neglect, or Exploitation Intake Report.

6535 Obtaining Consent to Enter an Unregulated Operation

Revision 23-3; Effective Sept. 22, 2023

The investigator must receive consent to enter from a person legally authorized to grant consent before entering an establishment to investigate allegations that it is operating without a permit.

Procedure

The investigator obtains consent to enter the operation in writing using Form 2895 Request to Enter located on the CCR SharePoint site. The signed form is part of the investigation files as outlined in Appendix 1000-1 Organizing Child Care Regulation Records and 1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files.

If the provider refuses to allow an inspection or investigation of the operation, the investigator informs the provider that the investigator may issue a citation for failure to follow statute or administrative rules.

If the provider refuses to allow the investigator to enter, the investigator continues with other investigation activities to gain as much information as possible to determine if the operation is subject to regulation. This includes:

1. observing the outside environment of the establishment;
2. conducting surveillance of the establishment;
3. talking to parents who may be dropping off or picking up children;
4. interviewing neighbors; and
5. interviewing other collateral contacts that may have information.

6535.1 Obtaining a Court Order to Gain Access

February 2020

Seeking a court order may be necessary to gain physical access to the operation if the investigator discovers information that indicates children are at risk of harm. Investigations requiring a court order to gain access must be referred to the Unregulated Operations Unit.

Licensing staff work with the Licensing attorney when a court order is necessary to interview a child or to gain access to an operation. Licensing staff also include the local district attorney's office in this process.

See also:

6421.2 Observing and Interviewing a Child Related to a Child Care Provider
6534.3 Referring Investigations to the Unregulated Operations Unit

6536 Requesting an Unregulated Operation to Cease Operating

February 2020

If the investigator determines that the unregulated operation poses an immediate risk to the health or safety of children, the investigator must ask the operation to cease operating immediately until the operation can obtain the appropriate permit. If the operation agrees to cease operating, the investigator contacts the parents or has the provider contact the parents to pick up the children immediately.

Circumstances that may require an unregulated operation to cease operating include, but are not limited to, the following:

1. The number and ages of children in care exceeds the abilities of the provider to provide appropriate care and supervision;
2. The physical environment poses a risk to the health or safety of children;
3. The provider or household member has a criminal, central registry, or sex offender match;
4. The operation is currently being investigated due to allegations of abuse, neglect, or exploitation; or
5. The operation has indicated it is unwilling to submit an application for a child care permit.

Procedure

If the determination is made that an unregulated operation should cease operating, the investigator follows the procedure outlined in 6332.4 Requesting That an Operation Cease Operating (Day Care Only).

6537 Procedures Once CCR Determines Whether an Alleged Unregulated Operation is Subject to Regulation

Revision 22-4; Effective Sept. 20, 2022

6537.1 Procedures When CCR Determines an Alleged Unregulated Operation is Not Subject to Regulation

Revision 22-4; Effective Sept. 20, 2022

Procedure

After determining that the alleged unregulated operation is not subject to regulation, the investigator:

1. documents the reason for closure in the *Explanation of the Disposition* box on the *Investigation Conclusion* page;
2. documents all contacts and marks each minimum standard that the investigator chose to evaluate as *Compliant* on the *Standards Details* page;
3. documents the recommended action as *No Action*;
4. completes the *Unregulated Operation Risk Factor Identified* section on the *Risk Factor* page in CLASS as outlined in 6538 Identifying Risk Factors for Unregulated Operation Investigations (DC only);
5. closes the investigation in CLASS; and
6. closes the operation (unless risk based follow-ups are required);

6537.2 Procedures When CCR Determines an Alleged Unregulated Operation is Subject to Regulation

Revision 23-4; Effective Nov. 30, 2023

Procedure

When the investigator determines that the alleged unregulated operation is subject to regulation, the investigator cites the operation for operating without a permit.

If the investigation has a priority of P1, P2, P3 or P4, the investigator also:

1. provides the appropriate application to the operation;
2. requests that the provider submit the appropriate application or exemption request form, as applicable, within five days of the date of inspection; and
3. if the operation does not submit the application within five days of the date of inspection, conducts a follow-up inspection within 15 days of the compliance date to verify that the operation is either closed or applying for a permit.

If the investigation has a priority of P5, the investigator also:

1. mails or emails the operation Form 2865 Unregulated Operation Application Cover Letter (located on the CCR SharePoint site) with the application attached, or provides the link for electronic submission of an application;
2. advises the operation it must submit the application or exemption request form within five days of receipt of the application or electronically within five days from the date of contact;
3. requests that the provider submit the appropriate application or exemption request form, as applicable, within five days of the date of contact; and
4. if the operation does not submit an application within five days of the date of contact, conducts a follow-up inspection within 15 days of the compliance date but no later than 30 days after the date of intake to verify that the operation is either closed or applying for a permit.

6538 Identifying Risk Factors for Unregulated Operation Investigations

October 2020

Prior to completing an investigation to determine if a provider is operating as a day care operation without a permit, the investigator must complete the *Unregulated Operation Risk Identified* section on the *Risk Factor* page in CLASS. When completing this section, the investigator indicates whether a risk factor is identified by selecting “Yes” or “No.”

6538.1 Follow-Up Actions Based on Identified Risk Factors

October 2020

No Follow-Up Action Required

If the investigator does not select any risk factors in the *Unregulated Operation Risk Factor* section in CLASS, the investigator closes the investigation in CLASS.

Risk Factors That Require a Follow-Up Inspection

The investigator completes a follow-up inspection three months after the completion of the investigation when at least one risk factor is selected from the *Unregulated Operation Risk Factor Identified*.

The investigator completes an additional follow-up inspection six months after the completion of the investigation if the operation was previously cited or investigated for operating without a permit.

6538.2 Action to Take After the Follow-Up Inspection

October 2020

CCR staff takes appropriate action, based on what he or she finds during the follow-up inspection:

If CCR staff …	Then CCR staff …
Determines that the operation is no longer providing care that is subject to regulation or advertising child care services,	Closes the operation in CLASS.
Determines that the operation is providing care that is subject to regulation,	Opens a new investigation with an assigned *Priority 2: Serious safety or health hazard* and cites the operation for operating without a permit in the new investigation.
Cannot determine if the operation is providing care that is subject to regulation,	Opens a new investigation with an assigned *Priority 2: Serious safety or health hazard* and determines whether to cite the operation for operating illegally in the new investigation.

6539 Documentation of Investigations of Unregulated Operations

Revision 22-4; Effective Sept. 20, 2022

Procedure

The investigator documents the following information in CLASS for an investigation of an unregulated operation:

Investigation Priority	Location on the *Investigation Conclusion* Page in CLASS	What to Document
All priorities	*Initiation of Investigation* section	Initiation information See 6414 Documenting the Initiation
All priorities	*Contact List* section	All communications with the operation or other persons involved in the investigation See 6700 Documenting the Investigation and 6723 Contact List
All priorities	*Investigation Findings* and *Dates* sections	Information about the conclusion of the investigation, including the following information: • Explanation of the Disposition Based on Preponderance; • Recommended Action; • Notification dates; and • Completion and closure dates. See 6724 Investigation Findings and 6725 Notification Dates
P4 and P5	*Report/Response Received* field in the *Report/Response Action* section	The date CCR received the operation's response to a phone call, email, or letter
P4 and P5	*Final Action* dropdown in the *Report/Response Action* section	*Adequate* if the operation: • Responded with sufficient information for the investigator to determine that the operation is not subject to regulation; • Submitted an application to be regulated, and there is no reason to conduct an investigation inspection; or • Responded with sufficient information for the investigator to determine that the operation was subject to regulation but that children are no longer in care. *Not Adequate* if the operation: • did not respond or • did not respond with sufficient information to determine whether the operation is subject to regulation.
P4 and P5	*Action Date* field in the *Report/Response Action* section	The date the inspector reviewed the action and determined whether the response was *Adequate* or *Not Adequate*

6540 Investigations Conducted as Desk Reviews

September 28, 2018

With supervisory approval, an investigation is prioritized as a Priority 5: Desk Review when there is a self-report concerning allegations of minor minimum standard violations, and there is no information in the intake report that the parent or guardian has concerns regarding supervision or safety.

A desk review may include:

1. making phone calls;
2. sending or receiving electronic communication; and/or
3. requesting documentation via electronic delivery.

The investigator must contact the operation during the investigation and may contact additional collateral sources, if applicable.

6540.1 Licensing Responsibilities

September 28, 2018

Procedure

The investigator reviews the information obtained during the investigation and takes one of the following actions:

1. accepts the response provided by the operation concerning the allegations; or
2. seeks supervisory approval to reclassify the investigation as a Priority 4 according to procedures in 6540.2 Reclassifying a Desk Review Investigation as a Priority 4.

If the response is accepted, the inspector also:

1. evaluates whether the operation should receive citations;
2. documents the investigation in CLASS according to the policies outlined in 6540 Investigations Conducted as a Desk Review;
3. notifies the operation about the results of the investigation using the CLASS Investigation Letter (see 6700 Documenting the Investigation).

6540.2 Reclassifying a Desk Review Investigation as a Priority 4

September 28, 2018

The investigator may seek supervisory approval to change a *Priority 5 – Desk Review to a Priority 4 – Desk Review requiring inspection* to complete the investigation and conduct an inspection under the following circumstances:

- The investigator determines that the response from the operation is unsatisfactory; or
- The information obtained during the investigation indicates there is elevated risk to children in care and an inspection is needed.

The investigator completes an investigation assigned a Priority 4 according the policy and procedures outlined elsewhere in policy.

See also:
6243 Re-Classifying a Priority 5 Investigation
6431.3 Inspection Time Frame for Priority 4 Investigations

6550 Investigations of Abuse, Neglect, or Exploitation of Elderly Adult or Adult with Disability in Residential Child Care Operation

Revision 24-4; Effective Nov. 13, 2024

When CCR receives an Information and Referral (I&R) intake related to an abuse, neglect or exploitation Provider Investigations (PI) investigation of an elderly adult or an adult with a disability in a residential care operation, CCR staff prioritize the I&R intake and conduct an investigation to evaluate possible violations of statutes, administrative rules or minimum standards and evaluate the safety of children in care.

6551 Assessing the Priority of an Intake Related to a PI Investigation

Revision 24-4; Effective Nov. 13, 2024

When CCR receives the I&R intake for an investigation related to a PI investigation, CCR staff prioritize the I&R intake as Priority 3, unless the information in the intake meets the criteria for a Priority 1 or Priority 2 non-abuse, neglect or exploitation investigation per 6241 Classifying the Priority of the Intake Report.

6600, Completing the Investigation

September 28, 2018

The investigation is complete when the investigator has:

1. made all necessary contacts;
2. ensured the safety of the children at the operation; and
3. determined findings (compliance with or violations of statute, administrative rules, and minimum standards).

See 6400 Conducting the Investigation.

6610 Time Frames for Completion of the Investigation

September 28, 2018

Time frames for completing the investigation are based upon the priority assigned to the investigation:

Action	Priority 1	Priority 2	Priority 3	Priority 4	Priority 5
Complete investigation	30 days	30 days	60 days	60 days	60 days

See Appendix 6000-1 Time Frames for Investigations

6611 Extending Time Frames for Completing an Investigation

September 28, 2018

The investigator must obtain supervisory approval for an extension of the time frames for completion.

6611.1 Criteria for Requesting Additional Time to Complete the Investigation

September 28, 2018

Procedure

A supervisor may approve an extension only when the investigator cannot complete the investigation because of circumstances beyond the investigator's control, such as unavoidable delays in obtaining crucial information. A supervisor may extend the time frame by 30 days if:

1. the investigator still needs medical information;
2. the investigator has not received law enforcement reports;
3. an interview with a principal source involved in the investigation has been delayed; or
4. the investigator is waiting for information from another state agency.

Before approving an extension, the supervisor reviews the investigation and ensures the reason for the extension request meets one of these criteria.

To receive an approval for an extension for reasons other than those listed above, staff obtains approval from the district director or program administrator.

An extension should not be approved for the following reasons:

- The absence of an investigator
- A staff shortage

Investigation Activities During the Extension Period

During the extension period, the investigator must attempt to obtain the necessary information for completing the investigation at least once a week and document what efforts the investigator made to obtain the information, unless the entity from whom the investigator is awaiting information requests less frequent contact or has provided an estimated timeframe for being able to provide the requested information.

6611.2 Documenting an Extension

September 28, 2018

Following the staffing, the supervisor documents the approval of an extension by completing the required information in the *Supervisor Extension Approval* field. The narrative box must include the:

- reason for the extension; and
- date the extension expires.

6611.3 Obtaining an Additional Extension

September 28, 2018

A supervisor may extend the first 30-day extension for the same reasons stated in 6611.1 Criteria for Requesting Additional Time to Complete the Investigation. The new extension should not exceed 30 days. To document approval of a second extension the supervisor enters a contact with the following information:

1. the date of the staffing with the investigator;
2. reason for the extension; and
3. the expiration date of the extension.

During the extension period, the investigator must attempt to obtain the necessary information for completing the investigation at least once a week and document what efforts the investigator made to obtain the information, unless the entity from whom the investigator is awaiting information requests less frequent contact or has provided an estimated timeframe for being able to provide the requested information.

If the investigator needs an extension beyond the second 30-day period, the supervisor must consult with the district director or program administrator to obtain approval for the extension.

6620 Determining the Findings

September 28, 2018

At the end of the investigation, the investigator determines:

- whether violations of statute, administrative rules, or minimum standards have occurred; and
- whether further action is needed.

The investigator may, but is not required to, staff the finding(s) with the supervisor.

6630 Notifying the Operation of the Results of an Investigation

Revision 23-4; Effective Nov. 30, 2023

The investigator notifies the following persons in writing by email or mail about the results of the investigation:

1. the person in charge at the operation;
2. the designee, director, administrator or primary caregiver; and
3. those as required by Appendix 3000-1: Notifying the Operation.

26 TAC Section 745.8443

6631 Time Frames for Notifying the Operation

December 2019

The investigator notifies the operation of the results of an investigation:

- the same day the investigation is completed for an investigation assigned a Priority 1 or 2; or
- within 60 days of receiving the intake report for an investigation assigned a Priority 3, 4 or 5.

See Appendix 6000-1 Investigator Time Frames for Investigations.

6632 Completing the Investigation Letter or Inspection Form

Revision 23-4; Effective Nov. 30, 2023

Procedure

The investigator generates the CLASS Investigation Letter 2896 or the CLASS Form 2936 Child-Care Facility Inspection to provide the operation with information about the investigation, the findings, confidentiality protections and next steps for the operation.

The investigator sends the inspection form instead of the investigation letter only when the investigator can completely evaluate and make a determination regarding all applicable statutes, administrative rules or minimum standards under review at the time of the investigation inspection. In all other circumstances the investigator sends the investigation letter.

The investigation letter or inspection form includes all the following:

1. the purpose and date of the investigation;
2. evaluation of compliance with applicable statute, administrative rules and minimum standards;
3. the specifics of each deficiency cited during the investigation;
4. the date by which the operation must comply with each deficiency cited;
5. any technical assistance provided;
6. a statement explaining the operation's right to an administrative review to dispute any deficiency cited;
7. the name of the CCR staff who conducted the investigation; and
8. the requirement for posting the investigation results for child day care (see 4173 Posting the Day Care Inspection Form or Assessment Form).

Texas Human Resources Code Section 42.044(c)

26 TAC Section 745.8445

6640 Notifying the Reporter of the Results of the Investigation

Revision 23-4; Effective Nov. 30, 2023

The investigator notifies the reporter of the results of the investigation. CCR staff select the *Reporter Results* box on the *Investigation Persons* page in CLASS for all investigations unless one of the below exceptions applies.

Exception

CCR staff do not check the *Reporter Results* box on the *Investigation Persons* page in CLASS and do not send notification of the investigation results to the reporter if any of the following apply:

1. there is a reasonable likelihood that notifying the reporter will jeopardize the reporter's safety; or
2. the reporter is anonymous.

If there is an exception to sending the notification of the investigation results to the reporter, the investigator does not check the *Reporter Results* box on the *Investigation Persons* page in CLASS.

26 TAC Section 745.8443.

6641 Time Frames for Notifying the Reporter of Investigation Results

Revision 23-4; Effective Nov. 30, 2023

The investigator sends notification of the findings to the reporter as follows:

If the priority of the investigation is…	**Then the investigator sends notification of the findings to the reporter…**
Priority 1 or 2,	on the same date the investigation is completed.
Priority 3, 4 or 5,	within 60 days of receiving an intake report.

See:

Appendix 6000-1 Investigator Time Frames for Investigations

6642 Completing the Reporter Letter

December 2020

CCR staff send the reporter notification of the investigation results when the *Reporter Results* check box on the *Investigation Persons* page in CLASS is checked. If the check box is unchecked, CCR staff do not send a notification.

Procedure

To determine whether to send notification of investigation results to the reporter, CCR staff review the *Reporter Results* check box on the *Investigation Persons* page in CLASS.

- If the *Reporter Results* check box is checked, CCR send the Conclusion to the Reporter Letter 2814 to the reporter containing the results of the investigation via regular mail.
- If the *Reporter Results* check box is not checked, CCR staff do not send the investigation results to the reporter.

6700, Documenting the Investigation

Revision 23-3; Effective Sept. 22, 2023

Investigation records include the investigation activities and conclusions related to findings based on CCR statute, administrative rules or minimum standards. The investigator documents all activities related to investigations in CLASS.

The investigator documents investigation contacts in CLASS on the same date as the contact or by the next day.

Procedure

The amount of documentation needed is determined by the complexity of the investigation. Documentation may be brief and succinct but must adequately describe or explain the investigative activities and evidence collected.

6710 Documentation in CLASS

Revision 24-1; Effective Feb. 20, 2024

Investigators document the following information in CLASS:

1. allegations in the intake report by selecting the correct *Allegation Type* check boxes;
2. a description of the allegation;
3. CCR statute, administrative rules and minimum standards evaluated as part of the investigation;
4. the identity of the agency home that is the subject of the investigation, if the investigation is of an adoptive or foster home;
5. information about a safety plan on the *Risk Factors* page or as a contact in the investigation, if applicable;
6. all identified risk factors on the *Risk Factor* page;
7. victim information, including if the child has been injured;
8. staffings and all other consultations;
9. all contacts made during the course of an investigation;
10. an explanation of how the evidence supports the findings; and
11. all compliances, deficiencies, findings and notification dates.

Investigators upload digital files such as photographs, audio files and video files to CLASS Document Library from the applicable CLASS page(s).

References:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
6250 Assessing an Intake Report for Allegation Types in CLASS
6313.1 Writing the Allegation
6313.2 Determining Which Statues, Administrative Rules, and Minimum Standards to Evaluate
6334 Documenting the Safety Plan in CLASS
6724 Investigation Findings
6730 Updating the Person Detail Page

6720 Documentation on the Investigation Conclusion Page in CLASS

September 28, 2018

The investigator must document all of the information the investigator used to determine a finding in an investigation in CLASS on the *Investigation Conclusion* page.

6721 Initiation of Investigation Field

September 28, 2018

Procedure

The investigator must complete all pertinent information in the *Initiation of Investigation* section. See 6414 Documenting the Initiation.

6722 Observation Made During Inspection Field

September 28, 2018

Procedure

The investigator documents observations made during an investigation inspection according to the procedures in 6432 Documenting Observations Made During the Inspection.

6723 Contact List

April 2021

Procedure

The investigator enters a summary of information obtained for each contact by selecting *Add New* under the *Contact List* section of the *Investigation Conclusion* page. Details of the following types of contacts are entered on the *Add/View Contacts* page:

1. Face-to-face and attempted face-to-face contacts;
2. Telephone conversations and attempted telephone calls;
3. Correspondence, whether sent or received;
4. All staffings or consultations;
5. Any approvals received from management regarding the investigation; and
6. Any additional communication, whether verbal or written, pertaining to the investigation.

For a recorded interview, the investigator enters a summary of the interview in the contact and documents the location of the recording. Documentation regarding children should include the first name and last initial of the child only.

See:

6420 Conducting Interviews
6440 Collecting Evidence

6723.1 Contact Types

April 2021

When entering a contact on the *Add/View Contacts* page, staff select from the following contact types:

Attempted Face-to-Face Contact

The investigator selects *Attempted Face-to-Face* when the investigator attempted a face-to-face contact that was not successful. The investigator notes the reason that the investigator did not complete the contact in the *Entry Text*.

Face-to-Face Contact

The investigator selects *Face-to-Face* for all face-to-face contacts (including face-to-face interviews conducted at the operation during the course of an inspection).

Inspection

The investigator selects *Inspection* to document observations that the investigator made during the inspection and conversations related to those observations.

Phone Call

The investigator selects *Phone Call* to document telephone conversations or attempted telephone conversations.

Other

The investigator selects *Other* for the following situations, including but not limited to:

- Correspondence, whether sent or received;
- All staffings or consultations; and
- Any additional communication pertaining to the investigation, whether verbal or written.

See:

6420 Conducting Interviews
6440 Collecting Evidence

6724 Investigation Findings

September 28, 2018

Procedure

The investigator completes the *Investigations Findings* section on the *Investigation Conclusion* page in CLASS for all investigations.

6724.1 Explanation of Disposition Based on Preponderance

September 28, 2018

Procedure

This documentation explains how the investigator evaluated the evidence and determined whether the operation was in compliance with the relevant standards. The documentation must include a summary of how the specific evidence collected supported or refuted the allegations.

6725 Notification Dates

December 2020

Procedure

The following dates are entered in CLASS:

Notification to Provider – the date CLASS form 2936 or 2896 was sent to the provider notifying them of the outcome of the investigation and any citations issued.

1. This date must be the same as the *Investigation Complete* date and the *Documentation Complete* date for an investigation assigned a Priority 1 or 2;
2. This date must be the same as or later than the *Investigation Complete* date for all other investigations; or
3. If the investigation involved an unregulated operation with no address, this field is left blank.

Notification to Reporter – the date the notification letter to the reporter was sent. This date must be the same as or later than the *Investigation Complete* date. If no notification is required this field is left blank.

Investigation Complete – the date all actions in the investigation were taken and a determination was made. This date must match the *Documentation Complete* date.

Documentation Complete – the date that all documentation pertaining to the investigation has been completed. This date must match the *Investigation Complete* date.

Investigation Closed – the date the investigation is closed in CLASS and no further action regarding this investigation is needed including due process actions for the operation.

See Appendix 6000-1 Investigator Time Frames for Investigations

6725.1 Extension Approval

September 28, 2018

Procedure

The investigator must enter all pertinent information in the Extension Approval any time an extension has been approved for an investigation. See 6611.2 Documenting an Extension.

6730 Updating the Person Detail Page

Revision 22-4; Effective Sept. 20, 2022

By the conclusion of the investigation, the investigator ensures that identifying information and certain other information has been obtained and entered in CLASS for all alleged victims identified in the intake report and during the investigation.

Procedure

The investigator ensures all children identified as an alleged victim (see 6120 Types of Contacts) in the intake and during the investigation are listed as a victim in the *Victim/Parent List* section on the *Investigation Persons* page in CLASS.

For every alleged victim, the investigator completes the following on the *Investigation Victim* and *Parent Details* page in CLASS:

1. in the *Victim/Parent Information* section:
    a. victim's name;
    b. victim's date of birth;
    c. victims ethnicity;
    d. victim's gender; and
    e. parent's information, if known;
2. in the *Injury Data for Residential and Day Care* section, the investigator indicates whether each identified child sustained an injury. If the child sustained an injury, the investigator also documents:
    a. the type of injury;
    b. the cause of injury, if known;
    c. what the injury was related to, if known;
    d. the injury date;
    e. the injury time ;
    f. the incident location (whether the child was in care at or away from operation);
    g. whether the injury was related to abuse or neglect (HHSC staff select "No");
    h. whether the injury was determined to be nonserious, serious, near fatal, or fatal; and
    i. whether the injury was related to a minimum standard violation (for both HHSC and DFPS investigations);
3. for investigations involving residential child care operations, both fields in the *Law Enforcement Information* section.

6731 Searching and Validating Victim Information for New Victims Identified During an Investigation (Residential Child Care Only)

Revision 23-4; Effective Nov. 30, 2023

CCR staff complete an IMPACT search in CLASS for any new victims identified during the investigation.

Procedure

To conduct an IMPACT victim search for new victims identified during an investigation:

1. enter all required information about each victim identified in the investigation on the *Investigation Victim* and *Parent Details* page as outlined in 6730 Updating the Person Detail Page;
2. click the *Save and Search* button;
3. on the *IMPACT Victim Search* page, review person information displayed in the *Search Criteria* section and enter additional search criteria, if known;
4. click the applicable checkbox(es) to select the criteria to search;
5. click the *Search* button to initiate the search;
6. if an appropriate match is found, select the radio button next to the matching person and click the *Save & Link* button; and
7. if an appropriate match is not found, select the *No Match Found* button.

For more information about conducting victim searches, see 6221.5 Searching and Linking Victim Information (Residential Child Care Only).

After identifying and searching a victim, CCR staff verify the victim information is correct and that the search is complete by clicking the *Save & Validate* button on the *Investigation Victim and Parent Details* page.

6740 Maintaining an Investigation File

Revision 23-3; Effective Sept. 22, 2023

During investigations, investigation records are confidential and may be disclosed only in special situations.

After completion of the investigation, all the information in the investigation file becomes part of the operation records and is subject to open records requests with confidential information redacted.

See:

1311 Records for Investigations
8100 Information for General Release
8210 Confidential Information Not for Release to the Public

Texas Government Code, Title 5, Chapter. 552, Texas Public Information Act

Procedure

The investigator develops a confidential investigation file that includes notes and documents obtained during the investigation. The materials used in, and obtained during, the investigation are kept separate from the operation's case record until after completion of the investigation. Information that is included in CLASS does not have to be included in the investigation file unless it is an item that requires an original signature.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

6800, Recommending Action as a Result of Investigation Findings

September 28, 2018

After a Licensing investigator completes an investigation, the investigator must decide what action to recommend.

6810 Issues to Consider Before Recommending an Action

September 28, 2018

Before making a recommendation, the investigator reviews the:

1. findings of the investigation;
2. level of risk to children in care; and
3. operation's compliance history.

If the investigator consults with the supervisor to determine what action to take, the investigator documents the staffing on the *Contact List* on the *Investigation Conclusion* page in CLASS.

See also Appendix 7000-1: Assessing the Need for Enforcement Action.

6820 Actions to Take Following the Investigation of a Regulated Operation

Revision 24-1; Effective Feb. 20, 2024

CCR may do the following after completing an investigation of a regulated operation:

1. take adverse action;
2. take corrective action;
3. take no action;
4. re-evaluate monitoring frequency; or
5. do routine monitoring.

If corrective or adverse action is implemented, CCR staff follows the policies and procedures outlined in 7400 Probation or 7600 Adverse Actions.

6830 Actions to Take Following an Investigation of an Unregulated Operation

September 28, 2018

Licensing may do the following after completing an investigation of an unregulated operation:

1. If the investigator did not identify risk to children, set time limits for the operation to submit an application; or
2. If the investigator identified risk to children, ensure the operation has ceased providing care to children.

As appropriate, the investigator must:

a. Follow-up to ensure that the operation has submitted an application or ceased providing care subject to regulation; and
b. Refer the operation for legal action if the operation continues to care for children and does not submit a timely application.

See also:

6538 Identifying Risk Factors for Unregulated Operation Investigations
Appendix 7000-1: Factors to Consider for Enforcement Actions
Texas Human Resources Code §42.074(a)(2)

6840 Documentation in CLASS

September 28, 2018

The investigator documents the recommendation by choosing the correct option from the *Recommended Action* drop-down field on the *Investigation Conclusion* page.

6900, HHSC Responsibilities in DFPS Investigations

6910 Responsibilities of HHSC Licensing Staff

September 28, 2018

HHSC Licensing staff work in conjunction with the Department of Family and Protective Services (DFPS) child care investigators to complete the regulatory tasks associated with DFPS investigations of abuse, neglect, or exploitation in child care facilities regulated by HHSC.

6911 HHSC Investigator Responsibilities Related to a DFPS Investigation

Revision 23-4; Effective Nov. 30, 2023

HHSC investigators are responsible for the following activities related to a DFPS investigation, including:

a. participating in risk assessments with DFPS;
b. discussing with DFPS information that DFPS shares about the operation that relates to HHSC regulatory responsibilities;
c. evaluating the information DFPS provides to determine whether to cite violations of statute, administrative rules or minimum standards, and making referrals to Child Care Enforcement, as appropriate;
d. documenting the allegation record on the *Add/View Allegation* page in CLASS;
e. completing the *Unregulated Operation Risk Identified?* section on the *Risk Factors* page in CLASS for unregulated operation investigations;
f. indicating whether an injury the DFPS investigator confirmed is related to a minimum standards violation;
g. notifying the operation of the results;
h. conducting follow-up inspections for deficiencies;
i. seeking injunctions for unregulated operations that refuse to cease operating;
j. sending notifications to, and closing operations that, DFPS determines are not subject to regulation; and
k. closing the investigation in CLASS.

See:

6730 Updating the Person Detail Page
6960 Notifications for a DFPS Investigation

6912 HHSC Supervisor and Supervisor Designee Responsibilities

September 28, 2018

HHSC supervisors or their designees are responsible for all of the following:

a. Consulting with DFPS supervisors regarding the downgrade of a DFPS investigation; and
b. Ensuring that HHSC investigators adhere to responsibilities pertaining to DFPS investigations according to policies and procedures.

6920 Reclassifying Intake Reports

September 28, 2018

DFPS may determine that the allegations in an intake report do not meet the definition of abuse, neglect, or exploitation and downgrade the intake report.

6921 Receiving an Intake Report that Has Been Downgraded

September 28, 2018

HHSC Licensing staff may receive an intake report that DFPS downgraded if a DFPS supervisor or designee determines the information in the intake report does not indicate a child was abused, neglected or exploited.

Procedure

A DFPS supervisor contacts an HHSC supervisor to discuss the recommendation to downgrade an intake report to a "no priority" (PN). If the HHSC supervisor agrees with the recommendation, DFPS downgrades and closes the report in IMPACT and routes the CLASS intake report to the HHSC router for assignment.

If the HHSC supervisor disagrees with the recommendation to downgrade the intake report, DFPS staff consult the DFPS program administrator or designee for a final decision.

See also 6211 Closing the Report in IMPACT.

6930 Risk Assessments for DFPS Investigations

May 2021

A risk assessment is a staffing between the HHSC investigator and the DFPS investigator to review the operation's:

a. characteristics;
b. compliance history; and
c. investigation history.

For residential child care operations, the risk assessment also includes reviewing compliance history for the current operation and from all prior operation numbers identified in the *Issuance History* section on the *Operation Main* page in CLASS.

The purpose of a risk assessment during a DFPS investigation is to:

a. ensure the continuity in regulatory decisions between DFPS investigative and HHSC CCR monitoring activities;
b. ensure that appropriate regulatory action is taken to protect children; and
c. determine the overall safety of children and likelihood of future abuse, neglect or exploitation in the home or operation.

6931 Receiving a Request for a Risk Assessment

September 28, 2018

The HHSC investigator must respond to a DFPS investigator's request for a risk assessment within two business days of receiving the request. The HHSC investigator must provide the DFPS investigator all requested information to complete a risk assessment for any operation that is the subject of a DFPS investigation.

The risk assessment may be conducted via face-to-face, phone, or email contact.

6940 Citing Deficiencies for a DFPS Investigation

December 2019

HHSC investigators evaluate information collected during DFPS investigations and cite deficiencies by inspection, *Monitoring* assessment, or directly within the DFPS Investigation, as appropriate.

6940.1 Possible High Risk Deficiencies Identified During the DFPS Investigation

December 2019

Procedure

If the DFPS investigator observes possible high risk, plain sight, physical plant, or records/administrative violations during the investigation, including during the DFPS investigator's visit to the operation, the DFPS investigator communicates the information to the HHSC investigator.

The HHSC investigator reviews any evidence the DFPS investigator provides to support the possible violations, such as photographs or copies of records, discusses any related questions or issues with the DFPS investigator and determines whether to:

a. cite as a *Monitoring* violation;
b. cite as an *Investigation* violation;
c. conduct a follow-up inspection to verify the violations in person; or
d. not cite any violations (the HHSC investigator obtains and documents supervisor approval within the DFPS investigation prior to closure).

The determination is made based on the level of risk the possible violations pose to children in care, but must occur no later than 10 days following the date the DFPS investigator notified the HHSC investigator of the possible violation.

6940.12 When to Cite the Operation for a Monitoring Violation

December 2019

A *Monitoring* (MON) violation is a deficiency of a plain sight, physical plant or administrative/records minimum standard, rule or law that:

a. the DFPS investigator observes while present at the operation; and
b. is **not** related to the allegations being investigated.

If the HHSC investigator determines there is enough evidence to support a *Monitoring* violation, the HHSC investigator follows 4200 Assessments.

6940.13 When to Cite the Operation for an Interim Investigation Violation

Revision 24-1; Effective Feb. 20, 2024

An *Investigation* (INV) violation is a deficiency of any statute, administrative rule or minimum standard that is related to the allegation being investigated. The DFPS investigator may observe or verify the deficiency at any point during the investigation.

If the HHSC investigator determines there is enough evidence to support an *Investigation* violation, the CCR supervisor creates the allegation record as outlined in 6950.1 Documenting the Allegation Record for a DFPS Investigation.

The HHSC investigator then:

a. adds the appropriate statute, administrative rule or minimum standard on the *Add/View Allegation* page within the DFPS investigation in CLASS; and
b. generates and mails or emails CLASS Form 2890 Interim Investigation Letter (located on the *Investigation Main* page) to the operation.

Reference: 6313.2 Determining Which Statues, Administrative Rules, and Minimum Standard to Evaluate.

6940.2 Possible Deficiencies Identified at the End of the DFPS Investigation

Revision 23-4; Effective Nov. 30, 2023

Procedure

Upon closing the investigation in IMPACT, the DFPS investigator:

a. sends notification to the reporter;
b. transfers the investigation to the HHSC investigator in CLASS;
c. notifies the HHSC investigator of the disposition; and
d. communicates information about possible violations to the HHSC investigator.

Within 10 days of the notification, the HHSC investigator evaluates the evidence and:

a. follows up with the DFPS investigator regarding any questions or issues related to the information DFPS provided;

b. conducts an inspection or additional investigation activities to confirm the violations, if needed;
c. documents the allegation record on the *Add/View Allegation* page in CLASS as outlined in 6950.1 Documenting the Allegation Record for a DFPS Investigation;
d. documents compliance information on the *Add/View Allegation* page in CLASS as follows:
    1. adds the minimum standard regarding the prohibition of abuse, neglect or exploitation of a child and marks as compliant or deficient, as appropriate;
    2. if the minimum standard regarding the prohibition of abuse, neglect or exploitation of a child is marked deficient, adds the following statement in the deficiency narrative: "This standard was found deficient as part of a DFPS Investigation.";
    3. cites any other violation of statutes, administrative rules or minimum standards and provides technical assistance, as appropriate; and
e. notifies the operation of the results of the investigation (see 6960 Notification for a DFPS Investigation).

Citing for Abuse, Neglect, or Exploitation in a Relative-Only Listed Family Home

If the DFPS investigator makes a finding of Reason to Believe for abuse, neglect or exploitation in a relative-only listed family home, the HHSC investigator cites Texas Family Code Sections 261.001 (1), 261.001(3), or 261.001(4), as appropriate.

6950 Documenting During a DFPS Investigation

September 28, 2018

If the HHSC investigator made any contact with the operation or another source to evaluate the operation's compliance with minimum standards, rules, or law, the HHSC investigator must document the contact in the DFPS investigation in CLASS.

Procedure

The HHSC investigator notes his or her full first and last name in each contact documented in the CLASS investigation.

See also 6700 Documenting the Investigation.

6950.1 Documenting the Allegation Record for a DFPS Investigation

Revision 23-4; Effective Nov. 30, 2023

Procedure

If the DFPS Investigation is Complete

If the DFPS investigation is complete, the investigator documents the following fields on the *Add/View Allegation* page in CLASS:

1. Incident Date. The investigator enters the *Incident Date* from the *Intake Report* page, if available. If the *Incident Date* is not available, the investigator enters the Intake *Date Received* from the *Intake Report* page;
2. Incident Time. The investigator enters the *Incident Time* from the *Intake Report* page, if available. If the *Incident Time* is not available, the investigator enters the *Time Received* from the *Intake Report* page; and
3. Allegation Description. The investigator documents the following statement: "The allegation is related to a DFPS abuse/neglect investigation."

If the DFPS Investigation is Not Complete

If the DFPS investigation is not complete, but DFPS notifies CCR that CCR needs to cite interim investigation deficiencies, the CCR supervisor creates the allegation record by documenting the *Incident Date*, the *Incident Time*, and the *Allegation Description* following the instructions listed above. The investigator then documents the interim investigation deficiencies as outlined in CCRH Sections 6940.1 and 6940.13.

6960 Notifications for a DFPS Investigation

Revision 23-1, Effective April 21, 2023

The HHSC investigator is responsible for notifying the operation of the results of the DFPS investigation.

Procedure

Once the HHSC investigator makes decisions about violations and, if applicable, documents citations on the *Add/View Allegation* page within the DFPS investigation in CLASS, the HHSC investigator notifies the operation of the results of the investigation by sending CLASS Investigation Letter 2896 from the *Investigation Main* page to the operation.

Note: The CLASS Investigation Letter 2896 is a cumulative record of all violations cited throughout the investigation, including violations the operation previously received notification of via the CLASS Interim Investigation Letter 2890.

See also:

6632 Completing the Investigation Letter or Inspection Form
6725 Notification Dates

6970 Actions Following a DFPS Investigation

May 2020

Procedure

If there are any safety concerns at the conclusion of the DFPS investigation, the HHSC investigator and supervisor meet to:

- evaluate the safety concerns; and
- determine what actions to take to ensure there is no immediate threat to the safety of children in care.

6970.1 Documenting the Recommended Actions

September 28, 2018

Procedure

If HHSC Licensing staff recommend an action based on safety concerns, the HHSC investigator documents the recommendation as a contact in the investigation. The documentation must include:

a. an explanation of the recommended action;
b. the time frame to implement the recommended action; and
c. the person responsible for implementing the recommended action.

The HHSC investigator selects the appropriate option from the *Recommended Action* drop-down field on the *Investigation Conclusion* page in CLASS.

6971 Reviewing a Citation for Abuse, Neglect or Exploitation When a DFPS Finding is Overturned

Revision 24-1; Effective Feb. 20, 2024

CCR staff evaluate if the operation's citation for abuse, neglect or exploitation is still appropriate within 30 days of receiving notification that a finding of abuse, neglect or exploitation has been overturned by DFPS through an administrative review of investigation findings (ARIF) or by HHSC Legal through a due process hearing (SOAH).

Procedure

The CCR inspector and supervisor review the citation for abuse, neglect or exploitation after CCR staff receive notification that DFPS overturned a finding of abuse, neglect or exploitation.

If CCR overturned the citation, no further action is needed.

If CCR has not overturned the citation, the inspector or supervisor requests that the program administrator (PA) or regional director (RD) complete a review to determine if the citation should be overturned or upheld. This review is conducted even if an administrative review of the citation has been requested or previously held.

If the review results in a decision that the citation is:

- no longer appropriate, the PA or RD follows the steps in *Overturning the Citation*.
- appropriate, the PA or RD documents the decision in a *Chronology* and takes no further action.

Overturning the Citation

To document a decision to overturn the citation after DFPS overturns the finding through an ARIF, the PA or RD completes the following steps. These steps are based on the administrative review status in CLASS for the citation at the time CCR staff were notified that the RTB was overturned.

If the administrative review status for the citation is ***Waived***, the PA or RD:

1. changes the status from *Waived* to *Requested*;
2. documents the notification of the overturned investigation finding in the *Due Process Documentation* or may continue documentation in a *Chronology*;
3. changes the status from *Requested* to *Overturned*; and
4. sends notification to the operation as required.

If the administrative review status is ***Upheld***, the PA or RD:

- changes the status from *Upheld* to *Overturned*;
- adds the notification of the overturned investigation finding to the *Due Process Documentation* or may continue documentation in a *Chronology*; and
- sends notification to the operation as required.

6980 Closing the DFPS Investigation in CLASS

September 28, 2018

The HHSC investigator is responsible for closing the DFPS investigation in CLASS.

Procedure

The HHSC investigator closes the investigation by entering the *Investigation Closed* date on the *Investigation Conclusion* page in CLASS at the time the operation is notified, if no deficiencies were cited, or when all follow up and due process for deficiencies have been resolved.

6990 Special Consideration for DFPS Investigations of Alleged Unregulated Operations

October 2020

When DFPS determines that an operation that is subject to regulation is operating without a permit, the HHSC investigator is responsible for:

a. citing the operation for operating without a permit; and
b. conducting a follow-up inspection at the operation to ensure the operation has ceased operating, when applicable.

When DFPS determines that an operation is not subject to regulation, the HHSC investigator is responsible for:

a. conducting any follow-up actions based on identified risk factors;
b. notifying the operation of the investigation results; and
c. closing the operation in CLASS.

See 6538.1 Follow-Up Action Based on Identified Risk Factors

6991 Citing an Operation for Operating Without a Permit

Revision 23-4; Effective Nov. 30, 2023

Procedure

If a DFPS investigator determines during a DFPS investigation that an operation does not have a permit but is subject to regulation, the HHSC investigator cites the operation for operating without a permit within 10 days of receiving the notification from DFPS.

See 6940.13 When to Cite the Operation for an Interim Investigation Violation.

6992 Seeking an Injunction During an Unregulated Operation Investigation

Revision 24-2; Effective May 22, 2024

HHSC staff is responsible for seeking an injunction if an unregulated operation provider is subject to regulation and refuses to cease operating during a DFPS investigation. HHSC staff refer injunction requests from DFPS to HHSC Child Care Enforcement.

Reference

Injunction, Including Temporary Injunction, 7710

HRC Section 42.074

6993 Notifications for DFPS Unregulated Operation Investigations

December 2019

The HHSC investigator is responsible for notifying the operation of the DFPS investigation results as outlined in 6960 Notifications for a DFPS Investigation. If the operation is not subject to regulation, the HHSC investigator follows the same notification procedures and closes the operation in CLASS.

7000, Voluntary Actions and Enforcement Actions

7100, Overview of Voluntary Actions and Enforcement Actions

Revision 24-1; Effective Feb. 20, 2024

Enforcement actions are actions HHSC recommends or imposes to ensure the safety of children in care at operations subject to regulation.

Enforcement actions may be voluntary or non-voluntary, and include the following:

Voluntary Enforcement Action	Non-Voluntary Corrective Actions	Non-Voluntary Monetary Actions	Non-Voluntary Adverse Actions	Non-Voluntary Judicial Actions
• plan of action	• probation	• administrative penalty • civil penalty	• denial of permit • revocation of permit • refusal to renew • suspension of permit • adverse amendment to permit	• temporary restraining orders • injunctions

Enforcement actions are neither punitive in nature nor required to be taken in any certain order. HHSC recommends or imposes enforcement actions based on the seriousness of the situation and on the operation's compliance history. HHSC does not have to recommend or impose a less serious action if HHSC determines that a more serious action is more appropriate.

Human Resources Code (HRC), Chapter 42, Subchapter D, Remedies (Sections 42.0705-42.079)

26 TAC Sections 745.8601, 745.8603 and 745.8607

7110 Circumstances That May Call for Enforcement Action

Revision 24-2; Effective May 22, 2024

HHSC may recommend or impose an enforcement action under the circumstances listed in the table below.

Topic and Rule Reference	Circumstance
Abuse, neglect, or exploitation resulting in a single serious deficiency, 26 TAC Section 745.8605(5)	DFPS determined abuse, neglect or exploitation occurred at the operation.
Administrative Penalties, 26 TAC Sections 745.8605(23) and 745.8605(24)	CCR identified a reason in HRC Section 42.078. The operation fails to pay an administrative penalty under HRC Section 42.078.
Applicant Fails to Comply with Public Notice and Hearing Requirements (Residential Child Care	The applicant or permit holder fails to comply with the requirements of a public notice or hearing in 26 TAC Section 745.277.

Topic and Rule Reference	Circumstance
Only), 26 TAC Section 745.8605(21)(A)	
Applicant Gives False Information or Makes False Statements, 26 TAC Section 745.8605(1)	During the application process, the operation gives false information or makes false statements.
Applicant Has Certain History in Another State, 26 TAC Sections 745.8605(18) and 745.8605(19)	The applicant: • has had a permit for a child care operation revoked by another state; or • is barred from operating a child care operation in another state for reasons like those that would cause CCE to take adverse action.
Applicant or Other Person Has Certain History with Another HHSC Agency, 26 TAC Section 745.8605(20)	The applicant has had a permit revoked, suspended, or terminated by another HHSC agency as outlined in Texas Government Code, Chapter 531, Subchapter W, relating to Adverse Licensing, Listing, or Registration Decision. A controlling person associated with the operation that is applying for a permit has had a permit denied or revoked by another HHSC agency for a substantive reason.
Applicant is a Designated Controlling Person, 26 TAC Section 745.8605(16)	The applicant is a designated controlling person and due process for the designation is not complete.
Applicant is a Sustained Controlling Person Within Certain Time Frame, 26 TAC Section 745.8605(17)	The applicant is a sustained controlling person, and the person was designated as a controlling person within five years of the date the application was submitted.
Applicant Provides Information Showing a Deficiency (DCCR Only), 26 TAC Sections 747.1003 and 747.1103	During the application process, the applicant for a registered or licensed child care home permit provides information that shows a deficiency in meeting the primary caregiver qualification requirements.
Background Check Matches, 26 TAC Section 745.8605(5)	The CBCU identifies a background check match or possible match that makes a permit holder or applicant ineligible to be present at the operation. **Note**: When a non-relative listed family home fails to submit a five-year background check by the due date CCR staff process an automatic action, and do not take an enforcement action. **Reference** Automatic Suspensions, 5810 Automatic Revocations, 5820
Deficiencies, 26 TAC Sections 745.8605(5), 745.8605(6), and 745.8605(7)	The operation has: • a single serious deficiency of a statute, administrative rule or minimum standard; • several deficiencies that create an endangering situation; or • a repetition or pattern of deficiencies.
Failure to Comply After Suspension Period, 26 TAC Section 745.8605(13)	The operation fails to comply with statutes, administrative rules, or minimum standards after the suspension period has ended.
Failure to Comply with Liability Insurance Requirements, 26 TAC Section 745.8605(3)	The operation fails to comply with liability insurance requirements. **References** Evaluating Compliance with Liability Insurance Requirements, 4600 HRC Sections 42.049 and 42.0495
Failure to Comply with Permit Conditions or Restrictions, 26 TAC Section 745.8605(11)	The operation fails to comply with the limits, restrictions, or conditions placed on the permit.
Failure to Correct Deficiencies, 26 TAC Section 745.8605(15)	The operation fails to correct by the compliance date any deficiency not pending due process.
Failure to Follow Conditions or Restrictions for a Person's Presence, 26 TAC Section 745.8605(25)	The operation fails to follow conditions or restrictions placed on a person's presence at an operation. **Reference** 26 TAC Sections 745.631 and 745.637.

Topic and Rule Reference	Circumstance
Failure to Meet Public Notice and Hearing Requirements After Exemption is No Longer Valid (RCCR Only), 26 TAC Section 745.8605(26)	During the application process the operation: • was exempt from the public notice and hearing requirements under 26 TAC Section 745.273(b); but • never provided or ceased to provide trafficking victim services and failed to meet the public notice and hearing requirements.
Failure to Meet Terms of Probation, 26 TAC Section 745.8605(12)	The operation fails to meet the terms and conditions of probation, which may result in a more serious enforcement action.
Failure to Notify of Changes other than a change in location, 26 TAC Section 745.8605(10)	The permit holder fails to timely report changes to CCR as required by statute, administrative rules, and minimum standards.
Failure to Pay Fees, 26 TAC Section 745.8605(4)	The operation fails to pay required fees other than an annual permit fee. CCR staff process an automatic action, not take an enforcement action, when the operation does not pay the annual permit fee. **References** Automatic Suspensions, 5810 Automatic Revocations, 5820
Failure to Report Change in Location, 26 TAC Section 745.429	The holder of a compliance certificate fails to notify CCR staff before a change in location. The permit holder of a registered or listed home fails to notify CCR staff within 15 days after a change in location.
Failure to Report Change in Location, 26 TAC Sections 745.431 and 745.433	**Reference** Handling Changes in an Operation, Type of Permit, Location and Ownership, 3800
Failure to Report Change in Location, 26 TAC Section 745.435	The permit holder of a licensed home fails to notify CCR staff at least 15 days before a change in location. **Reference** Handling Changes in an Operation, Type of Permit, Location, and Ownership, 3800
Failure to Report Change in Location, 26 TAC Section 745.435	The permit holder of a before or after-school program, school-age program, child care center, general residential operation, or child-placing agency fails to notify CCR staff 30 days before a change in location. **Reference** Handling Changes in an Operation, Type of Permit, Location, and Ownership, 3800
Failure to Timely Submit Changes to Controlling Persons, 26 TAC Section 745.8605(14)	The operation fails to submit information to CCR within two days of a change in controlling persons as required by 26 TAC Section 745.903
False Records, 26 TAC Section 745.8605(2)	The operation has falsified or permitted to be falsified any record or other materials that are required to be maintained by minimum standards
Immediate Threat or Danger, 26 TAC Section 745.8605(8)	There is an immediate threat or danger to the health and safety of children in care.
Refusal of Inspection or Investigation, 26 TAC Section 745.8605(9)	Someone at the operation refuses, prevents, or delays an inspection or investigation conducted by HHSC or DFPS.
Results of Public Hearing (Residential Child Care Only), 26 TAC Section 745.8605(21)(B)	As a result of a public hearing, CCR determines: • the community has insufficient resources to support the children the operation proposes to serve; • issuing the license or amending the permit would adversely affect the children the operation proposes to serve as outlined in 26 TAC

Topic and Rule Reference	Circumstance
	Section 745.340(2); or • issuing the license or amending the permit would have a significant adverse impact on the community and would limit opportunities for social interaction for the children that the operation proposes to serve.
Retaliation for Complaint for Misuse of Restraint or Seclusion (Residential Child Care Only), 26 TAC Section 745.8605(22)	The operation discharges or retaliates against an employee, client, resident, or other person because the person or someone on behalf of the person files a complaint, presents a grievance, or otherwise provides, in good faith, information relating the misuse of restraint or seclusion at the operation.

7200, Overview of CCR and Regulatory Enforcement Staff Responsibilities Related to Non-Voluntary Enforcement Actions

Revision 24-1; Effective Feb. 20, 2024

Child Care Enforcement (CCE) is a unit within the Regulatory Enforcement (RE) department of the Regulatory Services Division (RSD) responsible for making decisions about enforcement actions and administrative reviews. These decisions are based on information CCR staff gather for all regulated providers and unregulated operations subject to regulation.

Credentialing and Registry Enforcement (CARE) is a unit within the RE department of the RSD. They are responsible for making decisions about remedial actions taken against the holder of, or applicant for, an administrator's license issued by CCR.

The following table provides a general overview of the roles and responsibilities of CCR, CCE, and CARE staff related to enforcement and remedial actions.

CCR Staff	CCE Staff	CARE Staff
a. Monitor regulated operations and licensed administrators for compliance with statutes, administrative rules, and minimum standards. b. Cite violations, and provide technical assistance, as appropriate. c. Investigate reports of alleged unregulated operations to evaluate if the person or operation is subject to regulation. d. Evaluate and discuss an operation's compliance history to determine if the Referral for Enforcement Action should be submitted to CCE. e. Submit the Referral for Enforcement Action to CCE, located on the CCR SharePoint site. f. Process applications and renewal applications for an administrator's license. g. Issue an administrator's license. h. Evaluate and discuss if remedial action should be taken on an administrator's license, or application for an administrator's license. i. Submit the Child Care Regulation Administrators Credentialing and Registry Enforcement Referral Memo and Checklist to CARE. j. Respond to any requests for more information or questions from CCE or CARE after the Referral for Enforcement Action or Child Care Regulation Administrators Credentialing and Registry Enforcement Referral Memo and Checklist are submitted. k. Attend meetings with CCE, CARE, or the operation, as needed. l. Notify an operation by hand-delivering the notification when certain enforcement	a. Evaluate the Referral for Enforcement Action submitted by CCR. b. Make enforcement decisions related to: 1. Probation, including amending probation conditions; 2. adverse actions; 3. judicial actions; and 4. administrative penalties. c. Initiate enforcement decisions related to: 1. temporary restraining order; and 2. injunction d. Notify an operation or person of their right to request an administrative review or due process hearing for an enforcement action or controlling person designation. e. Document the status of the administrative review or due process hearing in CLASS. f. Process requests for an administrative review. g. Conduct administrative reviews for certain CCR and CCE decisions or actions. Notify a person or operation of the outcome of the review. h. Review citations for abuse, neglect, or exploitation when a DFPS finding is overturned. i. Enter enforcement decisions in CLASS, including designating controlling persons.	1. Evaluate the Child Care Regulation Administrators Credentialing and Registry Enforcement Referral Memo and Checklist submitted by CCR. 2. Decide whether to take remedial action against an administrator's license, or application for an administrator's license. 3. Enter the remedial actions taken on an administrator's license in CLASS. 4. Notify a licensed administrator, or applicant for an administrator's license, of their right to request due process. Document the status of due process in CLASS. 5. Conduct administrative reviews for remedial actions taken against an administrator's license, or an application for an administrator's license. Notify a person of the outcome of the review.

CCR Staff	CCE Staff	CARE Staff
actions are imposed. m. Monitor regulated and unregulated operations per the enforcement action that is imposed, including an amendment to a corrective action plan. n. Document the results of the following enforcement actions in CLASS: ◦ probation ◦ involuntary suspension o. Enter chronologies in CLASS, as needed. p. Upload relevant files to the CLASS Document Library, as needed.	j. Coordinate meetings with CCR, the operation, or both to discuss an enforcement action, as needed. k. Notify an operation when an enforcement action is imposed, as needed. l. Enter information about operations and controlling persons in the Adverse Action Record Sharing (AARS) system. m. Verify and handle changes to administrative penalty fee payments. n. Initiate administrative penalty refunds. o. Enter chronologies in CLASS, as needed. p. Upload relevant files to the CLASS Document Library, as needed.	

7210 Referring Enforcement Decisions to Child Care Enforcement or Credentialing and Registry Enforcement

Revision 24-1; Effective Feb. 20, 2024

CCR staff refer enforcement decisions to Child Care Enforcement (CCE) or Credentialing and Registry Enforcement (CARE) as follows:

How to Refer Enforcement Decision	When CCR Submits the Referral	Who Submits the Referral
Submit the Referral for Enforcement Action to CCE, located on the CCR SharePoint site.	When CCR staff determine that an enforcement action: • is necessary based on criteria in 26 TAC Section 745.8605; or • should be amended.	Regional Director or Program Administrator
Submit the Child Care Regulation Administrators Credentialing and Registry Enforcement Referral Memo and Checklist to CARE.	When CCR staff determine that a remedial action on an administrator's license or an administrator's license application is necessary based on criteria in Human Resources Code Section 43.010 and 26 TAC Section 745.9037.	CCR Administrator Licensing Program Improvement Specialist or Designee

Reference the *Referral Instructions for Probation, Adverse Actions, and Judicial Actions* job aid located on the CCR SharePoint site for more information about submitting the Referral for Enforcement Action to CCE.

7300, Plan of Action

Revision 24-1; Effective Feb. 20, 2024

A plan of action is a voluntary enforcement action that is a collaborative effort between CCR and an operation. The goal of a plan of action is to develop a plan to reduce risk and help improve the operation's compliance with CCR statutes, administrative rules, and minimum standards.

Because a plan of action is voluntary, an operation may decline to develop and follow a plan. CCR may submit a Referral for Enforcement Action to Child Care Enforcement if an operation refuses to participate in a plan of action, and:

- CCR staff determine that risk cannot be mitigated without a plan; and
- the operation meets the criteria for another enforcement action.

The maximum time frame for a plan of action is six months. CCR may not extend a plan of action.

Because a plan of action is a voluntary action, it is not eligible for an administrative review.

26 TAC Section 745.8611, 745.8613, 745.8631(1) and 745.8633(c)

7310 Criteria for Recommending a Plan of Action

Revision 24-1; Effective Feb. 20, 2024

An operation is eligible to participate in a plan of action if a circumstance described in 7110 Circumstances That May Call for Enforcement Action exists and CCR determines the operation meets all of the following criteria:

a. demonstrates the ability to identify risk;
b. accepts responsibility for correcting deficiencies;
c. has the ability to make corrections;
d. has a history of making corrections to maintain compliance, if applicable;
e. will be able to mitigate risk by following the plan of action; and
f. has not participated in a voluntary plan of action during the previous 12 months for similar issues.

If the permit holder operates multiple operations, CCR staff may consider the criteria listed above for each operation the permit holder operates when determining the operation's eligibility to participate in a plan of action.

In determining whether a plan of action is the most appropriate enforcement action for an operation, CCR staff consult Appendix 7000-1: Factors to Consider for Enforcement Actions.

26 TAC Sections 745.8605, 745.8607 and 745.8633

7311 Initiating a Plan of Action

Revision 24-1; Effective Feb. 12, 2024

Procedure

The inspector discusses the recommendation to initiate a plan of action with the supervisor and obtains supervisory approval before recommending a plan of action to the operation. If the inspector receives supervisory approval, then the inspector completes the actions noted in the table below.

Action	When Action is Completed
Documents the supervisor's approval in CLASS as a Chronology.	By the day after receiving supervisory approval.
a. prepares a compliance history report which lists the operation's compliance history for the last 24 months; b. completes Section I of Form 7277; and c. attaches Form 7277 to the operation's compliance history.	After receiving supervisory approval to recommend a plan of action to the operation.
Schedules a meeting with: • the person in charge of the operation; • the permit holder; • the applicant or designee; • for day care only, the head of the governing body; and • each controlling person.	After completing the actions listed above.
Provides the operation with a copy of Form 7277 with the operation's compliance history report attached.	Before or during the meeting with the operation to discuss a plan of action.

Action	When Action is Completed
a. discusses the identified compliance issues with the operation; b. explains the following to the operation: ◦ when CCR may recommend a plan of action (reference 26 TAC 745.8633); ◦ the purpose of a plan of action; ◦ the process for developing a plan of action; ◦ the benefits of participating in a plan of action; and ◦ that a plan of action doesn't qualify for an administrative review; and c. Asks the operation if the operation agrees to complete a plan of action.	During the meeting with the operation to discuss a plan of action.
Documents a summary of the conversation with the operation in CLASS as a Chronology.	By the day after the meeting with the operation to discuss the recommendation to participate in a plan of action.

Reference Appendix 3000: Notifying the Operation

7311.1 If the Operation Agrees to Participate in a Plan of Action

Revision 24-1; Effective Feb. 20, 2024

Procedure

If the operation agrees to participate in a plan of action, the inspector takes the following actions:

- directs the permit holder, director, or administrator to complete Section II of Form 7277, and return to CCR within 10 days of receipt; and
- explains to the permit holder, director, or administrator that CCR staff will:
  - review the operation's plan; and
  - must agree to action items that the operation documents in Section II of Form 7277 before the plan of action officially begins.

7311.2 If the Operation Does Not Agree to Participate in a Plan of Action

Revision 24-1; Effective Feb. 20, 2024

Procedure

If the operation does not agree to participate in a plan of action, the inspector:

- discusses with the CCR supervisor, and, if necessary, the program administrator and regional director if CCR should:
  - take less serious measures to reduce risk at the operation;
  - submit a Referral for Enforcement Action to Child Care Enforcement (CCE) (7420 Submitting the Referral for Enforcement Action to Child Care Enforcement); or
  - take less serious measures to reduce risk at the operation and submit a referral for Enforcement Action to CCE; and
- documents a summary of the discussion as a Chronology in CLASS, including the decisions made.

7312 Meeting with an Operation to Review a Plan of Action

Revision 24-1; Effective Feb. 20, 2024

Once CCR receives Form 7277 from the operation, the inspector and supervisor:

- review Section II of Form 7277;
- assess if the operation's proposed plan addresses the deficiencies and mitigates risk to children; and
- schedule a meeting with the operation's permit holder, designee, director or administrator to review Section II of Form 7277.

The meeting must take place within 10 days of receiving the completed Form 7277 from the operation.

Procedure

During the plan of action meeting, CCR staff:

a. review the operation's compliance history report and discuss areas of concern with the operation;
b. review how the operation's plan does or does not:
    - address the areas of concern identified in the operation's compliance history;
    - reduce or eliminate the recurrence of deficiencies; and
    - mitigate risk to children caused by the deficiencies;
c. explain to the operation how CCR will follow up on the implementation of the plan; and
d. discuss the date the operation will implement the plan (the begin date) and the date the plan will end (7314 Starting a Plan of Action and 7316 Ending a Plan of Action).

In the event the action items the operation outlined in the plan do not mitigate risk, the inspector:

- explains to the operation how the plan fails to reduce risk and correct deficiencies; and
- works with the operation to develop new action items that reduce risk and address the deficiencies.

7312.1 When CCR and Operation Agree on a Proposed Plan of Action

Revision 24-1; Effective Feb. 12, 2024

Procedure

Once CCR and the operation agree to the plan of action, the administrator, director, or their designee and the inspector and supervisor review and sign the completed Form 7277.

CCR staff upload a copy of the signed Form 7277 in the operation's record using the CLASS Document Library (1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library).

At least 15 days before the start date of the plan, CCR staff send notification of the plan's start date, along with a signed copy of Form 7277, to:

- the person in charge of the operation;
- the permit holder;
- the applicant or designee;
- for day care only, the head of the governing body; and
- each controlling person.

CCR staff document the plan in CLASS (7313 Documenting the Plan of Action in CLASS).

7312.2 When CCR and Operation Cannot Agree on a Proposed Plan of Action

Revision 24-1; Effective Feb. 12, 2024

Procedure

If CCR staff and the operation cannot agree on the proposed plan of action, the inspector consults with the supervisor, and, if necessary, the program administrator, regional director, or both to determine if CCR should:

1. implement the plan as written by the operation;
2. collaborate further with the operation; or
3. submit a Referral for Enforcement Action to CCE (7420 Submitting the Referral for Enforcement Action to Child Care Enforcement).

CCR staff document the consultation and resulting recommendations in CLASS as a Chronology.

26 TAC Section 745.8631(1)

7313 Documenting the Plan of Action in CLASS

Revision 24-1; Effective Feb. 20, 2024

CCR staff document the plan of action in the CLASS *Plan of Action List* located under the *Monitoring* tab as follows:

What to Document	When to Document	CLASS Field(s)
Planned Start Date	Before plan of action begins	*Begin Date*

What to Document	When to Document	CLASS Field(s)
Planned Completion Date	Before plan of action begins	*End Date* (must be 6 months from the *Begin Date*)
Actual Completion Date	When plan of action ends	*Actual End Date*
List of deficiencies within the last 24 months that are the basis for recommending the plan. This may or may not include all deficiencies cited within the past 24 months.	Before plan of action begins	• *Basis for Plan of Action - Investigation* • *Basis for Plan of Action - Inspection* • *Basis for Plan of Action - Assessment*
The operation's action items listed in Section II, Subsection B, of the finalized Form 7277	Before plan of action begins During plan of action to modify or delete an action item	*Action Items*
If implementation of the plan was successful or not successful	When plan of action ends	*Status* dropdown

If CCR staff modify or delete an action item during the plan of action, CCR staff enter the following as a Chronology in CLASS:

- a summary of what was modified or deleted; and
- why the modification or deletion occurred.

7314 Starting a Plan of Action

Revision 24-1; Effective Feb. 12, 2024

A plan of action starts 15 days from the date CCR sends written notification to the operation with the plan's start date and a signed copy of Form 7277, unless the operation sends CCR a written request to begin the plan earlier.

Procedure

If an operation requests to begin the plan of action early, the inspector:

- documents the revised start date in the *Begin Date* field in the *Plan of Action Details* page in CLASS; and
- updates the planned end date in the *Planned End Date* field in the *Plan of Action Details* page in CLASS.

References:

7312.1 When CCR and Operation Agree on a Proposed Plan of Action
7313 Documenting the Plan of Action in CLASS

7315 Inspecting an Operation During a Plan of Action

Revision 24-1; Effective Feb. 20, 2024

During a plan of action, CCR staff conduct at least two unannounced monitoring inspections while children are in care. These inspections are to determine if the operation has come into and maintained compliance with statutes, administrative rules, and minimum standards.

CCR staff may conduct more inspections based on the compliance of the operation and risk to children determined during the required inspections.

Before the end of the plan of action, CCR staff evaluate the operation's compliance with the entire subchapter associated with each minimum standard listed in the Basis for Plan of Action section of the Plan of Action Details page in CLASS.

26 TAC Section 745.8631(1)

Procedure

The inspector conducts the monitoring inspections at appropriate intervals during the plan of action to:

- evaluate the operation's progress in implementing the plan; and
- determine if the operation successfully completed the plan or a more serious action may be necessary.

During each monitoring inspection completed during the plan of action, the inspector:

1. evaluates the operation's compliance with at least one entire subchapter of the minimum standards associated with the plan of action;
2. evaluates the operation's compliance with one additional entire subchapter of the minimum standards to ensure overall compliance;
3. documents that the plan of action was evaluated during the inspection by selecting the *Plan of Action action items were evaluated* checkbox in the *Other Items Evaluated* section on the *Inspection Details* page;
4. provides technical assistance:
    1. for any statute, administrative rule, or minimum standard where the operation is deficient; and
    2. per 4154 Technical Assistance and 4161.24 Technical Assistance for Violations Recommended for an Administrative Penalty; and
5. completes all other tasks required during a monitoring inspection (4126 Monitoring Inspections).

The inspector may evaluate if the operation is following the plan of action, but only cites a deficiency if the operation violates a statute, administrative rule, or minimum standard. If the operation is still deficient in the areas identified in the plan, the inspector:

- reviews the specific action items in the plan related to the deficiencies with the person in charge at the time of the inspection; and
- uses this review to reevaluate the plan and determine the appropriateness of its terms if the operation has not established or maintained compliance.

7316 Ending a Plan of Action

Revision 24-1; Effective Feb. 20, 2024

7316.1 Consultation with Supervisor Before a Plan of Action Ends

Revision 24-1; Effective Feb. 20, 2024

Before a plan of action ends, the inspector consults the supervisor to review the operation's compliance with the statutes, administrative rules, and minimum standards evaluated during the plan of action. The inspector consults with the supervisor based on the operation's progress on the plan of action and overall compliance.

Procedure

During the plan of action, the inspector and supervisor discuss:

a. the operation's progress on the plan of action and overall compliance with statutes, administrative rules, and minimum standards; and
b. if:
    - the plan remains appropriate, such as if CCR should recommend the operation modify or add action items;
    - the plan should end early;
    - more inspections are needed; or
    - a more serious enforcement action would be more appropriate.

Before ending the plan, the inspector and supervisor must also discuss whether the plan of action has been successful.

CCR staff document a summary of the staffing and any recommendations as a Chronology in CLASS.

References:

7316.2 Ending a Plan of Action Early
7316.3 When the Operation Has Been Established and Maintained Compliance During the Plan of Action
7316.4 When the Operation Has Not Been Established or Maintained Compliance During the Plan of Action

7316.2 Ending a Plan of Action Early

Revision 24-1; Effective Feb. 20, 2024

CCR may end a plan of action early if CCR determines that:

- the operation has reduced risk and come into and maintained compliance with statutes, administrative rules and minimum standards; or
- the operation's compliance has worsened and CCE has imposed a more serious enforcement action.

26 TAC Sections 745.8611, 745.8643

References:

7316.3 When the Operation Has Established and Maintained Compliance During the Plan of Action
7316.4 When the Operation Has Not Established or Maintained Compliance During the Plan of Action

7316.3 When the Operation Has Established and Maintained Compliance During the Plan of Action

Revision 24-1; Effective Feb. 20, 2024

Procedure

When the operation has come into and maintained compliance with all statutes, administrative rules, and minimum standards associated with the plan, and any additional statutes, administrative rules, and minimum standards evaluated during the plan of action, the inspector sends the operation a letter on HHSC letterhead in CLASS. This is done using the appropriate plan of action results letter template located on CCR's SharePoint site, stating:

a. compliance with statutes, administrative rules, minimum standards has been established;
b. the plan of action has ended; and
c. compliance with statutes, administrative rules, the minimum standards, and any restrictions or conditions on the operation's permit must be maintained.

To document the end to the plan of action in CLASS, the inspector follows the procedure in 7316.5 Documenting the End to a Plan of Action in CLASS.

7316.4 When the Operation Has Not Established or Maintained Compliance During the Plan of Action

Revision 24-1; Effective Feb. 20, 2024

If the operation's compliance with statutes, administrative rules, and minimum standards does not improve sufficiently to reduce risk at the operation because of the plan of action or the operation's compliance worsens, CCR staff may:

- recommend additional action items, modify action items, increase inspections; or
- submit a Referral for Enforcement Action to CCE.

26 TAC Section 745.8643

Procedure

If the operation has not met compliance with statutes, administrative rules, and minimum standards, CCR staff:

- reevaluate the plan to determine the appropriateness of its terms and determine whether CCR should:
  - recommend an amendment to the plan's action items,
  - increase inspections if the term of the plan of action is not expiring within the next 60 days,
  - recommend an amendment to the plan's action items and increase inspections if the term of the plan of action is not expiring within the next 60 days, or
  - submit a Referral for Enforcement Action to CCE; and
- send the operation written notification on HHSC letterhead in CLASS, using the appropriate plan of action results letter template located on CCR's SharePoint site, that the operation has not met compliance and CCR may proceed with the decided upon action.

If CCR staff are also ending the plan, the inspector follows the procedure in 7316.5 Documenting the End to a Plan of Action in CLASS.

Reference 7316.2 Ending a Plan of Action Early

7316.5 Documenting the End to a Plan of Action in CLASS

Revision 24-1; Effective Feb. 20, 2024

Procedure

To end the plan of action in CLASS, the inspector updates the *Status* dropdown on the *Plan of Action Details* page in CLASS as follows:

If	Then
the operation has: • corrected the deficiencies and reduced risk through compliance with the plan of action; and • maintained compliance with all other statutes, administrative rules, and minimum standards.	the inspector changes the *Status* dropdown from In *Progress to Successful*.
the operation's compliance with statutes, administrative rules, and minimum standards: • does not improve sufficiently to reduce risk at the operation because of the plan of action; or • worsened.	the inspector changes the *Status* dropdown from In *Progress to Not Successful*.

7400, Probation

Revision 24-1; Effective Feb. 20, 2024

Probation is a non-voluntary enforcement action that Child Care Enforcement imposes to ensure the safety of children in care of an operation. During probation CCE imposes a corrective action plan, which includes conditions beyond the minimum standards and the basic permit requirements to help the operation improve compliance with identified standards. CCR inspects the operation at least monthly to evaluate compliance with standards and conditions imposed as part of the corrective action plan.

The time frame for probation is a maximum of twelve months.

References:

Definitions of Terms for corrective action

26 TAC Sections 745.8603; 745.8611; 745.8631(2) and 745.8637

Human Resources Code Section 42.071(c)

7410 Criteria for Imposing Probation

Revision 24-1; Effective Feb. 20, 2024

Child Care Enforcement (CCE) imposes probation on an operation if a circumstance described in 7110 Circumstances That May Call for Enforcement Action exists and upon determining that:

a. the operation is eligible to participate in a voluntary plan of action but refuses to do so, or the operation does not qualify for a voluntary plan of action;
b. the operation has not demonstrated the ability to make the necessary changes to address risk, but expresses a willingness to comply and make corrections;
c. the operation can mitigate risk by complying with the conditions identified in a corrective action plan in addition to statutes, administrative rules, and minimum standards; and
d. a more serious enforcement action is not necessary to reduce risk.

References:

Appendix 7000-1: Factors to Consider for Enforcement Actions

Human Resources Code Section 42.071(c)

26 TAC Sections 745.8601, 745.8605, 745.8607 and 745.8637

7420 Submitting the Referral for Enforcement Action to Child Care Enforcement

Revision 24-1; Effective Feb. 20, 2024

Procedure

Following a deficiency or other triggering event, the inspector and supervisor consult the program administrator and regional director to discuss the operation's compliance history and determine if the regional director will begin the referral process to Child Care Enforcement (CCE) (Appendix 7000-1: Factors to Consider for Enforcement Actions).

Based on this discussion, and the situation, CCR staff take the following actions:

If	Then
the regional director agrees with submitting the Referral for Enforcement Action to CCE	the regional director begins the CCE referral process. The inspector documents a summary of the discussion and CCR's decision as a Chronology in CLASS.
the regional director does not agree with submitting the Referral for Enforcement Action to CCE	CCR staff determine whether to take less serious measures to reduce risk at the operation. The inspector documents a summary of the discussion and CCR's decision as a Chronology in CLASS.

7430 Decision to Impose Probation

Revision 24-2; Effective May 22, 2024

CCE notifies CCR of their decision after the Referral for Enforcement Action is submitted.

Procedure

CCR staff complete the actions outlined in the following chart, depending on CCE's decision about the Referral for Enforcement Action.

If	Then
CCE does not impose probation or any other enforcement action	the inspector, supervisor, program administrator, and regional director: • discuss CCR taking other measures to reduce risk at the operation; and • if so, determine which measures to take. The inspector documents a summary of the discussion and the decisions made as a Chronology in CLASS.
CCE imposes probation	CCE staff: • document the probation on the *Provider Corrective Action Plan* page in CLASS; • create the probation conditions; • share a draft of CLASS Form 2885 Corrective Action Letter with CCR for review; • finalize and send CLASS Form 2885 Corrective Action Letter to the operation; and • schedule a meeting with the operation to review the corrective action plan if the operation requests a meeting. CCR staff:

If	Then
	• provide additional information to CCE per 7430.1 When CCE Requests Additional Information from CCR After the Referral for Enforcement Action is Submitted (Probation); • meet with an operation about the corrective action plan per 7431 Meeting with an Operation About Probation and 7432 Reviewing Probation Conditions; • inspect the operation during the probation period per 7441 Inspecting an Operation During Probation and 7442, Conducting Surveillance During Probation; • discuss the operation's progress during the probation period and determine if the operation has established and maintained compliance per: ◦ 7443 Consultations During Probation; ◦ 7450 Ending Probation; ◦ 7450.1 Ending Probation When Compliance Has Been Established; and ◦ 7450.2 Modifying or Ending Probation When Compliance Has Not Been Established; and • follow up after the probation period ends per 7460, Following Up After Ending Probation.
CCE imposes a different enforcement action such as an enforcement action other than probation	CCR staff follow the relevant procedure for the enforcement action imposed. **References** Adverse Actions, 7600 Judicial Actions, 7700

7430.1 When CCE Requests Additional Information from CCR After the Referral for Enforcement Action is Submitted (Probation)

Revision 24-1; Effective Feb. 20, 2024

CCE notifies CCR if CCE staff require more information after CCR submits the Referral for Enforcement Action.

Procedure

If CCR staff receive a request for more information from CCE after the Referral for Enforcement Action is submitted, CCR staff:

- provide the additional information requested; and
- document a summary of the additional information provided as a Chronology in CLASS.

7431 Meeting with an Operation About Probation

Revision 24-1; Effective Feb. 20, 2024

Procedure

If CCE schedules a meeting with the operation to review the corrective action plan, and invites CCR to the meeting, the following CCR staff attend the meeting:

- inspector;
- supervisor; and
- program administrator and regional director if circumstances exist to warrant their involvement.

7432 Reviewing Probation Conditions

Revision 24-1; Effective Feb. 20, 2024

Procedure

After CCE sends CCR the finalized Form 2885 Corrective Action Letter, but before CCR conducts the first inspection during the probation period, the inspector and supervisor meet to discuss:

- the conditions being imposed by the corrective action plan;
- any due dates associated with the conditions; and
- a plan for how CCR will evaluate the operation for compliance with the probation conditions.

If the operation declines to participate in a meeting offered by CCE to discuss the probation, CCE staff will not schedule a meeting with the operation to review the corrective action plan.

If CCE does not hold a meeting with the operation, the inspector coordinates a meeting with the operation's permit holder, designee, director, or administrator as follows:

When the Meeting Occurs	Topics Covered During the Meeting	Who Attends the Meeting	Follow Up Actions After the Meeting
Per each of the following criteria: • after the administrative review has been waived or completed; • after the inspector and supervisor meet to discuss the probation conditions; and • before the first inspection of the probation period.	• The probation conditions imposed by the corrective action plan. • The projected begin and end dates of the probation period. • How CCR follows up on the implementation of the corrective action plan.	• Inspector • Supervisor • Program administrator and regional director if circumstances exist to warrant their involvement	The inspector documents the following as a Chronology in CLASS: • The meeting's attendees. • A summary of the information discussed. • Any technical assistance provided.

7433 Requesting or Waiving the Right to an Administrative Review of Probation

Revision 24-1; Effective Feb. 20, 2024

If an operation disagrees with the corrective action plan, including any condition imposed as a part of the plan, the operation may request an administrative review within 15 days of receiving the finalized CLASS Form 2885 Corrective Action Letter.

References:

5612 Waiving the Right to an Administrative Review
5613 Receiving a Request for an Administrative Review

7440 Starting Probation

Revision 24-1; Effective Feb. 20, 2024

Probation does not start until:

- the operation waives the right to an administrative review per 7433 Requesting or Waiving the Right to an Administrative Review of Probation; or
- the person who conducted the administrative review upholds the decision to impose probation.

If the operation waives the administrative review, in writing, before the 15-day time frame to request the administrative review, CCE may begin the action sooner than the planned begin date.

After the administrative review is waived or upheld, CCE staff will:

- enter the *Actual Begin Date* field on the *Provider Corrective Action* page in CLASS; and
- notify the operation of the *Actual Begin Date*.

7441 Inspecting an Operation During Probation

Revision 24-2; Effective May 22, 2024

Procedure

CCR staff conduct monitoring inspections on two time frames during the probation period. Unless there is good cause not to inspect within these time frames, including when CCR or DFPS is conducting an investigation, inspections are conducted at least once:

- by 21 days after the probation period begins; and
- per month during the probation period.

If there is good cause not to inspect within these time frames, the inspector requests approval from the supervisor. The inspector documents the approval and reason for the variation as a Chronology in CLASS.

During each monitoring inspection, the inspector:

1. evaluates the operation's compliance with:
    - the conditions imposed by the corrective action plan;
    - at least one entire subchapter of the minimum standards listed in the *Basis for Corrective Action* section of the *Provider Corrective Action Plan* page in CLASS; and
    - at least one additional entire subchapter of the minimum standards to assess overall compliance;
2. documents that the probation conditions were evaluated during the inspection by selecting the *Probation conditions were evaluated* checkbox on the *Inspection Details* page in CLASS;
3. cites the operation if it is in violation of any statute, administrative rule, or minimum standard;
4. cites the operation for a violation of 26 TAC 745.8641 if the operation is in violation of any probation condition;
5. provides technical assistance:
    - for any statute, administrative rule, or minimum standard where the operation is deficient; and
    - per 4154 Technical Assistance and 4161.24 Technical Assistance for Violations Recommended for an Administrative Penalty;
6. when conducting an exit conference per 4170 Conducting the Exit Conference, reviews with the permit holder or designee the probation conditions that relate to the deficiencies cited during the inspection; and
7. completes all other tasks required during a monitoring inspection per 4126 Monitoring Inspections.

Before the end of the probation period, the inspector evaluates the operation's compliance with the entire subchapter associated with each minimum standard listed in the *Basis for Corrective Action* section of the *Provider Corrective Action Plan* page in CLASS.

7442 Conducting Surveillance During Probation

Revision 24-1; Effective Feb. 20, 2024

An inspector or supervisor may determine that surveillance is necessary to evaluate if a program or caregiver is complying with minimum standards or conditions outlined in the corrective action plan. Valid reasons for surveillance include, but are not limited to determining if an operation is:

- complying with transportation requirements;
- providing adequate supervision during outdoor activities; or
- providing care to more children than the permit allows.

Procedure

An inspector must receive supervisory approval to conduct surveillance. Upon receiving the necessary approval, the inspector:

- may conduct surveillance at the operation's physical location or at other locations where children in care are transported by the operation;
- takes photographs or video recordings, as necessary, during the course of the surveillance to support violations or a lack of violations;
- uploads any photographs or video recordings to the appropriate folder in the CLASS Document Library (1400 State-Issued Equipment, Photographs, Video, Audio and Digital Files); and
- documents all decisions about surveillance and all information obtained from conducting surveillance as a Chronology in CLASS.

References:

1400 State-Issued Equipment, Photographs, Video, Audio and Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
6450 Conducting Surveillance (Day Care Only)

7443 Consultations During Probation

Revision 24-1; Effective Feb. 20, 2024

During the probation period, the inspector meets with the supervisor to review the operation's compliance with statutes, administrative rules, minimum standards, and conditions imposed by the corrective action plan. These meetings take place at least four times during the probation period. They may occur more often depending on the operation's progress and overall compliance.

Procedure

During each consultation, the inspector and supervisor:

- review the operation's progress on the corrective action plan;
- review the operation's overall compliance with statutes, administrative rules, and minimum standards;
- discuss if the corrective action plan remains appropriate, including whether:
  - more inspections are needed;
  - an amendment to the plan is necessary; or
  - a more serious enforcement action should be imposed (7450.2 Modifying or Ending Probation When Compliance Has Not Been Established); and
- if the operation has established and maintained compliance during the probation.

Before ending probation, the inspector must staff the decision with a supervisor and receive the supervisor's approval to end the probation period.

The consultations and any recommendations are documented as a Chronology in CLASS.

References:

Reviewing Restrictions, Conditions, Waivers, and Variances, 4152

26 TAC Section 745.8631

7450 Ending Probation

Revision 24-1; Effective Feb. 20, 2024

HHSC may not extend a probation period, but the inspector may end probation early with supervisory approval. HHSC may end probation if:

- CCR determines that the operation has reduced risk and come into and established and maintained compliance with statutes, administrative rules, and minimum standards; or
- after CCR submits a Referral for Enforcement Action, and CCE determines that a more serious enforcement action is necessary.

References:

Consultations During Probation, 7443

Ending Probation When Compliance Has Been Established, 7450.1

Modifying or Ending Probation When Compliance Has Not Been Established, 7450.2

26 TAC Sections 745.8611(b) and 745.8643

7450.1 Ending Probation When Compliance Has Been Established

Revision 24-1; Effective Feb. 20, 2024

Procedure

If the operation has complied with the conditions imposed by the corrective action plan, corrected deficiencies and reduced risk, and maintained compliance with all other statutes, administrative rules, and minimum standards, the inspector uses the appropriate probation results letter template located on CCR's SharePoint site to send the operation a letter on HHSC letterhead in CLASS stating:

- compliance with the minimum standard, administrative rules, statutes, and probation conditions has been established;
- the probation period has ended; and
- compliance with statutes, administrative rules, and minimum standards, and any restrictions or conditions on the operation's permit must be maintained.

To end the probation period in CLASS, the inspector completes the following fields on the *Provider Corrective Action Plan* page in CLASS:

- selects the appropriate selection from the *Result of Corrective Action* drop-down menu; and
- enters the end date in the *Actual End Date* field.

Reference:

Consultations During Probation, 7443

7450.2 Modifying or Ending Probation When Compliance Has Not Been Established

Revision 24-1; Effective Feb. 20, 2024

Procedure

During the course of probation, if the operation's compliance with statutes, administrative rules, minimum standards, and the probation conditions do not improve sufficiently to reduce risk at the operation, CCR staff:

a. reevaluate the corrective action plan to assess the appropriateness of its terms and conditions and determine if CCR should:
    - increase the frequency of inspections if the term of the corrective action is not expiring within the next 90 days; or
    - submit a Referral for Enforcement Action to CCE; and
b. use the appropriate probation results letter template, located on CCR's SharePoint site, to send the operation a letter on HHSC letterhead in CLASS stating the operation has not met compliance and that CCR will or may, as appropriate, proceed with the decided upon action.

When CCR Determines the Corrective Action Plan Should be Modified or a More Serious Enforcement Action Should be Imposed

If the inspector and supervisor determine that CCE should amend the conditions associated with a corrective action plan or impose a more serious enforcement action, the inspector and supervisor consult the program administrator and regional director to discuss their determination.

If the regional director agrees that CCE should amend the conditions associated with a corrective action plan or impose a more serious enforcement action, then the regional director begins the CCE referral process.

The inspector documents a summary of the staffing in the operation's record as a Chronology in CLASS.

Ending Probation in CLASS after Submitting a Referral for Enforcement Action to CCE

If CCE imposes a more serious enforcement action after CCR submits a Referral for Enforcement Action, the inspector ends the probation period in CLASS by completing the following fields on the *Provider Corrective Action Plan* page:

- selects the appropriate selection from the *Result of Corrective Action* drop-down menu; and
- enters the date the probation period ended in the *Actual End Date* field.

Reference:

Consultations During Probation, 7443

7460 Following Up After Ending Probation

Revision 24-1; Effective Feb. 20, 2024

Procedure

Within six months from the date a probation period ends, the inspector conducts an unannounced monitoring inspection to ensure the operation is in compliance with:

- the statutes, administrative rules, and minimum standards associated with the corrective action plan; and
- any restrictions or conditions on the operation's permit.

7500, Administrative Penalties

Revision 24-4; Effective Nov. 13, 2024

7510 Overview of CCR and Child Care Enforcement Staff Responsibilities Related to Administrative Penalties

Revision 24-4; Effective Nov. 13, 2024

The following chart provides a general overview of the roles and responsibilities of CCR and Child Care Enforcement (CCE) staff related to administrative penalties.

Task	Who is Responsible for Task
Cite deficiencies subject to an administrative penalty and provide technical assistance.	CCR
Create a chronology for each deficiency subject to an administrative penalty.	CCR
Review the chronologies that CCR entered in CLASS when creating the recommendation to impose an administrative penalty.	CCE
Update the administrative review status for certain deficiencies subject to an administrative penalty.	CCR
CCE disagrees with a statute, administrative rule or minimum standard that is the subject of an administrative penalty, CCR staff to determine the best course of action.	CCR
Complete and submit the recommendation to impose an administrative penalty in CLASS.	CCE
Document supervisory approval and send the operation or controlling person notice of the administrative penalty recommendation.	CCE
Review the administrative review status for the deficiencies associated with the administrative penalty to determine if the penalty should continue.	CCE
Send and process the order to pay the administrative penalty.	CCE
Enter due process for administrative penalties in CLASS.	CCE
Monitor CLASS for payment or nonpayment of administrative penalty fees.	CCE
Monitor and document the final result of the administrative penalty in CLASS.	CCE
If an administrative penalty is not paid by the due date and remains unpaid during renewal period, submit a Referral for Enforcement Action to CCE during the operation's next permit renewal period.	CCR

7520 Legal Basis to Impose Administrative Penalties

Revision 24-4; Effective Nov. 13, 2024

Administrative penalties are fines Child Care Enforcement (CCE) may impose against an operation or a controlling person with the intent of reducing the risk of harm to children in care. Administrative penalties are not imposed for clerical errors.

Administrative penalties may be imposed against:

a. any licensed operation, registered or listed family home, including those exempt from paying annual fees;
b. controlling persons; and
c. a child placing agency's main office for violations cited at the operation's branch offices.

Reference

HRC Section 42.078(a)

26 TAC Section 745.8603

7530 Reserved for Future Use

Revision 24-4; Effective Nov. 13, 2024

7531 Child Care Enforcement Disagrees with the Deficiency Cited for an Administrative Penalty

Revision 24-4; Effective Nov. 13, 2024

If CCE determines CCR staff cited the incorrect statute, administrative rule or minimum standard for the administrative penalty, CCE will inform CCR of their recommendation.

7540 Steps the Operation Takes after CCE Sends the Notice of Recommendation for Administrative Penalty

Revision 24-4; Effective Nov. 13, 2024

After receiving CLASS Form 2994 Notice of Recommendation for Administrative Penalty, the operation or controlling person has 30 days to:

a. pay the administrative penalty;
b. accept the administrative penalty; or
c. dispute the penalty by requesting a due process hearing.

The operation or controlling person may request a due process hearing even if the operation or controlling person has paid the administrative penalty fee.

7550 Due Process Rights for Administrative Penalties

Revision 24-4; Effective Nov. 13, 2024

The Child Care Licensing Legal Enforcement Department must receive a request for a due process hearing in writing, which includes by email or fax, within 30 days of the date the operation or controlling person received CLASS Form 2994 Notice of Recommendation for Administrative Penalty.

The operation or controlling person waives the right to a due process hearing if the operation or controlling person:

- does not accept the penalty or request a due process hearing for the administrative penalty per 26 TAC Section 745.8837; or
- submits a written statement waiving the right to a due process hearing to the Child Care Licensing Legal Enforcement Department.

Reference

26 TAC Sections 745.8613(a)(5), 745.8835(a)(1)(B), and 745.8835(a)(4)

HRC Sections 42.078(g) and 42.078(i)

7551 The Right to Request a Judicial Review of an Administrative Penalty After a Due Process Hearing

Revision 24-4; Effective Nov. 13, 2024

Following a due process hearing where a judge upheld the administrative penalty, an operation or controlling person has 30 days from receiving the results to:

- pay the penalty amount ordered;
- file a petition for a judicial review; or
- pay the penalty amount ordered and file a petition for a judicial review.

Reference

HRC Section 42.078(k)

7560 Payment and Nonpayment of Administrative Penalties

Revision 24-4; Effective Nov. 13, 2024

The operation or controlling person may pay the administrative penalty as soon as they receive CLASS Form 2994 Notice of Recommendation for Administrative Penalty, but must pay no later than 30 days after any of the following occur:

a. CLASS Form 2995 *Administrative Penalty Order* is received by the operation or controlling person, unless a due process hearing is requested;
b. the Child Care Licensing Legal Enforcement Department sends a negotiated reduction notice;
c. an administrative law judge's order to pay the administrative penalty becomes final, unless a judicial review is requested; or
d. a judge conducts a judicial review and upholds the decision to impose the administrative penalty.

The 30-day time frame is measured from the date the last action noted above occurred. For example, the operation or controlling person received CLASS Form 2994 on Jan. 1, but a judicial review upholds the decision to impose an administrative penalty on Jan. 15. The 30-day time frame begins on Jan. 15.

Reference

How an Operation Submits a Payment, 5222
The Right to Request a Judicial Review of an Administrative Penalty After a Due Process Hearing, 7551

7561 When Administrative Penalties Remain Unpaid

Revision 24-4; Effective Nov. 13, 2024

If the operation or controlling person does not pay the administrative penalty amount as ordered by the due date, CCR staff follow the procedure in 3927 Refusal to Renew a Permit during the operation's next permit renewal period.

Reference

26 TAC Sections 745.477; 745.8605

Verifying Fee and Administrative Penalty Payments, 3924.2

7600, Adverse Actions

Revision 24-1; Effective Feb. 20, 2024

CCR may submit a Referral for Enforcement Action to Child Care Enforcement if an operation does not comply with statutes, administrative rules, minimum standards, or the specific terms of the permit.

Human Resources Code Section 42.072(a), (e)

26 TAC Sections 745.8649 and 745.8875

7610 Defining Adverse Action

Revision 24-1; Effective Feb. 20, 2024

Adverse action is taken when deficiencies pose a risk that endanger the health and safety of children, or there are indications of a continued failure by the operation to comply with statutes, administrative rules, or minimum standards.

An adverse action is any of the following:

a. Denial of a permit during application status.
b. Denial of a license or certificate during initial license status.
c. Denial of a request for amendment of a license, certificate, or registration.
d. Adverse amendment of the permit with conditions.
e. Involuntary suspension, which is a type of suspension that is not the same as an automatic suspension that takes place when there is a failure to pay an annual fee.
f. Revocation of a permit.
g. Refusal to Renew of a full permit, which is not just when an operation fails to meet renewal requirements but an adverse action with the same general grounds as a revocation that occurs during the permit renewal process.

26 TAC Section 745.8649

7620 Criteria for Taking Adverse Action

Revision 24-1; Effective Feb. 20, 2024

Child Care Enforcement (CCE) may take adverse action when they determine that the operation must not operate, must cease operating, or that a permanent restriction or condition to the operation's permit is necessary because of an issue described in 7110 Circumstances That May Call for Enforcement Action.

7621 Criteria for Imposing a Denial

Revision 24-1; Effective Feb. 20, 2024

CCE may deny an applicant a permit for an issue identified in 7110 Circumstances That May Call for Enforcement Action if they determine that:

a. a background check result makes an applicant ineligible for a permit;
b. the operation does not demonstrate the ability to comply with statutes, administrative rules, or minimum standards during the initial permit period, if applicable;
c. the results of a public hearing make an applicant ineligible for a permit;
d. the operation presents an immediate threat to the health or safety of children; or
e. the applicant is otherwise ineligible for a permit because of an issue described in 7110 Circumstances That May Call for Enforcement Action.

26 TAC Sections 745.8605 and 745.8650

References:

3710 Denial Because of Failure to Comply With Minimum Standard Rules, Administrative Rules, or Law
3713 Compliance History Indicates Inability to Meet Minimum Standard Rules
7110 Circumstances that May Call for Enforcement Action
10760 When to Deny or Revoke a Permit Based on Criminal History or Child Abuse or Neglect History
Appendix 7000-1: Factors to Consider for Enforcement Actions.

7622 Criteria for Imposing an Adverse Amendment

Revision 24-1; Effective Feb. 20, 2024

CCE may impose an adverse amendment on an operation if a circumstance described in 7110 Circumstances That May Call for Enforcement Action exists, and if they determine that:

a. an amendment on the permit will mitigate any risks;
b. the amendment is the most effective enforcement action for addressing risk at the operation; and
c. the operation can follow the restrictions or conditions of the amendment.

26 TAC Sections 745.8605 and 745.8651

7623 Criteria for Imposing an Involuntary Suspension

Revision 24-1; Effective Feb. 20, 2024

CCE may impose an involuntary suspension on an operation if a circumstance described in 7110 Circumstances That May Call for Enforcement Action exists, and if they determine that:

a. the operation will pose a danger or threat of danger to the health or safety of children in the operation's care until the issue is resolved;
b. the operation cannot correct the issue while children are in care, but can do so during a specific period of time;
c. the operation can make the necessary corrections while the permit is suspended; and
d. there are no additional concerns about the operation's compliance history that would make revocation a more appropriate enforcement action for the health or safety of children.

26 TAC Sections 745.8605 and 745.8652

7624 Criteria for Imposing a Revocation

Revision 24-1; Effective Feb. 20, 2024

CCE may revoke an operation's permit if an issue described in 7110 Circumstances That May Call for Enforcement Action exists, and if they determine that:

a. the operation is ineligible for probation;
b. CCE cannot address the risk at the operation by imposing probation or involuntary suspension;
c. a background check result or a finding of abuse or neglect makes the permit holder ineligible for a permit; or
d. revocation is otherwise necessary to address the issue described in 7110 Circumstances That May Call for Enforcement Action.

26 TAC Sections 745.8605 and 745.8654

7625 Criteria for Refusing to Renew a Permit

Revision 24-1; Effective Feb. 20, 2024

CCE may refuse to renew an operation's permit if an issue described in 7110 Circumstances That May Call for Enforcement Action exists, and if they determine that:

a. the operation is ineligible for probation;
b. risk at the operation cannot be addressed by imposing any other type of enforcement action;
c. a background check result or a finding of abuse or neglect makes the permit holder ineligible for a permit; or
d. refuse to renew is otherwise necessary to address the issue described in 7110 Circumstances That May Call for Enforcement Action.

CCE staff may impose the refusal to renew adverse action type at any time between the time the permit renewal period begins and before CCR renews the permit, including after the renewal period expires. The action may be based on grounds that occurred before or after the renewal period expires. If CCE is revoking the operation's permit before or after the renewal period expires, CCE does not also have to refuse to renew the permit.

26 TAC Sections 745.8605 and 745.8655

7626 Operating Pending Appeal of an Adverse Action

Revision 24-1; Effective Feb. 20, 2024

An operation:

a. may not operate pending appeal of a denial or suspension; but
b. may operate pending appeal of a revocation or refusal to renew its permit, unless CCE determines health or safety concerns exist that requires the operation to stop operating; and
c. if CCE makes such a determination, the operation may only continue to operate pending appeal of the revocation or refusal to renew if a judge grants injunctive relief allowing the operation to remain open.

26 TAC Sections 745.8609 and 745.8655

Human Resources Code Section 42.072(e)

7630 Taking Adverse Action

Revision 24-1; Effective Feb. 20, 2024

Procedure

When imposing any adverse action, HHSC staff:

- determine that an adverse action is appropriate; and
- notify the permit holder or applicant about the action.

Submitting the Referral for Enforcement Action to Child Care Enforcement

If CCR staff determine that Child Care Enforcement (CCE) should impose an adverse action on an operation, the inspector, supervisor, program administrator, and regional director meet to discuss if the regional director will begin the referral process to CCE. CCR staff use Appendix 7000-1 as an aid to determine if adverse action is appropriate (7620 Criteria for Taking Adverse Action).

Based on this discussion CCR staff take the following actions:

If	Then
the regional director agrees with submitting the Referral for Enforcement Action to CCE	the regional director begins the CCE referral process. The inspector documents a summary of the discussion and CCR's decision as a Chronology in CLASS.

If	Then
the regional director does not agree with submitting the Referral for Enforcement Action to CCE	CCR staff determine if less serious measures should be taken to reduce risk at the operation. The inspector documents a summary of the discussion and CCR's decision as a Chronology in CLASS.

If the refusal to renew, revocation, suspension or denial involves a state-operated operation, the regional director also notifies the associate commissioner of CCR:

- after the Referral for Enforcement Action is submitted to CCE; and
- at the time CCE decides to impose adverse action.

Reference 2280 State-Operated Facilities Exempt from Licensure

Child Care Enforcement's Decision

After CCR submits the Referral for Enforcement Action, CCE notifies CCR of the decision of which enforcement action, if any, that CCE will recommend or impose on the operation.

If CCE decides to impose adverse action, CCE drafts the written notification to the operation and shares the final written notification with CCR staff to review.

Notify the Permit Holder or Applicant About the Action

HHSC staff:

- notify the permit holder or applicant about the intent to deny, refuse to renew, revoke, suspend, or amend a permit by sending CLASS Form 2880 Intent to Impose Adverse Action letter; and
- explains in the notification that the permit holder or applicant has the right to request an administrative review within 15 days after the permit holder receives CLASS Form 2880.

References:

Referral Instructions for Probation, Adverse Actions, and Judicial Actions job aid located on CCR's SharePoint site

5600 Administrative Reviews
7631 Notice of Intent to Deny, Refuse to Renew, Revoke, or Suspend
7632 Administrative Review for Adverse Action

Notify Controlling Persons About the Intent to Designate

When revoking a permit, CCE staff:

- determine the controlling persons to designate; and
- notify the controlling person about the intent to designate by sending CLASS Form 2762 Intent to Designate.

Reference 7770 Administrative Review and Due Process Hearing for a Designated Controlling Person.

Notify the Permit Holder or Applicant About the Results of an Administrative Review

If the permit holder or applicant requests an administrative review, the CCE staff person conducting the review notifies the permit holder or applicant about the decision to deny, refuse to renew, revoke, suspend, or adversely amend the permit after the administrative review is completed. Reference 7632 Administrative Review for Adverse Action.

If the CCE staff person conducting the review upholds the adverse action, and the permit holder or applicant appeals the decision, the CCE staff person notifies the permit holder about the final decision to deny, refuse to renew, revoke, suspend, or adversely amend the permit after the opportunity to appeal has been exhausted. Reference 7633 Notice of Decision to Deny, Revoke, or Suspend an Application or Permit.

Documentation

CCE staff document all adverse actions in CLASS and generate all adverse action letters from CLASS.

7631 Notice of Intent to Deny, Refuse to Renew, Revoke, or Suspend

Revision 24-1; Effective Feb. 20, 2024

CCE drafts and finalizes CLASS Form 2880 Intent to Impose Adverse Action letter. The purpose of the letter is to:

- notify the permit holder or applicant about CCE's intent to deny, refuse to renew, revoke, or suspend the permit; and
- explain the basis for the action.

No denial, refusal to renew, revocation, or suspension is effective unless HHSC:

- notifies the permit holder or applicant in person or by both regular and certified mail about the alleged deficiencies warranting action; and
- gives the permit holder or applicant an opportunity through an administrative review to retain the permit by showing compliance with statutes, administrative rules, and minimum standards.

Texas Government Code Section 2001.054

26 TAC Section 745.8609

7631.1 When Immediate Intervention Is Warranted at an Operation

Revision 24-2; Effective May 22, 2024

If CCR determines that circumstances at the operation are extreme enough to warrant immediate intervention, such as judicial action, the regional director or program administrator begins the CCE referral process simultaneously with the mailing or delivery of CLASS Form 2880 Intent to Impose Adverse Action.

Reference

Injunction, Including Temporary Injunction, 7710

7631.2 Requirements if the Action Taken is Refusal to Renew or Revocation and There is Risk to the Health or Safety of Children

Revision 24-1; Effective Feb. 20, 2024

If CCE intends to refuse to renew or revoke an operation's permit and determines that the operation poses an immediate risk to the health or safety of children, CCE staff:

- select the *Not Allowed to Operate* checkbox on CLASS Form 2880 Intent to Impose Adverse Action letter; and
- document in the textbox how the operation poses an immediate danger to a child's safety, health, or both with information included as outlined under 26 TAC Section 745.751.

Procedure

On the same day that CCR staff receive CLASS Form 2880 from CCE, they review the letter to determine if CCE:

- intends to refuse to renew or revoke the relevant operation's permit; and
- has also determined that the operation poses an immediate risk to children and must stop operating.

If CCE has determined that the operation must stop operating, then:

- CCR staff provide immediate notification to the operation, 7631.4 Authorizing and Delivering the Intent to Impose Adverse Action Letter; and
- the program administrator or designee changes the operation's main page in CLASS by selecting the *Do not display on public/provider website* checkbox.

Human Resources Code Section 42.072(e)

26 TAC Section 745.8875

7631.3 Following Up on Notification Requirements for Informing the Public About an Adverse Action

Revision 24-1; Effective Feb. 20, 2024

Procedure

The inspector follows up to ensure that the operation has:

- notified the parents; and
- sent the copies of the certified return receipts to CCR.

Reference 26 TAC Section 745.8656

7631.4 Authorizing and Delivering the Intent to Impose Adverse Action Letter

Revision 24-1; Effective Feb. 20, 2024

CCE must sign CLASS Form 2880 Intent to Impose Adverse Action letter.

CCE sends the letter to the operation on the date that CCE saves the letter as final in CLASS.

The regional director or designee must deliver the letter to the permit holder or applicant in person if:

- CCE cannot deliver the letter; or
- the operation is required to close immediately (7631.41 When the Operation is Required to Close Immediately).

In addition to sending CLASS Form 2880 to CCR staff for review, CCE also sends a copy of the letter to the following, when applicable:

a. DFPS residential contract manager;
b. the Child and Adult Care Food Program (CACFP); and
c. the Texas Workforce Commission Local Workforce Board.

Procedure

When the regional director receives a copy of CLASS Form 2880, the regional director sends a copy of the letter to the:

a. program administrator;
b. supervisor;
c. inspector; and
d. CBCU inspector.

26 TAC Section 745.8657

7631.41 When the Operation is Required to Close Immediately

Revision 24-1; Effective Feb. 20, 2024

Under statute, an operation cannot operate pending the appeal of a denial or suspension. Moreover, an operation cannot operate pending appeal of a revocation or refusal to renew if CCE determines that the operation poses an immediate threat to the health or safety of children, unless the operation gets an injunction allowing the operation to stay open. CCR staff are responsible for providing immediate notification to the operation by personally delivering CLASS Form 2880 Intent to Impose Adverse Action letter to the permit holder or applicant.

After CCR staff personally deliver CLASS Form 2880, the CCR staff person who delivered the letter documents the name of the person at the operation who received the notification as a Chronology in CLASS using the *Corrective/Adverse Action* category type.

If the operation is located at a distance where CCR staff are not able to immediately hand deliver CLASS Form 2880, CCE staff:

a. notify the permit holder or applicant by phone;
b. send the letter by email or fax; and
c. send the letter by both regular and certified mail, with a return receipt requested.

Human Resources Code Section 42.072

7631.5 Follow-Up After Delivery of Notice of Intent to Take Adverse Action When Operation Required to Close Immediately

Revision 24-2; Effective May 22, 2024

Procedure

If the operation must close immediately, the inspector must conduct a follow-up inspection at the operation within 15 days after CLASS Form 2880 Intent to Impose Adverse Action letter has been sent or delivered to the operation. This inspection is to determine if the operation continues to care for children.

If no one is present at the operation, the inspector:

a. documents the inspection type as *Follow-up* if the inspector observes enough to confirm the operation is no longer caring for children;
b. documents the inspection type as *Attempted* if the inspector is not able to determine if the operation continues to care for children;
c. documents the observations made during the inspection as a Chronology in CLASS using the *Monitoring* category type; and
d. consults with the supervisor to decide the next course of action.

If the operation continues to operate the inspector informs the supervisor, who notifies the program administrator and regional director. The regional director begins the CCE referral process.

Reference

Injunction, Including Temporary Injunction, 7710

7632 Administrative Review for Adverse Action

Revision 24-1; Effective Feb. 20, 2024

If the permit holder or applicant disagrees with the adverse action imposed, the person may request an administrative review within 15 days of receiving the finalized CLASS Form 2880 Intent to Impose Adverse Action letter.

References:

5612 Waiving the Right to an Administrative Review
5613 Receiving a Request for an Administrative Review
7630 Taking Adverse Action

26 TAC Sections 745.8805; 745.8613 and 745.909(b)

7632.1 When an Adverse Action is Overturned at an Administrative Review

Revision 24-2; Effective May 22, 2024

If CCE overturns the adverse action after conducting the administrative review, CCE mails a letter advising the permit holder or applicant about the decision and updates the Provider Adverse Action page in CLASS.

7632.2 Adverse Action is Upheld at an Administrative Review or No Administrative Review is Requested

Revision 24-2; Effective May 22, 2024

CCE notifies the permit holder or applicant by sending CLASS Form 2878 Decision to Impose Adverse Action letter and updates the Provider Adverse Action page in CLASS if:

- CCE conducts the administrative review and upholds the adverse action; or
- the operation does not request an administrative review for the adverse action.

References

Administrative Reviews, 5600
Notice of Decision to Deny, Revoke, or Suspend an Application or Permit, 7633

7633 Notice of Decision to Deny, Revoke, or Suspend an Application or Permit

Revision 24-1; Effective Feb. 20, 2024

If, after the opportunity for administrative review, CCE decides to deny, refuse to renew, revoke, or suspend a permit, CCE:

- sends a certified letter to the permit holder or applicant to notify the permit holder or applicant about the decision;
- notifies the permit holder or applicant about the decision to deny, refuse to renew, revoke, or suspend by sending CLASS Form 2878 Decision to Impose Adverse Action letter by both regular and certified mail; and
- notifies other state agencies, if applicable (7633.2 Notifying HHSC Staff and Other State Agencies).

26 TAC Section 745.8609

If CCE upholds the decision to deny, refuse to renew, revoke, or suspend an application for a permit, CCR updates the operation's status in CLASS (7633.3 Updating the Operation's Status in CLASS).

7633.1 Requirements if There is Immediate Risk to Children

Revision 24-1; Effective Feb. 20, 2024

Procedure

The program administrator or designee changes the operation's main page in CLASS by selecting the check box *Do not display on public/provider website* to reflect that the operation must not be posted on the Search Texas Childcare public website.

If the operation poses an immediate threat to the health or safety of children, the inspector and supervisor are responsible for providing immediate notification to the operation by personally delivering CLASS Form 2878 Decision to Impose Adverse Action letter to the permit holder or applicant.

If the inspector personally delivers CLASS Form 2878 Decision to Impose Adverse Action letter, the inspector documents the following as a Chronology in CLASS using the *Corrective/Adverse Action* category type:

- The dates that the letter was delivered to and received by the operation.
- The name of the person at the operation who received the notification.

If the operation is located at a distance where the inspector is not able to immediately hand-deliver the letter, CCE staff:

a. notify the permit holder or applicant by phone;
b. send the letter by email or fax; and
c. send the letter by both regular and certified mail, with a return receipt requested.

References:

7631.2 Requirements if the Action Taken is Refusal to Renew or Revocation and There is Risk to the Health or Safety of Children

Human Resources Code Section 42.072(e)

26 TAC Section 745.8875

7633.2 Notifying HHSC Staff and Other State Agencies

Revision 24-1; Effective Feb. 20, 2024

Procedure

In addition to sending CLASS Form 2878 Decision to Impose Adverse Action letter to CCR for review, CCE also sends a copy of the letter to the following, when applicable:

- the Texas Workforce Commission Local Workforce Board;
- the Child and Adult Food Care Program; and
- DFPS residential contract manager.

When the regional director receives a copy of CLASS Form 2880, the regional director sends a copy of the letter to the:

a. program administrator;
b. supervisor;
c. inspector; and
d. CBCU inspector.

7633.3 Updating the Operation's Status in CLASS

Revision 24-1; Effective Feb. 20, 2024

Procedure

When CCE denies, suspends, refuses to renew, or revokes an operation's permit, the inspector:

- updates the *Operation Main* page in CLASS by changing the *Operating Status* to *No*;
- updates the *Effective Date* to reflect the date CLASS Form 2878 Decision to Impose Adverse Action letter was finalized in CLASS; and
- notifies the program administrator or designee to check the *Do not display on public/provider site* check box.

7634 Inspecting During the Suspension, Refusal to Renew, Revocation, or Denial Process

Revision 24-2; Effective May 22, 2024

CCR staff consult with the regional director, director of day care operations, or director of residential care operations, as appropriate, and the Child Care Licensing Legal Enforcement Department. The consultation is to determine a plan for inspecting during the refusal to renew, revocation, suspension or denial process.

Because the operation still has children in care during this time, CCR continues to have monitoring responsibility. Inspections are made during this process to make sure the children are safe.

Procedure

Inspection procedures are in 5720 Regulation Pending the Due Process Hearing for Denial, Refusal to Renew, Revocation, or Suspension.

7635 Sending an Operation Final Notice of Suspension, Refusal to Renew, Revocation, or Denial

Revision 24-1; Effective Feb. 20, 2024

CCE notifies the applicant or permit holder that the decision to refuse to renew, revoke, suspend, or deny the permit is final when:

- the opportunity to request a due process hearing has passed; or
- the decision is upheld through due process.

Human Resources Code Section 42.077(a)

26 TAC Section 745.8659

CCE:

- sends the CLASS Form 2895 Final Adverse Action letter to the permit holder or applicant by both regular and certified mail, with a return receipt requested; and
- updates the due process fields in CLASS to ensure that the revocation or suspension is reflected on the HHSC public website.

References:

5612 Waiving the Right to Administrative Review
7632 Administrative Review for Adverse Action

7635.1 Additional Actions Taken by CCR Staff When Adverse Action Is Final

Revision 24-1; Effective Feb. 20, 2024

Procedure

After receiving CLASS Form 2895 Final Adverse Action letter from CCE, the regional director sends a copy of the letter to the:

a. program administrator;

b. supervisor;
c. inspector; and
d. CBCU inspector.

7636 Follow-Up to Final Notice of Suspension, Revocation, or Denial

Revision 24-2; Effective May 22, 2024

Procedure

Within two weeks after CCE mails the final notice of refusal to renew, revocation, suspension, or denial, the CCR inspector conducts a follow-up inspection to:

- verify if the operation is caring for children; and
- collect the permit if it has not been returned.

If the inspector previously confirmed closure of the operation after delivery of CLASS Form 2880 Intent to Impose Adverse Action letter, then a follow-up inspection is not necessary.

Reference

Follow-Up After Delivery of Notice of Take Adverse Action When Operation Required to Close Immediately, 7631.5

If no one is present at the operation, the inspector:

a. documents the inspection type as *Follow-up* if the inspector observes enough to confirm the operation is no longer caring for children;
b. documents the inspection type as Attempted if the inspector is not able to determine if the operation is still caring for children;
c. documents the observations made during the inspection as a Chronology in CLASS using the *Monitoring* category type; and
d. consults with the supervisor to decide the next course of action.

If the operation is caring for children, the inspector informs the supervisor, who notifies the regional director. The regional director begins the CCE referral process.

If the refusal to renew, revocation, suspension, or denial involves a state-operated operation, the regional director notifies the associate commissioner of CCR.

References

State-Operated Child Care Operations, 2130
Injunction, Including Temporary Injunction, 7710.

7700, Judicial Actions

Revision 24-2; Effective May 22, 2024

HHSC requests a district court to impose an action to address an issue at an operation.

Judicial actions may include a:

- temporary restraining order;
- temporary injunction;
- permanent injunction; or
- combination of the three.

26 TAC Sections 745.8603(a)(3) and 745.8681

7710 Injunction, Including Temporary Injunction

Revision 24-2; Effective May 22, 2024

After evaluating CCRs referral, CCE may request an injunction from the Office of the Attorney General. CCE may request an injunction upon finding:

- there is substantial risk of immediate harm to the health and safety of children in the care of an operation; or

- an operation subject to regulation is operating illegally and has failed to submit an application.

26 TAC Section 745.8681

HRC Section 42.074

7711 Following Up During an Injunction

Revision 24-2; Effective May 22, 2024

Procedure

After a court issues an injunction, the inspector, program administrator, regional director, and an Enforcement attorney for Child Care Licensing develop a plan for follow-up.

The inspector follows up to find out if the operation is obeying the court order. If it is not, the inspector submits a subsequent referral for an enforcement action to CCE.

CCE may file for contempt in district court when appropriate for violations of temporary restraining orders and injunctions.

Reference

Submitting a Subsequent Referral Action to Child Care Enforcement, 5723

7720 Civil Penalties and Criminal Offenses

Revision 24-2; Effective May 22, 2024

CCE evaluates CCRs referral for adverse action and considers filing for civil penalties and criminal offenses. If CCE determines a civil penalty is warranted, CCE consults with the Office of the Attorney General.

7720.1 Civil Penalties

Revision 24-2; Effective May 22, 2024

HRC Section 42.075 provides for civil penalties for any person who:

- threatens serious harm to a child in an operation by violating statues, administrative rules, or minimum standards;
- violates a provision of the statute, administrative rules, or minimum standards three or more times in a 12-month period;
- places a public advertisement for a facility or home that is subject to regulation without having the required license, registration or listing;
- knowingly fails to meet or maintain any criterion of an exemption and engages in activities that require a license or registration; or
- fails to inform CCR of a change in status and knows the change requires the person to be licensed or registered.

7720.2 Criminal Offenses

Revision 24-2; Effective May 22, 2024

HRC Section 42.076(a)-(c) state that the following are criminal actions and the offender is subject to criminal penalties:

- a person who operates a child care operation or child placing agency without a license commits a Class B misdemeanor;
- a person who operates a family home without a required listing or registration commits a Class B misdemeanor; and
- a person who places a public advertisement for an unlicensed facility or an unlisted or unregistered family home commits a Class C misdemeanor.

HRC Section 42.056 provides for a Class B misdemeanor criminal offense if:

- the director, owner, or operator of a facility or family home knowingly:
  - fails to submit to CCR information about a person for use in background checks; and
  - employs the person at the facility or family home or otherwise allows the person to regularly or frequently stay or work at the facility or family home while children are being provided care; or
- the director, owner, or operator of a facility or family home receives notice from CCR that, based on the results of a person's background check, the person may not be present at the facility or family home and the director, owner, or operator knowingly:
  - employs the person at the facility or family home; or

- otherwise allows the person to regularly or frequently stay or work at the facility or family home while children are being provided care.

HRC Section 42.0761 provides for Class B misdemeanor criminal offense when an owner or operator of a licensed child care center knowingly operates the center:

- without a director who meets the qualifications of a director or interim director; or
- without the routine presence of a director or interim director during the licensed child care center's hours of operation.

HRC Sections 42.056; 42.075; 42.076; 42.0761

7730 Settlement of Legal Case

Revision 24-2; Effective May 22, 2024

When a legal case is settled, CCE notifies CCR of the outcome.

If the settlement allows the operation to continue or resume providing care to children, CCR staff consult with their supervisor and the regional program administrator to determine a plan for monitoring the operation.

If the settlement does not allow the operation to provide care, CCR staff conduct inspections as provided in the following table.

Status of Verification	Conduct Inspection to Verify the Operation is Not Providing Care?
CCR staff previously verified the operation ceased proving care	No
CCR staff did not previously verify the operation has ceased providing care	Yes

8000, Responding to Requests for Child Care Regulation Information

8100, Information for General Release

August 2020

Child Care Regulation (CCR) records are considered open records, with certain exceptions.

Upon written request, information that is not considered confidential must be released to the public.

Texas Government Code, Title 5, Ch. 552, Public Information Act

CCR staff provide information about child care and regulation upon request. Making the community aware of the minimum level of care required by CCR increases the safety of the children in the community:

Staff may receive inquiries from:

- persons subject to regulation (see 2000 Handling Inquiries About the Licensing Process and Exemptions);
- parents;
- HHSC staff;
- staff from other state and federal agencies;
- the media;
- attorneys;
- advocacy organizations;
- legislators; and
- the public.

The method CCR staff uses to release information depends on:

- the source of the request;
- type of information requested;
- amount of information requested; and
- resources HHSC has available.

8110 Referring Requestors to the CCR Public Website

August 2020

Procedure

CCR staff refer a requestor to the Child Care Regulation (CCR) public website when the requestor requests publicly available information, such as:

- proposed changes to HHSC rules;
- minimum standards and guidelines for child day care;
- minimum standards and guidelines for residential child care;
- addresses and phone numbers of local CCR offices;
- the *Child Care Licensing Policy and Procedures Handbook*;
- forms the provider may download and print; and
- data and statistics about CCR.

8120 Providing Information About Child Care Operations

August 2020

Procedure

CCR staff refer the requestor to the CCR public website if the requestor requests a list of operations or requests information about a specific operation, including information about:

- the status of an operation's license or registration;
- the type of operation;
- the name of the permit holder;
- an operation's address and phone number;
- an operation's capacity, the ages it serves, and its hours, days, and months of operation; and
- details about an operation's violations of minimum standards that have been upheld.

For any other information about an operation, staff instruct the requestor to submit a request for open records by emailing the HHSC Open Records mailbox.

See also:

8210 Confidential Information Not for Release to the Public
8500 Releasing Information to the Media

8130 Processing an Open Records Request

Revision 23-3; Effective Sept. 22, 2023

Procedure

When designated CCR state office staff receive an open records request from the HHSC Open Records Office, staff take the following steps:

a. ensure that the request was sent to the appropriate program;
b. determine if a time cost estimate is needed; if so, then make sure it is complete and accepted by the requestor, if appropriate;
c. collect documentation from operation hard copy records, CLASS, the CCR Digital Storage SharePoint Site, the Neubus system, and CLASS Document Library;
d. request any needed documentation from the field;
e. log the information provided on the:
    - Regulatory Services Division (RSD) Records Tracking Log located on the RSD share drive (for RCCR operations); or
    - CCR Records Tracking Log located on the CCR share drive (for DCCR operations);
f. provide information to the HHSC Open Records Office; and
g. provide notation of possible concerns, including legal concerns and pending due process, to HHSC Open Records for consideration for release.

8131 Charging for Materials

August 2020

HHSC may charge a fee when:

- providing printed copies of HHSC materials; or

- the request requires staff time and effort to program or decode electronic data.

If HHSC will charge a fee, CCR provides the requestor with a cost estimate prior to processing the request. The requestor may modify the requestor's initial request based on the cost estimate.

8200, Protecting Confidential Information

August 2020

If CCR staff receive a request for information that is not publicly available on the CCR website, including requests for confidential information, staff:

- instruct the requestor to submit a request for open records by emailing the HHSC Open Records mailbox; and
- explain that the information must be screened and the confidential material must be removed before the information can be released.

8210 Confidential Information Not for Release to the Public

Revision 24-4: Effective Nov. 13, 2024

A judge may order the release of confidential material in a court hearing or by court order per 26 TAC Section 745.8489(c). If the request for records is the result of a subpoena, the CCR staff handling the subpoena discusses the release of information with the HHSC Legal Department.

If someone requests information that is not subject to public release, CCR staff consult with the supervisor and the HHSC Legal Department.

The table below identifies the information that must **not** be released to the public, provides the rationale for not releasing the information, and lists any applicable exceptions to the restrictions.

Confidential	Citation for Confidentiality	Exceptions
The name of the reporter and the reporter's identifying information. This includes the name and identifying information for a person contacted during an investigation who makes a new allegation that is unrelated to the report being investigated.	The Attorney General's Open Records Decision No. 176, Sept. 9, 1977, and 26 TAC Section 745.8483(2). Reference 6260 Confidentiality of the Reporter's Identity.	This information may be released to the people noted at 26 TAC Section 745.8489(a). Reference 8220 Who Can Receive Confidential Information.
Information obtained through criminal history checks about conviction, indictment, criminal complaint or deferred adjudication.	Government Code Sections 411.084, 411.085, and 411.114. Reference 26 TAC Section 745.8483(3).	Authorized people or entities may receive criminal history information in certain situations. Reference Government Code Sections 411.084(a)(2) and 411.114(a)(6) and (7) and 26 TAC Section 745.633(b).
Information received from another agency, division or person if that information is confidential under law. **Examples**: • information about a DFPS abuse or neglect investigation, including the name of the alleged or designated perpetrator; • police investigation reports; and • medical records, including records of psychological examinations.	The information is confidential per statutes under a variety of codes and may not be released. Reference 26 TAC Section 745.8483(3).	This information may be released to the people noted at 26 TAC Section 745.8489(a). Reference 8220 Who Can Receive Confidential Information. CCR may release information related to a DFPS investigation in certain situations per 26 TAC Section 745.8493(c).

Confidential	Citation for Confidentiality	Exceptions
The following information is considered confidential for an applicant, a previous or current permit holder, and a previously or currently licensed administrator: • home address; • home phone number; • email address; • Social Security number; • date of birth; • driver license number; • state ID number; • passport number; • emergency contact information; or • payment information.	Government Code Section 552.11765(b)	The home address where the regulated activity occurs and the email address or phone number associated with the regulated activity are not confidential.
The application for a permit or administrator's license.	Government Code Section 552.11765(b)(1)	None
Certain private information may be constitutionally protected or under state or federal law. This includes a person's Social Security number, a foster home screening, adoptive home screening, post-placement adoptive report and information about a pending court case where the state is a party. **Note**: When requests for this information are received, CCR staff must immediately ask an HHSC attorney to send a written request to the Office of the Attorney General for an opinion on the private nature of the information.	Government Code, Title 5, Chapter 552, Public Information Act prohibits the release of certain private information to unauthorized people or entities. Reference 26 TAC Section 745.8483(4).	This information may be released to the people noted at 26 TAC Section 745.8489(a). Reference 8220 Who Can Receive Confidential Information. Exceptions to the Public Information Act may also include the release of: • private information to certain authorized people or entities; • information related to litigation of a criminal or civil nature; and • settlement negotiations where the state is a party. A foster home screening, adoptive home screening, and post-placement adoptive report also may be released to the subject of the screening or report, or any person who needs the information to protect the health or safety of a child. Reference 26 TAC Section 745.8487(3)
Open investigations, including interviews with operation staff, foster parents and other caregivers, children or any other person. Also, internal discussions by or among CCR staff.	26 TAC Sections 745.8483 and 745.8485.	Information in an open investigation may be released to an operation if CCR determines the operation needs the information to protect the health, safety and well-being of a child. Once an investigation is completed, the information is no longer confidential. Reference 26 TAC Section 745.8487(1). Also, during an open investigation, a person is not prohibited from recording their interview with CCR staff. Reference 26 TAC Section 745.8485(a)(2).
Information that may interfere with: • an ongoing law enforcement investigation	This information is confidential per 26 TAC Section 745.8483(5).	This information may be released to the people noted at 26 TAC Section 745.8489(a). Reference 8220 Who Can Receive Confidential Information.

Confidential	Citation for Confidentiality	Exceptions
or prosecution; • a DFPS child abuse, neglect or exploitation investigation; or • an HHSC Long-term Care Regulation adult abuse, neglect or exploitation investigation.		
Information about a person who received services at a family violence shelter or victims of trafficking center.	The information is confidential per Government Code Section 552.138 and 26 TAC Section 745.8483(7).	This information may be released to the people noted at 26 TAC Section 745.8489(a). Reference 8220 Who Can Receive Confidential Information.
The location of a family violence shelter or a victims of trafficking shelter center.	The location is confidential per Government Code Section 552.138 and 26 TAC Section 745.8483(6).	This information may be released to the persons noted at 26 TAC Section 745.8489(a). Reference 8220 Who Can Receive Confidential Information. The location of the shelter or center also must be provided in a public hearing under Human Resources Code Section 42.0461 if the shelter or center is a general residential operation that provides services to children with emotional disorders. Such operations do not have to identify that the operation intends to provide services to victims of human trafficking per 26 TAC Section 745.8487(4)
Any photograph, audio or visual recording, or documentation of a child.	This information is confidential per 26 TAC Section 745.8483(8).	This information may be released to the people noted at 26 TAC Sections 745.8489(a) and 745.8491(a). Reference 8220 Who Can Receive Confidential Information. The parent of a child may also have a copy of a photograph, audio or visual recording, or documentation of a child. Reference 26 TAC Sections 745.8487(5) and 745.8491(a)(1). The following people may not have a copy but may review a photograph, audio or visual recording, or documentation of a child: • attorney ad litem, guardian ad litem or court appointed special advocate; and • the operation cited for a deficiency from the inspection or investigation when the photograph was taken or the audio or visual recording, or documentation was made. Reference 26 TAC Sections 745.8487(5) and 745.8491(a)(2).

8220 Who Can Receive Confidential Information

Revision 23-4; Effective Nov. 30, 2023

Confidential information may only be released to the following parties or in the following relevant situations:

1. to HHSC staff, including volunteers, as necessary to perform their assigned duties;
2. to DFPS staff, including volunteers, as necessary to perform their assigned duties;
3. to a single source continuum contractor (SSCC) that contracts with DFPS to provide community-based care according to Family Code, Subchapter B-1, Chapter 264, as necessary for the SSCC's staff, including volunteers, to perform the SSCC's duties under that subchapter;
4. to law enforcement for the purpose of investigating a crime that is related to the record;
5. to an administrative law judge or judge of a competent jurisdiction in a civil or criminal case arising out of a related inspection, investigation or enforcement action; and
6. to any other person authorized by state or federal law to have a copy.

CCR staff, in consultation with the Office of the General Counsel, may withhold any information in its records if the release of that information would endanger the life or safety of any individual.

26 TAC Sections 745.8489; 745.8493

8221 How to Determine if a Person is a Prospective Adoptive Parent

August 2020

Before releasing any confidential information listed in 8210 Confidential Information Not for Release to the Public to a prospective adoptive parent, CCR staff must first determine that the requestor is a prospective adoptive parent by verifying with the CPA:

- that the person has been selected as the prospective adoptive parent for the child; or
- that the person has shown interest in being the prospective adoptive parent of the child.

8230 How to Respond to Requests for Information from DFPS Investigations

August 2020

If CCR staff receive a request for information from an abuse, neglect, or exploitation investigation conducted by DFPS at a child care operation, staff may provide the requestor with Form 2869 Investigation Letter. Staff refer the requestor to DFPS Open Records for all other documentation related to the abuse, neglect or exploitation investigation.

8300, Responding to Requests From Parents and Managing Conservators

August 2020

CCR staff assist parents and managing conservators by:

- providing information to help them make informed decisions;
- responding to parents' or a managing conservator's request for information about how an operation is regulated; and
- providing information when parents report alleged violations of the law or rules.

Procedure

CCR staff provide certain types of information, as explained in the table below.

If parents …	then CCR staff …
need permits or forms …	• refer parents to the CCR public website for information about the permit and inspections; or • advise parents to request from the permit holder or operator a copy of the operation inspection forms or follow-up letters.
have a child in DFPS conservatorship …	must share all information with DFPS staff.
need general information …	must follow the procedures in 8100 Information for General Release.
allege that a child care operation has violated the law or minimum standards …	must follow the procedures in 6200 Assessing and Processing Intake Reports.

See 8210 Confidential Information Not for Release to the Public if a parent requests information related to:

a. an investigation;
b. a photograph,
c. an audio or visual recording; or
d. other depictions or documentations of a child.

8400, Responding to Requests from HHSC, DFPS Staff and Other Agencies

August 2020

When there is a job-related need for the information and the release of information is consistent with HHSC policy and rules, CCR staff do not require a formal request in order to provide information to:

- other HHSC staff;
- DFPS staff; or
- to respond to routine requests from other government agencies (including law enforcement).

8410 Releasing to HHSC Staff and DFPS

August 2020

CCR staff may share any information with any HHSC or DFPS staff person who makes the request for the information without redacting confidential information.

8420 Releasing to Other Agencies

August 2020

CCR staff may share information with other government agencies, other than DFPS, as long as:

- the request has been staffed with a supervisor;
- the release of information is consistent with HHSC policy and rules; and
- the requestor provides written assurance that any confidential information will be protected and that the information will be used only for the purpose and function of the division or agency requesting it.

CCR staff create a *Chronology* in CLASS detailing:

a. the information provided;
b. to whom the information was provided; and
c. the purpose of providing it.

Questionable Requests

For requests for information from other governmental agencies (including law enforcement) that are questionable, not job-related, unusual, unclear, or not routine, staff must obtain:

- a written request from the requestor on the requesting agency's letterhead; and
- verification from an HHSC open records attorney that the release is authorized.

8500, Releasing Information to the Media

8510 Routine Contact with the Media

August 2020

In routine situations, the following staff may authorize CCR staff to provide information to the media:

- the CCR regional district director; or
- the director of regional operations for day care or residential child care.

8511 Requests Beyond General Release

August 2020

If a representative of a news organization contacts CCR staff with questions beyond what is afforded in accordance with 8100 Information for General Release, CCR staff refer the representative to the director of regional operations for their respective program.

The CCR director of regional operations or designee will work with the HHSC chief press officer, or that person's designee, to release information to the media that goes beyond what is allowed in 8100 Information for General Release. Before obtaining information that

goes beyond general release, the requestor completes a request for open records when necessary.

8600, Responding to Requests from Legislators

August 2020

If CCR staff must respond to a request for information from a state government official, a member of a government official's staff, or a member, agency, or committee of the Texas Legislature, staff refer the requestor to the CCR director of policy and program operations as soon as possible. The CCR director of policy and program operations will work with the HHSC Government and Stakeholder Relations office to respond to the request.

8610 Responding to Requests About Complaints or Legislative Issues

August 2020

Procedure

If CCR staff receive a general complaint about decisions or actions of HHSC staff, staff refer the person making the complaint to the CCR regional director for the appropriate program. The CCR regional director will work to resolve the complaint. Unresolved complaints are referred to HHSC Consumer Rights and Services.

If CCR staff receive a request about HHSC's position on proposed legislation or other legislative issues, staff refer the requestor to the CCR director of policy and program operations. The CCR director of policy and program operations will work with the HHSC Government and Stakeholder Relations department to respond to the request.

8700, Responding to Requests from Disability Rights Texas

August 2020

Disability Rights Texas is the federally funded and authorized protection and advocacy system for Texans with disabilities.

The federal Developmental Disabilities Assistance and Bill of Rights Act allows HHSC to release confidential records to Disability Rights Texas when it is representing an individual or investigating crimes related to a complaint about the treatment of an HHSC client. The Act grants Disability Rights Texas staff special access to CCR records to carry out their duties. Employees of Disability Rights Texas are not required to formally request information related to a Disability Rights Texas client.

42 USC §§15041-15045

Procedure

CCR staff must take the following steps:

- Respond promptly when Disability Rights Texas requests information *related to a Disability Rights Texas client*. Expedite the response, regardless of whether Disability Rights Texas requests an expedited response.
  When it is not clear whether a request for information is client-related, contact the program specialist responsible for releasing information. (Disability Rights Texas staff do not have the same rights to CCR records when they request information on behalf of a friend or family member, rather than as part of their work with Disability Rights Texas)
- Send all Disability Rights Texas requests to the HHSC Open Records mailbox.

9000, Licensed Administrators

9100, Overview of the Administrator's License Program

April 2022

Administrators of residential child care operations have daily supervision and overall administrative responsibility for the operation for which they are designated. They are responsible for ensuring that the operation complies with Chapter 42 of the Human Resources Code, applicable minimum standards, and other applicable rules and laws. The administrators are also responsible for the operation's program(s) and personnel, regardless of whether the person has an ownership interest in the operation or shares duties with anyone.

A person may not serve as the administrator of a general residential operation without a Child Care Administrator's License, unless the applicant is a military spouse currently licensed in good standing in another state that has licensing requirements that are substantially equivalent and meets certain other requirements.

A person may not serve as the administrator of a child-placing agency without a Child-Placing Agency Administrator's License, unless the applicant is a military spouse currently licensed in good standing in another state that has licensing requirements that are substantially equivalent and meets certain other requirements.

Texas Human Resources Code, §43.003

26 Texas Administrative Code, Chapter 745, Subchapter N

26 TAC §§748.535; 749.635

See also:

9340 Approving a Military Spouse to Act as an Administrator Without a License

Resources

The Licensed Administrator program offers these online resources:

- Full text of the law and rules
- Application forms
- A directory of licensed child care administrators
- A directory of licensed child-placing agency administrators
- A list of frequently asked questions
- The email address for the Licensed Administrator program

9110 Documents Required for a Complete Licensed Administrator's Application

April 2022

A complete application for an administrator's license includes all of the following:

a. A completed Form 3015, Application for a Child Care Administrator License or a Child-Placing Agency Administrator License;
b. A transcript or letter of verification from the appropriate educational institution;
c. Two professional references (Form 3016, Administrator Licensing – Reference for an Applicant, to be completed by references);
d. An employer reference that documents one year of supervisory experience (Form 3016, to be completed by employer);
e. The application fee, unless the fee was waived (see 9350 Waiving Application and Exam Fees for an Applicant Who is a Military Member, Military Spouse or Military Veteran);
f. A notarized affidavit documenting background information on Form 2985, Affidavit for Applicants for Employment with a Licensed Operation or Registered Child Care Home, provided by HHSC;
g. A completed background check request (Form 3017, Child Care Regulation Request for Background Checks for an Administrator's License);
h. Submitted fingerprint checks, unless the applicant has previously undergone a fingerprint-based criminal history check that remains valid (see 10121 Persons For Whom Operations Must Submit Requests for Background Checks);
i. The fee for a background check;
j. Any supporting documentation to verify the information provided on the application; and
k. If the applicant is a military member, military spouse or military veteran, all items listed in 9310 Additional Required Documentation if the Applicant is a Military Member, Military Spouse or Military Veteran Requesting Expedited License or Special Considerations.

26 TAC §§745.625; 745.8933; 745.8934

9120 Processing an Administrator's License Application

April 2022

Procedure

After receiving an application for an administrator's license, the CCR program specialist responsible for the licensed administrator program processes the application by:

- determining if the application is complete;
- determining if the applicant is eligible to take the license examination; and
- updating the application status in CLASS.

Updating the application status in CLASS generates an email notifying the applicant whether:

a. CCR received a complete application, including the required supporting documents/forms and fees, and determined the applicant meets the initial qualifications and is eligible to take the licensing examination;
b. CCR received complete application materials and fees, and the applicant does not meet the initial qualifications and is not eligible to take the licensing examination; or
c. CCR determined the application is pending because it is incomplete and either the application, supporting documents/forms or the fees were not submitted, or do not show compliance with relevant statutes and rules.

Time Frames for Processing an Administrator's License Application

If the applicant is not a military member, military spouse or military veteran, the CCR program specialist responsible for the licensed administrator program processes the application within 21 days of the date the application was received.

If the applicant is a military member, military spouse or military veteran, the CCR program specialist responsible for the licensed administrator program expedites the application and processes it according to the time frames in 9320 Expedited Licensure if the Applicant is a Military Member, Military Spouse or Military Veteran.

26 TAC §745.8933

See also:

9300 Applicant is a Military Member, Military Spouse or Military Veteran
9310 Additional Required Documentation if the Applicant is a Military Member, Military Spouse or Military Veteran Requesting Expedited License or Special Considerations
9330 Special Considerations for an Applicant Who is a Military Member, Military Spouse or Military Veteran

9121 Applications that Remain Incomplete for 12 Months

April 2022

If a licensed administrator application remains incomplete for 12 months:

a. the application expires;
b. the applicant may not apply again for one year from the date that the incomplete application expired; and
c. CLASS shows the application has the status of *Lapsed*, which triggers the system to generate and send an email to the applicant.

9200, Applicants Who Have an Administrator's License from Another State

April 2022

CCR staff may waive any prerequisite for an applicant to get an administrator's license if the applicant has a valid administrator's license from another state and:

a. the other state's license requirements are substantially equivalent to the requirements for a license under 26 TAC §745.8914; or
b. there is a reciprocity agreement between Texas and the other state.

CCR staff may issue a provisional child care administrator's license to an applicant licensed in another state who applies for a license in Texas. See 9510 Issuance of a Provisional Child Care Administrator's License.

Texas Human Resources Code §§43.0042; 43.0081

26 TAC §745.8913

9300, Applicant is a Military Member, Military Spouse or Military Veteran

9310 Additional Required Documentation if the Applicant is a Military Member, Military Spouse, or Military Veteran Requesting Expedited Licensure or Special Considerations

April 2022

In addition to the required application materials listed in 9110 Documents Required for a Complete Administrator's Application, a military member, military spouse or military veteran requesting expedited licensure or special considerations must submit:

a. documentation demonstrating the applicant's status as a military member, military spouse or military veteran, which may include:
   - any recent military orders;
   - a copy of the most recent Permanent Change of station (PCS) travel order to Texas;
   - a marriage certificate;
   - a valid military ID;
   - military discharge papers; or
   - a Veterans Affairs ID card;

b. documentation related to an administrator's license or any other professional or occupational license the applicant currently holds outside of Texas, if applicable;
c. a copy of the regulations pertaining to the current out-of-state administrator's license, if applicable; and
d. any additional documentation, as applicable, to determine whether the applicant:
   - meets a licensing requirement through some alternative method; or
   - has prior military service, training, education, or clinical or professional experience that may be credited toward or substituted for a licensing requirement.

26 TAC §745.9026, 745.9027

9320 Expedited Licensure if the Applicant is a Military Member, Military Spouse or Military Veteran

April 2022

CCR staff expedite the application process when the applicant is a military member, military spouse or military veteran. Staff must process a complete application as soon as possible, but no later than 21 days after receiving the application unless staff have good cause for exceeding the time frame.

26 TAC §§745.8951; 745.8969, 745.9028

See also 9120 Processing an Administrator's License Application

9330 Special Considerations for an Applicant Who is a Military Member, Military Spouse or Military Veteran

April 2022

The Associate Commissioner for CCR or designee may waive any prerequisite for a military member, military spouse or military veteran to get an administrator's license if the applicant:

- currently holds a valid administrator's license in another state whose license requirements are substantially equivalent to the requirements for a license in Texas, as described in 26 TAC §745.8914; or
- held an administrator's license in Texas within five years preceding the application date, and the credentials provide compelling justification that the applicant is qualified to act as a licensed administrator.

The Associate Commissioner for CCR or designee may also:

- credit a military member, military spouse or military veteran for verified military service, training, education, or clinical or professional experience that meets a requirement for a license; or
- substitute any demonstrated competency a military member, military spouse or military veteran has that the Associate Commissioner or designee determines to meet the requirements, other than the exam requirement.

The applicant is not eligible to receive the credit:

- based on an administrator's license in another jurisdiction that is restricted and, therefore, not substantially equivalent to an administrator's license in Texas; or
- if the applicant has criminal history or central registry history that would prohibit the applicant from obtaining an administrator's license.

A license issued after granting any of these considerations would be considered a full license and not a provisional one.

26 TAC §§745.775; 745.8913; 745.8914, 745.9026

9331 Special Considerations When a Military Member Applies to Renew

April 2022

A military member's administrator's license is no longer valid after two years, but the license will be considered dormant until its renewal is requested or for two additional years, whichever comes first.

Additionally, the following considerations are applicable to the renewal of a military member's administrator's license:

- No continuing education will be required prior to renewal; and
- Late renewal fees under 26 TAC §745.9003(a)(2) and (3) will be waived if failure to renew the license on time was due to a military member's service.

To be eligible for these considerations, the military member must not have criminal history or central registry history that would prohibit the applicant from obtaining an administrator's license.

26 TAC §§745.775; 745.9029

9340 Approving a Military Spouse to Act as an Administrator Without a License

April 2022

CCR may approve a military spouse who has a substantially equivalent license in another state that is in good standing to act as an administrator for a general residential operation, child-placing agency, or both, for up to three years without a license.

9341 Documentation a Military Spouse Must Submit Before Being Approved to Act as an Administrator Without a License

April 2022

A complete application for a military spouse to act as an administrator without a license must include:

1. Form 3015, Application for a Child Care Administrator License or a Child-Placing Agency Administrator License, with only Sections I, VIII and X completed.
2. A copy of the applicant's valid military identification card to demonstrate status as a military spouse;
3. A letter indicating the applicant's intent to act as an administrator for a general residential operation, child-placing agency, or both in this state;
4. Documentation of the applicant's residency in Texas, including a copy of the permanent change of station order for the military member to whom the applicant is married;
5. Proof of the applicant's administrator's license or any other professional or occupational license currently held in the other state; and
6. A copy of the regulations pertaining to the current license in the other state or a web address where the regulations can be found.

26 TAC §745.9030

9342 Evaluating Whether to Approve a Military Spouse to Act as an Administrator Without a License

April 2022

After receiving the required documentation, CCR staff:

- follows procedures in 9120 Processing an Administrator's License Application to process the application and determines if the application is complete and the documentation is accurate and meets the requirements in 9200 Applicants Who Have an Administrator's License from Another State;
- determines whether the applicant's license in the other state is a valid administrator's license based on whether:
  - the other state's licensing requirements are substantially equivalent to the requirements for a license in Texas, as described in §745.8914;
  - the license in the other state is valid, active, and current; and
  - there is no current disciplinary action or corrective action pending or attached to the license.

9343 Notification of CCR's Decision for a Military Spouse to Act as an Administrator Without a License

April 2022

CCR notifies the applicant once a determination is made to approve or deny the application. If approved, the person must adhere to applicable laws and regulations, including those related to:

a. Administrator's Licensing in 26 TAC Chapter 745, Subchapter N, Division 4 (with the exception of §§745.8991 - 745.9019 of Division 4, Renewing Your Administrator License) and Chapter 43 Human Resources Code;
b. Background Checks of 26 TAC Chapter 745, Subchapter F; and
c. Minimum standards for general residential operations in 26 TAC Chapter 748 and child-placing agencies in 26 TAC Chapter 749, as applicable depending on the type of operation where the applicant serves as an administrator.

9344 Expiration of an Authorization for a Military Spouse to Act as an Administrator Without a License

April 2022

CCR approval for a person to act as an administrator expires on the:

a. date the military member is no longer stationed at a military installation in this state; or
b. third anniversary of the date when CCR notified the military spouse of the approval.

CCR may revoke the approval to act as an administrator for any reason noted in 9700 Remedial Action on an Administrator's License.

26 TAC §745.9030

9350 Waiving Application and Exam Fees for an Applicant Who is a Military Member, Military Spouse or Military Veteran

April 2022

CCR waives application and exam fees for:

- a military member, military spouse or military veteran whose military service, training, education, or clinical or professional experience substantially meets the qualifications for an administrator's license; or
- a military member, military spouse or military veteran who holds a current license issued by another state whose license requirements are substantially equivalent to the requirements for a license in Texas, as described in 26 TAC §745.8914.

26 TAC §745.9026

9400, Fees for Administrators

9410 Administrator's License – Fee Chart

February 2020

The following chart contains application, examination, and renewal fees required for an administrator's license. An administrator's license may not be renewed unless the required training documentation is submitted with the fee.

Type and Amount of Fee	When to Notify Operation	When Fee is Due	Consequence if Operation Fails to Meet Time Frames
Application: $100	Inquiry, preapplication, or application	Application acceptance date	Return application as incomplete
Examination: $50	Inquiry, preapplication, or application	Upon registration and scheduling of examination via UT Arlington's Professional Development Program	Do not schedule for test
Replacement: $5	When requesting a replacement or copies	Before issuance	Do not issue
Active Renewal: Renewing by the expiration date: $50 Renewing within 90 days after the expiration date: $75 Renewing after 90 days but less than one year after expiration date: $100 Inactive Renewal: Renewing by expiration date: $25	Application for renewal	Before issuance	Do not issue renewal

Type and Amount of Fee	When to Notify Operation	When Fee is Due	Consequence if Operation Fails to Meet Time Frames
Renewing within 90 days after expiration date: $37.50 Renewing after 90 days but less than one year after expiration date: $50			
Change of status from Inactive to Active in the middle of a renewal cycle: $25	Submission of written request	Before change of status	Do not change status
Change of status from Active to Inactive in the middle of a renewal cycle: $25	Submission of written request	Before change of status	Do not change status

Texas Human Resources Code §43.006

26 TAC §§745.8931; 745.8933; 745.9003; 745.9005

See also:

9630 Renewal Fees for an Administrator's License

9500, Issuing a Child Care Administrator's License

February 2020

CCR staff will issue a child care administrator's license if:

a. the applicant's background check results do not contain criminal history or central registry findings that preclude the person from receiving a license;
b. the applicant has the academic and experience requirements for an administrator's license;
c. the applicant passes the licensing administrator's examination;
d. the applicant pays the application and background check fees; and
e. the applicant meets any other child care administrator's license requirements.

If the applicant does not meet the requirements to receive a child care administrator's license, CCR staff may deny the application.

In addition to the administrator's licensing background check process required in 9110 Documents Required for a Complete Licensed Administrator's Application, the operation where the person works must request a background check as required in 10121 Persons for Whom Operations Must Submit Requests for Background Checks.

See 9700 Remedial Action on an Administrator's License

Texas Human Resources Code §43.004

26 TAC §§745.775; 745.8933

9510 Issuance of a Provisional Child Care Administrator's License

February 2020

A provisional child care administrator's license is granted for a limited time pending the issuance of a full child care administrator's license.

Licensing staff may issue a provisional child care administrator's license to an applicant who:

a. is licensed in good standing as a child care administrator for at least two years in another state, the District of Columbia, a foreign country or a territory of the United States that has licensing requirements that are substantially equivalent to those in Texas;
b. has passed a national or other examination recognized by Licensing that demonstrates competence in the field of child care administration; and
c. is sponsored by a person licensed as a child care administrator in the state of Texas. However, if Licensing staff determines the requirement to obtain a sponsor constitutes a hardship to the applicant, this requirement may be waived.

Texas Human Resources Code §43.0081

26 TAC §745.8913

9511 Time Limit for a Provisional Child Care Administrator's License

February 2020

A provisional license is valid until the date the applicant is granted or denied a child care administrator's license.

Licensing must process a provisional child care administrator's license holder's application for an administrator's license no later than the 180th day after the date the provisional license is issued. Licensing may only extend the 180-day limit if the results of the license holder's examination have not been received by Licensing.

Procedure

Licensing staff will issue a child care administrator's license when the applicant meets the requirements in 9500 Issuing a Child Care Administrator's License.

Texas Human Resources Code §43.0081

9600, Renewing an Administrator's License

9610 Training Requirements for an Administrator's License

February 2020

Licensing staff review training documentation submitted by licensed administrators before approving a request to renew an administrator's license.

Procedure

Staff review training documentation to ensure the following:

- The licensed administrator obtained 15 hours of training *each year* of the two-year renewal cycle.
- The training was designed for professional-level staff. Training designed for direct care staff is not acceptable.
- The training was directly related to residential child care or business management.
- The subject of the training was *not* an organization's policies and procedures.
- The licensed administrator participated in the training. Training credit is not given for presenting training to others.

For more information on training requirements, see LCC or LCP Agency Administrator FAQs.

If a licensed administrator has not submitted enough acceptable training for each of the two years in his or her renewal cycle:

- Licensing staff contact the administrator and ask him or her to submit additional training documentation.
- Licensing staff generate and send a letter to the administrator notifying him or her that the renewal is pending, due to insufficient training hours.
- If the administrator cannot submit documentation verifying that training requirements were met, Licensing staff ask the administrator to confirm in writing that he or she has no other training documentation to submit for the time period.
- Remedial action is taken. See 9700 Remedial Action on an Administrator's License.

9620 Inactive Status for an Administrator's License

February 2020

Licensed administrators who are on inactive status for an entire renewal period are not required to submit training documentation for that period.

If an administrator was on active status for only a portion of the renewal period, the training requirement is prorated.

Administrators on inactive status pay lower renewal fees and are not required to undergo a background check.

Procedure

A licensed administrator must submit in writing, along with Form 3014, Administrator License – Renewal or Status Change, a request to change his or her license status *in writing*. Licensing must have a written record of the requests in order to prevent

miscommunication and to hold the licensed administrator accountable for training requirements. (Emails and faxes are considered written requests.)

When an administrator switches from inactive to active status in the middle of a renewal period, he or she must pay the appropriate fee and submit a background check request. The training requirement is prorated at 1.25 hour per each active month. For example, if an administrator switches to inactive status six months after renewing his or her license, and the status remains inactive for the rest of the renewal period, only 7.5 hours of training is required. (For an additional example, see 9630 Renewal Fees for an Administrator's License.)

See Texas Administrative Code, §745.9007, for details on changing a license status from inactive to active.

9630 Renewal Fees for an Administrator's License

February 2020

While training requirements for an administrator's license are based on the renewal period that just ended, renewal fees are based on the license status that the administrator requests for the coming period. For fee schedules, see §745.9003 and §745.9005 of the Texas Administrative Code.

Procedure

To assess late fees, Licensing staff follow these guidelines:

- Accept a renewal request postmarked on or before the license's expiration date.
- Assess late fees only when the administrator initiates the renewal process after his or her license expires (assess higher late fees when the request is initiated 90 days or more past the expiration date). Do not assess late fees if the administrator initiates a timely renewal and the renewal remains pending after his or her license expires.
- Assess late fees, even if an administrator did not receive a notice from Licensing about a license's expiration or impending expiration. Licensed administrators are accountable for renewing on time.

Example of Assessing Late Fees

An example of assessing late fees follows:

John Smith submits a request to renew his license. During his most recent renewal period, he was on active status for the first year, and then switched to inactive status. He is now asking to be placed back on active status. Unfortunately, he is renewing 30 days late. In this case, Mr. Smith owes 15 training hours (pro-rated for the one year that he was on active status) and $75 (because he is submitting a late request to renew his license on active status). Mr. Smith must have obtained all of the required training hours during the 12 months that he was on active status.

9640 Background Checks for an Administrator's License

February 2020

A background check is conducted on each licensed administrator who requests renewal of an administrator's license on active status, even if the person has had a background check under a licensed residential child care operation within the last five years.

If a licensed administrator has a background check match that violates minimum standards rules and is not subject to a risk evaluation, remedial action is initiated. See 10310 Acting on the Results of a Criminal History Check.

Procedure

The procedures for background checks are as follows:

- Run a background check on each licensed administrator requesting renewal on active status, regardless of whether the administrator is affiliated with a licensed residential child care operation.
- If an administrator has a background check match that violates minimum standards rules and is not subject to a risk evaluation, the Centralized Background Check Unit (CBCU) notifies the administrator about the match by letter and notifies the Licensed Administrator program about the match by email.

  A remedial action of either revocation or refusal to renew is initiated. See 9700 Remedial Action on an Administrator's License.

- If an administrator has a background check match that violates minimum standards rules and is subject to a risk evaluation, the type of follow-up depends on whether the administrator is affiliated with a licensed residential child care operation.

The CBCU notifies the administrator about the match by letter and notifies the Licensed Administrator program about the match by email.

- If the administrator is not affiliated with a licensed residential child care operation, the administrator's license is renewed, if the administrator would otherwise be eligible for renewal. No risk evaluation is conducted, unless or until the administrator becomes affiliated with an operation licensed by HHSC's Residential Child Care Licensing Division (RCCL).
- If the administrator is affiliated with an operation licensed by RCCL, the administrator must submit the request for a risk evaluation to the CBCU. The administrator has 30 calendar days from the date the operation submitted the request for the background check to request a risk evaluation. The CBCU notifies the Licensed Administrator program about the results of the risk evaluation. Licensing staff do not renew a license while the risk evaluation is pending. Staff delay renewal until the risk evaluation is complete and approved.

See 10400 Risk Evaluation of Criminal History or Findings of Child Abuse or Neglect.

9650 Lapsed Administrator's Licenses

February 2020

An administrator's license lapses after it has been expired for one year.

A lapsed administrator's license cannot be renewed.

Texas Human Resources Code (HRC), §43.009

Procedure

If a person with a lapsed administrator's license contacts Licensing staff to renew his or her license, Licensing staff inform the person that he or she must apply for a new license.

The only exception is active military personnel who are exempt from renewal requirements as specified in §745.9029 of the Texas Administrative Code.

9660 Emeritus Status for an Administrator's License

February 2020

An emeritus license is an honorary license for a person who had an administrator's license and no longer serves as an administrator.

Emeritus status is primarily designed for persons who have retired.

An emeritus license is valid for the lifetime of the licensee.

Renewal and reporting requirements do not apply.

A person cannot act as a licensed administrator with an emeritus license.

Procedure

To receive an emeritus license, a licensed administrator submits a written request, along with Form 3014, Administrator License – Renewal or Status Change.

An emeritus license is granted only when the administrator:

- is at least 55 years old or has a permanent physical or medical disability;
- has a valid administrator's license and has no remedial action or pending remedial action against the license; and
- is no longer engaged in professional residential child care.

If the administrator decides to act as a licensed administrator again after obtaining an emeritus license, he or she must apply for a new license.

9670 Relinquishing an Administrator's License

February 2020

Procedure

To relinquish a license, a licensed administrator mails completed Form 3014, Administrator License – Renewal or Status Change, and the original license to the address indicated on the form.

Licensing staff:

- send a letter on CLASS letterhead confirming the receipt of the license;
- inform the person he or she must apply for a new license should he or she decide to become a licensed administrator again; and
- change status of license in CLASS to "withdrawn."

9700, Remedial Action on an Administrator's License

Revision 24-2; Effective May 22, 2024

CCR may take remedial action against an administrator's license when the administrator or applicant:

a. violates a term under HRC Chapter 43 or a rule adopted under that chapter;
b. circumvents or attempts to circumvent the requirements of HRC Chapter 43 or a rule adopted under that chapter;
c. engages in fraud or deceit about a requirement in HRC Chapter 43 or a rule adopted under that chapter;
d. provides false or misleading information to CCR during the application or renewal process for an administrator's license;
e. makes a statement about a material fact during the application or renewal process that the applicant or licensed administrator knows or should know is false;
f. has a criminal history or central registry record that:
    - prohibits the administrator or applicant for an administrator's license from working at a facility; or
    - is relevant to the duties of a licensed administrator that are specified in rule;
g. uses drugs or alcohol in a way that jeopardizes the administrator's or applicant's ability to function as an administrator;
h. performs duties as a licensed administrator in a negligent manner; or
i. is ineligible to be a controlling person at a child care operation.

References:

Persons Who Are Ineligible to Be a Controlling Person, 5411.1
Due Process Hearings, 5700
Acting on a Central Registry Background Check Match, 10230
Acting on the Results of a Criminal History Check, 10310

HRC Section 43.010

26 TAC Sections 745.8929 and 745.9037

Limits on Serving as a Licensed Administrator During the Appeal Process (RCCR Only)

A person may not continue to serve as a licensed child care administrator or child-placing agency administrator during the appeal process if CCR has determined that the person is an immediate threat to the health or safety of a child. CCR must notify the person, and if applicable, the governing body of the operation that employs the person of the determination.

HRC Section 43.0106

9710 Handling Attempts to Interfere by a Licensed Administrator or Applicant for an Administrator's License

Revision 23-4; Effective Nov. 30, 2023

A licensed administrator or applicant for an administrator's license may not attempt to interfere with HHSC ability to conduct agency business.

Conduct that constitutes an attempt to interfere with HHSC ability to conducted agency business includes:

- interfering with, coercing, threatening, intimidating, retaliating against or harassing an HHSC staff member in connection with the person's exercise of HHSC regulatory duties; or
- engaging in conduct or directing language at HHSC staff that a reasonable person would find to be harassing, intimidating or threatening to HHSC staff.

26 TAC Sections 745.8411, 745.8929 and 745.8930

Procedure

If a licensed administrator or applicant for an administrator's license attempts to interfere with HHSC ability to conduct agency business, the CCR inspector and supervisor follow the procedures in 4159.1 Attempted Interference by a Licensed Administrator or Applicant for an Administrator's License. Once the Licensed Administrator Program Specialist receives notification, the specialist:

1. reviews the documentation and evidence to assess whether the action supports referral to Child Care Enforcement for remedial action;
2. consults with the Director of Field Operations to discuss their assessment of the evidence;
3. refers to Child Care Enforcement if a remedial action is necessary; and
4. documents in a Chronology under the *Licensed Administrator's* page in CLASS:
    a. the information received from the supervisor about the incident including the operation name, operation number and inspection number when the incident occurred;
    b. the evidence and documentation reviewed, the specialist's assessment of the information and consultation with the Director of Field Operations; and
    c. if a referral was made to CCE for remedial action and the date of the referral.

The Licensed Administrator Program Specialist may consider a pattern of interference or attempted interference demonstrated by the licensed administrator or applicant when determining whether a referral to CCE is appropriate. The pattern of behavior must be supported by documentation.

See:

4159.1 Interference by a Licensed Administrator

Job Aid "Addressing Attempted Interference by a Licensed Administrator or Applicant for an Administrator's License (RCCR Only)" available on CCR SharePoint site.

9720 Types of Actions on an Administrator's License

Revision 23-4; Effective Nov. 30, 2023

The six types of remedial action defined in 26 TAC Section 745.9031 of the Texas Administrative Code, are as follows:

Reprimand – HHSC staff send a letter of reprimand. The letter must include the contents listed in 26 TAC Section 745.9033 of the Texas Administrative Code. Further disciplinary actions may result from future violations.

Probation – HHSC imposes probation for a specific period of time. HHSC may impose conditions on a term of probation. HHSC may require the licensed administrator to report to HHSC regularly about the conditions of his or her probation. HHSC may place a licensed administrator on probation only once during a two-year renewal period. HHSC may suspend or revoke the license if the conditions of the probation are not met.

Refusal to Renew License – HHSC does not renew an administrator's license if the applicant is not in compliance with the laws or rules governing the license, even if the applicant otherwise qualifies for renewal.

Suspension – HHSC suspends an administrator's license for a specified period of time. HHSC may require corrective action during the suspension period. HHSC may revoke the license if the person does not complete the corrective actions required as part of the suspension.

Revocation – HHSC revokes an administrator's license. The person may not apply for another administrator's license for five years.

License Denial – HHSC denies an administrator's license.

9730 Choosing a Remedial Action for an Administrator's License

Revision 23-4; Effective Nov. 30, 2023

Procedure

In general, CCR staff consider the following factors when deciding which remedial action is most appropriate:

Letters of reprimand are most often used for minor rule violations, particularly if the violation is unintentional. Failure to obtain enough acceptable training hours is the most common reason for a letter of reprimand.

Letters of reprimand are written and sent manually, not automatically generated by CLASS.

Revocation most often occurs as the result of:

If HHSC staff revoke an administrator's license based on another HHSC action, HHSC will take both actions simultaneously. If the administrator and the operation each request an administrative review, then HHSC may combine them into one review. The review may also include HHSC's designation of the administrator as a controlling person, if applicable. If both actions are upheld at the administrative review level, then the HHSC attorney who defends the actions before SOAH will combine them.

DFPS does the administrative review for a finding of abuse, neglect or exploitation. However, if DFPS upholds the finding at the administrative review, and the administrator requests a due process hearing for the finding, an HHSC attorney will defend both the finding made by DFPS and HHSC's revocation of the administrator's license before SOAH and may do so in one hearing. If HHSC is also revoking the license of the operation that the administrator was responsible for, then the hearing may include that revocation along with the finding, the revocation of the administrator's license, and the designation of the administrator as a controlling person, if applicable. The licensed administrator database does not distinguish between a person with a pending remedial action and a person with a finalized remedial action. If an intent to revoke is overturned, HHSC staff must submit a data fix to remove the revocation code from the database.

26 Texas Administrative Code Section 745.9037

9800, Storing and Purging Closed Records for an Administrator's License

February 2020

Procedure

Licensing staff store the closed paper files for administrator licenses separately from the active paper files.

Note on the file tab the date and reason the file was closed. *Do not use pencil* to record the reason a file was closed or to record any other information in or on the paper file.

If a case is closed as a result of remedial action, the paper file is not closed until all due process has been waived or has resulted in the decision being upheld.

Colored dots may be used to easily identify when paper files must be purged. For example, a blue dot may be used to represent one year, a green dot may be used to represent another year, and so on.

Paper files are purged after they have been closed for at least 24 months. Both the paper and electronic versions are then purged.

If the Licensed Administrator program determines that a paper file must not be purged as scheduled, Licensing staff complete a Request to Delay Record Purge and send it to the director of Residential Child Care Licensing for approval:

Licensed Child Care Administrator Request to Delay File Purge

File Name: _____ (administrator's name) Date: _____ (date of request)

Request Purge Delay Until: **indefinite** (or other identified time frame)

Reason for Request: _____ (administrator's name) has a *Reason to Believe* finding for neglect which was upheld by SOAH and for which a risk evaluation was denied. While serving as the administrator of the _____ (center name), _____ (administrator's name) took it upon himself to investigate an allegation that a staff member sexually assaulted a resident. _____ (administrator's name) considered the allegation unfounded, transferred _____ (staff member's name) to another unit, and never reported the allegation to DFPS or to law enforcement.

Considering that, according to §745.699 of the Texas Administrative Code, all risk evaluation results are final, I request that we maintain _____'s (administrator's name) record indefinitely so that this information can be retrieved if he ever applies to HHSC for another license.

Staff signature: _____ Date:_____

Director approval: _____ Date:_____

9900, Reports and Directories for the Licensed Administrator Program

9910 Reports to Management Reporting and Statistics

November 2008

Procedure

Staff submit statistical reports to Management Reporting and Statistics (MRS) each month.

The reports consist of one Excel spreadsheet for licensed child care administrators and one for licensed child-placing agency administrators.

Information for the monthly reports is obtained from the reports generated by the licensed administrator database.

The reports are sent by email to the *Reports* email box.

9920 THECB Annual Report of Exam Results

November 2008

Each year the Texas Higher Education Coordinating Board (THECB) requests data from Licensing regarding exam results for the previous year.

Staff submit the requested data to THECB by the deadline indicated in the THECB request.

Procedure

Licensing provides a report to THECB that indicates the following for each person who has taken an exam during the reporting period:

Only applicants who have taken an exam during the reporting period are included in the report.

9930 Licensed Administrator Directories

September 28, 2018

HHSC offers two directories, one for Licensed Child Care Administrators and one for Licensed Child-Placing Agency Administrators.

Procedure

The directories are not connected to the licensed administrator database, so they are updated manually.

At least quarterly, Licensing staff run a query in the licensed administrator database to generate a current list for each directory.

The query omits persons with pending remedial actions, so staff manually add those persons to the directory before sending the new list on to the webmaster for publication.

a. the applicant's background check results do not contain criminal history or central registry findings that preclude the person from being present in the operation;
b. the applicant has the academic and experience requirements for an administrator's license;
c. the applicant passes the licensing administrator's examination;
d. the applicant pays the application and background check fees; and
e. the applicant meets any other child care administrator's license requirements.
    - The licensed administrator obtained 15 hours of training *each year* of the two-year renewal cycle.
    - The training was designed for professional-level staff. Training designed for direct care staff is not acceptable.
    - The training was directly related to residential child care or business management.
    - The subject of the training was *not* an organization's policies and procedures.
    - The licensed administrator participated in the training. Training credit is not given for presenting training to others.
    - Licensing staff contact the administrator and ask him or her to submit additional training documentation.
    - The licensed administrator database generates a letter to the administrator notifying him or her that the renewal is pending, due to insufficient training hours.
    - If the administrator cannot submit documentation verifying that training requirements were met, Licensing staff ask the administrator to confirm in writing that he or she has no other training documentation to submit for the time period.
    - Remedial action is taken. See 9600 Remedial Action on an Administrator's License.
    - Accept a renewal request postmarked on or before the license's expiration date.
    - Assess late fees only when the administrator initiates the renewal process after his or her license expires (assess higher late fees when the request is initiated 90 days or more past the expiration date). Do not assess late fees if the administrator initiates a timely renewal and the renewal remains pending after his or her license expires.
    - Assess late fees, even if an administrator did not receive a notice from Licensing about a license's expiration or impending expiration. Licensed administrators are accountable for renewing on time.
    - Run a background check on each licensed administrator requesting renewal on active status, regardless of whether the administrator is affiliated with a licensed residential child care operation.

- Do not charge a fee for the additional background check for a licensed administrator who has had a background check under a licensed residential child care operation within the last 48 months.
- If an administrator has a background check match that violates minimum standards rules and is *not* subject to a risk evaluation, the Centralized Background Check Unit (CBCU) notifies the administrator about the match by letter and notifies the Licensed Administrator program about the match by email.
  A remedial action of either revocation or refusal to renew is initiated. See 9600 Remedial Action on an Administrator's License.
- If an administrator has a background check match that violates minimum standards rules and is subject to a risk evaluation, the type of follow-up depends on whether the administrator is affiliated with a licensed residential child care operation.
  The CBCU notifies the administrator about the match by letter and notifies the Licensed Administrator program about the match by email.
  - If the administrator is not affiliated with a licensed residential child care operation, the administrator's license is renewed, if the administrator would otherwise be eligible for renewal. No risk evaluation is conducted, unless or until the administrator becomes affiliated with an operation licensed by HHSC's Residential Child Care Licensing Division (RCCL).
  - If the administrator is affiliated with an operation licensed by RCCL, the operation must submit the request for a risk evaluation to the CBCU. The CBCU notifies the Licensed Administrator program about the results of the risk evaluation. Licensing staff do not renew a license while the risk evaluation is pending. Staff delay renewal until the risk evaluation is complete and approved.
- is at least 55 years old or has a permanent physical or medical disability;
- has a valid administrator's license and has no remedial action or pending remedial action against the license; and
- is no longer engaged in professional residential child care.

f. violates a term under Human Resources Code (HRC) Chapter 43 or a Licensing rule;
g. circumvents or attempts to circumvent the requirements of HRC Chapter 43 or a Licensing rule;
h. engages in fraud or deceit related to a requirement in HRC Chapter 43 or a Licensing rule;
i. provides false or misleading information to Licensing during the application or renewal process for an administrator's license;
j. makes a statement about a material fact during the application or renewal process that the applicant or licensed administrator knows or should know is false;
   - prohibits the administrator or applicant for an administrator's license from working at a facility; or
   - is relevant to the duties of a licensed administrator that are specified in rule;

k. uses drugs or alcohol in a manner that jeopardizes the administrator's or applicant's ability to function as an administrator;
l. performs duties as a licensed administrator in a negligent manner; or
m. is ineligible to be a controlling person at a child care operation.
n. The nature of the violation
o. The severity of the violation
p. The administrator's history with Licensing
q. The administrator's history with the Licensed Administrator program
   - DFPS finding against the licensed administrator for the abuse, neglect, or exploitation of a child; or
   - the revocation of a license for an operation for which the licensed administrator is responsible.
   - College or university attended
   - Degree earned
   - Date of each exam taken
   - Score earned on each exam

10000, Background Checks

10100, Why CCR Conducts Background Checks

Revision 24-1; Effective Feb. 20, 2024

Texas Health and Human Services Commission (HHSC) Child Care Regulation (CCR) department conducts background checks. These checks determine if a background check subject's presence at the child care operation complies with federal law, state law, administrative rules and minimum standards to protect the health or safety of children.

CBCU staff communicate background check results to:

- the operation that submitted the background check; and
- the background check subject. If the subject is a minor, communicate the results with the subject's parent or guardian.

References:

10112 Types of Background Checks
10120 Background Check Requests
10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

26 TAC Chapter 745, Subchapter F

HRC Sections 42.056, 42.159 and 42.206

42 U.S.C. Section 671(a)(20)

42 U.S.C. Section 9857 et seq. and 45 C.F.R. Part 98

10110 Overview of Background Checks

February 2021

10111 Overview of CCR Staff Responsibilities Related to Background Checks

Revision 24-1, Effective Feb. 20, 2024

Responsibilities for background checks are shared with CCR's Centralized Background Check Unit (CBCU) staff and monitoring staff. The following chart outlines the roles and responsibilities.

CBCU Staff

a. Communicating and helping providers and background check subjects with background check submissions, results and notifications.
b. Notifying the indicated monitoring staff when:
    1. CBCU staff identify any background check issues that involve serious risk to children (the inspector);
    2. CBCU staff determine a provider is not meeting background check requirements (the inspector);
    3. a risk evaluation decision (the inspector and supervisor) is made per 10430 Making a Risk Evaluation Decision.
c. Responding to any reported issues related to the Department of Public Safety's (DPS's) contracted fingerprinting service.
d. Processing background check results.
e. Reviewing and processing requests for risk evaluations.
f. Reviewing eligibility determinations and risk evaluation decisions.
g. Processing a Determination of Immediate Threat (DIT) per 10232 Requests for Determination of Immediate Threat.
h. Consulting with the Child Care Licensing Legal Enforcement Department about background check results to determine if the subject's presence at an operation poses an immediate threat to the health or safety of children.
i. For due process offered by CBCU, offer, track, and update CLASS and IMPACT throughout CBCU's due process procedures. For each Central Registry match with due process offered by DFPS, track and update each match in CLASS throughout DFPS's procedures.
j. Requesting preponderance reviews and tracking for completion.
k. Helping monitoring staff, as needed, with questions that arise when staff is reviewing background check results.
l. Creating and maintaining digital records supporting CBCU decisions in CLASS Document Library from the applicable CLASS page.
Exception: CBCU staff do not upload records reviewed from IMPACT.

Monitoring Staff

a. Answering questions and providing technical assistance for background check rules.
b. Evaluating compliance with background check rules, including:
    1. verifying the correct background check types are submitted;
    2. verifying that background checks are completed within the required time frames for anyone required to have a background check;
    3. ensuring that background check subjects who are ineligible to be present at the operation are not present at the operation while children are in care;
    4. following up with the operation on any background check for a background check subject who is ineligible to be present at the operation with a *Pending* or *Active* Employment Status in CLASS.
    5. evaluating that the operation is adhering to any conditions placed on a subject's presence at the operation during an inspection; and
    6. verifying that an operation is validating its people list and updating employment statuses.
c. Notifying CBCU staff when:
    1. regulatory decisions or enforcement actions are made that may affect pending background checks at an operation; or
    2. an operation has been cited for not following conditions placed on a subject's presence.
d. Helping CBCU staff, as needed with questions that arise when CBCU is processing background checks.

References:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
Definitions of Terms for a definition of *CCI*.

10112 Types of Background Checks

August 2021

All required background checks include a Central Registry check (See: 10121 Persons for Whom Operations Must Submit Requests for Background Checks).

The types of criminal history and out-of-state background checks that CCR requires depends on:

a. the type of operation submitting the request for a background check;
b. the subject's role at the operation; and
c. whether the subject has lived out of state in the five years prior to the background check request.

Below are the types of background checks HHSC conducts for individuals at child care operations:

Type of Background Check	Description
Central Registry Check	A name-based search of the Central Registry of reported cases of child abuse and neglect in Texas that CBCU staff used to identify background check subjects who: • Have been found by DFPS or HHSC to have abused, neglected or exploited children under age 18 in Texas; • Are involved in an open DFPS CPI, CCI or PI investigation; and • Are involved in an open AR case. See: 10200 Central Registry and Out-of-State Abuse and Neglect Background Checks and Definitions of Terms for definitions of *CCI* and *CPI*.
Name-based Texas criminal history and Texas Sex Offender Registry checks	A name-based search of the Texas Department of Public Safety (DPS) database of: • arrests for alleged crimes committed in Texas; and • the Texas sex offender registry. See: 10300 Criminal History Background Checks
Fingerprint-based criminal history and sex offender registry checks	Fingerprint-based searches of: • the DPS database of arrests for crimes committed in Texas; • the Federal Bureau of Investigation (FBI) database of arrests for crimes committed within the United States and U.S. territories; • the DPS database of the Texas sex offender registry; and • FBI database of the national sex offender registry. See: 10300 Criminal History Background Checks and 10380 Sex Offender Registry Check Results
National Sex Offender Registry check	A comparative search between the subject's name and the National Sex Offender Registry. This name-based check is separate from the check of the National Sex Offender Registry that is included in the fingerprint-based criminal history check. See: 10381.2 Processing Possible Matches for National Sex Offender (NSOR) results and 10381.3 Processing Matches from an NSOR Result
Out-of-state child abuse and neglect registry check	A name-based search of another state's or territory's database of persons who have been found to have abused or neglected a child. See: 10290 Out-of-State Abuse and Neglect Background Checks
Out-of-state criminal history check	A search of another state's or U.S. territory's database of arrests for crimes committed in that state or territory using the person's name or fingerprints.

Type of Background Check	Description
	See: 10370 Out-of-State Criminal History Checks
Out-of-state sex offender registry check	A name-based search of another state's or U.S. territory's sex offender registry. See: 10380 Sex Offender Registry Check Results

26 TAC §§745.601; 745.607; 745.609; 745.611; 745.615

10112.1 Licensed Administrators

April 2022

Background check types required for licensed administrators and applicants for an administrator's license include:

- Central Registry;
- Fingerprint-based criminal history; and
- The following out-of-state checks if the licensed administrator or applicant lived out of Texas in the previous five years:
  - criminal history;
  - abuse and neglect; and
  - sex offender registries.

CBCU staff process background checks within three days of receiving results.

26 TAC §§745.775; 745.8933; 745.8934; 745.8993

See:

9640 Background Checks for an Administrator's License
9700 Remedial Action on an Administrator's License
10113 When Out-of-State Background Checks are Required
10113.1 When an Out-Of-State Criminal History Check Must Be Fingerprint Based
10226 Central Registry and Out of State Abuse or Neglect Results for Licensed Administrators
10360 Criminal History Matches for Licensed Administrators

10113 When Out-of-State Background Checks are Required

February 2021

The chart below outlines when the background check subject is required to have an out-of-state background check:

Operation Type is a …	And the subject …	Is an out-of-state criminal history check required?	Is an out-of-state child abuse and neglect registry check required?	Is an out-of-state sex offender registry check required?
• Child care center; • School-age or before- or after-school program; • Licensed child care home; • Registered child care home; or • Listed family home (except for a listed home that only provides care to related children);	• has resided in another U.S. state or territory during the past five years; • is suspected of having criminal history or child abuse neglect history in another U.S state or territory; or • is suspected to be a registered sex offender in another U.S. state or territory;	Yes, for each state or U.S. territory where the person lived during the past five years, unless the state where the person resided during the preceding five-year period participates in the FBI's National Fingerprint File (NFF) program.	Yes, for each state or U.S. territory where the person lived during the past five years.	Yes, for each state or U.S. territory where the person lived during the past five years.

Operation Type is a …	And the subject …	Is an out-of-state criminal history check required?	Is an out-of-state child abuse and neglect registry check required?	Is an out-of-state sex offender registry check required?
• General residential operation; • Child-placing agency; • Verified foster home; or • Approved adoptive home;	• has resided in another U.S. state or territory during the past five years; • is suspected of having criminal history or child abuse neglect history in another U.S. state or territory; or • is suspected to be a registered sex offender in another U.S. state or territory;	No	Yes, for each state or U.S. territory where the person lived during the past five years.	Yes, for each state or U.S. territory where the person lived during the past five years.

26 TAC §§745.613; 745.615

10113.1 When an Out-of-State Criminal History Check Must be Fingerprint Based

February 2021

The out-of-state criminal history check for a background check subject, who resides in another U.S. state or territory and is associated with a regulated operation in Texas, must be a fingerprint-based check in the subject's state of residence, unless the state or territory of residence participates in the FBI's National Fingerprint File (NFF) program.

26 TAC §745.613

10114 When a National Sex Offender (NSOR) Background Check is Required

August 2021

National Sex Offender Registry (NSOR) background checks are required for child care operations as follows:

Child Care Operation Type	Background Check Role	NSOR Requirement
• Licensed child care center • School-age or before- or after-school program	All roles except supervised regular or frequent visitors and volunteers	Required
• Child care center • School-age or before- or after-school program	Supervised regular or frequent visitors and volunteers	Not Required
• Licensed child care home • Registered child care home • Listed family home caring for unrelated children	All roles except supervised regular or frequent visitors and volunteers	Required
• Licensed child care home • Registered child care home • Listed family home caring for unrelated children	Supervised regular or frequent visitors and volunteers	Not Required

Child Care Operation Type	Background Check Role	NSOR Requirement
Listed family home caring for only related children	All roles	Not Required
Temporary Shelter Program	All roles	Not Required
Small employer-based child care	All roles	Not Required
Residential child care operations	All roles	Not Required

26 TAC §§745.607; 745.609

10120 Background Check Requests

Revision 22-6; Effective Dec. 19, 2022

Child care providers are required to submit requests for initial and renewal background checks for a person required to have a background check, as specified in 26 Texas Administrative Code Chapter 745, Subchapter F. All operation types, except listed family homes, are required to submit background check requests through the operation's online Child Care Regulation account.

Listed family homes may submit background check requests for all persons that require a background check either:

- through the operation's online Child Care Regulation account; or
- by sending in a signed Form 2971 Child Care Regulation Request for Background Check.

Exception: All operation types send a signed Form 2971 Child Care Regulation Request for Background Check to CBCU if the person requiring the background check does not have any of the following types of identification:

- Social Security number;
- driver's license number;
- state-issued identification number;
- Canadian social insurance number;
- military identification card number;
- passport number; or
- permanent resident card identification number .

26 TAC Sections 745.605, 745.617, 745.619, 745.621

See:

10121 Persons for Whom Operations Must Submit Requests for Background Checks

10121 Persons for Whom Operations Must Submit Requests for Background Checks

Revision 22-6; Effective Dec. 19, 2022

Owners

Each operation must request a background check for each owner of the operation, including:

1. a sole proprietor;
2. each partner in a partnership; or
3. each board member or officer of a governing body who is involved in the everyday management of the operation, including participating in the development of policies or submitting background check requests for the operation.

Current and Prospective Employees

Each operation must request a background check for each current and prospective employee, including all directors and administrators.

Current and Prospective Foster Parents

Each child-placing agency must request a background check for each current or prospective foster parent.

Prospective Adoptive Parents

Each child-placing agency must request a background check for each prospective adoptive parent seeking to adopt through the child-placing agency. The CPA may request additional background checks on adoptive parents to comply with federal and state laws and rules.

Frequent and Regular Visitors 14 Years or Older

Each operation must request a background check for each person (other than a client in care) who is 14 years or older, including a contract employee, self-employed person or volunteer who will regularly or frequently be present at an operation or prospective adoptive home while children are in care.

A frequent or regular visitor includes a special skills instructor who visits an operation to provide skills instruction to children at a child care operation. The operation does not have to request a background check for a skills instructor if the special skills organization has already submitted a request for a background check directly to CCR as described in 10123 Background Check Requests for Substitute Employees and Special Skills Instructors.

Exception: Child-placing agencies do not request a background check for the following frequent or regular visitors in agency foster homes:

1. A child unrelated to a foster parent who visits the foster home, unless:
    a. the child is responsible for the care of foster children; or
    b. there is reason to believe that the child has a criminal history or has previously abused or neglected a child.
2. An adult unrelated to a foster parent who visits the foster home, unless:
    a. the adult has unsupervised access to children in care; or
    b. there is reason to believe that the adult has a criminal history or has previously abused or neglected a child.

Other Persons 14 Years or Older

Each operation must request a background check for each person (other than a client in care) who is 14 years or older, including a contract employee, self-employed person or volunteer who:

1. is counted in child-to-caregiver ratio in accordance with the relevant minimum standards, except as noted below for a parent or volunteer described in 10123 Background Check Requests for Substitute Employees and Special Skills Instructors;
2. has unsupervised access to children who are in care at the operation;
3. provides direct care or supervision to children in care;
4. resides in the operation; or
5. will reside in a prospective adoptive home.

Texas Human Resources Code Sections 42.056, 42.159, 42.206

26 TAC Sections 745.601, 745.605, 745.775, 745.8933, 745.8934, 745.8993, 749.3623(5), 749.3633, 749.3637

10122 Persons for Whom Operations Do Not Submit Requests for Background Checks

February 2021

Clients in Care

Operations do not request a background check for “clients in care” as defined in 26 TAC §§745.601(3); 745.605(b)(1).

Parent/Volunteer

Operations do not request a background check for a parent or volunteer who only supplements the child-caregiver ratio for a field trip or water activity.

Day care operations do not request a background check for parents who are present at the operation solely because they are visiting their child, which may include dropping off or picking up their child, eating lunch with their child, visiting or observing their child, or consoling their child.

26 TAC §§744.1701; 744.1913; 746.1801(b); 746.2115; 747.1901(b); 747.2015; 748.3763; 749.3139; 745.601(15)(C); 745.605(b)(2)

Professionals and Subcontractors

Operations do not request a background check for a professional who is licensed or is required to have a background check to meet compliance with another governmental entity’s requirements or a subcontractor (person who works for an entity contracted with the

operation) if:

1. the operation does not employ or have a contract with the professional;
2. the professional is present at the operation in an official capacity only; and
3. for day care operations, the operation receives written parental consent before the operation allows the professional to have unsupervised access to a child in care.

26 TAC §745.605(b)(3)

See Definitions of Terms for the definition of *Professional*.

Controlling Persons

Operations do not request a background check for controlling persons unless the controlling person also fulfills a role outlined in 10121 Persons for Whom Operations Must Submit Requests for Background Checks.

26 TAC §745.605(b)(4)

Persons Affiliated with Inactive Foster Homes

Child-placing agencies do not request a background check for individuals in foster homes that are on inactive status.

If a child-placing agency takes a home off inactive status and the renewal background check for any individual is overdue the child-placing agency must request a background check before a child can be placed in the home.

26 TAC §§749.2823; 749.2825

HHSC or DFPS Employee or Volunteer

Operations do not request a background check for someone with responsibilities as an HHSC or DFPS employee or volunteer. The person will have a background check conducted by HHSC or DFPS as part of the person's application to become an employee or volunteer.

26 TAC §745.617(b)

10123 Background Check Requests for Substitute Employees and Special Skills Instructors

Revision 24-2; Effective May 22, 2024

Skills programs and substitute caregiver organizations that offer services at regulated child care operations may request a CCR online account to submit and get background check results. Any person in an organization who will have access to children in care is required to have a background check under 26 TAC Chapter 745, Subchapter F, Background Checks.

An organization that provides a substitute caregiver or special skills instructor to a CCR-regulated operation also provides the background check determination notification to the operation. The background check notification must:

- state that the subject can be present at the operation with or without conditions; and
- be dated within the past five years per 10533.2 Background Checks Submitted Prior to January 13, 2019.

If a CCR-regulated operation does not receive the background check result from the skills program or substitute caregiver organization, the operation must:

- request a background check for the subject; and
- not allow the subject to be present at the operation until the operation receives notification that the background check determination is eligible, provisional, or conditional.

References

Background Check Only Entities, 2362

26 TAC Section 745.605(a)(2)(B)

10123.1 Background Check Only Entities in CLASS

Revision 24-2; Effective May 22, 2024

Procedure

Centralized Background Check Unit (CBCU) staff take the following steps in CLASS after receiving the Background Check Only Entity request:

- enter the program information on the *Operation Main* page;
- enter *Return* for the *Action*;
- indicate in the *Action Reason* box that more information about the request is in a Chronology entry;
- notify the program of CCR's decision in writing within 21 days of receiving all the information necessary to make a decision; and
- provide the program with the following information so the program can create an online provider account to submit background checks directly:
  - operation number created in CLASS;
  - contact email address the program provided; and
  - the full ZIP code of the mailing address.

Background Check Only Entities remain open in CLASS so the program can submit background checks through their CCR provider portal.

Reference

Background Check Only Entities, 2362

10124 Receiving Form 2971 Child Care Regulation Request for Background Check

Revision 23-3; Effective Sept. 22, 2023

Procedure

The chart below outlines the actions staff take when CCR receives Form 2971 Child Care Regulation Request for Background Check:

Operation Type	Staff Action When Form 2971 is Received
• Licensed operation • Temporary shelter program • Small employer-based child care program • Registered child care home	CBCU staff or monitoring staff contact the operation and provide instruction to submit the background check request through the operation's online Child Care Regulation account. **Exception**: CBCU staff initiates the background check in CLASS after receiving Form 2971 when the subject does not have any of the following types of identification: • Social Security number; • driver's license number; • state-issued identification number; • Canadian social insurance number; • military identification card number; • passport number; or • permanent resident card identification number. After initiating the background check request, upload Form 2971 to CLASS document Library from the applicable CLASS page.
• Listed family home	First, monitoring staff scan and email Form 2971 to contactcbcu@hhs.texas.gov within three calendar days of receiving the form. Next, CBCU staff: • verify Form 2971 is complete and signed according to 10125 Reviewing Form 2971 Child Care Regulation Request for Background Check; • initiate the background check request in CLASS; and • after initiating the background check request, upload Form 2971 to CLASS document Library from the applicable CLASS page.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files

1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

10125 Reviewing Form 2971 Child Care Regulation Request for Background Check

Revision 22-6; Effective Dec. 19, 2022

Procedure

If an operation submits Form 2971 Child Care Regulation Request for Background Check, CBCU staff review it to ensure all of the following before initiating the background check:

1. Form 2971 was submitted:
   - by a listed family home; or
   - the person's available identification meets the exception in 10124 Receiving Form 2971 Child Care Regulation Request for Background Check.
2. The operator of the child care operation signed the form indicating that he or she has verified that the information submitted is correct.

3. The operator of the child care operation provides the following identifying information for the background check subject:

   a. name (last, first, middle), including any maiden or married names or aliases;
   b. Social Security number (SSN) if one exists;
   c. driver's license (DL) or a state-issued identification (SID) card number if the person has one;
   d. date of birth;
   e. sex;
   f. ethnicity and race;
   g. current and previous addresses in Texas;
   h. the city and state of each residence where the subject has lived outside the state of Texas any time during the five-year period prior to the date of the request for a background check;
   i. pone number of the subject, if available;
   j. email address for the person, if available; and
   k. role at the operation, including:
      - title and job duties;
      - whether the subject will be supervised by a caregiver counted in the child/caregiver ratio; and
      - the ages of the children the subject will be caring for.

26 TAC Section 745.619

10130 Updates to Background Check Results

April 2022

When CBCU staff receive new or updated information for a subject's background check, CBCU staff refer to the following to determine the subject's eligibility:

New History Is ...	Staff Follow Process in ...
Central Registry History	10210 Reviewing Results from a Central Registry Search 10220 Determining if Additional Action is Needed for Central Registry Matches
Criminal History	10320 Acting on Results of a Criminal History Check

In addition, CBCU staff refer to 10130.3 Overriding Eligibility Determinations of Provisional for Certain Roles if the subject's eligibility determination is provisional and the subject's role is:

- Director of an operation with a permit;
- Owner or permit holder of an operation with a permit;
- Adoptive Parent in a home a CPA has approved for adoption;
- Foster Parent in a home a CPA has verified to provide foster care; or
- Foster or Adoptive Parent in a home a CPA has verified to provide foster care and approved for adoption.

10130.1 Updates Received from Central Registry Recheck

May 2021

CLASS automatically rechecks a subject's Central Registry background check one year after the most current background check submission. All possible results for the subject are received in CLASS as possible matches. The possible matches include both previously identified and new matches. CBCU staff review all possible results and complete eligibility determinations based on all results (See 10211 Processing Central Registry Recheck Results).

10130.2 Updates Received from Criminal History Rap Back

May 2021

CBCU staff receive updates to fingerprint-based criminal history results through the rap back process (See 10331 Acting on New and Updated Criminal History Results for additional information).

10130.3 Overriding Eligibility Determinations of Provisional for Certain Roles

Revision 23-3; Effective Sept. 22, 2023

The limitations imposed by the standard conditions for a provisional eligibility determination do not allow persons in the following roles to perform duties required by CCR statute, administrative rules and minimum standards:

- director of an operation with a permit;
- owner/permit holder of an operation with a permit;
- adoptive parent in a home a CPA has approved for adoption;
- foster parent in a home a CPA has verified to provide foster care; or
- foster/adoptive parent in a home a CPA has verified to provide foster care and approved for adoption.

When CBCU receives new or updated results for a person who is in one of these roles and whose background check eligibility determination is provisional, CBCU overrides the eligibility determination with one of the following eligibility determinations, as outlined below:

- if risk to children can be mitigated without CCR imposing conditions on the subject's presence at the operation, change the eligibility determination to eligible;
- if risk to children can only be mitigated by CCR imposing conditions on the subject's presence, change the eligibility determination to conditional and impose conditions that are designed to protect the health and safety of children and allow the subject to perform their required duties; or
- if risk to children cannot be mitigated by CCR imposing conditions on the subject's presence, change the eligibility determination to ineligible.

This decision to override standard provisional conditions is temporary, and CBCU may re-evaluate the decision at any time. The final decision on the subject's eligibility determination is pending the final outcome of the:

- alleged crime (i.e., charges never filed, dismissal, conviction or acquittal);
- open investigation of abuse or neglect; or
- due process for the Central Registry result.

Until a final outcome is determined, CBCU staff review provisional eligibility determination override decisions when any of the following occur:

- CBCU receives updates for criminal history through the subject's rap back subscription or the subject provides additional information (see 10611 Eligibility Determination Reviews);
- CBCU receives additional information for a Central Registry result;
- CBCU receives updates to due process actions for Central Registry results (see 10270 Due Process Hearing Results); or
- the operation submits a renewal background check.

See:

10510 Types of Eligibility Determinations

Procedure

When determining how to override the provisional eligibility determination of a person whose role is director, owner/permit holder, foster parent, adoptive parent or foster/adoptive parent, CBCU staff and a CBCU manager:

- review all background check history, including new and updated results;
- review the history of the subject's association with the operation;
- review the operation's compliance history to determine changes needed to the background check eligibility determination;

- consult the applicable Criminal History Requirements Chart, if the new or updated background check results are related to criminal history; and
- consult with the CCR monitoring inspector, supervisor and program administrator, if additional information or clarification is needed about the operation or subject.

CBCU staff upload any documentation received and used to support the background check decision to CLASS Document Library from the applicable CLASS page.

Documentation and Notifications

CBCU staff take the following steps:

1. summarize the consultations, information considered and decision as comments in the *Information Specific* to this Result section in CLASS;
2. process the change to the eligibility determination and any conditions as a risk evaluation decision according to 10430 Making a Risk Evaluation Decision;
3. send revised notifications with the updated eligibility determination to the background check subject and operation; and
4. email the CCR monitoring inspector advising of the override decision when the subject's role is owner/permit holder or director.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
10111 Overview of CCR Staff Responsibilities Related to Background Checks

10200, Central Registry and Out-of-State Abuse and Neglect Background Checks

Revision 24-4, Effective Nov. 13, 2024

Abuse or neglect history is reviewed by Centralized Background Check Unit (CBCU) staff to determine if the subject will be eligible or ineligible to be present at the operation or if any conditions are needed to protect the health and safety of children in care of an operation.

Reference

Types of Background Checks, 10112

26 TAC 745, Subchapter F, Background Checks

HRC Sections 42.0445, 42.056, 42.159 and 42.206

10210 Reviewing Results from a Central Registry Search

Revision 24-4, Effective Nov. 13, 2024

The CBCU must conduct a Central Registry background check for each background check subject to determine if, per 26 TAC section 745.671:

- the subject has an allegation or a designated or sustained finding of abuse or neglect that makes the subject ineligible to be present at an operation; or
- any conditions need to be placed on the subject's presence at the operation to protect the health or safety of children.

The Central Registry background check is conducted by an automated search of the DFPS IMPACT system, including allegations of abuse or neglect of a child in Texas.

Reference

Using Scanned Documents and Other Digital Files as a Regulatory Tool, 1427
Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files, 1430
Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files, 1431
Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library, 1432
Overview of CCR Staff Responsibilities Related to Background Checks, 10111

HRC Sections 42.0445, 42.056, 42.159 and 42.206

10211 Processing Central Registry Recheck Results

Revision 24-1, Effective Feb. 20, 2024

Procedure

When the subject has an active background check, CLASS processes a Central Registry recheck to update a subject's Central Registry background check history. CLASS creates a *Central Registry* row on the subject's *Background Check Results History* page for the recheck result. The recheck returns all possible matches for the subject.

When a recheck returns possible matches, CBCU staff:

- review each possible match result;
- determine if each possible match result is for the background check subject per 10210 Reviewing Results from a Central Registry Search; and
- review all results received and finalize the match determination as soon as possible but by three business days of receiving the Central Registry Match, unless more time is needed to complete the actions required to finalize the match determination.

Revision 24-4, Effective Nov. 13, 2024

Before assessing the Central Registry match for determination of immediate threat, CBCU staff decide if more action is needed based on:

- the destruction date;
- findings before April 16, 1999;
- prior due process offers; and
- the status of the investigation or alternative response case.

10220 Determining if Additional Action is Needed for Central Registry Matches

Revision 24-4, Effective Nov. 13, 2024

Before assessing the Central Registry match for determination of immediate threat, CBCU staff decide if more action is needed based on:

- the destruction date;
- findings before April 16, 1999;
- prior due process offers; and
- the status of the investigation or alternative response case.

10225 Ensuring Complete Abuse or Neglect History

Revision 25-1, Effective Feb. 7, 2025

When processing abuse or neglect history, CBCU staff review all active background checks for a subject to verify that each active background check includes all abuse or neglect history.

If CBCU staff determine an active background check does not include all results, staff add any missing or new results as new abuse or neglect history.

10230 Acting on a Central Registry Background Check Match

Revision 24-4, Effective Nov. 13, 2024

If the background check subject has a Central Registry match, CBCU staff evaluate if conditions are needed for the subject's presence at the operation.

CBCU staff assess the Central Registry Match by following procedures in 10231 Assessing the Abuse or Neglect Results for Determination of Immediate Threat.

If the match is for a sustained perpetrator role, CBCU staff refer to 10280 Handling Sustained Central Registry Background Check results.

Central Registry Recheck: Reconsideration of an Existing Risk Evaluation Decision

If the subject has a risk evaluation for any prior matches, CBCU staff process the Central Registry recheck results per 10441.2 Reconsideration of Risk Evaluation Due to New or Updated Central Registry Results.

Reference

Assessing the Abuse or Neglect Results for Determination of Immediate Threat, 10231
Handling Sustained Central Registry Background Check Results, 10280
Types of Eligibility Determinations, 10510

26 TAC Sections 745.671 and 745.751

10231 Assessing the Abuse or Neglect Results for Determination of Immediate Threat

Revision 24-4, Effective Nov. 13, 2024

Under certain circumstances, CBCU staff may make an ineligible determination for a match of:

- an alleged perpetrator (AP) role before the subject becomes a designated perpetrator (DP);
- a DP role before the subject's due process is exhausted; or
- other abuse or neglect history.

CBCU staff complete the assessment within 10 business days of receiving the Central Registry match or criminal history from the DPS name-based or fingerprint-based results, whichever occurs later.

Reference

26 TAC Section 745.751

10240 Notifications and Due Process for Designated Perpetrators

Revision 24-1; Effective Feb. 20, 2024

A background check subject with a Central Registry background check match for a designated finding has the right to request a due process hearing to challenge the finding.

CBCU staff notify the background check subject of the results and offer due process for designated findings made by DFPS Child Protective Investigations (CPI) and HHSC Provider Investigations.

DFPS staff offer and process due process for DFPS Child Care Investigation (CCI) findings. CBCU staff track due process for all designated findings and document the status of due process per 10242 Documenting Due Process in CLASS.

10241 Notifying the Designated Perpetrator of the Central Registry Background Check Results and Offering Due Process

Revision 24-3; Effective Aug. 15, 2024

CBCU staff offer due process to designated perpetrators (DPs) for a Central Registry background check match resulting from DFPS Child Protective Investigations (CPI) or HHSC Provider Investigations (PI). CBCU staff offer due process by sending the Central Registry Match Letter to Perpetrator to the DP. CBCU staff make sure the Central Registry Match Letter to Perp letter includes all applicable Central Registry history.

Note: If the DP is a minor, the Central Registry Match Letter to Perp must be sent to the parent or guardian. CBCU staff follow procedures in section 10250 Responses to Due Process Offers if response is not received for the minor's due process offer.

DFPS staff offer and complete due process for DPs with a finding resulting from DFPS Child Care Investigations (CCI).

CBCU staff are responsible for:

- tracking due process offered by CBCU; and
- documenting the status in CLASS.

Procedure

DP

CBCU staff review the DP's background check history to determine if the DP has:

- not been offered due process for each finding;
- been offered due process previously and requested a hearing; or
- been offered due process, but the time to request the hearing has not passed.

If the DP has not been previously offered due process for a finding resulting from an investigation conducted by DPFS CPI or HHSC PI, CBCU staff:

- offer due process with Central Registry Match Letter to Perp;
- summarize due process action taken in CLASS; and
- track and document due process status.

If the DP has been offered due process but has not requested it, CBCU staff determine if the DP meets the criteria to be a sustained perpetrator per section 10222 Reviewing Prior Due Process Offers. If the DP does not meet the criteria, CBCU staff take action per the following.

CBCU Cannot Sustain the Finding Because	Temporary Risk Evaluation Eligibility	CBCU Staff
Time frame for DP to request due process has not passed.	Not eligible	• track the hearing request status; and • summarize the tracking in CLASS.
Hearing was requested.	Eligible	• send Match Letter-Subject and offer temporary risk evaluation per section 10411 Temporary Risk Evaluation; • summarize the status and action taken in CLASS; and • wait for notification of hearing outcome or process temporary risk evaluation.
Hearing was requested.	Not Eligible	• summarize the status and action taken in CLASS; and • wait for notification of hearing outcome.
Receipt of previous offer not confirmed per CBCU Resource Guide, available on CCR SharePoint.	Not eligible	• follow steps in the CBCU Resource Guide; • document actions in CLASS; and • track and document the due process.

Sending the Due Process Notification

CBCU staff notify the background check subject of the right to request the due process hearing by email if available, and regular and certified mail with the Central Registry Match Letter to Perp. CBCU staff send the notification per the following.

Email Address Availability for Subject	When to Email the Notification	When to Mail the Notification Via Regular and Certified Mail
• **Email address is in CLASS; or** • **CBCU staff can get an email address**	Within three business days of receiving the instructions to send and track due process	On the next day the staff person is in the office.
CBCU staff cannot get an email address	Not applicable.	Within three business days of receiving the instructions to send and track due process.

CBCU staff refer to the CBCU Resource Guide on CCR SharePoint site for more details.

Reference

Types of Eligibility Determinations, 10510
Types of Background Check Notifications, 10531

26 TAC Sections 745.8837 and 745.8839

10242 Documenting Due Process in CLASS

Revision 24-1; Effective Feb. 20, 2024

When CBCU staff offer due process to a designated perpetrator (DP) per 10240 Notifications and Due Process for Designated Perpetrators, CBCU staff document and track the offer until the DP requests due process or the time frame to request is exhausted.

Procedure

When sending the notification and tracking the request for due process, CBCU staff document the following in the *Information Specific to this Result* section on the *Central Registry Background Check Results* page in CLASS:

- the method(s) of sending all due process notifications, including notifications that were resent;
- any communication relating to the due process offer;
- receipt of due process requests;
- waiving of due process rights, either by non-response or written waiver;
- receipt of any returned mail, including certified mail green cards; and
- updates to the hearing request.

CBCU staff refer to the *CBCU Resource Guide*, available on CCR SharePoint site, for additional details.

10250 Response to Due Process Offers

Revision 24-2; Effective May 22, 2024

Procedure

When CBCU staff send the due process notification per 10241 Notifying the Designated Perpetrator of the Central Registry Background Check Results and Offering Due Process, they are responsible for tracking the due process offer to verify if the background check subject:

a. waives the right to the hearing in writing;
b. does not respond to the notification in a timely manner; or
c. requests the hearing in a timely manner.

Designated Perpetrator (DP) Requests Due Process

When the subject, or the subject's parent or guardian if the subject is a minor, requests due process per 5700 Due Process Hearings CBCU staff:

- create digital files of the due process request as needed; and
- email the request to the docket clerk for the Child Care Licensing Legal Enforcement Department per 10253 Actions Taken When a Due Process Hearing is Requested.

DP Does Not Respond to the Due Process Offer

If the background check subject does not respond to the notification within 45 days from CBCU sending the notification, the subject becomes a sustained perpetrator (SP). After the 45 days has passed, CBCU staff sustain the finding within 10 business days. CBCU staff update IMPACT and CLASS with the SP role information.

Exception if the DP is a minor: When a DP is a minor, CBCU staff only change the DP role to an SP role when a hearing is held or waived in writing. If due process is not requested, the minor remains a DP. The CBCU will re-offer due process to the DP when the results are received in Central Registry recheck per 10211 Processing Central Registry Recheck Results or a new background check request is submitted and the DP is no longer a minor.

DP Waives the Right to Due Process

If the background check subject waives the right to a hearing in writing, CBCU staff update IMPACT and CLASS with the SP role information within 10 business days.

DP From a DFPS Child Care Investigation (CCI)

If the background check subject is a DP resulting from a DFPS Child Care Investigation (CCI), CBCU staff refer to 10241 Notifying the Designated Perpetrator of the Central Registry Background Check Results and Offering Due Process.

CBCU staff refer to the CBCU Resource Guide, on CCR SharePoint site, for more details.

References:

Sustained Findings in DFPS Child Protective Investigations and HHSC Provider Investigations, 10251
Actions Taken When a Due Process Hearing is Requested, 10253

10251 Sustained Findings in DFPS Child Protective Investigations and HHSC Provider Investigations

Revision 24-1; Effective Feb. 20, 2024

Procedure

Designated Perpetrator (DP) Does Not Respond to the Due Process Offer

After reviewing documentation about the tracking of due process and confirming the DP'S receipt of the notification, CBCU staff document sustaining the finding in CLASS and IMPACT as a comment in the *Information Specific to this Result* section in CLASS.

If the DP match is a result of a DFPS Child Protective Investigation (CPI) or HHSC Provider Investigation (PI), and the subject does not request a due process hearing within the time frame, CBCU staff sustain the finding in IMPACT and CLASS per the CBCU Resource Guide, available on CCR SharePoint site.

The Designated Finding is Upheld

If the DP requests due process and the finding is upheld, DFPS CPI or HHSC Provider Investigations (PI) staff are notified of the due process decision. DFPS CPI or HHSC PI staff are responsible for updating the finding in IMPACT. CBCU staff verify whether the finding is sustained in IMPACT. After verifying the finding is sustained in IMPACT, CBCU staff update the finding in the background check results as a sustained finding and process the background check determination within three business days according to 10280 Handling Sustained Central Registry Background Check Results.

CBCU staff upload any documentation related to the hearing decision, if applicable, to CLASS Document Library.

10252 Sustaining a DFPS Child Care Investigation Finding

Revision 24-1; Effective Feb. 20, 2024

Procedure

If the finding is the result of a DPFS Child Care Investigation (CCI) investigation, CBCU staff track due process by reviewing CLASS and IMPACT and updating the progress of any due process actions on the *Central Registry Background Check Results* page in CLASS as long as the background check remains open. When DFPS staff sustain a finding in IMPACT CBCU staff process the SP match per 10280 Handling Sustained Central Registry Background Check Results.

10253 Actions Taken When a Due Process Hearing is Requested

February 2021

10253.1 DFPS Child Protective Investigations or HHSC Provider Investigations

Revision 23-3; Effective Sept. 22, 2023

Procedure

After receiving a request for due process from the designated perpetrator (DP) (or the DP's parent if the DP is a minor), CBCU staff upload the digital copies of the following to CLASS Document Library from the applicable CLASS page:

a. the hearing request;
   - the letter requesting the hearing and the envelope in which the letter was received, if applicable; or
   - the email requesting the hearing;

b. any letters notifying the DP of the right to request a hearing;
c. any returned mail;
d. any certified mail green cards; and
e. any additional documentation the background check subject provides with their request.

CBCU staff complete the *Central Registry Background Check Results* page in CLASS as follows:

a. in the *Information Specific to this Result* section document the request and any other needed information; and
b. in the *Due Process* Section:
    - change the *Release Hearing Status* field from "Choose" to "Requested"; and
    - in the *Release Hearing Requested Date* field record:
        - the date stamp on the envelope; or
        - the date of the email or fax.

After uploading the documents, CBCU staff emails the electronic copy of the letter and the envelope in which it was received to the docket clerk for the Child Care Licensing Legal Enforcement Department. The docket clerk determines whether the request is timely and valid and notifies CBCU staff of this determination.

When the docket clerk notifies CBCU staff the request is timely and valid, CBCU staff determine if the DP is eligible for a temporary risk evaluation and apply conditions if needed, as described in 10411 Temporary Risk Evaluation and 10510.3 Eligibility Determinations Which Include Conditions.

When the docket clerk notifies CBCU staff the request is not timely or valid, CBCU staff change the designated finding to a sustained finding as described in 10251 Sustaining Findings in a DFPS Child Protective Investigations and HHSC Provider Investigations and 10280 Handling Sustained Central Registry Background Check Results.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

10254 Role of the Child Care Licensing Legal Enforcement Department in Due Process Hearings and Related Actions

February 2021

Procedure

The docket clerk for the Child Care Licensing Legal Enforcement Department determines whether a request for a due process hearing is timely.

The docket clerk prepares records for cases that are assigned to an Enforcement attorney for Child Care Licensing.

The attorney prepares and presents each case. Preparation for the hearing includes gathering and analyzing relevant evidence and identifying and preparing witnesses. Preparing may also include resolving discovery and the handling of any open records requests. Presentation at hearings includes making legal arguments and examining witnesses.

10260 Temporary Risk Evaluation for a Central Registry Match

Revision 24-4; Effective Nov. 13, 2024

CBCU staff offer a background check subject a temporary risk evaluation for a Central Registry match when:

- the Central Registry history is eligible for a risk evaluation per 26 TAC Section 745.671(a)(7); and
- the subject has requested a due process hearing.

CBCU staff decide if the subject is eligible to complete a temporary risk evaluation and process the temporary risk evaluation per 10411 Temporary Risk Evaluation and 10441 Risk Evaluation Reconsideration for New and Updated Background Check Results.

Exception for a Foster Home or Adoptive Home Pending Verification or Approval

Background check subjects who are foster or adoptive parents or household members at a foster home or adoptive home and verification is pending are eligible to complete a temporary risk evaluation only when:

- DFPS has placed a child in the home;
- DFPS plans to place a child in the home pending a background check decision; or
- a placement of an adoptive child is pending a background check decision.

Foster and adoptive parents and household members are not eligible to complete a temporary risk evaluation if they are pending verification or approval and do not meet the criteria above.

CBCU staff may consult with CPI staff or the HHSC Child Care Licensing Legal Enforcement Department to determine if a temporary risk evaluation is needed because of one of these exceptions.

Reference

Assessing the Risk of Abuse or Neglect Results for Determination of Immediate Threat, 10231

Handling Sustained Central Registry Background Check Results, 10280

26 TAC Sections 745.671 and 745.683

10270 Due Process Hearing Results

January 2022

Upon completion of the background check subject's due process and if the subject remains affiliated with an operation, CBCU staff process the background check results according to the due process decision documented in IMPACT and CLASS.

10271 Finding is Upheld in the Due Process Hearing

Revision 24-2; Effective May 22, 2024

Procedure

If the finding is upheld, staff in the HHSC Child Care Licensing Legal Enforcement Department take the following actions:

a. send a copy of the due process decision, order and instructions to the appropriate HHSC or DFPS division that conducted the investigation to update the abuse or neglect finding in the Central Registry and file the decision and order in the case record;
b. request that the role of the perpetrator be changed to a sustained perpetrator role in IMPACT;
c. provide CBCU staff with a copy of the order; and
d. notify CBCU staff of the due process decision and action to be taken based on the decision.

After receiving the notification, CBCU staff do the following on the *Central Registry Background Check Results* page in CLASS:

a. In the *Type of Abuse* section, update the *Perpetrator* field to Sustained Perpetrator.
b. In the *Information Specific to this Result* and *Overall Background Check* sections, document;
    - the due process decision;
    - the subject is sustained; and
    - any other relevant information.
c. In the Due Process section, update as needed:
    - the *Release Hearing Status* and associated date fields; and
    - the *Admin Review Status* and associated date fields.
d. Upload the SOAH status notification email to CLASS Document Library from the applicable CLASS page.
e. Save the page by selecting the *Save* button.

CBCU staff process the sustained Central Registry result per 10280 Handling Sustained Central Registry Background Check Results.

10272 Finding is Overturned After a Due Process Hearing

February 2021

When an administrative law judge overturns the abuse or neglect finding after a due process hearing, CBCU staff update the *Central Registry Background Check Results* page in CLASS and send notifications to the operation and the subject of the background check.

Procedure

When a finding is overturned in the due process hearing, the Child Care Licensing Legal Enforcement Department staff take the following actions:

a. send a copy of the due process decision, order and instructions to the appropriate HHSC or DFPS division that conducted the investigation to remove the abuse or neglect finding from the Central Registry and file the decision and order in the case record;
b. request that the role of the perpetrator be changed in IMPACT, as appropriate; and
c. notify CBCU staff of the due process decision, the order and actions to be taken in the matter.

After receiving the notification from the Child Care Licensing Legal Enforcement Department, CBCU staff do the following on the *Central Registry Background Check Results* page in CLASS:

1. In the *Results* section, Change the "Match" to "Cleared."
2. In the *Information Specific to This Result* and *Overall Background Check* sections, as needed, document;
    - the SOAH decision; and
    - any other relevant information.
3. In the *Due Process* section,
    - update the *Admin Review Status* and *Release Hearing Status*; and
    - the associated dates.
4. save the page by selecting the *Save* button.

After completing the above steps, CBCU staff send appropriate notifications to the subject and operation.

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10280 Handling Sustained Central Registry Background Check Results

Revision 24-2; Effective May 22, 2024

Procedure

A sustained perpetrator (SP) is a person in the Central Registry who can no longer challenge a finding of child abuse or neglect because:

a. the person waived all the person's due process rights by:
    - not requesting an administrative review and due process hearing on a timely basis; or
    - waiving those rights in writing; or
b. the finding was upheld after a due process hearing and any subsequent appeals.

After evaluating the destruction date and deciding the case does not meet the requirements for destruction per 10220 Determining if Additional Action is Needed for Central Registry Matches, CBCU staff determine if the subject is eligible for a risk evaluation. If the subject is eligible for a risk evaluation, CBCU staff apply conditions to the subject's presence if needed. CBCU staff process the risk evaluation per 10400 Risk Evaluations.

If the subject is eligible for a risk evaluation, CBCU staff do the following on the *Central Registry Background Check Results* page in CLASS:

1. In the *Type of Abuse* section:
    - verify and, correct the information for the finding if needed;
    - select MSV-Risk Evaluation Required in the *Finding Determination* field; and
    - select Yes in the *Can Be Present* field.
2. In the *Information Specific to this Result*, document:
    - the risk evaluation eligibility, presence and conditions;
    - the due date for any more information needed; and
    - any other relevant information.
3. Select the *Preview the Match Determination* button to verify the *Match Determination* and *Can Be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct.
4. Select the *Finalize Match Determination* button to complete the background check type eligibility.
5. Save the page by selecting the *Save* button.

CBCU staff send appropriate notifications to the subject and the operation after the above steps are complete.

CBCU staff do the following on the Central Registry Background Check Results page in CLASS if the subject is not eligible for a risk evaluation:

1. In the *Type of Abuse* section:
    - verify and correct the information for the finding if needed;
    - select MSV-Barred in the *Finding Determination* field; and
    - select No in the *Can Be Present* field.
2. Document the Information Specific to this Result in:
    - the ineligible determination; and
    - any other relevant information.

3. Select the *Preview the Match Determination* button to verify the *Match Determination* and *Can Be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct.
4. Select the *Finalize Match Determination* button to complete the background check type eligibility.
5. Save the page by selecting the *Save* button.

CBCU staff send appropriate notifications to the subject and operation after completing these steps.

References

Due Process Hearings, 5700
Types of Eligibility Determinations, 10510
Types of Background Check Notifications, 10531

26 TAC Sections 745.671 and 745.751

10290 Out-of-State Abuse and Neglect Background Checks

Revision 24-1, Effective Feb. 20, 2024

Out-of-state abuse or neglect background checks are to determine if the background check subject has any child abuse or neglect findings in another state or U.S. territory that would make the subject ineligible to be present at an operation or provisionally eligible pending a risk evaluation request and decision. The process for obtaining results varies by state or U.S. territory.

The background check subject's eligibility determination becomes provisional when all other background check types are eligible or provisional and out-of-state background check request types are pending.

The subject communicates with CBCU to complete out-of-state background check requests. CBCU staff document communication with the subject and other state agencies in the Information *Specific to this Result* section of the applicable *Out-of-State Abuse and Neglect Background Check Results* page in CLASS.

Out-of-state abuse or neglect check results are valid for five years from the *Date Submitted* field for the first background check that included the state on the subject's background checks. The results automatically copy into additional background checks until the results expire. If the out-of-state check is required after that time:

- the out-of-state background check is resubmitted;
- the background check subject re-requests the search; and
- CBCU staff follow 10291 Requesting Out-of-Sate Abuse and Neglect History Searches.

CBCU staff close a background check as noncompliant if the subject has not initiated out-of-state background checks on or before 45 days from the background check submission date (10510.41 Determination of Ineligible Due to Noncompliant Background Checks).

26 TAC Section 745.613

10291 Requesting Out-Of-State Abuse and Neglect History Searches

Revision 24-1, Effective Feb. 20, 2024

Procedure

If an out-of-state abuse or neglect background check is required, within 45 days from the submission date of the background check, the subject of the background check:

- provides the results of the search to CBCU staff; or
- requests CBCU staff initiate the search, if required by the state or U.S. territory as outlined in the Out-of-State Resource Guide for Child Care Employees and Foster and Adoptive Parents in Texas.

After the subject has requested the CBCU initiate the out-of-state search, CBCU staff:

- follow instructions to submit the request, as outlined in the CBCU Internal Out-of-State Resource Guide, available on the CCR SharePoint site; and
- work with the subject, operation, and the out-of-state agency, as needed, to get the results.

10292 Evaluating Results from Out-of-State Abuse and Neglect History Searches

Revision 24-1, Effective Feb. 20, 2024

Procedure

CBCU staff receive out-of-state abuse and neglect background check results from the applicable state agency, the subject or the operation. Within 10 business days, CBCU staff review the results to determine if the results meet the following requirements:

1. the documents have at least one of the following:
    - an official seal;
    - on letterhead from the providing agency, court or other official entity; or
    - details indicating that the search was completed by the appropriate state repository;
2. the name of the state searched is included;
3. the names and identifying information used to complete the search are included and are the same as information submitted for subject of the background check request; and
4. the completion date of the search is no older than the following, unless a CBCU manager has approved an exception:
    - **six months** before the *Date Submitted* for the background check, if the subject of the background check currently lives in Texas; or
    - **45 days** before the *Date Submitted* for the background check, if the subject of the background check currently lives in the state searched.

If the results do not meet the requirements, they are rejected.

If the results meet the requirements, they are accepted.

CBCU staff upload electronic versions of any documents that support the background check decision to CLASS Document Library from the applicable CLASS page and follow the applicable procedures in:

- 10373 Rejecting Out-of-State Criminal History Results; or
- 10374 Acting on Accepted Out-Of-State Criminal History Results.

References:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

10293 Rejecting Out-of-State Abuse and Neglect Background Check Results

Revision 24-1, Effective Feb. 20, 2024

Procedure

When CBCU staff reject out-of-state abuse and neglect search results, CBCU staff communicate with the subject by email or phone and provide the reason(s) for the rejection.

Next, CBCU staff document the following on the correct state's *Out-of-State Abuse and Neglect Background Check Results* page in CLASS in the *Information Specific to This Result* section:

- the information received;
- the reason for the rejection; and
- communication with the subject.

10294 Acting on Accepted Out-of-State Abuse and Neglect Results

Revision 24-1, Effective Feb. 20, 2024

After receiving the results, CBCU staff document and process the results to make an eligibility determination of eligible, ineligible or provisionally eligible, as appropriate.

References:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

26 TAC Section 745.613

10294.1 Background Check Subject Has an Out-of-State Abuse or Neglect Registry Match

Revision 24-1, Effective Feb. 20, 2024

Procedure

CBCU staff may consult with an Enforcement attorney for Child Care Licensing as needed to determine if the subject is ineligible or provisionally eligible to be present because of an out-of-state abuse or neglect registry match.

Based on the information in the results and any legal guidance from the Child Care Licensing Legal Enforcement Department, CBCU staff determine if the subject is eligible, ineligible, or eligible for a risk evaluation. If the subject is eligible for a risk evaluation, staff follow the procedure in 10400 Risk Evaluations.

CBCU staff document out-of-state abuse and neglect history and send notifications to the subject and operation, as applicable, within three business days of receiving the accepted results. If a consultation is needed, CBCU staff send the notification within two business days of completing the consultation.

If the search for a requested state does not include abuse or neglect history, staff follow the procedures in 10294.2 Background Check Subject Does Not Have an Out-Of-State Abuse or Neglect Registry Match.

Documenting Results

On the correct state's *Out-of-State Abuse and Neglect Background Check Results* page in CLASS, CBCU staff do the following:

1. In the *Results* section:
    - change the Status field to Match; and
    - enter the date the result was received into the *Date Received* field.
2. In the *Abuse/Neglect Findings* section, create a row for each finding with the correct selections.
3. In the *Information Specific to this Result* section document:
    - the decision for each finding included in the results rows;
    - the determination of the out-of-state history, the subject's ability to be present at the operation, and any conditions based on the determination;
    - any consultation with the Child Care Licensing Legal Enforcement Department;
    - any action required by the subject and operation and the due date provided in the notification; and
    - a summary of any other relevant information.
4. Select the *Preview Match Determination* button to verify the *Match Determination and Can Be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct.
5. Select the *Finalize Match Determination* button to complete the eligibility determination.
6. Save the page by selecting the *Save* button.

CBCU staff send appropriate notifications to the subject and operation, after the above steps are complete.

CBCU staff upload electronic copies of the out-of-state records search to CLASS Document Library from the applicable CLASS page.

Staff refer to the CBCU Resource Guide, available on CCR SharePoint site, for more details.

Notifications

After completing the above steps for each out-of-state background check requested that includes abuse or neglect history, CBCU staff send appropriate notifications to:

- the subject (10540 Background Check Notifications Sent to the Subject of the Background Check); and
- the operation (10533 Background Check Notifications Sent to the Operation and 10533.1 Additional Information Sent to a Child-Placing Agency).

Staff ensure manual notifications:

- include all applicable out-of-state abuse or neglect results; and
- provide a due date for risk evaluation or other information needed.

References:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files

1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10294.2 Background Check Subject Does Not Have an Out-of-State Abuse or Neglect Registry Match

Revision 24-1, Effective Feb. 20, 2024

Procedure

Within two business days of receiving an out-of-state result and determining the subject does not have abuse or neglect history in the state, CBCU staff update that state's Out-of-State Abuse and Neglect History Background Check Results page in CLASS.

On the correct state's *Out of State Abuse and Neglect Background Check Results* page in CLASS, CBCU staff take the following steps:

1. In the *Results* section:
    - change the *Status* field to cleared; and
    - enter the date the result was received into the *Date Received* field in the *Results* section.
2. In the *Information Specific to This Result* section, document;
    - a summary of the information received;
    - any consultation with the Child Care Licensing Legal Enforcement Department;
    - a summary of any information used in the evaluation from prior background checks; and
    - a summary of any other relevant information.
3. Saves the page by selecting the *Save* button.

After completing the above steps for each requested state that does not have abuse or neglect history, and if there are no other background check results that have a match, CLASS sends the eligible notification to the background check subject and the operation. If a risk evaluation is required for any other background check type and all out-of-state background checks are completed, CBCU staff process a risk evaluation according to 10400 Risk Evaluation.

If the search for a requested state includes abuse or neglect history, CBCU staff follow the procedures in 10294 Acting on Accepted Out-of-State Abuse and Neglect Results.

Staff refer to the CBCU Resource Guide, available on CCR SharePoint site, for more details.

References:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10300, Criminal History Background Checks

Revision 24-1; Effective Feb. 20, 2024

The criminal history background checks are to determine if the background check subject has a criminal history or sex offender registry result that would make the subject ineligible to be present at an operation or require conditions on the subject's presence at the operation to protect the health or safety of children, per the Criminal History Requirement Charts.

The criminal history background checks are conducted by CBCU staff evaluating results received from state and federal law enforcement repositories.

References:

10112 Types of Background Checks
10510 Types of Eligibility Determinations

26 TAC Chapter 745, Subchapter F, Background Checks

HRC Sections 42.056, 42.159, 42.206

10310 Types of Criminal History Background Checks Required

Revision 22-6; Effective Dec. 19, 2022

Determining if a Subject Requires a Texas Name-Based Check or Fingerprint-Based Criminal History Check

Each subject required to have a background check must have either a fingerprint-based criminal history check or a name-based criminal history check based upon the subject's role at the operation, as outlined in the chart below:

Type of Operation or Permit	Role at Operation	Type of Criminal History Background Check
• Licensed operations • Certified operations • Verified agency foster homes • Approved adoptive homes • Registered child care homes • Listed family homes that provide care to unrelated children • Temporary shelter programs • Small employer-based child care programs	All roles except supervised regular or frequent visitors	Fingerprint-based check
• Licensed operations • Certified operations • Verified agency foster homes • Approved adoptive homes • Registered child care homes • Listed family homes that provide care to unrelated children • Temporary shelter programs • Small employer-based child care programs	Supervised regular or frequent visitors	Name-based check unless the subject requires a fingerprint-based check because the subject: a. has resided outside of Texas during the five years prior to the request; or b. is suspected of having criminal history in another state.
• Listed family homes that provide care only to related children	All roles	Name-based check unless the subject requires a fingerprint-based check because the subject: a. has resided outside of Texas during the five years prior to the request; or b. is suspected of having criminal history in another state.
• All operation types	A subject who is present at the operation only to observe or complete a skills practicum as part of a college or high school course requirement and is supervised by a qualified caregiver at all times.	Name-based check
• Licensed Child Care administrators • Licensed Child-Placing Agency administrators	N/A	Fingerprint-based check

Determining if a Subject Requires an Out-Of-State Criminal History Check

If the subject lives outside of Texas or has lived outside of Texas in the past five years, an out-of-state criminal history check is required for each state the subject has resided in during the previous five years. (See: 10370 Out-of-State Criminal History Background Checks.)

If the subject lives outside of Texas, see 10113.1 When an Out-of-State Criminal History Check Must be Fingerprint Based to determine if the subject must complete an additional fingerprint-based criminal history check in their state of residency, in addition to completing their fingerprint check in Texas.

26 TAC Sections 745.611, 745.615

See:

10112 Types of Background Checks
10121 Persons for Whom Operations Must Submit Requests for Background Checks

10311 When a Background Check Subject Must Submit Fingerprints for a Criminal History Background Check

January 2021

All subjects who require a fingerprint-based criminal history check complete the fingerprint check in Texas. A subject is required to submit new fingerprints only if a previously completed a fingerprint-based criminal history check becomes invalid for CCR. A fingerprint-based criminal history check remains valid if CCR has an active subscription or can reactivate a subscription to the FBI's National Rap Back service for the subject.

26 TAC §745.625

See:
10112 Types of Background Checks
10121 Persons for Whom Operations Must Submit Requests for Background Checks

10320 Acting on the Results of a Criminal History Check

Revision 23-4; Effective Nov. 30, 2023

Procedure

If there are no criminal history matches identified for the background check subject, CLASS marks the result for the applicable background check type as "Cleared" and the background check type eligibility is "eligible."

If a criminal history match(es) exists, the CBCU inspector assigned to the operation receives a To Do in CLASS indicating a match has been found. Within three business days of receiving the result, CBCU staff process the result(s) and send notifications:

a. to the subject according to 10540 Background Check Notifications Sent to the Subject of the Background Check; and
b. to the operation according to:
    - 10533 Background Check Notifications Sent to the Operation; and
    - 10533.1 Additional Information Sent to a Child-Placing Agency.

If additional information, such as court documentation or a risk evaluation is needed, CBCU staff process the criminal history information until a determination of "eligible," "ineligible" or "conditionally eligible" is reached (10510 Types of Eligibility Determinations) or the background check is closed.

A background check is closed when:

- CBCU determines completion of the check is overdue; or
- the subject's employment status is changed to inactive, indicating the subject is no longer affiliated with the operation.

If the subject's employment status is changed to inactive, indicating the subject is no longer affiliated with the operation, CBCU staff stop processing the match.

Sex Offender Registry Results Received with Texas Name Based or Fingerprint Results

Texas name based and FBI fingerprint results include persons listed on the Texas and the national sex offender registries. CBCU staff process registered sex offender results received in the Texas name-based results or the fingerprint results as criminal history as

described in 10380 Sex Offender Registry Check Results.

A background check subject who is registered or required to register as a sex offender in Texas or any other state or U.S. territory may not be present at an operation while children are in care.

See:
10322 Documenting the Criminal History Results
10323 Processing Court Documents
10510 Types of Eligibility Determinations
10520 Employment Status
10531 Types of Background Check Notifications
10720 Inactivating a Subject's Role or Employment

26 TAC Section 745.629; 745.669

10321 Determining Appropriate Actions Based on Criminal History

Revision 23-4; Effective Nov. 30, 2023

Procedure

When notified that a background check subject has criminal history, CBCU staff use the Criminal History Requirements Charts to determine if the criminal history makes the subject:

a. eligible to be present at the operation without a risk evaluation;
b. ineligible to be present at the operation; or
c. eligible for a risk evaluation.

If eligible for a risk evaluation, CBCU staff also determine if the subject can be present at the operation pending the completion of the risk evaluation.

CBCU staff may place conditions on a subject's presence to protect the health or safety of children, if needed.

CBCU staff provide a due date for any additional information needed in the *Match Letter-Subject*.

See:

10510 Types of Eligibility Determinations

26 TAC Section 745.661

10322 Documenting the Criminal History Results

August 2021

Procedure

CBCU staff document the results of criminal history checks in the following pages in CLASS:

Type of Criminal History Check is …	CLASS Page on Which Results are Documented
Texas name-based criminal history check, which includes the Texas sex offender registry results,	*Texas Name-Based Criminal History Background Check Results*.
Fingerprint-based criminal history check, which includes the National Sex Offender Registry results associated with a subject's fingerprints,	*Fingerprint Background Check Results*.
Out-of-state criminal history check,	*Out-of-State Criminal History Background Check Results*.
Out-of-state sex offender registry check,	*Out-of-State Sex Offender Registry Background Check Results*.

10322.1 Documenting Results and Making the Background Check Type Eligibility Determination

Revision 23-4; Effective Nov. 30, 2023

Procedure

On the applicable background check results page in CLASS, CBCU staff do the following:

1. In the *Criminal Charges* section:
   - ensure each arrest is included as a row;
   - add or edit each result; and
   - make the appropriate *Arrest Determination* and *Can be Present* selections for each row in the *Criminal Charges* section according to the applicable Criminal History Requirements Charts.
2. In the *Information Specific to the Result* section, document:
   - the decision for each charge;
   - the determination of the criminal history result and the subject's eligibility to be present at the operation based on the determination;
   - any action required by the subject and operation and the due date provided in the notification;
   - a summary of any information used in the evaluation from prior background checks; and
   - a summary of any other relevant information.
3. Select the *Preview Match Determination* button to verify the *Match Determination and Can be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct.
4. Select the *Finalize Match Determination* button to complete the background check type eligibility.
5. Save the page by selecting the *Save* button.

After completing the above steps, CBCU staff send appropriate notifications to:

- the subject (10540 Background Check Notifications Sent to the Subject of the Background Check); and
- the operation (10533 Background Check Notifications Sent to the Operation and 10533.1 Additional Information Sent to a Child-Placing Agency).

Staff ensure manual notifications:

- include all applicable criminal history results;
- include criminal history results edited to provide relevant details of the offense(s) and outcome(s); and
- provide a due date for required documentation, if applicable.

Staff refer to the *CBCU Resource Guide*, available on CCR SharePoint site, for additional details.

See:

10323 Processing Court Documents
10412 Notifying a Subject Who is Eligible for a Risk Evaluation
10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10323 Processing Court Documents

Revision 23-4; Effective Nov. 30, 2023

If a subject's background check has incomplete criminal history results, CBCU staff give the subject the opportunity to provide court documentation to address the results.

Procedure

Within three business days of receiving the court documentation from the subject, CBCU staff verify the validity and completeness of the court documents and update the criminal history by completing the steps in 10322 Documenting the Criminal History Results.

CBCU staff upload electronic copies of the court document(s) to CLASS Document Library from the applicable CLASS page.

If the court documentation results in a change in the eligibility determination, the subject and the operation are sent updated eligibility notifications.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

26 TAC Sections 745.639; 745.645

10324 Processing Warrants

Revision 24-1; Effective Feb. 20, 2024

Procedure

If a subject's background check results indicate the subject has an outstanding arrest warrant, CBCU staff determine if the information available in the result would be considered a minimum standards violation based on the Criminal History Requirements Charts. If needed, additional information is requested to address the result.

A temporary risk evaluation is not completed due to an active warrant.

When documenting warrant results and information received from the subject, CBCU staff update the criminal history. Staff then send notifications to the subject and operation by completing the steps in 10322 Documenting the Criminal History.

CBCU staff upload electronic copies of the court document(s) to CLASS Document Library from the applicable CLASS page.

References:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10330 Receiving New and Updated Criminal History Results

February 2021

CCR may receive new and updated criminal history information from an operation, from a monitoring inspector or through the Texas or National Rap Back programs.

When a subject has valid fingerprints on file with CCR, the subject is enrolled in Texas and National Rap Back programs. These programs allow CCR to automatically receive new Texas or national criminal history for the subject (a rap back result).

Procedure

If a CCR monitoring inspector receives information from an operation that a background check subject associated with the operation has either been arrested, indicted or is the subject of an official criminal complaint accepted by a county or district attorney, the CCR monitoring inspector immediately reports this information to the CBCU inspector assigned to the operation. The CBCU inspector adds the new information as a new criminal history result on the subject's appropriate background check results page.

When new information is returned electronically to CLASS through the Texas or National Rap Back programs, a *Rap Back Match Found TODO* is created on the assigned CBCU Inspector's workload in CLASS.

26 TAC §§744.305(a)(4); 745.631; 745.665; 745.667; 746.305(a)(4); 747.303(a)(4); 748.303(d)(6); 749.503(d)(6)

10330.1 Ensuring Complete Criminal History Results

Revision 23-4; Effective Nov. 30, 2023

Procedure

When processing a criminal history result, CBCU staff verify that the criminal history background check results include all arrests and charges.

If CBCU staff determine that CLASS did not populate all arrests and charges into the subject's history, CBCU staff add any missing results according to the CBCU Resource Guide available on the CCR SharePoint site.

10331 Acting on New and Updated Criminal History Results

Revision 23-4; Effective Nov. 30, 2023

Procedure

When CBCU staff receive criminal history information indicating that a subject associated with the operation has either been arrested, indicted or is the subject of an official criminal complaint accepted by a county or district attorney, CBCU staff use the appropriate Criminal History Requirements Chart and determine whether a conviction for the new or updated offense would make the subject:

a. eligible to be present at the operation;
b. ineligible to be present at the operation;
c. eligible to be present with conditions pending for a temporary risk evaluation decision; or
d. eligible to be present with conditions pending the disposition of the criminal charge.

CBCU staff may also consult with an Enforcement attorney for Child Care Licensing to determine if the new or updated information causes the subject's presence to pose an immediate threat to the health or safety of children.

CBCU staff process new or updated results according to 10320 Acting on the Results of a Criminal History Check and 10321 Determining Appropriate Actions Based on Criminal History.

10331.1 Temporary Risk Evaluation for Criminal History Pending a Final Disposition

Revision 23-4; Effective Nov. 30, 2023

CBCU staff offer a background check subject a temporary risk evaluation when:

- the subject's eligibility is provisional;
- the criminal history is eligible for a risk evaluation according to the appropriate Criminal History Requirements Chart; and
- the criminal history does not have a final disposition.

CBCU staff evaluate eligibility for a temporary risk evaluation and process the temporary risk evaluation according to 10411 Temporary Risk Evaluation and 10441 Risk Evaluation Reconsideration for New and Updated Background Check Results.

26 TAC Sections 745.661, 745.683

Exception for an Unverified Foster Home or Unapproved Adoptive Home

Background check subjects who are foster or adoptive parents or household members at an unverified foster home or unapproved adoptive home are eligible for a temporary risk evaluation only when:

- DFPS has placed a child in the home;
- DFPS plans to place a child in the home pending a background check decision; or
- an adoption is pending a background check decision.

CBCU staff may consult with CPI staff or the HHSC Child Care Licensing Legal Department to determine if a temporary risk evaluation is needed because DFPS has placed or plans to place a child in the home or an adoption is pending a background check decision.

10331.2 Reconsideration of an Existing Risk Evaluation Decision

January 2022

If the subject has a risk evaluation for any prior matches, CBCU staff process the new criminal history results according to 10441 Risk Evaluation Reconsideration for New and Updated Background Check Results.

26 TAC §§744.305(a)(4); 745.631; 745.665; 745.667; 746.305(a)(4); 747.303(a)(4); 748.303(d)(6); 749.503(d)(6)

See:

10411 Temporary Risk Evaluation
10510 Types of Eligibility Determinations
10520 Employment Status
10531 Types of Background Check Notifications

10340 Handling Juvenile Offenses

February 2021

Procedure

All juvenile history is marked as "Juvenile Offense" on the applicable background check results page unless CBCU staff and an Enforcement attorney for Child Care Licensing determine additional action is appropriate based on the threat associated with the subject's presence at the operation.

10340.1 Determining a Subject's Presence Poses an Immediate Threat Based on Juvenile History

February 2021

Procedure

CBCU staff consult with a CBCU manager and the Child Care Licensing Legal Enforcement Department when determining whether the subject's presence presents an immediate threat to the health or safety of children after considering the following:

- whether the offense would result in an "ineligible" or "provisionally eligible" determination if it were an adult criminal charge or conviction;
- the length of time since the offense occurred; and
- the status of the disposition hearing for the offense (adjudicated, pending, supervisory caution, dismissed, etc.).

To make the determination, CBCU staff may conduct research to verify that the offense is a juvenile offense and to confirm the status, if the information is not provided in the background check results.

10340.2 Possible Actions for Juvenile Offenses

Revision 23-3; Effective Sept. 22, 2023

Procedure

An Enforcement attorney for Child Care Licensing determines whether the offense(s):

- should result in an ineligible determination based on a determination of an immediate threat to the health or safety of children;
- should be released to the child-placing agency (CPA) for informational purposes (only for subjects associated with foster or adoptive homes); or
- may not be released to any operation.

CBCU staff save copies of emails and documentation of the consultation to CLASS Document Library from the applicable CLASS page.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

10340.21 Actions for Determination of Immediate Threat for Juvenile Offense

Revision 24-1; Effective Feb. 20, 2024

If the subject's presence is determined to present an immediate threat to the health or safety of children because of the juvenile history, CBCU staff do the following on the applicable criminal history results page in CLASS:

1. In the *Abuse/Neglect Findings* section, on the row(s) for the juvenile result(s):
    - select "MSV – Barred" in the *Arrest Determination* field; and
    - verify *Can Be Present* selection populates to "No."
2. In the *Information Specific to this Result* section, document:
    - a summary of the consultation and decision with the Child Care Licensing Legal Enforcement Department; and
    - any other relevant information.
3. Select the *Preview Match Determination* button to verify the *Match Determination* and *Can Be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct.

4. Select the *Finalize Match Determination* button to complete the eligibility determination.
5. Save the page by selecting the *Save* button.

If the subject's presence is determined to present an immediate threat to the health or safety of children, CBCU staff follow the process in 5611 Explaining the Right to an Administrative Review and send a letter notifying the subject of the following:

- the determination of immediate threat to the health or safety of children;
- the information that was released to the operation;
- the subject's right to request an administrative review; and
- how to request an administrative review.

If the subject's presence was determined to present an immediate threat to the health or safety of children, CBCU staff send an ineligible determination notification to the operation. If the background check was submitted for a foster or adoptive parent or household member, CBCU staff also provide the "Background Check Match Letter" to the CPA as described in 10533.1 Additional Information Sent to a Child-Placing Agency.

Administrative Review Following an Approved Determination of Immediate Threat Based on a Juvenile Adjudication

When the CBCU determines that the subject's presence presents an immediate threat to the health or safety of children based on a juvenile adjudication that the CBCU received with the subject's criminal history, CBCU staff follow the process in 5611 Explaining the Right to an Administrative Review and send a letter notifying the subject of the following:

- the determination of immediate threat to the health or safety of children;
- the information that was released to the operation;
- the subject's right to request an administrative review; and
- how to request an administrative review.

Exception: If the background check subject is a minor, the CBCU notifies the subject's parent or guardian of the determination and explains the administrative review process. The parent or guardian can request the administrative review for the minor.

References:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10340.22 Actions for Determining the Subject's Presence Does Not Pose an Immediate Threat for Juvenile Offense

February 2021

If the subject's presence was determined not to present an immediate threat to the health or safety of children and will not be released for informational purposes, CBCU staff do the following on the applicable *Background Check Results* page in CLASS:

1. In the *Abuse/Neglect Findings* section, on the row(s) for the juvenile result(s):
    - select "Not a Minimum Standards Violation" in the *Arrest Determination* field; and
    - verify *Can Be Present* field populates to "Yes."
2. In the Information Specific to this Result section, document:
    - the decision relating to the release of the juvenile history;
    - a summary of any consultation and decision with the Child Care Licensing Legal Enforcement Department; and
    - any other relevant information.
3. Select the *Preview Match Determination* button to verify the *Match Determination and Can Be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct.
4. Select the *Finalize Match Determination* button to complete the eligibility determination.
5. Save the page by selecting the *Save* button.

After completing the above steps, CBCU staff send appropriate notifications to the subject and operation.

Additional Consideration for a CPA

When an Enforcement attorney for Child Care Licensing determines the juvenile history should be released to a CPA for informational purposes only, CBCU staff send the "Match Letter – Subject" to the subject (See: 10540 Background Check Notifications Sent to the Subject of the Background Check) and the "Background Check Match Letter" to the operation. (See: 10533 Background Check Notifications Sent to the Operation and 10533.1 Additional Information Sent to a Child-Placing Agency.)

40 TAC Chapter 745, Subchapter M, Division 1 Administrative Reviews; Chapter 745, Subchapter M Division 2 Due Process Hearings; 26 TAC §745.601(4)

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10350 Criminal Offenses that Result in Deferred Adjudication Community Supervision

April 2022

CBCU staff consider a criminal offense that results in deferred adjudication community supervision as a criminal conviction as follows:

If …	Then, deferred adjudication community supervision for an offense is considered …
CCR **is not** in the process of issuing, denying or revoking the person's permit or administrator's license,	a criminal conviction until the person successfully completes the terms of community supervision. Proof that a person has successfully completed the terms of community supervision is an order from the court that dismisses the proceedings and discharges the person.
CCR **is** in the process of issuing, denying or revoking the person's permit or administrator's license,	a criminal conviction with respect to CCR's decision to issue, deny or revoke the permit or license. It does not matter if the person has successfully completed the terms of community supervision and the court has dismissed the proceedings and discharged the person.

26 TAC Section 745.663

See:

3213 Topics Covered and Forms Provided During the Pre-Application Interview
3213.3 Background Check Responsibilities
3312 Evaluating Background Checks
3400 Issuance of a Permit
3900 Permit Renewal
9500 Issuing a Child Care Administrator's License
9600 Renewing an Administrator's License
9640 Background Checks for an Administrator's License
9700 Remedial Action on an Administrator's License

10360 Criminal History Matches for Licensed Administrators

April 2022

In addition to the offenses identified on the Licensed or Certified Child Care Operation: Criminal History Requirements chart and 10350 Criminal Offenses that Result in Deferred Adjudication Community Supervision, the CBCU evaluates a licensed administrator's criminal history matches for offenses related to financial crimes, including the following Penal Code offenses:

a. Title 7 Offenses Against Property;
b. Title 8 Offenses Against Administration; and
c. Title 11 Organized Crime.

Procedure

If CBCU staff determine that the administrator is ineligible to be an administrator or requires a risk evaluation, CBCU staff notify the CCR program specialist responsible for the administrator licensing program, so that enforcement action may be taken against the administrator's license.

26 TAC §745.775

See:

9640 Background Checks for an Administrator's License
9700 Remedial Action on an Administrator's License

10370 Out-of-State Criminal History Background Checks

Revision 24-1; Effective Feb. 20, 2024

The out-of-state criminal history background checks are to determine if the background check subject has criminal history in another state or U.S. territory that would make the subject ineligible to be present at an operation or provisionally eligible pending a risk evaluation request and decision. The process for getting out-of-state criminal history results varies by state or U.S. territory.

The background check subject's eligibility determination becomes provisional when all other background check types are eligible and out-of-state background check request types are pending.

The subject communicates with CBCU to complete out-of-state background check requests. CBCU staff document communication with the subject and other state agencies in the *Information Specific to this Result* section of the applicable *Out-of-State Criminal History Background Check Results* page in CLASS.

Out-of-state criminal history check results are valid for five years from the *Date Submitted* field for the first background check that included the state on the subject's background checks. The results automatically copy into additional background checks until the results expire. If the out-of-state check is required after that time, the background check subject re-requests the search and CBCU staff follow 10371 Requesting Out-of-Sate Criminal History Searches.

CBCU staff close a background check as noncompliant if out-of-state background checks have not been initiated by the subject of the background check on or before 45 days from the background check submission date (10510.41 Determination of Ineligible Due to Noncompliant Background Checks).

Reference: 10113 When Out-of-State Background Checks are Required

26 TAC Section 745.613

10371 Requesting Out-of-State Criminal History Searches

Revision 23-4; Effective Nov. 30, 2023

Procedure

When an out-of-state background check is required, within 45 days from the submission date of the background check, the subject of the background check:

- provides the results to CBCU staff; or
- requests CBCU staff initiate the search, if required by state or U.S. territory as outlined in the Out-of-State Resource Guide for Child Care Employees and Foster and Adoptive Parents in Texas (PDF).

After the subject has requested CBCU staff initiate the out-of-state search, CBCU staff:

- follow instructions for submitting the request, as outlined in the CBCU Internal Out-of-State Resource Guide, available on the CCR SharePoint site; and
- work with the subject, the operation and the out-of-state agency, as needed, to obtain the results.

10371.1 States Participating in the National Fingerprint File Program

February 2021

Certain states participate in the National Fingerprint File (NFF) program. Results for NFF-participating states are received in the subject's FBI results and, therefore, do not require an additional search of the state's criminal records.

If the subject of the background check needs an out-of-state background check from an NFF-participating state, an out-of-state check is not required for that state and CBCU staff process the results according to 10320 Acting on the Results of a Criminal History Check.

26 TAC §745.613

10372 Evaluating Results from Out-of-State Criminal History Searches

Revision 23-4; Effective Nov. 30, 2023

Procedure

CBCU staff receive out-of-state criminal history background check results from the applicable state agency, the subject or the operation. Within 10 business days, CBCU staff review the results to determine whether the results meet the following requirements:

a. documents have at least one of the following:
   - an official seal;
   - on letterhead from the providing agency, court or other official entity; or
   - details indicating that the search was completed by the appropriate state repository;
b. the name of state searched is included;
c. the names and identifying information used to complete the search are included and are the same as information submitted for the subject in the background check request; and
d. the completion date of the search is no older than the following, unless a CBCU manager has approved an exception:
   - **six months** prior to the *Date Submitted* for the background check if the subject of the background check currently lives in Texas.
   - **45 days** prior to the *Date Submitted* for the background check if the subject of the background check currently lives in the state searched.

If the results do not meet the requirements, they are considered rejected.

If the results do meet the requirements, they are considered accepted.

CBCU staff upload electronic copies of the document(s) to CLASS Document Library from the applicable CLASS page and follow the applicable procedures in:

- 10373 Rejecting Out-of-State Criminal History Results or
- 10374 Acting on Accepted Out-Of-State Criminal History Results.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

10373 Rejecting Out-of-State Criminal History Background Check Results

Revision 23-4; Effective Nov. 30, 2023

Procedure

When the CBCU rejects out-of-state criminal background check history results, CBCU staff communicate with the subject by either email or phone and provide the reason(s) for the rejection.

Next, CBCU staff document the following on the correct state's *Out-of-State Criminal History Background Check Results* page in CLASS in the *Information Specific to This Result* section:

- the information received;
- the reason for the rejection; and
- communication with the subject.

10374 Acting on Accepted Out-of-State Criminal History Results

Revision 23-4; Effective Nov. 30, 2023

After receiving the results, CBCU staff document and process the results to make an eligibility determination of "eligible," "ineligible" or "provisionally eligible," as appropriate.

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

26 TAC Section 745.613

10374.1 Subject Has Out-of-State Criminal History

Revision 23-4; Effective Nov. 30, 2023

Procedure

CBCU staff may consult with an Enforcement attorney for Child Care Licensing if the subject of the background check has an out-of-state criminal history result and clarification is needed to determine the appropriate action based on the Criminal History Requirements Charts.

Based on the information in the results and any legal guidance from the Child Care Licensing Legal Enforcement Department, CBCU staff determine if the subject is eligible, ineligible or eligible for a risk evaluation. If the subject is eligible for a risk evaluation, staff follow the procedure in 10400 Risk Evaluations.

CBCU staff document out-of-state criminal history and send notifications to the subject and operation, as applicable, within three business days of receiving the accepted results. If a consultation is needed, CBCU staff send the notification within two business days of completing the consultation.

If the search for a requested state does not include criminal history, staff follow the procedures in 10374.2 Subject Does Not Have Out-of-State Criminal History.

Documenting Results

On the correct state's *Out-of-State Criminal History Background Check Results* page in CLASS, CBCU staff do the following:

1. In the *Results* section:
    - change the Status field to "Match";
    - enter the date the result was received into the *Date Received* field; and
    - enter the results in the *Report Details* text box.
2. In the *Criminal Charges* section:
    - create a row for each charge; and
    - complete the *Arrest Determination* field and *Can Be Present* field button for each results row.
3. In the *Information Specific to This Result* section, document:
    - the decision for each charge included in the results rows;
    - the determination of the out-of-state history and the subject's ability to be present at the operation based on the determination;
    - any consultation with the Child Care Licensing Legal Enforcement Department;
    - any action required by the subject and operation and the due date provided in the notification;
    - a summary of any information used in the evaluation from prior background checks; and
    - a summary of any other relevant information.
4. Select the *Preview Match Determination* button to verify the *Match Determination* and *Can Be Present* selections populate correctly based on all results. If the selections are incorrect, make corrections until the selections are correct.
5. Select the *Finalize Match Determination* button to complete the eligibility determination.
6. Save the page by selecting the *Save* button.

CBCU staff upload electronic copies of the out-of-state records search to CLASS Document Library from the applicable CLASS page.

Staff refer to the *CBCU Resource Guide*, available on CCR SharePoint site, for additional details.

Notifications

After completing the above steps for each out-of-state background check requested that includes criminal history, CBCU staff send appropriate notifications to:

- the subject (10540 Background Check Notifications Sent to the Subject of the Background Check) and
- the operation (10533 Background Check Notifications Sent to the Operation and 10533.1 Additional Information Sent to a Child-Placing Agency).

Staff ensure manual notifications:

- include all applicable criminal history results;
- include criminal history results edited to provide relevant details of the offense(s) and outcome(s); and
- provide a due date for risk evaluation or other information needed.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10374.2 Subject Does Not Have Out-of-State Criminal History

Revision 23-4; Effective Nov. 30, 2023

Procedure

Within two business days of receiving an out-of-state result and determining the subject does not have criminal history in the state, CBCU staff update that state's *Out-of-State Criminal History Background Check Results* page in CLASS.

On the correct state's *Out-of-State Criminal History Background Check Results* page in CLASS, CBCU staff take the following steps:

1. In the *Results* section:
    - change the *Status* field to "Cleared"; and
    - enter the date the result was received into the *Date Received* field.
2. In the *Information Specific to This Result* section, document:
    - a summary of the documentation;
    - any consultation with the Child Care Licensing Legal Enforcement Department;
    - a summary of any information used in the evaluation from prior background checks; and
    - a summary of any other relevant information.
3. Save the page by selecting the *Save* button.

After completing the above steps for each requested state that does not have criminal history, and there are no other background check results that have a match, CLASS sends the eligible notification to the background check subject and the operation.

If the search for a requested state includes criminal history, CBCU staff follow the procedures in 10374.1 Subject Has Out-of-State Criminal History.

Staff refer to the *CBCU Resource Guide*, available on CCR SharePoint site, for additional details.

See:

1427 Using Scanned Documents and Other Digital Files as a Regulatory Tool
1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library
10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10380 Sex Offender Registry Check Results

August 2021

A background check subject who is registered or required to register as a sex offender in Texas or any other state or U.S. territory may not be present at an operation while children are in care.

Procedure

The registered sex offender background check types are summarized in the table below:

Registered Sex Offender Background Check Type	Sex Offender Registry	How Results are Received in CLASS	Results Page in CLASS
Texas Name-based	Texas Sex Offender Registry	Texas Name-based Criminal History Check batch process	*Texas Name-Based Criminal History Background Check Results*
FBI fingerprint-based background check	Fingerprint-based National Sex Offender Registry	FBI Criminal History Check batch process	*Fingerprint Background Check Results*
Out-of-state background check for each state included in the subject's background check request	Out-of-State Sex Offender Registry	CBCU staff search each required state's sex offender registry	*Out-of-State Sex Offender Registry Background Check Results*
National Sex Offender Registry (NSOR) background check	NSOR	NSOR background check batch process	*National Sex Offender Registry Background Check*

Registered Sex Offender Background Check Type	Sex Offender Registry	How Results are Received in CLASS	Results Page in CLASS
			Results

26 TAC §745.669

10381 Texas Sex Offender and National Sex Offender Registry Results

August 2021

Procedure

Texas name-based and FBI fingerprint results include persons listed on the Texas and national sex offender registries, as described in 10322 Documenting the Criminal History Results.

The National Sex Offender Registry (NSOR) check includes results from a name-based search for persons listed on the NSOR.

10381.1 Processing Matches for Texas Name-Based Sex Offender and Fingerprint Sex Offender Results

August 2021

CBCU staff process sex offender registry results received from Texas name-based and FBI fingerprint results on the *Fingerprint Background Check Results* or *Texas Name-Based Criminal History Background Check Results* page, as appropriate. CBCU staff do the following on the applicable background check results page in CLASS:

1. In the *Criminal Charges* section:
   - create a row for the result, if needed;
   - select "Other Criminal Offense" in the *Criminal Charge* field;
   - enter "Registered Sex Offender" in the *If Other, Please Specify* field;
   - complete the *Disposition* and *Arrest Date* fields with the correct information;
   - select "MSV-Barred" in the *Arrest Determination* field; and
   - *Can Be Present* field, verify "No" is automatically selected.
2. In the *Information Specific to This Result* section, document:
   - a summary of the result;
   - a statement the subject cannot be present; and
   - any other relevant information.
3. Select the *Preview Match Determination* button to verify the *Match Determination* and *Can Be Present* selections populate correctly based on all results. If the selections are incorrect, make corrections until the selections are correct.
4. Select the *Finalize Match Determination* button to complete the eligibility determination.
5. Save the page by selecting the *Save* button.

After completing the above steps, CBCU staff send appropriate notifications to the subject and operation.

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10381.2 Processing Possible Matches for Name-Based National Sex Offender Registry (NSOR) Search

August 2021

The National Sex Offender Registry (NSOR) background check provides results from a name-based search of the NSOR. CLASS receives the possible results from an automated search.

Procedure

Reviewing Results from an NSOR Search

CBCU staff receive notification of a possible NSOR match from an automated name-based search of the NSOR database that contains all possible matches for the subject.

If there are no potential matches, the status of the NSOR check result is automatically set to "Cleared" in CLASS.

If there are possible matches, CBCU staff determine whether the person listed in the search result is the same person as the subject of the background check by comparing the information in each possible NSOR match to the following information:

a. any name (including alternate names and versions of the subject's name);
b. any possible Social Security numbers (SSNs);
c. any possible date of birth (DOB); and
d. other identifiers or personal information, if needed.

Next, CBCU staff select the appropriate radio button and staff document each possible match result and complete the next step to take with each match as outlined in the chart below:

The Possible Match is	What to Select on the *NSOR Possible Match Results* Page in CLASS	Resulting *Status* in the *Result* Section of the *NSOR Background Check Results* Page in CLASS	Next Step
The same person as the subject of the background check,	Accept	Match	CBCU staff process the NSOR match, according to 10381.3 Processing Matches from an NSOR Search.
A different person from the subject of the background check,	Reject	Cleared	CBCU staff have finished processing the possible NSOR match.
Unclear because there is not enough information to determine whether the person listed in the search results is the same person as the subject of the background check,	Undetermined	Possible Match	CBCU staff: • conduct additional research until a match can be determined or ruled out; and • update the Results section of the *NSOR Background Check Results* page to "Match" or "Cleared" based on the final determination.

10381.3 Processing Matches from an NSOR Result

August 2021

Procedure

Active Registered Sex Offender

If, according to the name-based NSOR result, CBCU staff determine that the person is actively registered as a sex offender, CBCU staff do the following on the NSOR *Results* page in CLASS:

a. In the *Information Specific to this Result* section, document information about the match.
b. In the *Match Determination* field, select "MSV-Barred";
c. In the *Can Be Present* field, verify "No" is automatically selected; and
d. Select the *Save* button to save the page and complete the eligibility determination.

After completing the above steps, CBCU staff send appropriate notifications to the subject and the operation.

Inactive Registered Sex Offender

If, according to the name-based NSOR result, CBCU staff determine that the person is **not** actively registered as a sex offender, CBCU staff do the following on the NSOR *Results* page in CLASS:

a. In the *Information Specific to this Result* section, document information about the match.
b. In the *Match Determination* field, select "Not an Minimum Standards Violation";
c. In the *Can Be Present* field, verify "Yes" is automatically selected; and
d. Select the *Save* button to save the page and complete the eligibility determination.

After completing the above steps, CBCU staff send appropriate notifications to the subject and the operation.

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10382 Out-of-State Sex Offender Registry Results

August 2021

Procedure

CBCU staff obtain results of other states' and U.S. territories' sex offender registries by conducting a search of the applicable registry when a subject requires an out-of-state sex offender registry check. CBCU staff update the *Out-of-State Sex Offender Registry Background Check Results* page in CLASS.

Results are valid for five years from the *Submittal Date* of the first request for the state or U.S. territory. The results automatically copy over into additional background checks until the results expire. CBCU staff conduct a new search of the out-of-state sex offender registry if the out-of-state sex offender registry check is still required and the results have expired.

If the subject of the background check **is not** found in the applicable state's or U.S. territory's registry, CBCU staff do the following on correct state's or territory's *Out-of-State Sex Offender Registry Background Check Results* page in CLASS:

1. In the *Results* section:
   - select "Cleared" in the *Status* field; and
   - enter the date the search was completed in the *Date Received* field.
2. In the *Information Specific to this Result* section, document the search results.

If the subject of the background check **is** found on the applicable state's or U.S. territory's registry, CBCU staff do the following on the correct state's or territory's *Out-of-State Sex Offender Registry Background Check Results* page in CLASS:

1. In the *Results* section:
   - select "Match" in the *Status* field; and
   - enter the date the search was completed in the *Date Received* field.
2. In the *Information Specific to this Result* section, document the search results.
3. In the *Match Determination* field, select "MSV-Barred."
4. In the *Can Be Present* field, verify "No" is automatically selected.
5. Select the *Save* button to save the page and complete the eligibility determination.

After completing the above steps, CBCU staff send appropriate notifications to the subject and the operation.

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10400, Risk Evaluation

Revision 23-4; Effective Nov. 30, 2023

A risk evaluation is a process the Centralized Background Check Unit (CBCU) conducts to determine if a subject of a background check who has certain criminal history or child abuse or neglect history poses a threat to the health or safety of children in a particular operation. The result of the risk evaluation process is a determination of whether the subject may be present at the operation with or without conditions.

Procedure

A CBCU manager or designee conducts a risk evaluation only:

a. after CBCU notifies the subject that he or she is eligible to request a risk evaluation; and
b. when the subject requests the CBCU to complete a risk evaluation.

The background check subject submits a request for a risk evaluation and completes risk evaluation packet no later than the due date in the CLASS notification Match Letter-Subject.

Staff refer to the *CBCU Resource Guide*, available on CCR SharePoint site, for additional details.

26 TAC Section 745.601

10410 When a Risk Evaluation is Required

Revision 23-4; Effective Nov. 30, 2023

When reviewing background check matches, CBCU staff determine whether the subject is eligible for a risk evaluation as outlined below:

- Criminal offenses: reviewing the applicable Criminal Criminal History Requirements Chart; and
- Abuse or Neglect findings: reviewing 26 TAC Section 745.671.

Risk Evaluation for Out-of-State Background Check Results

When reviewing out-of-state criminal history or abuse or neglect matches, CBCU staff may consult with an Enforcement attorney for Child Care Licensing to resolve questions about the match and determine if the subject is eligible for a risk evaluation.

Additional Consideration for Subjects Associated with Prospective Foster or Adoptive Homes

A prospective foster or adoptive parent, or any subject who is required to undergo a background check because of the foster or adoptive parent application, is eligible for a risk evaluation for a sustained finding for physical abuse if:

- it has been more than five years since the finding; and
- the prospective foster or adoptive parent is related to, or has a significant longstanding relationship with, the foster or adoptive child to be placed.

Contact with children would be allowed if a risk evaluation is approved for a subject meeting the criteria detailed above.

26 TAC Sections 745.661; 745.671

10411 Temporary Risk Evaluation

Revision 23-4; Effective Nov. 30, 2023

A subject whom the CBCU has allowed to be present at the operation with a provisional eligibility determination may request a temporary risk evaluation under the following circumstances:

a. CBCU has been notified of certain crimes for which the subject has been arrested, indicted or charged (10331 Acting on New and Updated Criminal History Results) and does not have an arrest warrant (10324 Processing Warrants); or
b. the subject has a child abuse or neglect finding that is not sustained, has requested a due process hearing for the finding and is eligible for a risk evaluation according to 26 TAC Section 745.671(a)(7-8).

The process for the CBCU to notify a subject about the results and for the subject to request a temporary risk evaluation is the same as the policies and procedures outlined in 10412 Notifying a Subject Who is Eligible for a Risk Evaluation and 10420 Processing Risk Evaluation Requests. When conducting a temporary risk evaluation, the CBCU assumes that the subject was convicted for the relevant crime or that the child abuse or neglect finding was sustained, as applicable.

Exception for an Unverified Foster Home or Unapproved Adoptive Home

If the background check subject is a foster or adoptive parent or a household member at an unverified foster home or an unapproved adoptive home, CBCU offers a temporary risk evaluation when:

- DFPS has placed a child in the home;
- DFPS plans to place a child in the home pending a background check decision; or
- an adoption is pending a background check decision.

CBCU staff may consult with CPI staff or the HHSC Child Care Licensing Legal Department to determine if a temporary risk evaluation is needed because DFPS has placed or plans to place a child in the home.

See: 10510.3 Eligibility Determinations Which Include Conditions

26 TAC Sections 745.671; 745.673; 745.683; 745.697

10411.1 Reevaluating a Temporary Risk Evaluation

February 2021

CBCU staff reevaluate a temporary risk evaluation decision when:

a. the CBCU receives additional information regarding the pending criminal case or abuse or neglect finding; or
b. the subject of the risk evaluation provides additional information and requests a review of the decision.

26 TAC §745.697

See: 10611 Eligibility Determination Reviews

10412 Notifying a Subject Who is Eligible for a Risk Evaluation

February 2021

Procedure

When a subject has a criminal conviction, arrest, indictment, charge, or child abuse, neglect or exploitation finding that requires a risk evaluation, CBCU staff send the *Match Letter – Subject* notification to advise the subject:

a. that the subject is eligible to request a risk evaluation;
b. whether the subject can be present at the operation pending the risk evaluation decision;
c. whether there are any conditions placed on the subject's presence at the operation; and
d. that the due date for requesting the risk evaluation is 30 days from the date of the notification.

26 TAC §§745.661; 745.671

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10420 Processing Risk Evaluation Requests

Revision 23-4; Effective Nov. 30, 2023

Procedure

When the CBCU receives a risk evaluation request, CBCU staff first evaluate if the subject submitted the request for a risk evaluation by the due date provided in the notification. Next, CBCU staff evaluate whether the subject submitted a completed risk evaluation packet according to:

- 10421 Information Required for All Risk Evaluations;
- 10422 Additional Information Required for Criminal History Matches, if applicable; and
- 10423 Additional Documentation Required if the Subject is Associated with a Foster or Adoptive Home, if applicable.

If the risk evaluation packet is incomplete, the CBCU staff determines if:

- the risk evaluation decision can be made based on the information provided;
- additional information is required;
- the risk evaluation will be denied due to receiving an incomplete packet (10430 Making a Risk Evaluation Decision); or
- the background check will be closed due to becoming noncompliant (10510.41 Determination of Ineligible Due to Noncompliant Background Checks)

If the risk evaluation packet is complete, the CBCU staff determines who issues the risk evaluation decision according to 10425 Determining Which CBCU Staff Issues the Risk Evaluation Decision.

Staff refer to the CBCU Resource Guide, available on CCR SharePoint site, for additional details.

See:

10424 Documenting the Risk Evaluation Request
10432 Time Frame for Making a Risk Evaluation Decision

26 TAC Sections 745.681, 745.683, 745.685, 745.687

10421 Information Required for All Risk Evaluations

February 2021

For all risk evaluations, CBCU staff determine if the subject requesting a risk evaluation submitted the following information to CBCU:

a. A completed Form 2974 Request for Risk Evaluation Based on Past Criminal History or Central Registry Findings, which requires a detailed, signed statement from the subject regarding the nature and seriousness of the crime or abuse or neglect finding, including:
    - the age of the subject at the time of the crime or the abuse or neglect finding;
    - the circumstances that led to the arrest(s) or finding(s);
    - who else was involved;
    - whether anyone was injured;
    - the extent and nature of other arrests or abuse or neglect history;
    - what has changed for the subject since the arrest or finding; and
    - why the subject does not feel that he or she poses a risk to children in care.
b. The subject's work history over the past 10 years, including names of employers, dates of employment and positions held.
c. Evidence of rehabilitative effort.
d. At least three reference letters from individuals who are not related to the subject (such as professionals, employers, law enforcement) and who have knowledge about the subject's character and ability to work with children.
e. Any additional items requested by the CBCU manager or designee to assist with the risk evaluation decision.

26 TAC §§745.689; 745.691

10422 Additional Information Required for Criminal History Matches

February 2021

If the risk evaluation is for a criminal history match, the subject submits the following information:

a. Information required in 10421 Information Required for All Risk Evaluations.
b. A copy of the police report regarding the circumstances of the arrest.
c. An official copy of the final record of judicial finding or conviction (signed by the judge and file stamped, if available).
d. Age of the subject at the time the crime was committed.
e. The following information related to a probated sentence (including deferred adjudication community supervision), if applicable;
    - the terms and conditions of probation, including documentation of whether the subject successfully completed the terms and conditions of the probation;
    - proof that the subject paid all court costs, fees, restitution and fines; and
    - a statement from the subject's probation officer regarding the status of the subject's probation, if the subject is currently on probation.
f. The following information if the subject was incarcerated:
    - a copy of local, state or federal release order;
    - the date that the subject was released from incarceration; and
    - the terms and conditions of parole, if applicable.
g. A detailed, signed statement from the subject regarding the nature and seriousness of the crime including:
    - why the subject was arrested, indicted or charged with a crime;
    - where the subject was when arrested, indicted or charged with a crime;
    - who else was involved in the criminal incident;
    - whether anyone was injured;
    - the extent and nature of other arrests within the subject's past criminal history;
    - what has changed for this subject since the time of the arrest; and
    - why the subject does not feel that he or she poses a risk to children in care.

26 TAC §745.689

10423 Additional Documentation Required if the Person is Associated with a Foster or Adoptive Home

February 2021

If the subject requesting a risk evaluation is associated with a prospective or current foster or adoptive home, CBCU staff determine if the child-placing agency that submitted the background check submitted the following information to the CBCU:

a. signed Form 2405 Affidavit for Risk Evaluation by Child-Placing Agency, including a valid rationale from the child-placing agency's owner, executive director, administrator or some other similar position of authority explaining why the subject does not pose a risk to the health or safety of children;

b. the names and dates of birth of any foster or adoptive children who have been or are expected to be placed in the home (if known);
c. a description of the foster or adoptive parent's relationship to each child; and
d. a copy of the most recent home assessment or home screening, if one has been completed.

26 TAC §745.689

10424 Documenting the Risk Evaluation Request

Revision 23-4; Effective Nov. 30, 2023

Procedure

After receiving a risk evaluation request, in the *Risk Evaluation* section on the applicable background check results page in CLASS, CBCU staff do the following:

a. in the *Request Date* and *Due Date* fields, enter the applicable dates;
b. select the type of risk evaluation by checking the appropriate box(es);
c. review the request and any documentation received to determine if the risk evaluation packet is complete according to 10420 Processing Risk Evaluation Requests; and
d. in the *Overall Background Check Comments* section, document:
    - a summary of the documents received;
    - whether the packet is complete;
    - any contact with the background check subject or operation; and
    - the identity of the risk evaluation decision-maker according to 10425 Determining Which CBCU Staff Issues the Risk Evaluation Decision.

The risk evaluation decision-maker follows the applicable steps in 10430 Making a Risk Evaluation Decision and 10433 Documenting a Risk Evaluation Decision to complete the risk evaluation decision.

10425 Determining Which CBCU Staff Issues the Risk Evaluation Decision

Revision 23-4; Effective Nov. 30, 2023

Procedure

Either a CBCU manager (or designee) or the inspector processing the background check makes the risk evaluation decision.

A CBCU manager (or designee) makes the decision when:

- the decision is a denial (due to an incomplete risk evaluation packet or based on the level of risk to children);
- the subject's background check role is owner/ permit holder, licensed administrator, foster or adoptive parent, or director;
- the subject's abuse or neglect history includes any child fatality or near child fatality;
- a CBCU manager has not approved the CBCU inspector processing the risk evaluation packet to make independent risk evaluation decisions;
- the risk evaluation is a temporary risk evaluation; or
- the risk evaluation does not meet a scenario that a CBCU inspector is authorized to make according to the table below.

The CBCU inspector makes the decision when:

- a CBCU manager has approved the inspector to make independent risk evaluation decisions;
- the background check subject's role is staff/ employee, volunteer, frequent visitor, household member or contracted service provider; and
- the scenario is listed in the table below:

MSV Requiring the Risk Evaluation	Time Elapsed Since the Finding or Conviction
Single sustained Texas or single out-of-state abuse or neglect finding if there is no additional: • criminal history (regardless of the charge or disposition); and • abuse/neglect allegation(s) (regardless of the disposition of the allegation(s))	5 years or more
Single conviction for misdemeanor alcohol- or drug-related offense	5 years or more
Single conviction for class A misdemeanor Failure to Identify offense	Any length of time

MSV Requiring the Risk Evaluation	Time Elapsed Since the Finding or Conviction
Single conviction for a felony financial crime offense	5 years or more
• the background check subject has had a manager-approved risk evaluation at another other operation; • the previously approved decision was conditional with the only condition being the requirement to complete a background check for the subject at any operation, including operations under the same governing body; • the subject has the same or a similar role as in the approved risk evaluation; • the operation has no compliance history concerns; and • the subject does not have new criminal or abuse/neglect history.	Any length of time

A CBCU manager may approve a CBCU inspector to complete a risk evaluation decision other than as listed in the table when:

- the inspector has reviewed and discussed the decision with the manager;
- the manager has approved the inspector's decision; and
- the manager has added a summary of the approval to the *Overall Background Check Comments* section.

10430 Making a Risk Evaluation Decision

Revision 24-1; Effective Feb. 20, 2024

Procedure

The risk evaluation decision-maker reviews the risk evaluation request and decides if the background check subject is ineligible to be present, eligible to be present at the operation, or if conditions are needed to protect the health or safety of children at the operation that submitted the background check request.
The risk evaluation decision-maker sends an e-mail to the monitoring inspector and supervisor assigned to the operation for subjects with the following background check roles:

- director;
- owner or permit holder;
- adoptive parent in a home a CPA has approved for adoption;
- foster parent in a home a CPS has verified to provide foster care;
- foster or adoptive parent in a home a CPA has verified to provide foster care or approved for adoption;
- foster or adoptive household member in a verified home; or
- licensed administrator.

The email includes the following:

- the operation number, name of subject, role of subject and BGC ID;
- a statement that a risk evaluation was completed and if the risk evaluation decision is approved, denied or conditional;
- the subject's whether the subject's eligibility determination is eligible, eligible with conditions or ineligible; and
- a statement reminding staff to maintain the confidentiality of background check results. Results can be discussed with a CPA when the background check role is foster or adoptive parent, or household member.

Revising or Rescinding a Risk Evaluation Decision

If CBCU staff rescind or revise a risk evaluation, the risk evaluation decision-maker notifies his or her supervisor, the monitoring inspector assigned to the operation, and the monitoring inspector's supervisor.

References:

10420 Processing Risk Evaluation Requests
10510.41 Determination of Ineligible Due to Noncompliant Background Checks

26 TAC Section 745.695

10431 Factors to Consider When Making a Risk Evaluation Decision

Revision 23-4; Effective Nov. 30, 2023

When making a risk evaluation decision, the risk evaluation decision-maker considers the following factors:

a. the contents of the risk evaluation packet as outlined in 10421 Information Required for All Risk Evaluations, 10422 Additional Information Required for Criminal History Matches, and 10423 Additional Documentation Required if the Subject is Associated with a Foster or Adoptive Home;
b. whether the subject who requested the risk evaluation failed to submit any information;
c. the compliance history and regulatory status of the operation for the previous five years;
d. the subject's intended or current roles and responsibilities that were included in the operation's background check submission;
e. the length of time that has elapsed since the criminal conviction, child abuse or neglect finding, or crime for which the subject has been arrested, indicted or charged;
f. the nature and severity of the criminal conviction, child abuse or neglect finding, or crime for which the subject has been arrested, indicted or charged;
g. the subject's role in the criminal conviction, child abuse or neglect finding, or crime for which the subject has been arrested, indicted or charged;
h. whether there is a pattern of any type of crime or abuse or neglect;
i. work history, references and any evidence of rehabilitative effort over the past 10 years;
j. any federal requirements regarding criminal history and child abuse and neglect findings; and
k. any other relevant factor that enhances or mitigates the risk to the health or safety of children in the operation.

10432 Time Frame for Making a Risk Evaluation Decision

Revision 23-4; Effective Nov. 30, 2023

Procedure

CBCU staff refer to 10425 Determining Which CBCU Staff Issues the Risk Evaluation Decision to determine if a CBCU inspector or manager makes the risk evaluation decision.

The CBCU inspector provides the risk evaluation packet and summary to the manager or makes the risk evaluation decision within 10 business days of receiving the complete risk evaluation packet.

When the risk evaluation decision-maker is the CBCU manager, the inspector provides the following:

- the complete risk evaluation packet;
- the summary of the packet; and
- a decision recommendation.

The CBCU manager has 10 business days from receiving the risk evaluation packet and recommendation to complete the risk evaluation decision.

26 TAC Section 745.693

10433 Documenting a Risk Evaluation Decision

Revision 23-4; Effective Nov. 30, 2023

Procedure

After making a risk evaluation decision, the risk evaluation decision-maker does the following in the *Risk Evaluation* section on the applicable background check results page in CLASS:

a. In the *Decision Date* field, enter the date of the decision.
b. In the *Type of Risk Evaluation* field, verify the applicable background check type box(es) are checked.
c. In the *Risk to Children* field, select the appropriate selection indicated in the table below.
d. In the *Summary of Decision* text box, document the rationale and summary for the decision.
e. In the *Conditions* text box, enter any conditions placed on the subject's presence at the operation.
f. Select the *Save* button to finalize the decision.

After completing the above steps, CBCU staff complete and send appropriate notifications to the subject and operation.

The risk evaluation decision-maker completes the *Risk to Children* field based on the risk evaluation decision. CLASS calculates the background check eligibility based on the *Risk to Children* as outlined in the table below:

Risk Evaluation Decision	***Risk to Children* Field in *Risk Evaluation* Section of the Applicable Background Check Results Page**	***Background Check Eligibility* in *Operation Background Check History* section of *Background Check Results History* Page**
Approved	"No"	Eligible

Risk Evaluation Decision	***Risk to Children* Field in *Risk Evaluation* Section of the Applicable Background Check Results Page**	***Background Check Eligibility* in *Operation Background Check History* section of *Background Check Results History* Page**
Denied	"Yes"	Ineligible
Approved with Conditions	"Conditional"	Conditional

Staff refer to the CBCU Resource Guide, available on CCR SharePoint site, for additional details.

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10440 When a Risk Evaluation Expires

May 2021

An approved or conditionally approved risk evaluation only expires when:

a. the background check subject has been arrested, indicted or charged with another crime;
b. the background check subject has an additional criminal conviction or child abuse or neglect finding;
c. the subject's role at the operation, including the circumstances of the subject's contact with children, becomes different than when the CBCU approved the risk evaluation;
d. the subject becomes employed at a different operation than when the CBCU approved the risk evaluation; or
e. the CBCU amends or rescinds the risk evaluation in response to:
    - a request for a review of the risk evaluation decision; or
    - an operation not following conditions on a subject's presence at the operation.

If a risk evaluation expires due to new criminal or child abuse or neglect history, a different role at the operation, or employment at a different operation, a CBCU staff and manager review the new information and the risk evaluation decision to determine if:

- the subject's eligibility determination will become provisional and a new risk evaluation is needed;
- the risk evaluation will remain in place without changes;
- the risk evaluation conditions will be revised; or
- the subject is ineligible to be present at the operation.

26 TAC §745.697

See: 10441 Risk Evaluation Reconsideration for New and Updated Background Check Results

10441 Risk Evaluation Reconsideration for New or Updated Background Check Results

May 2021

Procedure

When CBCU staff receive new Central Registry or criminal history information for a subject who has an existing risk evaluation, CBCU staff consider whether to continue, revise or rescind the risk evaluation based on the new information.

Prior to finalizing the match determination, CBCU staff consult with a CBCU manager to make this decision.

See:

10211 Processing Central Registry Recheck Results
10330 Receiving New and Updated Criminal History Results
10331 Acting on New an Updated Criminal History Results

10441.1 Reconsideration of Risk Evaluation Due to New or Updated Criminal History Results

May 2021

Procedure

When processing new or updated criminal history results for a subject who has an existing risk evaluation, CBCU staff decide if the subject is ineligible to be present or whether changes to the risk evaluation are needed.

If CBCU staff determine that changes to the risk evaluation are needed, CBCU staff consult with a CBCU manager.

10441.2 Reconsideration of Risk Evaluation Due to New or Updated Central Registry Results

May 2021

Procedure

When CBCU receive new or updated Central Registry results for a subject who has an active risk evaluation, CLASS prompts CBCU staff to indicate if an existing risk evaluation will remain valid.

CBCU staff follow the procedures in the document *Job Aid: Risk Evaluation Reconsideration and Documentation for New and Updated Background Check Results*, available on the CCR SharePoint site, when CBCU staff document a risk evaluation reconsideration decision.

26 TAC §745.697

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10450 Risk Evaluation Predictions

Revision 24-4; Effective Nov. 13, 2024

A risk evaluation prediction provides guidance to indicate if the CBCU would likely approve a risk evaluation for a background check subject who has an unsustained Central Registry finding.

CBCU conducts a risk evaluation prediction when:

a. the subject has not exhausted or waived due process related to the Central Registry finding discussed in 10250 Response to Due Process Offers;
b. the finding has not resulted in a determination of immediate threat (DIT) discussed in 10231 Assessing Abuse or Neglect Results for Determination of Immediate Threat; and
c. the subject would be eligible to complete risk evaluation if the finding is sustained as discussed in 10410 When a Risk Evaluation is Required.

A risk evaluation prediction is completed when there is an exception to completing a temporary risk evaluation discussed in 10411 Temporary Risk Evaluation.

10451 Requesting CBCU Complete a Risk Evaluation Prediction

February 2021

10451.1 When Monitoring Staff May Request a Risk Evaluation Prediction

February 2021

CCR staff may request a risk evaluation prediction when determining whether to deny or revoke an operation's permit or an administrator's license and a CBCU manager and the requestor have agreed a temporary risk evaluation is not appropriate. The subject of the background check with the finding may be the applicant or permit holder or may have an association with an operation that would affect the permit or application. For example, the subject could reside at the operation.

10451.2 When Legal Requests a Risk Evaluation Prediction

February 2021

An enforcement attorney for Child Care Licensing may also request a risk evaluation prediction to resolve a due process case. The subject may be willing to accept a neglect finding or an abuse finding that is eligible for a risk evaluation if the CBCU indicates that the subject may still be present at the operation either without conditions or with conditions included in the prediction decision.

10451.3 How to Request a Risk Evaluation Prediction

February 2021

Procedure

To request a risk evaluation prediction, CCR staff or the enforcement attorney emails the following information to the manager of the CBCU inspector assigned to the operation:

- the name, Social Security number and date of birth of the subject with the unsustained finding;
- the operation's name and number;
- the subject's role and level of presence at the operation submitting the background check request, if available;
- a brief summary of the investigation and concerns, including:
  - the IMPACT investigation number;
  - whether the subject is currently present at the operation, if the finding was the result of a DFPS Child Care Investigation (CCI) investigation;
  - whether a safety plan was implemented;
  - whether the subject's presence at the operation was precluded pending the completion of DFPS' CCI investigation; and
  - whether the subject's contact with the victim(s) was restricted during a DFPS Child Protective Investigation (CPI) investigation;
- the status of due process;
- any information that DFPS or HHSC has communicated to the subject;
- additional information requested by the CBCU manager; and
- any additional information the CCR staff or enforcement attorney believes is relevant to the prediction.

10452 Processing Requests for Risk Evaluation Predictions

February 2021

Once the CBCU manager has the information in 10451.3 How to Request a Risk Evaluation Prediction, the manager does the following:

a. makes a prediction decision of denial, approval, or approval with conditions;
b. communicates the risk evaluation prediction decision to the person who requested the prediction; and
c. documents the risk evaluation prediction and communication of the decision in the *Overall Background Check Comments* section on the *Central Registry Results* page in CLASS for the subject's current or most recent background check, including any conditions that would be recommended.

10452.1 Factors to Consider When Making a Risk Evaluation Prediction

February 2021

When making a risk evaluation prediction, the CBCU manager considers the reasons for the request, any additional information the requestor believes is relevant and the risk evaluation considerations listed in 10431 Factors to Consider When Making a Risk Evaluation Decision.

10453 Monitoring Staff Responsibilities After Receiving a Risk Evaluation Prediction Decision

February 2021

After receiving a risk evaluation prediction decision from the CBCU, CCR monitoring staff:

- work with an enforcement attorney for Child Care Licensing to determine:
  - if the operation permit or administrator's license will be denied or revoked; and
  - what information can be released to the permit applicant or the administrator license holder regarding the reason for the denial or revocation; and
- notify the CBCU manager of the decision to issue, deny or revoke the permit or administrator's license (See: 7633 Notice of Decision to Deny, Revoke or Suspend an Application or Permit and 9700 Remedial Action on an Administrator License).

10500, Eligibility Determinations, Employment Status and Notifications

February 2021

Eligibility Determinations

After processing background check results from all the required background check types requested for a background check subject, CBCU staff make an eligibility determination based on the results received. The eligibility determination indicates if the subject can be present at the operation and whether any conditions have been applied to protect the health or safety of children in care at the operation.

Employment Status

A subject's employment status of "active," "inactive" or "pending" is determined by processing the background check types, the eligibility determination and whether the subject's role has been inactivated.

Notifications

CBCU staff send background check notification to provide:

a. an eligibility determination due to:
   - receipt of results from the requested background check types (See: 10510 Types of Eligibility Determinations);
   - updates to existing results (See: 10331 Acting on New and Updated Criminal History Results); and
   - closure of noncompliant background checks (See: 10510.41 Determination of Ineligible Due to Noncompliant Background Checks);

b. reminders to assist operations in maintaining background check compliance (See: 10534 Other Background Check Notifications Sent to the Operation); and
c. instructions to the background check subject outlining the actions needed to complete a background check (See: 10541 Other Background Check Notifications Sent to the Subject of the Background Check).

10510 Types of Eligibility Determinations

April 2022

An eligibility determination addresses whether a subject is eligible to be present at a child care operation based on:

- the status of the subject's background check;
- the background check types processed; and
- whether conditions apply to the subject's presence.

The eligibility determination is calculated in CLASS based on the processing of the results received.

There are five possible eligibility determinations for a background check submission:

Eligibility Determination	Presence at the Operation	Valid Period
Pending	The subject may not be present at the operation.	This determination is valid at the beginning of the background check. As the background check types are processed, the eligibility determination is updated.
Eligible	The subject may be present at the operation.	This determination is valid until the next renewal period (two or five years) unless CBCU receives new or additional information that changes the determination.
Ineligible	The subject may not be present at the operation.	This determination is permanent unless CBCU receives new or updated information that changes the determination.
Provisional	The subject may be present at the operation but under specific, standard conditions the CBCU placed on the subject's presence.	This determination is time limited and will be updated to one of the other eligibility determinations once the background check has been completed (for example, out-of-state checks have been completed, a risk evaluation decision has been made or due process of a Central Registry finding has been resolved).
Eligible with Conditions	The subject may be present at the operation, under specific conditions. The conditions CBCU places on the subject's presence are made with a risk evaluation decision.	This determination is valid until the next renewal period (two or five years), unless the CBCU receives new or additional information that changes the determination.

The following are the standard conditions for the eligibility determination of provisional:

1. This person must never be left in charge of the operation.
2. This person must never be left alone with a child or group of children in the care of or enrolled in your operation, including during transportation.
3. This person may only be supervised by a person with no conditions regarding his or her presence at the operation.
4. This person must never be allowed to transport children in the care of or enrolled in your operation during hours of operation.
5. This person must never be responsible for financial transactions at your operation.
6. This person must never be allowed to administer medication to children in the care of your operation, except for in a medical emergency to prevent the death or serious bodily injury of a child.
7. This person must never be allowed to supervise caregivers or volunteers or employees who have access to children.

26 TAC §§745.601; 745.629; 745.635

10510.1 Background Check Type Eligibility

February 2021

CLASS calculates eligibility for a particular background check type based on the selections made by CBCU staff processing the background check type. The background check type eligibility is located in the *BGC Type Eligibility* column in the *Background Check Results* section of the subject's *Background Check Results History* page in CLASS.

10510.2 Overall Background Check Eligibility

February 2021

CLASS calculates a subject's overall background check eligibility based on the status of requested background check types and the processing of results received for each type. CLASS determines overall background check eligibility based on the most restrictive eligibility for the background check types requested. A subject's eligibility:

- identifies the subject's ability to be present at the operation and any conditions placed on the subject's presence;
- is provided to the operation and the subject through the applicable background check notifications; and
- is located:
  - in the *Eligibility* column in the *Operation Background Check History* section of the *Background Check Results* History page in CLASS; and
  - on the *Background Check History* page of the provider's Child Care Licensing account.

26 TAC §745.629

10510.3 Eligibility Determinations Which Include Conditions

Revision 24-1; Effective Feb. 20, 2024

Under certain circumstances when a subject is eligible to be present at the operation, CBCU staff place conditions on the subject's presence to protect the health or safety of children. CBCU staff place conditions on a subject's presence when:

- a risk evaluation is approved with conditions;
- a background check result includes a minimum standard violation that is relevant to a condition or restriction already placed on the subject's presence at the operation; or
- any of the following is pending:
  - the subject's out-of-state criminal history check or out-of-state child abuse or neglect registry check;
  - the outcome of a risk evaluation for eligible criminal conviction(s), child abuse and neglect finding(s) or crime(s) for which the subject has been arrested or charged; or
  - receipt of requested court documentation for a crime that:
    - is eligible for a risk evaluation; and
    - would allow the subject to be present at the operation pending the outcome of a risk evaluation.

The operation must comply with conditions placed on the subject's presence. If the operation does not comply with conditions, CCR may amend the conditions, rescind a risk evaluation decision if applicable, or take enforcement action.

26 TAC Sections 745.631 and 745.637

References:

7400 Probation
7500 Administrative Penalties

10430 Making a Risk Evaluation Decision
10510 Types of Eligibility Determinations

10510.4 Determinations of Ineligible

February 2021

The subject and the operation receive an "ineligible" determination when:

a. a background check result indicates the subject is ineligible to be present; or
b. the subject fails to complete all background check types timely.

After an operation is notified of an "ineligible" determination, the operation must:

a. immediately remove the subject from the operation or otherwise discontinue the subject's affiliation with the operation; and
b. inactivate the subject within seven days of the subject no longer being affiliated with the operation.

26 TAC §745.651

10510.41 Determination of Ineligible Due to Noncompliant Background Checks

Revision 23-4; Effective Nov. 30, 2023

A subject has 45 days from the date the background check request is submitted to complete all background check types and provide any additional information requested by CBCU. CBCU staff close a noncompliant background check no earlier than 45 days from the date of the background check submission. A subject's eligibility determination becomes ineligible when CBCU staff close the background check as noncompliant. CBCU staff may extend the due date to allow completion of out-of-state checks, if appropriate.

Procedure

A background check becomes overdue when the background check subject does not:

- complete all background check types;
- provide required court documents; or
- respond to a notification requiring risk evaluation.

When closing a background check, CBCU staff:

a. document the reason for the closure;
b. update applicable fields on the background check results page; and
c. inactivate the subject at the operation, if needed.

After completing the above steps, CBCU staff complete and send appropriate notifications to the subject and operation.

Staff refer to the *CBCU Resource Guide*, available on CCR SharePoint site, for additional details.

See: 10430 Making a Risk Evaluation Decision.

26 TAC Sections 745.627, 745.639

10520 Employment Status

February 2021

CBCU staff determine employment status in CLASS based on the processing of background check types, the eligibility determination and whether the subject has been inactivated.

The chart below lists the different employment statuses and indicates whether the subject may be present at the operation:

Employment Status	Description	May the Subject be Present?
Pending	This employment status applies to a subject: • for whom CBCU staff has not yet made an eligibility determination; or	No

Employment Status	Description	May the Subject be Present?
	• whom CBCU staff has determined to be ineligible to be present at the operation, but the operation has not yet inactivated the subject on the *Background Check History* page of the operation's Child Care Licensing account page.	
Active	This employment status applies to a subject: • who is associated with the operation; and • whom CBCU staff has determined to be eligible to be present at the operation, either with or without conditions.	Yes, and the operation must comply with any conditions that are placed on the subject's presence. (See: 10510 Types of Eligibility Determinations)
Inactive	This employment status applies to a subject whom: • the operation has inactivated on the *Background Check History* page of the operation's Child Care Licensing account; or • CBCU staff has determined to be ineligible because the subject did not complete the background check timely and CBCU staff has closed the background check.	No

See:

10510.41 Determination of Ineligible Due to Noncompliant Background Checks
10720 Inactivating a Subject's Role or Employment

10530 Background Check Notifications

Revision 24-1; Effective Feb. 20, 2024

The chart below outlines the types of notifications CBCU staff send to the subject of the background check and to the operation:

Notification	Sent to
Background check results	• subject of the background check; and • the Child Placing Agency, for foster or adoptive parents and household members only
Actions the subject must take to complete background check types	Subject of the background check
Closure of incomplete background checks	Subject of the background check and the operation
Actions the operation must take to maintain certain aspects of background check compliance	The operation

Staff refer to the *CBCU Resource Guide*, available on CCR SharePoint site, for more details.

References:

10533 Background Check Notifications Sent to the Operation
10534 Other Background Check Notifications Sent to the Operation
10540 Background Check Notifications Sent to the Subject of the Background Check
10541 Other Background Check Notifications Sent to the Subject of the Background Check

10531 Types of Background Check Notifications

Revision 24-1; Effective Feb. 20, 2024

A notification is created one of two ways:

- automatically by CLASS when certain conditions are met; or
- manually by CBCU staff using a template to create the notification.

All notifications for the subject can be viewed, sent or resent from the subject's *Notification History* page in CLASS. Copies of all notifications created for the operation are stored in the *Forms and Letters* page in CLASS.

Manual Notifications

CBCU staff create manual notifications using templates in CLASS. Manual notifications communicate specific background check information to the subject, the operation or another authorized recipient.

The following table describes each of manual notifications:

Notification Title	Recipient	Purpose
Background Check Match Letter – 2853, 2891	Operation	Communicates a subject's background check results to a child placing agency when the requested subject's role is: • foster/adoptive parent; • foster/adoptive household member; • adoptive parent; or • foster parent.
Risk Evaluation Decision to Operation – Conditional	Operation	Communicates the risk evaluation decision to the operation when approved with conditions.
Match Letter - Subject	Subject	Communicates a subject's background check results to the subject.
Central Registry Match Letter to Perp	Subject	Offers due process to a subject for any unsustained Central Registry findings that result from a DFPS CPI or HHS Provider Investigation.
Risk Evaluation Decision to Subject - Conditional/Denied	Subject	Communicates the risk evaluation decision to the subject.
HHSC Letterhead	Operation, Subject or Other Person	Communicates any unique background check information when a template is not available.

System-Generated Notifications

CLASS creates and sends system-generated notifications to communicate background check status information to the subject and operation and to remind the operation or subject of any other required actions to complete. The type of notification generated depends on the information communicated.

The following table describes each of the system-generated notifications:

Notification Title	Recipient	Purpose
Employment Eligibility Notification	Operation	Notifies the operation that the subject is eligible to be associated with the operation in the requested role.
Employment Ineligibility Notification	Operation	Notifies the operation that the subject is ineligible to be associated with the operation in the requested role. Includes a notice of the requirement to inactivate the subject.
Provisional Notification	Operation	Notifies the operation that the subject is eligible to be associated with the operation in the requested role on a provisional basis with standard provisional eligibility conditions.
Employee List Validation	Operation	Notifies the operation to validate its employee list within 30 days of receiving the notification.
Background Check Renewal Due	Operation	Notifies the operation that a background check renewal is due in 30 days, per 26 TAC 745.621.
Employment Eligibility Notification	Subject	Notifies the subject that he or she is eligible to be associated with the operation in the requested role.
Provisional Notification	Subject	Notifies the subject that he or she is eligible to be associated with the operation in the requested role on a provisional basis with standard provisional eligibility conditions.
Background Checks Required Notification	Subject	Communicates information and instructions about the completion of a fingerprint check, Out-of-State Child Abuse and Neglect Registry or Out-of-State Criminal History check.
15-day Notification	Subject	Reminds the subject of actions that he or she must take to complete background check types listed in the Background Checks Required Notification.
Fingerprint Rejection Notification	Subject	Notifies the subject of a rejected fingerprint received and actions needed to resolve the fingerprint check.

References:

10510 Types of Eligibility Determinations
10720 Inactivating a Subject's Role or Employment

10730 Validating the Employee List for an Operation

26 TAC Sections 745.621; 745.629; 745.651

10532 How to Send Background Check Notifications

February 2021

Notifications are sent via email. If the intended recipient of the notification does not have an email address on file, CBCU staff obtain an email address or send the notification via USPS mail.

10532.1 Time Frame for Sending the Background Check Determination

February 2021

After receiving the results of a background check, CBCU staff send the operation and the subject of the background check a written determination of the background check as soon as possible but no later than 45 days from the date the operation submitted the background check request.

26 TAC §745.627

10533 Background Check Notifications Sent to the Operation

February 2021

CBCU staff send a notification letter to the operation that includes:

a. a determination of whether the subject is ”Eligible,” ”Ineligible,” ”Eligible with Conditions” or ”Provisionally Eligible” to be present at the operation (See: 10510 Types of Eligibility Determinations);
b. any conditions CBCU staff place on the subject’s presence at the operation; and
c. a list of each additional operation that has submitted a background check request for the subject and when the operation submitted the request.

If the operation does not comply with the conditions placed on the subject, CCR may amend the conditions, rescind the risk evaluation decision or recommend or impose an enforcement action.

26 TAC §§745.633; 745.637

10533.1 Additional Information Sent to a Child-Placing Agency

February 2021

When CBCU staff is sending information to a child-placing agency because the subject is associated with a current or prospective foster or adoptive home, the letter must include the following additional information:

a. the types of background checks conducted;
b. any criminal history obtained;
c. any sustained Central Registry findings;
d. any Central Registry finding that is not sustained and the subject’s eligibility determination is “ineligible” (See: 10231 Assessing the Risk of Central Registry Matches for Determination of Immediate Threat);
e. any out-of-state abuse or neglect findings;
f. whether the subject is eligible to request a risk evaluation; and
g. if a subject is eligible to request a risk evaluation, whether the subject may be present at the operation pending the outcome of the risk evaluation.

If the operation does not comply with the conditions placed on the subject’s presence, CCR may amend the conditions, rescind the risk evaluation decision or recommend or impose an enforcement action.

Criminal History that May Not Be Shared

CCR staff must not share with the subject or a child-placing agency information about criminal matches with a disposition of Order of Nondisclosure or Expunged Record because they are not convictions and, therefore, are not minimum standards violations. To ensure the information is not shared, CBCU staff delete the row containing the result from the *Results* section on the applicable criminal history background check results page in CLASS. If it is the only result received, CBCU staff also change the “Match” to “Cleared.”

26 TAC §745.633

10533.2 Background Checks Submitted Prior to January 13, 2019

February 2021

Prior to January 13, 2019, background check results were communicated through match letters and emails for each background check type; these results did not communicate an overall background check result. These letters and emails are considered valid notifications until the background check renewal date. For background checks submitted prior to January 13, 2019, that are current, the operation must have results allowing the subject to be present, dated prior to January 13, 2019, for each background check type included in the background check submission.

10534 Other Background Check Notifications Sent to the Operation

February 2021

CBCU staff send the following notifications to the operation in order to assist the operation with maintaining compliance:

a. *Background Check Renewal Due Notice* – Sent 30 days before a subject's renewal check is due, if the subject is still active on the operation's Employee List.
b. *Employee List Validation Notice* – Sent 30 days before the operation's Employee List Validation is due.

These reminders are also posted on the operation's Child Care Licensing Account Message Board 30 days prior to the due date.

26 TAC §§745.621; 745.651

See:

10120 Background Check Requests
10730 Validating the Employee List for an Operation

10540 Background Check Notifications Sent to the Subject of the Background Check

February 2021

CBCU staff send the following types of information in notifications to the subject of the background check:

a. the types of background checks included;
b. any criminal history identified;
c. any sustained Central Registry finding identified;
d. any Central Registry finding that is not sustained;
e. if a Central Registry finding is not sustained, instructions on requesting a due process hearing to dispute the finding;
f. any out-of-state abuse or neglect history identified;
g. the determination of whether the subject may be present at the operation;
h. whether the subject may request a risk evaluation;
i. any conditions placed on the subject's presence at the operation;
j. any additional information needed by the CBCU to complete the background check and when the information is due; and
k. instructions on how to challenge the accuracy of the background check results and how to request a review of the background check determination.

26 TAC §745.639

10541 Other Background Check Notifications Sent to the Subject of the Background Check

February 2021

CLASS sends the following notifications to the background check subject to provide instructions for completing the background check process:

- *Background Checks Required Notification* – Notifies the subject to complete fingerprinting and out-of-state checks according to the background check submission.

- *Fingerprint Rejection Notification* – Notifies the subject that the FBI rejected the subject's fingerprint submission by the FBI and provides information about how to resolve the rejection.
- *15-Day Notification* – Notifies the subject that the subject's background check is not complete and of any additional action that is required.

10600, Background Check Reviews

February 2021

CBCU staff conduct background check reviews when the background check subject:

a. believes the results are inaccurate;
b. has new information that was not available at the time the CBCU made the determination; or
c. disagrees with the determination.

CBCU staff review the request and information provided and issue a decision within 30 days of receipt. CBCU staff may extend the 30 days for good cause.

CBCU staff conduct the following reviews when requested by the background check subject:

- Reviews of Background Check Results (See: 26 TAC §745.643);
- Reviews of Background Check Determinations (See: 26 TAC §745.645); and
- Reviews of Risk Evaluation Decisions (See: 26 TAC §745.699).

10610 Background Check Results Reviews

February 2021

Procedure

If a subject believes the background check results received are inaccurate or incomplete, the subject may request a Background Check Results Review. The subject contacts the CBCU staff who sent the background check determination notification. CBCU staff discuss the results and reasons for the determination and advise the subject on possible ways to resolve the disputed information, including contacting the agency that provided the results. This includes providing information for a result that was pending final disposition at the time of the background check determination.

The subject provides any documentation supporting resolution of incorrect or inaccurate results to the CBCU staff.

Based on the outcome of the review, CBCU staff document the following in the *Information Specific to this Result* section on the applicable *Background Check Results* page in CLASS:

- communication with the subject;
- a summary of the documentation received; and
- the decision, including if presence or conditions were changed.

If the review changed the results, CBCU staff do the following on the applicable *Background Check Results* page in CLASS:

1. Update the result, as needed in the Results section.
2. Select the *Preview Match Determination* button to verify that the *Match Determination and Can Be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct.
3. Select the *Finalize Match Determination* button to complete the eligibility determination.
4. Save the page by selecting the Save button.

After completing the above steps, CBCU staff send appropriate notifications to the subject and operation.

26 TAC §745.643

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10611 Eligibility Determination Reviews

February 2021

CBCU staff complete an Eligibility Determination Review if the background check subject disagrees with the determination and requests a review.

The subject must submit a request for the Eligibility Determination Review:

a. within 30 days of the determination or decision date; or
b. when the subject has new information that was not available at the time of the determination.

The subject's request must:

a. be in writing;
b. be sent to the CBCU staff who issued the determination by email, regular mail or fax to include:
    - the subject's name;
    - the date the CBCU issued the background check determination;
    - the reason the subject disagrees with the eligibility determination, if applicable; and
    - any new information that was not available at the time of the determination.

Providing New Information

If the subject has new information that was not available at the time of the determination, CBCU staff complete the Eligibility Determination Review according to 10611.1 Completing the Eligibility Determination Review.

26 TAC §745.645

10611.1 Completing the Eligibility Determination Review

February 2021

CBCU staff consider the following when conducting an Eligibility Determination Review:

a. any reason the subject disagrees with the background check determination;
b. any new information the subject provided; and
c. whether all background check rules in Chapter 745, Subchapter F were followed.

CBCU staff document the review and decision on the applicable *Background Check Results* page in CLASS in the *Information Specific to this Result* section:

- the request for the review;
- communication with the subject;
- a summary of the documentation received; and
- the decision, including if presence or conditions were changed.

If the review changed the results, CBCU staff also do the following on the applicable *Background Check Results* page in CLASS:

a. In the *Results* section, update the result as needed.
b. Select the *Preview Match Determination* button to verify the *Match Determination and Can Be Present* selections are correct. If the selections are incorrect, make corrections until the selections are correct;
c. Select the *Finalize Match Determination* button to complete the eligibility determination.
d. Save the page by selecting the *Save* button.

After completing the above steps, CBCU staff send appropriate notifications to the subject and operation.

See:

10510 Types of Eligibility Determinations
10531 Types of Background Check Notifications

10611.2 Review of the Eligibility Determination Review Conducted by the Director of CBCU

February 2021

If the subject disagrees with the results of the Eligibility Determination Review, the subject may request the CBCU director to complete a review of the Eligibility Determination Review. The review is completed by the CBCU director or a designee who was not previously involved in the background check determination or Eligibility Determination Review.

The result of the CBCU director's or designee's review is final.

26 TAC §745.645

10612 Risk Evaluation Decision Review by the CBCU Director

February 2021

When requested by the subject of the background check, the CBCU director, or an assigned designee, completes a Risk Evaluation Decision Review to review the accuracy of a risk evaluation decision. The result of the Risk Evaluation Decision Review is final.

The subject submits a request for the Risk Evaluation Decision Review:

a. in writing; and
b. to the CBCU staff who issued the determination or decision by email, mail or fax.

The subject's request must include:

a. the subject's name;
b. the date the CBCU issued the background check determination;
c. the reason the subject disagrees with the eligibility determination, if applicable; and
d. any new information that was not available at the time of the determination.

Procedure

CBCU staff forward requests for a Risk Evaluation Decision Review to the CBCU director.

26 TAC §745.699

10700, Monitoring Operations for Compliance with Background Check Requirements

February 2021

Procedure

During inspections and investigations, the CCR monitoring inspector determines if the operation is complying with all background check requirements, including:

a. Submitting background check requests for all persons required to have a background check according to the appropriate time frames;
b. Ensuring that persons who are present at the operation have an eligibility determination of "Eligible," "Eligible with Conditions" or "Provisionally Eligible with Conditions";
c. Adhering to conditions placed on a person's presence at an operation;
d. Inactivating a person's role or employment; and
e. Validating the operation's employee list.

10710 Evaluating an Operation's Compliance with Background Check Requirements

10711 Determining Whether the Operation Submitted All Required Checks

February 2021

When conducting application, initial and monitoring inspections, the CCR monitoring inspector asks the operation for a list of all persons at the operation who are required to have a background check (See: 10121 Persons for Whom Operations Must Submit Requests for Background Checks and 10122 Persons for Whom Operations Do Not Submit Requests for Background Checks). For child-placing agencies, this list must include any foster or adoptive parents who have been verified or approved since the last inspection, including household members ages 14 years and older.

The CCR monitoring inspector then compares this list with the *People List* in CLASS or CLASSMate.

During investigations, CCR monitoring inspectors compare principals and collaterals with the *People List*.

The purpose of these comparisons is to determine compliance with background check requirements, including whether the operation:

a. failed to submit any names timely (including renewal checks);
b. allowed anyone with a *Pending* employment status to be present at the operation unless the subject is present for the sole purpose of attending orientation or preservice training and does not have contact with children in care;
c. is complying with conditions placed on a subject's presence; and
d. has allowed anyone who is ineligible to be present at the operation.

See:

4140 Preparing for Inspections
4150 Conducting Inspections
6470 Reviewing Background Check records During Investigations
10120 Background Checks Requests
10121 Persons for Whom Operations Must Submit Requests for Background Checks
26 TAC Sections 745.621; 745.635; 745.641

10712 Evaluating for Conditions on a Subject's Presence

February 2021

When conducting an application, initial or monitoring inspection, the CCR monitoring inspector must evaluate each background check subject on the operation's *People List* in CLASS or CLASSMate that has conditions using the *Conditions* indicator (indicated by a 'Yes' in the *Conditions*? column for the subject).

For each subject with conditions, the CCR monitoring inspector must view the specific conditions in CLASS or CLASSMate and evaluate whether the operation is adhering to those conditions.

CCR monitoring inspectors must follow the same process during an investigation inspection for principals and collaterals.

26 TAC §745.635(3)

10713 Determining if the Operation Validated the People List

February 2021

During initial and monitoring inspections, CCR monitoring inspectors evaluate whether operations have validated the current list of persons associated with the operation as required.

See: 10730 Validating the Employee List for an Operation

26 TAC §745.651

10714 Administrative Penalties for Background Check Violations

Revision 24-4; Effective Nov. 13, 2024

Failure to comply with background check requirements may result in CCE staff recommending an administrative penalty.

Reference

Preparing for Inspections, 4140
Conducting Inspections, 4150
Background Checks Requests, 10121
Persons for Whom Operations Must Submit Requests for Background Checks, 10121

26 TAC Sections 745.621, 745.635, and 745.641

10720 Inactivating a Subject's Role or Employment

February 2021

Operations must indicate when the background check subject is no longer associated with the operation. The operation must inactivate a subject's role or employment status within seven calendar days after the subject is no longer associated with the operation. This

includes when:

a. a subject leaves employment or a volunteer role;
b. a subject moves out of the operation;
c. a subject is no longer in a role that requires a background check;
d. a prospective employee or volunteer was not hired or affiliated with the operation; or
e. a subject is ineligible to be present at the operation.

If an operation has a Child Care Licensing account and is unable to access it, CBCU staff or the CCR monitoring inspector assigned to the operation may assist by inactivating the subject in CLASS.

26 TAC §745.651

10730 Validating the Employee List for an Operation

February 2021

Operations must validate the current list of persons associated with the operation:

- listed family homes: once every year through the operation's Child Care Licensing account or local CCR office;
- licensed and registered child care homes: once every year through the operation's Child Care Licensing account;
- small employer or shelter care operations: once every year through the operation's Child Care Licensing account or local CCR office; or
- all other operations: once every three months through the operation's Child Care Licensing account.

If an operation does not have access to its Child Care Licensing account and requests assistance from CCR, CBCU staff or the CCR monitoring inspector assigned to the operation may validate the operation's *People List* in CLASS.

26 TAC §745.651

10740 Handling Court Orders

February 2021

Procedure

A court order may be in place that:

a. requires a child to remain in a placement where a barred person lives or is present; or
b. waives one or more background check requirements, such as a fingerprint check or risk evaluation.

If a court order is in place, the following steps are taken:

1. If the CCR monitoring inspector assigned to the operation learns about the court order through the operation, the CCR inspector informs the CBCU inspector assigned to the operation, and vice versa.
2. If the child is in DFPS conservatorship, the CCR monitoring inspector contacts the caseworker or the caseworker's supervisor to verify that a court order allowing the person to be present at the operation is in effect.
3. The CBCU inspector documents the information in CLASS, as a comment in the *Overall Background Check Comments* section of the subject's *Background Check Results* History page.
4. The CCR monitoring inspector informs the operation that the operation must obtain a written court order as soon as possible and forward a copy to the CCR monitoring inspector and to the CBCU inspector. The CCR monitoring inspector also informs the operation that it must keep the written order on file while it is in effect and the barred person is living or present in the operation while children are in care.
5. Upon receiving a copy of the court order, the CCR monitoring inspector places the copy of the order in the operation's hard copy file.

10750 When to Deny or Revoke a Permit Based on Criminal History or Child Abuse or Neglect History

February 2021

CCR must deny or revoke a permit when:

- the applicant or permit holder has a criminal history or child abuse or neglect history that makes the subject ineligible to be present at the operation while children are in care; or

- the applicant's or permit holder's spouse or any other subject is ineligible to be present at an operation and the applicant or permit holder refuses to or is unable to remove the subject from the operation.

For more information about who is ineligible to be present at an operation while children are in care, see 10200 Central Registry and Out-of-State Abuse and Neglect Background Checks, 10300 Criminal History Background Checks, 10380 Sex Offender Registry Check Results, and 10510.41 Determinations of Ineligible.

Procedure

CCR denies or revokes a permit if criminal history or child abuse or neglect history exists that would make any of the following subjects ineligible to be present at an operation:

a. applicant or permit holder; or
b. household member, including a spouse, in the applicant's or permit holder's home whom the applicant or permit holder is either unable to or refuses to remove from the home.

A subject is ineligible to be present in an operation if:

a. the subject's background check request is closed because the subject did not:
    - complete any background check type; or
    - provide additional information; or
b. the subject has criminal history or child abuse or neglect history that:
    - is not eligible for a risk evaluation;
    - is eligible for a risk evaluation, but the background check subject does not request a risk evaluation; or
    - does not have an approved risk evaluation.

For more information regarding who is eligible for a risk evaluation, see 10410 When a Risk Evaluation is Required and 10411 Temporary Risk Evaluation. If the applicant or permit holder is a business entity, such as a corporation, there may be room for the subject with the criminal history or child abuse or neglect finding to leave the business entity without CCR revoking or denying the permit. However, if the subject with the criminal history or child abuse or neglect finding remains in charge of the business entity, then CCR takes adverse action against the permit. In such cases, the CCR monitoring inspector seeks advice from the Child Care Licensing Legal Enforcement Department.

Texas Human Resources Code §42.072(d),(f)

26 TAC §§745.631; 745.8605

See:

3711 Denial Because of Background Information
7621 Criteria for Imposing a Denial
7624 Criteria for Imposing a Revocation

11000, Heightened Monitoring

11100, Overview of Heightened Monitoring

October 2021

Heightened Monitoring (HM) is an increase in oversight and tracking of residential child care operations that:

- have a current contract with the Texas Department of Family and Protective Services (DFPS) or a Single Source Continuum Contractor (SSCC) to provide care to children in DFPS conservatorship; and
- have demonstrated a pattern of contract or minimum standard violations during at least three of the last five years compared to other operations of the same care-type and size.

HM is a multi-agency, multi-division program delivered by both HHSC and DFPS. There are three primary features to HM:

- HM Inspections/Visits;
- HM Plan; and
- HM FITS Meetings.

When an operation is on HM, it is referred to as an HM episode. There are three phases of an HM episode:

- Pre-Plan Development;
- Plan in Effect; and
- Post-Plan Monitoring.

Heightened Monitoring is not an enforcement action. An HM plan complements, not replaces, any enforcement actions that CCR recommends or imposes on an operation.

11110 Identifying and Notifying an Operation for Heightened Monitoring

October 2021

To be eligible for Heightened Monitoring (HM), the operation must:

- be a licensed residential child care operation; and
- have a current contract with DFPS or a Single Source Continuum Contractor (SSCC) to provide care to children in DFPS conservatorship.

Operations are placed on HM only after the DFPS Data and Systems Improvement (DSI) team completes data analysis of all residential child care operations caring for children in DFPS conservatorship and identifies that the operation has a pattern of violations that meets the criteria for HM that is outlined in the federal court order for M.D. v Abbott litigation.

Heightened Monitoring is not an enforcement action; therefore, CCR staff may not recommend that an operation be placed on Heightened Monitoring.

11111 Heightened Monitoring Start Date

October 2021

Heightened Monitoring starts on the date HHSC or DFPS notifies the operation that it has been placed on heightened monitoring.

11112 Notifying the Operation and CCR Staff of Heightened Monitoring

Revision 23-3; Effective Sept. 22, 2023

Procedure

No later than the business day after the initial FITS coordination meeting, the HM development team notifies the operation and inspector assigned to the operation that the operation is on HM and documents the notification as follows:

a. the HHSC or DFPS HM director contacts the operation's licensed administrator or chief executive officer to notify him or her that the operation is being placed on Heightened Monitoring;
b. after contacting the operation, the HHSC or DFPS HM director sends a written notification to the operation;
c. the lead HM program specialist emails notification that the operation is being placed on Heightened Monitoring to the:
    i. CCR inspector assigned to the operation;
    ii. CCR supervisor;
    iii. CCR program administrator; and
    iv. CCR regional director;
d. the lead HM program specialist uploads a copy of the written notification to CLASS Document Library from the applicable CLASS page; and
e. the lead HM program specialist documents a summary of the notification as a Chronology (type *Heightened Monitoring*) in CLASS.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

11120 Heightened Monitoring Team Roles and Responsibilities

Revision 23-3; Effective Sept. 22, 2023

Health and Human Services Commission (HHSC) and Department of Family and Protective Services (DFPS) work jointly to coordinate activities for Heightened Monitoring (HM). The HM team for each operation will consist of members from the following HHSC and DFPS divisions:

- HHSC Child Care Regulation Heightened Monitoring (CCR);
- DFPS Child Protective Services (CPS);
- DFPS Residential Child Care Contracts (RCC);

- DFPS Child Care Investigations (CCI); and
- DFPS Data and Systems Improvement (DSI).

The table below outlines the roles that comprise each HM development team and the duties that each role completes. Each agency or division determines which staff will be assigned to fill the roles on the operation's HM development team.

Role	Duties
CCR HM Inspector	a. Conducts weekly unannounced inspections at the operation in coordination with the DFPS HM visit team b. Monitors for compliance with the Heightened Monitoring (HM) Plan tasks c. Escalates concerns to the supervisor and the assigned RCCR inspector
CCR HM Supervisor	a. Supervises the HM inspectors b. Manages assignments of HM operations to appropriate HM inspector c. Manages assignments of weekly unannounced visits d. Ensures weekly visits are completed timely and accurately e. Escalates concerns to the CCR HM program specialist and CCR HM director f. Provides support to the HM managers and director
CCR HM Program Specialist	a. Completes data analysis for each operation placed on HM b. Participates in all Facility Intervention Team Staffings (FITS) meetings c. Tracks compliance with the HM plan tasks d. Reports on progress during future staffing meetings e. Recommends HHSC HM visit location for each operation assigned f. Uploads documents from CCR (Risk Analysis, QA report or CCR FITS analysis document) g. Communicates with CCR regarding plan compliance
CCR HM Manager	a. Supervisors the HM program specialist staff b. Manages assignments of HM operations to the HM program specialist
CCR HM Director	a. Participates in the HM FITS meetings b. Assists in the development of an operation's HM plan c. Serves as the HHSC CCR approver for all HM plans
DFPS HM Visit Team	Conducts weekly unannounced visits in coordination with the CCR HM inspector as follows: a. CPS HM safety specialists conduct unannounced visits at GROs and foster homes b. DFPS HM residential contract managers conduct weekly unannounced visits at GROs, CPAs and foster homes
DFPS Program Specialist	a. Participates in all FITS meetings b. Uploads documents submitted from the operation to CLASS Document Library from the applicable CLASS page. c. Uploads documents from their respective areas (Risk Analysis, QA report or CCR FITS analysis document) d. Communicates with their respective divisions regarding plan compliance
Lead HM Program Specialist *This can be an HHSC or DFPS program specialist.*	a. Schedules the initial coordination meeting b. Schedules ongoing FITS meetings c. Schedules plan development meeting d. Schedules the quarterly evaluation meeting e. Facilitates meetings f. Takes notes or identifies someone to take the notes g. Internal meeting notes will be documented in CLASS as an HM FITS Meeting. Provider meeting notes will be documented in a Chronology (type *Heightened Monitoring*) in CLASS. h. Uploads documents submitted from the operation to the operation folder on the DFPS HM SharePoint site under the HM development team link i. Drafts the HM plan and HM quarterly evaluation

Role	Duties
	j. Serves as primary point of contact for the operation while it is on HM
Lead HM Director *This can be an HHSC or DFPS director.*	a. Notifies the operation that it is on HM b. Is the primary point of contact for providers to contact with questions and concerns c. Participates in ongoing FITS meetings for operations when the director's division is the lead division d. Reviews and approves quarterly reviews e. Participates in quarterly reviews with operations, as necessary

11121 HM Inspector Responsibilities After Being Assigned an Operation

October 2021

Procedure

Upon assignment, the assigned HM inspector reviews and becomes familiar with:

a. the conditions, restrictions, services and capacity on the operation's license;
b. the operation's treatment model;
c. the operation's license;
d. the operation's treatment modalities; and
e. the characteristics of children accepted by the operation.

This information may be obtained by reviewing one or more of the following:

a. CLASS;
b. IMPACT;
c. Youth for Tomorrow's website (www.yft.org); and
d. Operation's website, if applicable.
e. The assigned HM Inspector may also contact the operation and speak with the provider.

11121.1 Steps When the HM Inspector Identifies Health or Safety Concerns

October 2021

If the HM inspector identifies a health or safety concern when assessing the operation's compliance history or when conducting a Heightened Monitoring inspection, the HM inspector:

- discusses these concerns with the operation; and
- consults with his or her supervisor for further guidance.

11130 Lead Heightened Monitoring Division Assignment

October 2021

Procedure

When an operation is placed on Heightened Monitoring (HM), the HM directors select a lead division. The lead HM director, lead HM manager, and lead HM program specialist are staff from the lead HM division.

11131 Lead Heightened Monitoring Division Responsibilities

October 2021

The lead Heightened Monitoring (HM) division is responsible for:

- coordinating and documenting subsequent Facility Intervention Team Staffings (FITS) meetings;
- gathering all required documents and filing them in the appropriate locations; and
- documenting the Heightened Monitoring plan and any subsequent updates/evaluations to the plan.

The lead HM division and lead HM program specialist will be identified prior to the initial FITS coordination meeting.

11200, Heightened Monitoring and Facility Intervention Team Staffings

October 2021

Facility Intervention Team Staffings (FITS) are multidisciplinary meetings between CCR and DFPS to discuss licensed operations that serve children and youth in DFPS conservatorship.

The following are the FITS meeting subtypes for operations on HM:

a. Initial FITS Coordination Meeting;
b. HM Plan Development Meeting;
c. HM Plan Approval Meeting;
d. Ongoing FITS Meetings;
e. Quarterly Plan Evaluation Meetings;
f. Annual HM Plan Evaluation Meeting; and
g. Final HM Review Meeting.

11210 Initial FITS Coordination Meeting

October 2021

Procedure

Within five days of identifying an operation for Heightened Monitoring (HM), the lead HM program specialist schedules an initial FITS coordination meeting with the HM directors and applicable HM staff made up of staff from, at least, CCR, DFPS CCI, DFPS Contracts, and CPS to discuss the operation. During the initial FITS coordination meeting, the attendees:

- review for the most recent five-year period all:
  - trends identified as a result of the retrospective analysis conducted by Data and Systems Improvement (DSI);
  - monitoring plans or corrective actions imposed by DFPS;
  - enforcement actions imposed by HHSC; and
  - risk analyses conducted by HHSC or DFPS.
- assign the members of the HM development team; and
- establish due dates for HM plan materials.

No later than the business day after the initial FITS coordination meeting, CCR HM staff notify, develop, send and document the notification that the operation is on HM according to 11112 Notifying the Operation and CCR Staff of Heightened Monitoring.

11211 Tasks of Initial FITS Coordination Meeting

October 2021

Procedure

Tasks associated with the initial FITS coordination meeting are as follows:

a. Review of requirements for operation analysis;
b. Establish HM plan due date;
c. Begin weekly unannounced visits/inspections; and
d. Send notifications to agency/commission staff as follows:
    1. CCR state office staff notify CCR inspectors and supervisors of HM status;
    2. DFPS CPS state office staff notify caseworkers, placement staff, regional leadership and the SSCC, if applicable, of HM status and placement approval requirements;
    3. DFPS HM CCI state office staff notify the CCI director and program administrators; and
    4. DFPS HM Contracts notifies the director for DFPS RCC.

11212 Heightened Monitoring Safety Plan

October 2021

Procedure

If the HM team identifies events that implicate an ongoing concern for the health and safety of children, the HM development team will develop a safety plan and DFPS will temporarily suspend placements until all concerns for children's health and safety have been

addressed.

The lead HM program specialist documents the safety plan by:

- documenting the safety plan in a HM Plan Update that is provided to the operation; and
- entering a Chronology in CLASS (type Heightened Monitoring).

11230 Quarterly Heightened Monitoring Plan Review Meetings

October 2021

Each quarter, the HM development team holds Quarterly HM Plan Review meetings to evaluate each operation on Heightened Monitoring. During each meeting, the HM team:

- Reviews overall compliance with the HM plan tasks;
- Assesses compliance data, including any new deficiencies; and
- Evaluates if tasks have been completed, need to be modified or if additional tasks need to be added.

After the meeting, the lead HM director or manager meets with the operation as outlined in 11232 Presenting the HM Quarterly Review Report with the Operation.

By the end of the next business day, each program specialist assigned to the operation enters its program's information from the quarterly meeting into the Quarterly HM Plan review FITS meeting in the operation's HM episode in CLASS.

11231 HM Plan Quarterly Review Report

October 2021

Procedure

Prior to the Quarterly HM Plan Review meeting, the HM development team drafts an HM Plan Quarterly Review report.

The HM development team presents for review and approval the draft HM Plan Quarterly Review report to the HM directors at the Quarterly HM Plan Evaluation meeting.

During the meeting, the HM directors and HM development team review and discuss the compliance status report and any modifications that need to be made to the plan.

Within seven days of the quarterly HM plan meeting:

- the HM directors approve the HM quarterly review report; and
- the lead HM program specialist finalizes the HM Quarterly Review report.

11232 Presenting the HM Quarterly Review Report with the Operation

October 2021

After the HM directors approve the HM Plan Quarterly Review report, the lead HM director or manager meets with the operation within seven days after approval to:

- Review the operation's status on HM; and
- Present the HM Plan Quarterly Review report.

The lead HM program specialist files a copy of the report on the DFPS HM SharePoint site.

11240 Annual Heightened Monitoring Plan Review

October 2021

Procedure

After an operation has been on Heightened Monitoring for at least one year, the HM development team holds a review meeting to:

- Assess the operation's overall progress; and
- Determine if the operation has met the criteria to move to HM Post Plan-Monitoring.

The criteria for moving from an HM Plan in Effect to HM Post-Plan Monitoring is successful completion the requirements of their HM plan.

11250 Final Heightened Monitoring Review Meeting

October 2021

Procedure

During the final HM review meeting, the HM development team completes a comprehensive review of the operation's performance while on HM and during Post Plan Monitoring to determine if the operation:

- has reduced risk to children; and
- increased quality of care to successfully operate without Heightened Monitoring from HHSC and DFPS.

11300, Heightened Monitoring Plan

Revision 23-1, Effective April 21, 2023

Every operation on Heightened Monitoring (HM) receives an HM plan that is customized to address the individual operation's patterns and trends identified through the HM plan development meetings and pre-plan inspections.

All HM plans contain:

a. the operation's HM start date and anticipated end date;
b. a listing of the trends and patterns identified through a five-year retrospective analysis of the operations' CCR licensing and residential contract history with a summary of those areas;
c. technical assistance that HHSC, DFPS or a third party will offer to the operation;
d. plan tasks and due dates; and
e. a listing of the HM team members.

The HM development team has 30 days from the *HM Start Date* in CLASS to develop and approve the HM plan.

The approved Plan in Effect HM plan is located on the *Heightened Monitoring Plan List* page in CLASS.

The HM phase from the date the operation is placed on HM until the date the HM plan is presented to the operation is called the Pre-Plan Development Phase.

11310 Point of Contact for Initiating the Heightened Monitoring Plan Meetings

October 2021

The lead HM program specialist initiates the plan development meetings.

11320 Heightened Monitoring Development Plan Meeting Preparation

October 2021

After the HM development team is established, the team members complete their respective assigned activities to gather the information necessary to assess the operation's performance history and identify areas of improvement.

Procedure

In preparation for the HM Development Plan meetings, the HM development team conducts an in-depth review by compiling and analyzing information obtained by:

a. Reviewing data to identify trends and patterns in the operation's history;
b. Reviewing interviews with operation staff and/or children completed during HM inspections/visits;
c. Contacting the operation's leadership for their input on areas of improvement or activities that are already in place to address issues identified as part of HM; and
d. Reviewing current or prior CCR enforcement action documentation, CCR risk analysis documentation or RCC corrective action plan documentation.

The date the operation is placed on Heightened Monitoring is the start date for the HM Pre-Plan Development Phase of the HM episode.

11330 Five-Year Review and Assessment of an Operation

October 2021

Procedure

At the HM Plan Development meetings, the team reviews and assesses an operation's last five years for the following:

a. Any trends and patterns identified as a result of the analysis conducted by the DSI;
b. Any trends and patterns identified as a result of the five-year retrospective analysis conducted by the CCR HM program specialist;
c. The operation's contract performance both with DFPS and the Single Source Continuum Contractors (SSCC), if applicable;
d. Any monitoring plans or corrective actions imposed by DFPS Residential Contracts or SSCC contracts;
e. Any enforcement actions imposed by HHSC; and
f. Any risk analyses conducted by HHSC or DFPS.

11340 Developing the Heightened Monitoring Plan

Revision 23-1, Effective April 21, 2023

The HM development team has 30 days from the *HM Start Date* in CLASS to:

- develop the HM plan;
- obtain final approval for the HM Plan; and
- share the HM plan with the operation.

Procedure

Using the information obtained from the in-depth review and the information reviewed and assessed at the HM Plan Development meetings, the HM team develops a plan that describes:

a. the pattern of CCR deficiencies and RCC contract violations that led to heightened monitoring;
b. any barriers to compliance identified during a review of previous CCR enforcement actions, CCR risk analyses, DFPS RCC corrective action plans or DFPS risk analyses;
c. any technical assistance the operation needs from CCR or DFPS (including additional information and guidance for improving program operations that the operation needs to obtain from a third party);
d. any ongoing concerns for the health and safety of children; and
e. the specific steps the operation must take to satisfy the plan.

The due dates for the tasks in the HM plan are staggered to allow time for the operation to implement the required changes.

11350 Heightened Monitoring Plan Approval

October 2021

After the HM plan is developed, the HM development team schedules a meeting to present the plan to the HM directors for review and approval.

11360 Heightened Monitoring Plan Implementation Plan Meeting

October 2021

Procedure

After the HM directors approve the HM plan, the CCR HM program specialist is responsible for:

- developing an inspection schedule throughout the period of the HM plan;
- identifying the location for inspections (for CPAs); and
- describing the intent behind each task in the HM plan.

The CCR HM program specialist presents the HM plan to the HM inspector and HM supervisor during an implementation plan meeting.

The internal HM implementation plan will include a review of:

a. The operation's trends and patterns;
b. The plan tasks;
c. What tasks the HM inspectors will review during the HM inspections; and
d. What deliverables the HM program specialists will review.

The CCR HM program specialist will provide the recommended inspection schedule to the assigned CCR HM supervisor quarterly.

11370 Heightened Monitoring Plan Presentation Meeting with the Operation

October 2021

Procedure

Within one business day of the HM plan's approval, the HM director or HM manager contacts the operation's leadership and schedules a meeting with the operation's:

- licensed administrator;
- executive director, if applicable;
- CEO; or
- any of the above.

During the meeting, HM staff provides a copy of the HM Plan to the operation and presents the five-year retrospective data analysis completed by the DFPS Division of System Improvement. If the operation requests any changes to the HM plan, those changes are discussed and agreed upon during the meeting and within one business day, the final plan is emailed to the operation.

The date the plan is provided to the operation is the start date for the HM Plan in Effect phase of the HM episode.

11371 Documenting the Heightened Monitoring Plan Presentation Meeting

October 2021

Procedure

No later than the next business day after the plan presentation meeting, the lead HM program specialist documents the following in a Chronology in CLASS (type *Heightened Monitoring*):

- HM presentation meeting date;
- HM plan start date; and
- HM plan tasks.

11380 Heightened Monitoring Plan Revisions

October 2021

Procedure

When the HM plan is revised to reflect changes in the operation's performance or to adjust a plan task, all HM directors must approve the changes, and the HM lead director and/or HM lead manager meets with the operation to present the changes.

The lead HM program specialist documents a summary of the HM plan revisions in a Chronology in CLASS (type *Heightened Monitoring*).

11381 Revisions When an Operation Requests an Extension on a Plan Task

October 2021

Procedure

If an operation requests an extension on a plan task due date, the lead HM program specialist consults with the HM development team. If the team agrees to extending the due date, the lead HM program specialist modifies the task due date and documents the modified due date in:

- a Chronology in CLASS (type Heightened Monitoring); and
- written correspondence to the operation.

Updating a due date is not considered a plan update and does not require HM director approval.

11400, Heightened Monitoring Inspections and Visits

October 2021

Weekly Heightened Monitoring (HM) inspections and visits begin the week the operation is notified that it is on HM.

For child-placing agencies (CPAs) on heightened monitoring, inspections/visits are conducted at the CPA's main location, branch location and foster homes verified by the CPA.

The location of each weekly HM inspection will alternate between CPA offices and foster homes, with a maximum of one foster home inspection per month (unless an exception is granted by the CCR HM director).

11410 How CCR and DFPS Split Heightened Monitoring Inspection/Visit Workload

October 2021

CCR and DFPS share responsibility for conducting weekly unannounced inspections/visits to each operation on Heightened Monitoring (CCR conducts inspections and DFPS conducts visits).

CCR and DFPS Residential Contracts rotate inspections/visits every other week. This rotation continues throughout the operation's time on HM.

Each HM division determines which methods are appropriate to use during each unannounced, weekly visit to properly assess and evaluate the divisions' assigned tasks.

11420 Types of Heightened Monitoring Inspections/Visits

Revision 23-1, Effective April 21, 2023

There are three categories of Heightened Monitoring (HM) inspections conducted during HM episodes:

- Pre-Plan HM Inspections – inspections completed during the 30-day period between HM notification and HM plan finalization
- Recurring HM Inspections – weekly inspections completed after HM plan approval that are focused on HM plan tasks and the areas that led to HM
- Post-Plan HM Inspections – inspections completed during the first three months release from the HM plan

11421 Pre-Plan Heightened Monitoring Inspections

Revision 23-1, Effective April 21, 2023

There is a 30-day period between the HM start date and HM plan finalization. During this time, referred to as the Pre-Plan Development Phase of the HM episode, HM inspectors complete one to two inspections at the operation. These are referred to as pre-plan inspections.

The purpose of the pre-plan inspections is to:

- introduce the operation to HM;
- support the HM team's development of the HM plan; and
- identify areas in need of improvement.

CCR HM staff consider the following questions when conducting the pre-plan inspections:

1. What is working well?
2. What is not working well?
3. What changes would the operation like to see and what ideas have they considered for making those changes?

The HM Inspector shares and discusses the CLASS Compliance History Report with the operation during the first CCR HM inspection.

When possible, the Lead CCR HM Program Specialist will join the HM inspector during an unannounced inspection to review the CCR Initial Evaluation and Retrospective Analysis. If the Lead CCR HM Program Specialist is unable to join the HM inspector during an unannounced inspection, the Lead CCR HM Program Specialist may schedule a meeting with the provider or attend the next unannounced inspection with the HM inspector.

Procedure

Preparing for the Pre-Plan Inspection

CCR HM staff prepare for a pre-plan inspection as outlined in 11440 Preparing for Heightened Monitoring Inspections.

Conducting the Pre-Plan Inspection

When conducting a pre-plan inspection, CCR HM staff meet with the licensed administrator or person in charge to introduce the operation to HM. The discussion includes:

- overview of HM and what to expect (only completed during the first pre-plan inspection);
- review of trends, patterns or areas of concern; and
- discussion of the operation's plan to address the trends, patterns or concerns.

In addition, during each pre-plan inspection, the HM inspector will:

- conduct interviews with direct delivery staff;
- engage the operation's leadership in the HM process; and
- conduct walk-throughs of the operation to assess physical plant and environment.

If there are notable changes in compliance, the HM inspector discusses with the licensed administrator or person in charge:

- strategies the operation has implemented since being placed on HM;
- what changes the operation has made since being placed on HM and when those changes were made; and
- if the operation is considering implementing any other changes and, if so, what changes and when.

Documenting the Pre-Plan Inspection

The HM inspector documents the results of the inspection as outlined in 11470 Documenting the Results of All Heightened Monitoring Inspections.

See:

4150 Conducting Inspections
4151 Operation Walk-Throughs

11422 Recurring Heightened Monitoring Inspections

October 2021

Once the HM plan is finalized and presented to the operation, recurring HM inspections begin. These weekly unannounced inspections focus on the HM plan tasks and the areas that led to HM.

See:

11450 Conducting Recurring Heightened Monitoring Inspections
11460 Citing Deficiencies During All Heightened Monitoring Inspections
11470 Documenting the Results of All Heightened Monitoring Inspections

11430 Selecting and Scheduling Heightened Monitoring Inspections at Foster Homes

October 2021

The HM inspector conducts unannounced inspections at foster homes that have active DFPS placements.

Procedure

Selecting Foster Homes for HM Inspections

The HM Agency Home report is generated monthly on the 1st of the month and located on the DFPS HM SharePoint site. The HM inspector uses the report to prioritize visits to homes verified by an operation on HM based on the following information for each home for the past two years:

a. number of total investigations;

b. number of RTBs;
c. deficiencies for standards weighted Medium, Medium-High, and High (excluding overturned); and
d. identifying if the home has not been inspected.

Prior to conducting an inspection at an agency home, the CCR HM supervisor reviews the HM Agency Home report, CLASS and IMPACT to select an agency home for inspection. The CCR HM supervisor selects the home based on priority and that meets the following criteria:

- CCR has not conducted a random-sampling inspection or HM inspection at that agency home in the current quarter;
- DFPS has not conducted an HM inspection at that agency home in the current quarter; and
- Children in DFPS conservatorship are placed at that agency home.

There may be some circumstances when CCR needs to inspect a foster home on the list with a lower priority before inspecting a foster home with a higher priority. In these circumstances, the HM supervisor requests an exception through the CCR HM director or designee.

Conducting HM Inspections at Foster Homes

The HM inspector conducts the unannounced inspection at a time when the children in DFPS conservatorship are expected to be at the residence.

11440 Preparing for Heightened Monitoring Inspections

October 2021

After an HM inspector is assigned to the operation and prior to inspecting the operation, the HM inspector:

- reviews the operation's record in CLASS;
- reviews the HM plan, if applicable; and
- may contact the assigned HM program specialist prior to the inspection and ask if there are any specific areas that should be explored during the inspection.

See:

11441 Reviewing an Operation's Record in CLASS When Preparing for Heightened Monitoring Inspections
11442 Reviewing the HM Plan When Preparing for Heightened Monitoring Inspections

11441 Reviewing an Operation's Record in CLASS When Preparing for Heightened Monitoring Inspections

October 2021

Procedure

When preparing for a Heightened Monitoring inspection, the HM inspector reviews the following in CLASS:

a. the operation's compliance history that the HM inspector has not previously reviewed;
b. all Chronologies with the type of Heightened Monitoring since the date the operation was placed on HM that the HM inspector has not previously reviewed;
c. current waivers or variances, if applicable;
d. HM safety plans, if applicable;
e. CCR and CCI safety plans, if applicable;
f. the operation's background check records, as documented in CLASS;
g. new investigations since the last HM inspection, if applicable;
h. results of following-up on deficiencies that the HM inspector has not previously reviewed;
i. results of monitoring inspections that the HM inspector has not previously reviewed; and
j. notes and documentation from all unannounced HM inspections and visits the HM inspector has not previously reviewed.

11442 Reviewing the HM Plan When Preparing for Heightened Monitoring Inspections

October 2021

Procedure

Prior to the weekly inspection, the HM inspector reviews each HM plan task to determine if it needs to be evaluated during the next inspection. The table below outlines when tasks are evaluated:

Type of Task	Evaluation Frequency
Reoccurring task	Weekly or monthly
Point in time task	Quarterly

If there is a task that requires the operation to maintain a log, the HM inspector reviews the log and documents what information was present and any feedback the HM inspector has.

If a task requires approval by the HM team, the HM inspector reviews CLASS for a task approval date. If an approval date is not listed in CLASS, the HM inspector contacts the CCR HM program specialist for an update. If a task is not approved by the date of the HM inspection, the HM Inspector does not evaluate that task for compliance.

11443 Additional Requirements for Preparing for Heightened Monitoring Inspections at Foster Homes

October 2021

Procedure

When preparing for a HM inspection at a foster home, the HM inspector:

- Reviews the current home screening for the foster home; and
- Reviews the full compliance history of the home in CLASS (this includes history associated with all CPAs that have verified the home).

To obtain a copy of the home screening, the HM inspector first:

- Searches the CCR Digital Storage SharePoint site for a copy of the home screening;
- asks the monitoring inspector assigned to the operation if he or she has a copy; or
- both.

If CCR does not have a copy of the home screening, the HM inspector requests a copy of the home screening from the operation after the inspection, when CLASS Form 2936 Child-Care Facility Inspection is sent to the operation.

11443.1 Creating a Draft CLASS Form 2936 for Heightened Monitoring Inspections at Foster Homes

October 2021

To draft CLASS Form 2936 Child-Care Facility Inspection for a Heightened Monitoring inspection at a foster home, the HM inspector follows the procedures in 4161.1 Creating a Draft CLASS Form 2936, with the following modifications:

a. Selects the inspection type of “Other”;
b. Does not select any subchapters in the Standards Evaluated section; and
c. Adds the following text to the Narrative box: “Heightened Monitoring Inspection conducted at the operation.”

11450 Conducting Recurring Heightened Monitoring Inspections

October 2021

11451 Conducting Recurring Heightened Monitoring Inspections at General Residential Operations

October 2021

Procedure

During each recurring HM inspection at a General Residential Operation (GRO), the HM inspector:

a. Reviews targeted staff and child files to inspect for compliance with the minimum standards listed on the HM plan.
b. Monitors the operation for compliance with the HM plan.
c. Evaluates the operation for compliance with background check rules.
d. Reviews compliance with the HM safety plan, if applicable, and collects documentation to support compliance with the HM safety plan.
e. Reviews Serious Incident Reports as outlined in 11454 Determining the Type and Number of Records to Review at a Heightened Monitoring Inspection of a GRO or CPA Office.
f. Conducts a walk-through.
g. Interviews a minimum of one staff member and asks the following questions:
    1. Is the person aware the operation is on HM?
    2. Is the person aware of the HM plan and plan tasks?
    3. What changes has he or she noticed since HM started?
h. Interviews children, if necessary.
i. Follows up on any previous HM deficiencies, if applicable.
j. Follows up on any previous action items, if applicable.
k. Discusses the progress of the HM plan with the operation's licensed administrator or person in charge.
l. Asks the licensed administrator or designee if they need clarification or guidance for any upcoming HM plan tasks.
m. Documents the inspection.
n. Conducts an exit interview.

The HM inspector notifies the HM supervisor or HM manager if concerns are observed.

If the operation is on a CCR enforcement action, the CCR monitoring inspector (not the HM inspector) monitors the operation for compliance with any POA action items or CA conditions.

See:

4140 Preparing for Inspections
4151 Operation Walk-Throughs
4160 Documenting the Results of an Inspection
4170 Conducting the Exit Conference
10700 Monitoring Operations for Compliance with Background Check Requirements
11454 Determining the Type and Number of Records to Review at a Heightened Monitoring Inspection of a GRO or CPA Office

11452 Conducting Recurring Heightened Monitoring Inspections at Child-Placing Agency Offices

October 2021

Procedure

During each recurring HM inspection at a CPA office, the HM inspector:

a. Reviews targeted staff, child and home files to inspect for compliance with the minimum standards listed on the HM plan.
b. Monitors the operation for compliance with the HM plan.
c. Evaluates the operation for compliance with background check rules.
d. Reviews compliance with the HM safety plan, if applicable, and collects documentation to support compliance with the HM safety plan.
e. Reviews Serious Incident Reports, as outlined in 11454 Determining the Type and Number of Records to Review at a Heightened Monitoring Inspection of a GRO or CPA Office.
f. Interviews a minimum of one staff member and asks the following questions:
    1. Is the staff member aware the operation is on HM?
    2. Is the staff member aware of the HM plan and plan tasks?
    3. What changes has the staff member noticed since HM started?
g. Follows up on any previous HM deficiencies, if applicable.
h. Follows up on any previous action items, if applicable.
i. Discusses the progress of the HM plan with the operation's licensed administrator or person in charge.
j. Asks the licensed administrator or designee if they need clarification or guidance for any upcoming HM plan tasks.
k. Documents the inspection.
l. Conducts an exit interview.

The HM inspector notifies the HM supervisor or HM manager if concerns are observed.

If the operation is on a CCR enforcement action, the CCR monitoring inspector (not the HM inspector) monitors the operation for compliance with any plan of action (POA) items or corrective action (CA) conditions.

See:

4140 Preparing for Inspections
4151 Operation Walk-Throughs
4160 Documenting the Results of an Inspection
4170 Conducting the Exit Conference
10700 Monitoring Operations for Compliance with Background Check Requirements
11454 Determining the Type and Number of Records to Review at a Heightened Monitoring Inspection of a GRO or CPA Office

11453 Conducting Recurring Heightened Monitoring Inspections at Foster Homes

October 2021

Procedure

Before conducting a recurring HM inspection at a foster home, the HM inspector prepares for the inspection following procedures in 11443 Additional Requirements for Preparing for HM Inspections at Foster Homes.

During the HM inspection at a foster home, the HM inspector:

a. Presents, on arrival, a valid HHSC identification card to the person in charge and explain the purpose of the HM inspection;
b. Completes the HM inspection using the HM Agency Home Inspection Guide located on the DFPS HM SharePoint site;
c. Reviews the service plans for children on file at the home;
d. Evaluates the operation for compliance with background check rules;
e. Interviews at least one foster parent/caregiver;
f. Interviews all children in foster care who are present during the inspection who are able and willing to talk;
g. Observes all non-verbal children in foster care who are present during the inspection;
h. Completes a walk-through of the home;
i. Points out immediate safety and health hazards to the foster parent or adult who is in charge during the inspection;
j. Documents the inspection on CLASS Form 2936 Child-Care Facility Inspection; and
k. Conducts an exit interview with the foster parent and has the foster parent sign CLASS Form 2936 Child-Care Facility Inspection.

The HM inspector notifies the HM supervisor or HM manager if concerns are observed.

CCR HM staff do not interview a foster parent's biological or adopted children during an HM inspection.

See:

4151 Operation Walk-Throughs
4160 Documenting the Results of an Inspection
4170 Conducting the Exit Conference
10700 Monitoring Operations for Compliance with Background Check Requirements

11454 Determining the Type and Number of Records to Review at a Recurring Heightened Monitoring Inspection of a GRO or CPA Office

October 2021

Procedure

HM inspectors review child, employee and foster home records only when there is a task on the HM plan that addresses improvement for the applicable type of record. For example, if the HM plan has a task for improvement of service plan records but does not have tasks associated with employee or foster home records, the HM inspector only reviews child service plan records during HM inspections.

HM inspectors also review serious incident report records at each inspection.

When reviewing records during a routine HM inspection, HM inspectors do not select records that were previously evaluated.

HM inspectors may review records previously selected for the purposes of following-up on a deficiency as outlined in 4300 Conducting a Follow-Up with an Operation.

Number of Child, Employee and Foster Home Records to Review

The number of child, employee and foster home records the HM inspector reviews is based upon:

- the operation's capacity, if the operation is a general residential operation; or
- the total number of verified foster homes and approved adoptive homes, if the operation is a child-placing agency.

The type(s) of records the HM inspector reviews at each inspection may rotate throughout each month. For example, if the HM plan has tasks for improvement of child and employee records, an inspector may review child records during the first inspection of the month and then employee records at the next inspection that month.

The table below outlines the minimum number of child records and employee records the HM inspector reviews each month:

Capacity or Number of Homes	Minimum Number of Each Type of Record to Review Per Month (Child and Employee Records)
20 or less	1
21-50	2
51 or more	3

The number of foster and adoptive home records the HM inspector reviews is based on the number of homes. The table below outlines the minimum number of foster and adoptive home records the HM inspector reviews each month:

Number of Homes	Minimum Number of Foster and Adoptive Home Records to Review Each Month
50 or fewer	1
51 or more	2

Number of Serious Incident Reports to Review

HM inspectors review up to 10 serious incident reports at each HM inspection that is conducted at a GRO or CPA. When selecting records, the HM inspector selects for review only serious incident reports created since the last inspection.

11460 Citing Deficiencies During All Heightened Monitoring Inspections

October 2021

HM staff cite deficiencies for all violations of high-weighted standards observed during an HM inspection.

When HM staff observe a violation associated with an HM plan task during a Heightened Monitoring inspection conducted ***before*** the task due date, the inspector:

- cites the operation if the violation is of a high-weighted standard; and
- considers if technical assistance (TA) is appropriate in lieu of a deficiency if the violation is for a standard that is not weighted high.

When HM staff observe a violation associated with an HM plan task during a Heightened Monitoring inspection conducted ***after*** the task due date, the inspector cites the operation.

In addition, HM staff always provide TA if:

- the violation is related to records;
- a deficiency for the same standard was cited previously; and
- the compliance date for the deficiency is in the future.

See:

4160 Documenting the Results of an Inspection
4161 Completing CLASS Form 2936 Child-Care Facility Inspection
4162 Finalizing Form 2936 and Synchronizing CLASSMate with CLASS

11470 Documenting the Results of All Heightened Monitoring Inspections

Revision 23-3; Effective Sept. 22, 2023

The HM inspector documents the results of all HM inspections:

- on CLASS Form 2936 Child-Care Facility Inspection;
- in a Chronology (type *Heightened Monitoring*) in CLASS; and

- uploads any photographs or digital records supporting CCR activities to CLASS Document Library from the applicable CLASS page.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

11471 Documenting the Results of Heightened Monitoring Inspections on CLASS Form 2936

Revision 23-1, Effective April 21, 2023

Procedure

In addition to following the policies and procedures in 4161 Completing CLASS Form 2936 Child-Care Facility Inspection to document the results of the inspection on the *Inspection Details* page in CLASS, the HM inspector:

- Selects *Other* for the *Inspection Type*; and
- Completes the *Heightened Monitoring* section.

See:

4160 Documenting the Results of an Inspection
4161 Completing CLASS Form 2936 Child-Care Facility Inspection
4162 Finalizing Form 2936 and Synchronizing CLASSMate with CLASS

Additional Requirements for HM Inspections at Foster Homes

Within three days of conducting the HM inspection, the HM inspector contacts the licensed administrator or person in charge at the CPA that verified the home to conduct an exit interview and send the CLASS Form 2936 Child-Care Facility Inspection to the CPA.

11472 Documenting All Heightened Monitoring Inspections in a CLASS Chronology

October 2021

All HM inspections must have a chronology entered in the CLASS system no later than the close of the business day after the HM inspection.

Documentation related to HM tasks must be specific so the HM team can determine if the operation is on the right track or if additional communication or clarification to the operation is needed.

Procedure

Documentation of HM Inspection at GRO or CPA Office

No later than close of business the business day after the HM inspection at a GRO or CPA office, the HM inspector documents the following information in a Chronology in CLASS (type *Heightened Monitoring*):

a. Staff's name, date and purpose of visit;
b. Each task reviewed;
c. Status of compliance for each task (If the task was not reviewed, then an entry explaining why the task was not reviewed must be included in the chronology.);
d. Type and name of each file reviewed;
e. Documentation regarding any technical assistance (TA) or deficiencies issued;
f. Description of walk-through, including observations made;
g. Exit interview, including the name of the person(s) who attended the exit interview; and
h. Next steps.

Documentation of HM Inspection at Foster Home

No later than close of business the business day after the HM inspection at a foster home, the HM inspector documents in the CLASS record of the CPA office that verified the foster home the following information in a Chronology in CLASS (type *Heightened*

Monitoring):

- A summary of the HM inspection, including an overview of any discussion that occurred with the operation;
- Observations made during the HM inspection; and
- A detailed description of any HM tasks assessed and information gathered during the HM inspection.

11473 Documenting the Results of All Heightened Monitoring Inspections

Revision 23-3; Effective Sept. 22, 2023

Procedure

In addition to documenting the results of the HM inspection in CLASS, staff do the following:

- update the Weekly Visit Tracker; and
- upload photographs and other documentation from the weekly visit to CLASS Document Library from the applicable CLASS page.

See:

1430 Documenting and Storing Photographs, Video, Audio, Scanned Documents and Other Digital Files
1431 Documenting Photographs, Video, Audio, Scanned Documents and Other Digital Files
1432 Storage of Photographs, Video, Audio, Scanned Documents and Other Digital Files in CLASS Document Library

11480 Following Up on Heightened Monitoring Deficiencies

Revision 23-1; Effective April 21, 2023

The HM inspector conducts follow-ups on HM deficiencies according to the policies and procedures in 4300 Conducting a Follow-Up With an Operation.

11500, Heightened Monitoring Post-Plan Monitoring

11510 Post-Plan Monitoring When Heightened Monitoring Has Been Successful

October 2021

An operation is released from the HM plan and progresses to HM Post-Plan Monitoring once the operation:

- Has been on an HM plan for one year;
- Satisfies the conditions of the HM plan;
- Has at least six months' successive HM inspections and visits indicating the operation is in compliance with the CCR statute, rules and/or minimum standards and DFPS contract requirements that led to Heightened Monitoring; and
- Has corrected deficiencies on any CCR statute, rule or minimum standard that is weighted medium-high or high.

Procedure

During the first three months following release from the HM plan, HHSC and DFPS coordinate to:

- Track any new intakes received by CCR and DFPS Child Care Investigations; and
- Complete a minimum of three unannounced inspections/visits.

If the HM development team determines that the operation continues to show progress during the first three months of Post-Plan Monitoring, CCR and DFPS will continue to track new intakes for an additional three months while discontinuing the unannounced inspections/visits.

If no serious concerns are identified during the three-month period, a final HM review meeting is held.

11600, Steps if Risk Identified During Heightened Monitoring

October 2021

Procedure

If risk is identified at the operation at any time during HM, the HM team determines the next steps to take. Next steps could include:

1. The HM team conducting additional inspections/visits;
2. The HM team having further discussions with the operation;
3. The HM team imposing a Heightened Monitoring Safety Plan;
4. DFPS suspending placements;
5. DFPS imposing fines;
6. HHSC suspending or revoking the operation's license; and
7. DFPS terminating the DFPS RCC contact.

11700, When Heightened Monitoring Has Not Been Successful

October 2021

Procedure

If the HM development team determines that an operation has not successfully met the conditions of the HM plan, CCR HM and DFPS HM staff continue to reduce risk and improve quality of care by:

- Continuing to complete weekly inspections/visits;
- Continuing to assess the operation's compliance with the HM plan; and
- Holding regular FITS staffings to determine if alternative actions should be taken.

CCRH Definitions of Terms

Revision 24-1; Effective Feb. 20, 2024

A

abuse and neglect investigation: See *DFPS Investigation*.

administrative review: An informal review that CCR conducts when certain individuals or operations dispute a specific CCR decision or action to determine whether the decision or action was appropriate under applicable rule or other law. See 26 TAC, Chapter 745, Subchapter M, Division 1, Administrative Reviews.

administrator: See *child care administrator*.

adjacent to the premises: See *nearby*.

adverse actions: A type of enforcement action that CCR may impose to enforce the requirements in rules, minimum standards and statute. This action may require the closure of an operation, the addition of permanent restrictions or conditions to a permit, or both. The specific types of adverse actions include: denial, adverse amendment, suspension, revocation and refusal to renew a permit. See 26 TAC, Chapter 745, Subchapter L, Division 3, Adverse Actions.

affinity: Related by marriage, as set forth in the Texas Government Code Section 573.024. See 26 TAC Section 745.21(2).

after-school hours: The hours before or after the customary school day.

agency: See *child-placing agency*.

agency foster home: See *CPA foster family home and CPA foster group home*.

ALJ: The administrative law judge appointed by the State Office of Administrative Hearings to conduct due process hearings. See *SOAH*.

applicant: An individual or entity that is applying for a permit.

APS: Adult Protective Services.

ARIF: Administrative review of investigation findings.

association: A combination of individuals and interests of some kind without a tax-exempt status from the IRS. Not organized under the *Texas Business Organizations Code*.

B

background checks: A search of a specific database to determine if an individual meets requirements in the Texas Administrative Code for being eligible to be present at a child care operation. HHSC will check the specific databases required in rule based on the role of the person at the operation that requests the overall check. Overall, there are several types of background checks that fall in one of these broad categories:

- criminal history;
- sex offender registry; and
- child abuse, neglect and exploitation history.

See 26 TAC, Chapter 745, Subchapter F, Division 2, Requesting Background Checks.

branch office: Space used by a child-placing agency (CPA) as an office for child placement staff and to house the master records for children, foster homes, and adoptive homes. A branch office is located at a different location than the main location for which the CPA is licensed or certified. See 26 TAC Section 749.301.

C

capacity: The maximum number of children that a permit holder may care for at one time. See 26 TAC Section 745.21(3).

caregiver: A person whose duties include the supervision, guidance and protection of a child or children. See 26 TAC Sections 745.21(4), 748.43(5) and 749.43(8).

CCI: Child Care Investigations. The DFPS division that investigates allegations of child abuse, neglect and exploitation in child care operations.

CCL: See *Child Care Regulation (CCR)*.

CCR: See *Child Care Regulation*.

center-based: A type of child day care in which the operation is licensed to care for seven or more children for less than 24 hours per day. A center-based operation is subject to the requirements set forth in 26 TAC Chapter 746 Minimum Standards for Child-Care Centers.

central administrative location: Personnel records or office space at a location other than the address on the face of the child day care permit.

Central Registry: A database of persons who have been found by DFPS or HHSC to have abused or neglected a child. Searches are done through IMPACT to determine whether a person is included in the Central Registry. See 40 TAC, Chapter 702, Subchapter C, Child Abuse and Neglect Central Registry.

Central Registry match: Finding a person listed in the Central Registry when conducting a search.

certificate: A type of permit issued by CCR to child care operations that are operated by the state.

certification: The type of permit that CCR issues to state-operated child care operations. See Texas Human Resources Code Section 42.052.

certificate of occupancy: A certificate of occupancy is a legal document that a building department or local government gives to a business to certify that a commercial building, office space or other working space complies with local codes. It also certifies that the building is fit for occupancy.

certified operation: A child care operation that is operated by a state agency that must comply with all regulations that apply to licensed operations of the same category. See Texas Human Resources Code Section 42.052.

child: A person under 18 years old. See Texas Human Resources Code Section 42.002(1).

child/caregiver ratio: The maximum number of children for whom one caregiver can be responsible. See 26 TAC Sections 744.1501; 746.1501; 747.1601; 748.1001; 749.2563.

child care administrator: A person who supervises and exercises direct control over a residential child care operation that has a permit to serve seven or more children, and who is responsible for the operation's program and personnel, regardless of whether he or she has an ownership interest in the operation or shares duties with anyone. See 26 TAC Sections 745.8901 and 748.535.

child care center: A child day care operation that is licensed to care for seven or more children for less than 24 hours per day, at a location other than the permit holder's home. A child care center is subject to the requirements set forth in 26 TAC Section 746.123(14).

child care home: See *registered child care home* and *licensed child care home*. A registered or licensed child care home is subject to the requirements set forth in 26 TAC, Section 747.123(14) Minimum Standards for Child Care Homes.

child care facility: An establishment subject to regulation by HHSC that provides assessment, care, training, education, custody, treatment, or supervision for a child who is not related by blood, marriage, or adoption to the owner or operator of the facility, for all or part of the 24-hour day, whether or not the establishment operates for profit or charges for its services. A child care facility includes the people, administration, governing body, activities on or off the premises, operations, buildings, grounds, equipment, furnishings and materials. This term does not include child-placing agencies and listed family homes. See 26 TAC Section 745.21(6).

Child Care Licensing (CCL or Licensing): See *Child Care Regulation (CCR)*.

Child Care Licensing Legal Enforcement Department: The Child Care Licensing section of the HHSC Legal Services Division, Enforcement Department.

Child Care Regulation (CCR): The department within HHSC Regulatory Services Division that regulates child day care and residential child care operations and other child care activities, as well as child care administrators and child-placing agency administrators.

Child Care Regulation (CCR) statute: Chapter 42 of the Human Resources Code.

child day care: The care, supervision, training, or education of an unrelated child or children under 14 years old for less than 24 hours per day that occurs in a place other than the child's own home. This definition includes child day care provided to school-age children before the customary school day, after the customary school day, or both. See 26 TAC Section 745.33.

child-placing agency (CPA): A person, including an organization, other than the parents of a child who plans for the placement of or places a child in a child care operation or adoptive home. A CPA is a licensed residential child care operation that may verify and regulate its own homes subject to HHSC regulation. See 26 TAC Sections 745.21(8) and 745.37.

child-placing agency administrator: A person who supervises and exercises direct control over a child-placing agency, and who is responsible for the operation's program and personnel, regardless of whether he or she has an ownership interest in the operation or shares duties with anyone. See 26 TAC Sections 745.8903 and 749.635.

children's records: Information a child care operation is required to maintain on the children in the operation's care.

child sexual aggression: Sexual behavior in which a child takes advantage of a younger or less powerful child through seduction, coercion or force in accordance with the following definitions:

- *Less powerful* is defined as differences in developmental level, physical stature, cognitive ability or social skills.
- *Seduction* is defined as the use of charm, manipulation, promises, gifts or flattery to induce a child to engage in sexual behavior.
- *Coercion* is defined as the exploitation of authority or the use of bribes, threats of force or intimidation to gain cooperation or compliance.
- *Force* is defined as the threat or use of physical or emotional harm toward a child or someone or something a child cares about.

children who are related to the caregiver: Children who are the children, grandchildren, siblings, great-grandchildren, first cousins, nieces or nephews of the caregiver, whether by affinity (marriage), consanguinity (blood) or as the result of a relationship created by court decree. See the Texas Government Code Sections 573.022 and 573.024, and 26 TAC Section 745.21(9).

CLASS: Child Care Licensing Automation Support System. A computer application used by CCR staff for record management.

CLASS designee: An employee assigned a specific task in a caseload belonging to another employee for a specified amount of time. Designee status in CLASS allows the designee to access cases and system functions assigned to the designating individual. Designees may be assigned tasks not routinely associated with their job position (for example, serving as an acting supervisor while the actual supervisor is on leave). Designee status is time-limited.

CLASSMate: The mobile version of the Child Care Licensing Automated Support System (CLASS). CLASSMate allows CCR staff to document activities related to inspections and investigations of operations in real time, without being connected to the network.

compensation: Anything of value received in exchange for the care of a child.

complete application: A packet of materials submitted by an applicant that contains all the documentation required to apply for a permit.

condition: A special requirement imposed on a permit to allow or prohibit an action by an operation. A condition is imposed when circumstances warrant it, due to one or more of the following: a risk to children, a requirement in the minimum standards for residential child care, or a deficiency in complying with applicable minimum standards. A condition is similar to but different from a restriction on the permit.

controlling person: A person who, either alone or in connection with others, has the ability to directly or indirectly influence or direct the management, expenditures or policies of an operation. See 5411 Definition of a Controlling Person.

corporation: An intangible entity created by individuals to operate for profit but to limit individual liability. Organized according to the *Texas Business Organizations Code* or similar act of another state as evidenced by the corporation's Certificate of Formation.

corrective action: A type of enforcement action that CCR may impose to address an operation's deficiency without requiring it to close. Corrective action is not imposed against listed family homes. As of September 1, 2019, probation is the only type of corrective action. See 26 TAC Sections 745.8603 and 745.8631.

corrective action plan: A plan used to remedy the deficiencies of an operation that is on probation.

CPA foster family home (agency foster family home): A home under the regulation of a child-placing agency that is the primary residence of the foster parents and provides care for six or fewer children or young adults for 24 hours a day. A foster family home may temporarily increase the capacity to seven or eight children under certain circumstances. The child-placing agency, not CCR, is responsible for issuing verifications and ensuring that the foster family homes the CPA regulates meet CCR rules and minimum standards. See 26 TAC Sections 745.37, 749.43(25) and 749.2551.

CPA foster group home (agency foster group home): An operation under the regulation of a child-placing agency that provides care for seven to 12 children or young adults for 24 hours a day. The child-placing agency, not CCR, is responsible for issuing verifications and ensuring that the foster group homes the CPA regulates meet CCR rules and minimum standards. CPA foster group homes verified after January 1, 2007, must be the primary residence of the foster parents. A CPA may not verify a new foster group home after August 31, 2017. See 26 TAC Sections 745.37, and 749.43(26).

CPI: Child Protective Investigations. The DFPS division that investigates allegations of child abuse and neglect by a person responsible for the child's care, custody or welfare as defined in Texas Family Code Section 261.001(5)(A)-(C).

CPS: Child Protective Services.

critical injury: See *near fatal injury*.

customary school day: The hours of the educational program that the local public school administration has identified to the Texas Education Agency (TEA) as the local system's customary school day.

D

date to date: A time frame calculated by the number of days between the last action and the next required action. For instance, February 5 to March 5.

day care center: A day care center is now licensed as a child care center and must follow 26 TAC Chapter 746, Minimum Standards for Child Care Centers. See 26 TAC Section 745.37.

days: In this publication, as in 26 TAC, Chapter 745, all days are calendar days unless otherwise specified.

DCCR: Day Care Child Regulation

deferred adjudication: A type of finding in criminal court. There are two situations in which someone may receive deferred adjudication:

1. The person pleads no contest. The judge decides that it is in the best interest of the community for the person not to serve a jail term but to do community work and says that when this is complete the record will not show the person's name in connection with a criminal activity if the person has the record expunged.
2. Person pleads guilty (whether before judge or full jury). The judge decides it is not in the best interest of the community to have this person serve a jail term. Instead, the judge assigns some community or other work, and at the finish the person's name is removed from the record of criminal activity if the person has the record expunged.

deficiency: Any failure to comply with an administrative rule, minimum standard, statute, a specific term of a permit, or a condition of evaluation, probation or suspension. Also referred to as a violation. See 26 TAC Section 745.21(13).

designated controlling person: A temporary status that HHSC gives to a controlling person:

- after HHSC notifies the operation of the intent to revoke the operation's permit or the operation relinquishes its permit or closes after receiving notice of the revocation; but
- before the person has exhausted his or her due process rights regarding the controlling-person designation.

A person whom HHSC designates as controlling may or may not be someone whom the operation had identified as having that status. See 26 TAC Section 745.905.

designated perpetrator: A person who is listed in the DFPS Central Registry and is found by DFPS or HHSC Provider Investigations (PI) to have abused or neglected a child, but who has not exhausted his or her right to an administrative review or due process hearing. See 26 TAC Section 745.731(a) and Texas Family Code Section 261.401.

designee: See *governing body designee*.

designee status in CLASS: See *CLASS designee*.

designee status in IMPACT: See *IMPACT designee*.

determination of immediate threat: A determination made by HHSC that the presence of the person constitutes an immediate threat or danger to the health, safety or well-being of children in the care of a child care operation. This determination is based on the consideration of several factors and will prevent the person from being present at the child care operation. If the person is associated with a foster or adoptive home, HHSC releases the determination to the child-placing agency. See 26 TAC Section 745.751.

DFPS Investigation: An investigation conducted by the Department of Family and Protective Services (DFPS) of reports of abuse or neglect that allege a child in care of an operation was or may be harmed because of an act or omission by a person working under the supervision of a child care operation. Such harm must meet the definitions of abuse, neglect, or exploitation, as described in the Texas Family Code Section 261.001. DFPS also investigates reports of exploitation that allege a person working under the auspices of an operation engaged in illegal or improper use of a child or used a child's resources for monetary or personal benefit, profit or gain.

director: The adult designated to have the daily on-site responsibility for the operation of the licensed child day care center operation, including maintaining compliance with the minimum standards and CCR laws. See 26 TAC Section 746.1001.

discipline: A form of guidance that is constructive or educational in nature and appropriate to the child's age, development, situation and severity of behavior.

disposition: Action taken or recommended on an operation's licensing status because of the findings of an investigation or inspection.

district attorney: An attorney who represents the state in felony, civil and criminal trials that are heard in district court.

district court: Felonies and civil cases are heard in district court and are prosecuted by the district attorney.

district director (DD): The HHSC manager responsible for overseeing the day care or residential CCR program at the district level. Also referred to as regional director (RD).

docket clerk: The legal assistant in the Child Care Regulation section of the HHSC Legal Services Division, Enforcement Department who is designated as the docket clerk.

due process hearing: A formal legal proceeding to determine whether a CCR decision or action taken was appropriate. The hearings are conducted before an administrative law judge from the State Office of Administrative Hearings (SOAH). See 40 TAC Section 745.8831.

E

emergency behavior intervention: Interventions used in an emergency situation, including personal restraints, mechanical restraints, emergency medication and seclusion.

emergency release: See *determination of immediate threat*.

employee: Any person who is employed by or contracts with the permit holder, including but not limited to caregivers, drivers, kitchen personnel, maintenance and administrative personnel, and the center or program director. See 26 TAC Section 745.21(16).

employee records: See *personnel records*.

endanger: To expose a child to a situation where physical or mental injury to a child is likely to occur. See 26 TAC Section 745.21(17).

enforcement actions: Actions CCR may impose if an operation is deficient in a minimum standard, rule, law, specific term of a permit, or condition of probation or suspension. There are four types of enforcement actions; voluntary and corrective, adverse, judicial, and monetary actions. See 26 TAC Sections 745.8601 and 745.8603.

Enforcement attorney for Child Care Licensing: An attorney in the Child Care Regulation section of the HHSC Legal Services Division, Enforcement Department.

evaluation: A type of corrective enforcement action that CCR could impose prior to September 1, 2019. See 26 TAC Section 745.8631(2).

exempt from regulation: Certain facilities or programs can operate legally without receiving a permit from CCR. A facility or program exempt from regulation is not required to comply with licensing statutes and rules. See 260 TAC Section 745.111.

exploitation: As defined in the Texas Family Code Section 261.001(3).

F

family member: A person related to another person within the third degree of consanguinity or affinity.

felony: An offense which violates the penal code. Felony offenses are heard in district court. Felonies are classified per the relative seriousness of the offense. From least to most serious the classifications are: state jail felony, third degree felony, second degree felony, first degree felony and capital felony.

field trip: A group activity conducted away from the operation.

finding: The determination if there was a violation of a minimum standard, administrative rule or statutes. See 26 TAC Section 745.21(19).

fingerprint-based background checks: – The FBI background check that is conducted using a person's fingerprints.

forms: Refer to the forms page of the HHS internet.

foster group home: Visit *CPS foster group home*.

full permit: Includes a listing, registration, certification, compliance certificate or a full license. An initial license is not a full permit. A full permit is valid if:

- it is not automatically suspended or revoked as provided in Chapter 42, Human Resources Code;
- CCR does not suspend, revoke or refuse to renew it; or
- the operation does not relinquish it and close.

full time: At least 40 hours per week, as relating to the working hours for staff at a child care operation.

G

general residential operation (GRO): A child care facility that provides care for seven or more children for 24 hours a day, including facilities known as residential treatment centers and emergency shelters. See 26 TAC Section 748.43.

get-well care: A program that may be offered in a licensed child care center. The program provides care for children who are ill as specified in Chapter 746, Minimum Standards for Child-Care Centers. See 26 TAC Sections 746.3101 - 746.3123.

governing body: The entity with ultimate authority and responsibility for the operation. See 26 TAC Section 745.21(22).

governing body designee: The person who is named on an application as the designated representative of a governing body, and who is officially authorized by the governing body to speak for and act on its behalf in a specified capacity. See 26 TAC Section 745.21(23).

grounds: Includes any parcel of land where the operation is located and any building, other structure, body of water, play equipment, street, sidewalk, walkway, driveway, parking garage, or parking lot on the parcel. Also referred to as "premises".

group day care home (GDCH): Before September 1, 2003, this was a child day care operation licensed to provide care for seven to 12 children, birth through 13 years. A GDCH is now licensed as either a child care center or a child care home. Some minimum standard rules grandfather certain requirements for GDCHs licensed before September 1, 2003. See 26 TAC Section 745.37.

group of children: Children assigned to a specific caregiver(s). Generally, the group stays with the assigned caregiver(s) throughout the day and may move to different areas throughout the operation.

guardian: A person appointed by the court to have care of the person or property of another.

H

heightened monitoring: An increase in oversight of a residential child care operation that has a pattern of deficiencies relating to minimum standard deficiencies weighted medium or higher, confirmed abuse or neglect findings or Texas Department of Family and Protective Services (DFPS) contract violations. Heightened monitoring is mandated by a court order in the *MD vs Abbott* litigation dated March 18, 2020. See 26 TAC, Chapter 745, Subchapter X, Division 3.

HHSC: Texas Health and Human Services Commission.

home-based: A type of child day care in which the operation is licensed or registered to care for up to 12 children for less than 24 hours per day. A home-based operation is subject to the requirements set forth in 26 TAC Chapter 747, Minimum Standards for Child-Care Homes. This does not include listed family homes. Listed family homes do not have minimum standards.

household member: An individual, other than the caregiver(s), who resides in an operation. See 26 TAC Section 745.21(24).

I

illegal operation: See *unregulated operation*.

IMPACT: Information Management Protecting Adults and Children in Texas, a computer application used by DFPS staff for case management.

IMPACT Legal Status: The legal status for the child in IMPACT for the linked Person ID (PID)

- No Legal Status – the child does not have a legal status in IMPACT
- PMC/RtsTerm (All) – the child is in the Permanent Managing Conservatorship of DFPS. Parental rights have been terminated.
- PMC/Rts Not Term – the child is in the Permanent Managing Conservatorship of DFPS. Parental rights have not been terminated.
- TMC – The child is in the Temporary Managing Conservatorship of DFPS.

impairment: In most instances, an impairment prevents the injured person from performing one or more of their usual and customary daily activities or makes the task of daily activities more difficult.

Interstate Compact on the Placement of Children (ICPC): An agreement among U.S. states and territories that regulates the placement of children across state lines.

immediate danger: A situation at an operation in which risk to children is so extreme that immediate intervention is warranted and continued operation under those conditions would place children at an unacceptable level of risk.

indictment: A finding made by a grand jury regarding a felony offense only.

infant: A child from birth to 17 months.

initial background check – The first background check that an operation requests on a person who is required to undergo a background check.

initiation: The first action taken by CCR staff to obtain additional information regarding the allegations made in a report to CCR. Initiation may include making contact with the operation, the victim, a collateral source or the reporter.

injunction: A court order that requires a person to do or refrain from doing a specified act or acts. The injunction may be temporary or permanent.

inspection: The physical presence of CCR staff at an operation to determine an operation's compliance with the CCR law and HHSC rules.

investigations: Steps taken by CCR staff to determine the validity of a report alleging violation of the law or minimum standards.

J

judicial actions: A type of enforcement action. A court may impose judicial actions, including closure, when Licensing requests a court order to address a deficiency. The two types of judicial actions are temporary restraining order (TRO) and temporary or permanent injunction. See 26 TAC Sections 745.8603(a)(3) and 745.8681.

K

kindergarten age: At least five years old on September 1. See 26 TAC Section 745.101(1).

L

license: A type of permit issued by CCR stating that an operation has met applicable statutes, administrative rules, and minimum standards and may operate. Licenses are issued to all operations **except** certified operations, listed family homes, registered child care homes and CPA homes.

licensed child care center: See *child care center*.

licensed child care home: A child day care home that is licensed. The primary caregiver provides care in the caregiver's own residence for children from birth through 13 years. The total number of children in care varies with the ages of the children, but the total number of children in care at any given time, including the children related to the caregiver, must not exceed 12. A licensed home must follow Texas Administrative Code Chapter 747, Minimum Standards for Child Care Homes. A licensed child care home is referred to as "group day care home" in Chapter 42, Texas Human Resources Code Chapter 42. See 26 TAC Section 747.111.

licensee: The holder of a license.

Licensing: See *Child Care Regulation (CCR)*.

limited liability company (LLC): An entity organized and existing in accordance with the Texas Limited Liability Company Act. The secretary of state has authority over the formation and existence of LLCs.

limited liability partnership (LLP): A partnership that registers with the secretary of state as a limited liability partnership as allowed in the Texas Revised Partnership Act. This status limits the range of a partner's personal liability for the debts and obligations of the partnership.

limited partnership (LP): A partnership formed by two or more persons under the laws of Texas. The LP has one or more general partners and one or more limited partners.

listed family home: A child day care operation that receives a listing permit. The caregiver is at least 18 years old and provides care for compensation in the caregiver's own home, for three or fewer children unrelated to the caregiver, birth through 13 years. Care is provided for at least four hours a day, three or more days a week, and for more than three consecutive weeks. The total number of children in care, including children related to the caregiver, may not exceed 12. See 26 TAC Section 745.37.

M

managing conservator: A relationship appointed by court order between a child and a parent, competent adult, authorized agency, or licensed child-placing agency. A managing conservator has rights and duties to make decisions for and about a child as prescribed in the Texas Family Code and as determined by court order. See Texas Family Code Section 101.019.

master record: The compilation of all required records for a specific person or home, such as a master personnel record, master case record for a child, or a master case record for a foster or adoptive home.

military member: A person who is currently on active duty in the armed forces (army, navy, air force, coast guard, and marine corps) of the United States, in a reserve component of the armed forces of the United States, including the National Guard, or in the state military service of any state (such as the Texas National Guard or the Texas State Guard).

military spouse: A person married to a military member.

military veteran: A person who has served as a military member and was discharged or released from service.

minimum standards: The minimum requirements for permit holders, enforced by HHSC to protect the health, safety, and well-being of children. The rules are contained in the following chapters of the Texas Administrative Code (TAC):

- Chapter 743, Minimum Standards for Shelter Care);
- Chapter 744, Minimum Standards for School-Age and Before or After-School Programs;
- Chapter 746, Minimum Standards for Child Care Centers);
- Chapter 747, Minimum Standards for Child Care Homes;
- Chapter 748, Minimum Standards for General Residential Operations; and
- Chapter 749, Minimum Standards for Child-Placing Agencies.

misdemeanor: A criminal offense listed in the penal code. Class A and Class B misdemeanors are heard in county court or county court at law and are prosecuted by the county attorney.

monetary actions: A type of enforcement action. These actions are fines or penalties that CCR may impose as provided by Human Resources Code Sections 42.075 and 42.078. There are two types of monetary actions: administrative penalties and civil penalties. See 26 TAC Sections 745.8603(a)(4) and 745.8711.

monitor: The regulation of an operation by evaluating compliance with applicable statutes, administrative rules, and minimum standards.

monitoring frequency: The acceptable range within which an operation's next monitoring inspection will be conducted, as determined by an assessment of the risk factors at the operation.

monitoring inspector (formerly referred to as a licensing representative or licensing inspector): A CCR staff person managing a workload that includes the following types of regulatory activities:

- processing applications;
- issuing permits;
- monitoring an operation's compliance with regulatory requirements as a result of conducting inspections, investigations and assessments;
- recommending enforcement actions, when appropriate; and
- providing information to the community about regulated child care.

N

name-based background checks – Any background check conducted using identifying information, such as a person's name, gender and date of birth (DOB). These background checks do not require the submission of fingerprints.

near fatal injury: An injury in which the child would likely have died because of the injury or medical condition if the child did not get medical attention. In most circumstances, medical intervention includes admittance to an intensive care unit. Previously known as critical injury.

nearby: For child day care operations that are in the application process, *nearby* means *next to, across the street from*, or *in the same city block*. For residential child care operations that are in the application process, *nearby* means *across the street from*, *in the same city block*, or *on the same property*. For operations that are exempt from regulation, *nearby* means a person who is *in the same building, across the street from*, or *in the same city block* as the operation. See 26 TAC Sections 745.101(3) and 745.201(1).

newspaper of general circulation: A community's own newspaper, or, if unavailable, a newspaper purporting to serve the community or the daily newspaper of the nearest metropolitan area. See 26 TAC Section 745.201(2).

night care: Child care offered between the hours of 9 p.m. and 6 a.m. This is regulated as child day care, not residential child care, as long as the children are not in care for 24 hours a day. See 26 TAC Sections 746.3201 and 747.3001.

nonprofit association: A combination of individuals and interests of some kind, synonymous with society, with operations devoted to charitable, benevolent, religious, patriotic or educational purposes, not organized under the *Texas Business Organizations Code*.

nonprofit association with religious affiliation: A combination of individuals and interests of some kind, synonymous with society, with operations devoted to religious purposes. Not organized under the *Texas Business Organizations Code*. Operated by, responsible to, or associated with an organization of individuals devoted to religious purposes. Does not include those whose relationship with a religious organization is only for business, such as those who only lease space.

nonprofit corporation: Equivalent of not-for-profit corporation. None of the income is distributed to members, directors, or officers. Organized under the *Texas Business Organizations Code*.

nonprofit corporation with religious affiliation: An entity with nonprofit corporation status operated by, responsible to, or associated with an organization of individuals devoted to religious purposes. Does not include those whose relationship with a religious organization is only for business, such as those who only lease space.

O

operating hours: The days and hours that an operation is open and offering child care.

operation: A person or entity offering a program that may be subject to regulation by CCR. An operation includes the building and grounds where the program is offered, any person involved in providing the program, and any equipment used in providing the program. See 26 TAC Section 745.21(30).

operation providing basic care: a licensed residential child care operation that provides care for 13 or more children up to the age 18 years. This care does not include specialized care programs. See 26 TAC Section 745.37.

P

parent: A person who has legal responsibility for or legal custody of a child, including the managing conservator or legal guardian. See 26 TAC Section 745.21(31).

partnership: A combination by contract of two or more people who use their money, labor and skill to carry on a continuing business, dividing the profits and sharing the losses in an agreed manner. Includes general and limited partnerships.

permit: A license, certificate, registration, listing or any other written authorization granted by CCR to operate a child care facility, child-placing agency or listed family home. This also includes a licensed administrator's permit. See 26 TAC Section 745.21(32).

permit holder: The person or entity granted the permit. See 26 TAC Section 745.21(33).

personnel records: Any information that an operation must maintain on its employees.

PI: HHSC Provider Investigations program. A division of HHSC, Regulatory Services Division that investigates allegations of abuse, neglect and exploitation of individuals receiving services from certain providers. In most investigations conducted by PI, the alleged victim is an elderly person or a person with a disability. However, the alleged victim may be a child if the provider cares for children in addition to adults.

plan of action: See *voluntary plan of action*.

plan of operation for licensed child care operations: A written plan showing how a governing body or owner plans to comply with the minimum standards. This plan is a part of the application materials.

political subdivision: Includes any city, county, school district, junior college district, public health district, and any political entity that is operated by and under the jurisdiction of a government unit that has distinct geographical barriers within the State of Texas and is defined in part by its geographical area.

pre-kindergarten age child: A child who is three or four years of age before the beginning of the current school year. See 26 TAC Section 745.101(2).

premises: See *grounds*.

preponderance of evidence: A standard of evidence used in due process hearings and some civil hearings in which the facts sought to be proved are more probable than not. Sometimes this is referred to as the 51 percent standard.

primary caregiver: The permit holder for a licensed or registered child care home. The primary caregiver is the person with ultimate authority and responsibility for the overall operation and compliance of the home with Chapter 747, Minimum Standards for Child Care Homes, CCR statutes and HHSC rules. The primary caregiver must live in the home where the care is provided. See 26 TAC Section 747.201.

primary medical needs: Medical needs that require the child to live with mechanical supports or the services of others because of life-threatening conditions, including:

- the inability to maintain an open airway without assistance (this does not include the use of inhalers for asthma);
- the inability to be fed except through a feeding tube, gastric tube or a parenteral route;
- the use of sterile techniques or specialized procedures to promote healing, prevent infection, prevent cross-infection or contamination, or prevent tissue breakdown; or
- multiple physical disabilities including sensory impairments.

primary residence: (residential child care licensing only) The residence the person must live at on a routine basis and the home must be:

- the place of residence on the person's most recent tax return; or
- the address listed on the person's motor vehicle registration, driver's license, voter's registration or other document filed with a public agency.

probation: A type of enforcement action that CCR may impose on an operation to address an operation's compliance with regulatory requirements that does not require the operation to close. During probation, CCR imposes conditions beyond the minimum standards and the basic permit requirements and conducts monthly inspections to help the operation improve compliance and reduce risk at the operation. See 26 TAC Sections 745.8605, 745.8631(3), and 745.8637.

professional – A person qualified in one of the learned professions and who holds a relevant professional license. For the purposes of CCR policy, qualified professionals include doctors, nurses, psychologists, and workers in Early Childhood Intervention (ECI) who are present at child care operations in an official capacity. ECI is a statewide program of HHSC.

program: Activities and services provided by an operation. See 26 TAC Section 745.21(35).

provider: A person or entity providing child care that is subject to regulation, even if the person or entity does not have a permit or has not applied for a permit.

public advertising: Any notice given in a manner to attract public attention. Examples: Ads run in newspapers, on radio, or on television; circulars; handbills; signs or notices posted in public places; and public announcements made to a group.

public school: A school or program under the jurisdiction of the local school board, in which the staff or faculty of the program are contributing members of the Texas Retirement System.

R

RCCR: Residential Care Child Regulation

recommended monitoring frequency: An objective measure of how often an operation should be inspected based on the quantitative factors in its two-year compliance history (the operation's deficiencies and their associated weights).

registered child care home: A child day care home that is registered. The primary caregiver provides care in the caregiver's own residence for not more than six children from birth through 13 years and may provide care after-school hours for not more than six additional elementary school children. The total number of children in care at any given time, including the children related to the caregiver, must not exceed 12. The term does not include a home that provides care exclusively for any number of children who are

related to the caregiver. A registered home must follow Texas Administrative Code Chapter 747, Minimum Standards for Child Care Homes. See 26 TAC Section 745.37.

registration: A type of permit issued by CCR to provide child day care in a registered child care home.

regular care: A child care arrangement in which care is provided in a registered child care home or listed family home:

- at least four hours a day;
- three or more days a week; and
- for more than three consecutive weeks.

See Texas Human Resources Code Section 42.002(17).

regularly or frequently present at an operation: A person is regularly or frequently present at an operation if the person:

- is present at an operation on a scheduled basis;
- visits the operation three or more times in a 30-day period, with each visit being a period of time of less than 24 hours, and with multiple or periodic visits to an operation within the same day counting as one visit;
- stays or resides at the operation for more than seven consecutive days; or
- stays or resides at the operation three or more times per year, and the duration of each stay exceeds 48 hours.

For foster homes, the following persons are not considered to be regularly or frequently present at a foster home:

- a child unrelated to a foster parent who visits the foster home unless:
  - the child is responsible for the care of a foster child; or
  - there is a reason to believe that the child has a criminal history or previously abused or neglected a child; and
- an adult unrelated to a foster parent who visits the foster home unless:
  - the adult has unsupervised access to children in care; or
  - there is a reason to believe that the adult has a criminal history or previously abused or neglected a child.

For a child day care operation, parents are not regularly or frequently present at an operation solely because they are visiting their child, which may include dropping off or picking up their child, eating lunch with their child, visiting or observing their child, or consoling their child. However, a parent may be regularly or frequently present at an operation if he or she volunteers at an operation or is otherwise present at an operation for a reason other than visiting his or her child. See 26 TAC Section 745.601(15).

regulation: The enforcement of statutes and the development and enforcement of rules, including minimum standards. Regulation includes the licensing, certifying, registering and listing of an operation or child care administrator. See 26 TAC Section 745.21(36).

release hearing: A due process hearing held by SOAH to allow a person to appeal findings of child abuse, neglect and exploitation made by DFPS.

renewal background check: A subsequent background check that an operation submits for a person who has already had an initial background check at the operation.

reporter: The person who reports an expression of dissatisfaction or concern that alleges a possible violation of minimum standards, HHSC rules, provisions of the child care Licensing statute, or any conditions that require prompt investigation to determine whether there is a risk to a child in care.

report: An expression of dissatisfaction or concern about an operation, made known to DFPS or HHSC staff that alleges a possible violation of minimum standards, administrative rules or statutes and involves risk to a child in care. See 26 TAC Section 745.21(37).

residential child care: The care, custody, supervision, assessment, training, education, or treatment of an unrelated child or children up to age 18 years for 24 hours a day that occurs in a place other than the child's own home. Residential child care includes child-placing agencies. See 26 TAC Section 745.35.

residential contract manager: The DFPS staff person who is responsible for managing the contracts between DFPS and residential child care operations for placement of children in CPS conservatorship.

residential treatment center (RTC): A general residential operation that exclusively provides care and treatment services for emotional disorders for 13 or more children up to age 18 years. See 26 TAC Section 745.37.

restrictions: Requirements placed on a permit, including but not limited to capacity, ages of children in care, times of operation, or certain services provided in a residential operation. A restriction is similar to but different from a condition placed on a permit. See 3420 How to Prepare the Permit and 3424 Applying Additional Types of Conditions or Restrictions.

risk evaluation: A process used by HHSC to determine whether a person who has a relevant criminal conviction or Central Registry match poses a risk to the health or safety of children in the care of the operation that requested the background check. HHSC completes risk evaluations only when the subject of the background check submits a request containing the necessary documentation

to HHSC. See Chapter 745, Subchapter F, Division 5 Evaluation of Risk Because of Criminal History or a Child Abuse or Neglect Finding.

risk evaluation prediction: A process to determine whether a risk evaluation would likely be approved for a person who has an unsustained Central Registry finding that:

- is pending a due process hearing;
- has not been released through an emergency release; and
- would be eligible for a risk evaluation if sustained.

router: The DFPS or HHSC staff member identified in each program and district to receive intake reports from Statewide Intake (SWI) staff. The router assesses the reports and assigns them to appropriate staff for investigation or other handling.

S

sampling concern: A finding documented due to a random-sampling inspection of an agency foster home. A sampling concern is not a deficiency. See 4430 Random-Sampling Inspections of CPA Foster Homes.

scanned document: Refers to a hard copy document that CCR staff scans and uploads to CLASS Document Library (on or after Aug. 6, 2023) or the CCR Digital Storage SharePoint site (before Aug. 6, 2023) or an electronic document that CCR staff uploads to CLASS Document Library (on or after Aug. 6, 2023) or to the CCR Digital Storage SharePoint site (before Aug. 6, 2023).

school-aged children: A child five years or older who will attend school in August or September of that year.

security roles: In CLASS, security permissions are grouped into roles based on an employee's position and job assignment.

serious deficiency: A deficiency or violation that results in a child's death, serious injury or harm, or immediate risk of serious injury or harm to a child.

serious harm: See *substantial harm*.

serious incident: Any non-routine occurrence that has an impact on the care, supervision or treatment of a child or children. This includes, but is not limited to, suicide attempts, injuries requiring medical treatment, runaways, commission of a crime, and allegations of abuse or neglect or abusive treatment. See 26 TAC Sections 748.301 and 749.501.

serious injury: Any physical injury to a child that requires medical treatment and results or may result in impairment to the child's overall health or well-being. This does not include:

- near fatal injuries;
- injuries for which a child is evaluated by a professional as a precaution;
- injuries for which first aid is administered at the operation, but no further treatment by a medical professional is warranted; or
- medical events due to routine, ongoing medical issues, such as asthma or seizures.

Also see *impairment*.

serious mistreatment: A child in care is disciplined, punished, or physically restrained in a manner that is prohibited by minimum standards and sustains a serious injury.

service plan: A plan that identifies a child's basic and specific needs and how those needs will be met.

SOAH: State Office of Administrative Hearings. The state agency that conducts due process hearings when:

- a person or operation challenges related to an HHSC CCR action or decision; or
- a person challenges the release of findings of child abuse, neglect or exploitation made by DFPS or HHSC Provider Investigations.

See 26 TAC Section 745.21(39).

SOAH hearing: The due process hearing conducted by the State Office of Administrative Hearings.

sole proprietorship: Personal ownership with the legal right and responsibility to possess, operate, sell and otherwise deal with the operation. A sole proprietorship is just one person. Exception: a sole proprietorship may be a husband and wife if the license was issued to a husband and wife as a sole proprietorship before February 1, 2004, and the license has not been revoked or surrendered.

SSCC: Single Source Continuum Contractor: A child-placing agency that contracts with DFPS to provide community-based care as described in Subchapter B-1, Chapter 264, Texas Family Code. See 26 TAC, Chapter 745, Subchapter X, Division 3.

staffing: A consultation between professionals to decide on a course of action regarding an operation or other regulatory activities. Staffings can include CCR staff, supervisors, attorneys, staff from other governmental agencies or other professionals.

standard-by-standard: The evaluation of an operation's compliance with all standards, rules and statutes during a monitoring inspection.

state-operated: Operated by, under the direct jurisdiction of, and responsible to an agency of the state of Texas.

subject to regulation: Child care that is subject to the requirements in the Texas Human Resources Code, Chapter 42 and rules and minimum standards adopted under that chapter.

substantial harm: Bodily harm or an observable impairment in a child's psychological growth, development or functioning that is significant enough to require treatment by a medical or mental health professional.

supervisor: The individual responsible for planning, assigning, and evaluating the workload of a unit of CCR staff.

suspension: The temporary closure of an operation for a specific period that may be voluntary on the part of the operation or involuntary when imposed as an adverse action by CCR.

sustained controlling person: A controlling person whose status as a designated controlling person was upheld after the operation's revocation became final and:

- the person waived due process rights regarding the designation; or
- the designation was upheld after the person exhausted his or her due process rights.

sustained finding: A finding of abuse or neglect that was upheld through an SOAH hearing and any subsequent appeals or through the perpetrator waiving his or her opportunity for a release hearing.

sustained perpetrator: A person listed in the DFPS Central Registry as someone who abused, neglected or exploited a child and the finding was upheld after:

- the person waived due process rights regarding the finding; or
- the finding was upheld after the person exhausted his or her due process rights.

See 26 TAC Section 745.731(b).

T

Technical Assistance Library (TA Library): An online database of a collection of resources that is used to help providers understand and comply with CCR statute, rules and minimum standards. The database is available to CCR staff, providers and the public as follows:

- to the public and CCR staff on the Technical Assistance Library page of the CCR page of the HHSC public website; and
- to CCR staff through CLASSMate.

CCR state office manages requests for adding resources to the TA Library.

technical assistance: Assistance and guidance that CCR staff give to permit holders, applicants and operation employees to help them understand and comply with CCR statute, rules and minimum standards.

toddler: A child from 18 months through 35 months.

U

unregulated operation: An operation that provides child care that is subject to regulation, but does not have a permit and is not in the process of applying for a permit. Texas Government Code Section 531.0084.

V

variance: The approval from CCR indicating an operation may comply with the intent of a specific minimum standard in a different way than is specifically outlined in the minimum standard. Operations must request a variance and CCR approval is contingent on ensuring that the health, safety and well-being of the children in care are reasonably protected. See Texas Human Resources Code Section 42.048(c) and 26 TAC Chapter 745, Subchapter J, Waivers and Variances for Minimum Standards.

veteran spouse: A person married to a military veteran.

violation: See deficiency.

voluntary plan of action (also referred to as plan of action): A collaborative effort between CCR and an operation in which CCR works with the operation to develop a plan to help the operation improve its compliance with minimum standards and to reduce risk.

See 26 TAC Section 745.8631(1).

volunteer: A person who provides child care services, treatment services or programmatic services under the auspices of the operation without receiving monetary compensation. Includes a sponsoring family or any type of services under the auspices of the operation that are provided without monetary compensation when the person has unsupervised access to a child in care.

W

waiver: The approval from CCR indicating that an operation is not required to comply with a specific minimum standard because CCR determined that the economic impact of compliance is great enough to make compliance impractical. Operations must request a waiver and CCR approval is contingent on ensuring the possibility of risk to children in care is not significantly increased if the waiver is granted. See Texas Human Resources Code Section 42.042(j) and 26 TAC Chapter 745, Subchapter J, Waivers and Variances for Minimum Standards.

Y

young adult: An adult who:

- has a chronological age between 18 and 22 years;
- is currently in a residential child care operation; and
- who continues to need child care services.

CCRH Appendices

Appendix 1000, General CCR Information

Appendix 1000-1 Organizing Child Care Regulation Records

Revision 23-3; Effective Sept. 22, 2023

All CCR staff follow the same guidelines for maintaining records, even though some information and documentation described in this appendix may not apply to all types of operations or licensed administrators. The operation record only includes information required for the operation type or licensed administrator.

Records for child care operations or licensed administrators consist of:

- documentation or digital files provided by the operation or administrator; and
- documentation received from other agencies or organizations that is related to CCR regulatory activities.

Records are maintained in CLASS, the CCR Digital Storage SharePoint site, and the hard copy record, as required by statute, court orders, and CCR policy.

CLASS Record

Applications for Child Day Care Operations

CCR staff and applicants for a child day care operation communicate through face-to-face, phone, email or text message contacts regarding incomplete applications.

After accepting an application, CCR staff upload application materials and any related email or other digital files to CLASS Document Library.

Applications for Residential Child Care Operations

CCR staff and applicants for a residential child care operation communicate through face-to-face, phone, or email contacts. When a CCR residential inspector receives a text message communication from the applicant, the inspector:

- responds to the applicant through face-to-face, phone or email contact;
- documents the communication in a Chronology in CLASS; and
- uploads all emails or digital files to CLASS Document Library.

CCR staff print CLASS documentation only when necessary. If there is an active litigation hold, CCR must maintain all paper documents related to the hold even if they are uploaded to the CCR Digital Storage SharePoint site.

Requests for Exemption from Regulation

Staff upload exemption request forms and all supplemental documents related to an exemption determination to CLASS Document Library. If staff receive forms or documents as paper copies, staff scan the documents to create a digital file.

Chronology Entries

Chronology entries capture additional details about regulatory activities that are not already captured on CLASS forms or letters. Chronology entries are created in CLASS and CLASSMate in the following ways:

- automatically by CLASS when certain activities occur;
- manually by CCR staff according to requirements in applicable CCR Handbook policies and procedures; or
- manually by CCR staff as needed.

Digital Records on CLASS Document Library

CCR staff upload digital files to CLASS Document Library for individual operations and CCR activities such as:

1. photographs;
2. videos;
3. audio recordings;
4. application materials; and
5. scanned copies of other records and digital documents related to the regulation of an operation.

For residential child care operations, staff scan and upload all documents in the existing hard copy records to CLASS Document Library.

For day care operations, staff scan and upload application materials to CLASS Document Library within one business day after accepting an application.

For unregulated operation investigations, staff also scan and upload Form 2895 CCR Request to Enter (available on the CCR SharePoint site) to CLASS Document Library site.

For all operation types, CCR staff upload all digital records, such as documents, photos, audio and video that support CCR activities. Digital files are organized within CLASS Document Library according to the activity category.

Hard Copy Record

The hard copy record includes documents necessary to support CCR activities conducted by CCR according to statute, administrative rules, and the policies and procedures published in this handbook.

Examples of the documents filed in the hard copy record include:

a. forms and correspondence related to licensing, certification, registration, or listing permits;
b. significant correspondence from the applicant or permit holder; and
c. significant correspondence from others involved in the regulatory process.

CCR staff:

a. organize the hard copy record so that it includes dividers that are tabbed and labeled by subject;
b. organize the hard copy record chronologically, starting with the current monitoring period;
c. file all documentation on the right side of the record, with the most recent documents on top within each tabbed section;
d. ensure that documentation in the hard copy record is legible; and
e. print and file CLASS documentation only when appropriate.

Organizing Hard Copy Records

Recommended Tabs for the Hard Copy Record

CCR staff file external documentation in the hard copy record under the tabs as recommended below if the documentation is not uploaded to the CCR Digital Storage SharePoint site or not submitted online through the provider's online account.

Tab 1: Application and Permit

a. application material listed in the Required Application Materials document available on the Policy and Rules page of the CCR SharePoint site;
b. information related to public hearing requirements, when applicable;

c. CLASS Form 2860E Director's Certificate;
d. Form 2974 Request for Risk Evaluation Based on Past Criminal History or Central Registry Findings;
e. Form 7257 Day Care Space Computation, located on the CCR SharePoint site; and
f. permit renewal applications.

Tab 2: Regulation

a. CLASS Form 2936 Child Care Operation Inspection Form, when signed outside of CLASSMate;
b. correspondence relating to the correction plan for deficiencies;
c. other regulatory correspondence;
d. correspondence related to judicial actions; and
e. petitions.

Tab 3: Investigations

a. any documentation not found in CLASS; and
b. any paperwork with original signatures, such as Form 2895 Request to Enter or a safety plan (available on the CCR SharePoint site).

Tab 4: Waiver/Variances

a. Form 2937, Child Care Regulation Waiver/Variance Request;
b. correspondence related to waivers and variances; and
c. supporting documentation.

Tab: 5: Miscellaneous Documentation

a. correspondence related to the pre-application process;
b. inspection reports from other agencies or organizations, if provided;
c. documentation related to liability insurance:
    - Form 2962, Verification of Liability Insurance; and
    - proof of liability insurance; or
    - Form 2962 Attachment A, Parental Notification of Lack of Liability Insurance, if applicable; and
d. miscellaneous correspondence.

Tab 6: Confidential Background Check Information

Form 2971, Child Care Licensing Request for Background Check, if a CCR inspector received as a hard copy document.

Tab 7: Controlling Person

- Form 2760, Controlling Person – Child Care Regulation; and
- other external documentation related to controlling persons.

Appendix 1000-2 Security Roles and Functions in CLASS

Revision 23-3; Effective Sept. 22, 2023

The tables below show the core roles and the additional security roles available in CLASS.

- Core Roles
- Additional Roles

Core Roles

Each person granted access to CLASS is assigned only one core security role. Core security roles are successive, meaning that each role includes the permissions of a preceding role and provides additional permissions.

Core Role	Summary	CLASS Functions
View Only	• No role assigned • No ability to modify data	• View most pages in CLASS. • View files uploaded in the Document Library. Exceptions: • Pages that are only used to create records in CLASS are inaccessible to View Only users; for example, Batch

Core Role	Summary	CLASS Functions
		Administration, Intake Report, and Application Exemption Request; and • Administrator License System (ALS) CLASS pages.
Administrative Technician	Provides the functionality assigned to View Only, plus the functions described in the *CLASS Functions* column to the right.	• Application – Create a new facility record. View and assign applications, including online applications (known as eApps) • Case Assignment List – Assign or transfer cases • Exemption Request – Create a record for a new exemption request • Background Check Person Search – Request a background check • Background Check Results – Document information related to background check results • Background Check Results History – Create background check letters • Intake Report – Create an intake report • Designees – Add a designee • Chronology – Create chronologies in any facility record • User Request – Create User Request reports • Case File Print – Create Case File Print reports • Update/Query Payments – Update payment records • Payment Verification – Update and delete payment records • Training Session Information – Add or update training sessions • Training List – View scheduled training sessions • AH Reports – View and assign inspections of agency homes • CLASS Document Library – upload files for an assigned activity. and edit files created by the user on specific CLASS pages.
Licensing Representative	Provides the functionality assigned to the role of Administrative Technician, plus the functions described in the *CLASS Functions* column to the right.	• Operation Main – Update facility information in an assigned caseload • Inspection/Assessment List – Create or modify inspections for operations in an assigned caseload • Inspection/Assessment List – Create or modify assessments for operations in an assigned caseload • Investigation Main – Update open investigations in an assigned caseload • Waiver/Variance – Add a waiver or variance to operations in an assigned caseload • Enforcement Recommendation List – Select an action based on enforcement recommendations for an operation in an assigned caseload • Provider Corrective Action Plan – Create or update corrective action plans for an operation in a caseload • Provider Adverse Action Involuntary Suspension – Create or update an adverse action for an operation in a caseload • Provider Adverse Action Revocation or Denial – Create or update an adverse action for an operation in a caseload • AH Reports – Access or conduct assigned inspections of agency homes
Supervisor	Provides the functionality assigned to the role of Licensing Representative, plus the functions described in the *CLASS Functions* column, to the right.	• Waiver/Variance – Approve or deny waivers and variances • Inspection Details – Reopen or delete an inspection when all drafts and final versions of forms or letters have been deleted Note: Only for inspections that are not the basis for either a corrective action, an adverse action, or a plan of action may be deleted • Assessment Details – Reopen or delete an assessment when all drafts and final versions of forms or letters have been deleted

Core Role	Summary	CLASS Functions
		Note: Only assessments that are not the basis for a corrective or adverse action or a plan of action may be deleted • Investigation Main – Reopen or delete an investigation when all drafts and final versions of forms or letters have been deleted Note: Only investigations that are not the basis for a corrective adverse action or a plan of action may be deleted • Intake Report – Delete an intake record when it is not attached to an investigation or inspection • Investigation Conclusion – Document approval to extend an investigation beyond the usual time frames • Issuance – Document approval and justification to extend an application period, specifically the initial permit, beyond the usual time frames • Add/View Chronology – Delete a chronology that was entered manually • Investigation Perpetrator Details – Complete the Due Process section for alleged perpetrators • Provider Corrective Action Plan – Enter a supervisory decision. • Provider Adverse Action Involuntary Suspension – Enter a supervisory decision • Provider Adverse Action Revocation or Denial – Enter a supervisory decision • CLASSMate Usage Monitoring – View records that are checked in and out of CLASSMate • Enforcement Recommendation List – Enter a supervisory decision for the action recommended by the inspector based on the enforcement recommendations • User Profile (Accessed through the Security tab) – View other employees' To-Do tasks in CLASS • Operation Main – Update the name and address of an operation • Governing Body – Update the name of a governing body • Inspection/Assessment List – Add inspections and assessments to any caseload • Background Check Assignment – Assign an operation to a CBCU specialist • CLASS Document Library – Upload, edit, and delete any file, except those uploaded from an ALS CLASS page

Additional Roles

Requests for additional security roles are considered individually, based on the business need.

Additional Role	Summary	CLASS Functions
District Director or Manager	Provides all the functionality assigned to the role of Supervisor, plus the District Director or Manager provides the functions described in the *CLASS Functions* column to the right.	• Provider Adverse Action Revocation or Denial – Access the Voluntary/Relinquish Withdrawal check box and Reason text box • Operation Main – Reopen a closed operation • Operation Main – Access the Do not display on the public/provider website check box • Application/Closure – Change the decision made on an application • User Request Reports – View an At Risk Facilities Report
State Office Staff	Provides the functionality assigned to the role of Licensing Representative, plus the functions described in the *CLASS Functions* column, to the right.	CLASS Document Library – view, upload, and edit files.
Administrators' Licensing System (ALS) in CLASS	Provides all of the functionality assigned to the role of Licensing Inspector, plus the functions described in the *CLASS Functions* column to the right	• Add and modify information about a licensed administrator

Additional Role	Summary	CLASS Functions
		• CLASS Document Library – View all documents. Upload, edit, and delete only files on ALS CLASS pages

Appendix 2000, Handling Inquiries About the Licensing Process and Exemption

May 2020

Appendix 2000-1 Organizations Whose Members May Qualify for Exemption

November 2010

The organizations listed at the end of this item are members of the Texas Private School Accreditation Commission (TEPSAC). Members of TEPSAC are approved to accredit nonpublic schools in Texas. Schools that are accredited by TEPSAC members may be exempt from regulation by Licensing.

See the first item in the table under 2371 Standard Educational Programs, regarding programs for prekindergarten and above.

Applying for or being in the process of becoming accredited does ***not*** constitute accreditation.

List of Accredited Schools

For a list of the individual private schools accredited by TEPSAC, search the TEPSAC site for the *Texas School Directory*. The list is updated weekly.

Accreditation Status

For the accreditation status of a specific school, use the Texas Education Directory's search feature AskTED. (See the first item in the table under 2371 Standard Educational Programs, regarding programs for prekindergarten and above.

TEPSAC Members

The TEPSAC members that are approved to accredit nonpublic schools are:

Accreditation Commission of Baptist Schools

- 254-710-2410
- Fax 254-710-3734
- randy_wood@baylor.edu

Association of Christian Classical Schools

- 512-899-8095
- execdirector@accsedu.org
- accsedu.org

Association of Christian Schools International

- 972-941-4404
- Fax 972-941-4405
- john_craig@acsi.org
- www.acsi.org

Association of Christian Teachers and Schools

- 713-943-9978
- Fax 713-944-4416
- ellisjoyce@hotmail.com
- actsschools.org

Independent Schools Association of the Southwest

- 432-684-9550
- Fax 432-684-9401

- rdurham@isasw.org
- isasw.org

International Christian Accrediting Association

- 918-493-8880
- Fax 918-493-8041
- donpeal@oru.edu
- icaa.us

Lutheran Schools Accreditation Commission

- 512-926-4272
- Fax 512-926-1006
- wvhinz@aol.com

National Christian Schools Association

- 512-835-5983
- Fax 512-835-2184
- mmoss@brentwoodchristian.org
- nationalchristian.org/nc

Southern Association of Colleges and Schools

- 512-326-4200
- Fax 512-326-5908
- ssherman@sacscasi.org
- sacscasi.org

Southwestern Association of Episcopal Schools

- 806-655-2400
- Fax 806-655-2426
- fbarrack@swaes.org
- swaes.org

Texas Alliance of Accredited Private Schools

- 361-552-1900
- Fax 361-552-1951
- taaps@tisd.net
- taaps.org

Texas Catholic Conference Education Department

- 512-339-8416
- Fax 512-339-8670
- margaret@txcatholic.org
- txcatholic.org

Texas Seventh Day Adventists School System

- 817-783-2223
- Fax 817-783-5266
- beder@txsda.org
- txsda.org

Wisconsin Evangelical Lutheran Synod School Accreditation

- 214-343-7457
- Fax 214-348-1424
- jhenrickson@caltex.org
- wels.net

Other Organizations

The following organization is not a member of TEPSAC, but does require compliance with established standards and has been reviewed by Child Care Licensing.

Association Montessori International Teachers of Texas (AMITOT)

- Chrissy Davol
- 5701 West FM 487
- Florence, Texas 76527
- 512-627-1299
- codavol@hotmail.com

Appendix 2000-2 Determining Whether a Program or Operation is Regulated by Child Care Regulation – Questions and Answers

May 2020

Child Care Regulation (CCR) staff may use the following questions and answers as a guide to determining whether a program or operation is regulated by CCR.

A. Youth Camps

1. What are the general characteristics of a youth camp licensed by the Department of State Health Services (DSHS)?

DSHS defines a youth camp as a program that:

1. provides supervision, instruction and recreation;
2. accommodates at least five minors during each camp session;
3. operates as a youth camp for no more than 120 days each calendar year;
4. hosts children who are apart from parents or guardians;
5. operates as a youth camp for a period of four or more consecutive days;
6. operates as a youth camp for more than four consecutive hours per day;
7. operates as a youth camp only during school vacation periods; and
8. offers at least two youth camp specialized activities in an outdoor setting, such as waterfront activities, archery, horseback riding, challenge courses or riflery that requires special technical skills, equipment or safety regulations.

25 TAC §265.11

2. Does DSHS license martial arts programs as youth camps?

DSHS issues a license for a martial arts program to serve as a youth camp only if the program meets all of the characteristics of a youth camp, as defined in A.1, directly above.

Most martial arts programs meet the requirements listed in 26 TAC §745.129(2), Single Skill Programs, and are, therefore, exempt from CCR regulation by law.

For the requirements to be considered a program that offers direct instruction in a single skill or proficiency, see the Human Resources Code, Chapter 42, §42.041(b)(18).

3. Can CCR recommend that a recreational program apply for a license from DSHS to operate as a youth camp, rather than apply for a license from CCR?

Yes, in some cases; however, CCR staff must first determine whether the program is exempt from regulation or must be licensed as a school-age program.

To determine whether a program is exempt, CCR staff:

- review the relevant definitions; and
- compare the information on the program's exemption determination (Form 2821) with the characteristics and definition of a youth camp.

Recreation programs for children ages 5-13 are commonly known as neighborhood recreation programs. The requirements for exemption as a neighborhood recreation program are listed in 26 TAC §745.129(1), under Exempt Miscellaneous Programs.

Programs that do not meet all of the requirements to be exempt as a neighborhood recreation programs may meet the requirements to be exempt as a school-age program. A school-age program is a child care facility that provides supervision, recreation, and skills instruction or training, before or after the customary school day, for at least two hours a day, three days a week, to children attending prekindergarten through grade six. A school-age program may also provide transportation and may operate during school holidays, the summer period, or any other time when school is not in session.

If, after determining that a program is not exempt, CCR staff believe that the program would more appropriately be licensed by DSHS, CCR staff:

- may recommend that the operation apply for a license from DSHS; and
- request that the program send confirmation that its application was sent to DSHS within 14 calendar days of contacting CCR.

If CCR staff believes that CCR must regulate the program, and no confirmation about a DSHS license has been received, or the program cannot be determined to have the characteristics of a youth camp, CCR staff proceed with the application process for a permit from CCR.

CCR staff do not officially determine that a program is exempt from HHSC regulation, unless:

- the program is already licensed by DSHS; or
- the program can show proof of application for a DSHS youth camp license within 14 calendar days from the date that the CCR representative contacted the program.

4. Can a program that holds a current license from CCR request a youth camp license from DSHS?

No. DSHS does not issue a license to an operation that holds a current license from HHSC CCR.

5. Since CCR may issue a license to some but not all of an operation's programs (such as issuing a license for after-school care only), can DSHS issue a youth camp license to some but not all of an operation's programs?

No. If DSHS issues a youth camp license to the operation, then all of the programs at the operation are exempt from regulation by CCR. Under Human Resources Code §42.041(a)(5), a youth camp licensed by DSHS is exempt from regulation by CCR. So, if DSHS issues a license to an operation for a youth camp, even though the operation includes programs that constitute child care and have no characteristics of a youth camp, CCR cannot regulate any of the operation's programs.

B. Educational Exemptions for Charter Schools

1. Are charter schools exempt from licensure by CCR?

Yes, charter schools are exempt from licensure by CCR.

2. Is an after-school program that is operated by a charter school exempt from regulation by CCR?

Yes, an after-school program that is operated by a charter school is exempt from regulation by CCR. The Texas Education Agency (TEA) has authority to grant a charter for operation to a school or may authorize a school district to grant the charter.

3. Is an after-school program that is operated by the contractor of a charter school exempt from regulation by CCR?

Yes, an after-school program operated by a contractor for a charter school is exempt from CCR if it demonstrates that it is using TEA approved curriculum content for all the children it serves.

4. Is a charter school exempt from regulation by CCR if it offers more than one program at the same location (for example, offering first grade along with after-school care)?

Just as with school districts, child care programs that are operated by a school district or charter school for children younger than three years are subject to regulation by CCR. If the various programs offered operate separately from each other, CCR exempts only those that qualify for an exemption. If the programs do not operate separately from each other, CCR regulates all of them.

To demonstrate that its programs are separate, a school must meet the criteria for defining whether programs are separate, as described in 2340 Exempt Programs That Operate in the Same Locations as Regulated Operations.

5. May an after-school program exempt from regulation by CCR offer care on school holidays and staff in-service days?

Yes, an after-school program may offer part or full day care on school day holidays and staff in-service days as long as the program is operated by a school district or charter school and the dates are within the designated school year.

6. How do CCR staff determine the designated school year?

Each school/school district publishes a calendar that outlines school days, school holidays, and staff in-service days. School holidays and staff in-service days are considered to be within the designated school year as long as these days are specified in writing on the school calendar.

C. Collaborative Programs – Head Start and Prekindergarten

CCR staff use the following guidelines when determining whether to license a Head Start program:

1. Is an operation that combines subsidized programs, such as Head Start and prekindergarten, exempt from regulation by CCR?

An independent school district is exempt from regulation by CCR, if it:

a. operates either a Head Start program or combined program that offers Head Start and prekindergarten; and
b. meets all of the exemption criteria in 26 TAC §745.119(1).

The program is **not** exempt from regulation if it also receives public funding that requires an operation to be licensed by CCR in order to receive the public funding; for example, an operation that receives public funding for child care management services (CCMS).

To determine who operates a program, CCR staff ask who is responsible for hiring, supervising, and firing staff?

Head Start programs and early care and education operations that do not meet the exemption criteria in 26 TAC §745.119(1) must be licensed and regulated by CCR.

D. Miscellaneous Questions and Answers

1. If a facility is sold to a buyer who plans to open an educational program (for example, a Montessori school for children who are 4 to 5 years old), and the buyer is not subject to regulation, must the buyer still complete an exemption request form?

Yes. An operation cannot make its own determination about being regulated or exempt from regulation. Having information about the new program on the exemption request form provides CCR staff with useful information about the new facility and helps CCR staff determine whether or not it is exempt from regulation by CCR.

2. Are court-ordered children's exchanges (domestic relations offices) exempt?

The visitation services provided by a domestic relations office or its contractor do not fit the CCR definition of child day care, so CCR neither regulates them nor exempts them from regulation. Provisions for domestic relations offices and their contractors are covered in the Texas Family Code, §203.004(a)(11).

3. Are the healthy snack programs, administered by the Food and Nutrition Division of the Texas Department of Agriculture, exempt?

Most healthy snack food programs do not fit the CCR definition of child day care, so CCR neither regulates them nor exempts them from regulation.

Among the centers that do fit the definition, those that operate for fewer than two hours a day are not required to obtain an exemption or complete an exemption determination form.

Centers that operate for two hours or more a day are required by the Texas Department of Agriculture Food and Nutrition Division to:

- obtain an HHSC license or proof of exemption; or
- modify their hours to operate for fewer than two hours a day.

4. When should CCR inspect a program requesting an exemption?

If necessary, CCR staff should inspect the program to observe the following prior to making a determination:

a. activities;
b. hours of operation;
c. ages of the children in care; and
d. any other factor related to the type of exemption requested.

Appendix 2000-4 Decision Guide: Is the Care Being Provided Subject to Regulation?

March 2015

To determine whether child care is subject to regulation, Licensing staff review each of the following sections:

Child Day Care Provided at a Caregiver's Home

Child Day Care Provided at a Location Other Than the Caregiver's Home

Determining Whether Care Provided Is Subject to Regulation as a Residential Child Care Facility

Evaluating Child Placing Services

Evaluating Boarding Schools

Exemptions for All Other Residential Operations

Child Day Care Provided at a Caregiver's Home

Regular care is care that is provided for at least four hours a day, three or more days a week, for three or more consecutive weeks or for four hours a day for 40 or more days in a period of 12 months.

"Children related to the caregiver" means:

- children who are the caregiver's children, stepchildren, grandchildren, great-grandchildren, brothers, sisters, stepbrothers, stepsisters, nieces, or nephews;
- a relationship between the child and caregiver that was created by court decree (such as adoption); or
- any combination of the above. See HRC §42.002(16).

To determine whether child day care that is provided at the caregiver's home is subject to regulation, Licensing staff consider the following:

1. Does the caregiver provide *regular* care in the caregiver's own home for children whose ages range from birth through 13 years?
    - If **yes**, see step 2.
    - If **no**, the care is not subject to regulation.
2. Are all of the children *related* to the caregiver?
    - If **yes**, the care is not subject to regulation. (Some providers who care for related children may list with HHSC and therefore be subject to Licensing's regulation as provided by HRC §42.0523, but these providers would not be illegal operations if they did not volunteer to be regulated.)
    - If **no**, see step 3.
3. Does the caregiver provide care for four or more unrelated children?
    - If **yes**, the care is subject to registration or may be licensed as a child care home.
    - If **no**, because there are *three or fewer children in care*, see step 4.
4. Does the caregiver receive compensation for providing care to the children?
    - If **yes**, the care is subject to regulation as a *listed home*.
    - If **no**, the care is not subject to regulation.

See:

Texas Human Resources Codes, §42.002(9)(16)(17) and §42.052(c)(d)

Texas Administrative Code, Chapter 745, subchapters B and C

Child Care Licensing Policy and Procedures Handbook, Section 2000 Handling Inquiries About the Licensing Process and Exemptions

Child Day Care Provided at a Location Other Than the Caregiver's Home

To determine whether child day care, or a plan for child day care, is subject to regulation, Licensing staff consider the following:

1. Is the care provided outside of the caregiver's home?
    - If **yes**, see step 2.
    - If **no**, see Child Day Care Is Provided at a Caregiver's Home, above.
2. Are the children in care for more than two days a week?
    - If **no**, the operation is not subject to regulation and there is no need for further evaluation.
    - If **yes**, see step 3.
3. Is the care provided, or expected to be provided, for three or more consecutive weeks?
    - If **no**, the operation is not subject to regulation and there is no need for further evaluation.
    - If **yes**, see step 4.
4. Are all of the children related to the caregiver? "Children related to the caregiver" means children who are the caregiver's children, stepchildren, grandchildren, great-grandchildren, brothers, sisters, stepbrothers, stepsisters, nieces, or nephews; a relationship between the child and caregiver that was created by court decree (such as adoption); or any combination of the above. See HRC §42.002(16).
    - If **yes**, the operation is not subject to regulation and there is no need for further evaluation.
    - If **no**, the operation is subject to **licensure**. Also, consider the operation for possible **exemption**.

Determining Whether Care Provided Is Subject to Regulation as a Residential Child Care Facility

To determine whether the child care provided is subject to regulation as a residential child care facility (including a child-placing agency), Licensing staff ask the following question:

Are all of the children related to the caregiver? "Children related to the caregiver" means children who are the caregiver's children, stepchildren, grandchildren, great-grandchildren, brothers, sisters, stepbrothers, stepsisters, nieces, or nephews; a relationship between the child and caregiver that was created by court decree (such as adoption); or any combination of the above. See HRC §42.002(16)

- If **yes**, the operation is not subject to regulation and there is no need for further evaluation.
- If **no**, Licensing staff evaluate further to determine whether the operation is subject to regulation or exempt from regulation.

Evaluating Child Placing Services

A program that brings birth mothers and prospective adoptive parents together, but does not arrange the adoption, is not considered to be making plans for a placement. Such programs are not subject to regulation as long as the program:

- does not receive compensation for its services; and
- does not conduct child placement activities.

Child placing agencies located in Texas that provide only international adoption services are subject to Licensing's regulation when placing a child with a Texas family.

Licensure by Another State Agency

Licensure by another state agency to provide medical care does not exempt a facility from the need to be licensed as a child placing agency, if child placing activities are being conducted.

Evaluating Boarding Schools

An accredited educational program or operation for grades pre-kindergarten and above is exempt from regulation by Licensing, if all of the following are true:

a. The educational operation operates primarily for educational purposes.
b. The educational operation operates the program.
c. All children in the program are at least pre-kindergarten age (three or four years).
d. The educational operation or program is accredited by the Texas Education Agency (TEA), the Southern Association of Colleges and Schools (SACS), or the Texas Private School Accreditation Commission (TEPSAC). Being in the process of applying for accreditation or having applied for accreditation does not constitute accreditation.
   For information on an individual school's accreditation status, visit AskTED for the Texas Education Directory (TED), or TEPSAC for access to the TEPSAC directory.
e. The parents retain primary responsibility for financial support, health problems, or serious personal problems of the students.
f. The residential child care is provided solely for the purpose of facilitating a student's participation in the educational program and does not exist apart from the educational aspect of the facility.

Exemptions for All Other Residential Operations

The following are exempted from regulation as a residential child care facility:

1. A facility operated on a federal installation, including military bases and Indian reservations, is exempt.
2. The following state-operated programs:
    a. A juvenile detention facility certified under §261.405, Texas Family Code, or a juvenile facility providing services solely for the Texas Juvenile Justice Department or any other correctional facility for children that is operated or regulated by another state agency or by a political subdivision of the state.
    b. A treatment facility or a structured program for treating chemically dependent persons that is licensed by the Texas Department of State Health Services.
    c. A youth camp licensed by the Texas Department of State Health Services.
    d. A youth camp exempt from licensure by the Texas Department of State Health Services under §141.0021, Health and Safety Code, because it is:
        1. operated by or located on the campus of an institution of higher education, as defined in §61.003(8), Education Code, or a private or independent institution of higher education, as defined in §61.003(15), Education Code; and
        2. regularly inspected by at least one local governmental entity for compliance with health and safety standards.
3. Programs of limited duration:
    a. A short-term program, if the program:
        1. operates no more than 11 weeks during the year;
        2. provides care only for children who are at least five years old and younger than 14 years old; and
        3. is not a part of an operation subject to regulation by HHSC Licensing.
    b. A religious program, if it is:
        1. an ongoing program of religious instruction, such as Sunday school or weekly catechism; or

2. a religious program that lasts two weeks or less.

c. A respite care program, if:
1. the program provides residential child care on weekends or for a short time;
2. the care is planned;
3. the program does not provide care for more than 40 days per year; and
4. the program is not a part of an operation subject to regulation by Licensing.

d. A foreign exchange or sponsorship program, if the children in the program:
1. entered the United States on a time-limited visa;
2. are living in the home of a person they are not related to; and
3. are under the sponsorship of the person with whom they are living, or are under the sponsorship of some organization.

e. An arrangement between friends, if:
1. the caregiver is friends with the parents of the child;
2. the purpose of the arrangement is to provide temporary residential child care for one child or a sibling group; and
3. the care does not exceed 40 continuous days or 150 total days in a calendar year.

4. Miscellaneous programs:

a. A caregiver providing residential care, if all of the following are true:
1. There is only one unrelated child or sibling group.
2. The caregiver had previously known the children or family of the children.
3. The caregiver does not receive compensation or solicit donations for the care of the child or sibling group. Compensation is anything of value, beyond the child's normal expenses, that is received by the caregiver from the parent in exchange for care of the child. Compensation does not include reimbursement for the normal expenses associated with caring for a child, including Medicaid payments, insurance benefits, or other governmental benefits or assistance.
4. The caregiver has a written agreement with the parent to care for the child or siblings.

b. An emergency shelter for minors, as defined by §101.003, Texas Family Code, must meet the following:
1. The purpose of the shelter is to provide shelter or care to a minor and the minor's child or children if any.
2. The shelter provides care for the minor and the minor's child or children only when there is an immediate danger to the physical health or safety of the minor's child or children.
3. The shelter does not provide care for more than 15 days, unless the minor consents to shelter or care to be provided to the minor or the minor's children and is:
a. 16 years of age or older, resides separate and apart from the minor's parent, and manages the minor's own financial affairs; or
b. unmarried and is pregnant or is the parent of a child; or
c. has qualified for Temporary Assistance for Needy Families (TANF) and is on the waiting list for housing assistance; and
d. Licensing staff have received written confirmation on the items listed in this section.

c. A caregiver caring for a child placed by DFPS when all of the following are true:
1. The caregiver has a longstanding and significant relationship with the child.
2. DFPS is the managing conservator of the child.
3. DFPS placed the child in the caregiver's home.

d. Emergency shelter care for human trafficking victims:
1. may not otherwise operate as a child care facility that is required to have a license from HHSC;
2. is operated by a nonprofit organization;
3. provides shelter and care for no more than 15 days to alleged victims of human trafficking as defined in Penal Code §20A.02, who are 13-17 years old; and
4. is located in a municipality with a population of at least 600,000 that is in a county on an international border, and:
a. is licensed by, or operates under an agreement with, a state or federal agency to provide shelter and care to children; or
b. is a family violence center that meets the requirements listed under Human Resources Code §51.005(b)(3), as determined by the Health and Human Services Commission.

Appendix 3000, Notifying the Operation and Types of Governing Bodies

May 2020

Appendix 3000-1 Notifying the Operation

Revision 23-4; Effective Nov. 30, 2023

Use the following chart to determine whom to notify in the following situations:

Situation	Director, Administrator, or Person in Charge	Applicant, Designee, or Permit Holder	Child Day Care Only: Head of Governing Body, such as CEO or Board Chair	Controlling Person
Results of an inspection	Always	Always	If enforcement action imposed OR If requested on Form 2911 Child Care Licensing Governing Body/Director Designation	
Receipt of a report of possible deficiency with minimum standard rules* (verbal notification is acceptable)	Always*	During the application or initial period OR If allegations are classified as P1 or P2	If allegations are classified as P1 or P2 OR If requested on Form 2911 Child Care Licensing Governing Body/Director Designation	
Results of an investigation	Always	Always	If violations were classified as P1 or P2 OR If enforcement action imposed OR If requested on Form 2911	
Receipt of relevant criminal history (verbal notification is acceptable)	Always	Within 14 days, if this is the person responsible for hiring staff		
Receipt of Central Registry match (verbal notification is acceptable)	Always	If this is the person responsible for hiring staff: Immediately, if presence of person presents a risk OR After release hearing is offered and refused OR After release hearing is held and findings upheld		
Enforcement action taken against the operation	Always	Always	Always	Always

* CCR staff must inform the applicant or permit holder of the nature of the allegations by the next workday following the first on-site investigation, unless there is reason to believe that the investigation may be compromised. If it appears the investigation may be compromised, CCR staff may postpone explaining the nature of the allegations. CCR staff must inform the appropriate persons of the nature of the allegations as soon as it is decided that our doing so will not compromise the investigation. See 26 TAC Section 745.8441.

Appendix 3000-2 Types of Governing Bodies

May 2020

The chart below lists the types of governing bodies that an applicant for a permit may be.

Type of Governing Body	Definition
Association	A combination of individuals and interests of some kind without a tax-exempt status from the IRS. Not organized under the Texas Business Organizations Code.
Corporation	An intangible entity created by individuals to operate for profit but to limit individual liability. Organized according to the Texas Business Organizations Code or similar act of another state as evidenced by the corporation's Certificate of Formation.
Limited Liability Company (LLC)	An entity organized and existing in accordance with the Texas Limited Liability Company Act. The secretary of state has authority over the formation and existence of LLCs.
Limited Liability Partnership	A partnership that registers with the secretary of state as a limited liability partnership as allowed in the Texas Revised Partnership Act. This status limits the range of a partner's personal liability for the debts and

Type of Governing Body	Definition
	obligations of the partnership.
Nonprofit Association with Religious Affiliation	A combination of individuals and interests of some kind, synonymous with society, with operations devoted to religious purposes. Not organized under the Texas Business Organizations Code. Operated by, responsible to, or associated with an organization of individuals devoted to religious purposes. Does not include those whose relationship with a religious organization is only for business, such as those who only lease space.
Nonprofit Corporation	Equivalent of not for profit corporation. None of the income is distributed to members, directors, or officers. Organized under the Texas Business Organizations Code.
Nonprofit Corporation with Religious Affiliation	An entity with nonprofit corporation status operated by, responsible to, or associated with an organization of individuals devoted to religious purposes. Does not include those whose relation with a religious organization is only for business, such as those who only lease space.
Nonprofit Association	A combination of individuals and interests of some kind, synonymous with society, with operations devoted to charitable, benevolent, religious, patriotic, or educational purposes, not organized under the Texas Business Organizations Code.
Partnership	A combination by contract of two or more people who use their money, labor, and skill to carry on a continuing business, dividing the profits and sharing the losses in an agreed manner. Includes general and limited partnerships.
Political Subdivision	Includes any city, county, school district, junior college district, public health district and any political entity that is operated by and under the jurisdiction of a government unit that has distinct geographical barriers within the state of Texas, and is defined in part by its geographical area.
Sole Proprietorship	Personal ownership with the legal right and responsibility to possess, operate, sell and otherwise deal with the operation. A sole proprietorship is just one person. Before Feb. 1, 2004, a sole proprietorship could include an operation owned in common by a husband and wife. A license issued to a husband and wife as a sole proprietorship before Feb. 1, 2004, may remain as a sole proprietorship until revoked or surrendered.
State-operated	Operated by, under the direct jurisdiction of, and responsible to an agency of the state of Texas.

Appendix 4000, Reserved for Future Use

May 2020

Appendix 5000, Administrative Actions

Appendix 5000-1 Reviewing Waiver and Variance Requests

Appendix 5000-1A Guidance on Reviewing Day Care Waiver or Variance Requests

December 2020

The sections listed below refer to common waiver and variance requests that CCR receives. Within each section is guidance regarding what types of documentation may be needed and what information to consider when evaluating a request for a waiver or variance.

5000-1A.1 Director Qualifications for Licensed Child Care Centers, School-Age Programs, and Before- or After-School Programs

5000-1A.2 GED or High School Diploma

5000-1A.3 No Fence Around Playground or Yard

5000-1A.4 No Hand-Washing Sink in the Diaper-Changing Area

5000-1A.1 Director Qualifications for Licensed Child Care Centers, School-Age Programs, and Before- or After-School Programs

December 2020

Documentation	Considerations
Transcripts of college courses (may also need course descriptions from college catalogs or course syllabi)	Evaluate courses for relevance to the minimum standard that is the subject of the request. For the request to be approved, the applicant or designee for a director position must have at least one-half of the education, training and experience requirements, unless:

Documentation	Considerations
	• the person is seeking to be a site director at a Before- or After-School Program (BAP) or School-Age Program (SAP), which care for school-age children for shorter periods of time; or • granting the request would result in a licensed child care center (one that currently shares its director with another center) having its own director.
Training logs or certificates	Evaluate for relevance to child development or management requirements. Conversion: 50 clock hours = 5 CEUs = 3 SCHs CEUs (continuing education units) SCHs (semester credit hours)
Personal History Statement, Form 2982	Evaluate work experience. Count the years the person has worked at a licensed operation, exempt operation regulated by some other entity, or public or private accredited school where teaching experience for primary grades (Pre-K to 3) was obtained.

Other Factors	Considerations
Size of operation	Recognize large operations need and should be able to afford a fully qualified director.
Overall compliance history of the operation	Understand an operation with a good compliance history has different needs in a director than a new operation or one with ongoing compliance issues.
Other waivers or variances requested	• Does the operation already have several waivers or variances in effect or are there only a few? • How many of the operation's previous directors required a waiver or variance for director's qualifications?

Conditions

CCR staff must be able to monitor and enforce the conditions. CCR staff must specify exactly what is needed to meet minimum standards and a timetable or plan for achieving it. Consequently, the operation must document progress toward meeting the applicable standard and make the documentation available for CCR's review.

Example

This variance applies only to [insert name of director] while working towards compliance with the standard. The director must complete six college credit hours of Business Management. The operation must provide proof of enrollment in courses to your CCR inspector and proof of successful completion before the expiration date of this variance. Business Management includes any administrative or supervisory course and may include a child development course, such as administration of a child care operation. Accounting, goal and objective setting performance, planning and evaluation, and so on, all count towards business credit.

Documentation in CLASS in *Director/Administrator* Section

Circumstance	Where and How to Document
A designated director of a licensed child care center	In the *How DC Director Qualified* field select "Waiver Variance Requested"
A second director of a licensed child care center	In the *How DC Director Qualified* field select "Waiver Variance Requested"
Any type of director of a before- or after-school program or a school-age program	Leave the *How DC Director/Site Director Qualified* field blank

5000-1A.2 GED or High School Diploma

December 2020

Documentation Needed	Considerations
Enrollment in a GED study program (or 18 years of age and in a high school child development program such as HECE)	This is the minimum education requirement; all caregivers and employees should meet the standard. Are they working at passing the test or just planning on taking and retaking the tests over time?
Other situations where person has shown ability (other courses taken, jobs held)	Have they met the requirement in another way?
Situation person is working in Licensed Child Care Home or Licensed Center	• **Registered Child Care Home** Provider is the only caregiver and must provide proof of high school diploma or GED to become registered. • **Licensed Child Care Home** Qualified employees can supervise employees (director should not be waived under most circumstances).

Documentation Needed	Considerations
	• **Licensed Center** Employee is one of several adults who can assure safety of children.
Compliance history of operation; other waivers or variances in effect?	• Are they maintaining compliance? • Is there a pattern of hiring unqualified employees? • How many employees have a GED variance (small vs. large program should have different limits on unqualified employees)? • Is the director also unqualified?

Conditions

CCR staff must be able to monitor and enforce conditions. The caregiver must show progress toward meeting the standard (course attendance, proof of taking tests and completion of GED or high school), and this must be documented for review by CCR.

Employees 18 years of age and in high school but not in a work-study program should not be counted in the child caregiver ratio unless another qualified adult not counted in ratio is present and available to assist. CCR staff should consider additional training hours.

Example

This variance pertains only to [insert name of person] while he or she works toward compliance with the standard. [Insert name of person] will attend and participate in GED classes and take the GED examination. Progress for the GED must be maintained and be documented for review by your CCR monitoring inspector. The operation must submit proof of successful completion of the GED to the CCR monitoring inspector no later than [insert date]. This variance will not be renewed.

5000-1A.3 No Fence Around Playground or Yard

December 2020

Documentation Needed

- Drawings with measurements
- Photos of the area
- Outdoor floor plan
- Description, photos or video of surrounding areas

Considerations

- What is the fiscal impact to the operation if the operation must comply (if a waiver is being requested)?
- Can children be supervised adequately enough to assure their safety?
- Are there things (temporary barriers, and so on) that can be effectively used to enclose the area?
- Is there an absence of hazards (traffic, ditches, creeks, and so on) immediately surrounding the area?
- Is there a limit on the amount of time the area will be unfenced (such as, while they build a new playground, or get enough money for a fence)?
- How was the fence damaged (e.g., natural disaster, event outside of the operation's control)?

Conditions

CCR staff must be able to monitor and enforce conditions. Conditions should specify what steps the operation will take to assure the children's safety. The expiration date of the waiver should allow for assessment of changing conditions (such as an increase in traffic in a previously rural area) or agreed-on date of compliance.

Examples

This waiver only applies to [operation name]. The director must ensure employees follow plan to place cones out for psychological boundaries before children go outside. The director must ensure that there is only one group on the playground at a time.

The operation must be able to show progress toward installation of a fence no later than three weeks before expiration of the waiver. The fence must be installed and ready for use by the expiration date of this waiver. This waiver will not be renewed.

5000-1A.4 No Hand Washing Sink in the Diaper Changing Area

December 2020

Documentation Needed

- Drawings of floor plan with measurements or photos
- Written plan that outlines how the operation will ensure minimum standards for washing hands are met

Considerations

- What is the operation's plan for ensuring caregivers and children wash hands after each diaper change?
- Can the operation get a portable sink so a waiver or variance is not needed?
- If the request is for a waiver, what is the fiscal impact to the operation if they are required to install a sink?
- What is the operation's plan for ensuring that all children are supervised at all times?

Conditions

CCR staff must be able to monitor and enforce conditions. Conditions should specify what steps the operation will take to assure the children's health and supervision and that the minimum standard must be met by the expiration date of the waiver or variance.

CCR staff must observe hand washing and diaper changing procedures.

Example

This waiver only applies to [operation name and specific classroom]. The operation must develop and provide CCR with a plan that, at minimum, addresses how caregivers will ensure that caregivers and children wash their hands promptly after each diaper change and how children will be supervised at all times. The handwashing sink used for diaper changing may not be in the same area that food is prepared.

Appendix 5000-1B: Guidance on Reviewing Residential Child Care Waiver or Variance Requests

March 2002

When assessing the following types of waiver or variance request, certain information should be considered, along with sufficient documentation to verify information when appropriate.

See:

5000-1B.1 GED or High School Diploma

5000-1B.2 Extending a Child's Stay

5000 1B.3 Medical Exam Within 30 Days

5000-1B.4 Foster Home Ratios

5000-1B.5 Children Younger Than Five Years in a Foster Group Home

5000-1B.6 Children of the Opposite Sex Sharing a Bedroom

5000-1B.1 GED or High School Diploma

November 2008

Documentation	Considerations
School enrollment or enrollment in a GED program	How close is the person to completing the educational requirements?
Other relevant work, training or course experience	How much experience does the person have?
Type of job responsibilities, environment and operation the person will be working in	• Will the person have adequate supervision and support? • Will the person have adequate training to work with the child population? • Will the person have adequate training to meet the job responsibilities? • Will the training be given prior to being left alone with children?
Compliance history of the operation	• Is the operation having trouble meeting standards?

Documentation	Considerations
	• Is there a pattern of hiring unqualified employees? • Is the administrator or any other key person in the operation also unqualified? • How many employees have a GED or high school variance? • What is the size and location of the operation (smaller operations and operations in smaller communities may have different limits on unqualified staff)?

Waiver or Variance Considerations

Licensing staff must be able to monitor and enforce conditions. Documentation must specify what steps will be taken toward meeting educational requirements. Course attendance, documentation proving successful completion of GED tests, and earning a GED or high school diploma must be available for review by Licensing.

Example

The variance pertains only to [insert name of person] while he completes the remaining two out of three GED exams to meet compliance with minimum standards. Documentation of his GED class enrollment and successful completion of the GED program must be maintained in the personnel record. [Insert name of person] must submit proof of successful completion of the GED to the Licensing representative no later than two months from this date. The variance will expire on **[insert date]**.

5000-1B.2 Extending a Child's Stay

November 2008

Documentation Needed

- Reason for need to extend the child's stay

Consideration

- Is this in the best interest of the child?
- Are there other viable options?

Conditions

Licensing staff must be able to monitor and enforce conditions. Conditions should be stated so that the operation's compliance can be monitored.

Example

This variance only applies to Child A for this placement. The variance expires when Child A is discharged or by [insert date], whichever occurs sooner. The operation will maintain contact with Licensing regarding the status of the potential placement plans.

5000-1B.3 Medical Exam Within 30 Days

November 2008

Documentation Needed

- Reason additional time is requested

Considerations

- Does the child have any special health needs?
- What is the child's age?

Conditions

Licensing staff must be able to monitor and enforce conditions. Conditions should be stated so that the operation's compliance can be monitored.

Example

This variance only applies to [insert child's first name and the last name's initial] in the home of [insert names of caregivers]. The child must receive medical care as needed for illness or injury. This variance expires [insert date] or when a medical exam has been obtained for the child, whichever is sooner.

5000-1B.4 Foster Home Ratios

November 2008

Documentation Needed

- Reason for request

Considerations

- What is the operation's compliance history?
- Is there support available for the foster parents?
- What is in the best interest of the child?
- Is the child related to one or more other children in care?

Conditions

Licensing staff must be able to monitor and enforce conditions. Conditions should be stated so that the operation's compliance can be monitored.

Example

This variance only applies to [insert child's first name and the last name's initial] in the home of [insert names of caregivers]. Arrangements for respite will be made if the foster parents feel they need it. The CPA will conduct monthly home visits while the variance is in effect. The CPA must provide services in accordance with the Minimum Standards for Child-Placing Agencies.

5000-1B.5 Children Younger Than Five Years in a Foster Group Home

November 2008

Documentation Needed

- Reason for request

Considerations

- What is the operation's compliance history?
- Is the child related to one or more other children already in care?
- What is in the best interest of the child?

Conditions

Licensing staff must be able to monitor and enforce conditions. Conditions should be stated so that the operation's compliance can be monitored. Licensing staff may consider reducing the home's capacity while the variance is in effect.

Example

This variance only applies to [insert child's first name and the last name's initial] in the home of [insert names of caregivers]. The variance expires when the child is adopted or otherwise discharged or on [insert date], whichever is sooner. No additional placements may be made while the variance is in effect.

5000-1B.6 Children of the Opposite Sex Sharing a Bedroom

November 2008

Documentation Needed

- Reason for request

Considerations

- What is the operation's compliance history?
- Do one or more of the children have identified special needs?
- What is in the best interest of the children?
- What are the ages of the children the request is for?
- Are the children related?

Conditions

Licensing staff must be able to monitor and enforce conditions. Conditions should be stated so that the operation's compliance can be monitored.

Example

This variance only applies to [insert child's first name and the last name's initial] in the home of [insert names of caregivers]. The home will develop and follow a written plan for supervision.

Appendix 5000-2 Licensing Fees

February 2020

The table below describes Licensing fee invoicing. This includes when an invoice is created, payment is due and consequence for not paying a fee on time. For further information, see 5200 Fees.

Fee Invoice Type	When and How Invoice is Generated	When Fee Payment is Due	Consequence if an Operation Fails to Meet Time Frames
Application	For an e-Application, CLASS generates the invoice at the time the applicant submits the e-Application. For a paper application entered into CLASS, CLASS generates the invoice after saving the operation's *Main* page for the first time.	Application acceptance date.	Return application as incomplete.
Initial license	The inspector generates the invoice after accepting the application and before issuing the initial license.	Before issuance of initial license.	Do not issue initial license.
Initial renewal	The inspector generates the invoice when the inspector determines a full license cannot be issued.	Before issuance of the renewed initial license.	Do not renew initial license.
Full license	The inspector generates the invoice when the operation is eligible for a full license.	Before issuance of a full license.	Denial, if the fee is not paid by the expiration date of the initial or renewed initial license.
Annual fee	CLASS generates the invoice to the operation 35 days before the anniversary date of the full permit.	Anniversary date of the issuance of a full permit.	Automatic suspension, if the fee is not paid by the anniversary date. Automatic revocation, if the fee is not paid within six months after the automatic suspension begins.
Capacity Increase	CLASS generates the invoice when the inspector approves the operation's request to increase capacity.	Before the amended permit is issued.	No increase in capacity.
Background check	CLASS generates the invoice at the beginning of each quarter.	On a quarterly basis.	Possible suspension or revocation of the permit.

Appendix 5000-3 Invoice Cancellation Reasons

February 2020

The chart below outlines which invoices may be canceled, the cancellation options for each, and who may cancel the invoice.

Invoice Type	Possible Cancellation Reasons	Who May Cancel
Application Fee Invoice	Operation is Exempt	• Program Administrator • District Director

Invoice Type	Possible Cancellation Reasons	Who May Cancel
Annual Fee Invoice	Operation is Exempt	• Program Administrator • District Director
Background Check Fee Invoice	Operation is Exempt	• Program Administrator • District Director
Initial Permit Fee Invoice	Operation is Exempt or Created in Error	• Inspector • Supervisor • Program Administrator • District Director
Initial Permit Renewal Fee Invoice	Operation is Exempt or Created in Error	• Inspector • Supervisor • Program Administrator • District Director
Full Permit Fee Invoice	Operation is Exempt or Created in Error	• Inspector • Supervisor • Program Administrator • District Director
Capacity Increase Fee Invoice	Operation is Exempt or Created in Error	• Inspector • Supervisor • Program Administrator • District Director

Appendix 6000, Investigations

Appendix 6000-1 Investigator Time Frames for Investigations

Revision 24-3; Effective Aug. 15, 2024

Use the table below to determine when certain actions must be completed after SWI or the local CCR office receives the intake report.

All days are calendar days. Supervisors may require shorter time frames on certain investigations based on the risk to children. Investigators document all investigation activities the same day the activities occur or the following day.

During all RC investigations, the investigator must see all victims as soon as they are identified and no later than the required time frame below.

For more information, refer to section 6200 Receiving, Assessing and Processing Intake Reports.

Action	Priority 1 (P1) Intakes	Priority 2 (P2) Intakes	Priority 3 (P3) Intakes	Priority 4 (P4) Intakes	Priority 5 (P5) Intakes
Conduct Initial Investigation Staffing (RCCR only)	• Before initiation; or • Within five days after the intake received date if the staffing cannot occur before the initiation	• Before initiation; or • Within five days after the intake received date if the staffing cannot occur before the initiation.	N/A	N/A	N/A

Action	Priority 1 (P1) Intakes	Priority 2 (P2) Intakes	Priority 3 (P3) Intakes	Priority 4 (P4) Intakes	Priority 5 (P5) Intakes
Initiation of the investigation	Within 24 hours	Within 72 hours (RCCR only) Within 5 days (DCCR only)	Within 15 days	N/A	Within 5 days
Face-to-face contact with all alleged victim(s) identified before initiation of investigation (RCCR only)	Within 24 hours	Within 72 hours	Within 15 days	N/A	N/A
Face-to-face contact with all alleged victim(s) identified after initiation of investigation (RCCR Only)	Within 24 hours of identification	Within 72 hours of identification	Within 15 days of identification	N/A	N/A
Inspection at operation	Within 15 days	Within 15 days	Within 30 days	Within 45 days for CPA Internal Investigations Within 30 days for all other types of investigations	N/A
Conduct 20-Day Investigation Conclusion Staffing (RCCR only)	Within 20 days	Within 20 days	N/A	N/A	N/A
Complete the investigation	Within 30 days	Within 30 days	Within 60 days	Within 60 days	Within 60 days
Investigations: Complete the documentation	The same day the investigation is completed	The same day the investigation is completed	Within 60 days	Within 60 days	Within 60 days
Finalize and send the notification letters to the operation and, if applicable, the reporter	The same day the investigation is completed	The same day the investigation is completed	Within 60 days	Within 60 days	Within 60 days

Appendix 6000-2 Worker Safety

September 28, 2018

Staff safety is one of the most important factors in any investigation or inspection. CCL staff must immediately leave any situation they feel is unsafe.

If a provider or another person shows any signs of physical or verbal hostility or aggression, staff should immediately leave the operation and not return unless and until circumstances indicate that returning to the operation would not pose a safety threat. Attempting to continue an investigation or inspection in these situations can escalate an unsafe situation.

A coworker or supervisor should accompany staff on a return attempt to inspect or investigate the operation. If verbal or physical signs of hostility or aggressive behavior continue to be present, staff consult with their supervisor. If staff must return to complete necessary interviews or inspections, staff may contact law enforcement in order to ensure safety during the completion of the inspection or investigation. They may also contact Child Care Licensing Legal Services about getting a court order to assist the investigation. See Human Resources Code Section 42.04412.

No law, policy, or local procedure requires CCL staff to enter or remain in a dangerous situation.

The following best practices are steps that can be taken to help ensure worker safety in the field when conducting inspections and investigations:

a. Conduct team inspections if the operation is located in an area with a high rate of crime or if the inspection is conducted at night.
b. Upon arriving at the operation, ask the provider who else is in the operation at the time of the inspection.
c. Upon arriving at the operation, ask the provider to describe or show you the layout of the operation.
d. Ask the provider to lead the way during an inspection.
e. Update your Outlook calendar before each inspection or investigation activity with the operation name, operation number and your location (e.g., operation, school, or off-site meeting location).
f. Take your state-issued phone with you to all inspections and investigation activities.
g. Enter your supervisor's phone number on speed dial.
h. Identify an agreed upon strategy with your supervisor for emergencies.
i. During the course of the inspection or investigation, if the provider or any other person displays inappropriate behavior or comments leave the operation or interview, report the incident to your supervisor, and return at another time with a coworker.

Appendix 7000-1, Factors to Consider for Enforcement Actions

March 2019

Licensing staff may consider enforcement actions when an operation meets any of the criteria outlined in 7110 Circumstances That May Call for Enforcement Action.

When determining what type of enforcement action to take consider the following:

Governing Body and Staffing

Level of Involvement of the governing body has in the operation

Ability to identify operation needs

Knowledge behind intent of standards

Knowledge of operation policy and procedures

Other history as a permit holder, governing body, or a controlling person

Compliance History

Scope and severity of deficiencies

Patterns of deficiencies

Repetition of deficiencies

Investigation history

Responsiveness to deficiencies

Previous enforcement actions

Nature of Risk

Isolated serious incident that may have resulted in injury or death or has resulted in injury or death

Systemic issues at the operation that negatively impact the health and safety of children in care

Other/Extenuating Factors

Operation capacity

Type of permit

Type of services provided

Number of children impacted by enforcement action

Impact to the community

Involvement from the other governmental agencies

Here are some questions (by area) to consider when assessing risk:

Governing Body and Staffing

a. Are the director, administrator, and the operation's professional staff qualified to hold their respective positions at the operation?
b. Does the director or administrator maintain an adequate presence at the operation?
c. Are the director, or administrator, and the operation's staff and caregivers aware of and knowledgeable about the minimum standard rules?
d. Does the person in charge have the authority to make changes or corrections? Is the person in charge knowledgeable about the minimum standard rules?
e. Are staff mindful of environmental factors (location, physical facilities, proximity to sex offenders, and so on) that may present a hazard to children in care?
f. What is the level of experience of the staff?
g. Is adequate staff training and orientation provided?
h. What is the frequency of staff turnover?
i. Are approved risk evaluations in effect? If so, how many approved risk evaluations are in effect and for what type of background check findings? Are there any patterns in the type of charges or abuse or neglect allegations upon which the risk evaluations were conducted? Are conditions of the approved risk evaluations met?

Compliance History and Nature of Risk

a. Are waivers or variances in effect and, if so, how many? Are conditions of the waivers or variances met?
b. Have there been significant changes in the operation's compliance history? If so, do changes in performance correlate with any specific factors at the operation (for example, a new director, change in season, staff shortage)?
c. Are fire and health inspections kept current and are repairs to the physical building and outdoor equipment made promptly?
d. Are deficiencies that have been recently cited related to high-risk standards (such as infant care, quality of supervision, child/caregiver ratio, and emergency behavior intervention)?
e. Have deficiencies been addressed appropriately and in a timely manner? Are there repeated deficiencies?
f. Do the staff or caregivers appear to recognize how continued deficiencies will affect the children?
g. Is the operation responsive to technical assistance?
h. Has the operation historically initiated corrections on its own, or waited for additional regulatory action to be implemented before correcting deficiencies?
i. How many warning letters has Licensing sent to the operation during the past 24 months?
j. Has the operation previously completed and implemented Form 7277, Child Care Licensing Plan of Action?
k. Have monetary penalties been assessed against the operation?
l. Is the operation on, or has it ever been on, evaluation or probation?
m. Were previous Licensing actions successful at reducing risk?
n. How many reports of potential problems (investigations) has Licensing received about the operation? Did Licensing ultimately cite the operation for deficiencies? What percentage of the reports received were self-reports? How many reports should have been self-reported but were not?
o. Is there a trend in the type of allegations or serious incidents reported?
p. What are the ages of the children involved in any deficiencies or questionable situations?
q. Did any of the reports result in substantiated determinations of abuse or neglect?

Other/Extenuating Factors

a. What age range does the operation serve?
b. What are the hours of operation?
c. What services does the operation provide?
d. Were children in care during the last inspection?

Appendix 8000, Reserved for Future Use

Appendix 9000, Instructions for the Administrative Technician in the Licensed Administrator Program

Appendix 9000-2 Applications for Administrator's Licenses

November 2008

Creating a Paper File

Starting a File

When Licensing receives an application for an administrator license, staff create a paper file.

If Licensing receives other application-related materials in advance of the application form, staff file the materials in a general *Pending* file.

Once Licensing receives the application form, staff refers to the *Pending* file for any matching application materials.

Tracking Receipt of Documents

Ensure that all application-related materials are stamped with the date they were received.

Attach to the materials the envelopes in which they were received in.

If multiple materials arrive in one envelope, make a note at the bottom of each of the materials that will not be attached to the envelope, to show that they arrived in that envelope.

Matching materials to envelopes is important. If an application is denied, the envelope information may strengthen evidence presented in a hearing before the State Office of Administrative Hearings (SOAH).

Incomplete Applications

Incomplete files must be kept separate from those that have been approved and are waiting on exam results.

Send the applicant a letter informing him or her about what is missing from the application materials.

If the application materials continue to be incomplete, send updated letters three months after the application was received and six months after the application was received.

If the application materials remain incomplete after one year, send a notice that the application has expired.

Ensure that the application shows as lapsed in the Licensed Administrator database.

All of the letters noted above must be *generated manually*, and the time frames must be *tracked manually*. The letters are not generated automatically through the end-of-week process.

Background Checks

A background check is required for each applicant. See Appendix 9000-4 Background Checks for Administrator's Licenses.

Updating the Database

To update the database, Licensing staff take the following steps:

- Enter the applicant's Social Security number and license type in the fields in the lower right corner of the *Administrator* page, then click on the *New Admin* button. This creates a new record for the applicant and assigns an ID.
  - Enter the applicant's first name first, followed by a space and the last name. Use the applicant's legal name, unless the applicant specifically requests otherwise. Do not enter a middle name.
  - The address in the database is automatically entered on all correspondence generated by the end-of-week process. Check that the address is accurate.
- Complete the rest of the *Administrator* page. Record the application fee on the *Application* page in the fields for *Amount* and *Check Number*, then select *Save Payment*.
- Do not enter information on the *Qualifications/Exam* page until the application has been reviewed and either approved or denied. After the application has been reviewed, enter the applicant's qualifications on the *Qualifications/Exam* page and then ensure that the *Application Level Status* field on the *Application* page indicates either *Complete* or *Denied*, as appropriate.
- Although a medical exam is no longer required, select *Yes* for the *Medical Exam* field on the *Qualifications/Exam* page so that the application processes correctly.

Appendix 9000-3 Renewing Administrator's Licenses

November 2008

To process a renew request for an administrator's license, Licensing staff take the following steps:

- Ensure that all renewal materials are date stamped.
- Compare the postmarked date on the envelope in which the renewal was mailed to the expiration date on the administrator's license to determine if late fees apply. Keep the envelope only if the postmark shows that the renewal is late.
- Make a note on the renewal request if the fee submitted is inadequate, based on the status requested (active or inactive) or the timeliness of the renewal, or both. For fee schedules, see §745.9003 and §745.9005 of the Texas Administrative Code.
- If the administrator's license was inactive for the entire renewal period, no training hours are required.
- Enter the renewal fee and number of training hours required into the Licensed Administrator database *after* the training hours have been approved.

A background check is required for each licensed administrator who is renewing on active status. See Appendix 9000-4 Background Checks for Administrator's Licenses.

The end-of-week process generates either a renewal letter or a letter informing the licensed administrator that his or her renewal is pending (due to an inadequate number of training hours). A letter regarding the pending status of a renewal due to fees owed must be generated manually.

Licensing staff also:

- ensure that updates to the licensed administrator's contact information are entered into the Licensed Administrator database.
- If a person requests withdrawal or emeritus status, put a dated note in the *Comments* field on the page under the *Review and Comments* tab, then go to the page under the *Certification* tab and use the drop down menu to select the appropriate special action code. The emeritus request must meet the policy requirements.

Appendix 9000-4 Background Checks for Administrator's Licenses

November 2008

Texas Residents

When a Texas resident applies for an administrator's license or renew a license that is in active status, the following actions are taken:

- Licensing staff run a background check on each applicant or licensed administrator, using CLASS
- Licensing staff enters operation number 819934 in CLASS
- The Centralized Background Check Unit (CBCU) processes the background check and notifies the Licensed Administrator program of matches that violate minimum standards rules

Persons Living Outside of Texas

When a person living outside of Texas applies for an administrator's license or renew a license that is in active status, the following actions are taken:

- Licensing conducts a background check using CLASS
- The applicant or licensed administrator obtains an FBI fingerprint check
- The applicant or licensed administrator requests a Central Registry check from his or her state of residence and sends the Licensed Administrator program the results
- The CBCU follows up on any Central Registry or criminal history matches

Background Check Fees

If the applicant or licensed administrator already receives background checks through a licensed residential child care operation, do not charge a fee for the additional background check related to the application or administrator's license.

To request a background check in CLASS:

- select the *Background Check* tab;
- enter the operation number (819934) for the Licensed Administrator program and select *Verify;* and
- enter the applicant's or licensed administrator's Social Security number and then select *Search Person* to open the *Person Details* page.

If the Social Security number has not undergone a background check through CLASS, CLASS indicates that no records match your search criteria. This is not an error message; it is notification that the Social Security number is new to CLASS.

If CLASS does not find a match for the Social Security number, complete all of the fields on the *Person Details* page and select *Save* at the bottom of the page.

If CLASS finds a match for the Social Security number, check the pre-filled information against the information available about the applicant or licensed administrator. Update any fields, if necessary, before selecting *Save* at the bottom of the page.

CLASS runs the background check, and the CBCU processes the results.

Appendix 9000-5 Processing Fees

September 28, 2018

To process an applicant's or licensed administrator's payment for any fee:

- stamp the back of the check with the *Deposit* stamp;
- record the check type (personal, business, or money order), the check amount, and the check number on the application or renewal form, if applicable;
- log each check on the *Fee Memo* addressed to Accounting;
- list fees in the *Fee Memo* separately, if a single check is received as payment for both a background check and an application or renewal; and
- copy the *Fee Memo* and send the original with the corresponding checks to the HHSC Accounting Division.

Accounting returns the *Fee Memo* with a document locator number once the checks have been processed. File the copy of the memo.

Memos can be purged after two years.

Send all checks to Accounting *at least weekly*.

Appendix 9000-6 End-of-Week Procedures

November 2008

The end-of-week process creates reports and letters based on all information entered into the Licensed Administrator database for that week (or since the last end-of-week).

The following types of letters are produced by the end-of-week process:

Licensing Fees

Letter Template	Description	Editing Needed	Attachments
Denial1	Explains why an applicant's license was denied and offers an administrative review.	Yes	No
Denial2	Offers a hearing before the State Office of Administrative Hearings (SOAH) for a license denial.	Yes	No
Denial3	Confirms that a denial is final.	Yes	No
Emeritus	Confirms an administrator's emeritus status.	No	Emeritus license

Letter Template	Description	Editing Needed	Attachments
ExamEligible	Informs an applicant that his or her application is approved and he or she can take the administrator's exam.	No	No (Schedule already attached to letter)
FailedExam1	Informs an applicant that he or she failed the administrator's exam and invites the applicant to take the exam again.	No	Exam schedule
FailedExam2	Informs an applicant that he or she failed the administrator's exam a second time and invites the applicant to take the exam again.	No	Exam schedule
FailedExam3	Informs an applicant that he or she has failed the administrator's exam three times and must now wait a year to reapply.	No	No
Inactive	Confirms a renewal on inactive status.	No	No
License	Issues a license to the applicant.	No	License; Continuing education guidelines
Probation	Informs an administrator that he or she has been placed on probation.	Yes	No
Renewal	Confirms a renewal on active status.	No	Date sticker; Continuing education guidelines
RenewalDue	Reminds an administrator that his or her license is about to expire.	No	Request for Criminal History and Central Registry Check
RenewalDueLateLess90	Reminds an administrator that his or her license has expired and needs to be renewed.	No	Request for Criminal History and Central Registry Check
RenewalDueLateMore90	Reminds an administrator that his or her license has been expired for 90 or more days and needs to be renewed.	No	Request for Criminal History and Central Registry Check
RenewalDueOverYear	Informs an administrator that his or her license has lapsed.	No	No
RenewalEducationDue	Informs an administrator that his or her renewal is pending because more training documentation is required.	Yes	No
Revoked1	Informs an administrator of the intent to revoke his or her license.	Yes	No
Revoked2	Offers an SOAH hearing after an administrative review has been waived or has upheld the decision to revoke.	No	No
Revoked3	Finalizes revocation after an SOAH hearing has been waived or has upheld the decision.	No	No
Suspended	Informs an administrator that his or her license has been suspended.	Yes	No
Withdrawn	Confirms that an administrator has relinquished his or her license.	No	No

End-of-Week Procedures

To run the end-of-week process, Licensing staff complete the following tasks:

- Ensure that the Licensed Administrator database is closed.
- Open the drive that contains the database, using *My Computer*.
- Open the *Backups* folder and create a new file. Name the file with the date on which the next end-of-week will be run.
- Copy the database (AL_Working_be.mdb) from the database folder to the back-up file.
- Close *My Computer*.
- Open the Licensed Administrator database, sign in, and click the *Run End of Week* button.
- Answer *Yes* each time the database sends a pop-up message.

The Licensed Administrator database generates several reports and letters. Letters of the same type appear in the same Word document.

- Save each document generated by end-of-week in the back up file.
- Check all letters and reports against the record of actions taken that week. Investigate inconsistencies. For example, if a passing exam score was entered for John Jacobs yesterday, be sure that a license letter was generated for him by the end-of-week process.
- Edit any letters that require individualized information (see the chart above).
- Print letters and make copies for each person's record.
- Ensure that letters are mailed with the required attachments (see the chart above). Remedial action letters must be sent by both regular mail AND certified mail, with a return receipt requested.

- Wait to mail the second revocation letter until the licensed administrator's time frame to request an administrative review has expired OR the administrative review has been waived or has upheld the revocation.
  For the third revocation letter, wait to mail it until the licensed administrator's time frame to request an SOAH hearing has expired OR the SOAH hearing has been waived or has upheld the revocation.
  Date the letter to reflect when it is actually mailed.
- Save all back-up files for a minimum of two years.

CCRH Forms

CCRH Revisions

25-1, Updates Sections 3000, 6000 and 10000

Revision 25-1; Effective Feb. 7, 2025

The following change(s) were made:

Revised	Title	Change
3330	Additional Activities to Complete for DCCR Operations	Changes title to Director and Primary Caregiver Qualifications for Licensed Child Day Care Operations. Identifies qualifications for a director or primary caregiver for an operation.
3331	Evaluating Director and Primary Caregiver Qualifications for Licensed Child Day Care Operations	Changes title to Designated Director Does Not Meet Qualifications. Identifies qualifications for waivers and interim director certificate.
3331.1	How to Evaluate Qualifications	Deletes section. Removes procedure.
3331.2	Issuing a Director's Certificate	Deletes section.
3331.3	When a Director Does Not Meet Qualifications	Deletes section.
6240	Assessing an Intake Report for Priority	Changes title to Intake Prioritization. Adds subheadings and updates policy for residential child care.
10225	Ensuring Complete Abuse or Neglect History	Corrects language.

24-4 Updates Sections 2000, 3000, 4000, 6000, 7000, 8000, and 10000

Revision 24-4; Effective Nov. 13, 2024

The following change(s) were made:

Revised	Title	Change
2230	Next Steps After Evaluating an Exemption Request	Updates to correct letter reference to 2847 Not Subject Response
3213.6	Additional Information	Deletes section.
4161.24	Technical Assistance for Violations Recommended for an Administrative Penalty	Updates job aid title and reference.
5611	Explaining the Right to an Administrative Review	Removes procedure.
6110	Types of Investigations	Adds reports of abuse, neglect or exploitation of an adult
6312	Conducting the Initial Investigation Staffing (Residential Child Care Only)	Updates title to Conducting the Initial Investigation Staffing, Residential Child Care Only. Removes procedure.
6313.2	Determining Which Statutes, Administrative Rules, and Minimum Standards to Evaluate	Deletes section.
6314	Determining Which Statutes, Administrative Rules and Minimum Standards to Evaluate	Adds new section to incorporate content from 6313.2. Clarifies how the investigator

Revised	Title	Change
		evaluates an operation's compliance. Removes procedure.
6480	Conducting the 20-Day Investigation Conclusion Staffing (Residential Child Care Only)	Changes title to Conducting the Investigation Conclusion Staffing, Residential Child Care Only. Clarifies CCR policy and timelines for all investigation conclusion staffings. Removes procedure.
6550	Investigations of Abuse, Neglect or Exploitation of Elderly Adult or Adult with Disability in Residential Child Care Operations	Adds new section.
6551	Assessing the Priority of an Intake Related to a PI Investigation	Adds new section.
7500	Administrative Penalties	Updates 7500 and subsections related to administrative penalty policies
7510	Legal Basis to Impose Administrative Penalties	Updates title to Overview of CCR and Child Care Enforcement Staff Responsibilities Related to Administrative Penalties. Changes content to explain CCR and CCE responsibilities.
7511	Imposing an Administrative Penalty Before Taking a Corrective Action	Deletes section.
7512	Imposing an Administrative Penalty After Taking a Corrective Action	Deletes section.
7520	Assessing the Need for an Administrative Penalty	Updates title to Legal Basis to Impose Administrative Penalties. Moves content from 7510.
7521	A Single High Risk Violation	Deletes section.
7522	Repeated High Risk Violations	Deletes section.
7522.1	Repeated Violations of Background Check Requirements	Deletes section.
7530	Recommending the Administrative Penalty	Updates title to Reserved for Future Use.
7531	When to Recommend the Administrative Penalty	Deletes section.
7531	Child Care Enforcement Disagrees with the Deficiency Cited for an Administrative Penalty.	Adds new section to describe that CCE notifies CCR of their recommendation.
7531.1	When the Violation is Corrected at the Time of the Inspection	Deletes section.
7531.2	When the Violation is Not Corrected During the Inspection	Deletes section.
7532	How to Document the Recommendation to Impose the Administrative Penalty	Deletes section.
7532.1	Determining the Maximum Daily Penalty Amount	Deletes section.
7532.11	Determining the Operation's Capacity	Deletes section.
7532.12	Determining the Number of Days to Impose an Administrative Penalty	Deletes section.
7532.13	Submitting the Recommendation to the Supervisor	Deletes section.
7533	Supervisor and Legal Review of the Recommendation to Impose an Administrative Penalty	Deletes section.

Revised	Title	Change
7533.1	Supervisor Agrees and Sends Notification of the Recommendation to Impose an Administrative Penalty	Deletes section.
7533.2	Supervisor Disagrees with the Recommendation to Impose a Penalty	Deletes section.
7533.3	Supervisor Disagrees with the Minimum Standard or Rule Cited for the Penalty	Deletes section,
7534	Contents of the Notice of Recommendation for Administrative Penalty	Deletes section.
7535	Reviewing the Status of Administrative Reviews for Minimum Standard or Rule Violation Identified in the Administrative Penalty	Deletes section.
7540	Steps to Take after Sending the Notice of Recommendation for Administrative Penalty	Updates title to Steps the Operation Takes after CCE Sends the Notice of Recommendation for Administrative Penalty. Removes procedure. Clarifies CCR and CCE responsibilities. Updates reference.
7550	Issuing the Order to Pay an Administrative Penalty	Deletes section.
7550	Due Process Rights for Administrative Penalties	Adds new section that incorporates content from 7560 and updates language.
7551	When to Send the Order to Pay the Administrative Penalty	Deletes section.
7551	The Right to Request a Judicial Review of an Administrative Penalty After a Due Process Hearing	Adds new section that incorporates content from 7564 and updates reference.
7552	Processing the Order to Pay the Administrative Penalty	Deletes section.
7560	Due Process Rights for Administrative Penalties	Deletes section.
7560	Payment and Nonpayment of Administrative Penalties	Adds new section that incorporates content from 7570 and updates language.
7561	Determining Whether a Request for a Due Process Hearing Meets the Due Date	Deletes section.
7561	When Administrative Penalties Remain Unpaid	Adds new section that incorporates content from 7572 and updates language.
7562	Processing a Legal Reduction of an Administrative Penalty	Deletes section.
7563	Processing the Outcome of a Due Process Hearing for an Administrative Penalty	Deletes section.
7563.1	Due Process Hearing Upholds the Decision to Impose the Administrative Penalty	Deletes section.
7563.2	Due Process Hearing Overturns the Decision to Impose the Administrative Penalty	Deletes section.
7564	The Right to Request a Judicial Review of an Administrative Penalty	Deletes section.
7564.1	If the Right to a Judicial Review is Waived	Deletes section.
7564.2	If a Judicial Review is Requested	Deletes section.

Revised	Title	Change
7564.21	Documenting the Outcome of the Judicial Review	Deletes section.
7570	Payment and Nonpayment of Administrative Penalties	Deletes section.
7571	Overpayment of an Administrative Penalty	Deletes section.
7572	When Administrative Penalties Remain Unpaid	Deletes section.
7572.1	Nonpayment Due to Non-Sufficient Funds	Deletes section.
7573	Documenting the Final Result of an Administrative Penalty	Deletes section.
8210	Confidential Information Not for Release to the Public	Adds requirements for Department of Family and Protective Services (DFPS) investigations and HHSC Long Term Care Regulation investigations.
10200	Central Registry and Out-of-State Abuse and Neglect Background Checks	Updates language.
10210	Reviewing Results from a Central Registry Search	Updates policy language and removes procedure.
10220	Determining if Additional Action is Needed for Central Registry Matches	Updates policy language and removes procedure.
10221	Preponderance Reviews for Unsustained Findings Made Before April 16, 1999	Deletes section.
10221.1	Requesting a Preponderance Review	Deletes section.
10221.2	Acting on the Results of the Preponderance Review	Deletes section.
10222	Reviewing Prior Due Process Offers	Deletes section.
10222.1	Reviewing History for Prior Due Process Offers	Deletes section.
10222.2	Acting on Due Process Review	Deletes section.
10223	Reviewing Open Investigations and DFPS Alternative Response Cases	Deletes section.
10224	Tracking Open Investigations and DFPS Alternative Response Cases for Closure	Deletes section.
10225	Ensuring Complete Central Registry Results	Changes title to Ensuring Complete Abuse or Neglect History. Updates language to include all abuse or neglect results.
10226	Central Registry and Out-of-State Abuse or Neglect Results for Licensed Administrators	Deletes section.
10230	Acting on a Central Registry Background Check Match	Updates language.
10231	Assessing the Risk of Central Registry Matches for Determination of Immediate Threat	Changes title to Assessing Abuse or Neglect Results for Determination of Immediate Threat. Updates language to include all abuse or neglect results.
10232	Requests for Determination of Immediate Threat	Deletes section.
10232.1	Processing a Determination of Immediate Threat	Deletes section.
10233	Determining Subject's Presence Does Not Pose Immediate Threat	Deletes section.

Revised	Title	Change
10260	Temporary Risk Evaluation for a Central Registry Match	Clarifies policy for temporary risk evaluations for foster and adoptive homes with pending verifications or approvals.
10450	Risk Evaluation Predictions	Updates reference.
10533.1	Additional Information Sent to a Child-Placing Agency	Clarifies language and adds exception.
10714	Administrative Penalties for Background Check Violations	Clarifies CCR and CCE responsibilities. Updates references.

24-3, Updates Sections 2000, 3000, 4000, 6000, 10000 and Appendix 6000

Revision 24-3; Effective Aug. 15, 2024

The following change(s) were made:

Revised	Title	Change
2322	Programs Under the Regulatory Authority of Other State Agencies	Updates language.
2345	Private Educational Program	Updates language.
2352	Skills Program	Updates language.
2424	Exempt Programs that Operate in the Same Locations as Regulated Operations	Updates language.
2460	When an Exempt Program Requests Regulation by CCR	Updates language.
3323.3	Assessing the Five-Year Compliance History of the Applicant and Associated Operation (RCCR Only)	Corrects spelling error.
3332.1	When to Associate Operations (DCCR Only)	Clarifies staff associate child day care operations.
3332.2	Documenting Associated Operation History in CLASS (DCCR Only)	Adds hyperlink to another section.
3332.3	Associating Chain Operations (DCCR Only)	Clarifies procedure for associating child day care chain operations in CLASS.
3834.3	Documenting the New Application in CLASS	Corrects hyperlink.
3924.4	Reviewing Deficiencies Not Corrected Details	Clarifies language.
4453	Notifying a CPA of an Approved Closure Recommendation and Documenting the CPA's Response in CLASS	Corrects spelling error.
6251	Allegation Involving a Child Under the Age of 6 (Child-Placing Agency Only)	Updates title to Allegation Involving a Child Younger Than 6 (Child-Placing Agency Only) Clarifies the meaning of a child younger than 6.
6421.11	Exceptions to Meeting the Time Frame for Face-to-Face Contacts with Victims During Priority 1 and Priority 2 Investigations of Residential Child Care Operations	Adds two new exceptions to meeting the time frame for face-to-face contacts with victims.

Revised	Title	Change
6510.1	Allegations and Incidents that Licensing Must Investigate	Changes title to Allegations and Incidents that CCR Must Investigate. Clarifies the meaning of a child younger than 6.
6723.2	Documenting Contacts with Victims in Residential Child Care Investigations	Removes section.
10241	Notifying the Designated Perpetrator of the Central Registry Background Check Results and Offering Due Process	Corrects table.
Appendix 6000-1	Investigator Time Frames for Investigations	Adds time frame for face-to-face contact with all alleged victim(s) identified after initiation of an RC investigation.

24-2, Updates Sections 1000, 2000, 3000, 4000, 5000, 6000, 7000, 9000 and 10000

Revision 24-2; Effective May 22, 2024

The following changes(s) were made:

Revised	Title	Change
1141	Types of Child Day Care Operations	Restructures content. Removes table.
1142	Types of Residential Child Care	Restructures content. Removes table.
2000	Handling Inquiries About the Licensing Process and Exemptions	Updates main section title to Permit Types, Operation Types, and Exemptions.
2100	Providing Information About Licensing Processes	Updates section title to Types of Child Care Permits.
2110	Permits Required for Child Day Care	Adds and updates language for records in the CLASS Document Library.
2110.1	Listed Family Home	Adds new section to describe a listed family home.
2110.2	Registered Child Care Home	Adds new section to describe a registered child care home.
2110.3	Licensed Child Care Home	Adds new section to describe a licensed child care home.
2110.4	Licensed Child Care Home	Adds new section to describe a licensed child care home.
2110.5	Before or After-School Program	Adds new section to describe a before or after-school program.
2110.6	School-Age Program	Adds new section to describe a school-age program.
2110.7	Small Employer-Based Child Care	Adds new section to describe temporary shelter care programs.
2110.8	Temporary Shelter Child Care Program	Adds new section to describe temporary shelter care programs.
2120	Permits Required for Residential Child Care	Adds new section to list permit types for residential child care.
2120.1	General Residential Operation	Adds new section to describe a general residential operation.
2120.2	Child-Placing Agency	Adds new section to describe a child-placing agency.
2120.3	Foster Home	Adds new section to describe a foster home.
2120.4	Adoptive Home	Adds new section to describe an adoptive home.
2130	State-Operated Child Care Operations	Adds new section to explain state-operated child care operations may be exempt from regulation by CCR or may require to be certified by CCR.
2200	Types of Child Care Permits and Multiple Operations	Updates title to Determining CCR's Authority to Regulate a Program. Changes content to explain how CCR staff determine regulatory authority over a program. CCR May Become Aware of a Program. Incorporates new content about CCR becoming aware of a potentially exempt program.
2210	Permits Required for Child Day Care	Updates title to When CCR May Become Aware of a Program. Incorporates new content about CCR becoming aware of a potentially exempt program.
2211	Child Day Care Homes Subject to Listing and Registration	Updates title to Becoming Aware of a Program After Receiving a Report of a Possible Unregulated Operation. Explains how staff determine if CCR has regulatory authority over the program.
2212	Becoming Aware of a Program When UOU Conducts Searches for Unregulated Operations	Adds new section to adds new content about Unregulated Operations Unit (UOU) staff searching for unregulated operations.

Revised	Title	Change
2213	Becoming Aware of a Program After Receiving an Exemption Request Form	Adds new section to describe how staff receive an exemption request and determine CCR's regulatory authority.
2214	Becoming Aware of a Program When a Program Currently Operating or Has Operated in the Past Contacts CCR	Adds new section to explain procedure for handling a program that is operating or has operated in the past without a permit or exemption.
2220	Permits Required for Residential Child Care	Updates title to Determining if a Program is Subject to Regulation During an Investigation of an Unregulated Operation. Adds procedure for determining CCR's regulatory authority over the program.
2221	If CCR Determines a Program is Not Subject to Regulation During an Investigation of an Unregulated Operation	Adds new section to provide procedure for closing the unregulated operation investigation.
2222	If CCR Determines a Program is Subject to Regulation During an Investigation of an Unregulated Operation	Adds new section to provide procedure for handling a program subject to regulation by CCR.
2230	Operating Multiple Day Care Services Under One Permit	Updates title to Next Steps After Evaluating an Exemption Request. Incorporates new content for CCR staff to handle an exemption request determination.
2231	Other Services that May Be Offered Under One Day Care Permit	Deletes section.
2232	Requirements for Offering Multiple Services Under One Day Care Permit	Deletes section.
2240	Operating a Child Care Home and a Day Care Center at One Location Under Two Licenses	Deletes section.
2241	Additional Issues Related to Operating a Child Care Home and a Day Care Center at One Location Under Two Licenses	Deletes section.
2250	Operating More Than One Licensed Child Care Home	Deletes section.
2251	Defining What Qualifies a Child Care Home as Separate	Deletes section.
2260	Operations that are Not Contiguous	Deletes section.
2261	Child Day Care Operations that are Not Contiguous	Deletes section.
2262	Residential Care Operations that are Not Contiguous	Deletes section.
2262.1	Defining Multiple Residential Care Operations as the Same Operation	Deletes section.
2263	Evaluating Child-Placing Services	Deletes section.
2270	Residential Child Care Operations that Also Provide Child Day Care	Deletes section.
2271	General Residential Operations that Also Provide Child Day Care	Deletes section.
2272	Extended Child Day Care	Deletes section.
2280	State-Operated Facilities Exempt from Licensure	Deletes section.
2300	Determining Whether a Program is Subject to or Exempt from Regulation	Updates title to Exemption Categories and Types. Deletes content.
2310	Determining Whether a Program is Subject to Regulation	Updates title to Types of Exemptions. Lists the four exemption categories.
2311	Determining Whether a Program is Subject to Regulation During an Investigation of an Illegal Operation	Deletes section.
2312	Determining Whether a Program is Subject to Regulation When Evaluating an Exemption Determination Form	Deletes section.
2320	Determining Whether a Program is Exempt from Regulation	Updates title to Governmental Entities that are Exempt from Regulation by CCR. Lists the program types.
2321	Criteria Used to Determine if a Program is Exempt	Updates title to Programs with Oversight by the Federal Government.

Revised	Title	Change
2321.1	A Program Providing Care to Persons Not Lawfully Present in the United States	Adds new section to describe a program providing care to persons not lawfully present in the U.S.
2322	Processing the Exemption	Updates title to Programs Under the Regulatory Authority of Other State Agencies and lists the program types.
2322.1	Additional Requirements for Processing Exemptions for Educational Programs	Updates title to Correctional Facilities. Lists correctional facility types.
2322.11	Additional Requirements for an Educational Facility that is a Member of an Organization Requiring Compliance with Standards	Deletes section.
2322.12	Additional Requirements for a Before- or After-School Program Under Contract with a Public Educational Facility	Deletes section.
2322.21	Program is Not Exempt	Deletes section.
2322.3	Program Disagrees that it is Not Exempt	Updates title to Youth Camps. Lists youth camp program types.
2323	Documenting Exemption Decisions in CLASS	Updates title to Municipal Recreation Programs and lists the criteria for a municipal recreation program.
2324	Documenting Supplements to an Exemption Decision	Deletes section.
2325	Closing an Exempt Program in CLASS	Deletes section.
2330	When Exempt Programs Request Regulation	Updates title to Programs of Limited Duration that are Exempt from Regulation by CCR and lists limited-duration program types.
2331	Program with Parents on the Premises	Adds new section to list criteria for the program with parents on the premises exemption.
2331.1	Examples of Parents on the Premises Programs that May be Exempt	Adds new section to list examples of parents on the premises programs.
2332	Short-Term Program	Adds new section to describe a short-term program.
2333	Religious Program	Adds new section to describe a religious program.
2334	Foreign Exchange or Sponsorship Program	Adds new section to describe a foreign exchange or sponsorship program.
2340	Exempt Programs that Operate in the Same Locations as Regulated Operations	Updates title to Educational Programs that are Exempt from Regulation by CCR. Lists the educational program types.
2341	When an Exempt Educational Program Must Obtain a Permit	Updates title to Accredited Educational Program for Grades Pre-K and Above. Describes the program.
2342	Before or After-School Program Operated by an Educational Facility	Adds new section to describe a before or after-school program operated by an educational facility.
2343	Before or After-School Program Operated by a Contracted Entity	Adds new section to describe a before or after-school program operated by a contracted entity.
2344	Educational Program that is a Member of an Organization Requiring Compliance with the Organization's Own Standards	Adds new section to describe an educational program that is a member of an organization that requires compliance with the organization's own standards.
2345	Private Educational Program	Adds new section to describe a private educational program.
2346	Additional Exemption Criteria when an Educational Program Provides Residential Child Care	Adds new section to provide additional criteria for an educational program that provides residential child care.
2347	When an Exempt Educational Program Must Obtain a Permit for a Portion of the Program	Adds new section to explain when an educational program must get a permit for a portion of the program that is not exempt.
2350	Governmental Entities that are Exempt from HHSC Regulation	Updates title to Miscellaneous Programs Exempt from Regulation by CCR. Lists criteria for this exemption.
2351	A Facility on a Federal Installation	Updates title to Neighborhood Recreation Program and lists criteria for this exemption.
2352	State-Operated Programs	Updates title to Skills Program and lists criteria for this exemption.
2352.1	Correctional Facilities	Deletes section.
2352.2	Treatment Facilities	Deletes section.
2352.3	Youth Camps Licensed by DSHS	Deletes section.
2352.4	Youth Camps Exempt from DSHS Licensing	Deletes section.
2353	Municipal Programs	Updates title to Caregiver Has Written Agreement with a Parent to Provide Residential Care. Lists criteria for this exemption.

Revised	Title	Change
2354	Emergency Shelter for Minors	Adds new section. Lists criteria for the emergency shelter for minors exemption.
2355	Child or Sibling Group Placed by the Department of Family and Protective Services	Adds new section. Lists criteria for the child or sibling group placed by DFPS exemption.
2356	Food Distribution Program	Adds new section. Lists criteria for the food distribution program exemption.
2357	Emergency Shelter for Victims of Human Trafficking	Adds new section. Lists criteria for the emergency shelter for victims of human trafficking exemption.
2358	Respite Care for a Local Mental Health Authority	Adds new section. Lists criteria for the respite care for a local mental health authority exemption.
2360	Programs of Limited Duration that are Exempt from HHSC Regulation	Updates title to Other Programs. Describes two types of programs that fall outside of the regular exemption types.
2361	Program with Parents on the Premises	Updates title to Certain Annual Youth Camps. Lists the criteria for this exemption.
2362	Short-Term Program	Updates title to Background Check Only Entities. Describes what a background check only entity is. Adds procedure for how staff process these requests.
2363	Religious Program	Deletes section.
2364	Foreign Exchange or Sponsorship Program	Deletes section.
2370	Educational Programs	Deletes section.
2371	Additional Exemption Criteria for Educational Programs that Provide Residential Child Care	Deletes section.
2380	Miscellaneous Programs Exempt from HHSC Regulation	Deletes section.
2390	Other Operations Exempt from HHSC Regulation	Deletes section.
2391	A Foster Home or Foster Group Home Regulated by a CPA	Deletes section.
2392	Certain State-Operated Facilities	Deletes section.
2393	Certain Annual Youth Camps	Deletes section.
2400	Processing an Exemption Request	Adds reference(s) for CLASS Document Library.
2410	Overview of the Exemption Process	Clarifies and adds language and reference(s) for CLASS Document Library.
6423.3	Storing Audio Files on Digital Storage	Deletes section.
2420	Determining if a Program is Exempt from Regulation	Adds language and reference(s) for CLASS Document Library.
2421	Processing the Exemption for an Educational Program that is a Member of an Organization Requiring Compliance With its own Standards	Adds new section. Includes more steps staff take to process an exemption for an educational program that is a member of an organization that requires compliance with its own standards.
2422	Exemption Request Forms	Adds new section. Lists each of the exemption request forms, the hyperlinks to the forms, and the applicable CCRH reference.
2423	2423 Supplemental Information CCR Reviews to Determine if a Program is Exempt	Adds new section. Lists examples of supplemental information CCR staff may need to review as part of the exemption request.
2424	Exempt Programs that Operate in the Same Locations as Regulated Operations	Adds new section. Clarifies how staff handle exempt and regulated programs that operate in the same location.
2430	Procedures When CCR Determines a Program is Exempt	Adds new section. Explains steps staff take after determining a program is exempt.
2440	Procedures When CCR Determines a Program is Not Exempt	Adds new section.
2441	Non-Exempt Program is Operating	Adds new section. Explains steps staff take when a non-exempt program is operating.
2441.1	When a Non-Exempt Program Does Not Take Steps to Become Regulated, Meet Criteria for an Exemption, or Stop Operating	Adds new section. Explains steps staff take when a non-exempt program is operating and does not take steps to come in to compliance.
2442	Non-Exempt Program is Not Providing Care	Adds new section. Explains steps staff take when a non-exempt program is not providing care.

Revised	Title	Change
2443	Obtaining Consent to Enter an Unregulated Operation	Adds reference(s) for CLASS Document Library.
2450	Documenting Exemption Requests and Decisions in CLASS	Adds new section.
2451	Entering the Exemption Request in CLASS	Adds new section. Explains how staff document exemption requests in CLASS.
2452	Documenting Chronology Entries for Exemption Requests	Adds new section. Explains how staff document chronology entries about exemption requests.
2453	Documenting Exemption Decisions in CLASS	Adds new section. Explains how staff document exemption decisions in CLASS.
2454	Documentation in CLASS	Adds language and reference(s) for CLASS Document Library.
2460	When an Exempt Program Requests Regulation by CCR	Adds new section. Describes situations where a program can and cannot request regulation by CCR.
2500	Handling Changes to an Exempt Program	Adds new section. Explains some exempt programs may alter services that impact its exemption status; provides procedure for how staff handle these situations.
2510	Determining if Changes to an Exempt Program Change the Program's Exemption Status	Adds new section. Provides steps for staff to take after determining if a program's exemption status has changed.
7210	Immediate Danger in a State-Operated Facility	Deletes section. Moves title and information to new section 4521.
2520	Enforcement Actions When an Exempt Program Knowingly Operates a Program that Requires Regulation by CCR	Adds new section. Explains the enforcement actions CCE may take if a program knowingly operates a program requiring regulation by CCR without a permit or exemption.
2600	Providing Information About the Child Care Regulation Process	Adds new section. Explains how CCR staff provide information about the regulation process to the public.
3121.2	Capturing Applicant Information in CLASS	Adds new section.
3121.21	Documenting Applicant Information in CLASS (RCCR Only)	Adds new section. Explains the policy for RCCR staff to document applicant history in CLASS.
3121.22	Documenting Applicant History in CLASS (RCCR Only)	Adds new section. Explains procedure for how staff document applicant history in CLASS.
3121.23	Documenting Applicant Information in CLASS (DCCR Only)	Adds new section. Explains procedure for how DCCR staff document applicant history in CLASS.
3200	Processing the Application for a License Certificate, Compliance Certificate, Registration, or Listing Permit	Updates title to include comma in Processing the Application for a License, Certificate, Compliance Certificate, Registration, or Listing Permit.
3213	Topics Covered and Forms Provided During the Pre-Application Interview	Updates references.
3232.1	Basis to Deny a Permit	Updates reference.
3323	Identifying, Documenting and Assessing Information from Prior Operation Numbers (RCCR Only)	Updates title to Identifying, Associating, and Documenting Information from an Associated Operation (RCCR Only). Clarifies procedure for identifying who the applicant is and if they have a relationship to an existing or previous operation.
3323.1	Documenting Prior Operation Numbers (RCCR Only)Documenting Prior Operation Numbers (RCCR Only)	Updates to 3323.2. New title is Documenting Associated Operation History in CLASS (RCCR Only). Adds procedure for how staff document operation history using updated CLASS functionality.
3323.2	Assessing the Five-Year Compliance History of the Applicant and Prior Operation Numbers (RCCR Only)	Updates to 3323.3. New title is Assessing the Five-Year Compliance History of the Applicant and Associated Operation (RCCR Only). Clarifies language.
3323.3	Additional Requirements if the Applicant or a Prior Operation Number Has a History of Heightened Monitoring (RCCR Only)	Updates to 3323.4. New title is Additional Requirements if the Applicant or an Associated Operation Has a History of Heightened Monitoring (RCCR Only).Clarifies language and procedure for coordinating with heightened monitoring.
3330	Additional Activities to Complete for a Licensed Child Day Care Operation	Updates title to Additional Activities to Complete for DCCR Operations.
3332	Identifying, Associating, and Documenting Information from an Associated Operation (DCCR Only)	Adds new section. Provides steps for DCCR staff to identify an applicant and asses an associated operation's history.
3332.1	When to Associate Operations (DCCR Only)	Adds new section. Provides procedure for staff to associate an applicant with an existing or closed operation.

Revised	Title	Change
3332.2	Documenting Associated Operation History in CLASS (DCCR Only)	Adds new section. Explains how staff document the operation history in CLASS using updated CLASS functionality.
3340	Operations that are Not Contiguous	Adds new section. Incorporates information from previous 2260.
3341	Child Day Care Operations that are Not Contiguous	Adds new section. Incorporates information from previous 2261.
3342	Residential Child Care Operations that are Not Contiguous	Adds new section. Incorporates information from previous 2262.
3350	Residential Child Care Operations that Also Provide Child Day Care	Adds new section.
3351	Foster Homes that Also Provide Child Day Care	Adds new section. Incorporates information from previous 2270.
3352	General Residential Operations that Also Provide Child Day Care	Adds new section. Incorporates information from previous 2270.
3424	Applying Additional Types of Conditions or Restrictions	Updates reference.
3424.5	Conditions for Applicants with a History of Heightened Monitoring (RCCR Only)	Updates reference.
3834	Steps to Process an Application	Updates title to Steps to Process an Application for an Existing Operation. Clarifies steps staff take to process an application for an existing operation.
3834.1	When a Permit is Added or Replaced	Clarifies language.
3834.2	Public Notice and Hearing Requirements	Clarifies language.
3834.3	Documentation in CLASS	Updates title to Documenting the New Application in CLASS. Clarifies procedure for staff to indicate the operation history on the new Operation History page in CLASS.
4123	Follow-Up Inspections	Updates reference.
4128	Other Types of Inspections	Updates list of examples.
4141	Preparing for Application, Initial, and Monitoring Inspections	Updates references. Clarifies language.
4171	Discussing the Results of an Inspection	Updates link to the CCR Inspection Survey.
4300	Conducting a Follow-Up with an Operation	Updates references. Clarifies language.
4511	Options on the Enforcement Recommendation Page in CLASS	Updates references. Clarifies language.
5142	Notifying the Operation of Waiver or Variance Decision	Clarifies how staff send notification to an operation for a granted waiver or variance.
5181	Amending Conditions of a Waiver or Variance	Clarifies how staff send notification to an operation for a granted waiver or variance.
5212	Fees for Multiple Licenses	Updates references. Clarifies language.
5534	Ending the Voluntary Suspension	Updates references. Clarifies language.
5700	Due Process Hearings	Adds new section. Moves and updates due process from 7730, 7770, and related subsections.
5710	Due Process Hearing Procedure	Adds new section. Moves and updates due process from 7730 and related subsections.
5711	Waiving a Due Process Hearing and Expediting the HHSC Decision or Action	Adds new section. Moves and updates due process from 7730 and related subsections.
5712	Procedure for Requested Due Process Hearings	Adds new section. Moves and updates due process from 7730 and related subsections.
5713	When an HHSC Decision or Action is Effective Following a Due Process Hearing Decision	Adds new section. Moves and updates due process from 7730 and related subsections.
5720	Regulating Pending the Due Process Hearing or Denial, Refusal to Renew, Revocation, or Suspension	Adds new section. Moves and updates due process from 7730 and related subsections.
5721	Conducting Inspections When CCE Determines the Operation Can Continue Providing Care Pending the Due Process Hearing	Adds new section. Moves and updates due process from 7730 and related subsections.
5722	Conducting Inspections When CCE Determines the Operation Cannot Continue Providing Care Pending the Due Process	Adds new section. Moves and updates due process from 7730 and related subsections.

Revised	Title	Change
5723	Submitting a Subsequent Referral for Enforcement Action to CCE	Adds new section. Moves and updates due process from 7730 and related subsections.
5730	Due Process Hearing Upholds an Adverse Action	Adds new section. Moves and updates due process from 7730 and related subsections.
5800	Automatic Actions	Creates new section. Moves title from previous section 7800. Adds language and references.
5810	Automatic Suspensions	Creates new section. Moves title and information from previous section 7810. Updates language and adds references.
5811	When to Process an Automatic Suspension	Creates new section. Moves title and information from previous section 7811. Updates language.
5812	How to Process an Automatic Suspension	Creates new section. Moves title and information from previous section 7812. Updates language.
5813	Conducting Follow Up to Automatic Suspension	Creates new section. Moves title and information from previous section 7813. Updates language.
5813.1	If the Operation is Caring for Children After an Automatic Suspension	Creates new section. Moves information from previous section 7813.1. Updates language.
5813.2	If the Operation Stopped Providing Care or is No Longer Operating After an Automatic Suspension	Creates new section. Moves information from previous section 7813.2. Updates language.
5814	Ending an Automatic Suspension	Creates new section. Moves title and information from previous section 7814. Updates language.
5820	Automatic Revocations	Creates new section. Moves title and information from previous section 7820. Updates language.
5821	Conducting Follow-Up to an Automatic Revocation	Creates new section. Moves title and information from previous section 7821. Updates language.
5821.1	Operation is Caring for Children After an Automatic Revocation	Creates new section. Moves information from previous section 7821.1. Updates title to Operation is Caring for Children After an Automatic Revocation. Updates language.
5822	Closing an Operation After an Automatic Revocation	Creates new section. Moves title and information from previous section 7822.
6992	Seeking an Injunction During an Unregulated Operation Investigation	Updates references. Clarifies language.
7110	Circumstances That May Call for Enforcement Action	Updates references.
7430	Decision to Impose Probation	Clarifies when staff inspect an operation during the probation period. Clarifies when staff provide technical assistance.
7441	Inspecting an Operation During Probation	Clarifies when staff inspect an operation during the probation period. Clarifies when staff provide technical assistance.
7631.1	When Immediate Intervention Is Warranted at an Operation	Updates reference.
7631.5	Follow-Up After Delivery of Notice of Intent to Take Adverse Action When Operation Required to Close Immediately	Updates reference.
7632.1	When an Adverse Action is Overturned at an Administrative Review	Updates reference. Clarifies language.
7632.2	Adverse Action is Upheld at an Administrative Review or No Administrative Review is Requested	Updates reference.
7634	Inspecting During the Suspension, Refusal to Renew, Revocation, or Denial Process	Updates reference.
7636	Follow-Up to Final Notice of Suspension, Revocation, or Denial	Updates reference.
7700	Legal Actions When an Operation Disagrees with the Actions of an Inspector	Changes title to Judicial Actions. Adds language.
7710	Reserved for Future Use	Changes title to Injunction, Including Temporary Injunction. Adds language.
7711	Following Up During an Injunction	Adds new section. Moves and updates language from 7742.1.
7720	Hearings Concerning Child Abuse, Neglect, or Exploitation Findings	Changes title to Civil Penalties and Criminal Offenses. Updates text in section with content from 7750.
7720.1	Civil Penalties	Adds section.

Revised	Title	Change
7720.2	Criminal Offenses	Add section.
7721	When a Minor Turns Eighteen	Deletes section.
7722	Sustaining a Perpetrator in IMPACT	Deletes section.
7730	Due Process Hearings	Changes title to Settlement of Legal Case. Updates text in section with content from 7760. Moves and updates content to 5700 and related subsections.
7731	Regulation During Appeal Process	Deletes section.
7732	When an Administrative Law Judge Issues a Final Decision on an Appeal	Deletes section.
7733	Suit Filed	Deletes section.
7740	Injunctive Relief	Deletes section.
7741	Temporary Restraining Order	Deletes section.
7742	Injunction	Deletes section. Moves and updates content to 7710.
7742.1	Following Up an Injunction	Deletes section. Moves and updates content to 7711.
7750	Civil and Criminal Penalties	Deletes section. Moves and updates information to 7720.
7760	Settlement of Legal Case	Deletes section. Moves and updates information to 7730.
7770	Administrative Review and Due Process Hearing for a Designated Controlling Person	Deletes section
7771	Choosing the Persons to Designate as Controlling	Deletes section
7771.1	Notifying Persons About the Intent to Designate	Deletes section
7772	Process of Providing an Administrative Review of the Designation as a Controlling Person	Deletes section
7772.1	Adverse Action Is Overturned, Stopped, or Results in a Settlement	Deletes section
7772.2	No Administrative Review Requested by a Controlling Person	Deletes section
7772.3	Decision to Designate a Controlling Person is Overturned	Deletes section
7772.4	Decision to Designate a Controlling Person is Upheld	Deletes section
7772.5	Notifying Persons About Licensing's Decision to Designate a Controlling Person	Deletes section
7772.51	Content of CLASS Form 2763 (Controlling Person Administrative Review Decision Letter)	Deletes section
7772.52	Instructions for Requesting a Due Process Hearing to Appeal the Designation of Controlling Person	Deletes section
7772.53	Consequences of a Controlling Person Not Responding to a Letter About the Right to Appeal (CLASS Form 2763)	Deletes section
7772.54	Enclosures When Instructing a Person About the Right to Appeal a Designation as Controlling (CLASS Form 2763)	Deletes section
7772.55	Delivering the Letter Notifying a Person About the Right to Appeal a Designation as Controlling (CLASS Form 2763)	Deletes section
7773	Providing a Due Process Hearing for a Designated Controlling Person	Deletes section.
7773.1	Controlling Person Did Not Request a Due Process Hearing	Deletes section.
7773.2	When a Controlling Person Requests a Due Process Hearing to Appeal the Designation	Deletes section.
7773.21	Designation of Controlling is Upheld at a Due Process Hearing	Deletes section.

Revised	Title	Change
7773.22	Revocation is Upheld at a Due Process Hearing but the Designation of Controlling Person is Overturned	Deletes section.
7773.23	Revocation and Designation are Both Overturned at a Due Process Hearing	Deletes section.
7773.3	Final Notice to Sustain the Designation of Controlling Person	Deletes section.
7773.31	Contents of the Letter to Notify a Controlling Person About a Sustained Designation (CLASS Form 2764)	Deletes section.
7773.32	Delivering the Letter Notifying a Controlling Person About a Sustained Designation (CLASS Form 2764)	Deletes section.
7773.4	Reviewing the Status of a Sustained Controlling Person in CLASS	Deletes section.
7774	Documenting in the AARS When the Denial or Revocation of a Permit is Final or the Role of Controlling Person is Sustained	Deletes section.
7774.1	Entering Details About an Operation in the HHSC Record Sharing System	Deletes section.
7774.2	Entering Information for the Controlling Persons	Deletes section.
7800	Automatic Actions	Deletes section. Moves title and information to new section 5800.
7810	Automatic Suspensions	Deletes section. Moves title and information to new section 5810.
7811	When to Process an Automatic Suspension	Deletes section. Moves title and information to new section 5811.
7812	How to Process an Automatic Suspension	Deletes section. Moves title and information to new section 5812.
7813	Conducting Follow Up to Automatic Suspension	Deletes section. Moves title and information to new section 5813.
7813.1	Operation or Home is Caring for Children	Deletes section. Moves information to new section 5813.1.
7813.2	Operation or Home has Stopped Providing Care or is No Longer Operating	Deletes section. Moves information to new section 5813.2.
7814	Ending an Automatic Suspension	Deletes section. Moves title and information to new section 5814.
7820	Automatic Revocations	Deletes section. Moves title and information to new section 5820.
7821	Conducting Follow-Up to an Automatic Revocation	Deletes section. Moves title and information to new section 5821.
7821.1	Operation or Home is Caring for Children	Deletes section. Moves information to new section 5821.1.
7822	Closing an Operation After an Automatic Revocation	Deletes section. Moves title and information to new section 5822.
9700	Remedial Action on an Administrator's License	Updates references.
10123	Background Check Requests for Substitute Employees and Special Skills Instructors	Clarifies policy about skills programs and substitute caregiver organizations.
10123.1	Background Check Only Entities in CLASS	Adds new section. Clarifies procedure for CBCU staff when processing a background check only request.
10224	Tracking Open Investigations and DFPS Alternative Response Cases for Closure	Updates reference.
10232	Requests for Determination of Immediate Threat	Updates reference. Clarifies language.
10232.1	Processing a Determination of Immediate Threat	Updates reference. Clarifies language.
10233	Determining Subject's Presence Does Not Pose Immediate Threat	Updates reference. Clarifies language.
10250	Response to Due Process Offers	Updates reference. Clarifies language.
10271	Finding is Upheld in the Due Process Hearing	Updates reference. Clarifies language.
10280	Handling Sustained Central Registry Background Check Results	Updates reference. Clarifies language.

CCRH Contact Us

For questions about the Child Care Regulation Handbook, email CCRHandbook@hhs.texas.gov.

For technical or accessibility issues with this handbook, email form.handbook.request@hhs.texas.gov.